

Authorised Version No. 139

Building Act 1993

No. 126 of 1993

Authorised Version incorporating amendments as at
28 February 2024

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Authorised Version No. 139

Building Act 1993

No. 126 of 1993

Authorised Version incorporating amendments as at
28 February 2024

Part 1—Preliminary

1 Purposes

The main purposes of this Act are—

- (a) to regulate building work and building standards; and
- (b) to provide for the accreditation of building products, construction methods, building components and building systems; and
- (c) to provide an efficient and effective system for issuing building and occupancy permits and administering and enforcing related building and safety matters and resolving building disputes; and
- (d) to regulate building practitioners, building employees and plumbers; and
- (da) to regulate builders, and enforce offences under the **Domestic Building Contracts Act 1995**, in relation to demanding or receiving money under a major domestic building contract if the builder has not ensured that the domestic building work to be carried out under the contract is covered by domestic building insurance within the meaning of that Act; and
- (e) to regulate plumbing work and plumbing standards; and

S. 1
substituted by
No. 54/2007
s. 3.

S. 1(d)
amended by
No. 40/2021
s. 3.

S. 1(da)
inserted by
No. 4/2024
s. 6.

- (f) to provide for the accreditation, certification and authorisation of plumbing work, products and materials; and
- (g) to regulate cooling tower systems; and
- (h) to limit the periods within which building actions and plumbing actions may be brought.

2 Commencement

- (1) Section 1 and this section come into operation on the day on which this Act receives the Royal Assent.
- (2) The remaining provisions of this Act come into operation on a day or days to be proclaimed.
- (3) If a provision referred to in subsection (2) does not come into operation before 1 March 1995, it comes into operation on that date.

3 Definitions and interpretation

- (1) In this Act—

* * * * *

adjoining occupier means an occupier of an adjoining property;

adjoining owner means the owner of an adjoining property;

adjoining property means land (including any street, highway, lane, footway, square, alley and right of way) which is so situated in relation to the site on which building work is to be carried out as to be at risk of significant damage from the building work;

S. 3 (Heading)
inserted by
No. 4/2024
s. 18.

S. 3(1) def. of
appointed day
repealed by
No. 21/2017
s. 72(2).

Building Act 1993
No. 126 of 1993
Part 1—Preliminary

*	*	*	*	*	S. 3(1) def. of <i>approved auditor</i> inserted by No. 85/2000 s. 3, repealed by No. 46/2008 s. 248(1).
				<i>approved building manual</i> means a building manual for a building, which has been approved by the relevant building surveyor under section 41B(1);	S. 3(1) def. of <i>approved building manual</i> inserted by No. 11/2023 s. 31(1).
				<i>approved infrastructure contributions plan</i> has the same meaning as in Part 3AB of the Planning and Environment Act 1987 ;	S. 3(1) def. of <i>approved infrastructure contributions plan</i> inserted by No. 7/2018 s. 21.
				<i>Architects Registration Board of Victoria</i> has the same meaning as in the Architects Act 1991 ;	S. 3(1) def. of <i>Architects Registration Board of Victoria</i> inserted by No. 11/2023 s. 3(2).
				<i>associate</i> , in relation to a person, means a person who exercises a significant influence over the person or the operation or management of the person's business;	S. 3(1) def. of <i>associate</i> inserted by No. 21/2017 s. 3(1).
				<i>Authority</i> means the Victorian Building Authority established under section 193;	S. 3(1) def. of <i>Authority</i> inserted by No. 34/2013 s. 3(a).
				<i>automatic deemed registration</i> has the same meaning as in section 4(1) of the Mutual Recognition Act 1992 of the Commonwealth;	S. 3(1) def. of <i>automatic deemed registration</i> inserted by No. 1/2023 s. 3(1).

S. 3(1) def. of
*binding
determination*
inserted by
No. 11/2023
s. 3(2).

binding determination means a determination issued under section 206E by the State Building Surveyor;

building includes structure, temporary building, temporary structure and any part of a building or structure;

S. 3(1) def. of
*Building
account*
inserted by
No. 15/2016
s. 16(3).

Building account means the Building account of the Victorian Building Authority Fund under Part 12;

S. 3(1) def. of
*Building
Advisory
Council*
repealed by
No. 3/2020
s. 26(1).

* * * * *

Building Appeals Board means the Building Appeals Board under Part 10;

S. 3(1) def. of
*Building Code
of Australia*
inserted by
No. 34/1997
s. 4,
amended by
No. 66/2004
s. 3(2),
substituted by
No. 5/2011
s. 3(2).

Building Code of Australia means the Building Code of Australia comprising—

- (a) Volume One of the National Construction Code Series including any variations or additions in the Appendix Victoria set out in the Appendices to that Volume; and
- (b) Volume Two of the National Construction Code Series including any Victoria additions set out in Appendix A of that Volume;

S. 3(1) def. of
*Building
Monitor*
inserted by
No. 11/2023
s. 18(1).

Building Monitor means the person appointed under section 208 as the Building Monitor;

building permit number means a building permit number issued by the Authority under section 25BA for a proposed building permit;

S. 3(1) def. of *building permit number* inserted by No. 21/2017 s. 57.

* * * * *

S. 3(1) def. of *Building Practitioners Board* repealed by No. 15/2016 s. 16(1).

building practitioner means—

- (a) a building surveyor; or
- (b) a building inspector; or
- (c) a quantity surveyor; or
- (d) a building consultant; or
- (e) a building designer; or

S. 3(1) def. of *building practitioner* amended by Nos 91/1995 s. 136(a) (i)–(iii), 35/2004 s. 34(1) (as amended by No. 66/2004 s. 21), 26/2019 s. 112(a), 11/2023 s. 31(2)–(6).

Note

The category of building practitioner previously described as draftsman who carries on a business of preparing plans for building work or preparing documentation relating to permits or permit applications has been renamed as building designer. See the relevant transitional and savings provisions in section 285.

- (f) a builder including a domestic builder; or
- (g) a person who erects or supervises the erection of prescribed temporary structures; or
- (ga) a site supervisor; or

- (h) a project manager—
but does not include—
- (i) an architect; or
 - (j) a person (other than a domestic builder)
who does not carry on the business of
building¹; or
 - (k) an endorsed building engineer;

Note

The category of building practitioner previously described in paragraph (h) as a person responsible for a building project or any stage of a building project and who belongs to a class or category of people prescribed to be building practitioners has been renamed as project manager. See the relevant transitional and savings provisions in section 285.

Building Regulations Advisory Committee means
the Building Regulations Advisory
Committee under Part 12;

building regulations means regulations made
under Part 2;

building system includes the building and
plumbing industries and the building system
regulators;

building system regulators includes all of the
following—

- (a) the Authority;
- (b) relevant building surveyors;
- (c) municipal building surveyors;
- (d) plumbing inspectors appointed under
section 221ZZY;
- (e) councils;
- (f) the Building Appeals Board;

S. 3(1) def. of
*building
system*
inserted by
No. 11/2023
s. 3(2).

S. 3(1) def. of
*building
system
regulators*
inserted by
No. 11/2023
s. 3(2),
amended by
No. 11/2023
s. 18(2).

- (g) the Architects Registration Board of Victoria;
- (h) the Building Regulations Advisory Committee;
- (i) the Plumbing Advisory Council;
- (ia) the Building Monitor;
- (j) the Business Licensing Authority;
- (k) the Director of Consumer Affairs Victoria;
- (l) Cladding Safety Victoria;
- (m) Energy Safe Victoria;

building work means work for or in connection with the construction, demolition or removal of a building;

business day means a day that is not—

- (a) a Saturday or Sunday; or
- (b) a day that is wholly or partly observed as a public holiday throughout Victoria;

S. 3(1) def. of *business day* inserted by No. 39/1996 s. 3.

Business Licensing Authority has the same meaning as in the **Business Licensing Authority Act 1998**;

S. 3(1) def. of *Business Licensing Authority* inserted by No. 11/2023 s. 3(2).

certificate of accreditation means a certificate of accreditation within the meaning of section 14A(1);

S. 3(1) def. of *certificate of accreditation* inserted by No. 3/2020 s. 19(1).

certificate of consent means a certificate of consent under Division 3A of Part 3;

S. 3(1) def. of *certificate of consent* inserted by No. 66/2004 s. 3(1).

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S. 3(1) def. of
*certificate of
pool and spa
barrier
compliance*
inserted by
No. 46/2018
s. 25,
repealed by
No. 3/2020
s. 19(3)(a).

* * * *

S. 3(1) def. of
*certificate of
pool and spa
barrier non-
compliance*
inserted by
No. 46/2018
s. 25,
repealed by
No. 3/2020
s. 19(3)(a).

* * * *

S. 3(1) def. of
*certificate of
registration*
inserted by
No. 46/2018
s. 30.

certificate of registration means the certificate of
registration issued to a building practitioner
under section 171G;

S. 3(1) def. of
*certificate of
swimming
pool barrier
compliance*
inserted by
No. 3/2020
s. 19(3)(b).

certificate of swimming pool barrier compliance
means a certificate that certifies that the
barrier of a swimming pool complies with
this Act and the building regulations;

S. 3(1) def. of
*certificate of
swimming
pool barrier
non-compliance*
inserted by
No. 3/2020
s. 19(3)(b).

***certificate of swimming pool barrier
non-compliance*** means a certificate
that certifies that the barrier of a swimming
pool does not comply with this Act and the
building regulations;

Chief Commissioner means the person appointed to the VBA Board as Chief Commissioner;

S. 3(1) def. of *Chief Commissioner* inserted by No. 34/2013 s. 3(a).

chief dispute resolution officer has the same meaning as in the **Domestic Building Contracts Act 1995**;

S. 3(1) def. of *chief dispute resolution officer* inserted by No. 11/2023 s. 3(2).

chief executive officer means the chief executive officer of the Authority;

S. 3(1) def. of *chief executive officer* inserted by No. 34/2013 s. 3(a).

chief officer means—

S. 3(1) def. of *chief officer* inserted by No. 66/2004 s. 3(1), amended by No. 20/2019 s. 145.

- (a) in relation to the Fire Rescue Victoria fire district under the **Fire Rescue Victoria Act 1958**, the Fire Rescue Commissioner; and
- (b) in relation to any building or land outside the Fire Rescue Victoria fire district under the **Fire Rescue Victoria Act 1958**, the Chief Officer of the Country Fire Authority under the **Country Fire Authority Act 1958**;

cladding rectification work means—

S. 3(1) def. of *cladding rectification work* inserted by No. 43/2019 s. 4(1).

- (a) building work in connection with, or otherwise related to, a product or material that is, or could be, a non-compliant or non-conforming external wall cladding product; or

	(b) work of a type specified in a notice under section 185I of the Local Government Act 1989 ; <i>Cladding Safety Victoria</i> has the same meaning as in the Cladding Safety Victoria Act 2020 ;
S. 3(1) def. of <i>Cladding Safety Victoria</i> inserted by No. 11/2023 s. 3(2).	
S. 3(1) def. of <i>class of licence</i> inserted by No. 40/2021 s. 4(1).	<i>class of licence</i> means a licence in a class of building employee;
S. 3(1) def. of <i>class of registration</i> inserted by No. 40/2021 s. 4(1).	<i>class of registration</i> means registration in a class of building practitioner;
S. 3(1) def. of <i>code of conduct</i> inserted by No. 15/2016 s. 16(4).	<i>code of conduct</i> means a code of conduct for building practitioners approved under Division 2 of Part 11;
S. 3(1) def. of <i>collecting agency</i> inserted by No. 7/2018 s. 21.	<i>collecting agency</i> has the same meaning as in Part 3AB of the Planning and Environment Act 1987 ;
S. 3(1) def. of <i>Commission</i> amended by No. 68/2001 s. 3(1)(a), repealed by No. 34/2013 s. 17(a).	* * * * *

Commissioner means the Chief Commissioner, the Deputy Chief Commissioner or a Commissioner appointed to the VBA Board;

S. 3(1) def. of *Commissioner* amended by No. 68/2001 s. 3(1)(b), substituted by No. 34/2013 s. 3(b).

conduct, in relation to a public entertainment, means to have a direct pecuniary interest in the proceeds or profits of the entertainment;

construct, in relation to a building, includes—

- (a) build, re-build, erect or re-erect the building; and
- (b) repair the building; and
- (c) make alterations to the building; and
- (d) enlarge or extend the building; and
- (e) place or relocate the building on land;

cooling tower has the same meaning as it has in section 3(1) of the **Public Health and Wellbeing Act 2008**;

S. 3(1) def. of *cooling tower* inserted by No. 85/2000 s. 3, substituted by No. 46/2008 s. 248(2).

cooling tower system has the same meaning as it has in section 3(1) of the **Public Health and Wellbeing Act 2008**;

S. 3(1) def. of *cooling tower system* inserted by No. 85/2000 s. 3, substituted by No. 46/2008 s. 248(2).

council means a council within the meaning of the **Local Government Act 2020**;

S. 3(1) def. of *council* amended by No. 9/2020 s. 390(Sch. 1 item 8.1).

S. 3(1) def. of
decision
substituted by
No. 15/2016
s. 16(2)(a).

decision, in relation to a matter in relation to which an application for review or appeal can be made to the Building Appeals Board, the Authority or VCAT, includes failure to decide;

S. 3(1) def. of
decision-maker
substituted by
No. 15/2016
s. 16(2)(b).

decision-maker, in relation to a matter in relation to which an application for review or appeal can be made to the Building Appeals Board, the Authority or VCAT, means the person or body whose decision may be the subject of that review or appeal;

S. 3(1) def. of
Department
inserted by
No. 11/2023
s. 31(1).

Department means the Department of Transport and Planning;

S. 3(1) def. of
designated building surveyor
inserted by
No. 21/2017
s. 3(1).

designated building surveyor has the meaning set out in section 80A(2);

S. 3(1) def. of
destructive testing
inserted by
No. 46/2018
s. 30.

destructive testing, in relation to a building material or product used or to be used in the construction of a building, means testing of that material or product that will or is likely to cause the destruction of that material or product;

S. 3(1) def. of
development agency
inserted by
No. 7/2018
s. 21.

development agency has the same meaning as in Part 3AB of the **Planning and Environment Act 1987**;

S. 3(1) def. of
direction to fix building work
inserted by
No. 21/2017
s. 18(1).

direction to fix building work has the same meaning as it has in section 37;

Director of Consumer Affairs Victoria means the person who, for the time being, is employed as Director of Consumer Affairs Victoria under the **Public Administration Act 2004**;

S. 3(1) def. of *Director of Consumer Affairs Victoria* inserted by No. 11/2023 s. 3(2).

dispute resolution order has the same meaning as it has in the **Domestic Building Contracts Act 1995**;

S. 3(1) def. of *dispute resolution order* inserted by No. 15/2016 s. 59.

domestic builder means a builder within the meaning of the **Domestic Building Contracts Act 1995**;

S. 3(1) def. of *domestic builder* inserted by No. 91/1995 s. 136(b), amended by No. 52/1998 s. 311(Sch. 1 item 10.1).

domestic building affected party means any of the following—

S. 3(1) def. of *domestic building affected party* inserted by No. 11/2023 s. 18(1).

- (a) a person who engages, or proposes to engage, another person to carry out the following work on land owned by the person—
 - (i) any work on a home constructed on that land in which the person resides;
 - (ii) any work in relation to the construction of a home on that land in which the person intends to reside;
- (b) a person who enters into a contract to purchase land from a person who under the contract must engage a person to

carry out work in relation to the construction of a home on that land in which the first mentioned person intends to reside;

- (c) an owner of a home;
- (d) an owner of a home who is affected by any building work being carried out on an adjoining property;

S. 3(1) def. of *domestic building work* inserted by No. 91/1995 s. 136(b), amended by No. 52/1998 s. 311(Sch. 1 item 10.1).

domestic building work has the same meaning as it has in the **Domestic Building Contracts Act 1995**;

S. 3(1) def. of *domestic building work dispute* inserted by No. 15/2016 s. 59.

domestic building work dispute has the same meaning as it has in the **Domestic Building Contracts Act 1995**;

S. 3(1) def. of *domestic partner* inserted by No. 21/2017 s. 3(1).

domestic partner of a person means—

- (a) a person who is in a registered domestic relationship with the person; or
- (b) a person to whom the person is not married but with whom the person is living as a couple on a genuine domestic basis (irrespective of gender);

S. 3(1) def. of *endorsed building engineer* inserted by No. 26/2019 s. 112(b).

endorsed building engineer has the same meaning as it has in the **Professional Engineers Registration Act 2019**;

Energy Safe inspector means an inspector appointed under section 86 of the **Gas Safety Act 1997**;

S. 3(1) def. of *Energy Safe inspector* inserted by No. 21/2017 s. 3(1).

Energy Safe Victoria has the same meaning as it has in the **Energy Safe Victoria Act 2005**;

S. 3(1) def. of *Energy Safe Victoria* inserted by No. 21/2017 s. 3(1).

excluded person has the meaning set out in section 171F;

S. 3(1) def. of *excluded person* inserted by No. 21/2017 s. 3(1).

external wall cladding product means any product or material that is, or could be, used on or in the external wall of a building (including an attachment or ancillary element), but excluding any product or material that the regulations state is not an external wall cladding product;

S. 3(1) def. of *external wall cladding product* inserted by No. 46/2018 s. 30.

function includes power, authority and duty;

high risk external wall cladding product means an external wall cladding product that is the subject of a declaration prohibiting its use under section 192B;

S. 3(1) def. of *high risk external wall cladding product* inserted by No. 46/2018 s. 30.

home has the same meaning that it has in the **Domestic Building Contracts Act 1995**;

S. 3(1) def. of *home* inserted by No. 11/2023 s. 18(1).

home State has the same meaning as in section 4(1) of the Mutual Recognition Act 1992 of the Commonwealth;

S. 3(1) def. of *home State* inserted by No. 1/2023 s. 3(1).

S. 3(1) def. of
*home State
registration*
inserted by
No. 1/2023
s. 3(1).

home State registration has the same meaning as
in section 4(1) of the Mutual Recognition
Act 1992 of the Commonwealth;

S. 3(1) def. of
*influential
person*
inserted by
No. 3/2020
s. 19(1).

influential person has the meaning set out in
section 171E(2);

S. 3(1) def. of
*infrastructure
contribution*
inserted by
No. 7/2018
s. 21.

infrastructure contribution has the same
meaning as in Part 3AB of the **Planning
and Environment Act 1987**;

S. 3(1) def. of
*insured
architect*
inserted by
No. 35/2004
s. 34(2),

insured architect means an architect who is
registered under the **Architects Act 1991**
and who is covered by the required insurance
under that Act;

S. 3(1) def. of
insurer
inserted by
No. 91/1995
s. 136(c),
substituted by
No. 52/2005
s. 29,
amended by
No. 21/2017
s. 72(1)(b).

insurer includes the Victorian Managed Insurance
Authority;

S. 3(1) def. of
*land affected
by an owners
corporation*
inserted by
No. 11/2023
s. 31(1).

land affected by an owners corporation has the
same meaning as in section 3 of the **Owners
Corporations Act 2006**;

S. 3(1) def. of
Legionella
inserted by
No. 85/2000
s. 3,
repealed by
No. 46/2008
s. 248(1).

* * * * *

licensed building employee means a person who holds a licence, including a provisional licence, under Part 11A;

Note

Section 42H(1) of the Mutual Recognition Act 1992 of the Commonwealth provides that a reference in the law of the second State to a person registered (however described) for the second State occupation includes a reference to a person who has automatic deemed registration to carry on an activity covered by that occupation. Section 42H(2)(a) of that Act provides that a person who has automatic deemed registration in a State is taken to have had the registration conferred by the operation of the law of the State.

S. 3(1) def. of *licensed building employee* inserted by No. 46/2018 s. 4(4), amended by No. 1/2023 s. 3(2).

local registration authority has the same meaning as in section 4(1) of the Mutual Recognition Act 1992 of the Commonwealth;

S. 3(1) def. of *local registration authority* inserted by No. 1/2023 s. 3(1).

* * * * *

S. 3(1) def. of *lot* inserted by No. 85/2000 s. 3, repealed by No. 46/2008 s. 248(1).

lot affected by an owners corporation has the same meaning as it has in the **Owners Corporations Act 2006**;

S. 3(1) def. of *lot affected by an owners corporation* inserted by No. 21/2017 s. 18(1).

S. 3(1) def. of
*major
domestic
building
contract*
inserted by
No. 91/1995
s. 136(c),
amended by
No. 52/1998
s. 311(Sch. 1
item 10.1).

major domestic building contract has the same meaning as it has in the **Domestic Building Contracts Act 1995**;

mandatory notification stage means a prescribed stage of building work;

municipal building surveyor means a person for the time being appointed, employed or nominated by a council as its municipal building surveyor for the purposes of this Act;

S. 3(1) def. of
*National
Construction
Code Series*
inserted by
No. 5/2011
s. 3(1).

National Construction Code Series means the National Construction Code Series published by the Australian Building Codes Board as amended or remade from time to time;

S. 3(1) def. of
*nominee
director*
inserted by
No. 21/2017
s. 3(1).

nominee director, in relation to a body corporate, means a director of the body corporate nominated by the body corporate as a nominee director under Division 1A of Part 11;

S. 3(1) def. of
*non-
compliant or
non-
conforming
external wall
cladding
product*
inserted by
No. 43/2019
s. 4(1).

non-compliant or non-conforming external wall cladding product means—

- (a) an external wall cladding product that does not comply with the requirements of this Act and the regulations; or
- (b) an external wall cladding product that is installed or used in, or applied to, a building in a manner that does not comply with the requirements of this Act and the regulations; or

- (c) a high risk external wall cladding product that is used in contravention of a declaration under section 192B applying to that product;

officer, in relation to a body corporate, has the same meaning as officer of a corporation has in section 9 of the Corporations Act;

S. 3(1) def. of **officer** inserted by No. 15/2016 s. 16(4).

owner—

S. 3(1) def. of **owner** amended by No. 85/1998 s. 24(Sch. item 6.1(a)(b)).

- (a) in relation to land which has been alienated in fee by the Crown and is under the operation of the **Transfer of Land Act 1958**, (other than land in an identified folio under that Act) means the person who is registered or entitled to be registered as proprietor, or the persons who are registered or entitled to be registered as proprietors, of an estate in fee simple in the land; and
- (b) in relation to land which has been alienated in fee by the Crown and is land in an identified folio under the **Transfer of Land Act 1958** or land not under the operation of the **Transfer of Land Act 1958**, means the person who is the owner, or the persons who are the owners, of the fee or equity of redemption; and
- (c) in relation to Crown land reserved under the **Crown Land (Reserves) Act 1978** and managed or controlled by a committee of management, means the Minister administering that Act; and
- (d) in relation to any other Crown land, means the Minister or public authority that manages or controls the land;

S. 3(1) def. of
*owners
corporation*
inserted by
No. 21/2017
s. 18(1).

owner in relation to a building, means the owner
of the land on which a building is situated²;

owners corporation has the same meaning as it
has in the **Owners Corporations Act 2006**;

permit means building permit or occupancy
permit;

S. 3(1) def. of
*personal
information*
inserted by
No. 11/2023
s. 31(1).

personal information has the same meaning as in
the **Privacy and Data Protection Act 2014**;

place of public entertainment means—

- (a) a prescribed building or building in a
prescribed class of buildings which is
used or intended to be used for the
purpose of providing public
entertainment; or
- (b) a prescribed place or place in a
prescribed class of places—
 - (i) which is enclosed or substantially
enclosed; or
 - (ii) to which admission can be gained
by payment of money or the
giving of other consideration—

and which is used or intended to be
used for the purpose of providing
public entertainment;

S. 3(1) def. of
*Plumbing
Advisory
Council*
inserted by
No. 34/2013
s. 3(a).

Plumbing Advisory Council means the Plumbing
Advisory Council under Part 12;

plumbing laws has the same meaning as in section 221B;

S. 3(1) def. of *plumbing laws* inserted by No. 11/2023 s. 3(2).

police officer has the same meaning as in the **Victoria Police Act 2013**;

S. 3(1) def. of *police officer* inserted by No. 37/2014 s. 10(Sch. item 9.1).

prescribed temporary structure includes a temporary structure in a prescribed class of temporary structures;

prescribed testing authority means—

S. 3(1) def. of *prescribed testing authority* inserted by No. 46/2018 s. 30.

- (a) an organisation accredited by the National Association of Testing Authorities ACN 004 379 748 to conduct the destructive testing of building materials or products; and
- (b) any other person or body prescribed in the regulations to conduct destructive testing of building materials or products;

private building surveyor means a building surveyor registered under Part 11 other than—

S. 3(1) def. of *private building surveyor* amended by No. 71/1995 s. 7(2).

- (a) a municipal building surveyor; or
- (b) an officer or employee of the Crown or a public authority; or
- (c) a building surveyor authorised under section 191, 192 or 221—

in his or her capacity as such a municipal building surveyor, officer, employee or authorised building surveyor;

proceeding, in relation to a proceeding of the Building Appeals Board, means—

- (a) an appeal to that Board under Divisions 1 and 2 of Part 10; or
- (b) a matter referred to that Board under Division 3 of that Part; or
- (c) an application to that Board under Division 4 of that Part; or
- (d) any other matter within that Board's jurisdiction that, by the Act or regulation conferring the jurisdiction, is declared to be a proceeding;

S. 3(1) def. of
*professional
engineering
service*
inserted by
No. 26/2019
s. 112(b).

professional engineering service has the same meaning as it has in the **Professional Engineers Registration Act 2019**;

protection work means—

- (a) permanent or temporary work of—
 - (i) underpinning, including the provision of vertical support, lateral support, protection against variation in earth pressures, provision of ground anchors and other support for adjoining property; or
 - (ii) shoring up of adjoining property; or
 - (iii) overhead protection for adjoining property; or
 - (iv) other work designed to maintain the stability of adjoining property or to protect adjoining property from damage from building work; or

- (b) any work or use of equipment necessary for the provision, maintenance and removal of work referred to in paragraph (a)—

whether or not the work or equipment is carried out or used on, over, under or in the air space above the land on which the building work is or is to be carried out or the adjoining property;

provisional licence means a licence granted under section 187G;

S. 3(1) def. of *provisional licence* inserted by No. 46/2018 s. 4(4).

provisional registration, except in Part 12A, means registration granted under section 171(1)(ac);

S. 3(1) def. of *provisional registration* inserted by No. 46/2018 s. 4(4), substituted by No. 40/2021 s. 4(2)(a).

provisionally registered builder subcontractor means a person who is provisionally registered in the category of builder in a class of builder under section 171(1)(ac) and the registration authorises the person to carry out a type of building work prescribed for the purposes of section 169EA;

S. 3(1) def. of *provisionally registered builder subcontractor* inserted by No. 40/2021 s. 4(1).

Note

A registration under section 171(1)(ac) is subject to a condition that the registered person must not carry out building work other than as a subcontractor (unless the cost of the work is less than the amount prescribed for the purposes of section 24B(2) or the building work is not domestic building work and does not require a building permit) or as an employee—see section 171H.

public authority means a body established for a public purpose by or under an Act and includes a council;

public entertainment means an entertainment or meeting to which admission may ordinarily be gained by members of the public;

regional Victoria has the same meaning as in section 18(8) of the **First Home Owner Grant and Home Buyer Schemes Act 2000**;

S. 3(1) def. of *regional Victoria* inserted by No. 43/2019 s. 4(2), amended by No. 22/2021 s. 18.

registered body corporate means a body corporate registered as a building practitioner under this Act;

S. 3(1) def. of *registered body corporate* inserted by No. 21/2017 s. 3(1).

registered builder subcontractor means a person who is registered in the category of builder in a class of builder under section 171(1)(ab) and the registration authorises the person to carry out a type of building work prescribed for the purposes of section 169EA;

S. 3(1) def. of *registered builder subcontractor* inserted by No. 40/2021 s. 4(1).

Note

A registration under section 171(1)(ab) is subject to a condition that the registered person must not carry out building work other than as a subcontractor (unless the cost of the work is less than the amount prescribed for the purposes of section 24B(2) or the building work is not domestic building work and does not require a building permit) or as an employee—see section 171H.

registered building practitioner means a building practitioner registered under Part 11 including the following persons unless the contrary intention appears—

- (a) a provisionally registered builder subcontractor;
- (b) a registered builder subcontractor;

Note

Section 42H(1) of the Mutual Recognition Act 1992 of the Commonwealth provides that a reference in the law of the second State to a person registered (however described) for the second State occupation includes a reference to a person who has automatic deemed registration to carry on an activity covered by that occupation. Section 42H(2)(a) of that Act provides that a person who has automatic deemed registration in a State is taken to have had the registration conferred by the operation of the law of the State.

registration card means the registration card issued to a building practitioner under section 171GA;

related body corporate, in relation to a body corporate, means a body corporate that would under section 4A(5) of the Competition and Consumer Act 2010 of the Commonwealth be taken to be related to that body corporate;

relevant building surveyor—

- (a) in relation to an application to, or permit, approval, inspection, direction, notice or order issued or given by, a municipal building surveyor, means the municipal building surveyor; and

S. 3(1) def. of *registered building practitioner* amended by No. 46/2018 s. 4(3), substituted by No. 40/2021 s. 4(2)(b), amended by No. 1/2023 s. 3(3).

S. 3(1) def. of *registration card* inserted by No. 46/2018 s. 30.

S. 3(1) def. of *related body corporate* inserted by No. 15/2016 s. 16(4), substituted by No. 21/2017 s. 3(2).

S. 3(1) def. of *relevant building surveyor* amended by No. 34/2013 s. 17(b).

- (b) in relation to an application to, or permit, approval, inspection, direction, notice or order issued or given by, a private building surveyor, means the private building surveyor; and
- (c) in relation to the carrying out by the Authority of the functions of a municipal building surveyor or a function specified in section 205P, means the Authority; and
- (d) in relation to the carrying out by a building surveyor authorised under section 191, 192 or 221 of the functions of a municipal building surveyor, means the authorised building surveyor;

relevant council, in relation to a building or land, means the council of the municipal district in which the building or land is situated;

relocatable spa means a spa that is capable of being relocated;

S. 3(1) def. of
*relocatable
spa*
inserted by
No. 3/2020
s. 19(2).

relocatable swimming pool means a swimming pool that is capable of being relocated;

S. 3(1) def. of
*relocatable
swimming
pool*
inserted by
No. 3/2020
s. 19(2).

reporting authority means a body or person (other than a municipal building surveyor or private building surveyor to whom an application is made) that is required by this Act or the regulations or by any other Act or regulations to report on or consent to an application for a permit;

S. 3(1) def. of
*reporting
authority*
amended by
No. 28/2000
s. 12.

required insurance means the insurance required by order under section 135 and, in the case of insurance to which section 137AA applies, complying with section 137AA;

S. 3(1) def. of *required insurance* inserted by No. 91/1995 s. 136(d), substituted by No. 102/2003 s. 41.

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S. 3(1) def. of *risk management plan* inserted by No. 85/2000 s. 3, repealed by No. 46/2008 s. 248(1).

* * * * *

S. 3(1) def. of *risk management plan audit* inserted by No. 85/2000 s. 3, repealed by No. 46/2008 s. 248(1).

second State has the same meaning as in section 4(1) of the Mutual Recognition Act 1992 of the Commonwealth;

S. 3(1) def. of *second State* inserted by No. 1/2023 s. 3(1).

second State occupation has the same meaning as in section 4(1) of the Mutual Recognition Act 1992 of the Commonwealth;

S. 3(1) def. of *second State occupation* inserted by No. 1/2023 s. 3(1).

Secretary to the Department of Health means the Department Head (within the meaning of the **Public Administration Act 2004**) of the Department of Health;

S. 3(1) def. of *Secretary to the Department of Health* inserted by No. 29/2010 s. 48(1).

S. 3(1) def. of
*show cause
notice*
inserted by
No. 15/2016
s. 16(4).

show cause notice means a show cause notice
under section 182;

S. 3(1) def. of
spouse
inserted by
No. 21/2017
s. 3(1).

spouse of a person means a person to whom the
person is married;

S. 3(1) def. of
staged permit
inserted by
No. 43/2019
s. 4(2).

staged permit means a building permit referred to
in section 20(b);

S. 3(1) def. of
*State Building
Surveyor*
inserted by
No. 11/2023
s. 3(2).

State Building Surveyor means the person
appointed under section 206(1) as the State
Building Surveyor;

S. 3(1) def. of
subcontractor
inserted by
No. 46/2018
s. 4(1).

subcontractor means a person who enters into a
contract with a builder to carry out all or part
of the building work that is to be carried out
by the builder under another contract;

S. 3(1) def. of
subsidiary
inserted by
No. 21/2017
s. 3(1).

subsidiary, in relation to a body corporate, has
the meaning set out in section 4A of the
Competition and Consumer Act 2010 of
the Commonwealth;

S. 3(1) def. of
*swimming
pool*
inserted by
No. 3/2020
s. 19(2).

swimming pool means any excavation or structure
(including a spa or a relocatable structure)—
(a) that is capable of containing water to a
depth of greater than 300 mm; and
(b) that is principally used, or that is
designed, manufactured or adapted to
be principally used, for swimming,
wading, paddling, bathing or similar
activities;

swimming pool inspector means any of the following persons who have been engaged by an owner of land to inspect a swimming pool barrier located on that land for compliance with this Act and the building regulations—

- (a) a registered building surveyor;
- (b) a registered building inspector;
- (c) any other registered building practitioner whose registration authorises the carrying out of inspections of swimming pools including the barriers associated with those swimming pools;

S. 3(1) def. of *swimming pool and spa inspector* inserted by No. 46/2018 s. 25, substituted as *swimming pool inspector* by No. 3/2020 s. 19(3)(c).

swimming pool register means a register of swimming pools established by a council under section 216D;

S. 3(1) def. of *swimming pool and spa register* inserted by No. 46/2018 s. 25, substituted as *swimming pool register* by No. 3/2020 s. 19(3)(d).

temporary structure includes—

- (a) a booth, tent, marquee or other temporary enclosure, whether or not a part of the booth, tent, marquee or enclosure is permanent; or
- (b) a seating structure whether enclosed or not, including a mobile seating structure;

training contract has the same meaning as in section 1.1.3(1) of the **Education and Training Reform Act 2006**;

S. 3(1) def. of *training contract* inserted by No. 46/2018 s. 4(4).

S. 3(1) def. of
training plan
inserted by
No. 40/2021
s. 4(1).

training plan—see sections 171H(1B) and
187H(1B);

S. 3(1) def. of
VBA Board
inserted by
No. 34/2013
s. 3(a),
amended by
No. 21/2017
s. 72(1)(c).

VBA Board means the Victorian Building
Authority Board established under
section 200;

S. 3(1) def. of
*VBA
inspector*
inserted by
No. 21/2017
s. 18(2).

VBA inspector means a person appointed under
section 204A;

S. 3(1) def. of
*Victorian
Managed
Insurance
Authority*
inserted by
No. 21/2017
s. 72(1)(a),
amended by
No. 46/2018
s. 4(2).

Victorian Managed Insurance Authority has the
same meaning as it has in the **Victorian
Managed Insurance Authority Act 1996**;

S. 3(1) def. of
*Victorian
Registration
and
Qualifications
Authority*
inserted by
No. 46/2018
s. 4(4).

***Victorian Registration and Qualifications
Authority*** means the Victorian Registration
and Qualifications Authority established
under section 4.2.1 of the **Education and
Training Reform Act 2006**.

- (2) In Part 7 a reference to the owner is a reference to
the owner of land on which building work is
proposed to be or is carried out.

- (3) For the purposes of the definition of ***domestic partner*** in subsection (1)—
- (a) ***registered domestic relationship*** has the same meaning as it has in the **Relationships Act 2008**; and
 - (b) in determining whether persons who are not in a registered domestic relationship are domestic partners of each other, all the circumstances of their relationship are to be taken into account, including any one or more of the matters referred to in section 35(2) of the **Relationships Act 2008** as may be relevant in a particular case.
- (4) Any reference in this Act to building work or plumbing work having to be carried out or completed in accordance with, or having to comply with, or not being in breach of, the following laws relating to building work and plumbing work is taken to include a reference to that building work or plumbing work having to be carried out or completed in accordance with, or to comply with, or to not be in breach of, a provision of those laws as interpreted by any binding determination that applies to that provision—
- (a) "this Act";
 - (b) "the building regulations";
 - (c) "the plumbing laws";
 - (d) "the regulations made under Part 12A of this Act".

S. 3(3)
inserted by
No. 21/2017
s. 3(3).

S. 3(4)
inserted by
No. 11/2023
s. 3(3).

S. 4
amended by
Nos 39/1996
s. 4, 85/2000
s. 4,
substituted by
No. 54/2007
s. 4.

4 Objectives of Act

- (1) The objectives of this Act are—
- (a) to protect the safety and health of people who use buildings and places of public entertainment;
 - (b) to enhance the amenity of buildings;
 - (c) to promote plumbing practices which protect the safety and health of people and the integrity of water supply and waste water systems;
 - (d) to facilitate the adoption and efficient application of—
 - (i) national building standards; and
 - (ii) national plumbing standards;
 - (e) to facilitate the cost effective construction and maintenance of buildings and plumbing systems;
 - (f) to facilitate the construction of environmentally and energy efficient buildings;
 - (g) to aid the achievement of an efficient and competitive building and plumbing industry;
 - (h) to address issues in the building system experienced by domestic building affected parties.
- (2) It is the intention of Parliament that in the administration of this Act regard should be had to the objectives set out in subsection (1).

S. 4(1)(g)
amended by
No. 11/2023
s. 19(a).

S. 4(1)(h)
inserted by
No. 11/2023
s. 19(b).

5 Application to Crown and public authorities

Except to the extent set out in Division 6 of Part 12, this Act does not bind the Crown in right of the State of Victoria or a public authority.

* * * * *

**S. 6
repealed by
No. 21/2017
s. 73.**

Part 2—Building standards

7 Building regulations

S. 7(1)(a)
amended by
No. 66/2004
s. 4.

- (1) The Governor in Council may make regulations for or with respect to prohibiting or regulating—
 - (a) the construction, use, maintenance, demolition and removal of buildings;
 - (b) any matter relating to the safety of buildings and places of public entertainment;
 - (c) the use and maintenance of places of public entertainment.
- (2) Without limiting the generality of subsection (1), regulations under this Part may—
 - (a) provide for any matters set out in Part 1 of Schedule 1; and
 - (b) establish standards and requirements relating to any matter referred to in subsection (1)(a), (b) or (c) or Part 1 of Schedule 1; and
 - (c) require the carrying out of building work and maintenance on existing buildings and building work.
- (3) The standards established by the regulations may be expressed in terms of performance, types of material, methods of construction or in other terms.
- (4) The regulations may provide for buildings constructed with particular materials, designs or methods of construction to be deemed to satisfy the prescribed standards.
- (5) The regulations may apply to existing buildings, whether or not building work is being or is proposed to be carried out on those buildings.

8 Local laws

- (1) The building regulations may empower a council to make local laws for or with respect to any matter set out in Part 1 of Schedule 1.
- (2) The **Local Government Act 2020** applies in relation to the making, amendment or revocation of a local law under a power conferred by the building regulations as if the making, amendment or revocation of the local law was authorised under Division 3 of Part 3 of that Act.
- (3) A local law made in relation to a municipal district under a power conferred by the building regulations is taken to be a building regulation in force in relation to the municipal district.

S. 8(2)
amended by
No. 9/2020
s. 390(Sch. 1
item 8.2).

S. 8(3)
amended by
No. 21/2017
s. 99.

9 Incorporation by reference

- (1) The building regulations may apply, adopt or incorporate, either wholly or in part and with or without any modification, any matter contained in the Building Code of Australia or any other document as in force or as issued or published at a particular time or as in force or as issued or published from time to time.
- (2) Section 32 of the **Interpretation of Legislation Act 1984** does not apply to the application, adoption or incorporation by the building regulations of any matter contained in a planning scheme approved under the **Planning and Environment Act 1987**.

S. 9(2)
substituted by
No. 68/2001
s. 4(1).

9A Regulatory impact statement not required for certain amendments

- (1) This section applies if a particular building regulation applies, adopts or incorporates any matter contained in a planning scheme approved under the **Planning and Environment Act 1987**.

S. 9A
inserted by
No. 68/2001
s. 5.

- (2) Despite anything to the contrary in Part 2 of the **Subordinate Legislation Act 1994**, it is not necessary for the Minister to ensure that a regulatory impact statement is prepared in respect of that regulation.

S. 10
(Heading)
inserted by
No. 11/2023
s. 4(1).

10 Application of new building regulations or binding determinations to building work

S. 10(1)
amended by
No. 11/2023
s. 4(2).

- (1) A building regulation or an amendment to a building regulation or a binding determination that applies to a building regulation, does not apply to the carrying out of any building work in accordance with a building permit existing immediately before the building regulation or amendment commences or the binding determination comes into effect.

S. 10(2)
amended by
No. 11/2023
s. 4(3).

- (2) A building regulation, or an amendment to a building regulation or a binding determination that applies to a building regulation, does not apply to the carrying out of building work if the relevant building surveyor is satisfied, and certifies in writing, that substantial progress was made on the design of the building before the building regulation or amendment commenced or the binding determination came into effect.

S. 10(3)
amended by
No. 11/2023
s. 4(4).

- (3) Subject to any determination of the Building Appeals Board, building work referred to in subsection (1) or (2) must be carried out in accordance with the provisions of any regulations, by-laws, local laws or enactments in force at the material times as if the building regulation or amendment or binding determination had not come into operation.

- (4) Despite subsections (1) to (3), the relevant building surveyor and the owner of the building or land concerned may agree that a building regulation, or an amendment to a building regulation, or a binding determination, is to apply to the carrying out of building work referred to in those subsections.

S. 10(4)
amended by
No. 11/2023
s. 4(5).

11 Effect of planning schemes

- (1) If a provision of a planning scheme under the **Planning and Environment Act 1987** regulates the siting of buildings in respect of a municipal district or part of a municipal district, any building regulation which also regulates that matter—
- (a) if not inconsistent with that provision, must be complied with in addition to that provision;
 - (b) if inconsistent with that provision—
 - (i) so far as is practicable, must be read so as to resolve the inconsistency; and
 - (ii) subject to subparagraph (i), to the extent of the inconsistency, ceases to have effect in that municipal district or that part of the municipal district on the coming into operation of the provision of the planning scheme for the period that the provision is in force.
- (2) A council must publish notice in a newspaper circulating generally in its municipal district of the fact that a regulation under this Part has ceased to have effect in the municipal district or part of it.

12 Revocation of other regulations relating to building³

- (1) Despite anything to the contrary in any other Act, the Governor in Council, on the recommendation of the Minister, may revoke any statutory rule made under any other Act to the extent that it

provides for a matter set out in Part 1 of Schedule 1.

- (2) Before a statutory rule which provides for a matter set out in Part 1 of Schedule 1 is made under another Act, the Minister administering that Act must refer the statutory rule to the Minister administering this Act for consideration.
- (3) The referral of a statutory rule under subsection (2) is not a condition precedent to the making of the rule.
- (4) A failure to refer a statutory rule under subsection (2) does not affect the validity or operation of the rule but the rule may be revoked under subsection (1).

13 Effect on local laws

S. 13(1)
amended by
No. 9/2020
s. 390(Sch. 1
item 8.3).

- (1) A local law made under Division 3 of Part 3 of the **Local Government Act 2020** has no force or effect to the extent that it provides for any matter set out in Part 1 of Schedule 1.
- (2) Subsection (1) does not apply to a local law made under the powers conferred by the building regulations.

14 Accreditation of building products

S. 14(1)
amended by
No. 40/2021
s. 47(1).

- (1) A building product, construction method, design, component or system connected with building work (a ***building product***) and accredited by the Building Regulations Advisory Committee or any other person or body prescribed for the purposes of this section (a ***prescribed person or body***) is accredited for the purposes of this Act and the building regulations.

S. 14(1A)
inserted by
No. 40/2021
s. 47(2).

- (1A) A person may apply, in accordance with the regulations, to the Building Regulations Advisory Committee or a prescribed person or body to have a building product accredited.

- | | |
|--|---|
| (1B) The Building Regulations Advisory Committee or the prescribed person or body (as the case requires) may accredit the building product in accordance with the regulations and, on accrediting the building product, must issue a certificate of accreditation in the prescribed form to the holder of the accreditation. | S. 14(1B)
inserted by
No. 40/2021
s. 47(2). |
| (2) The accreditation remains in force for the period of up to 3 years that is specified by the Building Regulations Advisory Committee or the prescribed person or body in the certificate of accreditation unless the accreditation is sooner revoked by the Committee or person or body in accordance with the regulations. | S. 14(2)
substituted by
No. 3/2020
s. 20. |
| (3) The accreditation, if still in force, may be renewed by the Building Regulations Advisory Committee or the prescribed person or body (as the case requires) in accordance with the regulations on receiving an application for a renewal of the accreditation by the holder of the accreditation that is in accordance with the regulations. | S. 14(3)
inserted by
No. 3/2020
s. 20,
amended by
No. 40/2021
s. 47(3). |
| (4) An accreditation is subject to any conditions or variations imposed by the Building Regulations Advisory Committee or the prescribed person or body from time to time. | S. 14(4)
inserted by
No. 3/2020
s. 20. |
| (5) The Building Regulations Advisory Committee or the prescribed person or body may, in accordance with the regulations, vary the accreditation in respect of any one or more of the prescribed matters, on receiving an application to vary the accreditation from the holder of the accreditation, which is in accordance with the regulations. | S. 14(5)
inserted by
No. 40/2021
s. 47(4). |
| * * * * | S. 14A
inserted by
No. 3/2020
s. 21,
repealed by
No. 40/2021
s. 48. |

S. 14B
inserted by
No. 3/2020
s. 21.

14B Authority to keep register of accredited building products

The Authority must, in accordance with the regulations, keep a register of all building products, construction methods, designs, components and systems accredited by the Building Regulations Advisory Committee or a person or body referred to in section 14(1).

S. 15
substituted by
Nos 3/2020
s. 21, 40/2021
s. 49.

15 Building surveyor must not refuse to approve building work on certain grounds

The relevant building surveyor must not refuse to approve building work on the ground that any building product, construction method, design, component or system connected with the building work is unsatisfactory if the building product, construction method, design, component or system complies with—

- (a) an accreditation given by the Building Regulations Advisory Committee or a person or body referred to in section 14(1), which is in force; or
- (b) a certification or an approval given under any other accreditation system or process prescribed by the regulations, which is in force.

S. 15A
(Heading)
amended by
No. 3/2020
s. 22(1).

15A Building regulations with respect to swimming pools

- (1) The Governor in Council may make regulations for or with respect to—

S. 15A
inserted by
No. 68/2001
s. 6.

S. 15A(1)(a)
amended by
No. 3/2020
s. 22(2)(a).

- (a) the construction, installation, maintenance and operation of swimming pools and associated services; and

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| (b) the construction, installation, maintenance, operation and use of— | |
| (i) equipment associated with swimming pools, including safety equipment; and | S. 15A(1)(b)(i) amended by No. 3/2020 s. 22(2)(a). |
| (ii) swimming pool barriers and associated services; and | S. 15A(1)(b)(ii) amended by Nos 46/2018 s. 26(1), 3/2020 s. 22(2)(b). |
| (c) requirements relating to the safety of swimming pools, including signage. | S. 15A(1)(c) inserted by No. 46/2018 s. 26(2), amended by No. 3/2020 s. 22(2)(a). |
| (2) Despite section 262(f), regulations made under subsection (1) may impose penalties not exceeding 50 penalty units for a contravention of those regulations. | |
| (3) In addition to the regulations that may be made under subsection (1), the Governor in Council may make regulations for or with respect to— | S. 15A(3) inserted by No. 46/2018 s. 26(3). |
| (a) the registration of swimming pools by councils for the purposes of a swimming pool register including— | S. 15A(3)(a) amended by No. 3/2020 s. 22(3). |
| (i) the requirement for owners of land on which swimming pools are located to register those swimming pools with the relevant council; and | S. 15A(3)(a)(i) amended by No. 3/2020 s. 22(4). |
| (ii) the procedures for applying to councils for registration of swimming pools, which may be for a limited or indefinite period; and | S. 15A(3)(a)(ii) substituted by No. 3/2020 s. 22(5). |

S. 15A(3)(a)(iii)
substituted by
No. 3/2020
s. 22(5).

(iii) the procedures for the registration of swimming pools and, if registration is for a limited period, the renewal of the registration of swimming pools by councils; and

S. 15A(3)(a)(iv)
substituted by
No. 3/2020
s. 22(5).

(iv) the information, records and documents to be recorded in swimming pool registers by councils; and

S. 15A(3)(a)(v)
amended by
No. 3/2020
s. 22(6).

(v) the procedures for maintenance by councils of swimming pool registers; and

S. 15A(3)(b)
amended by
No. 3/2020
s. 22(6).

(b) the requirements on owners of land to arrange for mandatory inspections of swimming pool barriers on the land for compliance with this Act and the building regulations, including the frequency and circumstances of those inspections; and

S. 15A(3)(c)
amended by
No. 3/2020
s. 22(7)(a).

(c) the issuing of certificates of swimming pool barrier compliance and certificates of swimming pool barrier non-compliance, and the performance of related functions, by—

S. 15A(3)(c)(i)
amended by
No. 3/2020
s. 22(7)(b).

(i) swimming pool inspectors; or

(ii) relevant building surveyors; or

(iii) municipal building surveyors when carrying out functions under Part 8 or when acting as authorised persons within the meaning of section 228; and

S. 15A(3)(d)
substituted by
No. 3/2020
s. 22(8).

(d) the lodgement with the relevant council of certificates of swimming pool barrier compliance and certificates of swimming pool barrier non-compliance in relation to swimming pools on certain land; and

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|---|---|
| (e) the requirements on owners of land to assess and report to councils on the compliance of swimming pool barriers on the land with this Act and the building regulations and the frequency and circumstances of such assessment and reporting and lodgement of those reports with the relevant council; and | S. 15A(3)(e)
amended by
No. 3/2020
s. 22(9). |
| (f) the procedures to be taken by councils in relation to swimming pool barriers that do not comply with this Act and the building regulations and the requirements on owners of land on which these non-compliant swimming pools barriers are located; and | S. 15A(3)(f)
amended by
No. 3/2020
s. 22(10). |
| (g) the requirements on owners of land on which swimming pools are located to provide information and documents to the relevant council or any other specified person or body; and | S. 15A(3)(g)
amended by
No. 3/2020
s. 22(11). |
| (h) prescribing fees payable for— | |
| (i) applications to the relevant council for the registration and the renewal of the registration of swimming pools and periodical registration fees relating to swimming pools; and | S. 15A(3)(h)(i)
amended by
No. 3/2020
s. 22(12). |
| (ii) fees for searches by councils for information, records or documents relating to swimming pools located in their municipal districts; and | S. 15A(3)(h)(ii)
substituted by
No. 3/2020
s. 22(13). |
| (iii) the inspection of swimming pool barriers and the issue of certificates of swimming pool barrier compliance and certificates of swimming pool barrier non-compliance; and | S. 15A(3)(h)(iii)
substituted by
No. 3/2020
s. 22(13). |

S. 15A(3)
(h)(iv)
substituted by
No. 3/2020
s. 22(13).

(iv) the lodgement of certificates of swimming pool barrier compliance and certificates of swimming pool barrier non-compliance with councils; and

S. 15A(3)(h)(v)
amended by
No. 3/2020
s. 22(14).

(v) the lodgement of reports with councils by owners of land relating to whether swimming pool barriers located on the land comply with this Act and the building regulations; and

(i) forms for the purposes of this subsection.

S. 15A(4)
inserted by
No. 46/2018
s. 26(3).

(4) Regulations for or with respect to any fees referred to in subsection (3)(h) may provide for any of the following—

(a) maximum fees;

(b) differential fees;

(c) the reduction, waiver or refund, in whole or in part, of fees in specified circumstances.

S. 15A(5)
inserted by
No. 46/2018
s. 26(3).

(5) Regulations made under subsection (3) may impose penalties not exceeding 20 penalty units for a contravention of those regulations.

S. 15A(6)
inserted by
No. 46/2018
s. 26(3).

(6) Nothing in this section affects the operation of section 261 or 262.

S. 15B
inserted by
No. 21/2017
s. 19.

15B Maintenance of exits

(1) The Governor in Council may make regulations for or with respect to—

(a) keeping exits in buildings and places of public entertainment and paths of travel to and from exits maintained, accessible and free from obstruction; and

- (b) requiring, testing or maintaining safety and emergency services, installations or equipment in buildings and places of public entertainment.
- (2) Despite section 262(f), regulations made under subsection (1) may impose penalties not exceeding 100 penalty units for a contravention of those regulations.
- (3) This section does not apply to a building that is a Class 1a or Class 10 building within the meaning of the Building Code of Australia.

Part 3—Building permits

Division 1—Building permit required

16 Offences relating to carrying out building work

S. 16
amended by
No. 33/2010
s. 3,
substituted by
No. 15/2016
s. 44.

- (1) A person must not carry out building work unless a building permit in relation to the work has been issued and is in force under this Act.

Penalty: 500 penalty units, in the case of a natural person;

2500 penalty units, in the case of a body corporate.

S. 16(2)
amended by
No. 11/2023
s. 5(1).

- (2) A person must not carry out building work unless the work is carried out in accordance with this Act, the building regulations and the building permit issued in relation to that work and any binding determination that applies to the carrying out of that work.

Penalty: 500 penalty units, in the case of a natural person;

2500 penalty units, in the case of a body corporate.

S. 16(3)
substituted by
No. 21/2017
s. 20(1).

- (3) An owner of land must ensure in relation to building work carried out on that land that a building permit in relation to the work has been issued and is in force under this Act.

Penalty: 500 penalty units, in the case of a natural person;

2500 penalty units, in the case of a body corporate.

- (4) A building practitioner, an endorsed building engineer or an architect who is engaged to carry out building work must ensure that a building permit in relation to the work has been issued and is in force under this Act.

S. 16(4)
substituted by
No. 21/2017
s. 20(2),
amended by
No. 26/2019
s. 113(1).

Penalty: 500 penalty units, in the case of a
natural person;
2500 penalty units, in the case of a
body corporate.

- (4A) A builder named in a building permit must ensure that the building work to which the building permit applies is carried out in accordance with this Act, the building regulations, the building permit and any binding determination that applies to the carrying out of that work.

S. 16(4A)
inserted by
No. 21/2017
s. 20(2),
amended by
No. 11/2023
s. 5(2).

Penalty: 500 penalty units, in the case of a
natural person;
2500 penalty units, in the case of a
body corporate.

- (5) Subsection (3) does not apply to an owner if the owner has engaged a building practitioner, endorsed building engineer or architect to carry out the building work on that land.

S. 16(5)
amended by
No. 26/2019
s. 113(2).

- (6) Subsections (1), (2), (3), (4) and (4A) do not apply if the building work is exempted by or under this Act or the regulations.

S. 16(6)
amended by
No. 21/2017
s. 20(3).

16A Exception if permit suspended

S. 16A
inserted by
No. 21/2017
s. 21(1).

- (1) It is an exception to an offence under section 16(1), (3) or (4) if a building permit was not in effect because it was suspended under section 25AE and the accused at the time of the alleged offence—

- (a) was not aware that an event mentioned in section 25AE(1) had occurred in relation to the building permit; and

(b) could not reasonably be expected to have known that the event had occurred.

(2) The exception in subsection (1) does not apply to the accused if the accused is an architect or a building practitioner who is engaged to carry out the building work to which the building permit applies.

S. 16B
inserted by
No. 21/2017
s. 21(2).

16B Indictable offences relating to carrying out building work

(1) A person who is in the business of building must not carry out building work for which a building permit is required if the person knows that—

(a) a building permit is required to carry out that work; and

(b) a building permit to carry out that work is not in force.

Penalty: 600 penalty units or imprisonment for 5 years or both, in the case of a natural person;

3000 penalty units, in the case of a body corporate.

(2) An offence against subsection (1) is an indictable offence.

(3) A person who is in the business of building must not carry out building work if the person knows that the building work is not being carried out in accordance with—

(a) this Act; or

(b) the building regulations; or

(c) the building permit issued in relation to that work; or

S. 16B(3)(c)
amended by
No. 11/2023
s. 5(3)(a).

(d) any binding determination that applies to the carrying out of that work.

S. 16B(3)(d)
inserted by
No. 11/2023
s. 5(3)(b).

Penalty: 600 penalty units or imprisonment for 5 years or both, in the case of a natural person;

3000 penalty units, in the case of a body corporate.

(4) An offence against subsection (3) is an indictable offence.

(5) Subsections (1) and (3) do not apply if the building work is exempted by or under this Act or the regulations.

(6) In this section—

person in the business of building includes a person who is in the business of managing or arranging the carrying out of building work.

Division 2—Applications for building permits

17 Applications for building permits

An application for a building permit may be made to a municipal building surveyor or to a private building surveyor appointed under Part 6—

(a) by or on behalf of the owner of the building or the owner of the land, in or on which the building work is to be carried out; or

(b) if the land in or on which the building work is to be carried out is a lot of a kind referred to in section 9AA(1) of the **Sale of Land**

Act 1962, by the purchaser under a contract for the sale of that lot.

S. 17A
inserted by
No. 11/2023
s. 32.

17A Relevant building surveyor must give owner of land or building an information statement

- (1) This section applies if a person has applied to a building surveyor for the issue of a building permit for building work in relation to a building of a prescribed class of building.
- (2) The relevant building surveyor must, within 10 working days after issuing the building permit, give the owner of the building or the land to which the building work under the permit relates an information statement in the prescribed form and manner that contains the prescribed information.

Penalty: 60 penalty units.

Note

See the relevant transitional and savings provision that relates to this subsection in section 285.

- (3) The failure of a relevant building surveyor to comply with subsection (2) after issuing a building permit does not affect the validity of that building permit.

18 Schedule 2 to apply

Schedule 2 applies in relation to an application for a building permit under this Part.

Notes to s. 18
inserted by
No. 34/2013
s. 18.

Notes

Note 1 to s. 18
amended by
No. 43/2019
s. 5(1).

- 1 A person applying for a building permit must pay the building permit levy calculated under Subdivision 4 of Division 2 of Part 12.

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- 2 An application for a building permit must include information that enables the building permit levy to be calculated (see section 205H(1) and (1A)).

Note 2 to s. 18
amended by
No. 43/2019
s. 5(2).

18AA Relevant building surveyor must apply for building permit number for building permit

S. 18AA
inserted by
No. 21/2017
s. 58.

- (1) On accepting an application for a building permit in relation to building work, the relevant building surveyor must apply to the Authority for a building permit number for the proposed building permit.
- (2) An application under subsection (1) must—
- (a) be in writing in the form (if any) approved by the Authority; and
 - (b) include the cost of the proposed building work estimated by the relevant building surveyor under section 205I; and

* * * * *

S. 18AA(2)(c)
repealed by
No. 43/2019
s. 6.

- (d) include the prescribed information relating to the proposed building permit and building work to which the permit relates.
- (3) The relevant building surveyor may consider the application pending the issue of the building permit number for the building permit.

18A Notice to Development Victoria of application

(1) This section applies if—

S. 18A
(Heading)
amended by
No. 10/2017
s. 31(1).

S. 18A
inserted by
No. 35/2006
s. 9.

S. 18A(1)(a)
amended by
No. 10/2017
s. 31(2).

- (a) an application for a building permit relates to the carrying out of building work on land in a project area within the meaning of the **Development Victoria Act 2003**; and
- (b) a resolution is in force under Division 5A of Part 3 of that Act levying a general development charge or an infrastructure recovery charge in respect of that project area.

(2) The relevant building surveyor must without delay—

S. 18A(2)(a)
amended by
Nos 35/2011
s. 17(1),
10/2017
s. 31(3).

- (a) notify Development Victoria in writing of—
 - (i) the application; and

S. 18A(2)(a)(ii)
amended by
No. 34/2013
s. 19(1)(a).

- (ii) the cost of the building work estimated under Subdivision 4 of Division 2 of Part 12; and

S. 18A(2)(a)(iii)
amended by
Nos 34/2013
s. 19(1)(b),
21/2017
s. 59(1).

- (iii) any refusal of the application under section 205HA; and

- (iv) any decision of the Building Appeals Board to modify the cost of the building work; and

- (b) provide Development Victoria with a copy of any relevant planning permit that authorises both the construction of the buildings to which the building work relates and a subdivision of the land on which the building work is to be carried out.

S. 18A(2)(b)
amended by
Nos 35/2011
s. 17(1),
10/2017
s. 31(3).

18B Notice to Commissioner of State Revenue of application

S. 18B
inserted by
No. 23/2010
s. 14.

- (1) This section applies if—
 - (a) an application for a building permit relates to the carrying out of building work on land in respect of which there is a GAIC recording (within the meaning of Part 9B of the **Planning and Environment Act 1987**); and
 - (b) the application is not an excluded event (within the meaning of section 201RB of that Act); and
 - (c) none of the circumstances described in section 201SA of that Act applies to the land.
- (2) The relevant building surveyor, within 14 days after receiving the application, must give a notice of the application to the Commissioner of State Revenue referred to in section 62 of the **Taxation Administration Act 1997**.
- (3) A notice under subsection (2) must contain the following information—
 - (a) a description of the land;
 - (b) a description of the building work specified in the application and the purpose of the building work;
 - (c) the date the application was made;
 - (d) the applicant's name and contact details;
 - (e) the name and contact details of any owner of the land, if the applicant is not the owner;

S. 18B(3)(f)
amended by
No. 21/2017
s. 59(2).

- (f) the estimated cost of the building work specified in the application.

S. 18C
inserted by
No. 21/2017
s. 60.

18C Further notice to Commissioner of State Revenue

- (1) This section applies if—
- (a) a relevant building surveyor has given a notice to the Commissioner of State Revenue under section 18B(2) relating to an application for a building permit described in section 18B(1)(a); and
 - (b) the relevant building surveyor receives a notice from the Authority under section 205LB(1)(b) stating that the estimated cost of building work relating to the application has increased; and
 - (c) the increase in the estimated cost of building work means that the application is no longer an excluded event (within the meaning of section 201RB of the **Planning and Environment Act 1987**); and
 - (d) none of the circumstances described in section 201SA of the **Planning and Environment Act 1987** applies to the land on which the building work is to be carried out.
- (2) The relevant building surveyor must give a further notice of the application to the Commissioner of State Revenue containing the following information—
- (a) a description of the land on which the building work is being or is to be carried out;
 - (b) a description of the building work specified in the application and the purpose of the building work;

- (c) the date the application was made;
 - (d) the applicant's name and contact details;
 - (e) the name and contact details of any owner of the land, if the applicant is not the owner;
 - (f) the cost of the building work estimated under Subdivision 4A of Division 2 of Part 12.
- (3) A notice under subsection (2) must be given within 10 business days after the relevant building surveyor receives the notice under section 205LB(1)(b) from the Authority.

18D Notice to Secretary to Department of application

- (1) This section applies if—
- (a) an application for a building permit relates to the carrying out of building work on land in respect of which there is a levy recording (within the meaning of the **Melbourne Strategic Assessment (Environment Mitigation Levy) Act 2020**); and
 - (b) the application is not an excluded event within the meaning of that Act.
- (2) The relevant building surveyor, within 14 days after receiving the application, must give to the Secretary to the Department—
- (a) a notice of the application; and
 - (b) a copy of the application and any documents that accompany the application.

S. 18D
(Heading)
amended by
No. 11/2023
s. 33(1).

S. 18D
inserted by
No. 1/2020
s. 133.

S. 18D(2)
amended by
No. 11/2023
s. 33(2).

Note

The regulations may prescribe documents which may be required to accompany an application—see clause 1(b) of Schedule 2.

- (3) A notice under subsection (2)(a) must contain the following information—
- (a) a description of the land;
 - (b) a description of the building work specified in the application and the purpose of the building work;
 - (c) the date the application was made;
 - (d) the applicant's name and contact details;
 - (e) the name and contact details of any owner of the land, if the applicant is not the owner.

Pt 3 Div. 3
(Heading)
amended by
No. 21/2017
s. 61.

Division 3—Decisions on building permits and other matters

19 Decision on application for building permit

- (1) The relevant building surveyor must decide an application for a building permit by—
- (a) issuing the permit; or
 - (b) issuing the permit with conditions; or
 - (c) refusing the permit.

Note to
s. 19(1)
inserted by
No. 12/2021
s. 7.

Note

The relevant building surveyor must refuse a permit if an Order under section 131 of the **Planning and Environment Act 1987** is in effect and applies to the land to which the permit application relates unless the permit is for building work in respect of a development that is specified in the Order as an exception—see section 132 of that Act.

- (2) The regulations may prescribe a time within which the relevant building surveyor must decide an application for a building permit.
- (3) The relevant building surveyor is taken to have refused a building permit if the application is not decided within the prescribed time.

S. 19(3)
amended by
No. 21/2017
s. 99.

20 Types of permit

A building permit may be—

- (a) a permit for the whole of the proposed building work; or
- (b) a permit for a stage of proposed building work.

21 Requirement for occupancy permit

(1) The relevant building surveyor must specify in a building permit—

- (a) whether an occupancy permit is required under subsection (2) in respect of the building work; and
- (b) whether the occupancy permit is required for the whole or part of the building in respect of which the building work is carried out; and
- (c) whether a draft building manual must be given to the relevant building surveyor with the application for any required occupancy permit.

S. 21(1)(b)
amended by
No. 11/2023
s. 34(1).

S. 21(1)(c)
inserted by
No. 11/2023
s. 34(2).

(2) An occupancy permit is required in respect of all building work except—

- (a) building work which the relevant building surveyor considers to be minor; or
- (b) building work which the relevant building surveyor considers does not compromise the suitability of the building for occupation; or
- (c) prescribed building work.

22 Guarantees and bonds

In prescribed circumstances, a building permit may be issued subject to a condition that the applicant deposit with the relevant council or, in

S. 22
amended by
No. 34/2013
s. 34(Sch. 1
item 1).

the case of a permit issued by a private building surveyor, with the Authority—

- (a) a bond for an amount determined in accordance with the regulations; or
- (b) an undertaking to pay that amount together with a guarantee provided by a body that is permitted to use the expression "bank" under section 66 of the Banking Act 1959 of the Commonwealth—

to secure the complete and satisfactory carrying out of the work authorised by the building permit.

23 Reporting authority to be notified of permit

If the relevant building surveyor issues a building permit which differs from or fails to implement the recommendations in a reporting authority's report under Schedule 2 on the application for the permit, the relevant building surveyor must notify the reporting authority without delay of the permit and give the reporting authority a copy of the permit.

23A Offences relating to the issue of a building permit

- (1) The relevant building surveyor must not issue a building permit unless the Authority has issued a building permit number for that building permit.

Penalty: 500 penalty units, in the case of a natural person;
2500 penalty units, in the case of a body corporate.

- (2) The relevant building surveyor must not issue a building permit unless the permit specifies—
 - (a) the building permit number issued by the Authority for that building permit; and

S. 22(b)
substituted by
No. 11/2001
s. 3(Sch.
item 8).

S. 23A
inserted by
No. 21/2017
s. 62.

- (b) any other information required by the regulations to be specified in the building permit.

Penalty: 10 penalty units, in the case of a natural person;

50 penalty units, in the case of a body corporate.

24 Refusal of building permit

- | | |
|--|---|
| (1) Subject to section 24A and Division 4, the relevant building surveyor must not issue a building permit unless he or she is satisfied that— | S. 24(1) amended by No. 66/2004 s. 5(1). |
| (a) the building work and the building permit will comply with this Act, the building regulations and any binding determination that applies to the carrying out of that building work; and | S. 24(1)(a) amended by No. 11/2023 s. 6. |
| (b) any consent of a reporting authority required under this Act or the regulations or under any other Act or regulations is obtained or taken to have been obtained in accordance with Schedule 2; and | S. 24(1)(b) amended by Nos 28/2000 s. 13(a), 21/2017 s. 99. |
| (c) any relevant planning permit or other prescribed approval has been obtained; and | S. 24(1)(c) substituted by No. 28/2000 s. 13(b). |
| (d) the building permit will be consistent with that planning permit or other prescribed approval. | S. 24(1)(d) inserted by No. 28/2000 s. 13(b). |
| (2) Subject to section 24A and Division 4, the relevant building surveyor must not issue a building permit that imposes on the applicant lesser or greater standards or requirements than those prescribed by this Act or the building regulations, unless permitted to do so by this Act or the building regulations. | S. 24(2) amended by No. 66/2004 s. 5(1). |

S. 24(3)
substituted by
No. 91/1995
s. 137(1),
amended by
No. 35/2004
s. 35(1),
repealed by
No. 66/2004
s. 5(2), new
s. 24(3)
inserted by
No. 35/2006
s. 10,
amended by
Nos 35/2011
s. 17(2),
10/2017
s. 31(4).

(3) The relevant building surveyor must not issue a building permit for the carrying out of building work for which notice is required to be given to Development Victoria under section 18A unless Development Victoria has notified the relevant building surveyor under section 51ZA of the **Development Victoria Act 2003** that—

(a) a general development charge or an infrastructure recovery charge is not payable in respect of the building work for which the permit is to be issued; or

S. 24(3)(b)
amended by
No. 10/2017
s. 31(4)(b).

(b) if a general development charge or an infrastructure recovery charge is payable in respect of that building work, the charge has been paid or the person liable to pay the charge has entered into an agreement with Development Victoria under section 51Y of that Act to pay the charge.

S. 24(4)
repealed by
No. 66/2004
s. 5(2),
new s. 24(4)
inserted by
No. 23/2010
s. 15.

(4) The relevant building surveyor must not issue a building permit for the carrying out of building work on land in respect of which there is a GAIC recording (within the meaning of Part 9B of the **Planning and Environment Act 1987**), unless the applicant produces any of the following certificates relating to that liability issued by the Commissioner of State Revenue under that Part—

- (a) a certificate of release;
- (b) a certificate of exemption;
- (c) a certificate of staged payment approval;
- (d) a certificate of no GAIC liability.

Note

Under Part 9B of the **Planning and Environment Act 1987**, the Commissioner of State Revenue must issue a certificate of release if the person liable to pay a growth areas infrastructure contribution has been released from that liability for various reasons, including the fact that the person has paid the contribution or had the contribution totally reduced. The Commissioner must also issue a certificate of exemption under that section if the person liable to pay a growth areas infrastructure contribution is exempt from the liability to pay the contribution. The Commissioner must also issue a person with a certificate of staged payment approval if the person has been given approval for the staged payment of the contribution.

Note to
s. 24(4)
amended by
No. 21/2017
s. 95(1).

- (4A) The relevant building surveyor must not issue a building permit for the carrying out of building work on land in respect of which there is a levy recording (within the meaning of the **Melbourne Strategic Assessment (Environment Mitigation Levy) Act 2020**) unless the applicant produces any of the following certificates issued by the Secretary to the Department under that Act—
- (a) a certificate of release in relation to the land;
 - (b) a certificate of staged payment approval in relation to the land;
 - (c) a certificate of no liability in relation to the application for the building permit.

S. 24(4A)
inserted by
No. 91/1995
s. 137(2),
repealed by
No. 66/2004
s. 5(2),
new s. 24(4A)
inserted by
No. 1/2020
s. 134,
amended by
No. 11/2023
s. 35.

* * * * *

S. 24(4B)
inserted by
No. 91/1995
s. 137(2),
repealed by
No. 66/2004
s. 5(2).

- (5) If an amount of community infrastructure levy is payable under Part 3B of the **Planning and Environment Act 1987** in respect of a development for which building work is required, the relevant building surveyor must not issue a

S. 24(5)
inserted by
No. 50/1995
s. 5.

building permit in respect of that building work unless he or she is satisfied that—

S. 24(5)(a)
amended by
No. 101/2004
s. 11.

(a) that amount of levy has been paid to the relevant collecting agency under that Part; or

(b) an agreement to pay that amount of levy has been entered into under that Part.

S. 24(6)
inserted by
No. 7/2018
s. 22.

(6) If a monetary component amount and any land equalisation amount of an infrastructure contribution imposed under an approved infrastructure contributions plan is payable in respect of the carrying out of building work, the relevant building surveyor must not issue a building permit in relation to that building work unless the applicant satisfies the relevant building surveyor that—

(a) those amounts have been paid to the collecting agency in accordance with section 46GV(3) of the **Planning and Environment Act 1987**; or

(b) the applicant has entered into an agreement with the collecting agency under section 46GV(3) of that Act for the payment of those amounts.

(7) If any land component of an infrastructure contribution imposed under an approved infrastructure contributions plan in respect of the carrying out of building work includes the provision of inner public purpose land (within the meaning of Part 3AB of the **Planning and Environment Act 1987**), the relevant building surveyor must not issue a building permit for that building work unless the applicant satisfies the relevant building surveyor—

S. 24(7)
inserted by
No. 7/2018
s. 22.

- (a) that the inner public purpose land has been set aside as a road or reserve on a plan under the **Subdivision Act 1988** to vest in the collecting agency or a development agency (as the case requires) under that Act; and
- (b) the plan has been lodged for registration under section 22 of the **Subdivision Act 1988**.

24A Further limitations on the issue of building permits

- (1) The relevant building surveyor must not issue a building permit in relation to building work unless the relevant building surveyor is satisfied that—

S. 24A inserted by No. 66/2004 s. 6, amended by Nos 34/2013 s. 19(2), 15/2016 ss 45, 46(2), substituted by No. 21/2017 s. 22.

- (a) the building work is to be carried out by a person who is specified under section 24B as the builder for that work; and
- (b) the person is named in the building permit as the builder; and

S. 24(1)(a) amended by No. 40/2021 s. 5(1).

S. 24(1)(b) substituted by No. 40/2021 s. 5(2).

- (c) in the case of building work carried out under a major domestic building contract—

- (i) if the cost of the building work exceeds the prescribed amount—

S. 24A(1)(c)(i) substituted by No 3/2020 s. 23.

- (A) if the builder is not a member of a partnership, the name of the person who is named as the builder in the contract is identical to the name of the person specified as the builder in a certificate of insurance; or

- (B) if the builder is a member of a partnership, the name of the builder and the name of the partnership specified in the contract is identical to the name of the builder and the name of the partnership specified in a certificate of insurance; and
 - (ii) the major domestic building contract was entered into by a person entitled to do so under section 29 of the **Domestic Building Contracts Act 1995**; and
 - (d) in the case of a builder who is a body corporate, there is specified in the building permit the name of a natural person on whom directions, notices and orders under this Act directed to the body corporate can be served.
- (2) The regulations may specify the manner in which the relevant building surveyor may be satisfied on the matters in subsection (1)(c)(i).
- (3) In subsection (1)(c)(i)—
- prescribed amount*** means—
- (a) the amount prescribed by the regulations (if any); or
 - (b) if an amount is not prescribed, \$16 000.
- (4) In this section—
- certificate of insurance*** means a certificate of insurance from the insurer providing the required insurance in relation to the building work.

S. 24A(4)
inserted by
No. 3/2020
s. 23(2).

24B Specification of builders in relation to specific building work

S. 24B
inserted by
No. 21/2017
s 22.

(1) This section specifies builders for the purposes of section 24A(1)(a).

(2) If the cost of the building work does not exceed the prescribed amount for this subsection, the builder must be—

- (a) a building practitioner; or
- (b) the owner of the building or land in or on which the building work is to be carried out; or
- (c) an architect who is registered under the **Architects Act 1991**; or

S. 24B(2)(c)
amended by
No. 26/2019
s. 114(1)(a).

(d) an endorsed building engineer.

S. 24B(2)(d)
inserted by
No. 26/2019
s. 114(1)(b).

(3) If the building work is not domestic building work and the cost of the building work exceeds the prescribed amount for subsection (2), the builder must be—

- (a) a registered building practitioner other than a provisionally registered builder subcontractor or a registered builder subcontractor; or

S. 24B(3)(a)
amended by
No. 46/2018
s. 5(1),
substituted by
No. 40/2021
s. 6(1)(a).

* * * * *

S. 24B(3)(ab)
inserted by
No. 46/2018
s. 5(2),
repealed by
No. 40/2021
s. 6(1)(b).

- (b) the owner of the building or land in or on which the building work is to be carried out; or

S. 24B(3)(c)
amended by
Nos 46/2018
s. 31, 26/2019
s. 114(2)(a).

(c) an architect registered under the **Architects Act 1991**; or

S. 24B(3)(d)
inserted by
No. 26/2019
s. 114(2)(b).

(d) an endorsed building engineer.

(4) If the building work is domestic building work being carried out under a major domestic building contract, the builder must—

(a) be the builder who entered into that contract; and

S. 24B(4)(b)
amended by
No. 46/2018
s. 5(3),
substituted by
No. 40/2021
s. 6(2).

(b) be registered under Part 11, other than provisionally registered or registered as a builder subcontractor, and the registration authorises the carrying out of that work.

(5) If the building work is domestic building work not being carried out under a major domestic building contract and the cost of the work exceeds the prescribed amount for subsection (2) but does not exceed the prescribed amount for section 25B, the builder must be the owner of the building or land in or on which the building work is to be carried out.

(6) If the building work is domestic building work not being carried out under a major domestic building contract and the cost of the work exceeds the prescribed amount for section 25B, the builder must be an owner referred to in section 25B of the building or land in or on which the work is being carried out.

(7) In this section, the cost of building work is the cost of that work estimated under Subdivision 4 of Division 2 of Part 12.

(8) In subsection (2)—

prescribed amount means—

- (a) the amount prescribed by the regulations (if any); or
- (b) if an amount is not prescribed, \$5000.

25 Reasons for refusal to be given

The relevant building surveyor must notify an applicant for a permit in writing without delay of the refusal of the permit and the reasons for the refusal.

25AA A person may notify relevant building surveyor if becomes owner of land subject to building permit

S. 25AA
inserted by
No. 46/2018
s. 32.

- (1) If a person becomes the owner of land that is subject to a building permit that has been suspended under section 25AE(1)(d) and the remaining building work under the building permit is to be carried out by an owner-builder, the person may notify the relevant building surveyor that the person is the new owner of the land.
- (2) A notice under subsection (1) must include the following information—
 - (a) a request that the new owner under subsection (1) be named as the builder on the building permit;
 - (b) if a certificate of consent has been issued to a person to carry out the remaining building work under the building permit, a copy of the certificate of consent;

- (c) the name and address of the new owner and any person issued with a certificate of consent to carry out the remaining building work under the building permit if that person is not the new owner;
- (d) any information or documents requested to be provided by the relevant building surveyor in order for the relevant building surveyor to decide whether the new owner may be named as the builder on the building permit;
- (e) any other prescribed information.

25A Notice of ending of engagement of builder

- (1) This section applies if—

S. 25A
inserted by
No. 66/2004
s. 7,
amended by
No. 33/2010
s. 4,
substituted by
No. 21/2017
s. 23.

- (a) a building permit is issued in relation to building work to be carried out by a building practitioner, an endorsed building engineer or an architect registered under the **Architects Act 1991** (the **builder**); and
 - (b) subsequently the engagement of the builder ends before completion of the building work.
- (2) The builder or the owner of the building or land in or on which the building work is to be carried out may give a notice of the ending of the engagement to the relevant building surveyor.

Note

The effect of this notice is that the permit is suspended under section 25AE.

- (3) A notice under subsection (2) may be in a form approved by the Authority (if any).

(4) For the purposes of section 25AE(1)(e), the day on which the engagement ceases is—

(a) the day on which the relevant building surveyor receives the first notice under subsection (2); or

(b) any later day specified in that notice.

25AB Notice to relevant building surveyor of subsequent engagement of builder

S. 25AB
inserted by
No. 21/2017
s. 23.

(1) This section applies if—

(a) a building permit is issued in relation to building work and whether or not the building permit is suspended; and

S. 25AB(1)(a)
amended by
No. 46/2018
s. 34(a).

(b) subsequently a building practitioner, an endorsed building engineer or architect registered under the **Architects Act 1991** (the **builder**) is engaged to carry out the building work.

S. 25AB(1)(b)
amended by
Nos 46/2018
s. 34(b),
26/2019
s. 116(1).

(2) The owner of the building or land in or on which the building work is to be carried out may give the relevant building surveyor written notice of the engagement in accordance with subsection (3).

(3) A notice under subsection (2) must include—

(a) the name of the building practitioner and the building practitioner's registration number, the name of the endorsed building engineer and the endorsed building engineer's number or the architect's name and registration number (as the case requires); and

S. 25AB(3)(a)
amended by
No. 26/2019
s. 116(2).

(b) if the engagement is to carry out domestic building work and the cost of the work exceeds the prescribed amount, an extract of the contract showing the names of the parties to the contract and a certificate of insurance from the insurer providing the required

insurance in relation to the building work;
and

(c) any other prescribed details.

(4) In this section—

prescribed amount means—

- (a) the amount prescribed by the regulations (if any); or
- (b) if an amount is not prescribed, \$16 000.

S. 25AC
inserted by
No. 21/2017
s. 23,
amended by
Nos 46/2018
s. 35, 40/2021
s. 7.

25AC Change of builder on building permit

On being notified under section 25AB or 25AA(2), the relevant building surveyor may change the builder named on a building permit if the relevant building surveyor is satisfied of the relevant requirements of sections 24A and 24B.

S. 25AD
inserted by
No. 21/2017
s. 23.

25AD Relevant building surveyor to notify Authority and relevant council of certain information

- (1) The relevant building surveyor must give written notice to the Authority and the relevant council of the occurrence of each prescribed event and the prescribed information relating to that event which relates to—
 - (a) the building work to which a building permit applies; or
 - (b) the building permit.
- (2) The notice must be given within the prescribed period after the relevant event.
- (3) In this section—

prescribed period means the longer of—

- (a) the period prescribed by the regulations (if any); or
- (b) 5 business days.

25AE Suspension of building permit

(1) A building permit is suspended on and from the day on which—

S. 25AE
inserted by
No. 21/2017
s. 23.

(a) if the builder named in the building permit is a building practitioner, the building practitioner's registration as a building practitioner is suspended or cancelled; or

(b) if the builder named in the building permit is an architect, the architect's registration as an architect is suspended or cancelled under the **Architects Act 1991**; or

(ba) if the builder named in the building permit is an endorsed building engineer—

S. 25AE(1)(ba)
inserted by
No. 26/2019
s. 117.

(i) the endorsed building engineer's registration as a professional engineer is suspended or cancelled under the **Professional Engineers Registration Act 2019**; or

(ii) the endorsed building engineer's endorsement to act as a registered professional engineer who is authorised to engage in the building industry is suspended or cancelled under the **Professional Engineers Registration Act 2019**; or

(c) the builder named in the building permit—

(i) dies; or

(ii) is imprisoned for an offence; or

(iii) has become a represented person within the meaning of the **Guardianship and Administration Act 2019**; or

S.
25AE(1)(c)(iii)
amended by
No. 13/2019
s. 221(Sch. 1
item 5.1).

S. 25AE(1)(d)
substituted by
No. 46/2018
s. 36.

(d) if the builder named on the building permit is the owner of land to which the building permit relates, the owner ceases to own the land; or

(e) the builder named in the building permit has ceased to be engaged to carry out the building work to which the permit relates.

S. 25AE(2)
amended by
No. 40/2021
s. 8.

(2) A building permit ceases to be suspended under this section on the day on which a builder who complies with the relevant requirements of sections 24A and 24B is named as the builder in the building permit.

(3) A building permit is of no effect under this Act during the period that it is suspended under this section.

S. 25B
inserted by
No. 66/2004
s. 7,
amended by
Nos 33/2010
s. 5, 34/2013
s. 19(3),
15/2016
s. 27(2) (ILA
s. 39B(1)).

25B Restrictions on owner-builder

S. 25B(1)
amended by
No. 15/2016
s. 27(1).

(1) An owner of land or a building must not carry out domestic building work as builder on that land or in respect of that building if the cost of the work (estimated under Subdivision 4 of Division 2 of Part 12) is more than the prescribed amount unless the owner—

(a) has been issued with a certificate of consent for the work; or

(b) is a builder whose registration under Part 11 authorises the carrying out of that work, other than a provisionally registered builder subcontractor or a registered builder subcontractor; or

S. 25B(1)(b) substituted by No. 15/2016 s. 28(1), amended by No. 46/2018 s. 6(1), substituted by No. 40/2021 s. 9(1).

(c) is an architect who is registered under the **Architects Act 1991**; or

(d) is Homes Victoria (within the meaning of section 4(1) of the **Housing Act 1983**); or

S. 25B(1)(d) amended by No. 40/2022 s. 50.

(e) is carrying out the work in accordance with an emergency order, a building notice or a building order made under Part 8.

Penalty: 120 penalty units.

(1A) An owner of land or a building who is required under this section to be issued with a certificate of consent to carry out domestic building work as builder must not enter into a major domestic building contract with another person to carry out the work or any part of the work unless the person is registered, other than provisionally registered or as a builder subcontractor, as a builder under Part 11 and the registration authorises the person to carry out that work.

S. 25B(1A) inserted by No. 15/2016 s. 28(2), amended by Nos 46/2018 s. 6(2), 40/2021 s. 9(2).

Penalty: 60 penalty units, in the case of a first offence.

120 penalty units, in the case of a second or subsequent offence.

S. 25B(1B)
inserted by
No. 15/2016
s. 28(2).

- (1B) Subsection (1A) does not apply to an owner of land or a building if the owner took reasonable steps to ensure that the person carrying out the building work is registered as a builder under Part 11 and that the registration authorises the person to carry out that work.

S. 25B(2)
inserted by
No. 15/2016
s. 27(2).

- (2) In this section—

prescribed amount means—

- (a) the amount prescribed by the regulations (if any); or
- (b) if an amount is not prescribed, \$16 000.

Pt 3 Div. 3AA
(Heading and
ss 25BA–
25BF)
inserted by
No. 21/2017
s. 63.

Division 3AA—Issue of building permit number by the Authority

S. 25BA
inserted by
No. 21/2017
s. 63.

25BA Issue of building permit number

- (1) The Authority must issue a building permit number for a proposed building permit on receiving an application from the relevant building surveyor under section 18AA if—
- (a) the relevant building surveyor has given to the Authority all of the information required under section 18AA in relation to the proposed building permit; and
 - (b) the Authority has been paid the whole amount of the building permit levy calculated under section 205I in relation to the proposed building work.
- (2) A building permit number may be issued in the prescribed manner (if any).

S. 25BA(1)(b)
amended by
No. 43/2019
s. 7.

25BB Authority may refuse to issue building permit number

S. 25BB
inserted by
No. 21/2017
s. 63.

The Authority may refuse to issue a building permit number if—

- (a) the relevant building surveyor has not given the Authority all of the information required under section 18AA in relation to the proposed building permit; or
- (b) the Authority has not been paid the whole amount of the building permit levy calculated under section 205I in relation to the proposed building work.

S. 25BB(b)
amended by
No. 43/2019
s. 8.

25BC Authority must decide to issue building permit number within prescribed period

S. 25BC
inserted by
No. 21/2017
s. 63.

- (1) The Authority must issue or refuse to issue a building permit number within the prescribed period after receiving the information and the building permit levy required under section 25BA(1).
- (2) The Authority is taken to have refused to issue a building permit number if it has not made a decision to issue or refuse to issue a building permit number in accordance with subsection (1).
- (3) In this section—

prescribed period means the longer of—

- (a) the period prescribed by the regulations (if any); or
- (b) 5 business days.

S. 25BD
inserted by
No. 21/2017
s. 63.

25BD Authority must notify applicant of refusal to issue building permit number

- (1) If the Authority refuses to issue a building permit number for a building permit, it must give written notice to the applicant for the building permit of—
 - (a) the refusal; and
 - (b) the reasons for the refusal; and
 - (c) the applicant's right to apply to VCAT for review of the decision to refuse to issue the building permit number.
- (2) Subsection (1) does not apply if the Authority is taken to have refused to issue the building permit number under section 25BC(2).
- (3) The Authority must give a copy of a notice under subsection (1) to the relevant building surveyor.

S. 25BE
inserted by
No. 21/2017
s. 63.

25BE Authority must notify council of issue of building permit number

After issuing a building permit number under this Division for a building permit for building work to be carried out in or on a building or land, the Authority must, without delay, provide the relevant council with—

- (a) the building permit number; and
- (b) the information given to the Authority by the relevant building surveyor under section 18AA in relation to the application for the building permit number.

S. 25BF
inserted by
No. 21/2017
s. 63.

25BF Review by VCAT of refusal to issue building permit number

An applicant for a building permit may apply to VCAT for review of a refusal by the Authority to issue a building permit number for the building permit under section 25BB.

Division 3A—Certificates of consent for owner-builders

Pt 3 Div. 3A
(Heading and
ss 25C–25I)
inserted by
No. 66/2004
s. 8.

25C Application for owner-builder certificate of consent

S. 25C
inserted by
No. 66/2004
s. 8,
amended by
No. 15/2016
s. 18(1).

- (1) A natural person may apply to the Authority for the issue of a certificate of consent to carry out domestic building work on land.
- (2) The application must—
 - (a) contain the prescribed information; and
 - (b) be made in the prescribed manner; and
 - (c) be accompanied by—
 - (i) the prescribed information; and
 - (ii) the prescribed application fee.

25C(2)(c)
substituted by
No. 15/2016
s. 29.

25D Further particulars

The Authority may ask an applicant under section 25C to give it any more information that it reasonably requires to determine the application and may refuse the application if the applicant does not comply with the request within a reasonable time.

S. 25D
inserted by
No. 66/2004
s. 8,
amended by
No. 15/2016
s. 18(1).

25E Decision on application for certificate of consent

S. 25E
inserted by
No. 66/2004
s. 8.

- (1) The Authority must issue a certificate of consent for domestic building work if it is satisfied that—
 - (a) the applicant has complied with sections 25C and 25D; and
 - (ab) the applicant has the prescribed knowledge of the duties and responsibilities of an owner-builder; and

S. 25E(1)
amended by
No. 15/2016
s. 18(1)

S. 25E(1)(ab)
inserted by
No. 15/2016
s. 30(1).

S. 25E(1)(e)
substituted by
No. 15/2016
s. 30(2).

- (b) the applicant is the owner of the land on which the domestic building work is to be carried out or the application is authorised under section 25F; and
- (c) the application relates to the carrying out of domestic building work in relation to, or ancillary to, a single dwelling; and
- (d) the applicant resides and will continue to reside, or intends to reside, in the dwelling; and
- (e) the applicant has not been issued with a building permit for the carrying out of domestic building work by the applicant as a builder on land owned by the applicant or a related body in the previous 5 years other than in relation to—
 - (i) the dwelling on the land to which the application relates; or
 - (ii) a Class 10 building that is ancillary to the dwelling on the land to which the application relates; and
- (f) if the applicant co-owns the land to which the application relates with another person, a building permit has not been issued to that person for the carrying out of domestic building work by that person as a builder on land owned by that person in the previous 5 years other than in relation to—
 - (i) the dwelling on the land to which the application relates; or
 - (ii) a Class 10 building that is ancillary to the dwelling on the land to which the application relates; and

S. 25E(1)(f)
substituted by
No. 15/2016
s. 30(2).

- | | |
|---|---|
| (g) if the applicant was the co-owner of land (other than land to which the application relates) with another person in the previous 5 years, a building permit has not been issued to that person for the carrying out of domestic building work by that person as a builder on that land in that 5 year period; and | S. 25E(1)(g) substituted by No. 15/2016 s. 30(2). |
| (h) the applicant— | S. 25E(1)(h) substituted by No. 21/2017 s. 74. |
| (i) is not in the business of building; or | |
| (ii) has been exempted from the requirement to be registered under Part 11; or | |
| (iii) is a registered building practitioner whose registration does not authorise the carrying out of the work to which the application relates. | |
| (2) The Authority must refuse to issue a certificate of consent to an applicant if the Authority is satisfied that the applicant has at any time entered into a contract to sell a building constructed by the applicant without obtaining the required insurance in contravention of section 137B(2)(b). | S. 25E(2) substituted by No. 15/2016 s. 30(3). |
| (3) Subject to subsection (4), the Authority must refuse to issue a certificate of consent if the requirements of subsection (1) are not met. | S. 25E(3) amended by No. 15/2016 s. 18(3). |
| (4) The Authority may exempt an applicant from the requirement in subsection (1)(e), (1)(f) or (1)(g) if the Authority determines that special circumstances exist. | S. 25E(4) amended by No. 15/2016 s. 18(2)(3). |
| (5) For the purposes of subsection (4), the Authority may determine that special circumstances exist if it is satisfied that— | S. 25E(5) amended by No. 15/2016 s. 18(3). |
| (a) the application arises from a substantial change in the circumstances of the applicant; or | |

(b) the applicant would suffer hardship if the application were refused.

S. 25E(6)
substituted by
No. 15/2016
s. 30(4).

(6) In this section—

Class 10 building has the same meaning as it has in the Building Code of Australia;

related body means a body corporate of which the applicant is a director or the trustees of a trust of which the applicant is a beneficiary.

S. 25F
inserted by
No. 66/2004
s. 8.

25F Applications in relation to land owned by related bodies

- (1) An applicant for a certificate of consent in respect of domestic building work is not required to be the owner of the land on which the work is to be carried out if—
 - (a) the land is owned by a body corporate; and
 - (b) the applicant is a director of the body corporate; and
 - (c) the body corporate has in writing authorised the applicant to make the application and to carry out the work.
- (2) An applicant for a certificate of consent in respect of domestic building work is not required to be the owner of the land on which the work is to be carried out if—
 - (a) the land is the subject of a trust; and
 - (b) the applicant is a beneficiary of the trust; and
 - (c) the trustees of the trust have each in writing authorised the applicant to make the application and to carry out the work.

25G Certificate of consent

(1) A certificate of consent issued under this Division—

S. 25G
inserted by
No. 66/2004
s. 8,
amended by
No. 15/2016
s. 31(2) (ILA
s. 39B(1)).

(a) must contain the prescribed information; and

(b) expires—

S. 25G(1)(b)
substituted by
No. 15/2016
s. 31(1).

(i) at the end of the prescribed period, if a building permit is not issued in respect of the building work to which the certificate relates within that period; or

(ii) on the date that the building permit lapses, if a building permit is issued in respect of the building work to which the certificate relates within the prescribed period; or

S. 25G(1)(b)(ii)
amended by
No. 46/2018
s. 37(1).

(iii) on the day on which the owner of the land to which the certificate relates ceases to own the land.

S.
25G(1)(b)(iii)
inserted by
No. 46/2018
s. 37(2).

(2) In this section—

S. 25G(2)
inserted by
No. 15/2016
s. 31(2).

prescribed period means—

S. 25G(2) def.
of *prescribed
period*
amended by
No. 21/2017
s. 95(2).

(a) the prescribed period by the regulations (if any); or

(b) if a period is not prescribed, 12 months.

S. 25H
inserted by
No. 66/2004
s. 8.

25H Register of certificates

S. 25H(1)
amended by
No. 15/2016
s. 18(4).

(1) The Registrar of the Victorian Building Authority must keep a register of certificates of consent issued under this Division.

(2) The register must be kept in accordance with the regulations.

S. 25H(3)
inserted by
No. 15/2016
s. 32.

(3) The Authority may publish prescribed information kept on the register of certificates of consent on the Authority's website.

S. 25I
inserted by
No. 66/2004
s. 8,
amended by
No. 34/2013
s. 34(Sch. 1
items 2, 3),
repealed by
No. 15/2016
s. 33.

* * * * *

S. 25J
inserted by
No. 34/2013
s. 8,
amended by
Nos 15/2016
s. 18(1),
21/2017
s. 96(1).

25J Review by VCAT

A person to whom a decision of the Authority under this Division applies may apply to VCAT for a review of—

(a) that decision; or

S. 25J(b)
amended by
No. 15/2016
s. 18(3).

(b) a failure of the Authority to make that decision within a reasonable time.

Division 4—Special provisions

26 Prescribed places of public entertainment

An application for a building permit for a place of public entertainment prescribed or in a class prescribed for the purposes of this section must be made to the Authority.

S. 26
substituted by
No. 34/1997
s. 5,
amended by
No. 34/2013
s. 34(Sch. 1
item 4).

* * * * *

S. 27
repealed by
No. 91/1995
s. 138.

28 Historic buildings and special buildings

(1) Despite section 24, the relevant building surveyor may issue a building permit for the carrying out of building work that does not comply with the building regulations if the work is to be carried out on, or in connection with—

(a) a building included on the Heritage Register established under the **Heritage Act 2017**.

S. 28(1)(a)
substituted by
No. 93/1995
s. 218(1)
(Sch. 2
item 1.1),
amended by
No. 7/2017
s. 296(1).

* * * * *

S. 28(1)(b)
repealed by
No. 28/2000
s. 14(1).

(2) The building permit may be issued to enable the carrying out of work appropriate to the style, manner of construction and materials of the building.

- (3) In deciding an application for a building permit in respect of a building to which subsection (1) applies, the relevant building surveyor must take into account—
- (a) the structural adequacy of the building; and
 - (b) the requirements necessary to make reasonable provision for the amenity of the building and the safety and health of people using the building.
- (4) The consent and report of the Executive Director under the **Heritage Act 2017** must be obtained to an application to demolish or alter a building which is on a register established under that Act.

S. 28(4)
inserted by
No. 28/2000
s. 14(2),
amended by
No. 7/2017
s. 296(2).

29 Subdivision

- (1) Despite anything to the contrary in this Act or in any other Act or law, the relevant building surveyor may refuse to issue a building permit for the construction of a building if—
- (a) the owner from time to time of the land could dispose of part of that land without proceeding under the **Subdivision Act 1988**; and
 - (b) the relevant building surveyor is satisfied that if part of the land were disposed of before the council considered the matter, the building to be constructed would not comply with the provisions of the relevant planning scheme or of any regulation made under this Act or of any local law made under powers conferred by the regulations made under this Act with respect to—
 - (i) the dimensions or area of the land; or

- (ii) the proportion of the area of land on which buildings are to be constructed;
or
 - (iii) the provision of open space on the land.
- (2) The relevant building surveyor must not, under subsection (1), refuse a building permit for the construction of a building on the sole ground that the owner may without notice to the council dispose of part of the land to the Crown or to a public statutory body constituted under a law of the State or of the Commonwealth.

29A Application for building permit for demolition

S. 29A
inserted by
No. 28/2000
s. 15.

- (1) If an application is made to the relevant building surveyor under this Act for a building permit for the demolition of a building on land and—
- (a) the demolition and all other demolitions completed or permitted in respect of the building within the period of 3 years immediately preceding the date of the application would together amount to the demolition of more than one half of the volume of the building as it existed at the date of the first building permit to be issued within that period for the demolition of any part of the building; or
 - (b) the demolition is of any part of the facade of a building—

then the report and consent of the responsible authority under the **Planning and Environment Act 1987** for the planning scheme relating to that land must be obtained to that application.

(2) The responsible authority as reporting authority must refuse its consent to an application to which subsection (1) applies if a planning permit is required for the demolition and has not been obtained but must not otherwise refuse its consent to the application.

(3) In this section—

facade means—

- (a) an external wall, including any verandah, balcony or balustrade or architectural feature attached to or forming part of an external wall; or
- (b) a part of a roof; or
- (c) a chimney—

that faces a street and at least part of which is visible from the street it faces;

street includes road, highway, carriageway, square and court.

S. 29B
inserted by
No. 28/2000
s. 15.

29B Suspension of demolition permit pending amendment of planning scheme

(1) If—

- (a) the report and consent of the responsible authority as reporting authority under section 29A has been sought in relation to an application for a building permit; and
- (b) during the prescribed time referred to in clause 6A(2) of Schedule 2—
 - (i) an application is made to the Minister for an exemption under section 20(1) of the **Planning and Environment Act 1987** in respect of an amendment to the planning scheme affecting the land; or

- (ii) if a request is made to the Minister to prepare an amendment to a planning scheme affecting the land and to exempt himself or herself under section 20(4) of the **Planning and Environment Act 1987** from certain requirements in respect of that amendment—

the responsible authority must give written notice without delay to the relevant building surveyor of the application or request.

- (2) On receipt of a notice under subsection (1) the relevant building surveyor must suspend consideration of the application for the building permit.
- (3) The responsible authority must give written notice to the relevant building surveyor without delay of—
 - (a) the withdrawal of an application or request referred to in subsection (1)(b); or
 - (b) the refusal of an application or request referred to in subsection (1)(b); or
 - (c) the coming into operation of an amendment referred to in subsection (1)(b); or
 - (d) the lapsing of an amendment referred to in subsection (1)(b).
- (4) The prescribed time within which the relevant building surveyor must decide an application for a permit—
 - (a) ceases to run at the time that notice affecting the application is received by the relevant building surveyor under subsection (1); and

- (b) recommences to run only when notice affecting the application is received by the relevant building surveyor under subsection (3).
- (5) If a notice of an amendment has been given to the relevant building surveyor under subsection (3)(c) the relevant building surveyor must, in considering under section 24 whether a building permit is consistent with any relevant planning permit, consider the requirements of the relevant planning scheme as amended by the amendment.

Division 5—Register and records

30 Relevant building surveyor to give copies of permits and documents to council

S. 30
amended by
No. 71/1995
s. 4(a).

- (1) The relevant building surveyor, within 7 days after issuing any building permit under this Part, must give to the relevant council a copy of that permit and any plans and other documents lodged with the application for the permit.

Penalty: 50 penalty units, in the case of a natural person;
250 penalty units, in the case of a body corporate.

S. 30(1A)
inserted by
No. 34/1997
s. 6(1),
amended by
Nos 33/2010
s. 6, 21/2017
s. 17(1).

- (1A) In addition to the requirements of subsection (1), the relevant building surveyor, within the relevant prescribed time, must give to the relevant council a copy of any other prescribed documents relating to the application for the building permit or the permit.

Penalty: 50 penalty units, in the case of a natural person;
250 penalty units, in the case of a body corporate.

- (2) Any documents lodged with the relevant council under subsection (1) or (1A) must be accompanied by the appropriate prescribed lodgement fee (if any) paid to the relevant building surveyor under clause 1 of Schedule 2.

S. 30(2)
inserted by
No. 71/1995
s. 4(b),
amended by
No. 34/1997
s. 6(2).

30A Authority may approve checklist of documents to be certified

S. 30A
inserted by
No. 15/2016
s. 47

- (1) The Authority may approve a checklist of all documents required under section 30 to be given to the relevant council by the relevant building surveyor.
- (2) The Authority must publish the approved checklist on the Authority's website.

30B Relevant building surveyor must certify that documents given to council

S. 30B
inserted by
No. 15/2016
s. 47

The relevant building surveyor must—

- (a) certify on the approved checklist that—
- (i) all documents required under section 30 to be given to the relevant council have been given to that council; and
 - (ii) any lodgement fee required under section 30(2) has been paid.
- (b) give the certified checklist to the relevant council at the same time as the documents required under section 30.

Penalty: 10 penalty units.

31 Register of building permits

- (1) A council must keep a register of all building permits given to it under this Division.
- (2) A council must make the register available for inspection by any person during normal office hours.

32 Keeping of records

A council must keep all documents given to it under this Division for the prescribed period and in the prescribed manner.

32A Council to notify Development Victoria of issue of building permit

(1) This section applies if—

S. 32A
(Heading)
amended by
No. 10/2017
s. 31(5).

S. 32A
inserted by
No. 35/2006
s. 11.

S. 32A(1)(a)
amended by
No. 10/2017
s. 31(6).

- (a) a council has under section 30(1) been given a copy of a building permit issued for building work to be carried out on a property situated in a project area within the meaning of the **Development Victoria Act 2003**; and
- (b) a resolution is in force under Division 5A of Part 3 of that Act levying a general development charge or infrastructure recovery charge in respect of that project area.

(2) The council must within 14 days after being given the copy of the building permit—

S. 32A(2)(a)
amended by
Nos 35/2011
s. 17(3),
10/2017
s. 31(7).

- (a) notify Development Victoria in writing in accordance with subsection (3); and

S. 32A(2)(b)
amended by
Nos 35/2011
s. 17(3),
10/2017
s. 31(7).

- (b) provide Development Victoria with a copy of any relevant planning permit that it holds that authorises both the construction of the buildings to which the building work relates and a subdivision of the land on which the building work is to be carried out.

(3) The notice must set out the following information—

- (a) the name of the applicant for the permit;
- (b) the address of the property in respect of which the permit was issued;
- (c) the nature of the building work for which the permit was issued;
- (d) the cost of the building work estimated under Subdivision 4 of Division 2 of Part 12;
- (e) the information referred to in paragraphs (c) and (d) in respect of all other building permits issued for the same land in the previous 3 years.

S. 32A(3)(d)
amended by
No. 34/2013
s. 19(4).

Part 4—Inspection of building work

Division 1—Inspections

Pt 4 Div. 1
(Heading)
inserted by
No. 15/2016
s. 48.

33 Notification during building work

S. 33
amended by
No. 33/2010
s. 7,
substituted by
No. 21/2017
s. 24.

- (1) The person that is named as the builder in a building permit issued for building work must ensure the relevant building surveyor is notified without delay of the completion of each mandatory notification stage of that work.

Penalty: 120 penalty units, in the case of a natural person;

600 penalty units, in the case of a body corporate.
- (2) The person that is named as the builder in a building permit issued for building work must ensure that any person who is carrying out the building work stops carrying out that work or any part of that work on completion of a mandatory notification stage if directed to do so by the relevant building surveyor.

Penalty: 120 penalty units, in the case of a natural person;

600 penalty units, in the case of a body corporate.
- (3) The relevant building surveyor must notify the Authority in the approved form (if any) of any failure of a person to comply with subsection (1) or (2).

34 Inspections at mandatory notification stages

On being notified that a mandatory notification stage of building work for which a building permit has been issued under Part 3 has been completed, the relevant building surveyor must cause the building work to be inspected in person.

S. 34
substituted by
No. 21/2017
s. 25(1).

35 Inspection of building work—general powers

The relevant building surveyor may cause building work for which a permit has been issued under Part 3 to be inspected at any time whether or not a mandatory notification stage has been completed.

35A Record of inspection of building work

- (1) On completion of an inspection under section 34 or 35, the relevant building surveyor must ensure that a record of the inspection containing the prescribed information is made.
- (2) On receipt of a written request from any of the following persons, the relevant building surveyor must without delay give a copy of a record made under subsection (1) to that person—
 - (a) the Authority;
 - (b) the municipal building surveyor for the municipal district in which the building work was inspected;
 - (c) the owner of the building or land in or on which the building work was carried out;
 - (d) any other prescribed person.

S. 35A
inserted by
No. 21/2017
s. 25(2).

35B Persons carrying out inspections must be registered practitioners or prescribed persons

The relevant building surveyor must not cause a person to carry out an inspection under section 34 or 35 on behalf of the relevant building surveyor unless—

S. 35B
inserted by
No. 21/2017
s. 25(2).

- (a) the person is registered as a building surveyor or a building inspector under Part 11 and the person's registration authorises the carrying out of that inspection; or
- (b) in the case of an inspection that is of a prescribed class of inspection, the inspection is carried out by a person of a prescribed class of person.

S. 36
repealed by
No. 46/2018
s. 38.

* * * *

Pt 4 Div. 2
(Heading)
inserted by
No. 15/2016
s. 49.

Division 2—Directions to fix building work

S. 37
substituted by
No. 15/2016
s. 49.

37 Definitions

In this Division—

authorised person means—

- (a) the Authority; or
- (b) a VBA inspector;

S. 37 def. of
*authorised
person*
amended by
No. 21/2017
s. 18(3).

* * * *

builder in relation to building work, means the person who is specified as the builder in the building permit issued in relation to that building work;

direction to fix building work means a direction to fix building work given under this Division;

relevant owner, in relation to building work,
means the owner of the building or land in or
on which the building work is being carried
out;

relevant person means a person referred to in
section 37C who can be, or has been, given a
direction to fix building work.

**37A Direction by relevant building surveyor to fix
building work**

S. 37A
inserted by
No. 15/2016
s. 49.

- (1) This section applies if, after the inspection of building work, the relevant building surveyor believes on reasonable grounds that the building work fails to comply with this Act, the building regulations or the building permit issued in relation to the building work.
- (2) The relevant building surveyor must give a direction to fix the building work to a relevant person in accordance with this Division.
- (3) The relevant building surveyor may authorise a building surveyor or a building inspector whose registration under Part 11 authorises the inspection of that building work to give an oral direction to fix the building work to the relevant person on behalf of the relevant building surveyor in accordance with this Division.

37B Direction by authorised person to fix building work

S. 37B
inserted by
No. 15/2016
s. 49.

- (1) This section applies if, after the inspection of building work, an authorised person believes on reasonable grounds that the building work fails to comply with this Act, the building regulations or the building permit issued in relation to the building work.
- (2) The authorised person may give a direction to fix the building work to a relevant person in accordance with this Division.

S. 37B(3)
amended by
No. 21/2017
s. 95(3).

- (3) If, under this section, an authorised person gives a person a direction to fix building work, any direction to fix that work given by or on behalf of a relevant building surveyor under section 37A ceases to have effect.

S. 37C
inserted by
No. 15/2016
s. 49.

37C Method of giving directions

A direction to fix building work may be given as—

- (a) an oral direction to either or both of the following persons—
 - (i) the builder;
 - (ii) the person who is apparently in charge of the site on which the building work is being carried out; or
- (b) a written direction to the builder.

S. 37D
inserted by
No. 15/2016
s. 49.

37D Written direction if oral direction not complied with

- (1) This section applies if an oral direction to fix building work has been given under this Division.
- (2) The relevant building surveyor or authorised person must give the builder a written direction to fix building work if the relevant building surveyor or authorised person is not satisfied at the end of the prescribed period after the oral direction was given that the building work complies with this Act, the building regulations or the building permit issued in relation to the building work.
- (3) In this section—

prescribed period means—

 - (a) the period prescribed by the regulations (if any); or
 - (b) if a period is not prescribed, 7 days.

37E Requirements of directions to fix building work

S. 37E
inserted by
No. 15/2016
s. 49.

A direction to fix building work may require the relevant person to do all or any of the following—

- (a) carry out work so that the building work complies wholly or substantially with this Act, the building regulations and the building permit issued in relation to the building work;
- (b) stop any further building work that may prevent the building work to which the direction applies from being adequately inspected, until the relevant building surveyor or authorised person is satisfied that a requirement under paragraph (a) has been complied with.

37F Written directions to fix building work

S. 37F
inserted by
No. 15/2016
s. 49.

- (1) A written direction to fix building work must be given in a form (if any) approved by the Authority.
- (2) A written direction to fix building work must specify a period within which the direction must be complied with.
- (3) A written direction to fix building work must state the following—
 - (a) that the builder has a right to appeal the decision to give the direction to the Building Appeals Board within a prescribed period; and
 - (b) that the builder may ask the relevant building surveyor or authorised person to extend the period within which the direction must be complied with.

S. 37G
inserted by
No. 15/2016
s. 49.

37G Extension of time to comply with direction

- (1) A builder who is subject to a written direction to fix building work may ask the relevant building surveyor or authorised person to extend the period for compliance with the direction.
- (2) A request under subsection (1) must be made before the end of the specified period for compliance with the direction.
- (3) On a request under subsection (1), the relevant building surveyor or authorised person may grant an extension of the period for compliance with the direction to fix building work if the relevant building surveyor or authorised person considers it appropriate to do so in the circumstances.
- (4) The relevant building surveyor or authorised person must give written notice of the extension to the builder.

S. 37H
inserted by
No. 15/2016
s. 49.

37H Offences relating to compliance with direction

S. 37H(1)
amended by
No. 21/2017
s. 17(2).

- (1) A builder must comply with a written direction to fix building work within the period for compliance specified in the direction.

Penalty: 500 penalty units, in the case of a natural person;

2500 penalty units, in the case of a body corporate.

S. 37H(1A)
inserted by
No. 21/2017
s. 26.

- (1A) A builder, to whom a written direction to fix building work has been given, must ensure that any other person engaged or employed by the builder who is carrying out the building work—
 - (a) carries out the building work in accordance with the direction; and

(b) if required by the direction, stops carrying out the building work in accordance with the direction.

Penalty: 500 penalty units, in the case of a natural person;

2500 penalty units, in the case of a body corporate.

(2) A builder to whom a direction to fix building work is given must not request or receive from the person for whom the building work was originally carried out (or any agent of that person) any payment for or in respect of any costs arising from anything done for the purpose of complying with the direction.

S. 37H(2)
amended by
No. 21/2017
s. 17(1).

Penalty: 50 penalty units, in the case of a natural person;

250 penalty units, in the case of a body corporate.

37HA Operation of direction may be stayed

S. 37HA
inserted by
No. 15/2016
s. 60.

The relevant building surveyor or the authorised person may stay the operation of a direction to fix building work if—

(a) the building work is the subject of a domestic building work dispute; and

(b) the domestic building work dispute has been accepted for conciliation under Part 4 of the **Domestic Building Contracts Act 1995**.

37I Direction may be revoked

S. 37I
inserted by
No. 15/2016
s. 49.

(1) The relevant building surveyor or authorised person may revoke a direction to fix building work given to the relevant person if—

S. 37I(1)
substituted by
No. 15/2016
s. 61.

- (a) the relevant building surveyor or authorised person considers that the relevant person is not able to comply with the direction; or
- (b) the building work is the subject of a domestic building work dispute and—
 - (i) a dispute resolution order has been issued in relation to the building work; or
 - (ii) the dispute has been resolved by conciliation under Part 4 of the **Domestic Building Contracts Act 1995**; or
 - (iii) the dispute has been determined by VCAT under the **Domestic Building Contracts Act 1995**.
- (2) The relevant building surveyor or authorised person must give written notice of the revocation of a written direction to fix building work to the relevant person.

S. 37J
inserted by
No. 15/2016
s. 49.

37J Relevant building surveyor or authorised person must give copies of directions and other notices to owner

The relevant building surveyor or authorised person must give the following documents to the relevant owner and any other prescribed person in relation to a written direction to fix building work—

- (a) a copy of the direction;
- (b) a written notice of any extension of the period for compliance granted under section 37G;
- (c) a written notice of the stay of the direction under section 37HA or of the revocation of the direction under section 37I.

S. 37J(c)
amended by
No. 15/2016
s. 62.

37K Notice to owner and Authority of non-compliance with direction

S. 37K
inserted by
No. 15/2016
s. 49.

- (1) If a builder fails to comply with a written direction to fix building work within the required period for compliance, the relevant building surveyor or authorised person must give written notice of that failure to the Authority and the relevant owner.
- (2) The relevant building surveyor or authorised person must comply with subsection (1) within 7 days after the end of the required period for compliance.

S. 37K(1)
amended by
No. 21/2017
s. 27.

Division 3—Certificates of final inspection

Pt 4 Div. 3
(Heading)
inserted by
No. 15/2016
s. 50.

38 Certificate of final inspection

- (1) The relevant building surveyor must issue a certificate of final inspection on completion of the inspection following the final mandatory notification stage of building work if—
 - (a) an occupancy permit is not required for the building work; and
 - (b) all directions given under this Part in respect of the building work have been complied with.
- (2) A certificate of final inspection is not evidence that the building or building work concerned complies with this Act or the building regulations.

Part 5—Occupation of buildings and places of public entertainment

Division 1—Occupancy permits (building work)

39 Occupancy permit must be obtained

S. 39(1)
amended by
No. 33/2010
s. 8.

- (1) If a building permit states that an occupancy permit is required for the whole of a building, a person must not occupy that building unless the occupancy permit has been issued under this Division for the building.

Penalty: 120 penalty units, in the case of a natural person.

600 penalty units, in the case of a body corporate.

S. 39(2)
amended by
No. 33/2010
s. 8.

- (2) If a building permit states that an occupancy permit is required for part of a building, a person must not occupy that part of the building unless the occupancy permit has been issued under this Division for that part of the building.

Penalty: 120 penalty units, in the case of a natural person.

600 penalty units, in the case of a body corporate.

40 Occupation must be in accordance with permit

S. 40
amended by
No. 34/1997
s. 7(1).

- (1) A person must not occupy a building in contravention of the current occupancy permit or permits issued under this Division for the building.

S. 40(1)
amended by
No. 33/2010
s. 9.

Penalty: 120 penalty units, in the case of a natural person.

600 penalty units, in the case of a body corporate.

- (2) Subsection (1) does not apply to a person who occupies a building in accordance with an approval given under Division 3.

S. 40(2)
inserted by
No. 34/1997
s. 7(2).

41 Applications for occupancy permits

An application for an occupancy permit required by a building permit must be made to the relevant building surveyor—

- (a) by or on behalf of the owner of the building or the owner of the land, in or on which the building work has been carried out; or
- (b) if the land in or on which the building work has been carried out is a lot of a kind referred to in section 9AA(1) of the **Sale of Land Act 1962**, by the purchaser under a contract for the sale of that lot.

41A Requirement to provide a draft building manual with an application for an occupancy permit

S. 41A
inserted by
No. 11/2023
s. 36.

- (1) A person referred to in section 41(a), who intends to apply for an occupancy permit in respect of the construction of a new building of a prescribed class of building, must prepare a draft building manual for the building in accordance with the regulations and ensure that the draft building

manual accompanies the application made to the relevant building surveyor.

Note

See the relevant transitional and savings provision that relates to this subsection in section 285.

- (2) If the construction of a building referred to in subsection (1) has been carried out under more than one staged permit, the requirement under subsection (1) applies only in respect of the application for the final occupancy permit.

S. 41B
inserted by
No. 11/2023
s. 36.

41B Approval of building manual

- (1) The relevant building surveyor may approve a draft building manual accompanying an application for an occupancy permit if the relevant building surveyor is satisfied that the draft building manual meets all the requirements prescribed in the regulations for preparation of the draft building manual.
- (2) On approving a draft building manual under subsection (1), the relevant building surveyor must record the approval in the approved building manual.
- (3) The relevant building surveyor must give a copy of an approved building manual to the applicant for the occupancy permit at the same time at which the relevant building surveyor issues the occupancy permit to the applicant.
- (4) If the applicant for the occupancy permit is not the owner of the building to which the approved building manual relates, the applicant must give the copy of the approved building manual to that owner.

42 Schedule 2 to apply

Schedule 2 applies in relation to an application for an occupancy permit under this Division.

43 Decision on application for occupancy permit

- (1) The relevant building surveyor must decide an application for an occupancy permit under this Division by—
 - (a) issuing the permit; or
 - (b) issuing the permit with conditions; or
 - (c) refusing the permit.
- (2) The regulations may prescribe a time within which the relevant building surveyor must decide an application for an occupancy permit.
- (3) The relevant building surveyor is taken to have refused an occupancy permit if the application is not decided within the prescribed time.

S. 43(3)
amended by
No. 21/2017
s. 99.

44 Refusal of occupancy permit

The relevant building surveyor must not issue an occupancy permit under this Division—

- (a) unless the building, or the part of the building, to which the permit applies is suitable for occupation; and
- (b) if plumbing work for which section 221ZH required the issue of a compliance certificate was carried out in conjunction with the building work on the building or part of the building in respect of which the permit is sought, unless the building surveyor has seen a copy of the compliance certificate; and
- (c) in the case of an application described in section 41A(1), if the relevant building surveyor has not approved the draft building manual required to accompany the application.

S. 44
substituted by
No. 75/1998
s. 6.

S. 44(b)
amended by
No. 11/2023
s. 37(1).

S. 44(c)
inserted by
No. 11/2023
s. 37(2).

S. 44A
inserted by
No. 11/2023
s. 38.

44A Applicant for occupancy permit must give approved building manual to owners corporation

An applicant for an occupancy permit who is given a copy of an approved building manual for a building on land affected by an owners corporation by the relevant building surveyor under section 41B(3), must give the copy of the approved building manual to the owners corporation for the building at the first meeting of the owners corporation (within the meaning of section 66 of the **Owners Corporations Act 2006**).

Penalty: 60 penalty units, in the case of a natural person;
300 penalty units, in the case of a body corporate.

S. 44B
inserted by
No. 11/2023
s. 38.

44B Owners corporation must update an approved building manual

An owners corporation that is given a copy of an approved building manual under section 44A by an applicant for an occupancy permit must keep and update the approved building manual in accordance with the regulations.

Penalty: 300 penalty units.

S. 44C
inserted by
No. 11/2023
s. 38.

44C Owner of building must update an approved building manual

An owner of a building that is on land not affected by an owners corporation who has been given a copy of an approved building manual by a relevant building surveyor under section 41B(3) or (4) or by a person from whom the owner purchased the land, must keep and update the approved building manual in accordance with the regulations.

Penalty: 60 penalty units, in the case of a natural person;
300 penalty units, in the case of a body corporate.

44D Offence to include false or misleading information in a building manual

S. 44D
inserted by
No. 11/2023
s. 38.

A person who prepares a draft building manual or any updates to an approved building manual must not knowingly or recklessly include false or misleading information in the draft building manual or the updates to the approved building manual.

Penalty: 60 penalty units, in the case of a natural person;
300 penalty units, in the case of a body corporate.

45 Form of occupancy permit

An occupancy permit under this Division must specify—

- (a) the prescribed classification of the building or part of a building to which it applies; and
- (b) the proposed use of the building or part of a building; and
- (c) the maximum permissible live load within the building or part of a building, if applicable; and
- (d) the maximum number of people to be accommodated within the building or part of a building, as determined in accordance with the regulations; and
- (e) any conditions to which it is subject.

46 Effect of occupancy permit

- (1) An occupancy permit under this Division is evidence that the building or part of a building to which it applies is suitable for occupation.
- (2) An occupancy permit under this Division is not evidence that the building or part of a building to which it applies complies with this Act or the building regulations.

47 Reporting authority to be notified of occupancy permit

If the relevant building surveyor issues an occupancy permit under this Division which differs from or fails to implement the recommendations in a reporting authority's report under Schedule 2 on the application for the permit, the relevant building surveyor must notify the reporting authority without delay of the permit and give the reporting authority a copy of the permit.

48 Reasons for refusal to be given

The relevant building surveyor must notify an applicant under this Division for an occupancy permit in writing without delay of the refusal of the permit and the reasons for the refusal.

Division 2—Occupancy permits (places of public entertainment)

49 Public entertainment not to be conducted at place without occupancy permit

A person must not conduct⁴ a public entertainment in a place of public entertainment unless an occupancy permit has been issued under this Division which permits its use for the entertainment.

S. 49
amended by
No. 33/2010
s. 10.

Penalty: 240 penalty units, in the case of a natural person.

1500 penalty units, in the case of a body corporate.

50 Place not to be used for public entertainment without occupancy permit

S. 50
amended by
No. 33/2010
s. 11.

The owner or occupier of a place of public entertainment must not, for fee or reward, permit the place to be used for the purpose of providing public entertainment unless an occupancy permit has been issued under this Division which permits its use for the entertainment.

Penalty: 240 penalty units, in the case of a natural person.

1500 penalty units, in the case of a body corporate.

51 Use of place of public entertainment must be in accordance with permit

S. 51
amended by
No. 33/2010
s. 12.

The owner or occupier of a place of public entertainment (other than a prescribed temporary structure) must not permit the place to be used for the purpose of providing public entertainment in contravention of the occupancy permit permitting its use for the entertainment.

Penalty: 240 penalty units, in the case of a natural person.

1500 penalty units, in the case of a body corporate.

52 Use of prescribed temporary structure must be in accordance with permit

S. 52
amended by
No. 33/2010
s. 13.

The owner, occupier, lessee or a hirer of a prescribed temporary structure must not permit the structure to be used for the purpose of providing public entertainment in contravention of

the occupancy permit permitting its use for the entertainment.

Penalty: 240 penalty units, in the case of a natural person.

1500 penalty units, in the case of a body corporate.

53 Applications for occupancy permits

- (1) An application for an occupancy permit under this Division (other than an occupancy permit referred to in subsection (2)) may be made to a municipal building surveyor or a private building surveyor appointed under Part 6 by or on behalf of the owner of the place of public entertainment concerned.
- (2) An application for an occupancy permit under this Division for a prescribed temporary structure or for a place of public entertainment prescribed or in a class prescribed for the purposes of this section may be made to the Authority by or on behalf of the owner of the place of public entertainment concerned⁵.
- (3) An application can only be made to a private building surveyor under this Division in conjunction with an application for an occupancy permit under Division 1 in respect of the place of public entertainment concerned.

S. 53(2)
amended by
No. 34/2013
s. 34(Sch. 1
item 5).

54 Schedule 2 to apply

Schedule 2 applies in relation to an application for an occupancy permit under this Division.

55 Refusal of occupancy permit

The relevant building surveyor must not issue an occupancy permit under this Division unless the place to which the permit applies is suitable for occupation for the public entertainment or class of

public entertainment for which the permit is sought.

56 Decision on application for occupancy permit

- (1) The relevant building surveyor must decide an application for an occupancy permit under this Division by—
 - (a) issuing the permit; or
 - (b) issuing the permit with conditions; or
 - (c) refusing the permit.
- (2) The regulations may prescribe a time within which the relevant building surveyor must decide an application for an occupancy permit.
- (3) The relevant building surveyor is taken to have refused an occupancy permit if the application is not decided within the prescribed time.

S. 56(3)
amended by
No. 21/2017
s. 99.

57 Prescribed temporary structures—special provisions

- (1) An occupancy permit for a prescribed temporary structure may be issued on condition that—
 - (a) the siting of the temporary structure in any municipal district is subject to the approval of the municipal building surveyor of that district; and
 - (b) the erection of the temporary structure is carried out by a registered building practitioner or a licensed building employee.
- (2) More than one occupancy permit can be issued for a prescribed temporary structure but each occupancy permit must not be issued for a period longer than 5 years.

S. 57(1)(b)
amended by
No. 46/2018
s. 7,
substituted by
No. 40/2021
s. 10.

58 Effect of occupancy permit

- (1) An occupancy permit under this Division is evidence that the place to which it applies is suitable for occupation for the purpose of the public entertainment or class of public entertainment for which it was issued.
- (2) An occupancy permit under this Division is not evidence that a place of public entertainment complies with this Act or the building regulations.

59 Form of occupancy permit

- (1) An occupancy permit under this Division must specify—
 - (a) the public entertainment or class of public entertainment to which it applies; and
 - (b) any conditions to which it is subject; and
 - (c) the period of operation of the permit.
- (2) If an occupancy permit is required under Division 1 and this Division in respect of a building or part of a building (other than a prescribed temporary structure), the relevant building surveyor may issue a combined occupancy permit if the requirements of both Divisions have been met.

60 Reporting authority to be notified of occupancy permit

If the relevant building surveyor issues an occupancy permit under this Division which differs from or fails to implement the recommendations in a reporting authority's report under Schedule 2 on the application for the permit, the relevant building surveyor must notify the reporting authority without delay of the permit and give the reporting authority a copy of the permit.

61 Owner to notify others of occupancy permit

- (1) The owner of a building (other than a prescribed temporary structure) must notify an occupier of the building, within 7 days after the occupier first enters into occupation of the building or within 7 days after an occupancy permit is issued in respect of the building (whichever is the later), of any occupancy permit in force under this Division in respect of the building.

S. 61(1)
amended by
No. 33/2010
s. 14.

Penalty: 120 penalty units.

- (2) The owner of a prescribed temporary structure must notify the occupier, lessee or hirer of the structure within 7 days after the occupier, lessee or hirer enters into occupation of, or leases or hires the temporary structure or within 7 days after an occupancy permit is issued in respect of the structure (whichever is the later), of any occupancy permit in force under this Division in respect of the structure.

S. 61(2)
amended by
No. 33/2010
s. 14.

Penalty: 120 penalty units.

62 Reasons for refusal to be given

If the relevant building surveyor refuses an occupancy permit under this Division, the relevant building surveyor must notify the applicant for the permit in writing without delay of the refusal of the permit and the reasons for the refusal.

63 Inspection of places of public entertainment

- (1) The municipal building surveyor of a municipal district may cause any place of public entertainment in that municipal district for which an occupancy permit has been issued under this Division to be inspected from time to time to determine whether or not the permit is being complied with.

S. 63(2)
amended by
No. 34/2013
s. 34(Sch. 1
item 6).

- (2) The Authority may cause any place of public entertainment for which an occupancy permit has been issued by the Authority under this Division to be inspected from time to time to determine whether or not the permit is being complied with.

Division 3—Temporary occupation of buildings

S. 64
amended by
No. 71/1995
s. 5(a)(b).

64 Temporary occupation of buildings

S. 64(1)
amended by
No. 34/1997
s. 8.

- (1) A person may, with the approval of a municipal building surveyor or a private building surveyor appointed under Part 6, occupy on a temporary basis a building for which there is not or could not be issued an occupancy permit appropriate to the use of the building.

S. 64(2)
inserted by
No. 71/1995
s. 5(c).

- (2) An approval cannot be given under this section for a use of a building or part of a building if a building permit requires an occupancy permit to be issued for that use of the building or part of a building.

65 Who may apply for approval?

An application for approval under this Division may be made to the relevant building surveyor by or on behalf of the owner of the building concerned.

66 Form of application

An application must—

- (a) be in a form approved by the relevant building surveyor; and

(b) be accompanied by the fees—

- (i) determined by the council in accordance with the **Local Government Act 2020**; or

S. 66(b)(i)
amended by
No. 9/2020
s. 390(Sch. 1
item 8.4).

- (ii) in the case of an application to a private building surveyor, determined by the private building surveyor.

67 Determination of applications

The relevant building surveyor must decide the application for approval to occupy a building on a temporary basis by—

- (a) issuing the approval; or
- (b) issuing the approval with conditions; or
- (c) refusing the approval.

68 Form of approval

An approval under this section must—

- (a) be in writing; and
- (b) specify any conditions to which it is subject; and
- (c) specify the period for which it applies.

69 Reasons for refusal to be given

The relevant building surveyor must notify an applicant in writing of the refusal of approval to occupy a building on a temporary basis and the reasons for the refusal.

Division 4—Amendment and cancellation of permits and approvals

70 Amendment of permit or approval

- (1) A municipal building surveyor may amend a permit or approval issued under this Part—
 - (a) on an application by or on behalf of the owner of the building or land concerned; or
 - (b) in any other case, if the amendment is necessary in the public interest.
- (2) Sections 42 to 48 apply (with any necessary modifications) in relation to an application to amend an occupancy permit issued under Division 1 as if it were an application for an occupancy permit under that Division.
- (3) Sections 54 to 62 apply (with any necessary modifications) in relation to an application to amend an occupancy permit issued under Division 2 as if it were an application for an occupancy permit under that Division.
- (4) Sections 66 to 69 apply (with any necessary modifications) in relation to an application to amend an approval given under Division 3 as if it were an application for approval under that Division.

71 Cancellation of permit or approval if fraud or misrepresentation

The relevant building surveyor may cancel a permit or approval issued by the relevant building surveyor under this Part if the permit or approval was obtained by fraud or misrepresentation.

72 Cancellation of occupancy permit on other grounds

A municipal building surveyor may cancel an occupancy permit issued under Division 1 if—

- (a) the building or the part of a building to which the permit relates is no longer suitable for occupation for the classification stated on the permit; or
- (b) the use of the building or part of the building has changed from the proposed use specified on the permit; or
- (c) the strength of the building has become less than required to carry the loads stated on the permit.

S. 72(b)
amended by
No. 21/2017
s. 95(4).

Division 5—Register and records

73 Relevant building surveyor to give copies of documents to council

S. 73
amended by
No. 71/1995
s. 6(a).

- (1) The relevant building surveyor, within 7 days after issuing any occupancy permit or temporary approval or amending any permit or approval under this Part, must give to the relevant council a copy of that permit or approval or amendment and any plans and other documents lodged with the application for the permit or approval or amendment.

S. 73(1)
amended by
Nos 33/2010
s. 15, 21/2017
s. 17(1).

Penalty: 50 penalty units, in the case of a natural person;
250 penalty units, in the case of a body corporate.

S. 73(1A)
inserted by
No. 34/1997
s. 9(1),
amended by
Nos 33/2010
s. 15, 21/2017
s. 17(1).

- (1A) In addition to the requirements of subsection (1), the relevant building surveyor, within the relevant prescribed time, must give to the relevant council a copy of any other prescribed documents relating to the application for the occupancy permit or temporary approval or the permit or approval.

Penalty: 50 penalty units, in the case of a natural person;
250 penalty units, in the case of a body corporate.

S. 73(2)
inserted by
No. 71/1995
s. 6(b),
amended by
No. 34/1997
s. 9(2).

- (2) Any documents lodged with the relevant council under subsection (1) or (1A) must be accompanied by the appropriate prescribed lodgement fee (if any) paid to the relevant building surveyor under clause 1 of Schedule 2.

74 Register of occupancy permits and temporary approvals

- (1) A council must keep a register of all occupancy permits and temporary approvals and amendments given to it under this Division.
- (2) A council must make the register available for inspection during normal office hours by any person.

75 Keeping of records

A council must keep all documents given to it under this Division for the prescribed period and in the prescribed manner.

Building Act 1993
No. 126 of 1993

*	*	*	*	*	Pt 5A (Headings and ss 75A– 75DH) inserted by No. 85/2000 s. 5, amended by No. 96/2004 ss 3–9, repealed by No. 46/2008 s. 248(3).
*	*	*	*	*	Pt 5B (Headings and ss 75E– 75H) inserted by No. 85/2000 s. 5, amended by No. 96/2004 ss 10–12, repealed by No. 46/2008 s. 248(3).
*	*	*	*	*	Pt 5C (Headings and ss 75J– 75JE) inserted by No. 85/2000 s. 5, amended by Nos 11/2002 s. 3(Sch. 1 item 6.1), 96/2004 ss 13, 14, 42/2005 s. 51, repealed by No. 46/2008 s. 248(3).

Part 6—Private building surveyors

Pt 6 Div. 1
(Heading)
inserted by
No. 15/2016
s. 37.

Division 1—Appointments of private building surveyors

76 Functions of private building surveyor

A private building surveyor may be appointed to carry out all or any of the following functions under this Act—

- (a) the issuing of building permits;
- (b) the carrying out of inspections of buildings and building work under Part 4;
- (c) the issuing of occupancy permits and temporary approvals under Part 5;
- (d) the approving of draft building manuals under section 41B(1).

S. 76(c)
amended by
No. 11/2023
s. 39(a).

S. 76(d)
inserted by
No. 11/2023
s. 39(b).

77 Additional functions

In addition to the functions set out in section 76, a private building surveyor may carry out any other functions conferred on private building surveyors by this Act or the regulations.

78 When may a private building surveyor be appointed?

- (1) Subject to this Part, a person who is entitled to apply for a building permit, occupancy permit or temporary approval under this Act in respect of a building or building work, may appoint a private building surveyor to carry out the functions set out in section 76 in respect of that building or building work.

- (1A) A builder who has entered into a major domestic building contract or who acts or proposes to act as a domestic builder in relation to domestic building work, or a related person to that builder, must not appoint a private building surveyor on behalf of the owner of the land on which the domestic building work is to be carried out. S. 78(1A) inserted by No. 15/2016 s. 38, amended by No. 21/2017 s. 4(1).
- (1B) A building surveyor must not accept an appointment referred to in subsection (1A). S. 78(1B) inserted by No. 15/2016 s. 38.
- (1C) Nothing in subsection (1A) or (1B) affects the validity of any action taken by a building surveyor who is appointed in contravention of those subsections. S. 78(1C) inserted by No. 15/2016 s. 38.
- (2) Except as provided in this Part, a person must not appoint a private building surveyor to complete any functions set out in section 76 in respect of a building or building work if another private building surveyor or a municipal building surveyor has already commenced to carry out functions set out in that section in respect of that building or building work. S. 78(2) amended by No. 33/2010 s. 16.
- Penalty: 240 penalty units, in the case of a natural person.
1500 penalty units, in the case of a body corporate.
- (3) Subject to this Part, on and from the acceptance of an appointment under this Part in respect of a building or building work, a private building surveyor is responsible for carrying out the functions set out in section 76 in respect of that building or building work.
- (4) Despite the terms of an appointment under this section, a private building surveyor, in carrying out any functions set out in section 76, must comply with this Act and the regulations.

S. 78(5)
inserted by
No. 21/2017
s. 4(2).

(5) In this section—

related person, in relation to a builder, means—

- (a) if the builder is a member of a partnership, another partner in the partnership; or
- (b) if the builder is a body corporate, an officer of the body corporate.

S. 78A
inserted by
No. 21/2017
s. 28.

78A Offence to accept appointment of private building surveyor if unregistered

A person must not accept an appointment as a private building surveyor unless—

- (a) the person is registered under Part 11 as a building surveyor; and
- (b) the person's registration authorises the person to carry out the work.

Penalty: 500 penalty units, in the case of a natural person;
2500 penalty units, in the case of a body corporate.

S. 78B
inserted by
No. 21/2017
s. 28.

78B Private building surveyor prohibited from delegating functions unless authorised

A private building surveyor must not delegate any function specified in section 76 or 77 to another person unless the delegation of the function is expressly authorised under this Act or the regulations.

79 Circumstances in which private building surveyor may not act

S. 79(1)
amended by
Nos 33/2010
s. 17, 15/2016
s. 39(1),
21/2017
s. 17(2).

- (1) Subject to subsection (2), a private building surveyor must not carry out any functions set out in section 76 or 77 in relation to a building or building work if the private building surveyor or a related person—

- (a) prepared the design of the building or building work; or
- (b) is, or within the prescribed period was, employed or engaged by the person or body which prepared the design of the building or building work other than an appointment to carry out a function set out in section 76; or
- (c) has a direct or indirect pecuniary interest in the body which prepared the design of the building or building work; or
- (d) has a direct or indirect pecuniary interest in the building or building work or in any body carrying out the building work.

Penalty: 500 penalty units, in the case of a natural person;
2500 penalty units, in the case of a body corporate.

- (1A) A private building surveyor must not carry out any function as a private building surveyor in relation to which the private building surveyor or a related person has a conflict of interest.

S. 79(1A)
inserted by
No. 15/2016
s. 39(2).

- (2) The Authority, on the application of a private building surveyor, may exempt the private building surveyor from all or any of the requirements of subsection (1) or (1A) in respect of any particular building or building work. An exemption must be in writing.

S. 79(2)
amended by
Nos 34/2013
s. 34(Sch. 1
item 7),
15/2016
s. 39(3).

- (2A) A private building surveyor must not carry out any functions set out in section 76 or 77 in relation to a building or building work if the private building surveyor—

S. 79(2A)
inserted by
No. 71/1995
s. 7(1),
amended by
Nos 33/2010
s. 17, 15/2016
s. 39(4).

- (a) is also an officer or employee of a council and the building is situated in or the building work is to be carried out in the municipal district of that council; or

(b) is engaged by a council under section 215 to carry out the functions of municipal building surveyor and the building is situated in or the building work is to be carried out in that municipal district.

Penalty: 500 penalty units.

(3) Except as provided in this Part, a private building surveyor must not accept an appointment to complete any functions set out in section 76 in respect of a building or building work if another private building surveyor or a municipal building surveyor has already commenced to carry out functions set out in that section in respect of that building or building work.

(4) In this section—

S. 79(4)
inserted by
No. 15/2016
s. 39(5).

S. 79(4) def. of
related person
substituted by
No. 21/2017
s. 5.

related person, in relation to a private building surveyor, means—

- (a) if the private building surveyor is a member of a partnership, another partner in the partnership; or
- (b) if the private building surveyor is a body corporate, a director of the body corporate or any related body corporate of the body corporate; or
- (c) any employer of the private building surveyor; or
- (d) any employee or contractor of the private building surveyor; or
- (e) the spouse or domestic partner or a sibling, parent or child of the private building surveyor; or

- (f) any person with whom the private building surveyor has a contractual arrangement that might reasonably be seen to give rise to a conflict between the private building surveyor's functions as a private building surveyor and the private building surveyor's interests under the arrangement.

80 Private building surveyor to notify council

A private building surveyor must, within 7 days after accepting an appointment under this Part, notify the relevant council in writing of the appointment and the building or building work in respect of which the private building surveyor is appointed.

80A Designated building surveyors

- (1) This section applies if a registered body corporate accepts an appointment as a private building surveyor under this Part.
- (2) The registered body corporate must ensure that the work as building surveyor is carried out by a director or employee of the body corporate (the *designated building surveyor*)—
 - (a) who is registered under Part 11 as a building surveyor as the case requires; and
 - (b) whose registration authorises the director or employee to carry out that work.

Penalty: 1200 penalty units.

S. 80A
inserted by
No. 21/2017
s. 6 (as
amended by
No. 47/2017
s. 14).

- (3) The registered body corporate must within 7 days after accepting the appointment—
- (a) notify the relevant council in writing of the designated building surveyor referred to in subsection (2); and
 - (b) give a copy of that notice to the person who appointed the registered body corporate under this Part.

Penalty: 1200 penalty units.

- (4) If the designated building surveyor notified to the relevant council is replaced by another director or employee of the body corporate for any period, the registered body corporate must within 7 days after the replacement is made—
- (a) notify the relevant council in writing of the new designated building surveyor; and
 - (b) give a copy of that notice to the person who appointed the registered body corporate under this Part.

S. 80B
inserted by
No. 21/2017
s. 6 (as
amended by
No. 47/2017
s. 14).

80B Duties of designated building surveyors

A designated building surveyor—

- (a) is not excused from compliance with any duties under this Act and the building regulations or under any other Act in relation to any work as a building surveyor carried out by the designated building surveyor on behalf of the registered body corporate; and
- (b) has the same functions in relation to the carrying out of the functions of a building surveyor on behalf of the registered body corporate as if the designated building surveyor were the private building surveyor.

Division 1A—Transfer of functions of private building surveyor

Pt 6 Div. 1A
(Heading and
ss 80C, 80D)
inserted by
No. 21/2017
s. 29.

80C A private building surveyor may transfer functions relating to building work to another building surveyor

S. 80C
inserted by
No. 21/2017
s. 29.

- (1) Subject to subsection (2), a private building surveyor (the *transferring building surveyor*) may transfer all functions under this Act or the building regulations that relate to building work in respect of which the transferring building surveyor has been appointed to another private building surveyor or a municipal building surveyor (the *new relevant building surveyor*).
- (2) A transfer may not be effected under subsection (1) unless the person who appointed the transferring building surveyor and the new relevant building surveyor both agree to the transfer of the functions.
- (3) A transfer under subsection (1) may be for a period of time or permanently.
- (4) A transfer under subsection (1) has no effect unless—
 - (a) the transfer is made in a form approved by the Authority; and
 - (b) a copy of the transfer form is given by the transferring building surveyor to the new relevant building surveyor; and
 - (c) the new relevant building surveyor gives a copy of the transfer form to the Authority and the relevant council.

- (5) A transfer under subsection (1) takes effect on the latest of the following dates—
 - (a) the date a copy of the transfer form is given to the Authority;
 - (b) the date a copy of the transfer form is given to the relevant council;
 - (c) the date specified in the transfer form (if any) on which the transfer is to take effect.
- (6) On a transfer of the functions under subsection (1) taking effect—
 - (a) the appointment of the transferring building surveyor under section 76 in respect of the functions is taken to be terminated; and
 - (b) the new relevant building surveyor is taken to be appointed in respect of the functions by the person who appointed the transferring building surveyor.
- (7) If a transfer of the functions under subsection (1) is not permanent, at the end of the period of transfer—
 - (a) the appointment of the new relevant building surveyor is taken to be terminated in respect of the functions; and
 - (b) the transferring building surveyor is taken to be appointed in respect of the functions by the same person who had appointed the transferring building surveyor before the transfer.

- (8) The new relevant building surveyor to whom the functions relating to building work are transferred under subsection (1) must give a copy of the transfer form to the person who appointed the transferring building surveyor and to the builder engaged to carry out the building work.

Penalty: 50 penalty units, in the case of a natural person;
250 penalty units, in the case of a corporation.

80D Authority may direct transfer of functions of employee building surveyor

S. 80D
inserted by
No. 21/2017
s. 29.

- (1) The Authority may direct a registered building surveyor that has employed or engaged a person to act as a private building surveyor (the ***employee building surveyor***) to transfer all functions under this Act or the building regulations being carried out by the employee building surveyor to—
- (a) another private building surveyor employed or engaged by the registered building surveyor; or
 - (b) the registered building surveyor, if a natural person.
- (2) The Authority may direct a registered building surveyor that has employed or engaged a person as a designated building surveyor to transfer all functions under this Act or the building regulations being carried out by the designated building surveyor to another designated building surveyor employed or engaged by the registered building surveyor.

- (3) The Authority may give a direction under subsection (1) or (2) if—
- (a) the registration of the employee building surveyor or designated building surveyor (as the case may be) has been suspended or cancelled; or
 - (b) the employee building surveyor or designated building surveyor (as the case may be)—
 - (i) has died; or
 - (ii) is in prison; or
 - (iii) has become a represented person within the meaning of the **Guardianship and Administration Act 2019**; or
 - (iv) has become an insolvent under administration; or
 - (v) in the opinion of the Authority is incapable of carrying out the work because the building surveyor is mentally or physically infirm or for any other reason; or
 - (vi) in the opinion of the Authority has ceased to carry out the functions of a private building surveyor or a designated building surveyor (as the case may be).
- (4) A direction given under subsection (1) or (2)—
- (a) must be given in writing; and
 - (b) may specify a period within which the functions of the employee building surveyor or designated building surveyor (as the case may be) are to be transferred.

S. 80D(3)(b)(iii)
amended by
No. 13/2019
s. 221(Sch. 1
item 5.1).

- (5) A registered building surveyor must comply with a direction under subsection (1) or (2).
- (6) If functions are transferred from an employee building surveyor or a designated building surveyor in accordance with a direction under subsection (1) or (2), the relevant registered building surveyor must notify—
 - (a) in the case of the transfer of the functions from a private building surveyor, the person who appointed the private building surveyor under section 76 to perform the functions; and
 - (b) in all other cases, the relevant council.

Division 2—Termination of appointment with consent of Authority

Pt 6 Div. 2
(Heading)
inserted by
No. 15/2016
s. 40.

81 Termination of appointment

- (1) Subject to section 80C(6) and (7) and subsection (3), the appointment of a private building surveyor under this Part cannot be terminated without the written consent of the Authority.
- (2) If building work in respect of which a private building surveyor is appointed is terminated before commencement or completion, the owner of the land on which the building work was or was to be carried out must notify the Authority and the relevant council of the termination of the building work.
- (3) On receipt by the Authority of a notice under subsection (2), the appointment of the private building surveyor is taken to be terminated.

S. 81(1)
amended by
Nos 34/2013
s. 34(Sch. 1
item 8),
21/2017 s. 30.

S. 81(2)
amended by
Nos 34/2013
s. 34(Sch. 1
item 8),
21/2017
s. 95(5).

S. 81(3)
amended by
Nos 34/2013
s. 34(Sch. 1
item 8),
21/2017 s. 99.

S. 81(4)
amended by
No. 34/2013
s. 34(Sch. 1
item 8).

- (4) If the appointment of a private building surveyor is terminated under subsection (3), a private building surveyor or municipal building surveyor must not complete the first private building surveyor's functions in respect of the building work without the written consent of the Authority.
- (5) This section applies despite anything to the contrary in the terms of the appointment or in any other Act or rule of law.

S. 82
(Heading)
inserted by
No. 34/2013
s. 34(Sch. 1
item 9).

82 Directions of Authority

S. 82(1)
amended by
No. 34/2013
s. 34(Sch. 1
item 10).

- (1) If—

S. 82(1)(a)
amended by
No. 34/2013
s. 34(Sch. 1
item 10).

- (a) the Authority consents to the termination of an appointment under section 81(1) and a new private building surveyor or a municipal building surveyor is to complete the private building surveyor's functions; or

S. 82(1)(b)
amended by
Nos 34/2013
s. 34(Sch. 1
item 10),
15/2016
s. 40A (as
amended by
No. 21/2017
s. 104).

- (b) the appointment of a private building surveyor has been terminated under section 81(3) or 83H(3) and the Authority consents to a new private building surveyor or a municipal building surveyor completing the private building surveyor's functions—

the Authority may give such written directions as it considers appropriate to facilitate the transfer of the private building surveyor's functions to that other private building surveyor or municipal building surveyor.

- (2) The private building surveyor whose appointment was terminated under section 81, the private building surveyor or municipal building surveyor to whom the functions are to be transferred and the person who appointed the private building surveyor whose appointment was terminated must comply with a direction under subsection (1).

S. 82(2)
amended by
No. 33/2010
s. 18.

Penalty: 500 penalty units, in the case of a natural person.

2500 penalty units, in the case of a body corporate.

- (3) A direction under subsection (1) has effect despite anything to the contrary in the terms of appointment of the first private building surveyor or the private building surveyor or municipal building surveyor to whom the functions are transferred.

83 Effect of transfer of functions

S. 83
amended by
No. 21/2017
s. 99.

If the functions of a private building surveyor are transferred to a second building surveyor under this Part, then in respect of any period on or after the date of transfer to the second building surveyor, anything done by the private building surveyor in respect of the building work concerned is, for the purpose only of carrying out the second building surveyor's functions under this Act and the regulations, taken to have been done by the second building surveyor.

Pt 6 Div. 3
(Headings
and
ss 83A–83V)
inserted by
No. 15/2016
s. 41 (as
amended by
No. 21/2017
s. 105).

Division 3—Appointment by Authority of manager of business of private building surveyor

Subdivision 1—Preliminary

S. 83A
inserted by
No. 15/2016
s. 41.

83A Definition

In this Division—

expenses, in relation to a manager, means—

- (a) the remuneration payable to the manager; and
- (b) the expenses incurred in the course of management under this Division; and
- (c) any reimbursement of the manager under this Division.

Subdivision 2—Appointment of manager

S. 83B
inserted by
No. 15/2016
s. 41.

83B Appointment of manager

- (1) The Authority may appoint a manager for a private building surveyor's business in any of the following circumstances if the Authority is of the opinion that it is necessary to make the appointment in order to protect the interests of other persons—
 - (a) the private building surveyor has requested the appointment of a manager;
 - (b) the private building surveyor's registration under this Act has been suspended or cancelled;
 - (c) the private building surveyor has died;
 - (d) the private building surveyor is in prison;

- (e) the private building surveyor has become a represented person within the meaning of the **Guardianship and Administration Act 2019**;
 - (f) the private building surveyor has become insolvent under administration;
 - (g) the private building surveyor has ceased to carry out the functions of a private building surveyor.
- (2) A manager may only be appointed in relation to, and the manager's powers and functions under this Division are limited to, the private building surveyor's functions under this Act and any functions that are reasonably necessary to support the carrying out of those functions.
- (3) A manager is eligible for reappointment.

S. 83B(1)(e)
amended by
No. 13/2019
s. 221(Sch. 1
item 5.1).

83C Who may be appointed as a manager?

A person must not be appointed as a manager of a private building surveyor's business unless the person is—

- (a) registered as a building surveyor under Part 11 and that registration (including any conditions of registration) authorises the person to carry out all work as a building surveyor; or
- (b) a member of the staff of the Authority who has the qualifications and experience required for registration as a building surveyor under Part 11 that would authorise the person to carry out all work as a building surveyor.

S. 83C
inserted by
No. 15/2016
s. 41.

S. 83D
inserted by
No. 15/2016
s. 41.

83D Terms of appointment

The instrument of appointment of a manager must specify—

- (a) the name of the manager; and
- (b) any remuneration payable to the manager; and
- (c) any other terms and conditions of the appointment; and
- (d) any reporting requirements to be observed by the manager.

S. 83E
inserted by
No. 15/2016
s. 41.

83E Conditions on appointment of manager

- (1) An appointment of a manager is subject to—
 - (a) any conditions imposed by the Authority; and
 - (b) any conditions imposed by or under the regulations.
- (2) The conditions may limit the functions of the private building surveyor that the manager may carry out.
- (3) The Authority may impose conditions—
 - (a) when the appointment is made; or
 - (b) during the term of the appointment.
- (4) The Authority may revoke or vary conditions imposed under subsection (1)(a).
- (5) The Authority must give written notice to the manager of any condition imposed under subsection (1)(a) or varied or revoked under subsection (4).

83F Notice of appointment

S. 83F
inserted by
No. 15/2016
s. 41.

- (1) The Authority must serve a notice of the appointment of a manager for a private building surveyor's business, without delay, on—
 - (a) the private building surveyor; and
 - (b) each council in whose municipal district the private building surveyor was carrying out work as a private building surveyor at the time of the appointment; and
 - (c) any person whom the Authority reasonably believes should be served with the notice.
- (2) The notice must—
 - (a) set out the information specified in the instrument of appointment; and
 - (b) state that the private building surveyor may apply to VCAT under section 83R for review of the decision to appoint the manager; and
 - (c) contain or be accompanied by any other information prescribed by the regulations.

83G Effect of service of notice of appointment

S. 83G
inserted by
No. 15/2016
s. 41.

After service on a private building surveyor of a notice of the appointment of a manager for the private building surveyor's business and until the appointment is terminated, the private building surveyor and any partner, officer, employee or agent of the private building surveyor must not participate in that business except under the direct supervision of the manager.

Penalty: 60 penalty units.

Subdivision 3—Management of business

S. 83H
inserted by
No. 15/2016
s. 41 (as
amended by
No. 21/2017
s. 105(2)(3)).

83H Powers of manager

- (1) The manager of a private building surveyor's business may, subject to the terms and conditions of the manager's appointment—
 - (a) carry out work under any existing appointment of the private building surveyor under Division 1; and
 - (b) accept appointment as a private building surveyor and carry out work as a building surveyor on behalf of the business; and
 - (c) complete any existing work of the business; and
 - (d) incur any expenses that are reasonably related to the conduct of the business; and
 - (e) do anything that is ancillary to the exercise of the powers referred to in paragraphs (a) to (d) as if the manager were the private building surveyor.
- (2) The manager of a private building surveyor's business may not act as a private building surveyor for a person who appointed the private building surveyor under Division 1 unless the consent of that person has been obtained.
- (3) If a person refuses consent under subsection (2), the appointment of the private building surveyor by the person is taken to be terminated.

S. 83I
inserted by
No. 15/2016
s. 41 (as
amended by
No. 21/2017
s. 105(4)).

83I Powers of entry etc.

- (1) For the purpose of exercising the manager's powers under section 83H, the manager may exercise any or all of the following powers—

- (a) to enter and remain in or on any building or land used by the private building surveyor's business for or in connection with the conduct of that business, other than any building or land of a person for whom the private building surveyor is acting as a building surveyor;
- (b) to require the private building surveyor or any partner, officer, employee or agent of the private building surveyor or any other person who has or has had control of documents relating to the appointment of the private building surveyor to give the manager—
 - (i) access to the documents the manager reasonably requires; and
 - (ii) information relating to the appointment of the private building surveyor the manager reasonably requires;
- (c) to operate equipment or facilities on the land or in the building, or to require any person on or in the land or building to operate equipment or facilities on the premises, for a purpose relevant to the management of the private building surveyor's business;
- (d) to take possession of any relevant document or thing;
- (e) to secure any relevant document or thing found in or on the building or land against interference, if the document or thing cannot be conveniently removed;
- (f) to take possession of any computer equipment or computer program reasonably required for a purpose relevant to the management of the private building surveyor's business.

- (2) A manager may enter and remain in or on a building or land under subsection (1)(a) only—
 - (a) during normal business hours; or
 - (b) during other hours with the consent of the occupier of the building or land.
- (3) A manager must not enter a building or land under subsection (1)(a) unless, before the entry, the manager has produced for inspection by the occupier—
 - (a) the manager's notice of appointment; and
 - (b) a form of identification that includes the manager's photograph and signature.
- (4) If a manager takes possession of—
 - (a) a document, disk or tape or other thing that can be readily copied; or
 - (b) a storage device the information in which can be readily copied—

under this section the manager, on request by the occupier, the private building surveyor or a person from whom it was taken, must give a copy of the thing or information to that person as soon as practicable after taking possession of it.
- (5) If a manager takes possession of a document or other thing under this section and has not provided a copy of it under subsection (4), the manager must provide a receipt for the document or thing as soon as practicable after taking possession of it.
- (6) If a manager takes possession of a document or other thing under this section, the manager may keep it until it is no longer required for the carrying out of the manager's functions.

- (7) The manager must take all reasonable steps to return the document or other thing to the person entitled to it as soon as it is no longer required for the carrying out of the manager's functions.
- (8) Nothing in this section limits any other power the manager has as a private building surveyor under Division 2 of Part 13 or the building regulations.

83J Acts of manager taken to be acts of private building surveyor

S. 83J
inserted by
No. 15/2016
s. 41.

- (1) An act done by the manager of a private building surveyor's business is, for the purpose of any proceedings or transaction that relies on that act, taken to have been done by the private building surveyor.
- (2) Nothing in this section subjects a private building surveyor or any partner, officer, employee or agent of a private building surveyor to any personal liability in relation to any act done by the manager of the private building surveyor's business.

83K Protection from liability

S. 83K
inserted by
No. 15/2016
s. 41.

A manager, or a person acting at the direction of the manager, is not liable for anything done or omitted to be done in good faith—

- (a) in carrying out a function of the manager under this Division; or
- (b) in the reasonable belief that the act or omission was in the carrying out of a function of the manager under this Division.

83L Payment of expenses of management

S. 83L
inserted by
No. 15/2016
s. 41.

- (1) The Authority must pay to the manager out of the Building account so much of the expenses of the management of the private building surveyor's business as have not otherwise been paid to the manager out of the receipts of the business.

- (2) The Authority may recover an amount paid under this section in a court of competent jurisdiction as a debt owed by the private building surveyor.
- (3) Any amount recovered under this section must be paid into the Building account.

S. 83M
inserted by
No. 15/2016
s. 41.

83M Business accounts

The regulations may make provision for or with respect to—

- (a) the accounts that are to be kept with respect to the income accrued, and the expenses incurred, by the manager of a private building surveyor's business in connection with the conduct of that business; and
- (b) the purposes for which the money in any of those accounts may be expended.

S. 83N
inserted by
No. 15/2016
s. 41.

83N Records and accounts of business under management

The manager of a private building surveyor's business must maintain the records and accounts of the business—

- (a) separately from the records and accounts of the business before the manager was appointed; and
- (b) separately from the records and accounts of any other private building surveyor's business for which the manager is appointed as manager; and
- (c) separately from the records and accounts of the manager's own business; and
- (d) in the manner prescribed by the regulations.

83O Reports by manager

S. 83O
inserted by
No. 15/2016
s. 41.

- (1) A manager must provide written reports in accordance with any reporting requirements to be observed by the manager as specified in the instrument of appointment.
- (2) If the instrument of appointment does not specify any reporting requirements, a manager must provide—
 - (a) written reports as required from time to time by the Authority; and
 - (b) a written report to the Authority at the termination of the appointment containing the information required by the Authority.
- (3) On the conclusion of the management of a private building surveyor's business, the manager must when giving the Authority the final report, lodge with the Authority all of the manager's records that relate to the management.

83P Deceased estates

S. 83P
inserted by
No. 15/2016
s. 41.

- (1) It is the duty of the manager for a private building surveyor's business to co-operate with the legal personal representative of a deceased private building surveyor for the orderly winding up of the estate.
- (2) The manager is not, in the exercise or performance of powers and duties as manager, a legal personal representative of the deceased private building surveyor, but nothing in this subsection prevents the manager from exercising or performing powers or duties as a legal personal representative if otherwise appointed as representative.

- (3) Subject to subsections (1) and (2) and to the terms of the manager's appointment, if the manager was appointed before the death of the private building surveyor, the manager's appointment, powers and duties are not affected by the death.

Subdivision 4—Termination of appointment

83Q Termination of manager's appointment

S. 83Q
inserted by
No. 15/2016
s. 41.

- (1) The appointment of a manager for a private building surveyor's business terminates in any of the following circumstances—
- (a) the term of the appointment comes to an end;
 - (b) the appointment is set aside by VCAT under this Division;
 - (c) the manager has completed the work of the private building surveyor for which the manager was appointed;
 - (d) a determination of the Authority that the appointment be terminated has taken effect.
- (2) The Authority may determine in writing that the appointment be terminated immediately or with effect from a specified date.
- (3) If the appointment terminates, the former manager must, as soon as practicable after the termination, transfer and deliver all documents of the private building surveyor to—
- (a) another manager appointed for the private building surveyor's business; or
 - (b) the private building surveyor, if another manager is not appointed for the private building surveyor's business.

- (4) The former manager need not transfer documents to the private building surveyor in accordance with subsection (3) unless the manager's expenses have been paid to the Authority.
- (5) The Authority must serve a written notice of the termination on all persons originally served with notice of the appointment.

Subdivision 5—Applications to VCAT

83R Review of decision to appoint manager

S. 83R
inserted by
No. 15/2016
s. 41.

- (1) The following persons may apply to VCAT for review of the decision of the Authority to appoint a manager for a private building surveyor's business or the conditions of that appointment—
 - (a) the private building surveyor;
 - (b) an employee of the private building surveyor;
 - (c) any other person whose interests may be adversely affected by the appointment.
- (2) The application is to be made within 7 days after notice of the appointment of the manager is served under section 83F.
- (3) On an application under this section, VCAT may—
 - (a) affirm the appointment; or
 - (b) set aside the appointment; or
 - (c) impose or vary any conditions of the appointment; or
 - (d) make any other orders it considers appropriate.

- (4) Unless VCAT otherwise directs, an application under this section for review of a decision to appoint a manager of a private building surveyor's business does not stay the operation of the decision.

S. 83S
inserted by
No. 15/2016
s. 41.

83S Directions of VCAT

VCAT may, on application by—

- (a) a manager of a private building surveyor's business; or
- (b) the private building surveyor; or
- (c) any other person affected by the management by the manager of the private building surveyor's business—

give directions in relation to any matter affecting that management or the manager's powers, duties or functions under this Division.

Subdivision 6—General

S. 83T
inserted by
No. 15/2016
s. 41 (as
amended by
No. 21/2017
s. 105(5)).

83T Confidentiality

- (1) A manager must not disclose information obtained as a result of the manager's appointment except—
- (a) so far as is necessary for exercising powers or functions of the manager; or
 - (b) as provided in subsection (2).

Penalty: 60 penalty units.

- (2) A manager may disclose information to any of the following—
- (a) any court, tribunal or other person acting judicially;
 - (b) the Authority or an employee of the Authority;
 - (c) a council or a municipal building surveyor;

- (d) the private building surveyor or any partner, employee or agent of the private building surveyor;
- (e) a person who has at any time appointed the private building surveyor under Division 1 if the information relates to that person;
- (f) another manager appointed in relation to the private building surveyor's business or a person employed by that other manager.

83U Offence to obstruct manager

A person must not without reasonable excuse hinder, obstruct or delay a manager in the carrying out of the manager's functions under this Division.

Penalty: 120 penalty units.

S. 83U
inserted by
No. 15/2016
s. 41.

83V Owner may recover money paid to private building surveyor

- (1) This section applies if an owner of a building or land has appointed a private building surveyor and paid money to that private building surveyor for the private building surveyor to carry out certain functions under section 76 relating to that building or land.
- (2) The owner may recover all or part of the money paid to the private building surveyor in a court of competent jurisdiction as a debt due to the owner if—
 - (a) the private building surveyor can no longer carry out the functions referred to in subsection (1) for any of the reasons listed in paragraphs (a) to (g) of section 83B(1); and
 - (b) before becoming unable to carry out those functions, the private building surveyor had not completed those functions; and

S. 83V
inserted by
No. 15/2016
s. 41 (as
amended by
No. 21/2017
s. 105(6)).

- (c) the uncompleted functions are not to be completed by a manager appointed under section 83B because the owner has not consented to the completion of the work by a manager.

Note

Under section 83H(2) a person who appointed a private building surveyor must consent to the manager completing the work for which the private building surveyor was appointed.

Part 7—Protection of adjoining property

84 Notice of building work to be given

- (1) An owner who is required by the building regulations to carry out protection work in respect of an adjoining property before or during the carrying out of building work for which a building permit is required must, before commencing the building work, serve on the owner of the adjoining property and the relevant building surveyor notice of the proposed building work.
- (2) The notice must include—
 - (a) prescribed details of the proposed building work as at the date of the notice; and
 - (b) prescribed details of the proposed protection work setting out the nature, location, time and duration of the protection work; and
 - (c) any other prescribed information.

S. 84(2)
substituted by
No. 66/2004
s. 9(1).

85 Adjoining owner must respond to notice

- (1) The adjoining owner, not later than 14 days after service on the adjoining owner of the notice of proposed building work, must—
 - (a) give to the owner a notice agreeing to the proposed protection work; or
 - (b) give to the owner and the relevant building surveyor a notice—
 - (i) disagreeing with the proposed protection work; or
 - (ii) requiring more information to be given to enable the proposal to be considered by the relevant building surveyor.

S. 85(1)(a)
amended by
No. 66/2004
s. 9(2).

S. 85(1)(b)
amended by
No. 66/2004
s. 9(2).

S. 85(2)
amended by
No. 21/2017
s. 99.

- (2) Subject to sections 90 and 91, an adjoining owner who fails to give a notice under subsection (1) within the required time is taken to have agreed to the proposed protection work.

S. 85(3)
inserted by
No. 66/2004
s. 9(3).

- (3) A notice given under this section must contain the prescribed information.

S. 86
amended by
No. 21/2017
s. 99.

86 Effect of agreement

If the adjoining owner agrees or is taken to have agreed to the proposed protection work, the owner may proceed to carry out the protection work after obtaining any necessary permits or approvals required by this or any other Act or the building regulations.

87 Effect of disagreement or request for further information

- (1) On receipt of a notice under section 85(1)(b), the relevant building surveyor must examine the proposal for protection work and determine the appropriateness or otherwise of the work.
- (2) If the relevant building surveyor considers it appropriate in the case of a notice under section 85(1)(b)(ii), the relevant building surveyor—
- (a) may ask the owner to give more information before making a determination under subsection (1); and
 - (b) if more information is requested, must make a copy of that information available to the adjoining owner.
- (3) In determining a matter under this section, the relevant building surveyor may make any inquiries he or she thinks fit but is not required to give any person a hearing.

- (4) The relevant building surveyor must give the owner and the adjoining owner notice in writing of a determination under this section.

88 Work not to be carried out until protection requirements met

- (1) An owner who is required by the building regulations to carry out protection work in respect of an adjoining property must not carry out any building work giving rise to that requirement until—

S. 88(1)
amended by
No. 33/2010
s. 19.

- (a) the adjoining owner agrees or is taken to agree to the protection work; or

S. 88(1)(a)
amended by
No. 21/2017
s. 99.

- (b) the matter is determined by the relevant building surveyor under this Part; or

- (c) in the case of an appeal to the Building Appeals Board in relation to the matter, the matter is determined by the Building Appeals Board.

Penalty: 500 penalty units, in the case of a natural person.

2500 penalty units, in the case of a body corporate.

Note

There is a right of appeal to the Building Appeals Board under section 141 against a determination under section 87 as to the appropriateness of protection work or a requirement under section 87 to give more information. Under section 146, a decision under section 87 in respect of which there is a right of appeal does not take effect until the end of the appeal period, or the decision is affirmed on appeal.

Note to
s. 88(1)
inserted by
No. 21/2017
s. 75,
substituted by
No. 47/2017
s. 10.

S. 88(2)
amended by
No. 33/2010
s. 19.

- (2) The owner must carry out any protection work required by the building regulations—
- (a) if the adjoining owner has agreed to the protection work, in accordance with that agreement; or
 - (b) if the relevant building surveyor has made a determination under this Part in respect of the protection work, in accordance with that determination; or
 - (c) if the Building Appeals Board has made a determination under Part 10 in respect of the protection work, in accordance with that determination.

Penalty: 500 penalty units, in the case of a natural person.

2500 penalty units, in the case of a body corporate.

89 Emergency procedures

S. 89(1)
amended by
No. 34/2013
s. 34(Sch. 1
item 11).

- (1) The Authority, on the application of an owner or adjoining owner may declare that emergency protection work is required in respect of a particular adjoining property.
- (2) Sections 84 to 88 do not apply to any emergency protection work to be carried out in accordance with a declaration under subsection (1).

S. 89(3)
amended by
No. 33/2010
s. 20.

- (3) The owner must carry out emergency protection work in accordance with—
- (a) the declaration under subsection (1); or

- (b) if the Building Appeals Board has made a determination under Part 10 in respect of the protection work, in accordance with that determination.

Penalty: 500 penalty units, in the case of a natural person.

2500 penalty units, in the case of a body corporate.

90 Absent or incapable owners

- (1) If an owner is required under the building regulations to carry out protection work in respect of an adjoining property but the adjoining owner cannot be found or is incapable of acting, the owner may apply to the Minister for the appointment of a suitable person to act as agent for the adjoining owner during the adjoining owner's absence or incapacity.
- (2) An application must be in writing and set out the circumstances of the case and the grounds of the application.
- (3) Before making an application under this section, the owner must make all reasonable inquiries to determine whether any person has been appointed as administrator for the adjoining owner under the **Guardianship and Administration Act 2019**.

S. 90(3)
amended by
Nos 52/1998
s. 311(Sch. 1
item 10.2),
13/2019
s. 221(Sch. 1
item 5.2).

91 Appointment of agent for adjoining owner

- (1) If the Minister is satisfied—
- (a) that the adjoining owner cannot, after reasonable inquiry, be found or that the adjoining owner is incapable of acting in the matter of any agreement or disagreement;
and

(b) that the owner has made all reasonable inquiries under section 90(3)—

the Minister may, in writing, appoint a suitable person to act as the agent of and in the place of the adjoining owner for the purposes of this Part.

- (2) The appointment is to be subject to such terms and conditions as to the discharge of the person's duties as agent and as to the payment of fees and otherwise as the Minister thinks fit.
- (3) The Minister must cause an agent appointed under this section to be notified in writing of—
 - (a) the appointment; and
 - (b) the nature of the agent's duties; and
 - (c) the fees to be paid to the agent by the owner; and
 - (d) any other terms and conditions to which the appointment is subject.
- (4) An adjoining owner may revoke the appointment of an agent under this section but that revocation does not affect the validity of anything done by the agent under the appointment before the revocation.

92 Adjoining owner may inspect plans

At any time after notice of intention to commence the carrying out of building work is given under this Part, the relevant building surveyor must make available to the adjoining owner, on request, for inspection, without charge, any plans, drawings and specifications of the proposed building work in the possession or control of the relevant building surveyor.

93 Owner to arrange insurance cover

- (1) Before any protection work is commenced in respect of an adjoining property, an owner must ensure that a contract of insurance is in force, in accordance with this section, against—

S. 93(1)
substituted by
No. 68/2001
s. 7(1),
amended by
No. 33/2010
s. 21(1).

- (a) damage by the proposed protection work to the adjoining property; and
- (b) any liabilities likely to be incurred to adjoining occupiers and members of the public during the carrying out of the building work and for a period of 12 months after that building work is completed.

Penalty: 500 penalty units, in the case of a natural person.

2500 penalty units, in the case of a body corporate.

- (2) The contract of insurance must be entered into with an insurer and for an amount—

- (a) agreed to by the owner and the adjoining owner; or
- (b) in the event of a dispute, determined by the Building Appeals Board under Part 10.

- (3) The owner must lodge a copy of the contract of insurance with the adjoining owner before the commencement of the protection work.

S. 93(3)
amended by
Nos 68/2001
s. 7(2)(3),
33/2010
s. 21(2),
21/2017
s. 17(1).

Penalty: 50 penalty units, in the case of a natural person;

250 penalty units, in the case of a body corporate.

S. 93(4)
substituted by
No. 68/2001
s. 7(4),
amended by
No. 33/2010
s. 21(1).

- (4) The owner must ensure that the contract of insurance is renewed or extended as often as may be necessary during the carrying out of the building work and for 12 months after that work is completed.

Penalty: 500 penalty units, in the case of a natural person.

2500 penalty units, in the case of a body corporate.

S. 93(5)
inserted by
No. 68/2001
s. 7(4),
amended by
Nos 33/2010
s. 21(2),
21/2017
s. 17(1).

- (5) The owner must lodge a copy of a document evidencing the renewal or extension of the contract of insurance with the adjoining owner as soon as it is practicable to do so after the renewal or extension.

Penalty: 50 penalty units, in the case of a natural person;

250 penalty units, in the case of a body corporate.

94 Survey of adjoining property

- (1) Before the commencement of any protection work, the owner or the owner's agent in company with the adjoining owner or the adjoining owner's agent, must—
- (a) make a full and adequate survey of the adjoining property; and
 - (b) record in writing or by any other means any of the parties desires all existing cracks and defects in the adjoining property.
- (2) The record must be signed or otherwise acknowledged as an agreed record of the condition of the adjoining property before the commencement of any protection work.

- (3) The record is admissible in evidence in any proceedings relating to the adjoining property and is evidence of the condition of the adjoining property at the time the record was made.

95 Entry on adjoining property

- (1) An owner or the agent of an owner may enter between the hours of 8 a.m. and 6 p.m. on, over, under or into the air space above any adjoining property—
- (a) to carry out any survey under section 94; or
 - (b) to carry out the protection work required by the building regulations and agreed or taken to be agreed to or determined under this Part.
- (2) The owner must give the adjoining owner not less than 24 hours' notice, or such other notice as may be agreed between the parties, before the owner or the owner's agent enters an adjoining property under subsection (1).

S. 95(1)(b)
amended by
No. 21/2017
s. 99.

S. 95(2)
amended by
Nos 33/2010
s. 22, 21/2017
s. 17(1).

Penalty: 50 penalty units, in the case of a natural person;
250 penalty units, in the case of a body corporate.

- (3) In the course of carrying out any protection work under this Part, an owner may without doing any unnecessary damage remove any furniture or fittings in the adjoining property which obstruct the carrying out of the work.

96 Adjoining owner and adjoining occupier not to obstruct owner

If notice of entry has been given in accordance with section 95(2), the adjoining owner or the adjoining occupier must not—

- (a) refuse to admit the owner or the owner's agents to the adjoining property in accordance with the notice for the purpose of carrying out the survey or protection work; or
- (b) obstruct or hinder the owner or the owner's agents in carrying out the survey or protection work on, over, under or in the air space above the adjoining property.

Penalty: 10 penalty units and in the case of a continuing offence an additional penalty of 1 penalty unit for every day that the refusal, obstruction, or hindrance continues after the day appointed for entry in the notice.

97 Expenses of adjoining owner

S. 97(1)
amended by
No. 34/1997
s. 10.

- (1) The owner must pay to the adjoining owner all costs and expenses necessarily incurred by the adjoining owner in assessing proposed protection work and in supervising the carrying out of protection work in respect of the adjoining property and—
 - (a) agreed between the adjoining owner and the owner; or
 - (b) in the absence of an agreement, determined by the Building Appeals Board under Part 10.
- (2) The costs and expenses of an adjoining owner which are agreed or determined may be recovered in a court of competent jurisdiction as a debt due to the adjoining owner.

98 Compensation

An owner must compensate any adjoining owner or adjoining occupier for inconvenience, loss or damage suffered by the adjoining owner or adjoining occupier in connection with the carrying out of protection work under this Part.

99 Liability not affected

Nothing in this Part relieves an owner from any liability to which the owner would otherwise be subject for injury to the adjoining owner or adjoining occupier because of the protection work carried out by the owner under this Part.

100 Saving for easements

Nothing in this Part relating to the carrying out of protection work (other than overhead protection work) authorises any interference with an easement of light or other easement in or relating to a party wall or prejudicially affects the right of any person to preserve any right in connection with a party wall which is demolished or rebuilt or to take any necessary steps for that purpose.

101 Lodgment of plans after completion of protection work

- (1) Not later than 2 months after the completion of any protection work carried out under this Part, the owner must serve on the adjoining owner and the relevant building surveyor a complete set of plans, drawings and specifications showing the protection work which has actually been carried out in respect of the adjoining property.

S. 101(1)
amended by
Nos 33/2010
s. 23, 21/2017
s. 17(1).

Penalty: 50 penalty units, in the case of a natural person;
250 penalty units, in the case of a body corporate.

S. 101(2)
amended by
Nos 33/2010
s. 23, 21/2017
s. 17(1).

- (2) The relevant building surveyor, within 7 days after receiving plans, drawings and specifications under subsection (1), must give a copy of those documents to the relevant council.

Penalty: 50 penalty units, in the case of a natural person;
250 penalty units, in the case of a body corporate.

Part 8—Enforcement of safety and building standards

Division 1—Emergency orders

Pt 8 Div. 1
(Heading and
ss 102–105)
amended by
No. 71/1995
s. 8 (as
amended by
No. 34/1997
s. 32),
substituted as
Pt 8 Div. 1
(Heading and
ss 102–105B)
by
No. 21/2017
s. 31.

102 Emergency orders

S. 102
substituted by
No. 21/2017
s. 31.

A municipal building surveyor may make an emergency order under this Division if the municipal building surveyor is of the opinion that the order is necessary because of a danger to life or property arising out of the condition or use or proposed use of—

- (a) a building; or
- (b) the land on which building work is being or is proposed to be carried out; or
- (c) a place of public entertainment.

103 Orders to vacate

S. 103
substituted by
No. 21/2017
s. 31.

- (1) An emergency order may—
 - (a) direct an owner or occupier to evacuate a building or land or a place of public entertainment within a specified time or times; and

(b) if an order under paragraph (a) is given, direct any person to vacate a building or land or a place of public entertainment within a specified time or times.

(2) An emergency order may also prohibit any person from entering, using or occupying a building, land or a place of public entertainment for the period determined in accordance with section 105A unless permitted by the municipal building surveyor.

S. 104
substituted by
No. 21/2017
s. 31.

104 Orders to owners, occupiers or builders

(1) An emergency order may require the owner or occupier of a building or land or a place of public entertainment—

(a) not to conduct or not to allow the conduct of a public entertainment or immediately cease to conduct a public entertainment; or

(b) to within a specified time stop building work or to carry out building work or other work necessary to make the building, land or place safe or to secure the building, land or place from access.

(2) An emergency order may require the owner of a building or land or a place of public entertainment to cause an inspection of that building, land or place to be conducted by a specified person within a specified time.

S. 104(3)
amended by
No. 46/2018
s. 39(1).

(3) An emergency order may require the owner of a building or a place of public entertainment or a builder to cause specified material used in that building or place to be tested (other than destructively tested) by a specified person within a specified time.

S. 104(4)
inserted by
No. 46/2018
s. 39(2).

(4) An emergency order may require the owner of a building or a place of public entertainment that is a building, or a builder, to, in accordance with the

regulations (if any), arrange for, within a specified time, a specified building product or material used in that building to be subjected to destructive testing conducted by a prescribed testing authority if the municipal building surveyor believes on reasonable grounds that the use of the building product or material is connected with a contravention of this Act or the regulations.

- (5) An owner or builder referred to in subsection (4) must provide the results of the destructive testing of the building product or material to the municipal building surveyor or another person authorised by the municipal building surveyor to receive the results within the time specified in the emergency order.

S. 104(5)
inserted by
No. 46/2018
s. 39(2).

105 Form and service of emergency order

S. 105
substituted by
No. 21/2017
s. 31.

- (1) An emergency order must be in writing and must contain any matters required by the regulations.
- (2) The municipal building surveyor must cause an emergency order to be served on the person to whom it is directed without delay after it is made.
- (3) The municipal building surveyor must give a copy of an emergency order to any private building surveyor appointed to perform a function in relation to a building, land or place to which the order relates.

105A Duration of order

S. 105A
inserted by
No. 21/2017
s. 31.

- (1) An emergency order under section 103 must specify a period, not exceeding 48 hours for the duration of the order.
- (2) If, before the end of the period specified in the emergency order, the municipal building surveyor issues a building notice asking an owner to show cause why entry into, or the use or occupation of, the building or place that is subject to the order

should not be prohibited, the emergency order remains in force until the earlier of—

- (a) the end of the specified period under section 108 for the building notice; or
 - (b) 14 days.
- (3) Subject to this section, an emergency order remains in force until—
- (a) it is complied with; or
 - (b) it is cancelled by—
 - (i) the municipal building surveyor under section 105B; or
 - (ii) the Building Appeals Board under section 142.

S. 105B
inserted by
No. 21/2017
s. 31.

105B Cancellation of emergency order

A municipal building surveyor may cancel an emergency order by written notice given to the person to whom the notice was directed if the order was made in error or the circumstances giving rise to the making of the order have changed.

Division 2—Building notices and building orders

106 Building notices

Subject to section 107, a municipal building surveyor or a private building surveyor may cause a building notice to be served on an owner of a building, land on which building work is being or is proposed to be carried out or a place of public entertainment if the building surveyor is of the opinion that any one of the following circumstances exists—

- (a) building work has been carried out on the building, land or place without a building permit required by this Act, or in

- contravention of a building permit or this Act or the building regulations;
- (b) the use of the building or place contravenes this Act or the building regulations;
- (ba) safety or emergency services, installations or equipment have not been maintained in accordance with the occupancy permit and the regulations;
- (c) the building or place is unfit for occupation or for use as a place of public entertainment;
- (d) the building, land or place or building work on the building, land or place is a danger to the life, safety or health of any member of the public or of any person using the building, land or place or to any property.

S. 106(ba)
inserted by
No. 21/2017
s. 32.

107 Actions by private building surveyors

- (1) A private building surveyor may only serve a building notice or make a building order under this Division in respect of a building, land or place in relation to which the private building surveyor is appointed to carry out a function under this Act.
- (2) The power for a private building surveyor to serve a building notice or make a building order in respect of a building, land or place under subsection (1) continues after a certificate of final inspection has been issued under Part 4, or an occupancy permit or temporary approval has been issued under Part 5, in relation to the building, land or place.

S. 107
amended by
No. 46/2018
s. 40 (ILA
s. 39B(1)).

S. 107(2)
inserted by
No. 46/2018
s. 40.

108 Contents and form of building notice

- (1) A building notice may require the owner of a building, land or place of public entertainment to show cause within a specified period—

S. 108(1)
substituted by
No. 21/2017
s. 33.

S. 108(1A)
inserted by
No. 21/2017
s. 33.

- (a) why entry to, or the use or occupation of the building, land or place should not be prohibited; or
 - (b) why the owner should not evacuate the building.
- (1A) A building notice may require the owner of a building, land or place of public entertainment to show cause within a specified period why the owner should not carry out building work, protection work or work required by the regulations in relation to the building, land or place.
- (2) A building notice must be in writing and must contain any matters required by the regulations.

109 Representations by owner

An owner may, in the manner specified in the notice, make representations to the relevant building surveyor about the matters contained in the notice.

110 Cancellation of building notice

The relevant building surveyor may cancel a building notice if he or she considers it appropriate to do so after considering any representations made under section 109.

111 Building orders—general

- (1) Subject to section 107, a municipal building surveyor or a private building surveyor may make a building order under this section after the end of the time allowed by the building notice for making representations.
- (2) Before making an order, the relevant building surveyor must consider any representations made by the owner concerned.

- | | |
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| (3) A building order under this section may—

(a) direct an owner or occupier to evacuate a building or land or a place of public entertainment within a specified time or times; and

(b) if an order under paragraph (a) is given, direct any person to vacate a building or land or a place of public entertainment within a specified time or times. | S. 111(3)
substituted by
No. 21/2017
s. 34. |
| (4) A building order under this section may prohibit any person from entering, using or occupying a building, land or a place of public entertainment for a specified period unless permitted by the municipal building surveyor. | S. 111(4)
inserted by
No. 21/2017
s. 34. |
| (5) A building order under this section may direct the owner of a building, land or a place of public entertainment to carry out building work, protection work or other work required by the regulations in relation to the building, land or place. | S. 111(5)
inserted by
No. 21/2017
s. 34. |
| (6) A building order may require the owner of a building or land or a place of public entertainment to cause an inspection of that building, land or place to be conducted by a specified person within a specified time. | S. 111(6)
inserted by
No. 21/2017
s. 34. |
| (7) A building order may require the owner of a building or a place of public entertainment or a builder to cause specified material used in that building or place to be tested (other than destructively tested) by a specified person within a specified time. | S. 111(7)
inserted by
No. 21/2017
s. 34,
amended by
No. 46/2018
s. 41(1). |
| (8) A building order may require the owner of a building or a place of public entertainment that is a building, or a builder, to, in accordance with the regulations (if any), arrange for, within a specified time, a specified building product or material used | S. 111(8)
inserted by
No. 46/2018
s. 41(2). |

in that building to be subjected to destructive testing conducted by a prescribed testing authority if the relevant building surveyor believes on reasonable grounds that the use of the building product or material is connected with a contravention of this Act or the regulations.

S. 111(9)
inserted by
No. 46/2018
s. 41(2).

- (9) An owner or builder referred to in subsection (8) must provide the results of the destructive testing of the building product or material to the relevant building surveyor or another person authorised by the relevant building surveyor to receive the results within the time specified in the building order.

112 Building orders to stop building work

- (1) Subject to section 107, a municipal building surveyor or a private building surveyor may make a building order that requires an owner or other person to stop building work.
- (2) The order may be made if, in the opinion of the relevant building surveyor, the building work—
- (a) contravenes this Act or the building regulations; or
 - (b) is a danger to the life, safety or health of any member of the public or any person using the building, land or place or to any property; or
 - (c) affects the support of any adjoining property.
- (3) The order may be made without first serving a building notice.
- (4) The order may be made even if a building order has been made under section 111 in respect of the building work or the building, land or place on which the building work is being carried out.
- (5) If an order to stop building work is made under this section, the person to whom it is directed must stop the building work except—

S. 112(5)
substituted by
No. 21/2017
s. 35.

- (a) building work carried out in compliance with an order under section 111 in relation to the building work; or
 - (b) building work carried out in compliance with a direction to fix building work; or
 - (c) building work exempted by the building surveyor under subsection (6).
- (6) The relevant building surveyor may exempt any part of the building work from a building order under this section if the relevant building surveyor considers that it is necessary for the building work to be carried out—
- (a) in the interests of the safety or security of the building, land or place on which the building work is being carried out; or
 - (b) in the interests of the safety or health of any member of the public; or
 - (c) to prevent a nuisance to members of the public or occupiers of nearby properties.

S. 112(6)
inserted by
No. 21/2017
s. 35.

113 Building orders—minor work

Subject to section 107, a municipal building surveyor or a private building surveyor may make a building order requiring the owner of a building, land on which building work is being or is proposed to be carried out or a place of public entertainment to carry out building work, protection work or other work required by the regulations to be carried out without first serving a building notice if the building surveyor is of the opinion that the work required to be carried out is of a minor nature.

S. 113
amended by
No. 21/2017
s. 36.

114 Form and service of building order

- (1) A building order—
 - (a) must be in writing; and
 - (b) must specify the time or times within which the order must be complied with; and
 - (c) must contain any other matters required by the regulations.
- (2) The relevant building surveyor must cause a building order to be served on the person to whom it is directed without delay after it is made.

115 Failure to comply with order by private building surveyor

S. 115(1)
amended by
No. 34/2013
s. 34(Sch. 1
item 12).

- (1) If a person fails to comply with a building order made by a private building surveyor, the private building surveyor must refer the matter to the Authority and must take no further action in respect of the matter under this Part.
- (2) A referral under subsection (1) must be made within 14 days after the final date for compliance specified in the order.

116 Amendment or cancellation of certain building orders

- (1) An owner who is required to comply with a building order may, if there is a change in circumstances after the service of the order, request the relevant building surveyor to amend or cancel the building order.
- (2) On a request being made, the relevant building surveyor may—
 - (a) amend or cancel the building order; or
 - (b) refuse to amend or cancel the building order.

- | | |
|---|---|
| (3) The relevant building surveyor is taken to have refused a request under this section if he or she has not decided the request within the prescribed time. | S. 116(3)
amended by
No. 21/2017
s. 99. |
| (4) The relevant building surveyor must inform the owner in writing without delay of the relevant building surveyor's decision under subsection (2). | S. 116(4)
inserted by
No. 21/2017
s. 37. |

117 Duration of order

A building order remains in force, and, if amended, remains in force as amended, until—

- (a) it is complied with; or
- (b) it is cancelled by the relevant building surveyor or the Building Appeals Board.

Division 3—General

118 Contravention of emergency order or building order

- | | |
|--|---|
| (1) A person to whom an emergency order or building order is directed must comply with that order.

Penalty: 500 penalty units, in the case of a natural person.

2500 penalty units, in the case of a body corporate. | S. 118(1)
amended by
No. 33/2010
s. 24. |
| (2) A person must not occupy a building, land or place in contravention of an emergency order or building order.

Penalty: 500 penalty units, in the case of a natural person.

2500 penalty units, in the case of a body corporate. | S. 118(2)
amended by
No. 33/2010
s. 24. |
| (3) It is a sufficient defence to a prosecution under this section in relation to a public entertainment if the accused satisfies the court that he or she was unaware and ought not reasonably to have been | S. 118(3)
amended by
No. 68/2009
s. 97(Sch.
item 13). |

aware of the fact that the public entertainment was the subject of an emergency order under this Part.

S. 118A
inserted by
No. 15/2016
s. 51.

118A Building notices and building orders to be last resort

A municipal building surveyor or private building surveyor must not cause a building notice to be served on an owner or make a building order in relation to the carrying out of building work unless—

- (a) a direction to fix the building work was given under Division 2 of Part 4 and it is clear that the direction will not be complied with; or
- (b) the municipal building surveyor or private building surveyor is satisfied that it is either not possible or not appropriate to give a direction to fix the building work under that Division.

119 Building permit not required

Despite anything to the contrary in this Act or the building regulations, a person who carries out work in accordance with an emergency order or building order in force under this Part is not required to obtain a building permit or comply with the building regulations unless the relevant building surveyor so directs.

120 Completion of work required by emergency order or building order

S. 120(1)
amended by
No. 33/2010
s. 25.

- (1) On completion of the work required to be carried out by an emergency order or building order, the owner must notify the relevant building surveyor in writing, without delay.

Penalty: 50 penalty units.

- (2) The relevant building surveyor must inspect the notified work and—
 - (a) report to the relevant council that the order has been fully complied with; or
 - (b) require the order to be fully complied with.

121 Work may be carried out by municipal building surveyor

If an owner fails to carry out work as required by an emergency order or building order made by a municipal building surveyor, the municipal building surveyor may cause that work to be carried out.

122 Minister may authorise action where immediate danger

If the Minister reasonably believes that a building or place of public entertainment presents an immediate danger to life or property and the owner—

- (a) cannot immediately be contacted; or
- (b) is unwilling or unable to take immediate action to comply with an emergency order—

the Minister may require a municipal building surveyor to take any necessary action.

123 Recovery of costs

- (1) If a municipal building surveyor carries out any work or takes any action under this Division, the relevant council may recover the costs of carrying out the work or taking the action from the owner in a court of competent jurisdiction as a debt due to the council.
- (2) If a municipal building surveyor carries out any work or takes any action under this Division, the relevant council may apply any sum or part of any sum for which a bond or undertaking is deposited

with the council under a condition imposed on a permit under section 22 towards the costs of carrying out the work or taking the action.

124 Police assistance

S. 124(1)
amended by
No. 37/2014
s. 10(Sch.
item 9.2).

- (1) A municipal building surveyor may request the assistance of a police officer, and a police officer may assist—
 - (a) in evacuating a building, land or place of public entertainment in accordance with an emergency order; or
 - (b) in removing persons from a building, land or place of public entertainment in or on which the municipal building surveyor or any person assisting the building surveyor is carrying out work or taking any action in accordance with an emergency order or building order.

S. 124(2)
amended by
No. 37/2014
s. 10(Sch.
item 9.2).

- (2) A police officer may use reasonable force in carrying out a function under subsection (1).

125 Relevant building surveyor to notify council

S. 125(1)
amended by
Nos 33/2010
s. 26, 21/2017
s. 17(1).

- (1) The relevant building surveyor, within 7 days after making any emergency order, building notice or building order under this Part, must give to the relevant council a copy of the notice or order.

Penalty: 50 penalty units, in the case of a natural person;

250 penalty units, in the case of a body corporate.

- (2) The relevant building surveyor, within 7 days after an emergency order, building notice or building order under this Part has been fully complied with or is amended or cancelled,

must give a written notice of the compliance,
amendment or cancellation to the relevant council.

126 Register of orders

- (1) The relevant council must keep a register of all emergency orders, building notices or building orders given to the council under this Part.
- (2) The council must make the register available for inspection by any person during normal office hours.

Part 9—Liability

Division 1—Immunity

127 Immunity for Commissioners and staff

S. 127
amended by
No. 34/2013
s. 20,
substituted by
No. 21/2017
s. 76.

- (1) A Commissioner or any person appointed or engaged by the Authority is not liable for anything done or omitted to be done in good faith—

S. 127(1)(a)
amended by
No. 26/2019
s. 118.

- (a) in carrying out a function under this Act or the regulations or the **Professional Engineers Registration Act 2019** or regulations made under that Act; or

S. 127(1)(b)
amended by
No. 26/2019
s. 118.

- (b) in the reasonable belief that the act or omission was in the carrying out of a function under this Act or the regulations or the **Professional Engineers Registration Act 2019** or regulations made under that Act.

- (2) Any liability resulting from an act or omission that would, but for subsection (1), attach to a Commissioner or a person appointed or engaged by the Authority attaches instead to the Authority.

S. 127AA
inserted by
No. 11/2023
s. 20.

127AA Immunity for Building Monitor and acting Building Monitor

- (1) The Building Monitor or an acting Building Monitor is not liable for anything done or omitted to be done in good faith—
- (a) in carrying out a function under this Act or the regulations; or
- (b) in the reasonable belief that the act or omission was in the exercise of carrying out a function under this Act or the regulations.

- (2) Any liability resulting from an act or omission that would, but for subsection (1), attach to the Building Monitor or an acting Building Monitor attaches instead to the State.

127A Immunity for members of public authorities and staff

S. 127A
inserted by
No. 21/2017
s. 76.

- (1) A member of a public authority or any person appointed or engaged by a public authority is not liable for anything done or omitted to be done in good faith—
- (a) in carrying out a function under this Act or the regulations; or
 - (b) in the reasonable belief that the act or omission was in the carrying out of a function under this Act or the regulations.
- (2) Any liability resulting from an act or omission that would, but for subsection (1), attach to a member of a public authority or a person appointed or engaged by a public authority attaches instead to the public authority.
- (3) In this section **public authority** does not include a council.

128 Immunity for building surveyor relying on certificate

S. 128
amended by
No. 26/2019
s. 119.

A municipal building surveyor or a private building surveyor appointed under Part 6 is not liable for anything done or omitted to be done in good faith in reliance on a certificate given by a registered building practitioner or endorsed building engineer under section 238.

S. 128A
inserted by
No. 11/2023
s. 40.

128A Immunity for building surveyor in relation to approving a draft building manual

A relevant building surveyor is not liable for anything done or omitted to be done in good faith in approving a draft building manual under section 41B(1).

Pt 9 Div. 2
(Heading)
substituted by
No. 54/2007
s. 5.

Division 2—Limitation of actions

129 Definitions

In this Division—

building action means an action (including a counter-claim) for damages for loss or damage arising out of or concerning defective building work;

building work includes the design, inspection and issuing of a permit in respect of building work⁶.

130 Division not to affect certain matters

Nothing in this Division—

- (a) applies to or affects any right to recover damages for death or personal injury arising out of or concerning defective building work; or
- (b) affects the operation of any immunity given by Division 1.

S. 131
amended by
Nos 2/1996
s. 9, 52/1998
s. 311(Sch. 1
item 10.3),
repealed by
No. 60/2003
s. 17.

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Ss 132, 133
repealed by
No. 60/2003
s. 17.

134 Limitation on time when building action may be brought

(1) Despite any thing to the contrary in the **Limitation of Actions Act 1958** or in any other Act or law, a building action cannot be brought more than 10 years after the date of issue of the occupancy permit in respect of the building work (whether or not the occupancy permit is subsequently cancelled or varied) or, if an occupancy permit is not issued, the date of issue under Part 4 of the certificate of final inspection of the building work.

S. 134(1)
amended by
No. 31/2020
s. 53 (ILA
s. 39(B)(1)).

(2) Despite subsection (1), a building action may be brought more than 10 years but less than 15 years after the date of issue of the occupancy permit in respect of the building work (whether or not the occupancy permit is subsequently cancelled or varied) or, if an occupancy permit is not issued, the date of issue under Part 4 of the certificate of final inspection of the building work if—

S. 134(2)
inserted by
No. 31/2020
s. 53,
amended by
No. 40/2021
s. 49A(1).

(a) the building action is a cladding building action; and

(b) the building action has become or becomes prohibited on or after 16 July 2019 but before 1 December 2023 by this section as in force at any time before the commencement of section 49A of the **Building Amendment (Registration and Other Matters) Act 2021**.

S. 134(2)(b)
substituted by
No. 40/2021
s. 49A(2).

S. 134(3)
inserted by
No. 31/2020
s. 53.

(3) In this section—

cladding building action means a building action in connection with, or otherwise related to, a product or material that is, or could be, a non-compliant or non-conforming external wall cladding product.

S. 134A
inserted by
No. 39/1996
s. 6.

134A Limitation on time when plumbing action may be brought

Despite anything to the contrary in the **Limitation of Actions Act 1958** or in any other Act or law, if a compliance certificate is issued in respect of plumbing work under Part 12A, an action (including a counter-claim) for damages for loss or damage arising out of or concerning any defects in the work cannot be brought more than 10 years after the date of issue of the certificate.

Division 3—Insurance

S. 135
substituted by
No. 91/1995
s. 139.

135 Order requiring insurance

(1) The Minister may, by order published in the Government Gazette—

S. 135(1)(a)
amended by
No. 26/2019
s. 120(1).

- (a) require building practitioners in specified categories or classes of building practitioners or any part of a class or category of building practitioners or any persons in a specified category or class of engineers engaged in the building industry to be covered by insurance; and
- (b) require specified classes of persons to whom section 137B or 137D applies to be covered by insurance for the purposes of that section; and

- (c) specify the kinds and amount of insurance by which building practitioners and persons in each specified category or class or part of a category or class are required to be covered.
- (2) An order under subsection (1) or subsection (4) must state the date of taking effect of the order which must not be earlier than one month after the date of publication of the order in the Government Gazette.
- (3) The Minister may in a particular case vary any excess specified in an order under subsection (1) if the Minister is satisfied that it is appropriate to do so.
- (4) The Minister may, by order published in the Government Gazette, amend or revoke an order made under subsection (1).
- (5) The Minister may consult with the Authority before making an order under this section.
- (6) For the purposes of this Act, a person is covered by the required insurance if—
- (a) the person holds the required insurance; or
 - (b) the building work carried out by or on behalf of the person is covered by the required insurance; or
 - (c) in the case of a person who manages or arranges the carrying out of domestic building work, the work carried out by the person and the building work which the person manages or arranges is covered by the required insurance; or
 - (d) the person is not a party to the required insurance but is specified or referred to in the insurance, whether by name or otherwise, as

S. 135(2)
amended by
No. 36/2002
s. 9(1).

S. 135(4)
substituted by
No. 36/2002
s. 9(2).

S. 135(5)
amended by
No. 15/2016
s. 18(1).

a person to whom the insurance cover extends.

(7) In this section **insurance** includes—

- (a) professional indemnity insurance;
- (b) a performance bond;
- (c) a guarantee;
- (d) an indemnity;
- (e) public liability insurance;
- (f) insurance relating to a particular building work project;
- (g) insurance taken out by any body or person which relates to the work of a building practitioner or an engineer engaged in the building industry;
- (h) any agreement or instrument in the nature of an item set out in paragraphs (a) to (g).

S. 135(7)(g)
amended by
No. 26/2019
s. 120(2).

136 Offence to work as building practitioner or engineer without required insurance

S. 136
(Heading)
inserted by
No. 26/2019
s. 121(1).

S. 136
substituted by
No. 91/1995
s. 140.

- (1) A building practitioner (other than a builder carrying out domestic building work) must not carry out work as a building practitioner unless the building practitioner is covered by the required insurance.

Penalty: 500 penalty units, in the case of a natural person.

2500 penalty units, in the case of a body corporate.

S. 136(1)
amended by
Nos 33/2010
s. 27, 4/2024
s. 7(1).

- (2) A builder must not carry out domestic building work under a major domestic building contract unless the builder is covered by the required insurance.

S. 136(2)
amended by
Nos 33/2010
s. 27, 4/2024
s. 7(2).

Penalty: 500 penalty units, in the case of a natural person.

2500 penalty units, in the case of a body corporate.

- (3) Despite section 135(6), a builder referred to in subsection (2) is taken not to be covered by the required insurance if the name of that builder specified in the major domestic building contract is not identical to the name of the builder specified in the certificate of insurance from the insurer providing the required insurance in relation to the building work.

S. 136(3)
inserted by
No. 15/2016
s. 52 (as
amended by
No. 21/2017
s. 107).

- (4) A person must not practise as an engineer engaged in the building industry unless the person is covered by the required insurance.

S. 136(4)
inserted by
No. 26/2019
s. 121(2).

Penalty: 500 penalty units, in the case of a natural person;

2500 penalty units, in the case of a body corporate.

137 Offence to claim to be insured when uninsured

A building practitioner or engineer engaged in the building industry, who is not covered by the required insurance, must not hold himself or herself out as being covered by that insurance.

S. 137
amended by
Nos 91/1995
s. 141,
33/2010 s. 28,
26/2019 s. 122.

Penalty: 500 penalty units, in the case of a natural person.

2500 penalty units, in the case of a body corporate.

S. 137AA
inserted by
No. 102/2003
s. 42.

**137AA Insurance for domestic building work to be
provided by designated insurers**

S. 137AA(1)
amended by
No. 4/2024
s. 8.

(1) If an order under section 135 requires a builder to be covered by insurance relating to the carrying out of domestic building work, the insurance required by the order must be provided by a designated insurer.

(2) For the purposes of subsection (1) a designated insurer is—

(a) a general insurer within the meaning of the Insurance Act 1973 of the Commonwealth;
or

(b) a Lloyd's underwriter within the meaning of the Insurance Act 1973 of the Commonwealth authorised under that Act to carry on insurance business in Australia; or

(ba) the Victorian Managed Insurance Authority;
or

S. 137AA
(2)(ba)
inserted by
No. 33/2010
s. 29,
amended by
No. 21/2017
s. 79.

(c) an insurer specified by the Minister by notice under this section.

(3) The Minister may by notice published in the Government Gazette specify an insurer for the purposes of this section.

(4) The Minister must not specify an insurer under subsection (3) unless the Minister is satisfied that the insurer has an acceptable international credit rating and that the insurer does not carry on insurance business in Australia.

- (5) For the purposes of this section an acceptable international credit rating is a rating that—
 - (a) is provided by a credit rating agency specified under subsection (6); and
 - (b) is equal to or exceeds the rating specified in relation to that agency under subsection (6).
- (6) The Minister may by notice published in the Government Gazette—
 - (a) specify a credit rating agency for the purposes of this section; and
 - (b) specify a rating in relation to that agency.
- (7) The Minister may by notice published in the Government Gazette amend or revoke any notice published under this section.
- (8) The Minister must consult with the Minister for the time being administering the **Victorian Managed Insurance Authority Act 1996** before publishing any notice under this section.
- (9) In this section *insurance* has the same meaning as it has in section 135.
- (10) This section applies only to insurance taken out on or after the commencement of section 42 of the **Wrongs and Other Acts (Law of Negligence) Act 2003**.

137A Insurance for domestic building work

- (1) Without limiting section 135, if an order under that section requires a builder to be covered by insurance relating to the carrying out of domestic building work, the insurance required by the order may, subject to any exemptions or exclusions set out in the order, relate to losses resulting from—

S. 137A
inserted by
No. 91/1995
s. 142,
amended by
No. 4/2024
s. 9(1).

S. 137A(1)(a)
amended by
No. 52/1998
s. 311(Sch. 1
item 10.4).

(a) breaches of warranties implied into the major domestic building contract for that work under the **Domestic Building Contracts Act 1995**;

(b) domestic building work which is defective within the meaning of that Act;

(c) non-completion of the domestic building work;

S. 137A(1)(d)
amended by
Nos 17/1999
s. 22(1),
72/2010
s. 48(Sch.
item 2(1)).

(d) conduct by the builder in connection with the major domestic building contract for that work which contravenes section 18, 29, 34 or 151, or Subdivision B of Division 1 of Part 3-2, of the Australian Consumer Law (Victoria).

(2) An order under section 135 may require insurance cover of a kind referred to in—

(a) subsection (1)(a) to extend to each person who is or may become entitled to the benefit of any of those warranties; or

(b) subsection (1)(b) to extend to any person on whose behalf the domestic building work is being carried out and to the owner for the time being of the building or land in respect of which the building work was being carried out.

S. 137A(2A)
inserted by
No. 4/2024
s. 9(2).

(2A) An order under section 135 may require a builder to be covered by insurance relating to the carrying out of domestic building work only in the circumstances specified in the order including if the cost of carrying out the domestic building work will exceed an amount of money specified in the order.

	*	*	*	*	*	S. 137A(3) inserted by No. 26/2001 s. 9(1), repealed by No. 21/2017 s. 100(1).
(4) A reference—						S. 137A(3) inserted by No. 17/1999 s. 22(2), renumbered as s. 137A(4) by No. 11/2002 s. 3(Sch. 1 item 6.2), substituted by No. 72/2010 s. 48(Sch. item 2(2)).
(a) in any order made under section 135; or						
(b) in any instrument or agreement which is required insurance—						
to "section 9, 11 or 12 of the Fair Trading Act 1999 " is, to the extent that it relates to any period on or after the commencement of section 8 of the Fair Trading Amendment (Australian Consumer Law) Act 2010 , taken to include a reference to "section 18, 29, 34 or 151 of the Australian Consumer Law (Victoria)".						
137B Offence for owner-builder to sell building without report or insurance						S. 137B inserted by No. 91/1995 s. 142.
(1) This section does not apply to—						
(a) the construction of a building (other than a home) by—						
(i) a registered building practitioner (other than a provisionally registered builder subcontractor or a registered builder subcontractor); or						S. 137B(1)(a)(i) amended by Nos 46/2018 s. 8, 40/2021 s. 11.
(ii) an architect registered under the Architects Act 1991 ; or						
(iii) an endorsed building engineer; or						S. 137B(1)(a)(iii) inserted by No. 26/2019 s. 123(1).
(b) except as provided in subsection (5), the construction of a home under a major domestic building contract; or						

S. 137B(1)(c)
substituted by
No. 52/1998
s. 311(Sch. 1
item 10.5),
amended by
No. 21/2017
s. 96(1).

- (c) a building that is exempted from the operation of this section by VCAT under the **Domestic Building Contracts Act 1995**; or

S. 137B(1)(d)
amended by
No. 21/2017
s. 100(2)(a).

- (d) a building to which section 137E applies.

S. 137B(1)(e)
repealed by
No. 21/2017
s. 100(2)(b).

* * * * *

- (2) A person who constructs a building must not enter into a contract to sell the building under which the purchaser will become entitled to possess the building (or to receive the rent and profits from the building) within the prescribed period unless—

- (a) in the case of a person other than a registered building practitioner—

- (i) the person has obtained a report on the building from a prescribed building practitioner that contains the matters that are required by the Minister by notice published in the Government Gazette; and
- (ii) the person obtained the report not more than 6 months before the person enters into the contract to sell the building; and
- (iii) the person has given a copy of the report to the intending purchaser; and

- (b) the person is covered by the required insurance (if any); and

- (c) the person has given the purchaser a certificate evidencing the existence of that insurance; and
- (d) in the case of a contract for the sale of a home, the contract sets out the warranties implied into the contract by section 137C.

Penalty: 100 penalty units.

- (3) A contract entered into in contravention of subsection (2) is not void by reason only of the contravention but is voidable at the option of the purchaser at any time before completion of the contract.

- (4) A person who enters into a major domestic building contract with a builder for the construction of more than 4 homes may, with the consent of the builder, apply in writing to the Director of Consumer Affairs Victoria within the meaning of the **Australian Consumer Law and Fair Trading Act 2012** to exempt the builder from the requirement to be covered by the required insurance in respect of that building work.

S. 137B(4)
amended by
Nos 17/1999
s. 22(3),
35/2000 s. 42,
30/2003
s. 82(1),
21/2012
s. 239(Sch. 6
item 5.1).

- (5) If, on an application under subsection (4), the Director of Consumer Affairs Victoria, in writing, exempts a builder from the requirement to be covered by insurance in respect of building work—

S. 137B(5)
amended by
Nos 17/1999
s. 22(4),
35/2000 s. 42,
30/2003
s. 82(1).

- (a) the builder is not required to be covered by the required insurance in respect of that building work; and
 - (b) this section (except subsection (2)(a)) applies to the sale of a home constructed under that major domestic building contract.

S. 137B(5AA)
inserted by
No. 36/2008
s. 3(1).

(5AA) A reference in subsection (2) to a person who constructs a building includes a reference to—

- (a) a mortgagee in possession of the land on which the building is situated; and
- (b) an executor or administrator of the estate of the person who constructed the building.

S. 137B
(5AAB)
inserted by
No. 36/2008
s. 3(1).

(5AAB) A mortgagee, executor or administrator referred to in subsection (5AA) may rely on anything which was done by the person who constructed the building under subsection (2)(a) in the 6 months before a contract of sale is entered into by the mortgagee, executor or administrator as if it had been done by the mortgagee, executor or administrator.

S. 137B(5A)
inserted by
No. 26/2001
s. 9(2),
repealed by
No. 21/2017
s. 100(1).

* * * * *

(6) This section applies whether or not the construction of the building is complete at the date of the contract of sale.

(7) In this section—

S. 137B(7)
def. of
*certified
date of
commence-
ment*
inserted by
No. 36/2008
s. 3(2).

certified date of commencement, in relation to a building, means the date certified by the owner of the building by statutory declaration as the date of commencement of the building work for the construction of the building;

completion date means—

- (a) the date of issue of the occupancy permit in respect of the building (whether or not the occupancy permit is subsequently cancelled or varied); or

- (b) if an occupancy permit is not issued, the date of issue under Part 4 of the certificate of final inspection of the building work for the construction of the building;

construct in relation to a building, means—

- (a) build, rebuild, erect or re-erect the building; or
- (b) make alterations to the building; or
- (c) enlarge or extend the building; or
- (d) cause any other person to do anything referred to in paragraph (a), (b) or (c) in relation to the building; or
- (e) manage or arrange the doing of anything referred to in paragraph (a), (b) or (c) in relation to the building;

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S. 137B(7)
def. of *home*
amended by
No. 52/1998
s. 311(Sch. 1
item 10.6),
repealed by
No. 11/2023
s. 21.

prescribed period means—

- (a) in relation to a contract for the sale of a building on which domestic building work has been carried out—
 - (i) 6 years and 6 months (or such longer period (not exceeding 10 years) as is prescribed) after the completion date for the construction of the building; or

S. 137B(7)
def. of
prescribed period
amended by
Nos 2/1996
s. 10(1),
75/1998 s. 19,
36/2008
s. 3(3).

- (ii) if neither an occupancy permit nor a certificate of final inspection is issued or required to be issued in respect of the construction of the building—
 - (A) 7 years after the date of the issue of the building permit in respect of the construction of the building; or
 - (B) if a building permit is not issued or required to be issued in respect of the construction of the building, 6 years and 6 months after the certified date of commencement for the building; and
- (b) in relation to a contract for the sale of any other building—10 years after the completion date for the construction of that building;

S. 137B(7)
def. of
*prescribed
building
practitioner*
amended by
Nos 2/1996
s. 10(2),
52/1998
s. 311(Sch. 1
item 10.6),
26/2019
s. 123(2).

prescribed building practitioner means—

- (a) an architect registered under the **Architects Act 1991**; or
- (b) a building surveyor or a building inspector registered under Part 11; or
- (ba) an endorsed building engineer; or
- (c) a person recognised by the Minister under section 28 of the **House Contracts Guarantee Act 1987** by order in force immediately before the commencement of section 166 of the **Domestic Building Contracts Act 1995**.

**137C Warranties for purposes of homes under
section 137B**

S. 137C
inserted by
No. 91/1995
s. 142.

- (1) The following warranties are part of every contract to which section 137B applies which relates to the sale of a home—
 - (a) the vendor warrants that all domestic building work carried out in relation to the construction by or on behalf of the vendor of the home was carried out in a proper and workmanlike manner; and
 - (b) the vendor warrants that all materials used in that domestic building work were good and suitable for the purpose for which they were used and that, unless otherwise stated in the contract, those materials were new; and
 - (c) the vendor warrants that that domestic building work was carried out in accordance with all laws and legal requirements, including, without limiting the generality of this warranty, this Act and the regulations.
- (2) In addition to the purchaser under a contract to which section 137B applies, any person who is a successor in title to the purchaser may take proceedings for a breach of the warranties listed in subsection (1) as if that person were a party to the contract.
- (3) A provision of an agreement or instrument that purports to restrict or remove the right of a person to take proceedings for a breach of any of the warranties listed in subsection (1) is void to the extent that it applies to a breach other than a breach that was known or ought reasonably to have been known to the person to exist at the time the agreement or instrument was executed.

S. 137D
inserted by
No. 91/1995
s. 142.

137D Insurance requirements for the purposes of homes under section 137B

- (1) Without limiting section 135, if an order under that section requires a person to whom section 137B applies to be covered by insurance for the purposes of section 137B in respect of the sale of a home the insurance required by that order—
 - (a) may, subject to any exemptions or exclusions set out in the order, relate to losses resulting from breaches of warranties implied into the contract for the sale of the home under section 137C; and
 - (b) must provide that the insurer is not liable in respect of any defect which is referred to in the report provided to the purchaser under section 137B, if a report is required under that section.
- (2) An order under section 135 may require insurance cover of a kind referred to in subsection (1)(a) to extend to each person who is or may become entitled to the benefit of any of those warranties.

S. 137E
inserted by
No. 91/1995
s. 142,
amended by
No. 33/2010
s. 30.

137E Insurance requirements for home sold before completion

A person must not enter into a contract for the sale by the person of land on which a home is being constructed, or is to be constructed, if the contract provides for or contemplates that the construction of the home will be completed before the completion of the contract unless—

S. 137E(a)
amended by
Nos 2/1996
s. 11 (as
amended by
No. 34/1997
s. 33(1)),
21/2017
s. 100(3)(a).

- (a) the home is being constructed under a major domestic building contract or the contract of sale is a major domestic building contract or provides that the home is to be constructed under a major domestic building contract.

* * * * *

S. 137E(b)
repealed by
No. 21/2017
s. 100(3)(b).

Penalty: 120 penalty units.

Division 4—Cladding rectification subrogation

Pt 9 Div. 4
(Heading and
ss 137F,
137G)
inserted by
No. 43/2019
s. 9.

137F Subrogation

S. 137F
inserted by
No. 43/2019
s. 9.

- (1) This section applies if, after the commencement of section 54 of the **Cladding Safety Victoria Act 2020**, Cladding Safety Victoria pays an amount to an owner of a building (the *payee*) by way of a grant of financial assistance in relation to cladding rectification work on the building.
- (2) When the financial assistance is paid to the payee, the Crown is subrogated to all the rights and remedies of the payee against any person in relation to the installation or use of any non-compliant or non-conforming external wall cladding product, or other building work, that required the cladding rectification work to be undertaken.
- (3) If a right or remedy to which the Crown is subrogated under this section is exercisable against an entity that is not an individual, it is enforceable jointly and severally against the entity and the people who were its officers at the time the act or omission that gave rise to the right or remedy occurred.

S. 137F(1)
substituted by
No. 31/2020
s. 54(1).

S. 137F(2)
amended by
No. 31/2020
s. 54(2).

- (4) If it is proved that an act or omission by an entity occurred without the knowledge or consent of an officer of the entity, a right or remedy is not enforceable as provided by subsection (3) against the officer in relation to the act or omission.
- (5) The Crown may exercise its rights and remedies under this section in its own name or in the name of the payee.
- (6) If the Crown brings proceedings under this section in the name of the payee, the Crown must indemnify the payee against any costs awarded against the payee in the proceedings.
- (7) If, in exercising its rights and remedies under this section, the Crown recovers more money than the amount of financial assistance paid to the payee, the Crown must pay the difference to the payee after deducting costs incurred to recover the money.
- (8) The payment of an amount referred to in subsection (1) in relation to cladding rectification work does not affect any right or remedy of the Crown by virtue of subsection (2) to recover from a person in relation to the installation or use of any non-compliant or non-conforming external wall cladding product, or other building work, that required the cladding rectification work to be undertaken.
- (9) A reference in this section to the rights of a payee includes any right the payee may have under section 86 of the **Sentencing Act 1991**.
- (9A) Despite the amendment of this section by section 54 of the **Cladding Safety Victoria Act 2020**, any right of subrogation conferred on the Crown under this section as in force immediately before its amendment continues to have effect.

S. 137F(9A)
inserted by
No. 31/2020
s. 54(3).

(10) In this section—

officer—

S. 137F(10)
def. of *officer*
amended by
No. 31/2020
s. 54(4)(a).

- (a) in relation to an entity that is a corporation—means an officer of the corporation within the meaning of section 9 of the Corporations Act; or
- (b) in relation to an entity that is neither an individual nor a corporation—means an officer of the entity within the meaning of section 9 of the Corporations Act.

* * * * *

S. 137F(10)
def. of
relevant time
repealed by
No. 31/2020
s. 54(4)(b).

137G Repayment of financial assistance

S. 137G
inserted by
No. 43/2019
s. 9.

(1) This section applies if—

- (a) a payee has been paid an amount referred to in section 137F(1) in relation to cladding rectification work; and
- (b) the payee receives or recovers from another source or sources an amount in relation to the installation or use of any non-compliant or non-conforming external wall cladding product, or other building work, that required the cladding rectification work to be undertaken, including an amount received or recovered before the commencement of this Division.

(2) Subject to subsection (3), an amount referred to in subsection (1)(b) is a debt payable by the payee to the Crown.

- (3) The total amount payable by the payee under subsection (2) cannot exceed the amount referred to in subsection (1)(a).

Part 10—The Building Appeals Board and its jurisdiction

Division 1—Rights of appeal

138 Building and occupancy permits

- (1) An appeal may be made to the Building Appeals Board against—
 - (a) the refusal or deemed refusal of a permit; or
 - (b) the imposition of a condition on a permit other than a prescribed condition or a condition required by or under this Act or the regulations to be included in a permit; or
 - (c) the amendment or cancellation of a permit; or
 - (d) the refusal or deemed refusal of an application to amend or cancel a permit; or
 - (e) the failure, within a reasonable time, to decide an application to amend or cancel a permit, if no time is prescribed within which the decision must be made.
- (2) An appeal may be made to the Building Appeals Board against a requirement of a reporting authority or relevant building surveyor to—
 - (a) give more information about a permit application; or
 - (b) amend a permit application.
- (3) If a condition of a permit leaves anything to be determined or approved by a person or body or confers any similar discretion on a person or body, an appeal may be made to the Building Appeals Board against—

- (a) the person's or body's failure, within a reasonable time, or refusal to make that determination, give that approval or exercise that discretion; or
 - (b) that determination or approval or the exercise of that discretion.
- (4) An appeal under this section may be made by—
- (a) the owner of the building or land in respect of which the permit is sought; or
 - (b) if the land in respect of which the permit is sought is a lot of a kind referred to in section 9AA(1) of the **Sale of Land Act 1962**, the purchaser under a contract of sale of that lot.
- (5) A prescribed reporting authority may appeal to the Building Appeals Board against a decision to issue a permit that differs from, or fails to implement, the authority's recommendations in a report on the application for the permit.

S. 138A
inserted by
No. 15/2016
s. 53.

138A Directions to fix building work

A person may appeal to the Building Appeals Board against a decision to give that person a written direction to fix building work under Division 2 of Part 4.

139 Temporary occupation of buildings

The owner of a building may appeal to the Building Appeals Board against—

- (a) the refusal of approval under Division 3 of Part 5 to occupy the building on a temporary basis; or

- (b) the imposition of a condition on an approval under Division 3 of Part 5, other than a prescribed condition or a condition required by or under this Act or the regulations to be included in the approval; or
- (c) the amendment or cancellation of an approval under Division 3 of Part 5; or
- (d) a failure within a reasonable time to decide an application to issue, amend or cancel an approval under Division 3 of Part 5.

140 Private building surveyors

- | | |
|--|---|
| (1) An owner who appoints a private building surveyor or a private building surveyor may appeal to the Building Appeals Board against the Authority's failure, within a reasonable time, or refusal, to consent to the termination of the building surveyor's appointment. | S. 140(1)
amended by
Nos 34/2013
s. 34(Sch. 1
item 13),
40/2021
s. 53(1). |
| (2) If under Part 6— | S. 140(2)
amended by
No. 34/2013
s. 34(Sch. 1
item 14(b)). |
| (a) an owner has notified the Authority that building work has been terminated; and | S. 140(2)(a)
amended by
No. 34/2013
s. 34(Sch. 1
item 14(a)). |
| (b) the owner proposes to appoint another private building surveyor or a municipal building surveyor in respect of that building work— | |
| that owner or building surveyor may appeal to the Building Appeals Board against the Authority's failure, within a reasonable time, or refusal to consent to that appointment. | |

141 Protection work

An owner required to carry out protection work or an adjoining owner may appeal to the Building Appeals Board against—

- (a) a determination under section 87 as to the appropriateness of the work; or
- (b) a declaration under section 89; or
- (c) a failure, within a reasonable time, or refusal to make that determination or declaration; or
- (d) a request under section 87 to give more information.

S. 141(d)
amended by
No. 21/2017
s. 95(6).

142 Building notices and orders

- (1) The owner of a building or land, may appeal to the Building Appeals Board against—
 - (a) a decision to serve a building notice on the owner under Division 2 of Part 8; or
 - (b) the failure within a reasonable time, or refusal to cancel a building notice on being requested to do so by the owner.
- (2) The owner of a building or land may appeal to the Building Appeals Board against—
 - (a) the making of a building order under Division 2 of Part 8 applying to that building or land; or
 - (b) the imposition of any condition in that order; or
 - (c) a refusal to amend or cancel that order; or
 - (d) a failure, within a reasonable time, to amend or cancel that order; or
 - (e) a requirement under Division 3 of Part 8 that the building order be fully complied with.

- (3) The owner or occupier of a building or land may appeal to the Building Appeals Board against—
- (a) a refusal of the municipal building surveyor to cancel an emergency order under Division 1 of Part 8 applying to that building or land; or
 - (b) a failure, within a reasonable time, to cancel that order.

S. 142(3)
inserted by
No. 71/1995
s. 10.

* * * * *

S. 143
amended by
No. 66/2004
s. 10,
repealed by
No. 34/2013
s. 21.

144 Appeals—Building regulations

- (1) If the building regulations leave a matter to be determined or approved by a person or body or confer a similar discretion on a person or body, the owner of the building or land who requests the determination to be made, approval to be given, or discretion to be exercised may appeal to the Building Appeals Board against—
- (a) that determination or approval or the exercise of that discretion; or
 - (b) the failure within a reasonable time, or refusal to make that determination, give that approval or exercise that discretion.
- (2) The owner of land on which a swimming pool is located may appeal to the Building Appeals Board against a determination by the relevant council of the date of construction of the swimming pool.

S. 144
amended by
No. 46/2018
s. 27 (ILA
s. 39B(1)).

S. 144(2)
inserted by
No. 46/2018
s. 27,
amended by
No. 3/2020
s. 27.

S. 144A
inserted by
No. 15/2002
s. 53.

144A Appeals—Building and Construction Industry Security of Payment Act 2002

S. 144A(1)
amended by
No. 34/2013
s. 34(Sch. 1
item 15).

- (1) A person may appeal to the Building Appeals Board against a decision of the Authority under section 42 of the **Building and Construction Industry Security of Payment Act 2002**—
- (a) to refuse an application by the person for an authority to nominate adjudicators for the purposes of that Act; or
 - (b) to withdraw the person's authority to nominate adjudicators for the purposes of that Act.

S. 144A(2)
amended by
No. 34/2013
s. 34(Sch. 1
item 15).

- (2) A person may appeal to the Building Appeals Board against a decision of the Authority under section 43 of the **Building and Construction Industry Security of Payment Act 2002**—
- (a) to impose a condition on the person's authority to nominate adjudicators for the purposes of that Act; or
 - (b) to vary a condition of the person's authority to nominate adjudicators for the purposes of that Act.

Division 2—Appeals

145 Division additional to other powers

This Division is in addition to and does not take away from any other provision of this Act about the powers or procedure of the Building Appeals Board.

146 Effect of decisions under appeal

- | | |
|---|--|
| (1) Subject to subsections (2), (2A) and (3), a decision in respect of which there is a right of appeal under Division 1 does not take effect until—

(a) the end of the appropriate prescribed appeal period, if there is no appeal; or

(b) the decision is affirmed on appeal. | S. 146(1)
amended by
Nos 71/1995
s. 11(1),
21/2017
s. 38(1). |
| (2) Unless the Building Appeals Board otherwise directs, an appeal under section 138, 138A or 139, does not stay the operation of the decision under appeal. | S. 146(2)
amended by
Nos 91/1995
s. 143, 36/2008
s. 4, 15/2016
s. 56, 21/2017
s. 80. |
| (2A) Unless the Building Appeals Board otherwise directs, an appeal under section 142(2)(a) against the making of a building order prohibiting the occupation of a building or place does not stay the operation of the decision under appeal if the order was made following the making of an emergency order in respect of the same matter. | S. 146(2A)
inserted by
No. 21/2017
s. 38(2). |
| (3) An appeal under section 142(3) does not stay the operation of the emergency order to which the appeal relates. | S. 146(3)
inserted by
No. 71/1995
s. 11(2). |

147 Fast track appeals

- | | |
|---|---|
| (1) On an appeal under Division 1 any party to the appeal may request the Building Appeals Board to begin to hear or otherwise deal with the appeal within 2 business days after the request is made. | S. 147(1)
amended by
No. 15/2016
s. 18(5). |
| (2) A request under subsection (1)—

(a) must be made in writing; and

(b) must be accompanied by the appropriate prescribed fee. | |

- (3) The Building Appeals Board may grant or refuse the request and, if it grants the request, may require the person making the request to pay—
 - (a) the reasonable costs of all the parties to the appeal for the proceedings after the request is granted; and
 - (b) if the Board hears the appeal, an additional prescribed fee for the time taken for the hearing (including any adjourned hearing) excluding the first 2 hours of hearing.

148 Nature of an appeal

- (1) An appeal under this Part is in the nature of a re-hearing.
- (2) On an appeal the Building Appeals Board may consider matters not raised before the decision under appeal was made.

149 What action can be taken on appeal?

- (1) The Building Appeals Board must consider and determine an appeal and by its determination may—
 - (a) affirm the decision under appeal; or
 - (b) quash the decision under appeal; or
 - (c) vary the decision under appeal; or
 - (d) set the decision under appeal aside and—
 - (i) substitute its own decision; or
 - (ii) remit the decision to the decision-maker for reconsideration in accordance with any directions or recommendations that it considers appropriate.

- (2) In considering and determining an appeal, the Building Appeals Board has in addition to its other powers all the powers of the decision-maker in relation to the decision under appeal.
- (3) Without limiting subsection (2), on an appeal under section 140 the Building Appeals Board has the same powers as the Authority has under Part 6 to give directions concerning transitional and other arrangements following a consent given by the Authority. S. 149(3)
amended by
No. 34/2013
s. 34(Sch. 1
item 16).
- (3A) For the purposes of this Part, if an appeal is made to the Building Appeals Board against the refusal of a building permit or the imposition of a condition on a building permit, the decision under appeal is to be taken to include the decision or report of the relevant reporting authority if— S. 149(3A)
inserted by
No. 30/2001
s. 4.
- (a) the building permit was refused because the reporting authority refused consent or the condition was imposed as a result of a recommendation in a report of the reporting authority; and
- (b) the refusal of consent, or the making of the recommendation, was based on a decision made by the reporting authority in relation to the guidelines made under section 188A.
- (4) The Building Appeals Board may make any ancillary or incidental orders that it considers necessary to give effect to its determination on an appeal.

Division 3—Disputes

150 Disputes about inspections

If a dispute arises between an owner and the relevant building surveyor about the exercise of any of the building surveyor's powers under

S. 150
amended by
No. 46/2018
s. 75(1).

section 228D(6)(ab) either of them may refer the matter to the Building Appeals Board.

151 Emergency protection work

If an owner and an adjoining owner cannot agree about how or when protection work required by declaration under section 89(1) is to be carried out, either of them may refer the matter to the Building Appeals Board.

152 Insurance

If an owner and an adjoining owner cannot agree about the nature of cover to be provided under a proposed contract of insurance under section 93 or about the amount to be insured under that contract, either of them may refer the matter to the Building Appeals Board.

153 Surveys of adjoining property

If an owner and an adjoining owner cannot agree about how or when a survey is to be carried out under section 94 or about the adequacy of a survey carried out under that section, either of them may refer the matter to the Building Appeals Board.

154 Cost of supervising protection work

If an owner and an adjoining owner cannot agree about the costs and expenses necessarily incurred by the adjoining owner in supervising protection work under Part 7, either of them may refer the matter to the Building Appeals Board.

155 Other disputes between owners and adjoining owners

If an owner and adjoining owner cannot agree in relation to a matter arising under Part 7, and the Building Appeals Board does not have jurisdiction to deal with that matter under any other provision

of this Part, either of them may refer the matter to the Building Appeals Board.

156 Disputes about the building permit levy

If a dispute arises between the applicant for a building permit and the relevant building surveyor about the building surveyor's estimate of the cost of the work for which the permit is sought either of them may refer the matter to the Building Appeals Board.

157 Application and effect of building regulations

If—

- (a) there is a dispute about a building, building work or proposed building work between all or any of the following—
 - (i) the owner of the building or the land on which the building work is being or is to be carried out;
 - (ii) the person who carries out or is to carry out the building work;
 - (iii) the relevant building surveyor;
 - (iv) the Authority; and

S. 157(a)(iv)
amended by
No. 34/2013
s. 34(Sch. 1
item 17).

- (b) the dispute concerns the application or effect of any provision of the building regulations (within the meaning of section 160) or whether any provision of the building regulations, including any binding determination that applies to that provision, is or has been complied with—

S. 157(b)
amended by
No. 11/2023
s. 7.

any of those persons may refer the matter to the Building Appeals Board.

158 Party walls

- (1) If a dispute arises between the owners of buildings with a party wall about the construction of the wall or how much of the cost of construction is to be met by each of the owners, any of the owners may refer the matter to the Building Appeals Board.
- (2) Subsection (1) is in addition to and does not take away from the **Subdivision Act 1988**.

Division 4—Other proceedings

159 Compensation—protection work

An adjoining owner who suffers inconvenience, loss or damage during the carrying out of protection work under Part 7 may apply to the Building Appeals Board for an order determining the amount (if any) of compensation for that inconvenience, loss or damage.

160 Modification of building regulations

- (1) In this section *provision of the building regulations* means—
 - (a) a provision of a regulation made under Part 2 or of a local law made under those regulations; or
 - (b) a provision of a regulation or local law made under Division 3 of Part III of the **Building Control Act 1981**; or
 - (c) a provision of a regulation or by-law made under Division 2 of Part XLIX of the **Local Government Act 1958**; or
 - (d) any other regulation or by-law that, by virtue of a provision of this Act or a corresponding previous enactment, applies or applied at a material time to building work; or

- (e) a provision of a document applied, adopted or incorporated by reference in an instrument referred to in paragraphs (a) to (d); or
 - (f) a provision of a document referred to in paragraphs (a) to (e) as modified by the Building Appeals Board under this Part, the building referees under the **Building Control Act 1981** or the referees under the Thirty-Third Schedule of the **Local Government Act 1958** or a corresponding previous enactment.
- (2) An application may be made to the Building Appeals Board for a determination that a provision of the building regulations—
- (a) does not apply; or
 - (b) applies with the modifications or variations specified in the application—
- to a building or land specified in the application.
- (3) The application may be made by—
- (a) the owner of a building or land; or
 - (b) the purchaser under a contract of sale of a lot of a kind referred to in section 9AA(1) of the **Sale of Land Act 1962**; or
 - (c) a Department Head within the meaning of the **Public Administration Act 2004**; or
 - (d) a public authority other than the Building Monitor; or
 - (e) a municipal building surveyor.

S. 160(3)(c)
amended by
Nos 46/1998
s. 7(Sch. 1),
108/2004
s. 117(1)
(Sch. 3
item 21.1).

S. 160(3)(d)
amended by
No. 11/2023
s. 22.

S. 160(4)
inserted by
No. 5/2011
s. 4.

- (4) An application must not be made under this section in relation to an access provision of the building regulations within the meaning of section 160B.

S. 160(5)
inserted by
No. 11/2023
s. 8.

- (5) A determination made by the Building Appeals Board under subsection (2)(b) in relation to a provision of the building regulations must not be inconsistent with any binding determination that applies to that provision.

S. 160A
inserted by
No. 34/1997
s. 11.

160A Application for determination in respect of building design

S. 160A(1)
amended by
No. 11/2023
s. 9(1).

- (1) An application may be made to the Building Appeals Board for a determination that a particular design of a building or an element of a building complies with a provision of this Act, the building regulations or any document applied, adopted or incorporated by a provision of the building regulations.

- (2) The application may be made by—

- (a) the owner of the building or land; or
- (b) the purchaser under a contract of sale of a lot of a kind referred to in section 9AA(1) of the **Sale of Land Act 1962**; or
- (c) the relevant building surveyor; or
- (d) the Authority.

S. 160A(2)(d)
amended by
No. 34/2013
s. 34(Sch. 1
item 18).

S. 160A(3)
inserted by
No. 11/2023
s. 9(2).

- (3) A determination made by the Building Appeals Board under subsection (1) in relation to a provision of this Act, the building regulations or any document applied, adopted or incorporated by a provision of the building regulations must not be

inconsistent with any binding determination that applies to that provision.

160B Application for modification of building regulations relating to access for persons with disabilities

S. 160B
inserted by
No. 5/2011
s. 5.

- (1) An application may be made to the Building Appeals Board for a determination that an access provision of the building regulations—
 - (a) does not apply; or
 - (b) applies with the modifications or variations specified in the application—to a building, or land on which a building is to be constructed, specified in the application.
- (2) The application may be made by—
 - (a) the owner of the building or land; or
 - (b) the purchaser under a contract of sale of a lot of a kind referred to in section 9AA(1) of the **Sale of Land Act 1962**; or
 - (c) a lessee of the building, who proposes to have, or is having, building work carried out in respect of the building; or
 - (d) any person acting on behalf of a person referred to in paragraph (a), (b) or (c), other than the relevant building surveyor.
- (3) An application must be made on the ground that compliance with the access provision of the building regulations would impose unjustifiable hardship on the applicant.
- (4) In determining whether compliance with an access provision of the building regulations would impose unjustifiable hardship on the applicant, the Building Appeals Board must take into account all relevant circumstances of the particular case including the following—

- (a) any additional capital, operating or other costs, or loss of revenue, that would be directly incurred by, or reasonably likely to result from, compliance with the provision;
- (b) any reductions in capital, operating or other costs, or increases in revenue, that would be directly achieved by, or reasonably likely to result from, compliance with the provision;
- (c) the extent to which the construction of the building has or will be financed by government funding;
- (d) the extent to which the building—
 - (i) is used for public purposes; and
 - (ii) has a community function;
- (e) the financial position of the applicant;
- (f) any effect that compliance with the provision is reasonably likely to have on the financial viability of the applicant;
- (g) any exceptional technical factors (such as the effect of load-bearing elements on the structural integrity of the building) or geographic factors (such as gradient or topography), affecting a person's ability to comply with the provision;
- (h) financial, staffing, technical, information and other resources reasonably available to the applicant, including any grants, tax concessions, subsidies or other external assistance provided or available;
- (i) whether the cost of alterations to make any premises accessible is disproportionate to the value of the building, taking into consideration the improved value that would result from the alterations;

- (j) benefits reasonably likely to accrue from compliance with the provision, including benefits to persons with disabilities, to building users or to other affected persons, or detriment likely to result from non-compliance;
- (k) detriment reasonably likely to be suffered by the applicant, building developer, or building manager, or by persons with disabilities or other building users, including in relation to means of access, comfort and convenience, if compliance with the provision is required;
- (l) if detriment under paragraph (k) involves loss of heritage significance, the extent to which the heritage features of the building are essential, or merely incidental, to the heritage significance of the building;
- (m) any evidence regarding efforts made in good faith by the applicant or a person required to comply with the provision, including consulting access consultants or the relevant building surveyor;
- (n) if the applicant has given an action plan (within the meaning of Part 3 of the Disability Discrimination Act 1992 of the Commonwealth) to the Authority under section 64 of that Act, the terms of the action plan and any evidence of its implementation;
- (o) the nature and results of any processes of consultation, including at local, regional, State, national, international, industry or other level, involving, or on behalf of the applicant, a building developer, building manager or the relevant building surveyor and persons with disabilities, about means of achieving compliance with the provision,

S. 160B(4)(n)
amended by
No. 34/2013
s. 34(Sch. 1
item 19).

including in relation to the factors listed in this subsection.

- (5) If a substantial issue of unjustifiable hardship is raised having regard to the factors mentioned in subsection (4), the Building Appeals Board must consider the following additional factors—
- (a) the extent to which substantially equal access to public premises is or may be provided otherwise than by compliance with the access provision of the building regulations;
 - (b) any measures undertaken, or to be undertaken, by, on behalf of, or in association with, a person or organisation in order to ensure substantially equal access.
- (6) A determination under this section must provide for compliance with an access provision of the building regulations to the maximum extent not involving unjustifiable hardship.
- (6A) A determination of the Building Appeals Board made under subsection (1)(b) in relation to an access provision of the building regulations must not be inconsistent with any binding determination that applies to that provision.
- (7) For the purposes of this section, ***unjustifiable hardship*** is to be interpreted and applied having due regard to the rights and interests of all relevant parties.
- (8) In this section—
- access provision of the building regulations*** means—
- (a) a performance requirement—
 - (i) that is contained in Section D, Part E3 or Part F2 of the Building Code of Australia Volume One as

S. 160B(6A)
inserted by
No. 11/2023
s. 10.

forming part of the building regulations; and

- (ii) in respect of which there is an equivalent performance requirement contained in the Access Code within the meaning of the Disability (Access to Premises - Buildings) Standards 2010 of the Commonwealth; and

Note

The Disability (Access to Premises - Buildings) Standards 2010 of the Commonwealth are available from the Australian Government Attorney-General's Department website at www.ag.gov.au.

- (iii) to the extent that the performance requirement relates to the provision of access to buildings and facilities and services within buildings for persons with disabilities; and

- (b) a provision of a document applied, adopted or incorporated by reference in a performance requirement referred to in paragraph (a);

applicant means a person referred to in subsection (2)(a), (b) or (c) who has applied under this section or on whose behalf another person has applied under this section;

Building Code of Australia Volume One means Volume One of the National Construction Code Series including any variations or additions in the Appendix Victoria set out in the Appendices to that Volume;

building developer means a person with responsibility for, or control over, the design or construction of the building and includes any of the following—

- (a) a building practitioner of a category referred to in paragraph (e), (f) or (h) of the definition of ***building practitioner***;
- (b) an architect within the meaning of section 3(1) of the **Architects Act 1991**;

building manager means a person with responsibility for, or control over, the management of the building.

- (9) Division 5 (other than section 161) does not apply to an application under this section.

Division 5—Powers concerning disputes and other proceedings

S. 161
amended by
No. 109/1997
s. 533(Sch. 2
item 1.1).

161 General powers

The Building Appeals Board must consider and determine a matter referred or application made to it under this Act or any other Act and may make any order that it considers appropriate in the circumstances.

162 Special powers—modification of regulations

- (1) Before determining an application under section 160 the Building Appeals Board—
 - (a) must consult—
 - (i) any authority that would be a reporting authority if the application were an application for a permit; and
 - (ii) the Authority, if the application discloses that any aspect of the matter has been considered by it; and

S. 162(1)(a)(ii)
amended by
No. 34/2013
s. 34(Sch. 1
item 20).

- (iii) if the application shows that any aspect of the matter relates to a building permit, the relevant building surveyor; and
 - (b) if the application concerns a building included in the Heritage Register established under the **Heritage Act 2017**, must consider any recommendation received from the Heritage Council before the hearing of the application; and S. 162(1)(b) amended by Nos 93/1995 s. 218(1) (Sch. 2 item 1.2), 7/2017 s. 296(3).
 - (c) may consult the municipal building surveyor; and S. 162(1)(c) amended by No. 71/1995 s. 12(1).
 - (d) may consult any other body or person. S. 162(1)(d) inserted by No. 71/1995 s. 12(1).
- (1A) The Building Appeals Board must, on the application of any party to the proceedings, make available a copy of any report or information obtained under subsection (1)(d). S. 162(1A) inserted by No. 71/1995 s. 12(2).
- (2) The Building Appeals Board must not determine that a provision of the building regulations does not apply to a building or land unless satisfied that, in the particular circumstances, the provision is inappropriate.
- (3) The Building Appeals Board must not determine that a provision of the building regulations applies to a building or land in a modified or varied form unless satisfied that to do so is reasonable and not detrimental to the public interest.
- (4) The Building Appeals Board may make its determination of an application under section 160 subject to all or any of the following conditions—

S. 162(4)(a)
amended by
No. 71/1995
s. 13(1)(a).

(a) requiring an owner of land to enter into an agreement with a reporting authority or, if there is no reporting authority, with the relevant council; or

S. 162(4)(b)
amended by
No. 71/1995
s. 13(1)(b).

(b) directing a reporting authority or council to enter into that agreement; or

(c) specifying the terms of that agreement; or

(d) any other terms and conditions that it considers appropriate.

S. 162(5)
amended by
No. 71/1995
s. 13(2).

(5) A reporting authority or council is authorised to enter into an agreement for the purposes of this section.

163 Agreements

An agreement required to be entered into by a determination under section 162—

(a) must be in writing under seal; and

(b) if its terms are not specified in the determination—

(i) must provide that the owner agrees to be bound by the covenants in the agreement; and

(ii) may prohibit, restrict or regulate the use or development of land or a building or any matter or thing related to that land or building; and

(iii) may provide that the agreement lapses at the end of a specified period, on the happening of a specified event, or when the land ceases to be used or developed for a specified purpose; and

- (iv) is subject to the provisions of this Act concerning termination and variation of agreements; and
- (c) may apply to land even though it was not the subject of the application for the determination.

164 Termination and variation of agreements

- (1) With the approval of the Building Appeals Board, an owner and a reporting authority or an owner and a council (as the case requires) may, by further agreement, terminate or vary an agreement under this Division. S. 164(1)
amended by
No. 71/1995
s. 13(3).
- (2) With the approval of the Building Appeals Board, a reporting authority or council may terminate or vary an agreement under this Division in the manner specified in the Board's approval. S. 164(2)
amended by
No. 71/1995
s. 13(4).
- (3) Subject to this section and to a term of an agreement referred to in section 163(b)(iii) an agreement cannot be terminated.
- (4) An owner, a reporting authority or a council may apply to the Building Appeals Board for approval under this section and the Board may by determination—S. 164(4)
amended by
No. 71/1995
s. 13(5).
 - (a) grant approval; or
 - (b) grant approval with conditions; or
 - (c) refuse approval.

165 Lodging and recording of agreements

- (1) Without delay after entering into an agreement under section 163 or 164 or after an agreement is terminated or varied, a reporting authority or council (as the case requires) must—S. 165(1)
amended by
No. 71/1995
s. 13(6).
 - (a) lodge a copy of the agreement or variation with the Building Appeals Board or give notice of the termination to the Board; and

S. 165(1)(b)
substituted by
No. 85/1998
s. 24(Sch.
item 6.2).

(b) apply in a form approved by the Registrar of Titles to have a recording of the agreement or the variation or termination of the agreement made in the Register.

S. 165(1)(c)
repealed by
No. 85/1998
s. 24(Sch.
item 6.2).

* * * * *

(2) On an application under this section, the Registrar of Titles must make any amendments to the Register under the **Transfer of Land Act 1958** that are necessary because of the application and may dispense with the production of any relevant certificate of title or other instrument.

S. 165(3)
amended by
No. 85/1998
s. 24(Sch.
item 6.3).

(3) Once an agreement is recorded in the Register under the **Transfer of Land Act 1958**—

(a) the burden of any covenant in the agreement (whether positive or negative) runs with the land, even though there may be no land benefited by the covenant; and

(b) any covenant in the agreement may be enforced as a restrictive covenant and binds the owner of the land and the owner's successors in title.

S. 165(4)
inserted by
No. 85/1998
s. 24(Sch.
item 6.4).

(4) The amendment of this section by section 24 of the **Transfer of Land (Single Register) Act 1998** does not affect the operation, effect or enforcement of a covenant in an agreement entered into under section 163 or 164 and registered under the **Property Law Act 1958** and existing immediately before the commencement of that section 24.

Division 6—The Building Appeals Board

166 Establishment and membership of Building Appeals Board

- (1) There is established by this Act a Board to be called the Building Appeals Board.
- (2) The members of the Building Appeals Board are to be appointed by the Governor in Council on the Minister's recommendation.
- (3) The Building Appeals Board is to consist of—
 - (a) a person appointed to be chairperson of the Board; and
 - (b) a person who, in the Minister's opinion, has experience in the building industry or in matters related to that industry, who is to be appointed deputy chairperson of the Board; and

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- (ba) at least one person who is an Australian lawyer of at least 5 years' standing; and

S. 166(3)(ba) inserted by No. 68/2001 s. 8(1), substituted by No. 18/2005 s. 18(Sch. 1 item 10.1), amended by No. 17/2014 s. 160(Sch. 2 item 11).

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- (bb) at least one person who, in the Minister's opinion, is able to represent the interests of users of the services of building practitioners; and
- (c) as many other persons as the Minister considers necessary for the purposes of this Act, and who, in the Minister's opinion, have experience in the building industry or in matters related to that industry.

S. 166(3)(bb) inserted by No. 68/2001 s. 8(1).

S. 166(4)
amended by
Nos 34/2013
s. 22(1),
15/2016
s. 18(7),
substituted by
No. 3/2020
s. 26(2).

(4) A person cannot at the same time be a member of the Building Appeals Board and be a Commissioner.

(5) A person may at the same time be a member of the Building Appeals Board and the Building Regulations Advisory Committee.

(6) Schedule 3 has effect with respect to the membership and procedure of the Building Appeals Board.

S. 167
repealed by
No. 71/1995
s. 14.

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168 Register

The Registrar of the Building Appeals Board must keep a Register of proceedings and determinations of the Board.

Part 11—Registration of building practitioners

Division 1—Offences

Pt 11 Div. 1
(Heading and
ss 169–176)
amended by
Nos 71/1995
ss 15, 16,
91/1995
ss 144–147,
18/1998 s. 4,
46/1998
s. 7(Sch. 1),
62/1998
s. 8(1),
26/2001 ss 10,
11(1), 68/2001
s. 9, 36/2002
s. 10, 35/2004
s. 35(2),
66/2004 s. 11,
108/2004
s. 117(1)
(Sch 3 item
21.1), 36/2008
ss 5–7,
33/2010 s. 31,
34/2013 ss 9,
23(1), 24,
15/2016
ss 18(1)–(4),
19–24,
21/2017 s. 81,
substituted as
Pt 11 Div. 1
(Heading and
ss 169–169J)
by
No. 21/2017
s. 7.

169 Representation in relation to registration

- (1) A person who is not registered in a particular category or class of building practitioner under this Part must not represent or imply that the person is registered in that category or class of registration.

S. 169
substituted by
No. 21/2017
s. 7,
amended by
No. 46/2018
s. 9 (ILA
s. 39B(1)).

Penalty: 500 penalty units, in the case of a natural person;
2500 penalty units, in the case of a body corporate.

S. 169(2)
inserted by
No. 46/2018
s. 9,
amended by
No. 40/2021
s. 12.

- (2) A person who is provisionally registered under this Part in a class of builder must not represent or imply that the person is registered under section 171(1)(a) or (ab) in that class of builder.

Penalty: 500 penalty units, in the case of a natural person;
2500 penalty units, in the case of a body corporate.

S. 169AA
inserted by
No. 40/2021
s. 13.

169AA Certain registered builders must not act as head builders

- (1) A provisionally registered builder subcontractor must not enter into a contract with the owner of a building or land for the carrying out of building work at that building or on that land if the cost of the building work exceeds the amount prescribed for the purposes of section 24B(2) and the building work is either—

- (a) domestic building work; or
- (b) building work that requires a building permit.

Penalty: 500 penalty units, in the case of a natural person;
2500 penalty units, in the case of a body corporate.

- (2) A registered builder subcontractor must not enter into a contract with the owner of a building or land for the carrying out of building work at that building or on that land if the cost of the building work exceeds the amount prescribed for the

purposes of section 24B(2) and the building work is either—

- (a) domestic building work; or
- (b) building work that requires a building permit.

Penalty: 500 penalty units, in the case of a natural person;
2500 penalty units, in the case of a body corporate.

- (3) For the purposes of this section, if the owner of the building or land and the builder have agreed that building work is to be carried out in stages under a series of separate contracts, the initial agreement and subsequent contracts are considered to be a single contract.

- (4) For the purposes of this section—

cost of the building work includes any increase to the contract price resulting from a variation to the building work.

169A Representation in relation to domestic building work

S. 169A
substituted by
No. 21/2017
s. 7.

A person who is not registered in a particular category or class of building practitioner under this Part must not represent or imply that the person is able to carry out domestic building work under a major domestic building contract of a kind authorised by that category or class of registration.

Penalty: 500 penalty units, in the case of a natural person;
2500 penalty units, in the case of a body corporate.

S. 169B
inserted by
No. 21/2017
s. 7.

169B Representation in relation to work as a building surveyor

A person who is not registered in a particular category or class of building surveyor under this Part must not represent or imply that the person is able to accept appointment as a building surveyor, or to carry out work as a building surveyor, of a kind authorised by that category or class of registration.

Penalty: 500 penalty units, in the case of a natural person;
2500 penalty units, in the case of a body corporate.

S. 169C
inserted by
No. 21/2017
s. 7.

169C Representation in relation to work as a building inspector

A person who is not registered in a particular category or class of building inspector under this Part must not represent or imply that the person is able to carry out work as a building inspector of a kind authorised by that category or class of registration.

Penalty: 500 penalty units, in the case of a natural person;
2500 penalty units, in the case of a body corporate.

S. 169D
inserted by
No. 21/2017
s. 7,
substituted by
No. 11/2023
s. 41.

169D Offence to carry out work as a building practitioner unless registered

- (1) A person must not carry out work that is of a kind prescribed to be carried out by a category or class of building practitioner (other than a builder) unless the person is registered under this Part in that category or class of building practitioner and the registration authorises the carrying out of that kind of work.

Penalty: 500 penalty units, in the case of a natural person;
2500 penalty units, in the case of a body corporate.

- (2) Subsection (1) does not apply to the following persons who carry out a kind of work prescribed for the purposes of subsection (1)—
- (a) a person who is authorised under this Act or the building regulations to carry out that kind of work on behalf of a building surveyor;
 - (b) a natural person who is registered as an architect under Part 3 of the **Architects Act 1991**, if the carrying out of that kind of work is an architectural service;
 - (c) a member of an approved partnership (within the meaning of the **Architects Act 1991**), if the carrying out of that kind of work is an architectural service;
 - (d) an approved company (within the meaning of the **Architects Act 1991**) or a director of such an approved company, if the carrying out of that kind of work is an architectural service;
 - (e) a person who is working under the supervision of a person who is registered as an architect under Part 3 of the **Architects Act 1991** to obtain experience on practical architectural work in order to meet the requirement in section 10(b) of that Act, if the carrying out of that kind of work is an architectural service;
 - (f) an endorsed building engineer, if the carrying out of that kind of work is a professional engineering service.

S. 169E
inserted by
No. 21/2017
s. 7,
repealed by
No. 11/2023
s. 41.

* * * * *

S. 169EA
inserted by
No. 46/2018
s. 10.

169EA Offence to carry out certain types of building work unless registered or licensed

S. 169EA(1)
amended by
No. 40/2021
s. 14(1).

- (1) A person must not carry out a type of building work that is prescribed for the purposes of this section (the **relevant building work**) unless the person—
- (a) is registered under this Part and that registration authorises the carrying out of that building work; or
 - (b) is licensed under Part 11A and that licence authorises the carrying out of that building work and the person is carrying out the building work in the course of the person's employment.

Penalty: 500 penalty units, in the case of a natural person;
2500 penalty units, in the case of a body corporate.

S. 169EA(2)
amended by
No. 40/2021
s. 14(2).

- (2) A person does not commit an offence under subsection (1) if the person is employed under a training contract to carry out relevant building work by an employer who has been approved under section 5.5.7 of the **Education and Training Reform Act 2006** by the Victorian Registration and Qualifications Authority to employ that person under the training contract.

S. 169EA(3)
inserted by
No. 40/2021
s. 14(3).

- (3) A person does not commit an offence under subsection (1) if the person applies for a registration under section 171(1)(ab) or a licence

under section 187F, which authorises the carrying out of the relevant building work, before the person completes a training contract referred to in subsection (2) to carry out that relevant building work, during the period beginning after the completion of the training contract and ending on whichever of the following days occurs latest—

- (a) the day on which the Authority determines the person's application for the registration or licence;
 - (b) if applicable, the day on which the Authority makes a reviewable decision in relation to that determination;
 - (c) if applicable, the day on which VCAT makes a decision in relation to that determination.
- (4) A person is exempt from an offence against subsection (1) in relation to the carrying out of relevant building work if—
- (a) the person has been granted an exemption by the Authority under section 169EB in relation to the carrying out of the relevant building work; and
 - (b) the person carries out the relevant building work while employed by a builder registered under section 171(1)(a) or a registered builder subcontractor, whose registration authorises the carrying out of the relevant building work and who is the employing builder referred to in the exemption including an exemption as varied by the Authority; and
 - (c) at the time of carrying out the relevant building work the exemption is in force.

S. 169EA(4)
inserted by
No. 40/2021
s. 14(3).

Note to
s. 169EA
inserted by
No. 40/2021
s. 14(4).

S. 169EB
inserted by
No. 40/2021
s. 15.

Note

See also transitional provisions in section 282(1) and (2) which provide that in certain circumstances the offence against section 169EA does not apply to a person who is not registered or licensed to carry out relevant building work.

169EB Authority may grant exemption from offence against section 169EA(1)

- (1) A natural person may apply to the Authority for an exemption from an offence against section 169EA(1) in relation to the carrying out of a type of building work prescribed for the purposes of that section (the **relevant building work**).
- (2) An application under subsection (1) must—
 - (a) be in writing in a form approved by the Authority; and
 - (b) state the relevant building work that the exemption applies to; and
 - (c) be accompanied by the appropriate application fee—
 - (i) determined in accordance with the guidelines under Division 1 of Part 12; or
 - (ii) prescribed by the regulations; and
 - (d) include or be accompanied by the following—
 - (i) a recent photograph of the applicant that is of a size and form specified by the Authority;
 - (ii) a statement by the applicant that the applicant intends to carry out the relevant building work while employed by a builder registered under section 171(1)(a) or a registered builder subcontractor, whose registration

- authorises the carrying out of the relevant building work (the **employing builder**); and
- (e) include a statement by the employing builder that the employing builder intends to employ the applicant during the period of the exemption; and
 - (f) include evidence that the applicant—
 - (i) holds, or is enrolled in a course to obtain, the prescribed qualification for registration under section 171(1)(ab) in a class of builder that authorises the carrying out of the relevant building work; or
 - (ii) holds, or is enrolled in a course to obtain, the prescribed qualification for a licence under section 187F(1) in a class of building employee that authorises the carrying out of the relevant building work; and
 - (g) include a statement by the applicant that the person does not have the prescribed experience for registration under section 171(1)(ab) or a licence under section 187F(1), which would authorise the carrying out of the relevant building work; and
 - (h) include any other information required by the Authority; and
 - (i) include the prescribed information (if any).
- (3) The Authority may grant an exemption referred to under subsection (1) if—
- (a) the application complies with subsection (2); and

- (b) the Authority is satisfied that the statements and evidence provided in or with the application are true and correct; and
 - (c) the applicant has provided any other information required by the Authority.
- (4) In deciding whether to grant an exemption under subsection (3), the Authority may take into account any matters that it thinks fit, including any particular circumstances that apply in relation to the exemption application.
- (5) The Authority may grant an exemption under subsection (3) for a period of no more than 3 years.
- (6) A person granted an exemption under subsection (3) may apply to the Authority to vary the exemption to change the details of the employing builder.
- (7) The same requirements for an application for an exemption under subsection (1) apply to an application to vary an exemption under subsection (6), except the requirement under subsection (2)(d)(i).
- (8) The Authority may vary an exemption under subsection (3) to change the details of the employing builder if—
 - (a) the application for the variation complies with subsection (7); and
 - (b) the Authority is satisfied that the statement by the new employing builder provided in the application is true and correct.
- (9) An exemption granted under subsection (3), including as varied under subsection (8), ceases to have any force—

- (a) for any part of the period of the exemption during which the person granted the exemption—
 - (i) is not employed by the employing builder; or
 - (ii) has ceased to be enrolled in a relevant course referred to in subsection (2)(f) without completing that course; and
- (b) immediately after the period of the exemption expires.

169F Offence to carry out domestic building work under a major domestic building contract

S. 169F
(Heading)
amended by
Nos 46/2018
s. 11(1),
40/2021
s. 16(1),
substituted by
No. 11/2023
s. 42(1).

S. 169F
inserted by
No. 21/2017
s. 7.

- (1) A person must not carry out domestic building work under a major domestic building contract unless the person is a registered builder or a licensed building employee.

S. 169F(1)
amended by
Nos 46/2018
s. 11(2),
40/2021
s. 16(2).

Penalty: 500 penalty units, in the case of a natural person;

2500 penalty units, in the case of a body corporate.

- (2) Subsection (1) does not apply to an unregistered person or an unlicensed person who carries out domestic building work under, or in accordance with, a major domestic building contract if—

S. 169F(2)
amended by
No. 11/2023
s. 42(2)(a).

S. 169F(2)(a)
amended by
Nos 40/2021
s. 16(3)(a),
11/2023
s. 44(2)(c).

(a) the person carries out that work in partnership with a builder registered under section 171(1)(a) whose registration authorises the carrying out of that work; or

S. 169F(2)(b)
amended by
No. 40/2021
s. 16(3)(a),
substituted by
No. 11/2023
s. 42(2)(b).

(b) the person carries out that work as an employee of a builder registered under section 171(1)(a), whose registration authorises the carrying out of that work, in the course of the person's employment with that builder; or

S. 169F(2)(c)
amended by
Nos 40/2021
s. 16(3)(b),
11/2023
s. 44(2)(c).

(c) the person carries out that work as a subcontractor of a builder registered under section 171(1)(a), whose registration authorises the carrying out of that work, in accordance with a subcontract with the registered builder; or

S. 169F(2)(d)
inserted by
No. 40/2021
s. 16(3)(c),
amended by
No. 11/2023
s. 44(2)(c).

(d) the person carries out that work as a subcontractor or employee of a subcontractor referred to in paragraph (c), in accordance with a subcontract with that subcontractor, or in the course of the person's employment with that subcontractor (as the case applies).

Note to
s. 169F(2)
inserted by
No. 46/2018
s. 11(3).

Note

See section 169EA(1) for an offence against a person carrying out building work prescribed for the purposes of that section if the person is not registered under Part 11 or licensed under Part 11A to carry out that building work.

S. 169F(3)
amended by
No. 11/2023
s. 44(3).

(3) If the registered builder in a partnership specified under subsection (2)(a) dies or becomes insolvent and work under the major domestic building contract remains to be carried out, the person specified in subsection (2)(a) may arrange for another registered building practitioner who is authorised by that registration to carry out work under that major domestic building contract to carry out that work.

- (4) A person specified in subsection (3) does not commit an offence under subsection (1) because the person continues to carry out work under that major domestic building contract if an arrangement of a kind specified in subsection (3) has been made and the work is carried out in accordance with that arrangement.

S. 169F(4)
amended by
No. 11/2023
s. 44(4).

- (5) In this section—

licensed building employee means a person who carries out domestic building work under a major domestic building contract and whose licence authorises the carrying out of that building work;

S. 169F(5)
def. of
*licensed
building
employee*
inserted by
No. 40/2021
s. 16(4),
amended by
No. 11/2023
s. 42(5)(a).

registered builder means a person who carries out domestic building work under a major domestic building contract and is—

S. 169F(5)
def. of
*registered
builder*
amended by
No. 11/2023
s. 42(5)(b).

(a) registered under this Part; and

(b) authorised by that registration to carry out that work;

unregistered person means a person who is not registered under this Part.

169FA Offence to engage an unregistered subcontractor

S. 169FA
inserted by
No. 46/2018
s. 12.

- (1) A person must not engage another person as a subcontractor (the **proposed subcontractor**) to carry out building work if the building work is or includes building work of a type prescribed for the purposes of section 169EA (the **relevant building work**), unless the proposed subcontractor is registered under this Part and that registration authorises the carrying out of the relevant building work.

Penalty: 500 penalty units, in the case of a natural person;

2500 penalty units, in the case of a body corporate.

- (2) Subsection (1) does not apply to a person if the person took reasonable steps to ensure that the proposed subcontractor was registered to carry out the relevant building work, including any of the following steps—
- (a) the person provided a written statement to the proposed subcontractor setting out—
 - (i) the requirement that the proposed contractor be a registered builder and that the registration must authorise the carrying out of the relevant building work; and
 - (ii) the requirement that any person engaged by the proposed subcontractor to carry out the relevant building work be so registered;
 - (b) the person inspected the certificate of registration of the proposed subcontractor at the time of engaging the proposed subcontractor and the certificate of registration appeared to authorise the proposed subcontractor to carry out the relevant building work;
 - (c) the person, at the time of engaging the proposed subcontractor, checked whether the proposed subcontractor was listed on the Register of Building Practitioners;
 - (d) the contract between the person and the subcontractor contains a clause requiring the subcontractor—

- (i) to be a registered builder and that the registration must authorise the carrying out of the relevant building work; and
- (ii) to ensure that any person engaged by the subcontractor to carry out the relevant building work is so registered.

Note

See also the transitional provision in section 282(3) which provides that in certain circumstances section 169FA does not apply to a person who engages a person as a subcontractor to carry out relevant building work who is not registered to carry out that work.

**Note to
s. 169FA
inserted by
No. 40/2021
s. 17.**

169FB Offence to direct or require a person to carry out certain building work

**S. 169FB
inserted by
No. 46/2018
s. 12.**

- (1) A person must not direct or require another person (the ***directed person***) to carry out a type of building work prescribed for the purposes of section 169EA (the ***relevant building work***) unless the directed person—
 - (a) is registered under this Part and that registration authorises the carrying out of the relevant building work; or
 - (b) is licensed under Part 11A and that licence authorises the carrying out of the relevant building work and the person is carrying out the building work in the course of the person's employment.

Penalty: 500 penalty units, in the case of a natural person;
2500 penalty units, the case of a body corporate.

- (2) A person does not commit an offence under subsection (1) if—
- (a) the directed person is employed by a person under a training contract to carry out the relevant building work and the employer has been approved under section 5.5.7 of the **Education and Training Reform Act 2006** by the Victorian Registration and Qualifications Authority to employ the directed person under the training contract; and
 - (b) the person directing the directed person is that employer or a person acting on behalf of that employer.

S. 169FB(2A)
inserted by
No. 40/2021
s. 18(1).

- (2A) A person does not commit an offence under subsection (1) if—
- (a) the directed person has been granted an exemption under section 169EB in relation to carrying out the relevant building work and the exemption is in force; and
 - (b) the person is the employing builder (within the meaning of section 169EB) or a person acting on behalf of that employing builder.
- (3) Subsection (1) does not apply to a person if the person took reasonable steps to ensure that the directed person was registered under Part 11 or licensed under this Part to carry out the relevant building work, including any of the following steps—
- (a) the person provided a written statement to the directed person setting out the requirement that the directed person—
 - (i) be a registered builder whose registration authorises the carrying out of the relevant building work; or

- (ii) be a licensed building employee whose licence authorises the carrying out of the relevant building work;
- (b) the person inspected the certificate of registration or the licence certificate of the directed person before directing or requiring the directed person to carry out the relevant building work and the certificate of registration or the licence certificate appeared to authorise the directed person to carry out that relevant building work;
- (c) the person, before directing or requiring the directed person to carry out the relevant building work, checked whether the directed person was listed on the Register of Building Practitioners or the Register of Building Employees.

Note

See also the transitional provision in section 282(4) which provides that in certain circumstances section 169FB does not apply to a person who directs a person to carry out relevant building work who is not registered or licensed to carry out that building work.

**Note to
s. 169FB
inserted by
No. 40/2021
s. 18(2).**

169G Building practitioner body corporate must have at least one nominee director

**S. 169G
inserted by
No. 21/2017
s. 7.**

- (1) A body corporate must not carry out work, or undertake to carry out work, as a registered building practitioner unless the body corporate has at least one nominee director who complies with the relevant requirements of section 171B.
Penalty: 2500 penalty units.
- (2) Subsection (1) does not prevent a body corporate from continuing and completing work in the period applying under section 180C(2) if the work commenced before the commencement of that period.

S. 169H
inserted by
No. 21/2017
s. 7.

169H Advertisements or written statements by registered building practitioners

A registered building practitioner who publishes or causes to be published an advertisement or written statement offering to carry out domestic building work must ensure that the advertisement or statement—

- (a) states the name under which the building practitioner is registered; and
- (b) states the registration number of the registered building practitioner; and
- (c) complies with the requirements of the regulations.

Penalty: 60 penalty units.

S. 169I
inserted by
No. 21/2017
s. 7.

169I Advertisements or written statements by partnerships

A registered building practitioner must not carry on business as a building practitioner in partnership with a person who is not a registered building practitioner unless each advertisement or written statement relating to that business—

- (a) states the name under which the building practitioner is registered; and
- (b) states the registration number of the registered building practitioner; and
- (c) complies with the requirements of the regulations.

Penalty: 60 penalty units.

169J Exception for certain organisations

S. 169J
inserted by
No. 21/2017
s. 7.

- (1) Sections 169A to 169F do not apply to—
- (a) anything done in the course of official duties by—
 - (i) an employee under Part 3 of the **Public Administration Act 2004**; or
 - (ii) an officer or employee of the public service of the Commonwealth or a State or Territory of the Commonwealth other than Victoria; or
 - (iii) an officer or employee of a public authority established under a law of the Commonwealth or a State or Territory of the Commonwealth other than Victoria; or
 - (b) an organisation or a member of staff of an organisation for the time being exempted by the Authority.
- (2) An exemption under subsection (1)(b) may be subject to conditions.

169K Offences for unregistered engineers

S. 169K
inserted by
No. 26/2019
s. 124.

- (1) An engineer engaged in the building industry must not act as a prescribed building practitioner under section 137B unless the engineer is an endorsed building engineer.
- Penalty: 500 penalty units.
- (2) An engineer engaged in the building industry must not give a certificate under section 238 unless the engineer is an endorsed building engineer.
- Penalty: 500 penalty units.

Division 1A—Registration

Subdivision 1—Application for registration

Pt 11 Div. 1A
(Headings
and ss 170–
176A)
inserted by
No. 21/2017
s. 7.

170 Who may apply for registration?

S. 170
substituted by
No. 21/2017
s. 7,
amended by
No. 46/2018
s. 13(1)(2) (ILA
s. 39B(1)).

S. 170(1)
substituted by
No. 40/2021
s. 19(1).

- (1) An application for registration as a building practitioner, including as a registered builder subcontractor or a provisionally registered builder subcontractor, may be made by—
 - (a) a natural person; or
 - (b) a body corporate.
- (2) An application for registration as a builder subcontractor or for provisional registration—
 - (a) may only be made in respect of a class of builder that authorises the carrying out of a type of building work prescribed for the purposes of section 169EA; and
 - (b) in the case of provisional registration, must be made—
 - (i) within 12 months after that type of building work is prescribed; or
 - (ii) if the Authority considers that exceptional circumstances apply in respect of the application, within any longer period determined by the Authority, which must not in total exceed 24 months after that type of building work is prescribed.

S. 170(2)
inserted by
No. 46/2018
s. 13(2),
substituted by
No. 40/2021
s. 19(2).

- (3) The Authority must refuse an application for provisional registration—
- (a) that is not made within the period of time allowed under subsection (2); or
 - (b) in a class of builder, if the person has previously been granted a provisional registration in that class of builder.

S. 170(3)
inserted by
No. 40/2021
s. 19(2).

170A Application for registration—general

An application for registration must—

S. 170A
substituted by
No. 21/2017
s. 7.

- (a) be made to the Authority; and
- (b) be in writing in a form approved by the Authority; and
- (c) state each category or class of registration sought; and
- (ca) in the case of an application in the category of a builder, state whether the registration is sought under section 171(1)(a), (ab) or (ac); and
- (d) in the case of an application by a body corporate, state each nominee director of the body corporate; and
- (da) if the applicant is a natural person, be accompanied by a recent photograph of the applicant that is of a size and form specified by the Authority; and
- (e) be accompanied by the prescribed information (if any); and
- (f) be accompanied by the appropriate application fee—
 - (i) determined in accordance with the guidelines under Division 1 of Part 12; or
 - (ii) prescribed by the regulations.

S. 170A(ca)
inserted by
No. 40/2021
s. 20.

S. 170A(da)
inserted by
No. 46/2018
s. 42.

S. 170AB
inserted by
No. 1/2023
s. 4.

170AB Proof of insurance for persons intending to rely on automatic deemed registration

- (1) This section applies to a person who intends to carry out an activity that may be carried out under a registration under this Part in reliance on an automatic deemed registration that is the subject of a determination under section 42J(4) of the Mutual Recognition Act 1992 of the Commonwealth.
- (2) The person must ensure that the notification given to the Authority under section 42J(1) of the Mutual Recognition Act 1992 of the Commonwealth is accompanied by written proof that, until the first anniversary of the commencement of the person's automatic deemed registration, the person will be covered or is eligible to be covered (as applicable), by any required insurance for the registration under this Part.
- (3) The person must ensure that the written proof is accompanied by the appropriate fee for the examination of the written proof by the Authority—
 - (a) determined in accordance with the guidelines under Division 1 of Part 12; or
 - (b) prescribed by the regulations.

S. 170B
inserted by
No. 21/2017
s. 7.

170B Authority may conduct inquiries and require further information

- (1) In considering an application for a registration, the Authority may—
 - (a) conduct any inquiries in relation to the application that it thinks fit; and
 - (b) require an applicant to provide further information in relation to the application.

- (2) The Authority may refuse an application for registration if the applicant fails to comply with a requirement under subsection (1)(b) within a reasonable time after the requirement is made.

170C Consent to disclosure of information

S. 170C
inserted by
No. 21/2017
s. 7.

- (1) In considering an application for registration, the Authority may ask the applicant to provide any consent to disclosure of information that the Authority requires to perform, or to have performed, a check on the applicant or on any information included with the applicant's application.
- (2) The Authority may refuse to consider an application for registration if the applicant fails to comply with a request under subsection (1) within 14 days after the request is made.
- (3) In this section, in the case of an applicant that is a body corporate, a reference to an applicant includes a reference to a director of the applicant.

170D Change to information in application

S. 170D
inserted by
No. 21/2017
s. 7.

- (1) An applicant for registration must—
- (a) give the Authority notice of any material change during the relevant period to the information provided to the Authority by the applicant in support of the application for registration; and
- (b) provide the notice referred to in paragraph (a) within 14 days after becoming aware of the change.

Penalty: 60 penalty units, in the case of a natural person;
300 penalty units, in the case of a body corporate.

(2) In this section—

material change includes—

- (a) a change of directors of an applicant that is a body corporate; or
- (b) any change prescribed by the regulations;

relevant period means the period between the making of an application for registration and the determination of the application by the Authority.

Subdivision 2—Registration

171 Registration

S. 171
substituted by
No. 21/2017
s. 7.

- (1) The Authority must register an applicant as a building practitioner in a category or class if the Authority is satisfied that—

S. 171(1)(a)
amended by
Nos 46/2018
s. 14(1),
40/2021
s. 21(1)(a).

- (a) in the case of registration other than registration under paragraph (ab) or (ac), if the applicant is a natural person, the applicant either—

S. 171(1)(a)(i)
amended by
No. 40/2021
s. 21(1)(b).

- (i) holds the prescribed qualification and prescribed experience for the registration; or

S. 171(1)(a)(ii)
amended by
No. 40/2021
s. 21(1)(c).

- (ii) unless the regulations otherwise provide in relation to a particular category or class, holds a qualification that the Authority considers is, either alone or together with any further knowledge, certificate, authority, experience or examination equivalent to a prescribed qualification; and

(ab) in the case of registration as a builder in a class of builder that authorises the carrying out of a type of building work prescribed for the purposes of section 169EA, if the applicant is a natural person—

S. 171(1)(ab)
inserted by
No. 46/2018
s. 14(2),
substituted by
No. 40/2021
s. 21(2).

(i) the applicant holds—

(A) the prescribed qualification for the registration; or

(B) (unless the regulations otherwise provide in relation to a particular class) holds a qualification that the Authority considers is, either alone or together with any further knowledge, certificate, authority, experience or examination, equivalent to the prescribed qualification; and

(ii) the applicant has any prescribed experience for the registration; and

(iii) the applicant has or holds any prescribed prerequisite for the registration; and

Note

A registration under this paragraph is subject to a condition that the registered person must not carry out building work other than as a subcontractor (unless the cost of the work is less than the amount prescribed for the purposes of section 24B(2) or the building work is not domestic building work and does not require a building permit) or as an employee—see section 171H.

(ac) in the case of provisional registration as a builder in a class of builder that authorises the carrying out of a type of building work prescribed for the purposes of section 169EA, if the applicant is a natural person—

S. 171(1)(ac)
inserted by
No. 40/2021
s. 21(3).

- (i) the applicant holds—
 - (A) the prescribed qualification for the registration; or
 - (B) (unless the regulations otherwise provide in relation to a particular class) a qualification that the Authority considers is, either alone or together with any further knowledge, certificate, authority, experience or examination, equivalent to the prescribed qualification; or
 - (C) the prescribed knowledge for registration; and
- (ii) the applicant has any prescribed experience for the registration; and
- (iii) the applicant has or holds any prescribed prerequisite for the registration; and

Note

A registration under this paragraph is subject to a condition that the provisionally registered person must not carry out building work other than as a subcontractor (unless the cost of the work is less than the amount prescribed for the purposes of section 24B(2) or the building work is not domestic building work and does not require a building permit) or as an employee—see section 171H.

S. 171(1)(b)
substituted by
No. 40/2021
s. 21(4).

- (b) if the applicant is a body corporate—
 - (i) in the case of an applicant for provisional registration, the requirements in sections 171A(2)(b) and 171B have been met; or
 - (ii) in any other case, the requirements in sections 171A and 171B have been met; and

- (c) if the applicant carries on business, or intends to carry on business, as a building practitioner as a member of a partnership, the requirements in section 171C have been met; and
 - (d) the applicant, other than an applicant for provisional registration, is a fit and proper person to be registered having regard to—
 - (i) the personal probity requirements set out in section 171D; and
 - (ii) the financial probity requirements set out in section 171E; and
 - (e) the applicant is not an excluded person; and
 - (f) the applicant has paid the appropriate application fee—
 - (i) determined in accordance with the guidelines under Division 1 of Part 12; or
 - (ii) prescribed by the regulations; and
 - (g) the applicant meets any other prescribed requirements.
- (1A) If the applicant is a body corporate that has applied for registration in a class of builder and a nominee director of the body corporate referred to in section 171B(2)(a) or (b) is—
- (a) registered as a provisional builder subcontractor in that class, the body corporate can only be granted registration as a provisional builder subcontractor in that class; or
 - (b) registered as a builder subcontractor in that class, the body corporate can only be granted registration as a builder subcontractor in that class.

S. 171(1)(d)
amended by
No. 40/2021
s. 21(5).

S. 171(1A)
inserted by
No. 46/2018
s. 14(3),
substituted by
No. 40/2021
s. 21(6).

S. 171(2A)
inserted by
No. 40/2021
s. 21(7).

(2) The Authority must refuse an application for registration if it is not satisfied of the matters specified in subsection (1).

(2A) If the Authority determines to refuse an application for registration under subsection (1)(ab) solely on the ground that the applicant does not meet the requirements in that subsection, the Authority may, with the consent of the applicant, determine the application as if it were an application made under section 170 for a provisional registration.

(3) The Authority is not required to conduct a hearing to determine whether to grant a registration or refuse to grant a registration.

S. 171A
inserted by
No. 21/2017
s. 7.

171A Additional requirements for registration—bodies corporate—general

(1) This section sets out additional requirements for registration where the applicant is a body corporate.

(2) The Authority must be satisfied that each director of the body corporate—

S. 171A(2)(a)
amended by
No. 40/2021
s. 22.

(a) except in the case of a provisional registration, is a fit and proper person having regard to—

(i) the personal probity requirements set out in section 171D; and

(ii) the financial probity requirements set out in section 171E; and

(b) is not an excluded person.

S. 171B
inserted by
No. 21/2017
s. 7.

171B Additional requirements for registration—nominee directors

(1) This section sets out further additional requirements for registration where the applicant is a body corporate.

- (2) The Authority must also be satisfied in the case of an application for registration as a builder that the body corporate will have—
 - (a) a nominee director—
 - (i) who is registered under this Part as a builder; and
 - (ii) whose registration authorises the carrying out of building work for each class of registration sought; or
 - (b) two or more nominee directors—
 - (i) each of whom is registered under this Part as a builder; and
 - (ii) who between them have registrations under this Part that authorise the carrying out of building work for each class of registration sought.
- (3) The Authority must also be satisfied in the case of an application for registration as a building surveyor that the body corporate will have—
 - (a) a nominee director—
 - (i) who is registered under this Part as a building surveyor; and
 - (ii) whose registration authorises the carrying out of work as a building surveyor for each class of registration sought; or
 - (b) two or more nominee directors—
 - (i) each of whom is registered under this Part as a building surveyor; and
 - (ii) who between them have registrations under this Part that authorise the carrying out of work as a building

surveyor for each class of registration sought.

- (4) The Authority must also be satisfied in the case of an application for registration as a building inspector that the body corporate will have—
- (a) a nominee director—
 - (i) who is registered under this Part as a building inspector; and
 - (ii) whose registration authorises the carrying out of work as a building inspector for each class of registration sought; or
 - (b) two or more nominee directors—
 - (i) each of whom is registered under this Part as a building inspector; and
 - (ii) who between them have registrations under this Part that authorise the carrying out of work as a building inspector for each class of registration sought.
- (5) The Authority must also be satisfied in the case of an application for registration as a building practitioner (other than an application to which subsection (2), (3) or (4) applies) that the body corporate will have—
- (a) a nominee director who is registered under this Part in the same class or classes of registration as the class or classes of registration sought; or
 - (b) two or more nominee directors each of whom is registered under this Part and who between them are registered in the same class or classes of registration as the class or classes of registration sought.

171C Additional requirements for applicant who is member of partnership

S. 171C
inserted by
No. 21/2017
s. 7.

- (1) This section sets out additional requirements for registration where the applicant carries on business, or intends to carry on business, as a building practitioner as a member of a partnership.
- (2) The Authority must be satisfied that each other member of the partnership—
 - (a) except in the case of a provisional registration, is a fit and proper person having regard to—
 - (i) the personal probity requirements set out in section 171D; and
 - (ii) the financial probity requirements set out in section 171E; and
 - (b) is not an excluded person.

S. 171C(2)(a)
amended by
No. 40/2021
s. 23.

171D Personal probity requirements

S. 171D
inserted by
No. 21/2017
s. 7,
amended by
No. 40/2021
s. 24(1)(2)
(ILA s. 39B(1)).

- (1) For the purposes of an application for registration under section 171(1)(a), the probity requirements are whether in the past 10 years—
 - (a) the person has been convicted or found guilty (whether in Victoria or outside Victoria) of any offence involving fraud, dishonesty, drug trafficking or violence that was punishable by imprisonment for 6 months or more; or
 - (b) the person has been convicted or found guilty of an offence under any law regulating building work or building practitioners; or
 - (c) the person has had any registration, licence, approval, certificate or other authorisation as a building practitioner suspended or cancelled for any reason other than a failure by the person to renew the registration,

- licence, approval, certificate or other authorisation; or
- (d) the person has been convicted or found guilty of an offence against—
- (i) section 10, 11, 12, 17, 19 or 21 of the **Fair Trading Act 1999**; or
 - (ii) section 53, 55, 55A, 56, 58 or 60 of the Trade Practices Act 1974 of the Commonwealth; or
 - (iii) section 29, 33, 34, 35, 36, 50, 151, 157, 158 or 168 of the Australian Consumer Law (Victoria); or
 - (iv) section 29, 33, 34, 35, 36, 50, 151, 157, 158 or 168 of Schedule 2 to the Competition and Consumer Act 2010 of the Commonwealth; or
- (e) the person has been subject to an order of a court or VCAT under the following enactments that has not been complied with within the period required by the court or VCAT—
- (i) this Act or the regulations; or
 - (ii) the **Domestic Building Contracts Act 1995** or the regulations under that Act; or
- (f) the person has failed to meet any other probity requirement prescribed by the regulations.
- (2) For the purposes of an application for registration as a builder subcontractor under section 171(1)(ab), the probity requirements are whether, in the last 5 years, any of the matters in subsection (1) apply to the applicant.

S. 171D(2)
inserted by
No. 40/2021
s. 24(2).

171E Financial probity requirements

S. 171E
inserted by
No. 21/2017
s. 7.

(1) For the purposes of an application for registration under section 171(1)(a), the financial probity requirements are as follows—

S. 171E(1)
amended by
No. 40/2021
s. 25(1).

- (a) if the application is for registration as a builder in order to carry out domestic building work with a cost of more than the prescribed amount, whether the applicant is eligible to be covered by the required insurance in relation to managing, arranging or carrying out domestic building work with that cost;
- (b) if the application is for any other category or class of registration, whether the applicant is covered by the required insurance;
- (c) whether the person is or has been—
 - (i) an insolvent under administration; or
 - (ii) an externally administered body corporate within the meaning of the Corporations Act;
- (d) whether the person has, is or has been disqualified from managing corporations under Part 2D.6 of the Corporations Act;
- (e) whether an insurer has ever declined, cancelled, or imposed special conditions in relation to, the provision of professional indemnity insurance, public liability insurance or any other indemnity insurance in relation to the person in relation to work as a building practitioner in Victoria or in an equivalent occupation in the building

and construction industry in another State or Territory;

- (f) whether the applicant or, in the case of an applicant that is a body corporate, any director of the body corporate, has outstanding—
- (i) any judgment debt for an amount recoverable by an insurer under a policy of insurance for domestic building work referred to in section 137A or 137B that has not been satisfied within the period required for satisfaction of that debt; or
 - (ii) any judgment debt for an amount owed to the Authority as a debt due under this Act that has not been satisfied within the period required for satisfaction of that debt; or
 - (iii) any judgment debt for an amount payable in relation to a domestic building dispute that has not been satisfied within the period required for satisfaction of that debt; or
 - (iv) any amount payable under any dispute resolution order (within the meaning of the **Domestic Building Contracts Act 1995**) or VCAT order requiring the payment of an amount in relation to a domestic building dispute that has not been paid within the period required for compliance with that order; or
 - (v) any unpaid adjudicated amount due to be paid under the **Building and Construction Industry Security of Payment Act 2002** if—

- (A) the period for making an adjudication review application under that Act in relation to that amount has expired; and
- (B) the practitioner has not made an adjudication review application in relation to that amount within that period;
- (fa) whether the applicant or, in the case of an applicant that is a body corporate, any director of that body corporate was a director or secretary of, or an influential person in relation to, a body corporate within 2 years before the body corporate went into external administration within the meaning of the Corporations Act;
S. 171E(1)(fa) inserted by No. 3/2020 s. 24(1).
- (g) whether the applicant is a director of a body corporate that has outstanding any judgment debt or unpaid amount referred to in paragraph (f);
- (h) whether the applicant was a director of a body corporate that had outstanding any judgment debt or unpaid amount referred to in paragraph (f) at the time the applicant was a director;
- (i) whether the person has failed to meet any other financial probity criteria prescribed by the regulations.
- (1A) For the purposes of an application by a person for registration as a builder subcontractor under section 171(1)(ab), the financial probity requirements are—
S. 171E(1A) inserted by No. 40/2021 s. 25(2).
 - (a) whether any of the matters in subsection (1)(d) and (f)(ii) to (v) apply to the applicant or, if the applicant is a body corporate, any director of the body corporate; and

- (b) whether the applicant is a director of a body corporate that has outstanding any judgment debt or unpaid amount referred to in paragraph (f)(ii) to (v); and
- (c) whether the applicant was a director of a body corporate that had outstanding any judgment debt or unpaid amount referred to in paragraph (f)(ii) to (v) at the time the applicant was a director.

(2) In this section—

S. 171E(2)
def. of
*influential
person*
inserted by
No. 3/2020
s. 24(2).

influential person in relation to a body corporate means a natural person, other than a director or secretary of the body corporate, who is in a position to control or substantially influence the body corporate's conduct but does not include—

- (a) a person who gives professional advice to the body corporate (other than in the person's capacity as an employee of the body corporate) that influences the body corporate's conduct; or
- (b) a person employed or engaged by a State, Territory, local government or the Commonwealth who when performing a function under this Act, another Act or law in another jurisdiction influences the body corporate's business; or
- (c) an administrator, controller, provisional liquidator or liquidator within the meaning of section 9 of the Corporations Act;

prescribed amount means—

- (a) the amount prescribed by the regulations (if any); or

- (b) if an amount is not prescribed, \$16 000.
- (3) For the purposes of the definition of ***influential person*** in subsection (2), a person is taken to be an influential person in relation to a body corporate if the person—
- (a) is the chief executive officer or general manager of the body corporate, or holds an equivalent position in the body corporate or is acting in that position; or
 - (b) directly or indirectly owns, holds or controls 50% or more of the shares in the body corporate, or 50% or more of a class of shares in the body corporate; or
 - (c) gives instructions to an officer of the body corporate and the officer generally acts on those instructions; or
 - (d) makes, or participates in making, decisions that affect the whole or a substantial part of the body corporate's business or financial standing; or
 - (e) engages in conduct or makes representations that would cause someone else to reasonably believe the person controls, or substantially influences, the body corporate's business.

S. 171E(3)
inserted by
No. 3/2020
s. 24(3).

171F Excluded persons

- (1) For the purposes of this Part, a person is an excluded person for registration as a building practitioner in a category or class (a ***relevant registration***) if—
- (a) the person is disqualified by an order of a disciplinary body from applying for the relevant registration; or
 - (b) the person previously held a relevant registration that was cancelled by a disciplinary body, if any period during

S. 171F
inserted by
No. 21/2017
s. 7.

- which the person is disqualified from applying for a new relevant registration has not ended; or
- (c) the person held a similar registration under a corresponding Act and—
- (i) the similar registration was cancelled as a result of disciplinary action taken by a corresponding disciplinary body; and
 - (ii) either—
 - (A) any period during which the person is disqualified from applying for a new similar registration has not ended; or
 - (B) if the corresponding disciplinary body did not disqualify the person from applying for a new similar registration, a period of 2 years after the day the cancellation occurred has not ended; or
- (d) the person's application for a relevant registration under this Act or a similar registration under a corresponding Act within the previous 2 years was refused on the basis that the person provided information or a document in relation to the application that was false or misleading; or
- (e) an associate or related body corporate of the person is a person who or which held a relevant registration under this Act that was cancelled by a disciplinary body, if any period during which the associate or related body corporate is disqualified from applying for a new relevant registration has not ended; or

- (f) an associate or related body corporate of the person held similar registration under a corresponding Act and—
 - (i) the similar registration was cancelled as a result of disciplinary action taken by a corresponding disciplinary body; and
 - (ii) either—
 - (A) any period during which the person is disqualified from applying for a new similar registration has not ended; or
 - (B) if the corresponding disciplinary body did not disqualify the person from applying for a new similar registration, a period of 2 years after the day the cancellation occurred has not ended; or
 - (g) the person is a represented person within the meaning of the **Guardianship and Administration Act 2019**; or
 - (h) the person is an excluded person for the relevant registration under the regulations.
- (2) In this section—

corresponding Act means an Act or law of another jurisdiction that—

- (a) relates to the registration or regulation of building practitioners; or
- (b) is prescribed by the regulations as a corresponding Act;

S. 171F(1)(g)
amended by
No. 13/2019
s. 221(Sch. 1
item 5.1).

corresponding disciplinary body means—

- (a) a body in another jurisdiction that carries out similar functions to a disciplinary body in relation to the discipline of building practitioners; or
- (b) a body that is prescribed by the regulations to be a corresponding disciplinary body for the purposes of this section;

disciplinary body means—

- (a) the Authority; or
- (b) the Building Practitioners Board (established under Part 11 as in force immediately before the commencement of Division 2 of Part 3 of the **Building Legislation Amendment (Consumer Protection) Act 2016**); or
- (c) the Building Appeals Board; or
- (d) VCAT;

similar registration means a registration, licence, approval, certificate or other form of authorisation under a corresponding Act that corresponds to a relevant registration.

S. 171G
inserted by
No. 21/2017
s. 7.

171G Issue of certificate of registration

- (1) If the Authority grants registration as a building practitioner to a person, it must issue a certificate of registration to that person.
- (2) The certificate of registration issued must—
 - (a) be in a form approved by the Authority; and
 - (b) specify the registration number of the building practitioner; and

- (ba) specify the category of building practitioner and class of building practitioner (if applicable) and, in the case of a builder, whether the registration is for a provisionally registered builder subcontractor or a registered builder subcontractor; and S. 171G(2)(ba) inserted by No. 46/2018 s. 15, substituted by No. 40/2021 s. 26.
- (bb) specify the expiry date of the registration; and S. 171G(2)(bb) inserted by No. 40/2021 s. 26.
- (c) contain the prescribed information.

171GA Issue of registration card

S. 171GA inserted by No. 46/2018 s. 43.

- (1) If the Authority grants registration as a building practitioner to a natural person, it must issue a registration card to that person.
- (2) The registration card must—
 - (a) be in a form approved by the Authority; and
 - (ab) specify the category of building practitioner and class of building practitioner (if applicable) and, in the case of a builder, whether the registration is for a provisionally registered builder subcontractor or a registered builder subcontractor; and S. 171GA (2)(ab) inserted by No. 40/2021 s. 27.
 - (ac) specify the expiry date of the registration; and S. 171GA (2)(ac) inserted by No. 40/2021 s. 27.
 - (b) specify the registration number of the building practitioner; and
 - (c) include a recent photograph of the building practitioner that is of a size and form specified by the Authority; and
 - (d) include any other prescribed information.

S. 171H
inserted by
No. 21/2017
s. 7.

171H Conditions on registration

- (1) The Authority—
- (a) must impose on a registration any prescribed conditions; and
 - (b) may impose on a registration any other conditions that the Authority considers appropriate for the registration.

S. 171H(1A)
inserted by
No. 40/2021
s. 28.

- (1A) It is a condition of a provisional registration and registration of a builder subcontractor that the person holding the registration must not carry out any building work of a type prescribed for the purposes of section 169EA other than—
- (a) as a subcontractor unless—
 - (i) the cost of the building work does not exceed the amount prescribed for the purposes of section 24B(2); or
 - (ii) the building work is not domestic building work and does not require a building permit; or
 - (b) as an employee.

S. 171H(1B)
inserted by
No. 40/2021
s. 28.

- (1B) It is a condition of a provisional registration that the person holding the registration must comply with the requirements of a training plan (if any) during the period of that registration.

S. 171H(1C)
inserted by
No. 40/2021
s. 28.

- (1C) For the purposes of subsection (1B) the Authority may prepare a training plan which must—
- (a) contain any requirements determined by the Authority; and
 - (b) contain the prescribed requirements (if any); and
 - (c) be in a form approved by the Authority.

- (2) A person must comply with any conditions imposed on the person's registration.

Penalty: 50 penalty units, in the case of a natural person;

250 penalty units, in the case of a body corporate.

171I Period of registration

S. 171I
inserted by
No. 21/2017
s. 7.

- (1) Registration under this Part lasts—

(a) in the case of provisional registration, for 5 years; or

(b) in any other case, for a period of up to 5 years as determined by the Authority.

S. 171I(1)
substituted by
No. 46/2018
s. 16.

- (2) Subsection (1) does not take away from any provision about the suspension or cancellation of registration.

- (3) If a person who holds a provisional registration applies for registration under section 171(1)(a) or (ab) before the provisional registration expires, the period of the provisional registration is extended to whichever of the following days occurs latest—

S. 171I(3)
inserted by
No. 40/2021
s. 29.

(a) the day on which the Authority determines the person's application for the registration;

(b) if applicable, the day on which the Authority makes a reviewable decision in relation to that determination;

(c) if applicable, the day on which VCAT makes a decision in relation to that determination.

S. 171J
(Heading)
amended by
No. 46/2018
s. 44(1).

S. 171J
inserted by
No. 21/2017
s. 7,
amended by
No. 46/2018
s. 44(2).

S. 171J(b)
amended by
No. 46/2018
s. 44(2).

Pt 11 Div. 1A
Subdiv. 3
(Heading)
amended by
No. 40/2021
s. 30.

S. 172
substituted by
No. 21/2017
s. 7,
amended by
No. 40/2021
s. 31,
substituted by
No. 1/2023
s. 5.

171J Issue of replacement certificate of registration or registration card

The Authority may issue a replacement certificate of registration or registration card at the request of the building practitioner if the building practitioner—

- (a) pays the appropriate fee (if any)—
 - (i) determined in accordance with the guidelines under Division 1 of Part 12; or
 - (ii) prescribed by the regulations; and
- (b) satisfies the Authority that the certificate of registration or registration card issued has been lost, damaged or destroyed.

Subdivision 3—Annual fee, proof of insurance and training plan report

172 Annual fee, proof of insurance and training plan report

- (1) A registered building practitioner must, on or before each anniversary of the practitioner's registration, pay to the Victorian Building Authority Fund the appropriate annual fee—
 - (a) determined in accordance with the guidelines under Division 1 of Part 12; or
 - (b) prescribed by the regulations.
- (2) If, under Part 9, a registered building practitioner, other than a person referred to in subsection (3), is required to be covered by insurance, the practitioner must on or before each anniversary of the practitioner's registration give written proof to the Authority that—

- (a) until the next anniversary of the registration or, subject to any conditions the Authority imposes, any lesser period approved by the Authority, the practitioner will be covered by the required insurance; or
 - (b) to the extent that the practitioner is a builder engaged in domestic building work with a cost that is more than the prescribed amount, the practitioner is eligible to be covered by the required insurance.
- (3) A person who has automatic deemed registration to carry out an activity that may be carried out under a registration under this Part must, on or before each anniversary after the commencement of the person's automatic deemed registration, give to the Authority written proof that, until the next anniversary of the commencement of that automatic deemed registration, the person will be covered or is eligible to be covered (as applicable), by any required insurance for that registration under this Part.
- (4) If a person is required under this section to provide written proof to the Authority in relation to required insurance, the person must ensure that the written proof is accompanied by the appropriate fee for examination of the written proof by the Authority—
 - (a) determined in accordance with the guidelines under Division 1 of Part 12; or
 - (b) prescribed by the regulations.
- (5) A provisionally registered builder subcontractor must, on each anniversary of the builder subcontractor's registration, report to the Authority on the builder subcontractor's progress in complying with a training plan (if applicable),

the compliance with which is a condition of the registration under section 171H(1B).

(6) In this section—

prescribed amount means—

- (a) the amount prescribed by the regulations (if any); or
- (b) if an amount is not prescribed, \$16 000.

Subdivision 4—Renewal and surrender of registration

173 Renewal of registration

S. 173
(Heading)
amended by
No. 46/2018
s. 17(1).

S. 173
substituted by
No. 21/2017
s. 7.

S. 173(1)
amended by
No. 46/2018
s. 17(2).

- (1) The Authority may grant a renewal of registration, other than provisional registration, on the application of the registered building practitioner.
- (2) An application for the renewal of registration must be made at least 3 months before the registration expires.
- (3) This Division applies to a renewal of registration in the same manner as it applies to a registration.
- (4) A prescribed qualification accepted under section 171 for the registration of a building practitioner is taken to be the appropriate prescribed qualification for the renewal of that registration.
- (5) Without limiting subsection (1), in considering whether to grant a renewal of registration, the Authority may have regard to—

- (a) whether the applicant has complied with any prescribed continuing professional development requirements; and
 - (b) whether the applicant complies with any other renewal criteria or conditions prescribed by the regulations.
- (6) A building practitioner's registration is taken to be current despite the expiration date of the registration having passed if—
 - (a) the building practitioner applied for the renewal of the registration within the time specified in subsection (2); and
 - (b) a decision in relation to the renewal of the registration is not made by the Authority before the registration of the building practitioner would otherwise have expired but for this section.
- (7) A registration continued under subsection (6) remains current until the Authority makes a decision in relation to the application for renewal of the registration under this section.
- (8) A renewal of registration granted after a building practitioner's registration would otherwise have expired but for subsection (6) must include the period for which the building practitioner was taken to be registered.

173A Authority may permit late renewals

- (1) The Authority may renew the registration of a person even though the person did not apply for the renewal within the time required by section 173(2).

S. 173A
inserted by
No. 21/2017
s. 7.

- (2) However, the Authority may only do this if—
- (a) the person pays the late renewal fee—
 - (i) determined in accordance with the guidelines under Division 1 of Part 12; or
 - (ii) prescribed by the regulations; and
 - (b) if the registration has expired, it is satisfied that—
 - (i) the person did not represent that the person was registered after the expiry of the person's registration; and
 - (ii) the person did not carry out building work under a major domestic building contract after the expiry of the person's registration; and
 - (iii) in the case of a building surveyor or building inspector, the person did not carry out work as a building surveyor or building inspector (as the case applies) after the expiry of the person's registration.

S. 173B
inserted by
No. 21/2017
s. 7.

173B Surrender of registration

A registered building practitioner may, with the consent of the Authority, surrender the practitioner's registration.

Subdivision 5—Nominee directors

New s. 174
inserted by
No. 21/2017
s. 7.

174 General duty of nominee director

- (1) A nominee director of a registered body corporate must ensure that the body corporate complies with the requirements of this Act and the regulations.

Penalty: 500 penalty units.

- (2) Nothing in subsection (1) affects the obligation on a body corporate to comply with the requirements of this Act and the regulations.

Subdivision 6—Register of Building Practitioners

175AA Definitions

In this Subdivision—

criminal proceeding means a proceeding for an offence against a relevant law;

criminal sanction means a conviction or finding of guilt in a criminal proceeding in relation to an offence under a relevant law and any penalty imposed for that offence;

disciplinary proceeding means—

- (a) a proceeding under Subdivision 5 of Division 3; or
- (b) a proceeding on an application for review under Division 4 of a decision under Subdivision 5 of Division 3;

disciplinary sanction means a decision in a disciplinary proceeding to cancel or suspend a registration or to take disciplinary action;

relevant law means—

- (a) this Act or the regulations; or
- (b) the **Domestic Building Contracts Act 1995** and the regulations under that Act.

175 The Register of Building Practitioners

- (1) The Authority must keep a Register of Building Practitioners.

S. 175AA
inserted by
No. 21/2017
s. 7.

S. 175
substituted by
No. 21/2017
s. 7.

(2) The Register must—

S. 175(2)(b)
amended by
No. 1/2023
s. 6(1).

- (a) be in the form (if any) and contain the information (if any) required by the regulations; and
- (b) include the names and categories and classes of registration of persons who applied for, and were granted, registration under this Part; and

S. 175(2)(c)
inserted by
No. 1/2023
s. 6(2).

- (c) if a person has automatic deemed registration to carry out any activities that may be carried out under a registration under this Part, include the name of that person and those activities.

(3) The Register may include details of—

S. 175(3)(b)
amended by
No. 1/2023
s. 6(3).

- (a) any criminal sanction imposed on the registered person; and
- (b) any disciplinary sanction imposed on the registered person by the Authority or imposed on a person referred to in subsection (2)(c) by the local registration authority in that person's home State.

S. 175A
inserted by
No. 21/2017
s. 7.

175A Time for inclusion of information in the Register of Building Practitioners

- (1) If, under section 175(2), the regulations require the details specified in section 175(3) to be included in the Register of Building Practitioners, the Authority must record that information in the Register as soon as practicable after the prescribed period after the criminal sanction or disciplinary sanction is imposed.
- (2) Information about a disciplinary sanction is to remain on the register until the expiry of 5 years after the sanction is imposed or ceases to have effect, whichever is the later.

(3) Information about a criminal sanction is to remain on the register for 5 years after the sanction is imposed or ceases to have effect, whichever is the later.

(4) In this section—

prescribed period means—

- (a) in the case of a disciplinary sanction, the later of the following to occur—
 - (i) the end of the period within which an application for review of the decision to impose a disciplinary sanction may be made to VCAT;
 - (ii) if an application for review of the decision to impose a disciplinary sanction is made to VCAT, a decision by VCAT affirming the decision; or
- (b) in the case of a criminal sanction arising from a criminal proceeding, the later of the following to occur—
 - (i) the end of the period within which an appeal may be brought against the criminal sanction;
 - (ii) if an appeal is brought against the criminal sanction, a decision made dismissing the appeal.

175AB Registered building practitioner must give information to the Authority for the Register of Building Practitioners

S. 175AB
inserted by
No. 1/2023
s. 15.

- (1) The Authority may request in writing that a registered building practitioner give to the Authority information in relation to the practitioner that is required to be included in the Register of Building Practitioners.

- (2) A registered building practitioner must comply with a request under subsection (1) from the Authority within 5 business days after receiving the request.

Penalty: 10 penalty units, in the case of a natural person;
50 penalty units; in the case of a body corporate.

S. 175B
inserted by
No. 21/2017
s. 7.

175B Changes to information on the Register of Building Practitioners

- (1) A registered building practitioner must give the Authority written notice of any change to the information required to be kept on the Register of Building Practitioners provided to the Authority within 14 days after the change occurs.

Penalty: 10 penalty units, in the case of a natural person;
50 penalty units, in the case of a body corporate.

- (2) The Authority must update the Register of Building Practitioners on receiving notification of any change of information under subsection (1).

S. 175C
inserted by
No. 21/2017
s. 7.

175C Authority to be advised of nominee director changes

A registered body corporate must give to the Authority written notice containing the prescribed information within 5 business days after the body corporate—

- (a) ceases to have a nominee director; or
(b) changes a nominee director.

Penalty: 1200 penalty units.

175D Publication of information on Register of Building Practitioners

S. 175D
inserted by
No. 21/2017
s. 7.

- (1) The Authority must publish on an Internet site maintained by the Authority the information on the Register of Building Practitioners that is required by the regulations to be published.
- (2) The Authority may publish on an Internet site maintained by the Authority the information on the Register of Building Practitioners that is permitted by the regulations to be published.

Subdivision 7—General

176 Certificate of registration to be returned to Authority

S. 176
substituted by
No. 21/2017
s. 7.

- (1) The Authority may ask a person who holds a registration under this Division for the return of the certificate of registration—
 - (a) for the purpose of altering the details on the certificate of registration; or
 - (b) if the registration is suspended or cancelled; or
 - (c) for any purpose authorised by this Act or the regulations.
- (2) A person who holds a registration under this Division must return the certificate of registration to the Authority as soon as is practicable after being asked to do so by the Authority under subsection (1).

Penalty: 10 penalty units.

S. 176A
(Heading)
amended by
No. 26/2019
s. 125(1).

S. 176A
inserted by
No. 21/2017
s. 7,
amended by
No. 26/2019
s. 125(2)(3)
(ILA s. 39B(1)).

176A Registered building practitioner or endorsed building engineer to produce certificate of registration for inspection

- (1) A registered building practitioner or endorsed building engineer or, in the case of a registered body corporate, the nominee director of the registered building practitioner must produce their certificate of registration for inspection if asked to do so by—
- (a) any person—
 - (i) with whom the registered building practitioner has entered into a major domestic building contract; or
 - (ii) to whom the registered building practitioner has made a statement indicating that the practitioner is willing or prepared to enter into a major domestic building contract; or
 - (b) the owner or occupier of any land or building—
 - (i) on which building work is being carried out by the registered building practitioner; or
 - (ii) to which a major domestic building contract entered into by the registered building practitioner applies; or
 - (c) a private building surveyor in relation to any land or building—
 - (i) on which building work is being carried out by the registered building practitioner; or
 - (ii) to which a major domestic building contract entered into by the registered building practitioner applies; or

- (d) a VBA inspector; or
- (e) a plumbing inspector; or
- (f) a compliance auditor; or
- (g) a municipal building surveyor or a person authorised by a municipal building surveyor; or
- (h) an Energy Safe inspector.

Penalty: 10 penalty units.

(2) In this section—

certificate of registration includes—

- (a) a certificate of registration issued to an endorsed building engineer under the **Professional Engineers Registration Act 2019**; and
- (b) in the case of a person who has automatic deemed registration as a building practitioner, evidence of the person's home State registration.

S. 176A(2)
inserted by
No. 26/2019
s. 125(3),
substituted by
No. 1/2023
s. 7.

Division 2—Codes of conduct for building practitioners

Pt 11 Div. 2
(Heading and
ss 177–182)
amended by
Nos 91/1995
ss 148–151,
34/1997 ss 12,
13, 52/1998
s. 311(Sch. 1
items 10.7,
10.8), 26/2001
s. 11(2),
68/2001 s. 10,
36/2002 s. 11,
36/2008
ss 8–11,
9/2012 ss 3, 4,
34/2013 ss 10,
34(Sch. 1
items 21–24),
15/2016
s. 18(1)–
(3)(6)(7),
substituted as
Pt 11 Div. 2
(Heading and
ss 177–177D)
by
No. 15/2016
s. 25.

New s. 177
inserted by
No. 15/2016
s. 25.

177 Authority may approve codes of conduct for building practitioners

- (1) The Authority may approve codes of conduct for building practitioners in accordance with this Division.
- (2) A code of conduct may make different provision for different categories or classes of building practitioners.

S. 177A
inserted by
No. 15/2016
s. 25.

177A Code of conduct prepared by Authority or industry

- (1) A code of conduct approved by the Authority under this Division may be—
 - (a) a code of conduct prepared by the Authority;
or

- (b) a code of conduct prepared and submitted to the Authority by an organisation representing building practitioners.
- (2) In preparing a code of conduct under subsection (1)(a), the Authority—
 - (a) must consult with any prescribed organisation representing building practitioners; and
 - (b) may consult with any other organisation.
- (3) The Authority may make changes to a code of conduct submitted to the Authority under subsection (1)(b).
- (4) Before making changes to a code of conduct under subsection (3), the Authority—
 - (a) must consult with the organisation that submitted the code of conduct; and
 - (b) may consult with any other organisation.

177B Code of conduct must be published

A code of conduct approved by the Authority under this Division must be published in the Government Gazette.

S. 177B
inserted by
No. 15/2016
s. 25.

177C Commencement of code of conduct

A code of conduct comes into operation on the later of—

- (a) the day on which the code of conduct is published in the Government Gazette; or
- (b) the day specified in the code of conduct as the day on which the code of conduct comes into operation.

S. 177C
inserted by
No. 15/2016
s. 25.

S. 177D
inserted by
No. 15/2016
s. 25.

177D Building practitioners must comply with approved code of conduct

A building practitioner must comply with any code of conduct approved under this Division that is applicable to the building practitioner's category or class of registration.

Note

Section 179(1)(b) provides that disciplinary action may be taken by the Authority against a registered building practitioner who fails to comply with an approved code of conduct.

Pt 11 Div. 2A
(Heading and
s. 182A)
inserted by
No. 34/2013
s. 11,
amended by
15/2016
s. 18(1)(3)(7),
repealed by
No. 15/2016
s. 25.

* * * * *

Division 3—Disciplinary proceedings and action

Subdivision 1—Preliminary

Pt 11 Div. 3
(Heading and
ss 183–187
amended by
Nos 2/1996
s. 12, 34/1997
ss 14, 15,
18/1998 s. 5,
68/2001
s. 8(2),
35/2004 s. 36,
66/2004 ss 12,
13, 18/2005
s.18(Sch. 1
item 10.2),
34/2013
s. 22(2),
17/2014
s. 160(Sch. 2
item 11),
repealed by
No. 15/2016
s. 17,
new Pt 11
Div. 3
(Headings
and ss
178–183E)
inserted by
No. 15/2016
s. 25.

177E Application of Division to endorsed building engineers

S. 177E
inserted by
No. 26/2019
s. 126.

This Division applies (with any necessary modifications) to an endorsed building engineer—

- (a) as if a reference to a registered building practitioner were a reference to an endorsed building engineer; and
- (b) as if a reference to the registration of a registered building practitioner were a reference to the endorsement of the registration (within the meaning of the **Professional Engineers Registration Act 2019**) of an endorsed building engineer; and

- (c) as if a reference to practising as a building practitioner were a reference to practising as an engineer engaged in the building industry.

New s. 178
inserted by
No. 15/2016
s. 25.

178 Meaning of disciplinary action

In this Division, *disciplinary action* in relation to a registered building practitioner means one or more of the following—

- (a) reprimand the practitioner;
- (b) direct the practitioner—
 - (i) to do a specified thing, including to rectify or complete specified building work; or
 - (ii) not to do a specified thing;
- (c) require the practitioner to successfully complete a specified course of training within a specified period;
- (d) impose a penalty of not more than 150 penalty units, in the case of a natural person, or 750 penalty units, in the case of a body corporate, unless—
 - (i) a charge has been filed in the Magistrates' Court in relation to the matter; or
 - (ii) the matter has been dealt with by a court exercising its criminal jurisdiction; or
 - (iii) the matter has been dealt with by the issue of an infringement notice;
- (e) vary a condition (other than a prescribed condition), or impose a condition, on the practitioner's registration;

S. 178(d)
amended by
No. 21/2017
s. 8(1).

- (f) suspend registration for not more than 3 years either wholly, or as a partial suspension in relation to a specified matter;
- (g) cancel registration;
- (ga) disqualify the practitioner from being a nominee director of a registered body corporate or a specified registered body corporate for a specified period not exceeding the period during which the body corporate is registered; S. 178(ga)
inserted by
No. 21/2017
s. 8(2).
- (gb) in the case of a registered body corporate, disqualify a registered building practitioner who is an officer of the body corporate from being a nominee director, or being otherwise involved in the management, of the body corporate for a specified period not exceeding the period during which the body corporate is registered; S. 178(gb)
inserted by
No. 21/2017
s. 8(2).
- (h) disqualify the practitioner for a specified period of up to 3 years from being registered in any category or class of building practitioner. S. 178(h)
substituted by
No. 46/2018
s. 45.

178A Division applies to suspended practitioners

- (1) Subject to subsection (2), this Division (except Subdivision 3) applies to a building practitioner whose registration is suspended but who was registered at the time the conduct that forms the ground for disciplinary action occurred as if the practitioner were a registered building practitioner.
- (2) The Authority must not give a show cause notice under Subdivision 5 in relation to a matter to a building practitioner whose registration is suspended after the end of the 3 year period immediately following the suspension if the suspension relates to that matter.

S. 178A
inserted by
No. 15/2016
s. 25.

Subdivision 2—Grounds for disciplinary action

179 Grounds for disciplinary action

New s. 179
inserted by
No. 15/2016
s. 25.

(1) Each of the following is a ground for which disciplinary action may be taken against a registered building practitioner—

(a) the practitioner has contravened—

S. 179(1)(a)(i)
substituted by
No. 11/2023
s. 11.

(i) a provision of this Act or the regulations including any binding determination that applies to that provision; or

(ii) the **Domestic Building Contracts Act 1995** or the regulations under that Act; or

S. 179(1)(a)(iii)
amended by
No. 26/2019
s. 127(a).

(iii) a prescribed Act or law or a prescribed provision of a prescribed Act or law; or

S. 179(1)(a)(iv)
inserted by
No. 26/2019
s. 127(b).

(iv) the **Professional Engineers Registration Act 2019** or the regulations under that Act;

(b) the practitioner has engaged in unprofessional conduct or has failed to comply with a code of conduct;

(c) the practitioner has failed to comply with an order or direction (other than an oral direction to fix building work under Division 2 of Part 4) given to the practitioner—

(i) by the relevant building surveyor under this Act; or

(ii) an authorised person under Division 2 of Part 4;

- (ca) the practitioner has failed to comply with a Ministerial direction under section 188AA; S. 179(1)(ca) inserted by No. 46/2018 s. 46(1).
- (d) the practitioner has failed to comply with a determination or direction of the Authority or VCAT under this Act or the **Domestic Building Contracts Act 1995**;
- (da) the practitioner has failed to comply with a dispute resolution order under the **Domestic Building Contracts Act 1995**; or S. 179(1)(da) inserted by No. 15/2016 s. 63(1).
- (db) the practitioner has been issued with a breach of dispute resolution order notice under section 49U(5) of the **Domestic Building Contracts Act 1995** for failure to comply with a dispute resolution order under that Act and the chief dispute resolution officer has given written notice to the Authority accordingly; S. 179(1)(db) inserted by No. 46/2018 s. 46(2).
- (e) the practitioner has failed to comply with a reasonable direction of an insurer in relation to—
- (i) the completion or rectification of defective building work; or
 - (ii) any payment to be made to the insurer in relation to the rectification or completion of defective building work in accordance with the required insurance;
- (f) the practitioner has engaged in conduct in relation to the practitioner's practice as a building practitioner that is—
- (i) constituted by a pattern of incompetence; or
 - (ii) negligent in a particular matter;

Building Act 1993
No. 126 of 1993
Part 11—Registration of building practitioners

S. 179(1)(g)
amended by
No. 46/2018
s. 46(3).

(g) the Authority believes on reasonable grounds that the practitioner is not a fit and proper person to practise as a building practitioner;

(h) the practitioner has obtained the practitioner's registration under this Part or any required insurance on the basis of information or a document that was false or misleading;

S. 179(1)(ha)
inserted by
No. 21/2017
s. 9.

(ha) the practitioner is a body corporate and the practitioner has no nominee director;

S. 179(1)(hb)
inserted by
No. 21/2017
s. 9.

(hb) the practitioner is a nominee director and the practitioner has failed to comply with a duty under section 174;

S. 179(1)(hc)
inserted by
No. 21/2017
s. 9.

(hc) the practitioner has failed to comply with a direction under section 80D;

(i) the practitioner has failed to comply with a condition of the practitioner's registration;

(j) the practitioner has failed to comply with an undertaking given to the Authority under this Act;

(k) the practitioner has made or purported to make an appointment of a building surveyor in contravention of section 78(1A) or has accepted such an appointment or purported appointment in contravention of section 78(1B);

(l) the practitioner has not completed the relevant prescribed continuing professional development requirements (if any);

- (m) the practitioner has not paid a fee or other amount required to be paid under—
 - (i) this Act or the regulations; or
 - (ii) the **Domestic Building Contracts Act 1995** or the regulations under that Act; or
 - (iii) a prescribed Act or law;
 - (n) the practitioner has not paid an adjudicated amount due to be paid under the **Building and Construction Industry Security of Payment Act 2002** and—
 - (i) the period for making an adjudication review application under that Act in relation to that amount has expired; and
 - (ii) the practitioner has not made an adjudication review application in relation to that amount within that period;
 - (o) a ground for immediate suspension exists in relation to the practitioner.
- (2) The Authority may make inquiries to determine whether a ground exists for taking disciplinary action under this Part.
- (3) Without limiting its powers to consider information, the Authority may have regard to a report of an assessor under section 48R of the **Domestic Building Contracts Act 1995** where relevant to any matter being dealt with under this Division.
- (4) For the avoidance of doubt, a disciplinary action on the ground set out in subsection (1)(da) or (db) may be commenced together with or separately to any disciplinary action relating to the building work that is the subject of the dispute resolution order.

S. 179(3)
inserted by
No. 15/2016
s. 63(2).

S. 179(4)
inserted by
No. 46/2018
s. 46(4).

S. 179(5)
inserted by
No. 46/2018
s. 46(4).

(5) If the breach of dispute resolution order notice referred to in subsection (1)(db) is cancelled by the chief dispute resolution officer under section 49V of the **Domestic Building Contracts Act 1995**—

- (a) the ground for disciplinary action under subsection (1)(db) ceases to exist; and
- (b) any suspension or partial suspension imposed by the Authority or VCAT in relation to that ground is terminated.

S. 179(6)
inserted by
No. 46/2018
s. 46(4).

(6) A disciplinary action relating to the building work that is the subject of the dispute resolution order referred to in subsection (5) is not terminated by reason of the cancellation of the breach of dispute resolution order notice.

S. 179(7)
inserted by
No. 46/2018
s. 46(4).

(7) In this section—
chief dispute resolution officer has the same meaning as in the **Domestic Building Contracts Act 1995**.

New s. 179A
inserted by
No. 15/2016
s. 25.

179A Conduct of body corporate or partnership to be conduct of building practitioner director or partner

If a body corporate or a partnership of which a registered building practitioner is a director or partner contravenes this Act or the regulations or the **Domestic Building Contracts Act 1995** or the regulations under that Act in the carrying out of building work, that contravention is taken to have been a contravention by the registered building practitioner for the purposes of section 179.

S. 179B
inserted by
No. 46/2018
s. 47.

179B Mandatory cancellation of registration if practitioner is not a fit and proper person

(1) If the Authority or VCAT makes a finding in the course of disciplinary proceedings that a registered building practitioner is

not a fit and proper person, the Authority or VCAT must cancel the registered building practitioner's registration.

- (2) A cancellation under subsection (1)—
- (a) may be limited to cancellation of the registered building practitioner's registration in a specific category or class; or
 - (b) may relate to cancellation of all categories or classes of registration of the practitioner.
- (3) The Authority or VCAT may take other disciplinary action in accordance with section 179 in addition to a cancellation of registration under subsection (1).

Subdivision 3—Immediate suspension of registration

180 Grounds for immediate suspension

A ground for the immediate suspension of the registration of a registered building practitioner exists if—

- (a) the practitioner is insolvent under administration or is an officer of a body corporate that is subject to external administration within the meaning of section 5-5 of Schedule 2 to the Corporations Act; or
- (b) the practitioner has contravened—
 - (i) a prescribed provision of this Act or the regulations; or
 - (ia) section 43B(1) or (2) of the **Domestic Building Contracts Act 1995**; or

New s. 180
inserted by
No. 15/2016
s. 25.

S. 180(a)
amended by
No. 47/2017
s. 11.

S. 180(b)(ia)
inserted by
No. 4/2024
s. 10.

- (ii) a prescribed provision of the **Domestic Building Contracts Act 1995** or the regulations under that Act; or
- (iii) a prescribed Act or law or a prescribed provision of a prescribed Act or law; or
- (c) the practitioner has been convicted of an indictable offence involving fraud, dishonesty, drug trafficking or violence; or
- (d) the practitioner has ceased to be covered by the required insurance; or
- (e) the practitioner is a body corporate and the practitioner has no nominee director; or
- (f) the practitioner is an excluded person; or
- (g) the practitioner has failed to comply with a condition of the practitioner's registration.
- S. 180(e)
substituted by
No. 21/2017
s. 10.
- S. 180(f)
inserted by
No. 21/2017
s. 10.
- S. 180(g)
inserted by
No. 21/2017
s. 10.

New s. 180A
inserted by
No. 15/2016
s. 25.

180A Immediate suspension of registration

S. 180A(1)
amended by
No. 21/2017
ss 11(1), 95(7).

- (1) Subject to section 180C, the Authority may, by written notice given to a registered building practitioner, immediately suspend the registration of the registered building practitioner if the Authority reasonably believes a ground for immediate suspension exists under section 180 (other than paragraph (d)) in relation to the practitioner.

- (2) The Authority must, by written notice given to a registered building practitioner, immediately suspend the registration of the registered building practitioner if the Authority reasonably believes that the practitioner has ceased to be covered by the required insurance.
- (2A) The Authority must, by written notice given to a registered building practitioner, immediately suspend the registration of the registered building practitioner if the Authority considers it is in the interests of the public to do so pending the show cause process. **S. 180A(2A) inserted by No. 46/2018 s. 48(1).**
- (2B) For the purpose of subsection (2A), matters that the Authority may have regard to in deciding whether it is in the interests of the public to immediately suspend the registration of a registered building practitioner include the following— **S. 180A(2B) inserted by No. 46/2018 s. 48(1).**
- (a) whether the registered building practitioner is performing, has performed or has allowed others under the practitioner's control to perform building work that poses a serious risk to neighbouring properties;
 - (b) whether the registered building practitioner is performing, has performed or has allowed others under the practitioner's control to perform building work that poses a risk to the health and safety of persons;
 - (c) whether the registered building practitioner has been the subject of multiple adverse disciplinary actions by the Authority.
- (3) The Authority may suspend a registration under subsection (1) either wholly or as a partial suspension in relation to a specified matter.
- (4) The notice must state the following—
- (a) the decision;

- (b) the ground or grounds under section 180 for the decision;
 - (c) the period of the suspension;
 - (d) that the building practitioner may apply to VCAT under this Part for review of the decision.
- (5) The Authority must provide written reasons for the immediate suspension within 5 business days after giving the notice.
- (6) The Authority must give the building practitioner a show cause notice under section 182 without delay after giving the notice under subsection (1).

S. 180A(6)
amended by
No. 46/2018
s. 48(2).

S. 180B
inserted by
No. 15/2016
s. 25.

180B Period of suspension

- (1) A suspension under section 180A—
- (a) takes effect when the notice is given to the building practitioner; and
 - (b) continues for the period specified in the notice unless either of the following occurs—
 - (i) the suspension is revoked by the Authority;
 - (ii) the suspension is set aside on an application for review under this Part.
- (2) The Authority must revoke a suspension under section 180A(1) if the Authority determines that no ground for immediate suspension under that provision exists.
- (3) The Authority must revoke a suspension under section 180A(2) if the practitioner gives the Authority written proof that—
- (a) the practitioner is covered by the required insurance; and

- (b) the insurance cover is provided until the next anniversary of the practitioner's registration.
- (4) The suspended person must ensure that the written proof is accompanied by the appropriate fee for the examination of the written proof by the Authority—
 - (a) determined in accordance with the guidelines under Division 1 of Part 12; or
 - (b) prescribed by the regulations.

S. 180B(4)
inserted by
No. 1/2023
s. 16.

180C Period of grace where director dies or resigns or is removed or disqualified

S. 180C
inserted by
No. 21/2017
s. 12.

- (1) This section applies if a registered building practitioner that is a body corporate no longer has any nominee director because a nominee director has—
 - (a) died; or
 - (b) resigned as director; or
 - (c) been removed as a director; or
 - (d) been disqualified from being a director under Part 2D.6 of the Corporations Act.
- (2) The Authority must not suspend the registration of the body corporate under section 180A, or take any other disciplinary action, for the failure to have a nominee director unless the body corporate still has no nominee director at the end of 30 days or any longer period approved under subsection (3) after the death, resignation, removal or disqualification.
- (3) The Authority, at the written request of the registered building practitioner, may approve a longer period for the purposes of subsection (2).
- (4) The approval may be subject to any conditions the Authority thinks fit.

Subdivision 4—Ability to practise

New s. 181
inserted by
No. 15/2016
s. 25.

181 Ability to practise

- (1) This section applies if the Authority is satisfied that a registered building practitioner is incapable of practising as a building practitioner because of physical or mental infirmity.
- (2) The Authority may decide to—
 - (a) suspend the person's registration for not more than 3 years; or
 - (b) cancel the person's registration.
- (3) A decision under subsection (2)(a) may be made more than once.
- (4) Subdivision 5 and Division 4 apply to a proposed decision under this section as if—
 - (a) the circumstances in subsection (1) were a ground for disciplinary action; and
 - (b) the decision were a disciplinary action.

S. 181A
inserted by
No. 15/2016
s. 25.

181A Revocation of suspension

- (1) A person may apply to the Authority to revoke the suspension of the person's registration under section 181.
- (2) An application must be made in the form and contain the information required by the Authority.
- (3) The Authority must consider the application unless the Authority considers it to be frivolous, vexatious or lacking in substance.
- (4) The Authority may at any time revoke a suspension under section 181 if it is satisfied that the registered building practitioner is capable of practising as a building practitioner.

- (5) The Authority must, without delay, give written notice of the decision to the registered building practitioner.

Subdivision 5—Show cause process

182 Show cause notice

New s. 182
inserted by
No. 15/2016
s. 25.

- (1) Subject to subsection (6), if the Authority reasonably believes a ground for taking disciplinary action against a registered building practitioner exists and proposes to take that action, the Authority must give the registered building practitioner a notice under this section (a ***show cause notice***).

S. 182(1)
amended by
No. 46/2018
s. 49(1).

- (1A) In the case of disciplinary action on the ground set out in section 179(1)(db), the Authority must give a show cause notice by the later of the following—

S. 182(1A)
inserted by
No. 46/2018
s. 49(2).

- (a) within 28 days of receiving the breach of dispute resolution order notice from the chief dispute resolution officer;
- (b) within the prescribed period.

- (2) The show cause notice must state the following—

- (a) that the Authority proposes to take disciplinary action;
- (b) the disciplinary action proposed to be taken;
- (c) the registration in relation to which the proposed action is to be taken;
- (d) the ground for the proposed action;
- (e) an outline of the facts and circumstances forming the basis for the ground for the proposed action;

- (f) an invitation to the registered building practitioner to show within a stated period (the ***show cause period***) why the proposed action should not be taken.
- (3) The show cause period must be a period ending at least 14 days after the show cause notice is given to the registered building practitioner.
- (4) The Authority, at the request of the registered building practitioner, may extend the show cause period stated in the show cause notice and in that case the extended period becomes the show cause period.
- (5) In the case of a show cause notice issued in relation to disciplinary action on the ground under section 179(1)(db), the disciplinary action proposed to be taken must include a suspension under section 178(f).
- (6) The Authority is not required to give the registered building practitioner a show cause notice if—
 - (a) the Authority has issued a notice of immediate suspension under section 180A(2); and
 - (b) the Authority does not propose to take any other disciplinary action.

S. 182(5)
inserted by
No. 46/2018
s. 49(3),
amended by
No. 40/2021
s. 53(2).

S. 182(6)
inserted by
No. 46/2018
s. 49(3).

New s. 182A
inserted by
No. 15/2016
s. 25.

182A Representations about show cause notice

- (1) The registered building practitioner may—
 - (a) make written representations about the show cause notice to the Authority within the show cause period; or
 - (b) make oral representations about the show cause notice to the Authority at the time within the show cause period, and at the place, agreed by the Authority and the registered building practitioner.

- (2) The Authority must keep a record of oral representations made to it under subsection (1)(b).

182B Decision about whether to take disciplinary action

S. 182B
inserted by
No. 15/2016
s. 25.

Within 28 days after the show cause period ends, the Authority must decide whether a ground exists to take disciplinary action against the registered building practitioner.

182C Ending show cause process without further action

S. 182C
inserted by
No. 15/2016
s. 25.

If the Authority no longer believes a ground exists to take disciplinary action against the registered building practitioner, the Authority—

- (a) must take no further action about the show cause notice; and
- (b) must revoke any suspension under section 180A(1) that relates to the matter that is the subject of the show cause notice; and
- (c) must, as soon as practicable after making its decision, give notice to the registered building practitioner that no further action will be taken about the show cause notice.

182D Disciplinary or other action by Authority on giving of undertaking

S. 182D
inserted by
No. 15/2016
s. 25,
amended by
No. 46/2018
s. 50(1)(2) (ILA
s. 39B(1)).

- (1) If the Authority believes a ground exists to take disciplinary action against the registered building practitioner (other than the ground under section 179(1)(db)), the Authority may—
 - (a) accept an undertaking from the practitioner under section 234B; and
 - (b) do any of the following—
 - (i) defer taking the proposed disciplinary action for a specified period;

S. 182D(2)
inserted by
No. 46/2018
s. 50(2).

- (ii) take disciplinary action that the Authority considers to be less serious than the proposed disciplinary action;
 - (iii) take no further action.
- (2) Despite subsection (1), if the Authority believes that the ground under section 179(1)(db) exists to take disciplinary action against the registered building practitioner, and if the registered building practitioner demonstrates that there may be exceptional circumstances in relation to any failure by the practitioner to seek review of the breach of dispute resolution order notice within the time limit fixed under section 66 of the **Domestic Building Contracts Act 1995**, the Authority may—
 - (a) accept an undertaking from the practitioner under section 234B that the practitioner will—
 - (i) make an application to VCAT as soon as possible for extension of the time limit to apply for review of the decision to issue a breach of dispute resolution order notice; and
 - (ii) inform the Authority—
 - (A) when the application has been made; and
 - (B) as to the outcome of the application; and
 - (C) as to the date of any hearing relating to the application; and
 - (b) defer taking the proposed disciplinary action for a specified period, which may be extended by the Authority if the practitioner's application to VCAT is successful.

(3) For the avoidance of doubt—

- (a) the Authority cannot accept an undertaking from the registered building practitioner in relation to subsection (2) other than the undertaking specified in subsection (2)(a); and
- (b) if the practitioner fails to comply with the undertaking, or if VCAT rejects the application for an extension of time, the Authority must proceed with the proposed disciplinary action on the ground under section 179(1)(db) that was deferred under subsection (2)(b); and
- (c) any exceptional circumstances referred to in subsection (2) cannot be taken into account by the Authority in deciding on the disciplinary action to be taken against the practitioner.

S. 182D(3)
inserted by
No. 46/2018
s. 50(2).

182E Taking disciplinary action after show cause notice

S. 182E
inserted by
No. 15/2016
s. 25.

- (1) Subject to subsection (1A), if the Authority believes a ground exists to take disciplinary action against the registered building practitioner, the Authority may—
 - (a) take the disciplinary action proposed in the show cause notice; or
 - (b) on the basis of representations made or new evidence received, take disciplinary action that the Authority considers to be less serious than the disciplinary action referred to in paragraph (a).

S. 182E(1)
amended by
No. 46/2018
s. 51(1).

S. 182E(1A)
inserted by
No. 46/2018
s. 51(2),
amended by
No. 40/2021
s. 53(3).

- (1A) If the Authority believes the ground set out in section 179(1)(db) exists to take disciplinary action against the registered building practitioner, the Authority must take the disciplinary action proposed in the show cause notice.
- (2) The Authority must, as soon as practicable after making its decision, give a written notice about the decision to the registered building practitioner.
- (3) The notice must state the following—
 - (a) the decision;
 - (b) the reasons for the decision;
 - (c) that the practitioner may apply under Division 4 for review of the decision within 28 days.
- (4) The decision takes effect on the later of—
 - (a) the day the notice is given to the registered building practitioner; or
 - (b) the day stated in the notice.

Subdivision 6—General provisions relating to disciplinary action

New s. 183
inserted by
No. 15/2016
s. 25.

183 Notice of decisions

- (1) The Authority must give notice of a decision under this Division in relation to a registered building practitioner to any person who made a complaint to the Authority about the matter to which the decision relates.
- (2) If the Authority is aware that a registered building practitioner is a member of a professional association or is employed by a particular person, the Authority must cause notice of any decision concerning the practitioner made under this Division to be given to that association or

employer without delay after the decision takes effect.

183A Building practitioner to give notice

S. 183A
inserted by
No. 15/2016
s. 25.

A person who has had a registration as a building practitioner cancelled or suspended under this Division must, without delay after the decision to cancel or suspend the registration takes effect, give notice in the prescribed form (if any) of the cancellation or suspension to any person who has a contract with the person relating to, or arising out of, the carrying out of the practitioner's work as a registered building practitioner.

Penalty: 50 penalty units.

183B Complaint privileged

S. 183B
inserted by
No. 15/2016
s. 25.

A person is not liable in any way for any loss, damage, or injury suffered by another person solely because the first person in good faith—

- (a) lodged a complaint with the Authority in relation to a registered building practitioner; or
- (b) produced or gave a document or any information or evidence to the Authority in relation to a matter that constitutes or may constitute a contravention of—
 - (i) this Act or the regulations; or
 - (ii) the **Domestic Building Contracts Act 1995** or the regulations under that Act; or
 - (iii) a prescribed Act or law or a prescribed provision of a prescribed Act or law.

S. 183C
inserted by
No. 15/2016
s. 25.

183C Consequences of suspension of registration

- (1) While a person's registration as a building practitioner is suspended, the practitioner is taken not to be registered under this Part either wholly or, if it is a partial suspension, in relation to the matter specified in the suspension.
- (2) A person whose registration as a building practitioner, other than a provisionally registered building practitioner, is suspended may apply for a renewal of that registration during the period of suspension but the renewed registration remains suspended either wholly or as a partial suspension (as the case requires) in accordance with the terms of the suspension until the registration is cancelled or the suspension ends or is revoked.

S. 183C(2)
amended by
No. 46/2018
s. 18.

S. 183D
inserted by
No. 15/2016
s. 25.

183D Revocation of suspension

- (1) The Authority may at any time revoke a suspension under Subdivision 5 if satisfied that it is appropriate to do so.
- (2) The Authority must, without delay, give written notice of the revocation to the registered building practitioner.

S. 183E
inserted by
No. 15/2016
s. 25.

183E Authority may recover penalties

Any amount that the Authority requires a registered building practitioner to pay by way of a penalty under this Division may be recovered in any court of competent jurisdiction as a debt due to the Authority.

Division 4—Review of decisions relating to building practitioners

Subdivision 1—Preliminary

Pt 11 Div. 4
(Headings
and
ss 184–187)
inserted by
No. 15/2016
s. 25.

184 Definitions

In this Division—

affected person means a person directly affected
by a reviewable decision;

reviewable decision means any of the following
decisions under this Act—

- (a) a decision to refuse to grant
registration;
- (b) a decision to impose conditions
(other than prescribed conditions) on
registration;
- (c) a decision to refuse to renew
registration;
- (d) a decision to immediately suspend
registration;
- (e) a decision by the Authority to take
disciplinary action;
- (f) a decision to give a registered building
surveyor or a member of a class of
registered building surveyors a
direction under section 205M;
- (g) another decision prescribed by the
regulations as being a decision for
which a person may apply for internal
review or review by VCAT under this
Division;

review decision has the meaning set out in
section 185C;

New s. 184
inserted by
No. 15/2016
s. 25.

reviewer means a person deciding an internal review under this Division.

S. 184A
inserted by
No. 26/2019
s. 128.

184A Application of Division to endorsed building engineers

This Division applies (with any necessary modifications) to an endorsed building engineer as if a reference to a reviewable decision were a reference to any of the following decisions under this Act—

- (a) a decision to impose conditions (other than prescribed conditions) on the endorsement of the registration (within the meaning of the **Professional Engineers Registration Act 2019**) of an endorsed building engineer;
- (b) a decision to immediately suspend the endorsement of the registration (within the meaning of the **Professional Engineers Registration Act 2019**) of an endorsed building engineer;
- (c) a decision by the Authority to take disciplinary action;
- (d) another decision prescribed by the regulations as being a decision for which a person may apply for internal review or review by VCAT under this Division.

Subdivision 2—Internal review

New s. 185
inserted by
No. 15/2016
s. 25.

185 Applying for internal review

- (1) This section applies if a reviewable decision is made by a delegate of the Authority other than a Commissioner or the chief executive officer of the Authority.
- (2) A person who is directly affected by a reviewable decision may apply to the Authority for an internal review of the decision.

(3) Subject to subsections (3A) and (4), the application must be made within 28 days after the day the affected person is given notice of the reviewable decision.

S. 185(3)
amended by
No. 15/2016
s. 64(1).

(3A) An application for an internal review of a reviewable decision made in relation to a ground for disciplinary action under section 178(1)(da) or (db) may be made at any time before any disciplinary action imposed by the reviewable decision ceases to have effect.

S. 185(3A)
inserted by
No. 15/2016
s. 64(2),
substituted by
No. 46/2018
s. 52.

(4) The Authority may, at any time, extend the time for applying for an internal review.

(5) An application for an internal review must be in writing and state fully the grounds of the application.

(6) Subject to subsection (7), an application for an internal review stays the operation of the decision.

(7) An application for an internal review does not stay the operation of a decision to immediately suspend registration.

185A Who may conduct an internal review?

S. 185A
inserted by
No. 15/2016
s. 25.

(1) The Authority must appoint an employee of the Authority to conduct an internal review.

(2) An internal review must not be conducted by—

- (a) the person who made the reviewable decision; or
- (b) a person who was involved in the matters that gave rise to the reviewable decision; or
- (c) a person who holds a less senior position than a person referred to in paragraph (a) or (b).

185B Internal review

S. 185B
inserted by
No. 15/2016
s. 25.

S. 185B(1)
amended by
No. 15/2016
s. 65(1).

- (1) Subject to subsection (1A), the reviewer must conduct the internal review on—
- (a) the material before the Authority that led to the reviewable decision; and
 - (b) the reasons for the reviewable decision; and
 - (c) any other material that was not available at the time of the reviewable decision that the reviewer is satisfied is relevant.

S. 185B(1A)
inserted by
No. 15/2016
s. 65(2).

- (1A) In the case of an application referred to in section 185(3A), the reviewer may have regard to whether the affected person has done all or any of the following—
- (a) rectified or completed, or arranged for the rectification or completion of, the work specified in the dispute resolution order;
 - (b) paid compensation to the building owner, or entered into an agreement to pay compensation to the building owner or satisfied any other arrangement agreed with the building owner;
 - (c) reimbursed an insurer, or entered into an agreement to reimburse an insurer, for the costs (including administrative and legal costs) of the rectification or completion work paid for by the insurer or satisfied any other arrangement agreed with the insurer.
- (2) For the review, the reviewer must give the affected person a reasonable opportunity to make written or oral representations to the reviewer.

185C Review decisions

S. 185C
inserted by
No. 15/2016
s. 25.

- (1) The reviewer must make a decision (the **review decision**) to—
 - (a) affirm the reviewable decision; or
 - (b) amend the reviewable decision; or
 - (c) substitute another decision for the reviewable decision.
- (2) If the review decision affirms the reviewable decision, for the purpose of an application for review by VCAT, the reviewable decision is taken to be the review decision.
- (3) If the review decision amends the reviewable decision, the reviewable decision as amended is taken to be the review decision.
- (4) If the review decision substitutes another decision for the reviewable decision, the substituted decision is taken to be the review decision.

185D Notice of review decision

S. 185D
inserted by
No. 15/2016
s. 25.

- (1) The Authority must, as soon as practicable after the review decision is made, give the affected person notice (the **review notice**) of the review decision.
- (2) The review notice must state the following—
 - (a) the reasons for the decision;
 - (b) that the affected person may apply to VCAT for review of the decision under this Division.
- (3) If the Authority does not give the review notice within the review period the reviewer is taken to have made a review decision affirming the reviewable decision.

(4) In this section—

review period means the longer of—

- (a) the relevant period prescribed by the regulations (if any); or
- (b) the period ending 28 days after the application is made.

Subdivision 3—Review by VCAT

New s. 186
inserted by
No. 15/2016
s. 25.

186 Application for review by VCAT of reviewable decision

- (1) An affected person who has applied for an internal review of a reviewable decision under Subdivision 2 and is dissatisfied with the review decision may apply to VCAT for review of the review decision.
- (2) An affected person who was not eligible to apply for an internal review of a reviewable decision may apply to VCAT for review of the reviewable decision.
- (3) An affected person may apply to VCAT (without applying for internal review) for review of a reviewable decision to immediately suspend, suspend or cancel a registration.
- (4) Subject to subsection (5), an application for review of a reviewable decision or review decision must be made within—
 - (a) in the case of an application under subsection (1), 14 days after the end of the review period for internal review; or
 - (b) in any other case, 28 days after the reviewable decision or review decision is made.

S. 186(4)
amended by
No. 15/2016
s. 66(1).

- (5) An application for review of a reviewable decision imposed for a failure to comply with a dispute resolution order may be made at any time before any disciplinary action imposed by the reviewable decision ceases to have effect.

S. 186(5)
inserted by
No. 15/2016
s. 66(2).

187 Proceedings and decision

New s. 187
inserted by
No. 15/2016
s. 25.

- (1) After hearing the matter, VCAT may—
- (a) affirm the review decision or reviewable decision; or
 - (b) amend the review decision or reviewable decision; or
 - (c) substitute another decision for the review decision or reviewable decision.

- (1A) In considering an application for review of a reviewable decision or review decision imposed for a failure to comply with a dispute resolution order, VCAT may have regard to the matters set out in section 185B(1A).
- (2) Subject to subsection (3), an application for review stays the operation of the decision.
- (3) An application for review does not stay the operation of a decision to immediately suspend registration.

S. 187(1A)
inserted by
No. 15/2016
s. 67.

Pt. 11A
(Headings
and ss 187A–
187ZJ)
inserted by
No. 46/2018
s. 21.

Part 11A—Licensing of building employees

Division 1—Building employee licence

Subdivision 1—Application to be licensed

187A Natural person may apply for a licence

- (1) Subject to subsection (3), a natural person may apply to the Authority to be licensed, including provisionally licensed, as a building employee in a class of building employee that authorises the carrying out of a type of building work prescribed for the purposes of section 169EA.

Note

Note, that in section 169EA(1) there is an offence against a person for carrying out building work prescribed for the purposes of that section if the person is not registered under Part 11 or licensed under this Part to carry out that building work.

S. 187A(2)
inserted by
No. 40/2021
s. 32(2).

- (2) An application for a provisional licence must be made—
 - (a) within 12 months after that type of building work is prescribed; or
 - (b) if the Authority considers that exceptional circumstances apply in respect of the application, within any longer period determined by the Authority, which must not in total exceed 24 months after that type of building work is prescribed.

S. 187A(3)
inserted by
No. 40/2021
s. 32(2).

- (3) The Authority must refuse an application for a provisional licence—
 - (a) that is not made within the period of time allowed under subsection (2); or
 - (b) in a class of building employee if the person has previously been granted a provisional licence in that class of building employee.

187B Application to be licensed

An application to be licensed must—

- (a) be made to the Authority; and
- (b) be in writing in a form approved by the Authority; and
- (c) state each class of licence sought; and
- (ca) state if the application is for a licence under section 187F or a provisional licence under section 187G; and
- (d) be accompanied by a recent photograph of the applicant that is of a size and form specified by the Authority; and
- (e) be accompanied by the prescribed information (if any); and
- (f) be accompanied by the appropriate application fee determined—
 - (i) in accordance with the guidelines under Division 1 of Part 12; or
 - (ii) prescribed by the regulations.

S. 187B
inserted by
No. 46/2018
s. 21.

S. 187B(ca)
inserted by
No. 40/2021
s. 33.

187C Authority may conduct inquiries and require further information

- (1) In considering an application for a licence under this Division, the Authority may—
 - (a) conduct any inquiries in relation to the application that the Authority thinks fit; and
 - (b) require an applicant to provide further information in relation to the application.

S. 187C
inserted by
No. 46/2018
s. 21.

- (2) The Authority may specify how any information provided to it under this Division is to be verified and, without limiting the scope of this power, may require that the information be provided in the form of, or be verified by, a statutory declaration.
- (3) The Authority may refuse an application for a licence if the applicant—
 - (a) fails to comply with a requirement under subsection (1)(b) within a reasonable time after the requirement is made; or
 - (b) provides information that is not verified as required by the Authority under subsection (2).

S. 187D
inserted by
No. 46/2018
s. 21.

187D Consent to disclosure of information

- (1) In considering an application for a licence, the Authority may ask the applicant to provide any consent to disclosure of information that the Authority requires to perform, or to have performed, a check on the applicant or on any information included with the applicant's application.
- (2) The Authority may refuse to consider an application for registration if the applicant fails to comply with a request under subsection (1) within 14 days after the request is made.

S. 187E
inserted by
No. 46/2018
s. 21.

187E Change to information in application

- (1) An applicant for a licence must—
 - (a) give the Authority notice of any material change during the relevant period to the information provided to the Authority by the applicant in support of the application for a licence; and
 - (b) provide the notice referred to in paragraph (a) within 14 days after becoming aware of the change.

Penalty: 60 penalty units, in the case of a natural person;
300 penalty units, in the case of a body corporate.

(2) In this section—

material change includes any change prescribed by the regulations;

relevant period means the period between the making of an application for a licence and the determination of the application by the Authority.

Subdivision 2—Licensing

187F Grant of licence other than provisional licence

S. 187F
(Heading)
substituted by
No. 40/2021
s. 34(1).

S. 187F
inserted by
No. 46/2018
s. 21.

(1) The Authority must license an applicant as a building employee in a class of building employee if the Authority is satisfied that—

S. 187F(1)
amended by
No. 40/2021
s. 34(2).

(a) the applicant holds—

S. 187F(1)(a)
substituted by
No. 40/2021
s. 34(3).

(i) the prescribed qualification for the licence; or

(ii) (unless the regulations otherwise provide in relation to a particular class) a qualification that the Authority considers is, either alone or together with any further knowledge, certificate, authority, experience or examination, equivalent to the prescribed qualification; and

S. 187F(1)(ab)
inserted by
No. 40/2021
s. 34(3).

(ab) the applicant has any prescribed experience for the licence; and

S. 187F(1)(ac)
inserted by
No. 40/2021
s. 34(3).

(ac) the applicant has or holds any prescribed prerequisite for the licence; and

(b) the applicant has paid the appropriate application fee determined—

(i) in accordance with the guidelines under Division 1 of Part 12; or

(ii) prescribed by the regulations; and

(c) the applicant meets any other prescribed requirements.

(2) The Authority must refuse an application for a licence if it is not satisfied of the matters specified in subsection (1).

S. 187F(2A)
inserted by
No. 40/2021
s. 34(4).

(2A) If the Authority determines to refuse an application for a licence under this section solely on the ground that the applicant does not meet the requirements in subsection (1), the Authority may, with the consent of the applicant, determine the application as if it were an application made for a provisional licence under section 187A.

(3) The Authority is not required to conduct a hearing to determine whether to grant a licence or refuse to grant a licence.

S. 187G
inserted by
No. 46/2018
s. 21,
substituted by
No. 40/2021
s. 35.

187G Grant of provisional licence

(1) The Authority must grant a provisional licence to an applicant as a building employee in a class of building employee if the Authority is satisfied that—

- (a) the applicant holds—
 - (i) the prescribed qualification for the licence; or
 - (ii) (unless the regulations otherwise provide in relation to a particular class) a qualification that the Authority considers is, either alone or together with any further knowledge, certificate, authority, experience or examination, equivalent to the prescribed qualification; or
 - (iii) the prescribed knowledge for the licence; and
 - (b) the applicant has any prescribed experience for the licence; and
 - (c) the applicant has or holds any prescribed prerequisite for the licence; and
 - (d) the applicant has paid the appropriate application fee—
 - (i) determined in accordance with the guidelines under Division 1 of Part 12; or
 - (ii) prescribed by the regulations; and
 - (e) the applicant meets any other prescribed requirements.
- (2) The Authority must not grant a provisional licence under subsection (1) if it is not satisfied of the matters specified in that subsection.
 - (3) The Authority is not required to conduct a hearing to determine whether to grant a provisional licence or refuse to grant a provisional licence.

S. 187H
inserted by
No. 46/2018
s. 21.

187H Conditions of licence

- (1) The Authority—
 - (a) must impose on a licence any prescribed conditions; and
 - (b) may impose on a licence any other conditions that the Authority considers appropriate for the licence.

S. 187H(1A)
inserted by
No. 40/2021
s. 36.

- (1A) It is a condition of a licence that the person holding the licence must not carry out any building work of a type prescribed for the purposes of section 169EA as a subcontractor unless the person holds a registration under Part 11 to carry out that type of building work.

S. 187H(1B)
inserted by
No. 40/2021
s. 36.

- (1B) It is a condition of a provisional licence that the person holding the licence must comply with the requirements of a training plan during the period of that licence.

S. 187H(1C)
inserted by
No. 40/2021
s. 36.

- (1C) For the purposes of subsection (1B), the Authority may prepare a training plan which must—
 - (a) contain any requirements determined by the Authority; and
 - (b) contain the prescribed requirements (if any); and
 - (c) be in a form approved by the Authority.

- (2) A person must comply with any conditions imposed on the person's licence.

Penalty: 50 penalty units.

S. 187I
inserted by
No. 46/2018
s. 21.

187I Period of licence granted under this Part

- (1) A licence granted under section 187F lasts until cancelled under this Part.
- (2) A provisional licence lasts for a period of 5 years.

- (3) Subsection (1) and (2) do not take away from any provision about the suspension or cancellation of a licence.
- (4) If a person who holds a provisional licence applies for a licence under section 187F before the provisional licence expires, the period of the provisional licence is extended to whichever of the following days occurs latest—
 - (a) the day on which the Authority determines the person's application for the licence;
 - (b) if applicable, the day on which the Authority makes a reviewable decision in relation to that determination;
 - (c) if applicable, the day on which VCAT makes a decision in relation to that determination.

S. 187I(4)
inserted by
No. 40/2021
s. 37.

187J Issue or return of licence certificate

- (1) If the Authority licenses a person as a building employee, it must issue a licence certificate to that person.
- (2) The licence certificate must—
 - (a) be in a form approved by the Authority; and
 - (b) specify the licence number of the licensed building employee; and
 - (c) specify the class of building employee relating to the licence and if the licence is a provisional licence; and
 - (d) contain a recent photograph of the person that is of a size and form specified by the Authority; and
 - (e) contain the prescribed information.

S. 187J
inserted by
No. 46/2018
s. 21.

S. 187J(2)(c)
substituted by
No. 40/2021
s. 38.

- (3) The Authority may ask a person who holds a licence under this Part for the return of the licence certificate—
- (a) for the purpose of altering the details on the licence certificate; or
 - (b) if the licence is suspended or cancelled; or
 - (c) for any purpose authorised by this Act or the regulations.
- (4) A person who holds a licence under this Part must return the licence certificate to the Authority as soon as is practicable after being asked to do so by the Authority under subsection (3).

Penalty: 10 penalty units.

S. 187K
inserted by
No. 46/2018
s. 21.

187K Issue of replacement licence certificate

The Authority may issue a replacement licence certificate at the request of a licensed building employee if the licensed building employee—

- (a) pays the appropriate fee (if any)—
 - (i) determined in accordance with the guidelines under Division 1 of Part 12; or
 - (ii) prescribed by the regulations; and
- (b) satisfies the Authority that the licence certificate issued has been lost, damaged or destroyed.

Subdivision 3—Periodic licence fee, statement and training plan report

Pt 11 Div. 1
Subdiv. 3
(Heading)
amended by
No. 40/2021
s. 39.

187L Periodic licence fee, statement and training plan report

S. 187L
(Heading)
amended by
No. 40/2021
s. 40(1).

A licensed building employee must, at the end of each prescribed period after the granting of a licence to the licensed building employee under this Part—

S. 187L
inserted by
No. 46/2018
s. 21.

- (a) pay to the Victorian Building Authority Fund the appropriate fee determined—
 - (i) in accordance with the guidelines under Division 1 of Part 12; or
 - (ii) prescribed by the regulations; and
- (b) provide to the Authority a statement in respect of the period up to the date that the fee is paid that—
 - (i) is in a form approved by the Authority; and
 - (ii) contains any information required by the Authority; and
 - (iii) is signed by the licensed building employee; and
 - (iv) is accompanied by any documents required by the Authority; and
- (c) in the case of a building employee who holds a provisional licence, report to the Authority on the building employee's progress in complying with a training plan.

S. 187L(b)(iv)
amended by
No. 40/2021
s. 40(2).

S. 187L(c)
inserted by
No. 40/2021
s. 40(3).

S. 187M
inserted by
No. 46/2018
s. 21.

187M Surrender of licence

A licensed building employee may, with the consent of the Authority, surrender the licensed building employee's licence.

Subdivision 4—General

S. 187N
inserted by
No. 46/2018
s. 21.

187N Register of Building Employees

- (1) The Authority must keep a Register of Building Employees.
- (2) The Register must—
 - (a) be in the form (if any) and contain the information (if any) required by the regulations; and
 - (b) include the names and classes of licence of persons who applied for, and were granted, a licence under this Part; and
 - (c) if a person has automatic deemed registration to carry out any activities that may be carried out under a licence under this Part, include the name of that person and those activities; and
 - (d) include any disciplinary action imposed on a person licenced under this Part or, in the case of a person referred to in paragraph (c), imposed by the local registration authority in that person's home State.

S. 187N(2)(b)
substituted by
No. 1/2023
s. 8.

S. 187N(2)(c)
inserted by
No. 1/2023
s. 8.

S. 187N(2)(d)
inserted by
No. 1/2023
s. 8.

S. 187NA
inserted by
No. 1/2023
s. 17.

187NA Licensed building employees must give information to the Authority for the Register of Building Employees

- (1) The Authority may request in writing that a licensed building employee give to the Authority information in relation to the employee that is required to be contained in the Register of Building Employees.

- (2) A licensed building employee must comply with a request under subsection (1) from the Authority within 5 business days after receiving the request.

Penalty: 10 penalty units.

187NB Licensed building employee must notify Authority of changes to information on the Register of Building Employees

S. 187NB
inserted by
No. 1/2023
s. 17.

A licensed building employee must give the Authority written notice of any change to the information in relation to the employee required to be contained in the Register of Building Employees within 14 days after the change occurs.

Penalty: 10 penalty units.

187O Licensed building employee to produce licence certificate for inspection

S. 187O
inserted by
No. 46/2018
s. 21.

A licensed building employee must produce their licence certificate for inspection if asked to do so by—

- (a) the owner or occupier of any land or building on which building work is being carried out by the licensed building employee; or
- (b) a private building surveyor in relation to any land or building on which building work is being carried out by the licensed building employee; or
- (c) a VBA inspector; or
- (d) a plumbing inspector; or
- (e) a compliance auditor; or

(f) a municipal building surveyor or a person authorised by a municipal building surveyor; or

(g) an Energy Safe inspector.

Penalty: 10 penalty units.

Division 2—Disciplinary proceedings and actions

Subdivision 1—Preliminary

187P Meaning of *disciplinary action*

S. 187P
inserted by
No. 46/2018
s. 21.

In this Division, ***disciplinary action*** in relation to a licensed building employee means one or more of the following—

- (a) a reprimand or a warning given to the licensed building employee;
- (b) the imposition of a penalty of not more than 10 penalty units unless—
 - (i) a charge has been filed in the Magistrates' Court in relation to the matter; or
 - (ii) the matter has been dealt with by a court exercising its criminal jurisdiction; or
 - (iii) the matter has been dealt with by the issue of an infringement notice;
- (c) a requirement for the licensed building employee to successfully complete a specified course of training within a specified period;
- (d) the variation of a condition (other than a prescribed condition), or the imposition of a condition, on the licence;

- (e) the suspension of the licence for not more than 3 years;
- (f) the cancellation of the licence.

187Q Division applies to suspended building employees

S. 187Q
inserted by
No. 46/2018
s. 21.

- (1) Subject to subsection (2), this Division applies to a person whose licence is suspended but who was licensed at the time the conduct that forms the ground for disciplinary action occurred as if the person were a licensed building employee.
- (2) The Authority must not give a show cause notice under Subdivision 3 in relation to a matter to a person whose licence is suspended after the end of the 3-year period immediately following the suspension if the suspension relates to that matter.

Subdivision 2—Grounds for disciplinary action

187R Grounds for disciplinary action

S. 187R
inserted by
No. 46/2018
s. 21.

- (1) Each of the following is a ground for which disciplinary action may be taken against a licensed building employee—
 - (a) the licensed building employee has contravened—
 - (i) a provision of this Act or the regulations including any binding determination that applies to that provision; or
 - (ii) a prescribed Act or law or a prescribed provision of a prescribed Act or law;
 - (b) the licensed building employee has obtained the licence on the basis of information or a document that was false or misleading;

S. 187R(1)(a)(i)
substituted by
No. 11/2023
s. 12.

- (c) the licensed building employee has been guilty of, or was a party to, any negligence or incompetence in connection with the carrying out of any building work;
 - (d) the licensed building employee has failed to comply with a condition of the licence;
 - (e) the licensed building employee has not completed the relevant prescribed continuing professional development requirements (if any);
 - (f) the licensed building employee has not—
 - (i) paid a fee or other amount required to be paid under this Act or the regulations; or
 - (ii) provided a periodic statement required to be provided under this Part.
- (2) The Authority may make inquiries to determine whether a ground exists for taking disciplinary action under this Division.

Subdivision 3—Show cause process

187S Show cause notice

S. 187S
inserted by
No. 46/2018
s. 21.

- (1) If the Authority reasonably believes a ground for taking disciplinary action against a licensed building employee exists and proposes to take that action, the Authority must give the licensed building employee a notice under this section (a ***show cause notice***).
- (2) The show cause notice must state the following—
 - (a) that the Authority proposes to take disciplinary action;
 - (b) the disciplinary action proposed to be taken;
 - (c) the licence in relation to which the proposed action is to be taken;

- (d) the ground for the proposed action;
 - (e) an outline of the facts and circumstances forming the basis for the ground for the proposed action;
 - (f) an invitation to the licensed building employee to show within a stated period (the ***show cause period***) why the proposed action should not be taken.
- (3) The show cause period must be a period ending at least 14 days after the show cause notice is given to the licensed building employee.
- (4) The Authority, at the request of the licensed building employee, may extend the show cause period stated in the show cause notice and in that case the extended period becomes the show cause period.

187T Representations about show cause notice

S. 187T
inserted by
No. 46/2018
s. 21.

- (1) The licensed building employee may—
- (a) make written representations about the show cause notice to the Authority within the show cause period; or
 - (b) make oral representations about the show cause notice to the Authority at the time within the show cause period, and at the place, agreed by the Authority and the licensed building employee.
- (2) The Authority must keep a record of oral representations made to it under subsection (1)(b).

187U Decision about whether to take disciplinary action

S. 187U
inserted by
No. 46/2018
s. 21.

Within 28 days after the show cause period ends, the Authority must decide whether a ground exists to take disciplinary action against the licensed building employee.

S. 187V
inserted by
No. 46/2018
s. 21.

187V Ending show cause process without further action

If the Authority no longer believes a ground exists to take disciplinary action against the licensed building employee, the Authority—

- (a) must take no further action about the show cause notice; and
- (b) must, as soon as practicable after making its decision, give notice to the licensed building employee that no further action will be taken about the show cause notice.

S. 187W
inserted by
No. 46/2018
s. 21.

187W Disciplinary or other action by Authority on giving of undertaking

If the Authority believes a ground exists to take disciplinary action against the licensed building employee, the Authority may—

- (a) accept an undertaking from the licensed building employee under section 234B; and
- (b) do any of the following—
 - (i) defer taking the proposed disciplinary action for a specified period;
 - (ii) take disciplinary action that the Authority considers to be less serious than the proposed disciplinary action;
 - (iii) take no further action.

S. 187X
inserted by
No. 46/2018
s. 21.

187X Taking disciplinary action after show cause notice

- (1) If the Authority believes a ground exists to take disciplinary action against the licensed building employee, the Authority may—
 - (a) take the disciplinary action proposed in the show cause notice; or

- (b) on the basis of representations made or new evidence received, take disciplinary action that the Authority considers to be less serious than the disciplinary action referred to in paragraph (a).
- (2) The Authority must, as soon as practicable after making its decision, give a written notice about the decision to the licensed building employee.
- (3) The notice must state the following—
 - (a) the decision;
 - (b) the reasons for the decision;
 - (c) that the licensed building employee may apply under Division 3 for review of the decision within 28 days.
- (4) The decision takes effect on the later of—
 - (a) the day the notice is given to the licensed building employee; or
 - (b) the day stated in the notice.

Subdivision 4—General provisions relating to disciplinary action

187Y Notice of decisions

- (1) The Authority must give notice of a decision under this Division in relation to a licensed building employee to any person who made a complaint to the Authority about the matter to which the decision relates.
- (2) If the Authority is aware that a licensed building employee is employed by a particular person, the Authority must cause notice of any decision concerning the employee made under this Division to be given to that employer without delay after the decision takes effect.

S. 187Y
inserted by
No. 46/2018
s. 21.

S. 187Z
inserted by
No. 46/2018
s. 21.

187Z Complaint privileged

A person is not liable in any way for any loss, damage or injury suffered by another person solely because the first person in good faith—

- (a) lodged a complaint with the Authority in relation to a licensed building employee; or
- (b) produced or gave a document or any information or evidence to the Authority in relation to a matter that constitutes or may constitute a contravention of—
 - (i) this Act or the regulations; or
 - (ii) a prescribed Act or law or a prescribed provision of a prescribed Act or law.

S. 187ZA
inserted by
No. 46/2018
s. 21.

187ZA Consequences of suspension of licence

While the licence of a person is suspended, the person is taken not to be licensed under this Part.

S. 187ZB
inserted by
No. 46/2018
s. 21.

187ZB Revocation of suspension

- (1) The Authority may at any time revoke a suspension under Subdivision 3 if satisfied that it is appropriate to do so.
- (2) The Authority must, without delay, give written notice of the revocation to the licensed building employee.

Division 3—Review of decisions relating to licensed employees

Subdivision 1—Preliminary

S. 187ZC
inserted by
No. 46/2018
s. 21.

187ZC Definitions

In this Division—

affected person means a person directly affected by a reviewable decision;

review decision has the meaning set out in section 187ZG;

reviewable decision means any of the following decisions under this Act—

- (a) a decision to refuse to grant a licence under this Part;
- (b) a decision to take any form of disciplinary action within the meaning of section 187P;

reviewer means a person deciding an internal review under this Division.

Subdivision 2—Internal review

187ZD Applying for internal review

- (1) This section applies if a reviewable decision is made by a delegate of the Authority other than a Commissioner or the chief executive officer of the Authority.
- (2) A person who is directly affected by a reviewable decision may apply to the Authority for an internal review of the decision.
- (3) Subject to subsection (4), the application must be made within 28 days after the day the affected person is given notice of the reviewable decision.
- (4) The Authority may, at any time, extend the time for applying for an internal review.
- (5) An application for an internal review must be in writing and state fully the grounds of the application.
- (6) An application for an internal review stays the operation of the decision.

S. 187ZD
inserted by
No. 46/2018
s. 21.

S. 187ZE
inserted by
No. 46/2018
s. 21.

187ZE Persons who may conduct an internal review

- (1) The Authority must appoint an employee of the Authority to conduct an internal review.
- (2) An internal review must not be conducted by—
 - (a) the person who made the reviewable decision; or
 - (b) a person who was involved in the matters that gave rise to the reviewable decision; or
 - (c) a person who holds a less senior position than a person referred to in paragraph (a) or (b).

S. 187ZF
inserted by
No. 46/2018
s. 21.

187ZF Internal review

- (1) The reviewer must conduct the internal review on—
 - (a) the material before the Authority that led to the reviewable decision; and
 - (b) the reasons for the reviewable decision; and
 - (c) any other material that was not available at the time of the reviewable decision that the reviewer is satisfied is relevant.
- (2) For the review, the reviewer must give the affected person a reasonable opportunity to make written or oral representations to the reviewer.

S. 187ZG
inserted by
No. 46/2018
s. 21.

187ZG Review decisions

- (1) The reviewer must make a decision (the ***review decision***) to—
 - (a) affirm the reviewable decision; or
 - (b) amend the reviewable decision; or
 - (c) substitute another decision for the reviewable decision.

- (2) If the review decision affirms the reviewable decision, for the purpose of an application for review by VCAT, the reviewable decision is taken to be the review decision.
- (3) If the review decision amends the reviewable decision, the reviewable decision as amended is taken to be the review decision.
- (4) If the review decision substitutes another decision for the reviewable decision, the substituted decision is taken to be the review decision.

187ZH Notice of review decision

S. 187ZH
inserted by
No. 46/2018
s. 21.

- (1) The Authority must, as soon as practicable after the review decision is made, give the affected person notice (the **review notice**) of the review decision.
- (2) The review notice must state the following—
 - (a) the reasons for the decision;
 - (b) that the affected person may apply to VCAT for review of the decision under this Division.
- (3) If the Authority does not give the review notice within the review period the reviewer is taken to have made a review decision affirming the reviewable decision.
- (4) In this section—

review period means the longer of—

 - (a) the relevant period prescribed by the regulations (if any); or
 - (b) the period ending 28 days after the application is made.

Subdivision 3—Review by VCAT

S. 187ZI
inserted by
No. 46/2018
s. 21.

187ZI Application for review by VCAT of reviewable decision

- (1) An affected person who has applied for an internal review of a reviewable decision under Subdivision 2 and is dissatisfied with the review decision may apply to VCAT for review of the review decision.
- (2) An affected person who was not eligible to apply for an internal review of a reviewable decision may apply to VCAT for review of the reviewable decision.
- (3) An affected person may apply to VCAT (without applying for internal review) for review of a reviewable decision to suspend or cancel a licence.
- (4) An application for review of a reviewable decision or review decision must be made within—
 - (a) in the case of an application under subsection (1), 14 days after the end of the review period for internal review; or
 - (b) in any other case, 28 days after the reviewable decision or review decision is made.

S. 187ZJ
inserted by
No. 46/2018
s. 21.

187ZJ Proceedings and decision

- (1) After hearing the matter, VCAT may—
 - (a) affirm the review decision or reviewable decision; or
 - (b) amend the review decision or reviewable decision; or
 - (c) substitute another decision for the review decision or reviewable decision.

- (2) An application for review stays the operation of the decision.

Part 12—Building administration

Division 1—Role of Minister

188 Guidelines

- (1) The Minister may from time to time issue guidelines relating to—
- (a) the fees to be charged for applications for permits and approvals and any fees to be charged under this Act and the regulations; and
 - (b) the charges to be made for services provided by the Authority; and
 - (c) the functions of municipal building surveyors and private building surveyors under this Act or the regulations; and
 - (d) the circumstances in which a municipal building surveyor or private building surveyor should, in preparing a building notice or building order, seek assistance from the Fire Rescue Commissioner under the **Fire Rescue Victoria Act 1958**, the Chief Officer under the **Country Fire Authority Act 1958** or any public authority.
- (2) Guidelines relating to fees—
- (a) may specify the fees or specify maximum or minimum fees; and
 - (b) may specify different fees for different classes of cases.

S. 188(1)(b)
amended by
No. 34/2013
s. 34(Sch. 1
item 25).

S. 188(1)(d)
amended by
No. 21/2017
s. 95(8),
substituted by
No. 20/2019
s. 146.

- (2A) Guidelines relating to the fees chargeable under Part 11 in respect of domestic builders may take into account the costs and expenses incurred in the administration and enforcement of the **Domestic Building Contracts Act 1995** and the regulations under that Act. S. 188(2A) inserted by No. 91/1995 s. 152, amended by No. 52/1998 s. 311(Sch. 1 item 10.9).
- (3) The guidelines must be published in the Government Gazette.
- (4) A council or private building surveyor, in determining fees for applications for permits, may have regard to the guidelines under subsection (1)(a) about those fees.
- (5) The Authority, in determining fees under Division 1A of Part 11, must have regard to the guidelines under subsection (1)(a) about those fees. S. 188(5) amended by Nos 15/2016 s. 18(1), 21/2017 s. 11(2).
- (6) The Authority must have regard to the guidelines under subsection (1)(b) in fixing charges for the provision of services. S. 188(6) amended by No. 34/2013 s. 34(Sch. 1 item 26).
- (7) A municipal building surveyor or private building surveyor must have regard to any relevant guideline under subsection (1)(c) or (d) in carrying out a function under this Act or the regulations.
- 188AA Ministerial directions to building surveyors** S. 188AA inserted by No. 46/2018 s. 53.
- (1) The Minister may from time to time issue directions relating to the functions of municipal building surveyors and private building surveyors under this Act or the regulations that are not inconsistent with this Act or the regulations.
- (2) A direction issued under subsection(1) must be published in the Government Gazette.

- (3) A municipal building surveyor or private building surveyor must comply with any relevant direction issued under subsection (1) in carrying out a function under this Act or the regulations.

S. 188A
inserted by
No. 30/2001
s. 3.

188A Decision guidelines on design and siting of single dwellings⁷

- (1) The Minister may from time to time issue guidelines relating to the design and siting of single dwellings.
- (2) Without limiting subsection (1), these matters may include—
- (a) matters relating to the consideration of neighbourhood character and amenity and the acceptability of the design and siting of the proposed dwelling in the neighbourhood;
 - (b) matters relating to the availability of light to, and the overshadowing of, nearby buildings and allotments;
 - (c) matters relating to privacy and overlooking, in relation to nearby buildings and allotments;
 - (d) matters relating to the height of a building, and the distances from buildings to the boundaries of an allotment or to nearby buildings;
 - (e) matters relating to how much of an allotment may be used for buildings, how much of an allotment may be covered by impermeable surfaces and the provision of open spaces on an allotment;
 - (f) matters relating to the preservation of trees, and of architectural or heritage features;
 - (g) matters relating to the provision of car parking in relation to an allotment;

- (h) matters relating to the use of impermeable surface materials on an allotment and their effect on drainage and runoff;
 - (i) matters relating to the energy efficiency of buildings;
 - (j) matters relating to fences and boundary walls on an allotment.
- (3) The guidelines must be published in the Government Gazette.
- (4) In this section **single dwelling** means a building, or buildings, of a class specified by the regulations for the purposes of this section that is, or are, intended to be used as a dwelling.

189 Delegation of Minister's functions

- (1) The Minister may by instrument delegate to the Authority any of the Minister's functions under this Act, other than the Minister's power under section 192A(1).
- (2) The Minister may by instrument delegate to any person employed as an executive (within the meaning of the **Public Administration Act 2004**) of the Department, the Minister's power under section 192A(1) or 192B(1).

S. 189
amended by
No. 34/2013
s. 34(Sch. 1
item 27),
substituted by
No. 21/2017
s. 77.

S. 189(2)
amended by
Nos 46/2018
s. 54, 11/2023
s. 43.

190 Minister may require Authority to act as building surveyor

- (1) If the Minister is of the opinion that it is in the public interest to do so, the Minister may declare any or all of the functions of a municipal building surveyor under this Act and the regulations are to be carried out by the Authority⁸ in relation to the following—

S. 190
(Heading)
inserted by
No. 34/2013
s. 34(Sch. 1
item 28).

S. 190(1)
amended by
No. 34/2013
s. 34(Sch. 1
item 29),
substituted by
No. 46/2018
s. 55.

- (a) specified building work or a class of building work situated within a municipal district or part of that district;
 - (b) a specified building or class of building situated within a municipal district or part of that district;
 - (c) specified land or a class of land situated within a municipal district or part of that district.
- (2) A declaration under subsection (1) must be published in the Government Gazette.

191 Administration and enforcement outside municipal district

- (1) The Minister may declare that the administration and enforcement of Parts 3, 4, 5, 7 and 8 and the building regulations in any area not being part of a municipal district is to be carried out—
- (a) by a person or body specified by the Minister; and
 - (b) in accordance with the directions of the Minister.
- (2) A declaration or direction under subsection (1) must be published in the Government Gazette.
- (3) Parts 3, 4, 5, 7 and 8 and the building regulations apply to an area referred to in subsection (1) as if—
- (a) any reference to a council were a reference to the person or body specified in the declaration; and
 - (b) any reference to a municipal building surveyor were a reference to a building surveyor registered under Part 11 and authorised in writing by that person or body; and

- (c) any reference to a municipal district were a reference to that area; and
- (d) any reference in section 66 or clause 1 of Schedule 2 to the **Local Government Act 2020** were a reference to guidelines under section 188 of this Act.

S. 191(3)(d)
amended by
No. 9/2020
s. 390(Sch. 1
item 8.5).

192 Alpine resorts

- (1) The Minister, after consulting with the councils concerned, may declare that the administration and enforcement of Parts 3, 4, 5, 7 and 8 and the building regulations in an alpine resort (within the meaning of the **Alpine Resorts Act 1983**) is to be carried out by the Board (within the meaning of the **Alpine Resorts (Management) Act 1997**.
- (2) A declaration under subsection (1) must be published in the Government Gazette.
- (3) Parts 3, 4, 5, 7 and 8 and the building regulations apply in an alpine resort referred to in subsection (1) as if—

S. 192(1)
substituted by
No. 89/1997
s. 70(1).

- (a) any reference to a council were a reference to the Board of the resort; and

S. 192(3)(a)
substituted by
No. 89/1997
s. 70(2)(a).

- (b) any reference to a municipal building surveyor were a reference to a building surveyor registered under Part 11 and authorised in writing by the Board of the resort; and

S. 192(3)(b)
amended by
No. 89/1997
s. 70(2)(b).

- (c) any reference to a municipal district were a reference to the alpine resort; and

- (d) any reference in section 66 or clause 1 of Schedule 2 to the **Local Government Act 2020** were a reference to guidelines under section 188 of this Act.

S. 192(3)(d)
amended by
No. 9/2020
s. 390(Sch. 1
item 8.5).

S. 192A
inserted by
No. 21/2017
s. 78.

192A Designated bushfire prone areas

- (1) The Minister may determine that an area which is subject, or which is likely to be subject, to bushfires is a designated bushfire prone area.
- (2) A determination under subsection (1) must be published in the Government Gazette, and takes effect on the later of—
 - (a) the day of publication; or
 - (b) any later day specified in the determination.
- (3) The Minister must prepare a map that describes all areas that are designated from time to time as bushfire prone areas by any determination under subsection (1).

Note

The map prepared for the purpose of this subsection, including the map as amended from time to time, will be published on the Land Channel website www.land.vic.gov.au.

- (4) If the Minister alters a designated bushfire prone area or creates a new designated bushfire prone area in a determination under subsection (1), the Minister must, as soon as practicable after making the determination, amend the map prepared under subsection (3) to describe the altered designated bushfire prone area or the new designated bushfire prone area (as the case requires).
- (5) The Minister must give a copy of any map prepared under this section to the Authority.
- (6) The Authority must make a copy of any map given to the Authority under subsection (5) available without charge for inspection by members of the public during business hours at the Authority.

- (7) The Minister must, as soon as practicable after preparing any map under this section, give a copy of the map to each council in respect of which a designated bushfire prone area described by the map is wholly or partially within the council's municipal district.
- (8) A council must make a copy of the most recent map given to it under subsection (7) available for inspection by members of the public without charge during business hours at the office of that council.

192B Declaration prohibiting use of high risk external wall cladding products

S. 192B
inserted by
No. 46/2018
s. 56.

- (1) The Minister may, by notice published in the Government Gazette, declare that an external wall cladding product is prohibited from being used by any person in the course of carrying out any building work in connection with the construction of a building.
- (2) A declaration under subsection (1) does not apply in relation to the use of an external wall cladding product under a permit in respect of which the application for the permit was made to the relevant building surveyor before the declaration took effect.
- (3) The Minister may make a declaration under subsection (1) if the Minister is satisfied that use of the external wall cladding product is or will likely cause—
 - (a) occupants of the building to be at risk of death or serious injury; or
 - (b) occupants of neighbouring buildings to be at risk of death or serious injury; or

- (c) members of the public to be at risk of death or serious injury; or
 - (d) property to be at risk of severe damage.
- (4) A risk referred to in subsection (3) may arise from the use of the external wall cladding product in particular circumstances or because of a certain event including a fire.
- (5) A declaration under this section may apply in relation to—
 - (a) a specified use, a class of use or all uses of the external wall cladding product; or
 - (b) a specified building or a specified class of building; or
 - (c) specified persons or a specified class of persons.
- (6) A declaration under this section may be subject to conditions.
- (7) A declaration under this section must include the Minister's reasons for making the declaration.
- (8) At least 48 hours before publishing a declaration under this section in the Government Gazette, the Minister must publish a notice on the Internet that—
 - (a) includes a draft of the proposed declaration; and
 - (b) a statement that the Minister intends to make the declaration in no less than 48 hours after the publication of the notice—

unless the Minister believes that the risk of using the external wall cladding product is so serious that in the interests of public safety the declaration must be made immediately.

- (9) A declaration under this section takes effect on the later of the following—
 - (a) the date the declaration is published in the Government Gazette;
 - (b) any later date specified in the declaration.
- (10) Before a declaration is made under this section, the Minister may publish a draft of the proposed declaration on the Internet that includes—
 - (a) the Minister's reasons for deciding to make the declaration; and
 - (b) a statement that submissions may be made by any person within 28 days after the publication of the draft.
- (11) A person may make a submission to the Minister on the proposed declaration within 28 days after the publication of the draft of the proposed declaration.
- (12) The Minister must consider any submission on the proposed declaration received within 28 days after the draft of the proposed declaration is published.
- (13) The Minister may amend a declaration and in that case the procedures in this section apply as if the amendment were a declaration made under subsection (1).
- (14) The Minister must ensure that a current version of any amended declaration is published on the Internet for as long as the declaration is in force.
- (15) The Minister may, by a notice published in the Government Gazette, revoke a declaration under this section.
- (16) A revocation under subsection (15) takes effect on the day that the notice under subsection (15) is published in the Government Gazette.

Pt 12 Div. 2
(Heading and
ss 193–205)
amended⁹,
substituted as
Pt 12 Div. 2
(Heading and
ss 193–205R)
by No.
34/2013 s. 4.

Division 2—Victorian Building Authority

Subdivision 1—Establishment

S. 193
substituted by
No. 34/2013
s. 4.

193 Establishment of Authority

The Victorian Building Authority is established.

S. 194
substituted by
No. 34/2013
s. 4.

194 Authority is a body corporate

(1) The Authority—

- (a) is a body corporate with perpetual succession; and
- (b) has an official seal; and
- (c) may sue and be sued; and
- (d) may acquire, hold and dispose of real and personal property; and
- (e) may do and suffer all acts and things that a body corporate may by law do and suffer.

(2) The official seal of the Authority—

- (a) must be kept in the custody that the Authority directs; and
- (b) must not be used except as authorised by the Authority.

(3) All courts and persons acting judicially must—

- (a) take judicial notice of the official seal of the Authority affixed to any document; and
- (b) presume that the seal was duly affixed.

195 Authority accountable to Minister

- (1) The Authority is subject to the direction and control of the Minister. Those directions may be general or specific.
- (2) In giving a direction under subsection (1), the Minister may have regard to any advice of the Building Regulations Advisory Committee or the Plumbing Advisory Council.
- (3) The Authority must give the Minister any information and assistance that the Minister requires and the Authority is able to give.

S. 195
substituted by
No. 34/2013
s. 4.

S. 195(2)
amended by
No. 3/2020
s. 26(3).

196 Authority to comply with certain directions by gas safety Minister

- (1) The Minister administering the **Gas Safety Act 1997** may give the Authority written directions in relation to the carrying out of the Authority's functions to the extent that this affects gas safety and persons carrying out gasfitting work.
- (2) A direction must not be given if it affects one person only.
- (3) The Authority must comply with a direction given under this section.

S. 196
substituted by
No. 34/2013
s. 4.

197 Functions of the Authority

The Authority has the following functions—

- (a) to monitor and enforce compliance with this Act and the regulations;
- (ab) to administer the scheme under Part 11 for the registration of building practitioners and the scheme under Part 11A for the licensing of building employees;

S. 197
substituted by
No. 34/2013
s. 4.

S. 197(ab)
inserted by
No. 15/2016
s. 18(8),
amended by
No. 46/2018
s. 22(1).

S. 197(ac)
inserted by
No. 15/2016
s. 18(8),
amended by
No. 46/2018
s. 22(2).

(ac) to supervise and monitor the conduct and ability to practise of registered building practitioners and licensed building employees;

S. 197(ad)
inserted by
No. 15/2016
s. 18(8).

(ad) to make recommendations to the Minister about the qualifications for registration of building practitioners;

S. 197(ae)
inserted by
No. 15/2016
s. 18(8).

(ae) to issue certificates of consent;

(b) to administer the scheme under Part 12A for the licensing and registration of plumbers;

(c) to participate on behalf of Victoria in the development of national building standards and national plumbing standards;

(d) to monitor developments relevant to the regulation of building standards and plumbing standards in Victoria;

(e) to promote the maintenance of adequate levels of competence among plumbers;

S. 197(f)
amended by
No. 43/2019
s. 10(a).

(f) to provide information and advice (including to consumers) on matters relating to—

(i) building standards and plumbing standards; and

S. 197(f)(ii)
amended by
No. 46/2018
s. 22(3).

(ii) the regulation of buildings, building work and building practitioners and licensed building employees; and

S. 197(f)(iii)
amended by
Nos 43/2019
s. 10(b),
31/2020
s 55(1).

(iii) the regulation of plumbing work and plumbers;

Building Act 1993
No. 126 of 1993
Part 12—Building administration

- | | | | | | |
|---|---|---|---|---|--|
| * | * | * | * | * | <p>S. 197(f)(iv)
inserted by
No. 43/2019
s. 10(c),
repealed by
No. 31/2020
s. 55(2).</p> |
| * | * | * | * | * | <p>S. 197(fa)
inserted by
No. 43/2019
s. 10(d),
repealed by
No. 31/2020
s. 55(3).</p> |
-
- (g) to provide information and training to assist persons and bodies in carrying out functions under this Act or the regulations;
 - (h) to promote the resolution of consumer complaints about work carried out by building practitioners and plumbers; S. 197(h)
amended by
No. 11/2023
s. 44(a).
 - (i) to conduct or promote research relating to the regulation of the building industry and the plumbing industry in Victoria and to report on the outcomes of this research in its report of operations under the **Financial Management Act 1994**;
 - (ia) to provide, gather or obtain information (including advice) or data for analysis for any of the following purposes— S. 197(ia)
inserted by
No. 11/2023
s. 44(b).
 - (i) to assist the Minister in administering this Act;
 - (ii) to assist the Authority in performing any of its other functions under this Act;
 - (iii) to support the Building Monitor in performing the functions of the Building Monitor; S. 197(ia)(iii)
inserted by
No. 11/2023
s. 23.

S. 197(j)
substituted by
No. 21/2017
s. 64.

- (j) to collect the building permit levy;
- (k) to charge and collect fees (determined in accordance with this Act and the regulations) for information and training services provided by the Authority;
- (l) to administer the Victorian Building Authority Fund;
- (m) to advise the Minister on the carrying out of the Authority's functions under this Act and on any other matter referred to it by the Minister;
- (n) to carry out any other function conferred on the Authority by or under this or any other Act or under any agreement to which the State is a party.

S. 198
substituted by
No. 34/2013
s. 4.

198 General powers of the Authority

The Authority may do all things necessary or convenient to enable it to carry out its functions.

S. 199
substituted by
Nos 34/2013
s. 4, 15/2016
s. 55,
amended by
No. 21/2017
s. 39,
substituted by
No. 11/2023
s. 45.

199 Delegation by the Authority

- (1) The Authority may, by instrument, delegate to any person any of its functions except a function under section 80D, 205M or 206(1).
- (2) Despite subsection (1), the Authority may, by instrument, delegate a function under section 80D or 205M to the chief executive officer or the State Building Surveyor.
- (3) A person to whom a function has been delegated under subsection (1) or (2) (other than the State Building Surveyor) may subdelegate the function to another person if the instrument of delegation authorises the subdelegation of that function.

- (4) The State Building Surveyor may subdelegate any function delegated to the State Building Surveyor under subsection (1) to another person if the instrument of delegation authorises the subdelegation of that function.
- (5) An authorisation under subsection (3) or (4) may be made subject to any conditions or limitations that are specified in the instrument of delegation that authorises the subdelegation.

Subdivision 2—VBA Board and staff of the Authority

200 Victorian Building Authority Board

S. 200
substituted by
No. 34/2013
s. 4.

- (1) The Authority has a governing body known as the Victorian Building Authority Board.
- (2) The VBA Board consists of—
 - (a) a Chief Commissioner who is to be chairperson of the Board; and
 - (b) a Deputy Chief Commissioner who is to be deputy chairperson of the Board; and
 - (c) at least three other Commissioners.
- (3) The VBA Board—
 - (a) is responsible for the governance and strategic management of the Authority; and
 - (b) may carry out the functions of the Authority.
- (4) All acts and things done in the name of, or on behalf of, the Authority by or with the authority of the VBA Board are taken to have been done by the Authority.

201 Appointment of Commissioners to VBA Board

S. 201
substituted by
No. 34/2013
s. 4.

- (1) Each Commissioner is to be appointed by the Governor in Council on the recommendation of the Minister.

- (2) The Minister must, so far as is practicable, ensure that the Commissioners appointed have between them skills, experience and knowledge in relation to building, plumbing, architecture, the interests of consumers, dispute resolution, insurance, law, financial management, public administration and the administration of regulatory regimes.
- (3) The Minister must recommend for appointment a person nominated by the Minister responsible for administering the **Domestic Building Contracts Act 1995**.
- (4) The Minister must recommend for appointment a person nominated by the Minister responsible for administering the **Victorian Managed Insurance Authority Act 1996**.
- (5) A Commissioner who was, immediately before being appointed, a member of a statutory superannuation scheme within the meaning of the **Superannuation (Public Sector) Act 1992**, continues to be a member of that superannuation scheme subject to the Act under which the scheme was created.

S. 202
substituted by
No. 34/2013
s. 4.

202 Application of Schedule 3

Part 1 and clauses 9, 10 and 11 of Schedule 3 apply in relation to the VBA Board.

S. 203
substituted by
No. 34/2013
s. 4.

203 Chief executive officer

- (1) The Authority may, with the approval of the Minister, appoint a person as the chief executive officer of the Authority.
- (2) The chief executive officer is responsible to the VBA Board for the day to day management of the Authority.
- (3) The chief executive officer holds office on the terms and conditions determined by the Authority with the approval of the Minister.

- (4) The chief executive officer must not engage in paid employment outside the office of chief executive officer without the permission of the Authority.
- (5) If the chief executive officer was, immediately before being appointed, a member of a statutory superannuation scheme within the meaning of the **Superannuation (Public Sector) Act 1992**, the chief executive officer continues to be a member of that superannuation scheme subject to the Act under which the scheme was created.
- (6) The Authority must not appoint as chief executive officer a person who is a Commissioner or a member of the Building Appeals Board, the Building Regulations Advisory Committee, the Plumbing Advisory Council or the State Building Surveyor.
- (7) The Authority may remove the chief executive officer from office with the approval of the Minister.

S. 203(6)
amended by
Nos 15/2016
s. 18(9),
3/2020
s. 26(4),
11/2023 s. 13.

204 Authority staff

- (1) The Authority may appoint or engage—
 - (a) a Registrar of the Victorian Building Authority; and
 - (b) a Registrar of the Building Appeals Board; and

S. 204
substituted by
No. 34/2013
s. 4.

* * * * *

S. 204(1)(c)
repealed by
No. 15/2016
s. 18(7).

- (d) as many other persons as are required to enable the Authority to carry out its functions.

S. 204(2)
amended by
No. 40/2021
s. 41.

- (2) To assist in the performance of any of its functions, the Authority may engage a person—
 - (a) as an employee of the Authority; or
 - (b) as a contractor or consultant; or
 - (c) under a secondment or other arrangement for the services of persons employed under Part 3 of the **Public Administration Act 2004**.
- (3) A person who was, immediately before being engaged as an employee by the Authority, a member of a statutory superannuation scheme within the meaning of the **Superannuation (Public Sector) Act 1992**, continues to be a member of that superannuation scheme subject to the Act under which the scheme was created.

Pt 12 Div. 2
Subdiv. 2A
(Heading and
ss 204A–
204C)
inserted by
No. 21/2017
s. 40.

Subdivision 2A—VBA inspectors

S. 204A
inserted by
No. 21/2017
s. 40.

204A Appointment of inspectors

- (1) The Authority may appoint as a VBA inspector—
 - (a) a person appointed or engaged by the Authority under section 204; or
 - (b) a person appointed as an inspector, enforcement officer, authorised officer or authorised person by or under any other Act; or
 - (c) a person appointed or authorised as an inspector, investigator, authorised officer or authorised person under a prescribed interstate Act.

- (2) An appointment under subsection (1) must be made by instrument.
- (3) The Authority must not appoint a person as a VBA inspector unless the Authority is satisfied that the person is appropriately qualified or has successfully completed appropriate training.
- (4) A VBA inspector appointed under subsection (1)(a) or (b) may also be appointed or authorised under a prescribed interstate Act as an inspector, investigator, authorised officer or authorised person under that Act.
- (5) In this section—

interstate Act means an Act of another State or Territory.

204B VBA inspector's identification

S. 204B
inserted by
No. 21/2017
s. 40.

The Authority must issue identification to each VBA inspector that—

- (a) contains a photograph of the VBA inspector; and
- (b) states the name of the VBA inspector; and
- (c) states the fact that the VBA inspector is appointed by the Authority; and
- (d) state that the VBA inspector is an authorised person within the meaning of section 228.

S. 204B(c)
amended by
No. 46/2018
s. 57(1).

S. 204B(d)
inserted by
No. 46/2018
s. 57(2).

204C Production of identification

S. 204C
inserted by
No. 21/2017
s. 40.

- (1) A VBA inspector must produce the VBA inspector's identification for inspection—
 - (a) before exercising a power under this Act or the regulations; and

- (b) at any time during the exercise of a power under this Act or the regulations, if asked to do so.

Penalty: 1 penalty unit.

- (2) Subsection (1) does not apply to—
 - (a) a requirement made by post; or
 - (b) the exercise of a power of entry under section 228I(1).

Subdivision 3—Victorian Building Authority Fund

205 Establishment and structure

S. 205
substituted by
No. 34/2013
s. 4.

- (1) The Authority must establish and administer a fund to be known as the Victorian Building Authority Fund.
- (2) The Victorian Building Authority Fund is to be divided into—
 - (a) the Building account; and
 - (b) the Plumbing account; and

S. 205(2)(b)
amended by
No. 43/2019
s. 11(a).

- (c) the Cladding Safety Victoria account.

S. 205(2)(c)
inserted by
No. 43/2019
s. 11(b).

- (3) The Building account is to be divided into the following accounts—
 - (a) building general account;
 - (b) building permit levy account;
 - (c) domestic building account;
 - (d) domestic building dispute account.

205A Payments into Building account

(1) There must be paid into the Building account—

S. 205A
inserted by
No. 34/2013
s. 4.

(a) all money received or recovered by or on behalf of or paid to the Minister under this Act and the regulations; and

(b) all money received or recovered by or on behalf of, or paid to, the Authority under this Act and the regulations or under any other Act or regulations (other than money required by section 205C(a) to be paid into the Plumbing account and money required by section 205DA to be paid into the Cladding Safety Victoria account); and

S. 205A(1)(b)
amended by
No. 43/2019
s. 12(a).

(c) the following amounts—

S. 205A(1)(c)
substituted by
No. 21/2017
s. 65.

(i) any amounts received by the Authority under Subdivision 4 on account of the building permit levy (other than amounts received on account of, or in relation to, the building permit levy payable under section 205G(2A));

S. 205A(1)(c)(i)
amended by
No. 43/2019
s. 12(b)(i).

(ii) any amounts received by the Authority under Subdivision 4A or 4B on account of the building permit levy, any penalty levy imposed by the Authority under those Subdivisions and any costs charged by the Authority under section 205LJ(1) (other than amounts received on account of, or in relation to, the building permit levy payable under section 205G(2A)); and

S.
205A(1)(c)(ii)
amended by
No. 43/2019
s. 12(b)(ii).

* * * * *

S. 205A(1)(d)
repealed by
No. 15/2016
s. 18(7).

S. 205A(1)(h)
amended by
Nos 21/2017
s. 95(9),
43/2019
s. 12(c).

- (e) any costs or fees received by or on behalf of the Building Appeals Board; and
- (f) income from the investment of the Building account; and
- (g) money appropriated by Parliament for the purposes of the Building account; and
- (h) any other money required or authorised by or under this or any other Act or the regulations to be paid into the Victorian Building Authority Fund (other than money required or authorised by section 205DA to be paid into or credited to the Cladding Safety Victoria account).

S. 205A(3)
amended by
No. 15/2016
s. 18(1).

- (2) Amounts paid into the Building account on account of the building permit levy payable under section 205G(1) must be credited to the building permit levy account.
- (3) Amounts paid into the Building account that are fees or fines received or recovered by or on behalf of the Authority in relation to the registration or discipline of building practitioners engaged in domestic building work must be credited to the domestic building account.
- (4) Amounts paid into the Building account on account of the building permit levy payable under section 205G(2) must be credited to the domestic building dispute account.
- (5) Other amounts paid into the Building account must be credited to the building general account.

S. 205B
inserted by
No. 34/2013
s. 4.

205B Payments out of the Building account

- (1) Subject to subsection (2), there must be paid out of the Building account—
 - (a) any amounts required to enable the Authority to carry out its functions; and

- (b) any amounts authorised by the Minister to be paid for a purpose relating to the building industry and approved by the Minister; and
 - (c) any costs and expenses incurred by the Authority in administering or enforcing this Act or the regulations, including, but not limited to—
 - (i) the remuneration and allowances of the Commissioners; and
 - (ii) the remuneration and allowances of members of the Building Appeals Board and the Building Regulations Advisory Committee; and
 - (iii) the costs incurred in appointing or engaging any person for the purposes of this Act or the regulations; and
 - (ca) the costs and expenses of VCAT in relation to proceedings under this Act; and
 - (d) in accordance with subsection (4), any costs and expenses incurred in the administration of the **Domestic Building Contracts Act 1995** or the regulations under that Act, including, but not limited to, the costs and expenses of VCAT in relation to proceedings under that Act; and
 - (e) any other amounts authorised to be paid out of the Building account by or under this or any other Act.
- (2) Subsection (1) does not apply to any purpose for which amounts are required to be paid out of the Plumbing account under section 205D or the Cladding Safety Victoria account under section 205DB.

S. 205B(1)
(c)(ii)
amended by
Nos 15/2016
s. 18(9),
3/2020
s. 26(5).

S. 205B(1)(ca)
inserted by
No. 21/2017
s. 82(1).

S. 205B(1)(d)
amended by
No. 21/2017
s. 96(2).

S. 205B(2)
amended by
No. 43/2019
s. 13.

(3) Amounts paid out of the Building account may be paid—

- (a) out of the building general account or the building permit levy account as the Authority considers appropriate; or
- (b) out of the domestic building account in accordance with subsection (4), if authorised by the Minister and the Minister administering the **Domestic Building Contracts Act 1995**; or
- (c) out of the domestic building dispute account in accordance with subsection (5).

(4) Amounts may be paid out of the domestic building account towards—

- (a) the costs and expenses referred to in subsection (1)(c) or (ca) to the extent that they relate to the registration or discipline of a builder engaged in domestic building work; and
- (b) the costs and expenses referred to in subsection (1)(d).

(5) Amounts may be paid out of the domestic building dispute account to the Domestic Builders Fund established under the **Domestic Building Contracts Act 1995** and to the building permit levy account in the proportions determined from time to time by the Minister administering the **Domestic Building Contracts Act 1995**.

S. 205B(4)(a)
amended by
No. 21/2017
s. 82(2).

205C Payments into the Plumbing account

There must be paid into the Plumbing account—

- (a) all money received or recovered by or on behalf of, or paid, to the Authority under Part 12A or the regulations under that Part or in the enforcement of that Part or those regulations; and

S. 205C
inserted by
No. 34/2013
s. 4.

- (b) income from the investment of the Plumbing account; and
- (c) money appropriated by Parliament for the purposes of the Plumbing account.

205D Payments out of the Plumbing account

S. 205D
inserted by
No. 34/2013
s. 4.

There must be paid out of the Plumbing account—

- (a) any amounts required to enable the Authority to carry out its functions in administering and enforcing Part 12A and the regulations under that Part; and
- (b) any money required to refund any licence, registration or endorsement fee paid in relation to—
 - (i) a plumbing licence or plumbing registration that was not granted or renewed; or
 - (ii) an endorsement under section 221N or 221OA that was not given; and
- (c) the remuneration and allowances of members of the Plumbing Advisory Council.

205DA Payments into the Cladding Safety Victoria account

S. 205DA
inserted by
No. 43/2019
s. 14.

There must be paid into the Cladding Safety Victoria account—

- (a) any amounts received by the Authority under Subdivision 4 on account of the building permit levy payable under section 205G(2A); and
- (b) the following received by the Authority on account of, or in relation to, the building permit levy payable under section 205G(2A)—
 - (i) any amounts under Subdivision 4A or 4B;

- (ii) any penalty levy imposed by the Authority under those Subdivisions;
- (iii) any costs charged by the Authority under section 205LJ(1); and
- (c) income from the investment of the Cladding Safety Victoria account; and

S. 205DA(d)
repealed by
No. 31/2020
s. 56(1).

* * * *

S. 205DA(e)
repealed by
No. 31/2020
s. 56(2).

* * * *

- (f) any other money required or authorised by or under this or any other Act or the regulations to be paid into or credited to the Cladding Safety Victoria account.

S. 205DB
inserted by
No. 43/2019
s. 14.

205DB Payments out of the Cladding Safety Victoria account

- (1) There must be paid out of the Cladding Safety Victoria account—

S. 205DB(1)(a)
repealed by
No. 31/2020
s. 57.

* * * *

- (b) the amount of any refunds required to be given by the Authority under section 205LBA(1)(b); and
- (c) any amounts authorised by the Minister for the purposes of conducting—
 - (i) the review under Subdivision 4C; and
 - (ii) any other review of this Act, the regulations and any other Acts or

regulations related to the building industry; and

- (ca) the amounts authorised by the Minister for any one or more of the following purposes—

**S. 205DB
(1)(ca)
inserted by
No. 11/2023
s. 46.**

- (i) determining whether cladding rectification work is required to be carried out to improve the safety of a building and the nature and scope of such cladding rectification work;
 - (ii) the carrying out, or to facilitate the carrying out, of cladding rectification work;
 - (iii) overseeing the activities described in subparagraphs (i) and (ii); and
- (d) any amounts directed under subsection (2) to be paid into the Consolidated Fund; and
- (e) any other amounts required or authorised to be paid out of the Cladding Safety Victoria account by or under this or any other Act.
- (2) If the Treasurer is satisfied that there is in the Cladding Safety Victoria account at any time an amount in excess of the amount required to meet the anticipated payments from the account, the Treasurer, after consultation with the Authority and the Minister, may direct the payment of the whole or any part of that excess amount out of the account into the Consolidated Fund.

205E Authority may invest funds

The Authority may invest any part of the Victorian Building Authority Fund not immediately required for the purposes of the Fund in any manner approved by the Treasurer.

**S. 205E
inserted by
No. 34/2013
s. 4.**

S. 205F
inserted by
No. 34/2013
s. 4.

**205F Authority may engage agent in administering
Victorian Building Authority Fund**

The Authority may enter into arrangements or agreements with any person or body to act as its agent in the carrying out of its functions in relation to the administration of the Victorian Building Authority Fund.

Subdivision 4—Building permit levy

S. 205G
inserted by
No. 34/2013
s. 4.

205G Building permit levy must be paid

S. 205G(1)
amended by
No. 21/2017
s. 66(1).

- (1) A building permit levy must be paid in the amount of 0.064 cents in every dollar of the cost of building work for which a building permit is required.

Note

A levy paid under this subsection is paid into the Building account of the Victorian Building Authority Fund and credited to the building permit levy account (see section 205A(2)).

S. 205G(2)
amended by
No. 21/2017
s. 66(1).

- (2) In addition to the levy imposed by subsection (1), a building permit levy must be paid in the amount of 0.064 cents in every dollar of the cost of building work for which a building permit is required.

Note

A levy paid under this subsection is paid into the Building account of the Victorian Building Authority Fund and credited to the domestic building dispute account (see section 205A(4)).

S. 205G(2A)
inserted by
No. 43/2019
s. 15(1).

- (2A) In addition to the levies imposed by subsections (1) and (2), a building permit levy in the amount calculated under subsection (2B) or (2C) must be

paid in relation to the cost of building work for which a building permit is required in respect of a building—

- (a) that is not, or will not be, in regional Victoria; and
- (b) that is, or will be, of any of the following classes of building—
 - (i) a class 2 building;
 - (ii) a class 3 building;
 - (iii) a class 4 building;
 - (iv) a class 5 building;
 - (v) a class 6 building;
 - (vi) a class 7 building;
 - (vii) a class 8 building.

Note

A levy paid under subsection (2A) is paid into the Cladding Safety Victoria account of the Victorian Building Authority Fund (see section 205DA(a)).

- (2B) If the building permit is a permit other than a staged permit, the levy imposed by subsection (2A) is calculated as follows—

S. 205G(2B)
inserted by
No. 43/2019
s. 15(1).

- (a) if the cost of the building work for which the permit is required is \$800 000 or more but less than \$1 000 000—0.128 cents in every dollar of the cost the building work for which the permit is required;
- (b) if the cost of the building work for which the permit is required is \$1 000 000 or more but less than \$1 500 000—0.256 cents in every dollar of the cost of the building work for which the permit is required;

- (c) if the cost of the building work for which the permit is required is \$1 500 000 or more—0·82 cents in every dollar of the cost of the building work for which the permit is required.

S. 205G(2C)
inserted by
No. 43/2019
s. 15(1).

- (2C) If the building permit is a staged permit, the levy imposed by subsection (2A) is calculated as follows—
 - (a) if the cost of the whole of the building work is \$800 000 or more but less than \$1 000 000—0·128 cents in every dollar of the cost the building work for which the permit is required;
 - (b) if the cost of the whole of the building work is \$1 000 000 or more but less than \$1 500 000—0·256 cents in every dollar of the cost of the building work for which the permit is required;
 - (c) if the cost of the whole of the building work is \$1 500 000 or more—0·82 cents in every dollar of the cost of the building work for which the permit is required.

S. 205G(2D)
inserted by
No. 31/2020
s. 57A.

- (2D) In the case of a building permit for which the building work relates to more than one class of building, and those classes of building include one or more class of building referred to in section 205G(2A) and a class 1, 9 or 10 building, the levy paid under subsection (2A) and calculated under subsection (2B) or (2C) must not include an amount that relates to the class 1, 9 or 10 building.

S. 205G(3)
substituted by
No. 21/2017
s. 66(2),
amended by
No. 43/2019
s. 15(2).

- (3) A building permit levy is not payable under subsection (1) or (2) if the cost of the building work (including the cost of labour and materials) is \$10 000 or less.

- (4) In this section a reference to a particular class of building is a reference to that class of building within the meaning of the Building Code of Australia.

New
s. 205G(4)
inserted by
No. 43/2019
s. 15(3).

* * * *

S. 205G(4)(5)
repealed by
No. 21/2017
s. 66(2).

205GA Applicant must pay building permit levy

S. 205GA
inserted by
No. 21/2017
s. 67.

The applicant for a building permit, or a person acting on behalf of the applicant, must pay to the Authority the amount of building permit levy calculated under section 205I before the building permit is issued.

205H Building permit application must contain information about cost of building work

S. 205H
inserted by
No. 34/2013
s. 4,
substituted by
No. 21/2017
s. 68.

- (1) An application for a building permit must—

- (a) specify the contract price for the building work (including the cost of labour and materials), if there is a contract for the building work; or
- (b) in any other case, include sufficient information to enable the relevant building surveyor to estimate the cost of the building work (including the cost of labour and materials).

- (1AA) An application for a building permit must also specify the following—

S. 205H(1AA)
inserted by
No. 31/2020
s. 57B(1).

- (a) whether the building work relates to more than one class of building;
- (b) if the building work relates to more than one class of building—each class of building;

- (c) if the building work relates to more than one class of building, and those classes of building include one or more class of building referred to in section 205G(2A) and a class 1, 9 or 10 building—
 - (i) the cost of the building work that relates to the class or classes of building referred to in section 205G(2A); and
 - (ii) the cost of the building work that relates to the class 1, 9 or 10 building.

S. 205H(1A)
inserted by
No. 43/2019
s. 16(1).

- (1A) If an application is for a staged permit, the application must also—
 - (a) specify the contract price for the whole of the building work (including the cost of labour and materials), if there is a contract for the whole of the building work; or
 - (b) in any other case, include sufficient information to enable the relevant building surveyor to estimate the cost of the whole of the building work (including the cost of labour and materials).

S. 205H(2)
amended by
Nos 43/2019
s. 16(2),
31/2020
s. 57B(2).

- (2) The requirements of this section are in addition to any other requirements under this Act or the regulations in relation to applications for building permits.

S. 205HA
inserted by
No. 21/2017
s. 68.

205HA Relevant building surveyor must refuse permit in certain circumstances

Without limiting the circumstances in which a relevant building surveyor may refuse to issue a building permit under Part 3, the relevant building surveyor must refuse an application for a building permit if the relevant building surveyor is satisfied—

(a) that the contract price for the building work specified in the application is substantially lower than the price normally payable under contracts for building work of that kind; or

(b) that the application—

(i) does not comply with section 205H(1)(b), (1AA)(c) or (1A)(b); or

S. 205HA(b)(i)
amended by
Nos 43/2019
s. 17, 31/2020
s. 57C.

(ii) contains a statement about the cost of the building work that is false or misleading in a material particular.

205I Calculation and notification of levy

S. 205I
inserted by
No. 34/2013
s. 4,
substituted by
No. 43/2019
s. 18.

(1) If an application is for a building permit other than a staged permit—

(a) the relevant building surveyor must—

(i) estimate the cost of the building work (including the cost of labour and materials) for which the building permit is sought, having regard to the information given under section 205H(1)(a) or (b); and

(ii) without delay, give the Authority and the applicant written notice of the estimate; and

(b) the Authority must—

(i) calculate the amount of building permit levy payable; and

(ii) give the applicant written notice of the amount calculated under subparagraph (i).

- (2) If an application is for a staged permit—
- (a) the relevant building surveyor must—
 - (i) estimate the cost of the whole of the building work (including the cost of labour and materials), having regard to the information given under section 205H(1A)(a) or (b); and
 - (ii) estimate the cost of the stage of the building work (including the cost of labour and materials) for which the permit is sought, having regard to the information given under section 205H(1)(a) or (b); and
 - (iii) without delay, give the Authority and the applicant written notice of the matters specified in subsection (3); and
 - (b) the Authority must—
 - (i) determine the applicable rate of the building permit levy under section 205G(2C); and
 - (ii) calculate the amount of building permit levy payable under section 205G in relation to the cost of the stage of the building work for which the permit is sought; and
 - (iii) give the applicant written notice of the rate determined under subparagraph (i) and the amount calculated under subparagraph (ii).

Notes

- 1 The building permit levy is imposed under section 205G. The amount of building permit levy payable in relation to a building permit is the sum of amounts payable under section 205G(1), (2) and (2A).

- 2 The imposition and rate of building permit levy under section 205G(2A) in relation to staged permits will depend on the cost of the whole of the building work—see section 205G(2C).
- (3) For the purposes of subsection (2)(a)(iii), the matters are—
- (a) the estimates referred to in subsection (2)(a)(i) and (ii); and
 - (b) whether the application is for the final stage of the building work.
- (4) In addition to subsections (1) and (2), for the purposes of the building permit levy payable under section 205G(2A), if an application is for a building permit in respect of which the building work relates to more than one class of building, and those classes of building include one or more class of building referred to in section 205G(2A) and a class 1, 9 or 10 building—
- (a) the relevant building surveyor must—
 - (i) estimate the cost of the building work (including the cost of labour and material) that relates to the class or classes of building referred to in section 205G(2A) and for which the building permit is sought, having regard to the information given under section 205H(1AA); and
 - (ii) estimate the cost of the building work (including the cost of labour and material) that relates to the class 1, 9 or 10 building and for which the building permit is sought, having regard to the information given under section 205H(1AA); and

S. 205I(4)
inserted by
No. 31/2020
s. 57D.

(b) the Authority must—

- (i) calculate the amount of building permit levy payable under section 205G(2A) in respect of building work that relates to the class or classes of building referred to in section 205G(2A); and
- (ii) give the applicant written notice of the amount calculated under subparagraph (i).

S. 205J
inserted by
No. 34/2013
s. 4,
substituted by
No. 21/2017
s. 69.

205J Offence for person not to remit levy to Authority

- (1) A person who receives an amount of money on account of the building permit levy must remit that amount of money to the Authority within the prescribed period after receiving that money.

Penalty: 120 penalty units, in the case of a natural person;
600 penalty units, in the case of a body corporate.

- (2) In this section—

prescribed period means the longer of—

- (a) the period prescribed by the regulations (if any); or
- (b) 5 business days.

S. 205K
inserted by
No. 34/2013
s. 4,
substituted by
No. 21/2017
s. 69.

205K Authority may recover unpaid levy

The Authority may recover from a person required to pay an amount of building permit levy to the Authority under section 205GA that amount in a court of competent jurisdiction as a debt due to the Authority.

205KA Authority must be notified of increased building costs

S. 205KA
inserted by
No. 21/2017
s. 69.

- (1) This section applies if, after the issue of a building permit other than a staged permit in relation to the carrying out of building work in or on a building or land, a variation has been made to the building work which has resulted in an increase in the cost of the building work estimated under section 205I by at least the prescribed amount.
- (2) If the variation to the building work is not related to an amendment of the building permit, the owner of the building or land must give written notice to the Authority of the revised final cost of the building work within 28 days after the owner becomes aware of the increase in cost.
- (3) If the variation to the building work is related to an amendment of the building permit, the applicant for the amendment to the building permit must give written notice to the Authority of the revised final cost of the building work within 28 days after the applicant becomes aware of the increase in cost.
- (4) In this section—
- prescribed amount*** means the greater of—
- (a) the amount prescribed by the regulations (if any); or
 - (b) \$15 625.

S. 205KA(1)
amended by
No. 43/2019
s. 19.

Note

Under Subdivision 4A the Authority may reassess and charge an additional amount of building permit levy and also impose a penalty levy if subsection (2) or (3) is not complied with.

Subdivision 4A—Reassessments of levy by the Authority after permit issued

Pt 12 Div. 2
Subdiv. 4A
(Heading and
ss 205L–
205LF)
inserted by
No. 21/2017
s. 70.

New s. 205L
inserted by
No. 21/2017
s. 70.

205L Authority may reassess levy after building permit issued

- (1) The Authority may reassess the amount of building permit levy required to be paid in relation to building work after a building permit for that work has been issued because—
 - (a) of a variation made to the building work which has resulted in an increase in the estimated cost of the building work; or
 - (b) the estimate under section 205I(1) or (4) by the relevant building surveyor of the cost of the building work was incorrect; or
 - (c) the Authority considers that the information provided by the applicant in the application for the building permit required under section 205H(1) or (1AA) was incorrect or misleading.
- (1A) If a staged permit has been issued, the Authority may also reassess the amount of building permit levy imposed by section 205G(2A) after a building permit for the final stage of the building work has been issued because—
 - (a) of a variation made to the building work which has resulted in an increase in the cost of the whole of the building work; or

S. 205L(1)(b)
amended by
Nos 43/2019
s. 20(1),
31/2020
s. 57E(1).

S. 205L(1)(c)
amended by
No. 31/2020
s. 57E(2).

S. 205L(1A)
inserted by
No. 43/2019
s. 20(2).

- (b) the estimate under section 205I(2) or (3) of the cost of the whole of the building work was incorrect; or
 - (c) the Authority considers that the information provided by the applicant in the application for the building permit required under section 205H(1A) was incorrect or misleading.
- (2) An amount of building permit levy reassessed under this section is to be calculated on the cost of the building work in accordance with section 205G.
- (3) The Authority may reassess an amount of building permit levy under subsection (1) no later than 5 years after the later of the following—
- (a) the issue of an occupancy permit required by the building permit;
 - (b) a certificate of final inspection for the building work;
 - (c) the date of practical completion of the building work.

205LA Authority must take into account matters in reassessing levy

S. 205LA
inserted by
No. 21/2017
s. 70.

In reassessing a building permit levy under section 205L, the Authority must take into account the following—

- (a) the information included in the application for the building permit under section 205H;
- (b) any other information given to the Authority by the applicant for the building permit or the relevant building surveyor relating to the cost of the building work;

- (c) any other information relating to the cost of the building work that the Authority considers relevant.

S. 205LB
inserted by
No. 21/2017
s. 70.

205LB Authority to give notice of additional levy to be paid

- (1) If a reassessment of the building permit levy under section 205L exceeds the amount of levy calculated under section 205I by at least the prescribed amount, the Authority must—
- (a) give to the person liable to pay the additional amount of levy a notice of—
- (i) the reassessment of the levy; and
- (ii) the additional levy to be paid by the person, being the difference between the levy paid in accordance with section 205GA and the reassessed levy amount; and
- (iii) any penalty levy imposed under section 205LC; and
- (b) give a notice to the relevant building surveyor of the revised cost of the building work on which the reassessment of the levy is based.
- (2) A notice under subsection (1)(a) must state that the person given the notice has the right to apply to VCAT for review of the reassessment of building permit levy and any penalty levy imposed.

- (3) In this section—

person liable to pay the additional amount of levy means—

- (a) if the reassessment of the building permit levy was based on the ground under section 205L(1)(a) and the variation to the building work is not

S. 205LB(3)
def. of person
liable to pay
the additional
amount of
levy
amended by
No. 43/2019
s. 21.

related to an amendment of the building permit, the owner of the building or land at the time at which the work that caused the increase in the cost of the building work was carried out; or

- (b) if the reassessment of the building permit levy was based on the ground under section 205L(1)(a) and the variation to the building work is related to an amendment of the building permit, the applicant for the amendment of the permit; or
- (c) if the reassessment of the building levy was based on a ground under section 205L(1)(b) or (c), the applicant for the building permit; or
- (d) if the reassessment of the building permit levy was based on the ground under section 205L(1A)(a) and the variation to the building work is not related to an amendment of the building permit, the owner of the building or land at the time at which the work that caused the increase to the cost of the building work was carried out; or
- (e) if the reassessment of the building permit levy was based on the ground under section 205L(1A)(a) and the variation to the building work is related to an amendment of the building permit, the applicant for the amendment of the permit; or
- (f) if the reassessment of the building permit levy was based on a ground under section 205L(1A)(b) or (c), the applicant for the building permit;

prescribed amount means—

- (a) the amount prescribed by the regulations (if any); or
- (b) if an amount is not prescribed, \$20.

S. 205LBA
inserted by
No. 43/2019
s. 22.

205LBA Authority to give notice of refund

S. 205LBA(1)
amended by
No. 31/2020
s. 57F.

- (1) If a reassessment of the building permit levy under section 205L(1)(b) or (c) or (1A)(b) or (c) is less than the amount of levy calculated under section 205I by at least the prescribed amount, the Authority must give to the person who paid the levy—
 - (a) a notice of the reassessment of the levy; and
 - (b) a refund of the difference between the amount of levy the person paid and the reassessed levy amount.
- (2) A notice under subsection (1) must state that the person given the notice has the right to apply to VCAT for review of the reassessment of building permit levy.
- (3) In this section—

prescribed amount means—

- (a) the amount prescribed by the regulations (if any); or
- (b) if an amount is not prescribed, \$20.

S. 205LC
inserted by
No. 21/2017
s. 70.

205LC Authority may impose amount of penalty levy

S. 205LC(1)
amended by
No. 43/2019
s. 23(1)(a)(b).

- (1) If the Authority has reassessed a building levy under section 205L and the reassessment is based on a ground under section 205L(1)(a) or (c)

or (1A)(a) or (c), the Authority may impose an amount of penalty levy of up to twice the difference between the reassessed amount of levy and the amount of levy calculated under section 205I if—

- | | |
|--|---|
| <p>(a) in the case of the ground under section 205L(1)(a) or (1A)(a), the person liable to pay the additional amount of levy under section 205LB failed to notify the Authority within the specified period under section 205KA about a variation to the building work that resulted in an increase in the cost of the building work by at least the prescribed amount; or</p> <p>(b) in the case of the ground under section 205L(1)(c) or (1A)(c), the Authority considers that the applicant for the building permit gave false or misleading information to the relevant building surveyor or the Authority about the cost of the building work.</p> | <p>S. 205LC(1)(a) amended by No. 43/2019 s. 23(1)(c).</p> <p>S. 205LC(1)(b) amended by No. 43/2019 s. 23(1)(d).</p> |
| <p>(2) Despite subsection (1), the Authority may decide not to impose a penalty levy based on the ground under section 205L(1)(a) or (1A)(a) if the Authority is satisfied that the person liable to pay the additional amount of levy under section 205LB held an honest and reasonable belief that a variation to the building work did not increase the cost of the building work by at least the prescribed amount.</p> | <p>S. 205LC(2) amended by Nos 43/2019 s. 23(2), 40/2021 s. 53(4).</p> |
| <p>(3) In this section—</p> <p><i>prescribed amount</i> has the same meaning as in section 205KA.</p> | |

S. 205LD
inserted by
No. 21/2017
s. 70.

205LD Person given notice must pay any additional levy and penalty levy

A person who is given a notice under section 205LB(1)(a) must pay the additional amount of building permit levy and any penalty levy to the Authority within 14 days after the notice is given to the person.

S. 205LE
inserted by
No. 21/2017
s. 70.

205LE Authority may recover additional levy assessed by Authority and penalty levy

The Authority may recover an amount of building permit levy and penalty levy from the person required to pay the levy and penalty levy under section 205LD in a court of competent jurisdiction as a debt due to the Authority.

S. 205LF
inserted by
No. 21/2017
s. 70,
amended by
No. 43/2019
s. 24 (ILA
s. 39B(1)).

205LF Review by VCAT

- (1) A person who is given a notice under section 205LB(1)(a) may apply to VCAT for review of the following decisions of the Authority—
 - (a) the decision by the Authority to reassess an amount of building permit levy under section 205L;
 - (b) the reassessment of the amount of building permit levy by the Authority under section 205L;
 - (c) the decision by the Authority to impose penalty levy under section 205LC;
 - (d) the amount of penalty levy imposed by the Authority under section 205LC, payable by the person.
- (2) A person who is given a notice under section 205LBA(1) may apply to VCAT for review of the reassessment of the amount of building permit levy by the Authority under section 205L.

S. 205LF(2)
inserted by
No. 43/2019
s. 24.

Subdivision 4B—Assessments of levy by the Authority for unauthorised building work

Pt 12 Div. 2
Subdiv. 4B
(Heading and
ss 205LG–
205LN)
inserted by
No. 21/2017
s. 70.

205LG Levy may be payable for work carried out without a permit

S. 205LG
inserted by
No. 21/2017
s. 70.

- (1) If a person is found guilty of an offence against section 16(1) or 16B(1), the Authority must assess an amount of building permit levy required to be paid in relation to the building work that was carried out in contravention of section 16(1) or 16B(1).
- (2) If the Authority believes on reasonable grounds that a person has carried out building work in contravention of section 16(1) or 16B(1), the Authority may decide to assess an amount of building permit levy required to be paid in relation to that building work.
- (3) The Authority must assess an amount of building permit levy under subsection (1) no later than 5 years after the finding of guilt for the offence against section 16(1) or 16B(1).
- (4) The Authority may assess an amount of building permit levy under subsection (2) no later than 5 years after the alleged contravention of section 16(1) or 16B(1).
- (5) An assessment of levy under this section must be in accordance with section 205LH.

205LH Assessment of levy

S. 205LH
inserted by
No. 21/2017
s. 70.

- (1) An amount of building permit levy assessed under section 205LG is to be calculated on the cost of the building work in accordance with section 205G.

(2) In determining the cost of the building work the Authority—

S. 205LH(2)(a)
amended by
No. 46/2018
s. 19.

- (a) may appoint an appropriately qualified registered building practitioner, other than a provisionally registered building practitioner, to investigate the building work and make a report to the Authority that includes an assessment of the cost of the building work; and
- (b) must take into account any report under paragraph (a) and any representations and information provided by the person that owned the building or land at the time at which the building work was carried out in or on that building or land; and
- (c) may otherwise inform itself as it considers appropriate.

S. 205LI
inserted by
No. 21/2017
s. 70.

205LI Authority may impose amount of penalty levy

If the Authority has made an assessment of building permit levy under section 205LG, the Authority may impose an amount of penalty levy of up to twice the amount of levy assessed.

S. 205LJ
inserted by
No. 21/2017
s. 70.

205LJ Authority may charge costs of assessing levy

- (1) If the Authority has assessed a building permit levy under section 205LG, the Authority may charge the person that owned the building or land at the time at which the building work was carried out in or on that building or land the reasonable costs incurred by the Authority in determining the cost of the building work under section 205LH.
- (2) Costs charged under this section are not to be treated as a penalty under this Division and are not to be taken into account to reduce or offset any penalty levy imposed under section 205LI.

205LK Authority to give notice of assessment

S. 205LK
inserted by
No. 21/2017
s. 70.

- (1) After making an assessment of the amount of building permit levy under section 205LG, the Authority must give a notice of the levy, any penalty levy imposed and any costs charged by the Authority to the person that owned the building or land at the time at which the building work was carried out in or on that building or land.
- (2) A notice under subsection (1) must state that the person given the notice has the right to apply to VCAT for review of the decision by the Authority to assess the building permit levy, the amount of levy assessed by the Authority, any penalty levy imposed by the Authority or any costs charged by the Authority.

205LL Person given notice must pay levy, penalty levy and costs of Authority

S. 205LL
inserted by
No. 21/2017
s. 70.

A person who is given a notice under section 205LK must pay to the Authority, within 28 days after the notice is given, the amount of building permit levy assessed by the Authority, any penalty levy imposed by the Authority and any costs charged by the Authority.

205LM Authority may recover levy assessed by Authority, penalty levy and costs

S. 205LM
inserted by
No. 21/2017
s. 70.

The Authority may recover the amount of building permit levy, penalty levy or costs required to be paid under section 205LL in a court of competent jurisdiction as a debt due to the Authority.

S. 205LN
inserted by
No. 21/2017
s. 70.

205LN Review by VCAT

A person may apply to VCAT for review of the following decisions of the Authority—

- (a) the decision by the Authority to assess a building permit levy under section 205LG(2) for building work carried out in relation to a building or land owned by the person at the time at which the building work was carried out;
- (b) an assessment of building permit levy by the Authority under section 205LH, payable by the person;
- (c) the decision by the Authority to impose an amount of penalty levy under section 205LI;
- (d) an amount of penalty levy imposed by the Authority under section 205LI, payable by the person;
- (e) an amount of costs charged by the Authority under section 205LJ, payable by the person.

Pt 12 Div. 2
Subdiv. 4C
(Heading and
s. 205LO)
inserted by
No. 43/2019
s. 25.

Subdivision 4C—Review of cladding rectification levy

S. 205LO
inserted by
No. 43/2019
s. 25.

205LO Review of cladding rectification levy

- (1) The Minister must ensure that a review of the additional levy imposed under section 205G(2A) is undertaken no later than 4 years after the commencement of section 15 of the **Building Amendment (Cladding Rectification) Act 2019**.
- (2) The purpose of the review is to determine whether there is an ongoing need for that additional levy to fund cladding rectification works.

- (3) The Minister must cause a report of the review to be laid before each House of Parliament within 7 sitting days of that House after the expiry of the 4-year period referred to in subsection (1).

Subdivision 5—Specific powers of Authority relating to building surveyors

* * * * *

S. 205L
inserted by
No. 34/2013
s. 4,
repealed by
No. 15/2016
s. 18(10).

205M Directions and recommendations in relation to building surveyors

S. 205M
inserted by
No. 34/2013
s. 4.

- (1) If it considers it necessary for the purposes of this Act or the regulations, the Authority may direct a municipal building surveyor or private building surveyor to carry out his or her functions under this Act or the regulations—
- (a) in accordance with this Act or the regulations; or
- (b) within a period specified in the direction.
- (2) The Authority, in giving a direction under subsection (1)(b), must not vary a time limit prescribed by this Act or the regulations.
- (3) If it considers it necessary for the purposes of this Act or the regulations, the Authority may recommend to the person who appointed a municipal building surveyor or private building surveyor that the person take action specified by the Authority.

S. 205M(4)
substituted by
No. 15/2016
s. 42,
amended by
No. 46/2018
s. 58(1)(a).

(4) Subject to subsection (4B), before giving a direction or making a recommendation under this section, the Authority must give the municipal building surveyor or private building surveyor concerned a written notice stating—

(a) the Authority's intention; and

S. 205M(4)(b)
amended by
No. 46/2018
s. 58(1)(b).

(b) the period (being not less than 7 days after the giving of the notice) within which the building surveyor may make submissions to the Authority about the matter.

S. 205M(4A)
inserted by
No. 15/2016
s. 42,
amended by
No. 46/2018
s. 58(2).

(4A) The Authority may specify a period shorter than the 7 day period referred to in subsection (4)(b) in an emergency.

S. 205M(4B)
inserted by
No. 46/2018
s. 58(3).

(4B) If the Authority believes on reasonable grounds that a high risk external wall cladding product has been used in connection with any building work relating to a function of a municipal building surveyor or private building surveyor, the Authority does not have to give the building surveyor a notice under subsection (4).

(5) The Authority must give a copy of any direction or recommendation under this section to the municipal building surveyor or private building surveyor concerned.

S. 205N
inserted by
No. 34/2013
s. 4.

**205N Authority may act as municipal building surveyor—
general**

(1) The Authority may carry out the functions of a municipal building surveyor under this Act and the regulations in relation to—

(a) any application for a building permit made to the Authority under Part 3; and

- (b) any matter referred to the Authority by a private building surveyor under Part 8; and
 - (c) a place of public entertainment (other than a prescribed temporary structure) for which the Authority has issued an occupancy permit.
- (2) The Authority's functions under subsection (1) are in addition to any function of a municipal building surveyor conferred on the Authority under Division 1.

205O Effect of Authority acting as municipal building surveyor

S. 205O
inserted by
No. 34/2013
s. 4.

- (1) In carrying out a function of a municipal building surveyor under Division 1 or section 205N, the Authority has the same powers that the municipal building surveyor would have to carry out the function.
- (2) A determination of the Authority in carrying out a function of a municipal building surveyor under Division 1 or section 205N must be given effect to as if it were the determination of a municipal building surveyor.
- (3) If, in carrying out any function of a municipal building surveyor, the Authority carries out any work or takes any action under Part 8, the Authority may—
 - (a) recover the costs of carrying out the work or taking the action from the owner in a court of competent jurisdiction as a debt due to the Authority; and
 - (b) apply any amount or part of any amount for which a bond or undertaking is deposited with the Authority under a condition imposed on a permit under section 22 towards the costs of carrying out the work or taking the action.

S. 205P
inserted by
No. 34/2013
s. 4.

205P Authority as relevant building surveyor for certain occupancy permits

The Authority is, and may carry out the functions of, the relevant building surveyor under Part 5 in relation to—

- (a) an application to the Authority for an occupancy permit under section 53(2); and
- (b) the issue of that permit; and
- (c) the amendment or cancellation of that permit.

S. 205Q
inserted by
No. 34/2013
s. 4.

205Q Building surveyor not to carry out function

- (1) This section applies if the Authority carries out any of the following functions in relation to building work or a building or land—
 - (a) a function as a municipal building surveyor under Division 1;
 - (b) a function under section 205N or 205P.
- (2) A municipal building surveyor or private building surveyor must not carry out a function to which this section applies in relation to the same building work, building or land.

S. 205R
inserted by
No. 34/2013
s. 4,
amended by
No. 9/2020
s. 390(Sch. 1
item 8.5).

205R Minister's guidelines apply to applications to Authority

If an application is made to the Authority under this Act for a permit or a temporary approval or an amendment to a permit or approval, section 66 or clause 1 of Schedule 2 (as the case requires) applies as if a reference in that section or clause to the **Local Government Act 2020** were a reference to guidelines under section 188 of this Act.

Division 3—State Building Surveyor

Pt 12 Div. 3
(Heading and
ss 206–208)
amended by
Nos 71/1995
s. 18(1),
34/1997 s. 18,
18/1998 s. 7,
75/1998 s. 4,
68/2001
s. 8(3),
18/2005
s. 18(Sch. 1
item 10.3),
34/2013 s. 5,
17/2014
s. 160(Sch. 2
item 11),
repealed by
No. 3/2020
s. 25, new
Pt 12 Div. 3
(Heading and
ss 206–206E)
inserted by
No. 11/2023
s. 14.

206 Appointment of State Building Surveyor

New s. 206
inserted by
No. 11/2023
s. 14.

- (1) The Authority may, after obtaining the written approval of the Minister, appoint a natural person who is an employee of the Authority as the State Building Surveyor.
- (2) The State Building Surveyor holds office on the terms and conditions determined by the Authority.
- (3) The State Building Surveyor is eligible for reappointment.
- (4) The State Building Surveyor must not engage in paid employment outside the office of the State Building Surveyor without the permission of the Authority.
- (5) The Authority must not appoint as the State Building Surveyor a person who is—
 - (a) a Commissioner; or

S. 206(5)(ab)
inserted by
No. 11/2023
s. 24.

- (ab) the Building Monitor; or
 - (b) the chief executive officer; or
 - (c) a member of the Building Appeals Board, the Building Regulations Advisory Committee or the Plumbing Advisory Council.
- (6) The Authority may appoint, with the approval of the Minister, a natural person who is an employee of the Authority to act as the State Building Surveyor for a period of no more than 6 months during which—
- (a) there is a vacancy in the office of the State Building Surveyor; or
 - (b) the State Building Surveyor is on leave or for any reason unable to perform their functions.
- (7) A person appointed to act as the State Building Surveyor under subsection (6) may perform all the functions of the State Building Surveyor.
- (8) The Authority may, with the Minister's approval, remove the person appointed as the State Building Surveyor or the acting State Building Surveyor from office if—
- (a) the person refuses, neglects or fails to perform the functions or carry out the duties of the State Building Surveyor; or
 - (b) the person demonstrates inefficiency or misconduct in carrying out the functions of the State Building Surveyor; or
 - (c) the person is convicted of an indictable offence, or an offence which, if committed in Victoria, would be an indictable offence; or

- (d) a ground for removal of the person under their contract of employment with the Authority is established.
- (9) An act or decision of the State Building Surveyor is not invalid merely because of a defect or irregularity in, or in connection with, the appointment of the State Building Surveyor.
- (10) Subsections (2), (3), (4), (5) and (9) apply to a person appointed as the acting State Building Surveyor as if that person were the State Building Surveyor.

206A Objectives of the State Building Surveyor

S. 206A
inserted by
No. 11/2023
s. 14.

The State Building Surveyor has the following objectives—

- (a) to be a primary source of technical expertise on the standards and requirements for building and plumbing work to the building and plumbing industries and the building system regulators to facilitate compliant building and plumbing work and sound building and plumbing practices;
- (b) to encourage improvements to regulatory oversight and practices within the building system to facilitate high quality outcomes in Victoria's built environment;
- (c) to support improvements to practices within the building surveying profession.

206B Functions of the State Building Surveyor

S. 206B
inserted by
No. 11/2023
s. 14.

- (1) The State Building Surveyor has the following functions—
 - (a) to prepare and issue binding determinations on interpreting the standards and requirements for building work and plumbing work that are prescribed by this

- Act, the building regulations and the plumbing laws;
- (b) to provide expert technical advice and guidance in relation to building work and plumbing work to building surveyors and persons involved in the building and plumbing industries including by way of publishing guidance materials which may include technical and educative advice;
 - (c) to advise the Minister in relation to significant strategic and regulatory issues within the building and plumbing industries;
 - (d) to represent the State on bodies developing national building and plumbing standards and requirements;
 - (e) to monitor councils' delivery of their building control functions and to provide councils with advice and support on the performance of those functions;
 - (f) to support the delivery of the Authority's functions by providing technical advice relating to building work and plumbing work to the Authority;
 - (g) to engage with building system regulators to enhance the standards and practices within the building and plumbing industries;
 - (h) to monitor developments and trends relevant to building and plumbing standards and building work and plumbing work in the State to support the delivery of the other functions of the State Building Surveyor;
 - (i) to provide training and education on technical matters relating to building work, plumbing work and building surveying work to building surveyors and persons and bodies involved in the building and plumbing

industries and on the functions performed by building surveyors;

- (j) to monitor and report on the performance of the building surveying industry generally including on the carrying out of the State Building Surveyor's regulatory functions under this Act and the regulations;
 - (k) to carry out any other function conferred on the State Building Surveyor by or under this Act or any other Act.
- (2) When performing the functions under this section, the State Building Surveyor must engage closely with building system regulators and other stakeholders in the building and plumbing industries in order to meet the State Building Surveyor's objectives.

206C Powers of the State Building Surveyor

Subject to this Act, the State Building Surveyor has the power to do all things necessary or convenient to be done for or in connection with the performance of the State Building Surveyor's functions to enable the achievement of the State Building Surveyor's objectives under this Act.

S. 206C
inserted by
No. 11/2023
s. 14.

206D Delegation powers of the State Building Surveyor

The State Building Surveyor may, by instrument, delegate to any person appointed or engaged by the Authority under section 204 (other than as a consultant) any function of the State Building Surveyor.

S. 206D
inserted by
No. 11/2023
s. 14.

206E State Building Surveyor may issue binding determinations

- (1) The State Building Surveyor may issue a binding determination on the interpretation of a technical standard or requirement for building work or

S. 206E
inserted by
No. 11/2023
s. 14.

plumbing work that is prescribed by this Act, the building regulations or the plumbing laws.

- (2) A binding determination issued under this section must not be inconsistent with this Act or the regulations.
- (3) The State Building Surveyor must—
 - (a) cause a binding determination issued under this section to be published in the Government Gazette and on the Authority's website; and
 - (b) ensure that the binding determination remains so published during the period that it is in effect.
- (4) A binding determination issued under this section comes into effect on the later of the following days—
 - (a) the day on which the determination is published in the Government Gazette;
 - (b) any commencement day specified in the determination.
- (5) A binding determination issued under this section expires 10 years after the day on which it was issued.

Pt 12 Div. 3A
(Headings
and ss 207–
208Q)
inserted by
No. 11/2023
s. 25.

Division 3A—Building Monitor

Subdivision 1—Definition in this Division

New s. 207
inserted by
No. 11/2023
s. 25.

207 Definition

In this Division—

information includes a document or copy of a document.

Subdivision 2—Appointment of Building Monitor

208 Appointment of Building Monitor

New s. 208
inserted by
No. 11/2023
s. 25.

- (1) The Governor in Council may, by instrument, on the recommendation of the Minister, appoint a natural person to the office of the Building Monitor.
- (2) Subject to this section, the Building Monitor holds office for the term specified in the instrument of appointment, which must not exceed 5 years.
- (3) The Building Monitor holds office on the terms and conditions determined by the Governor in Council and specified in the instrument of appointment, which must not be inconsistent with this Act.
- (4) The Building Monitor is eligible for re-appointment on one occasion.
- (5) The Building Monitor is entitled to be paid the remuneration and allowances determined by the Governor in Council.
- (6) The **Public Administration Act 2004** (other than Part 3, except as provided by section 16, of that Act) applies to the Building Monitor in respect of the office of the Building Monitor.
- (7) The Building Monitor is a public entity for the purposes of the **Public Administration Act 2004**.
- (8) Despite anything to the contrary in the **Financial Management Act 1994**, the Building Monitor is not a public body within the meaning of that Act.
- (9) The Building Monitor must not—
 - (a) directly or indirectly engage in any paid or unpaid employment in the building industry or the plumbing industry outside the functions of the Building Monitor without the prior approval of the Minister; or

- (b) be appointed to an office, or as a member of any body established, under this Act (other than the Building Regulations Advisory Committee and the Plumbing Advisory Council) or the **Domestic Building Contracts Act 1995**, the **Architects Act 1991** or the **Cladding Safety Victoria Act 2020**.

S. 208A
inserted by
No. 11/2023
s. 25.

208A Vacancy in office of Building Monitor

The office of the Building Monitor becomes vacant if the Building Monitor—

- (a) resigns by notice in writing given to the Minister; or
- (b) becomes insolvent under administration; or
- (c) is found guilty or convicted of—
 - (i) an indictable offence; or
 - (ii) an offence that, if committed in Victoria, would be an indictable offence; or
- (d) is removed from the office.

S. 208B
inserted by
No. 11/2023
s. 25.

208B Removal from office of Building Monitor

- (1) The Governor in Council, on the recommendation of the Minister, may remove the Building Monitor from office at any time if, in the reasonable opinion of the Minister—
- (a) the Building Monitor for any reason refuses, neglects, fails or is unable to carry out the functions of the office; or
 - (b) the Building Monitor engages in misconduct including when carrying out the functions of the office; or

- (c) a ground for removal of the Building Monitor specified in the instrument of appointment has been established.
- (2) If the Building Monitor is removed from the office under this section, the Minister must cause to be laid before each House of Parliament a full statement of the grounds of the removal within 10 sitting days of that House after the removal.

208C Acting Building Monitor

S. 208C
inserted by
No. 11/2023
s. 25.

- (1) The Governor in Council may, by instrument, appoint a person to act in the office of the Building Monitor for a period not exceeding 6 months—
 - (a) during a vacancy in the office; or
 - (b) during any period when the Building Monitor is absent or is, for any other reason, unable to perform the functions of the office.
- (2) Subject to subsection (3), the Minister may, by instrument, appoint a person to act in the office of Building Monitor for a period not exceeding one month—
 - (a) during a vacancy in that office; or
 - (b) during any period when the Building Monitor is absent or is, for any other reason, unable to perform the functions of the office.
- (3) The Minister may not appoint a person to act in the office of the Building Monitor under subsection (2) for consecutive periods of time.
- (4) A period of appointment under this section must be specified in the instrument of appointment.
- (5) A person appointed to act in the office of the Building Monitor under this section may perform all the functions of the Building Monitor.

- (6) Sections 208(3) and (5) to (9) and 208D apply to a person appointed to act as the Building Monitor as if that person were the Building Monitor.

S. 208D
inserted by
No. 11/2023
s. 25.

208D Validity of decisions of Building Monitor

An act or decision of the Building Monitor is not invalid merely because of a defect or irregularity in, or in connection with, the appointment of the Building Monitor.

Subdivision 3—Objectives, functions and general powers of Building Monitor

S. 208E
inserted by
No. 11/2023
s. 25.

208E Objectives of the Building Monitor

The objectives of the Building Monitor are—

- (a) to improve domestic building affected parties' experiences of the building system by advocating for their interests at a systemic level and providing independent expert advice to the Minister and to persons and bodies involved in the building system; and
- (b) to create a central point for the identification of critical and systemic issues that affect domestic building affected parties; and
- (c) to empower domestic building affected parties by promoting awareness of systemic issues that relate to the building industry, the plumbing industry and building system regulators and options to address any such issues.

S. 208F
inserted by
No. 11/2023
s. 25.

208F Functions of the Building Monitor

The functions of the Building Monitor are—

- (a) to advise and make recommendations to the Minister on systemic issues and risks that affect domestic building affected parties; and

- (b) to report on research conducted on the nature of specific systemic issues that affect domestic building affected parties; and
- (c) to advocate on behalf of domestic building affected parties as a cohort at a system-wide level on issues or matters affecting domestic building affected parties that require reform; and
- (d) to collect and analyse information and data on the systemic issues that affect domestic building affected parties; and
- (e) to monitor improvements to domestic building affected parties' experiences as a result of legislative reform; and
- (f) to develop and promote educational materials and strategies in order to reduce consequences for domestic building affected parties; and
- (g) to engage with all relevant persons and bodies involved in or performing functions in the building system; and
- (h) to support any work that assists in the achievement of the Building Monitor's objectives; and
- (i) to carry out any other function conferred on the Building Monitor under this Act.

208G General powers of the Building Monitor

- (1) Subject to this Act, the Building Monitor has power to do all things necessary or convenient to be done for or in connection with the performance of the Building Monitor's functions and to enable the Building Monitor to achieve the objectives of the Building Monitor under this Act.

S. 208G
inserted by
No. 11/2023
s. 25.

- (2) In exercising the Building Monitor's powers, the Building Monitor must comply with any relevant requirements specified by or under any other Act.

S. 208H
inserted by
No. 11/2023
s. 25.

208H Staff

The Building Monitor may enter into agreements or arrangements for the use of the services of any staff or contractors of the Department for the purposes of carrying out the Building Monitor's functions under this Act.

S. 208I
inserted by
No. 11/2023
s. 25.

208I Delegation

The Building Monitor may, by instrument, delegate any function, power or duty of the Building Monitor to a person employed by the Secretary to the Department under Part 3 of the **Public Administration Act 2004**.

Subdivision 4—Strategic plan

S. 208J
inserted by
No. 11/2023
s. 25.

208J Building Monitor must implement a strategic plan

- (1) The Building Monitor must—
- (a) within 4 months after being appointed for the first time, prepare a strategic plan for the term for which the Building Monitor has been appointed and submit the plan to the Minister for approval; and
 - (b) if appointed for a second time, within 6 months after the appointment, prepare a strategic plan for the term for which the Building Monitor has been appointed and submit the plan to the Minister for approval.
- (2) A strategic plan prepared under subsection (1) must contain the following—
- (a) a vision statement;
 - (b) a mission statement;
 - (c) the values of the Building Monitor;

- (d) a description of strategic initiatives to be taken by the Building Monitor to enable the Building Monitor to meet the Building Monitor's objectives;
 - (e) information on how the Building Monitor intends to evaluate whether the objectives of the Building Monitor are met;
 - (f) any other goals to be met, or strategies to be taken, by the Building Monitor as required by the Minister from time to time.
- (3) The Minister may—
- (a) approve a strategic plan submitted under subsection (1); or
 - (b) ask the Building Monitor to re-submit an amended strategic plan.
- (4) On approval of a strategic plan by the Minister, the Building Monitor must publish the strategic plan on the Building Monitor's website.
- (5) Despite subsection (1), a strategic plan approved by the Minister remains in force until the Minister approves a later strategic plan.

Subdivision 5—Information gathering powers of Building Monitor

208K Building Monitor may request information or data from certain persons or bodies

S. 208K
inserted by
No. 11/2023
s. 25.

- (1) If the Building Monitor believes on reasonable grounds that a person or body specified in subsection (3) has information (including personal information) or data that is relevant to the performance of the functions of the Building Monitor under this Division, the Building Monitor may, after consulting with the person or body, give a written notice to the person or body requiring the person or body to provide the

information or data specified in the notice to the Building Monitor.

- (2) A person or body referred to in subsection (3) that receives a notice to provide information or data under subsection (1)—
- (a) is authorised to provide the information or data to the Building Monitor; and
 - (b) must provide the information or data to the Building Monitor—
 - (i) within any time agreed with the Building Monitor; and
 - (ii) in the format specified in the notice or as agreed with the Building Monitor; and
 - (c) must ensure that the information or data provided is comprehensive and relevant to the Building Monitor's request.
- (3) For the purposes of subsection (1), the persons or bodies are the following—
- (a) the Authority;
 - (b) the Architects Registration Board of Victoria;
 - (c) Cladding Safety Victoria;
 - (d) the chief dispute resolution officer;
 - (e) the Director of Consumer Affairs Victoria;
 - (f) a council;
 - (g) the Secretary to the Department;
 - (h) the Secretary to the Department of Government Services;
 - (i) VCAT;
 - (j) any other prescribed person or body.

- (4) In this section, information or data that VCAT may be requested to provide to the Building Monitor under subsection (1) is limited to information or data of a class of information or data that is prescribed for the purposes of section 38AA of the **Victorian Civil and Administrative Tribunal Act 1998**.

208L Building Monitor must not publish certain information or data

S. 208L
inserted by
No. 11/2023
s. 25.

The Building Monitor must not publish or authorise the publication of any personal information or data, or commercially sensitive information or data, that has not first been de-identified or aggregated with similar information or data (as the case requires) before it is published.

208M Improper disclosure or use of information or data

S. 208M
inserted by
No. 11/2023
s. 25.

The Building Monitor or any person assisting or acting on behalf of the Building Monitor must not use or disclose information (including personal information) or data obtained in the course of performing the functions of the Building Monitor under this Division unless—

- (a) the use or disclosure of the information or data is for the purposes of performing the Building Monitor's functions under this Act; or
- (b) the information or data is shared under an information sharing arrangement under section 259AB; or
- (c) the disclosure of the information or data is required or permitted under another Act.

Penalty: 60 penalty units.

Subdivision 6—Establishment of Building Monitor Reference Group

S. 208N
inserted by
No. 11/2023
s. 25.

208N Minister may establish a Building Monitor Reference Group

- (1) The Minister may establish a Building Monitor Reference Group (the **Group**) which must be comprised of not less than 5 members including the Building Monitor.
- (2) The purposes of the Group are to provide information and advice to the Building Monitor concerning systemic issues and other matters facing, or experienced by, domestic building affected parties.
- (3) The chair of the Group is the Building Monitor.
- (4) Subject to subsection (5), the remaining members of the Group are to be appointed by instrument by the Minister and must be any one of the following persons—
 - (a) a domestic building affected party;
 - (b) a representative of a person or body that represents the interests of domestic building affected parties;
 - (c) an expert in domestic building affected parties' matters.
- (5) The Minister must not appoint a person to be a member of the Group who—
 - (a) is a registered building practitioner, an architect who is registered under the **Architects Act 1991** or an endorsed building engineer; or
 - (b) in the opinion of the Minister, has a conflict of interest in being appointed as a member of the Group.

- (6) A member of the Group may be appointed for a period not exceeding 2 years and that period must be specified in the instrument of appointment.
- (7) A member of the Group may be reappointed.
- (8) The Minister may determine the terms and conditions of appointment of the members of the Group, which must be specified in the instrument of appointment.
- (9) The members of the Group are entitled to the remuneration, allowances and any expenses incidental to their appointment that are specified in the instrument of appointment.
- (10) The chair of the Group may determine the terms of reference and the procedures of the Group including how often the Group meets.
- (11) A member of the Group may resign by giving a written notice to the Minister.
- (12) The Minister may remove a member of the Group for any reason that the Minister considers to be appropriate in the circumstances.

208O Review of Building Monitor Reference Group

- (1) The Minister must ensure that a review is undertaken of any Building Monitor Reference Group established under section 208N to determine whether the purposes of the Group and the criteria for membership of the Group support the Building Monitor in meeting the objectives of the Building Monitor.
- (2) The Minister must ensure that the review is undertaken within 3 years after the Building Monitor Reference Group is established and that a report of the review is prepared.

S. 208O
inserted by
No. 11/2023
s. 25.

Subdivision 7—Building Monitor Issues Report

S. 208P
inserted by
No. 11/2023
s. 25.

208P Building Monitor Issues Report

- (1) The Building Monitor must prepare an annual Building Monitor Issues Report (the **Report**) within the first year of the Building Monitor's appointment and for every subsequent year of appointment in accordance with this section.
- (2) During the preparation of the Report, the Building Monitor must—
 - (a) consult with the Minister about any proposed recommendations to be made to the Minister in the Report; and
 - (b) consult with any person or body involved or performing functions in the building system or in respect of which the Building Monitor proposes to make recommendations in relation to the person's or body's area of responsibility in the Report; and
 - (c) consult with domestic building affected parties, including by way of chairing the Building Monitor Reference Group.
- (3) In the Report the Building Monitor—
 - (a) must specify the systemic issues that affect domestic building affected parties that have been identified by the Building Monitor; and
 - (b) may advise and make recommendations to the Minister on ways to address the issues that affect domestic building affected parties identified in the Report; and
 - (c) must specify—
 - (i) the methods and frequency of consultation with domestic building affected parties by the Building Monitor including by way of chairing

- the Building Monitor Reference Group;
and
- (ii) subject to sections 208L and 208M, the information or data relied on by the Building Monitor to inform the findings and any recommendations contained in the Report; and
- (d) must include the following—
 - (i) a summary of the Building Monitor's findings stemming from research conducted by the Building Monitor;
 - (ii) when and to whom a notice under section 208K(1) was given and the type of information or data required under the notice;
 - (iii) whether the Building Monitor is a party to—
 - (A) any information sharing arrangement under section 259AB; or
 - (B) any other information or data collection or sharing arrangements or agreements;
 - (iv) details of progress made against the strategic plan referred to in Subdivision 4;
 - (v) a summary of all activities conducted by the Building Monitor for the purposes of performing the Building Monitor's functions under this Division, whether those activities have been completed or not.

- (4) After preparing the Report the Building Monitor must—
- (a) promptly publish the Report on the Building Monitor's website; and
 - (b) give a written notice to each person or body that is subject to a recommendation in the Report, to advise the person or body of that recommendation and the requirement under subsection (5) to respond to the Building Monitor within the required time.
- (5) A person or body who receives a notice about a recommendation in the Report under subsection (4)(b) must provide a written response to the Building Monitor within 6 months after the publication of the Report stating—
- (a) whether or not the person or body agrees with the recommendation; and
 - (b) if the person or body agrees with the recommendation, how and when the person or body intends to implement or support that recommendation.

Subdivision 8—Review of office of Building Monitor

S. 208Q
inserted by
No. 11/2023
s. 25.

208Q Review of office of Building Monitor

- (1) The Minister must ensure that a review is undertaken within 3 years after the first Building Monitor is appointed to determine whether there is an ongoing need for the office of the Building Monitor.
- (2) Further reviews must be undertaken by the Minister within 6 years after the anniversary of the completion of the first review under subsection (1).

- (3) The Minister must ensure that a copy of a review required under this section is laid before each House of Parliament within 7 sitting days of that House after the review is completed.

Division 4—The Building Regulations Advisory Committee

209 Establishment of Committee

There is established by this Act a Committee to be called the Building Regulations Advisory Committee.

210 Membership and procedure

- (1) The members of the Building Regulations Advisory Committee are to be appointed by the Minister.
- (2) Of those members—
- (a) one is to be the Chief Commissioner or a Commissioner nominated by the Chief Commissioner, who is to be chairperson of the Committee;
 - (b) one is to be nominated by the Minister administering Part 4 of the **Project Development and Construction Management Act 1994**;
 - (c) one is to be nominated by the Minister administering the **Country Fire Authority Act 1958** and the Minister administering the **Fire Rescue Victoria Act 1958**;
 - (d) one is to be nominated by the Melbourne City Council and is to be a person who, in the Minister's opinion, has experience in matters provided for by this Act or the regulations;

S. 210(2)(a)
substituted by
No. 34/2013
s. 22(3).

S. 210(2)(b)
amended by
No. 101/1994
s. 64.

S. 210(2)(c)
amended by
No. 20/2019
s. 147.

- (e) one is to be chosen from a list of 3 names submitted by the Royal Australian Institute of Architects, Victorian Chapter;
- (f) one is to be chosen from a list of 3 names submitted by the Institution of Engineers, Australia, Victoria Division;
- (g) one is to be chosen from a list of 3 names submitted by the Master Builders Association of Victoria;
- S. 210(2)(h)
amended by
No. 34/1997
s. 30(a).

- (h) one is to be chosen from a list of 3 names submitted by the Housing Industry Association, Victoria/Tasmania Division;
- S. 210(2)(i)
amended by
No. 34/1997
s. 18.

- (i) one is to be chosen from a list of 3 names submitted by the Property Council of Australia, Victoria Division;
- (j) one is to be chosen from a list of 3 names submitted by the Municipal Association of Victoria;
- S. 210(2)(ja)
inserted by
No. 3/2020
s. 28.

- (ja) one is to be nominated by the Building Designers Association of Victoria Inc.;
- (k) two are to be chosen from a list of 6 names submitted by the Australian Institute of Building Surveyors, Victorian Chapter;
- S. 210(2)(l)
inserted by
No. 71/1995
s. 19(1),
amended by
No. 68/2001
s. 8(4)(a).

- (l) one is to be a person who in the Minister's opinion, has experience in the building industry or in matters related to that industry;

- | | |
|--|---|
| (m) at least one is to be an Australian lawyer of at least 5 years' standing; | S. 210(2)(m) inserted by No. 68/2001 s. 8(4)(b), substituted by No. 18/2005 s. 18(Sch. 1 item 10.4), amended by No. 17/2014 s. 160(Sch. 2 item 11). |
| (n) one is to be the Building Monitor or a person nominated by the Building Monitor to represent the Building Monitor and who must be employed by the Secretary to the Department. | S. 210(2)(n) inserted by No. 68/2001 s. 8(4)(b), substituted by No. 11/2023 s. 27. |
| (2A) For the purposes of subsection (2)(a), the Chief Commissioner may nominate a Commissioner to act in the place of the Chief Commissioner in his or her absence. | S. 210(2A) inserted by No. 34/2013 s. 22(4). |
| (3) If there is or there is to be a vacancy in the membership of the Building Regulations Advisory Committee under subsection (2)(b) to (k), the Minister may, as appropriate, request the relevant Minister to make a nomination for appointment or the relevant organisation to submit a list of names within a period specified in the request. | |
| (4) The Minister may appoint an otherwise eligible person to be a member of the Committee without a nomination or list of names, if that request is not complied with. | |
| (5) Parts 1 and 2 (except for clause 8) of Schedule 3 apply to the membership and procedure of the Building Regulations Advisory Committee in the same way as they apply to a Board. | |

211 Functions of Committee

The following are the functions of the Building Regulations Advisory Committee—

S. 211(a)
amended by
No. 54/2007
s. 11(2).

- (a) to advise the Minister on draft regulations prepared under this Act, and in particular the extent to which they promote the objectives of this Act, are cost effective and are necessary;
- (b) to accredit building products, construction methods or designs, components or systems connected with building work for the purposes of this Act and the building regulations;

S. 211(ba)
inserted by
No. 3/2020
s. 29.

- (ba) to advise the Minister on the administration of this Act and the regulations, other than Part 12A and the regulations made under that Part;

S. 211(bb)
inserted by
No. 3/2020
s. 29,
amended by
No. 40/2021
s. 53(5).

- (bb) to advise the Minister on the impact on the building regulations system established by this Act or regulations made under any other Act;

S. 211(bc)
inserted by
No. 3/2020
s. 29.

- (bc) to advise the Minister on issues relating to the building permit levy;

- (c) to advise the Minister on any matter referred to it by the Minister;
- (d) any other functions conferred by or under this or any other Act.

Division 4A—Plumbing Advisory Council

Pt 12 Div. 4A
(Heading
and ss
211A–211C)
inserted by
No. 34/2013
s. 6.

211A Establishment of Council

There continues to be a Plumbing Advisory Council.

S. 211A
inserted by
No. 34/2013
s. 6.

211B Membership and procedure

S. 211B
inserted by
No. 34/2013
s. 6.

- (1) The members of the Plumbing Advisory Council are to be appointed by the Minister.
- (2) Of those members—
 - (a) one is to be a person with substantial knowledge and experience in relation to the plumbing industry, appointed as chairperson by the Minister; and
 - (b) one is to be the Chief Commissioner or a Commissioner nominated by the Chief Commissioner; and
 - (c) one is to be a person nominated by the Minister administering the **Water Act 1989**; and
 - (d) one is to be a person nominated by the Minister administering the **Gas Safety Act 1997**; and
 - (e) one is to be a person nominated by the Minister administering Part 3.1 of Chapter 3 and Part 5.5 of Chapter 5 of the **Education and Training Reform Act 2006**; and
 - (f) one is to be a person chosen by the Minister; and

S. 211B(2)(k)
substituted by
No. 11/2023
s. 28.

- (g) one is to be a person nominated by a body that, in the opinion of the Minister, represents Victorian employers in relation to all classes of plumbing work; and
 - (h) one is to be a person nominated by a body that, in the opinion of the Minister, represents air-conditioning contractors in Victoria; and
 - (i) one is to be a person nominated by a body that, in the opinion of the Minister, represents fire protection contractors in Victoria; and
 - (j) up to three are to be persons nominated by a body or bodies that, in the opinion of the Minister, represent the industrial interests of employee plumbers; and
 - (k) one is to be the Building Monitor or a person nominated by the Building Monitor to represent the Building Monitor and who must be employed by the Secretary to the Department.
- (3) For the purposes of subsection (2)(b), the Chief Commissioner may nominate a Commissioner to act in the place of the Chief Commissioner in his or her absence.
- (4) If a body referred to in subsection (2)(g), (h), (i) or (j) does not nominate a person within 30 days of being asked to do so in writing, the Minister may appoint a member of that body chosen by the Minister to be a member of the Council.
- (5) Parts 1 and 2 (except for clause 8) of Schedule 3 apply to the membership and procedure of the Council in the same way as they apply to a Board.

211C Functions

The functions of the Plumbing Advisory Council are—

**S. 211C
inserted by
No. 34/2013
s. 6.**

- (a) to advise the Minister, either at the request of the Minister or on its own initiative, in relation to Part 12A and the plumbing industry; and
- (b) to advise the Authority, either at the request of the Authority or on its own initiative, in relation to Part 12A and the plumbing industry.

Division 5—Role of councils

212 Council to administer building provisions in its municipal district

- (1) Except where otherwise expressly provided in this Act or the building regulations, a council is responsible for the administration and enforcement of Parts 3, 4, 5, 7 and 8 and the building regulations in its municipal district.
- (1A) Subsection (1) is not limited if a private building surveyor is appointed to carry out any functions specified in section 76 or 77 in relation to a building or building work in the municipal district of that council.
- (1B) A council is not responsible for enforcing an indictable offence against this Act.
- (2) Nothing in this section limits a council's powers to act outside its municipal district.

**S. 212(1A)
inserted by
No. 21/2017
s. 83.**

**S. 212(1B)
inserted by
No. 47/2017
s. 12.**

S. 213
repealed by
No. 76/1997
s. 23,
new s. 213
inserted by
No. 36/2008
s. 12,
amended by
No. 21/2017
s. 84.

213 Appointment of municipal building surveyor

A municipal council must not appoint, employ or nominate a person as its municipal building surveyor unless the person—

S. 213(a)
inserted by
No. 21/2017
s. 84.

(a) is a natural person; and

S. 213(b)
inserted by
No. 21/2017
s. 84.

(b) is registered as a building surveyor under Part 11 and whose registration authorises the carrying out of work required for performing all the functions of a municipal building surveyor.

S. 214
(Heading)
inserted by
No. 34/2013
s. 34(Sch. 1
item 30).

214 Agreements with councils or the Authority

S. 214(1)
amended by
Nos 34/2013
s. 34(Sch. 1
item 31),
9/2020
s. 390(Sch. 1
item 8.6).

(1) Despite anything to the contrary in the **Local Government Act 2020**, a council may enter into an agreement with any other council or with the Authority in respect of the carrying out by the Authority or the municipal building surveyor of the second council of any of the functions under this Act or the regulations of the municipal building surveyor of the first council.

S. 214(2)
amended by
No. 21/2017
s. 99.

(2) If a council enters into an agreement with another council under subsection (1) in respect of the carrying out of the functions of a municipal building surveyor, the municipal building surveyor of the second council is taken, while the agreement is in force, to be the municipal building

surveyor of the first council for the purpose of carrying out the functions set out in the agreement.

- (3) If the Authority enters into an agreement with a council under subsection (1) in respect of the carrying out of the functions of a municipal building surveyor, the Authority is taken, while the agreement is in force, to be the municipal building surveyor of that council for the purpose of carrying out the functions set out in the agreement.
- (4) Nothing in this section prevents the Authority or a council from entering into agreements in respect of the carrying out of the functions of the municipal building surveyor of more than one council.

S. 214(3)
amended by
Nos 34/2013
s. 34(Sch. 1
item 31),
21/2017 s. 99.

S. 214(4)
amended by
No. 34/2013
s. 34(Sch. 1
item 31).

215 Agreement with private building surveyor

- (1) Despite anything to the contrary in the **Local Government Act 2020**, a council may enter into an agreement with a private building surveyor to carry out the functions under this Act and the regulations of the municipal building surveyor of the council.
- (2) A private building surveyor who enters into an agreement with a council under subsection (1)—
- (a) is taken to be the municipal building surveyor of that council for the purpose of carrying out the functions set out in the agreement; and
- (b) despite anything to the contrary in the **Local Government Act 2020**, is not a member of staff of the council.

S. 215(1)
amended by
No. 9/2020
s. 390(Sch. 1
item 8.6).

S. 215(2)(a)
amended by
No. 21/2017
s. 99.

S. 215(2)(b)
amended by
No. 9/2020
s. 390(Sch. 1
item 8.6).

216 Council to charge commercial rates for work outside municipal district

S. 216(1)
amended by
No. 9/2020
s. 390(Sch. 1
item 8.6).

- (1) If a council or its municipal building surveyor carries out any function under this Act or the building regulations in respect of a building or land outside the council's municipal district, then despite anything to the contrary in the **Local Government Act 2020**, the fees or charges payable to the council or municipal building surveyor in respect of the carrying out of that function must be not less than the total cost of carrying out that function.
- (2) Subsection (1) does not apply to a function carried out by a council or municipal building surveyor on behalf of another council or municipal building surveyor.

S. 216A
inserted by
No. 18/1998
s. 8.

216A Exemption from functions in relation to certain permits

- (1) A council may apply to the Minister to exempt its municipal building surveyor from any requirement to consider applications for building permits for building work other than prescribed domestic building work.
- (2) The Minister may grant the exemption if the Minister is satisfied that sufficient private building surveyors are available to consider those applications for building permits in relation to land in the council's municipal district.
- (3) If the Minister grants an exemption in respect of a municipal building surveyor, then, despite anything to the contrary in this Act and while the exemption is in force, an application cannot be made to the municipal building surveyor under Part 3 for a building permit for building work other than prescribed domestic building work.

- (4) The Minister may at any time revoke an exemption given under this section.
- (5) The Minister must cause notice of any exemption or revocation under this section to be published in the Government Gazette.

216B Delegation by municipal building surveyor

The municipal building surveyor of a council may, by instrument, delegate any of the municipal building surveyor's functions under this Act or the regulations to any person employed or engaged by the council who is registered as a building surveyor or a building inspector under Part 11 and whose registration authorises the carrying out of the work required for performing the functions to be delegated by the municipal building surveyor.

S. 216B
inserted by
No. 68/2001
s. 11,
amended by
No. 36/2008
s. 13,
substituted by
No. 21/2017
s. 85.

216C Role of municipal building surveyor outside municipal district

- (1) A municipal building surveyor of a council, with the consent of that council, may be appointed to carry out all or any of the following functions under this Act in respect of land outside the municipal district of that council—
 - (a) the issuing of building permits;
 - (b) the carrying out of inspections of buildings and building work under Part 4;
 - (c) the issuing of occupancy permits and temporary approvals under Part 5.
- (2) In addition to subsection (1), a municipal building surveyor of a council who is appointed pursuant to subsection (1) may carry out outside the municipal district of that council any other functions conferred on a private building surveyor by this Act or the regulations.

S. 216C
inserted by
No. 36/2008
s. 14.

S. 216C(4)(a)
amended by
Nos 15/2016
s. 43, 21/2017
s. 86,
substituted by
No. 21/2017
s. 41.

- (3) A municipal building surveyor may use the title of municipal building surveyor in carrying out functions referred to in this section.
- (4) Sections 78 to 83 apply to a municipal building surveyor who is appointed to carry out functions pursuant to subsection (1) as if—
 - (a) a reference in sections 78(1), 78(1A), 78(3) and 78(4), 78A, 78B, 79(1), 79(1A), 79(2), 80, 80C(1), 81(1) to 81(3) and 83 to a private building surveyor were a reference to the municipal building surveyor; and
 - (b) a reference in sections 78(2), 79(3), 81(4), 82(1)(b) and 82(3) to a private building surveyor (where first occurring) were a reference to the municipal building surveyor; and
 - (c) a reference in section 82(2) to a private building surveyor (where first and thirdly occurring) were a reference to the municipal building surveyor; and
 - (d) a reference in sections 81(4) and 82 to a private building surveyor's functions were a reference to the municipal building surveyor's functions; and
 - (e) a reference to a function set out in section 76 of the Act were a reference to a function set out in subsection (1).
- (5) Nothing in this section limits or affects the operation of sections 191, 192, 214, 215, 216 or 221.
- (6) The enactment of this section does not affect the validity of any permit issued by a municipal building surveyor of a council outside the

municipal district of that council before that enactment.

216D Register of swimming pools

S. 216D
(Heading)
amended by
No. 3/2020
s. 30(1).

S. 216D
inserted by
No. 46/2018
s. 28.

- (1) This section applies to a swimming pool that is appurtenant to a Class 1, 2, 3 or 10 building or a Class 4 part of a building. S. 216D(1)
amended by
No. 3/2020
s. 30(2).
- (2) Each council must establish and maintain a register of swimming pools located in the municipal district of the council. S. 216D(2)
amended by
No. 3/2020
s. 30(3).
- (3) The register must contain the prescribed information, records and documents relating to any swimming pool— S. 216D(3)
amended by
No. 3/2020
s. 30(4)(a).
- (a) that is registered with the council; or
- (b) any other swimming pool located in the municipal district of the council of which the council is aware. S. 216D(3)(b)
amended by
No. 3/2020
s. 30(4)(b).
- (4) The register must be maintained in the form and manner prescribed by the regulations.
- (5) A council must submit, on request, all or any part of the information, records and documents recorded in the register in the prescribed manner to— S. 216D(5)
amended by
No. 3/2020
s. 30(5)(a).
- (a) the Authority for the purposes of its function under subsection (6) or for the performance of any other function of the Authority if the information, record or document is necessary for the performance of that function; and S. 216D(5)(a)
amended by
No. 3/2020
s. 30(5)(b).

S. 216D(5)(b)
amended by
No. 3/2020
s. 30(5)(b).

(b) any other prescribed person, agency or body if the information, record or document is necessary for the performance of any function of that person, agency or body.

S. 216D(6)
amended by
No. 3/2020
s. 30(6).

(6) The Authority may publish information on its website regarding the number and types of swimming pools that are located in any municipal district, but must not disclose details of any owner, or the specific location, of a swimming pool.

S. 216D(7)
substituted by
No. 3/2020
s. 30(7).

(7) The following persons, in accordance with the regulations (if any), may inspect a register kept by a council during normal office hours—

- (a) an owner of land in the municipal district of the council on which a swimming pool is located, but only in relation to any information, record or document recorded in the register relating to that swimming pool;
- (b) an occupier of land in the municipal district of the council on which a swimming pool is located, but only in relation to any information, record or document recorded in the register relating to that swimming pool;
- (c) a swimming pool inspector in relation to a swimming pool barrier located in the municipal district of the council, which the inspector has been engaged to inspect;
- (d) a prescribed person, agency or body if the inspection of the information, record or document is necessary for the performance of any function of the person, agency or body.

S. 216D(8)
amended by
No. 3/2020
s. 30(8).

(8) Subject to this section, a council must ensure that no information, record or document in the register is published or made available to any other person, agency or body.

Division 6—The Crown and public authorities

217 Application of Act to the Crown and public authorities

- (1) Subject to subsection (2), Parts 2, 3, 4, 5, 7, 9, 10, 11, and 12A, Subdivisions 4, 4A and 4B of Division 2 of Part 12 and this Division—

S. 217(1) amended by Nos 39/1996 s. 7, 34/1997 s. 19(1), 85/2000 s. 8, 46/2008 s. 248(6), 34/2013 s. 19(5), 21/2017 s. 71.

- (a) bind the Crown in right of the State of Victoria and, so far as the legislative power of Parliament permits, the Crown in all its other capacities; and

- (b) apply to a public authority.

- (2) Section 134 does not apply to the Crown or a public authority unless an occupancy permit or certificate of final inspection is obtained by the Crown or the public authority in respect of the building work concerned.

- (2A) Despite anything to the contrary in this Act, a provision of this Act applies to a lessee or licensee of Crown land even if the provision does not bind the Crown.

S. 217(2A) inserted by No. 71/1995 s. 20, substituted by No. 34/1997 s. 19(2).

- (2B) Despite anything to the contrary in this Act, Part 8 applies to a lessee or licensee of Crown land as if a reference in that Part to the "owner" were a reference to the lessee or licensee.

S. 217(2B) inserted by No. 68/2001 s. 12.

- (3) If the Crown in any of its capacities or a public authority chooses to proceed under a provision of this Act that would otherwise not be binding on the Crown or public authority, it is bound by—

- (a) that provision; and

- (b) any provision of this Act conferring jurisdiction on the Building Appeals Board in respect of that provision; and

S. 217(5)
substituted by
No. 34/1997
s. 19(3).

S. 218
repealed by
No. 34/1997
s. 20.

- (c) any other provision of this Act or regulations having effect for the purposes of a provision referred to in paragraph (a) or (b).
- (4) Nothing in subsections (1) to (3) makes the Crown or a public authority liable for any offence under this Act or the regulations.
- (5) Nothing in subsections (1) to (3) makes the Crown liable to pay any fee or charge except the building permit levy and the fees payable under Part 10.

* * * * *

219 Municipal building surveyor not required to inspect building work

Despite anything in this Act or the building regulations, a municipal building surveyor is not required to inspect building work carried out by or on behalf of the Crown or a public authority.

220 Guidelines for Crown and public authority buildings

S. 220(1)
amended by
No. 28/2007
s. 3(Sch.
item 3).

- (1) The Minister administering section 8 of the **Financial Management Act 1994**, after consulting the Minister administering this Act, may prepare and publish guidelines to promote better building standards for buildings owned by the Crown or a public authority other than a Council.
- (2) The guidelines may apply to existing or new buildings.
- (3) If a Minister is required to table before Parliament an annual report with respect to the operations of a department or public authority, the Minister must ensure that the report includes a statement about the department's or authority's progress in implementing the guidelines during the period to which the report relates.

221 Authorised building surveyor

- (1) The functions of a municipal building surveyor under any provision of this Act or the regulations which, by virtue of this Division, binds the Crown or a public authority—
- (a) in relation to building work carried out or to be carried out by or on behalf of the Crown or that public authority; or
 - (b) in relation to any building owned or occupied by or proposed to be occupied by the Crown or that public authority—
- shall be carried out by a building surveyor registered under Part 11 and authorised by the Crown or that public authority.
- (2) The Crown or a public authority may in writing authorise a building surveyor registered under Part 11 to carry out the functions referred to in subsection (1).

Pt 12A
(Headings
and ss 221A–
221ZZZW)
inserted by
No. 39/1996
s. 5.

Part 12A—Plumbing work

Division 1—Preliminary matters

S. 221A
inserted by
No. 39/1996
s. 5,
amended by
No. 34/2013
s. 26(1).

221A Purpose of this Part

The purpose of this Part is to regulate plumbing work with the aim of ensuring that it is carried out safely and competently.

S. 221B
inserted by
No. 39/1996
s. 5.

221B Definitions applying to this Part

(1) In this Part—

S. 221B(1)
def. of
Board
repealed by
No. 75/1998
s. 5(a)(i).

* * * *

class of plumbing work means a class of plumbing work specified by the regulations;

class of specialised plumbing work means a class of specialised plumbing work specified by the regulations or in a declaration under section 221ZZZU;

S. 221B(1)
def. of
Commission
inserted by
No. 75/1998
s. 5(a)(ii),
repealed by
No. 34/2013
s. 26(2).

* * * *

compliance auditor means a person appointed as a compliance auditor under section 221ZZY;

compliance certificate means a certificate referred to in section 221ZH;

emergency plumbing order means an order issued under section 221ZZF;

*	*	*	*	*	S. 221B(1) def. of <i>insolvent under administration</i> repealed by No. 4/2008 s. 32(Sch. item 2).
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licensed plumber means a person who is licensed by the Authority under section 221M or 221Q to carry out a particular class or type of plumbing work and includes a person who is temporarily licensed to carry out that work under section 221W, but does not include a person whose licence is suspended;

S. 221B(1)
def. of
*licensed
plumber*
amended by
Nos 75/1998
s. 5(a)(iii),
34/2013
s. 34(Sch. 1
item 32(a)),
1/2023 s. 9(1).

Note

Section 42H(1) of the Mutual Recognition Act 1992 of the Commonwealth provides that a reference in the law of the second State to a person registered (however described) for the second State occupation includes a reference to a person who has automatic deemed registration to carry on an activity covered by that occupation. Section 42H(2)(a) of that Act provides that a person who has automatic deemed registration in a State is taken to have had the registration conferred by the operation of the law of the State.

plumbing apprentice means an apprentice within the meaning of the **Education and Training Reform Act 2006** in a plumbing trade;

S. 221B(1)
def. of
*plumbing
apprentice*
amended by
Nos 80/1997
s. 55(Sch. 1
item 1),
24/2006
s. 6.1.2(Sch. 7
item 2.1).

S. 221B(1)
def. of
*Plumbing
Code of
Australia*
inserted by
No. 31/2007
s. 3,
substituted by
No. 5/2011
s. 6.

Plumbing Code of Australia means the Plumbing Code of Australia set out in Volume Three of the National Construction Code Series including any variations or additions in the Appendix Victoria set out in Appendix A of that Volume;

S. 221B(1)
def. of
*plumbing
laws*
amended by
Nos 99/1997
s. 121(1),
17/2012
s. 83(a).

plumbing inspector means a person appointed as a plumbing inspector under section 221ZZY;

plumbing laws means any provision in any of the following that regulates the carrying out of plumbing work—

- (a) this Part; and
- (b) the **Gas Safety Act 1997**; and
- (c) the **Water Act 1989**; and
- (d) any regulations made under this Part or any Act listed in paragraph (b) or (c);

plumbing notice means a notice issued under section 221ZY;

plumbing order means an order issued under section 221ZZB;

rectification notice means a notice issued under section 221ZW;

S. 221B(1)
def. of
*registered
plumber*
amended by
Nos 75/1998
s. 5(a)(iii),
34/2013
s. 34(Sch. 1
item 32(b)),
1/2023 s. 9(2).

registered plumber means a person who is registered by the Authority under section 221O, 221P or 221R to carry out a particular class or type of plumbing work and includes a person who is temporarily registered to carry out that work under section 221W, but does not include a person whose registration is suspended;

Note

Section 42H(1) of the Mutual Recognition Act 1992 of the Commonwealth provides that a reference in the law of the second State to a person registered (however described) for the second State occupation includes a reference to a person who has automatic deemed registration to carry on an activity covered by that occupation. Section 42H(2)(a) of that Act provides that a person who has automatic deemed registration in a State is taken to have had the registration conferred by the operation of the law of the State.

Registrar means the Registrar of the Victorian Building Authority appointed or engaged under section 204(1)(a);

S. 221B(1)
def. of
Registrar
substituted by
Nos 75/1998
s. 5(a)(iv),
34/2013
s. 27(1).

required insurance means the insurance required by an order made under section 221ZQ;

specialised plumbing work means any plumbing work—

- (a) that the regulations state is specialised plumbing work; or
- (b) that is declared by the Minister to be specialised plumbing work under section 221ZZZU;

water authority means an Authority within the meaning of the **Water Act 1989** that has a water district or a sewerage district under that Act.

S. 221B(1)
def. of **water authority**
substituted by
No. 17/2012
s. 83(b).

- (2) A reference in this Part (other than in section 221O or 221R) to registration includes a reference to provisional registration, unless a contrary intention appears or the context otherwise requires.

S. 221B(3)
substituted by
No. 75/1998
s. 7(1).

- (3) For the purposes of this Part, a person supervises the carrying out of work only—
- (a) if the work is carried out in his or her presence, at his or her direction and on his or her behalf; or
 - (b) if the following conditions are met—
 - (i) the work is carried out on his or her behalf; and
 - (ii) he or she specifies the method and manner in which the work is to be carried out; and
 - (iii) he or she inspects the carrying out of the work as often as is necessary to ensure that the work is carried out safely and competently, having regard to the nature of the work, the risks involved in the work and the knowledge and experience of the person carrying out the work.
- (4) A reference in Division 7 to "he or she" or to "him or her" is to be read as including a reference to "it", if the context permits.

S. 221C
inserted by
No. 39/1996
s. 5.

221C Meaning of *plumbing work*

S. 221C(1)
amended by
No. 36/2008
s. 15(a).

- (1) In this Part, ***plumbing work*** means any plumbing work that the regulations state is work to which this Part applies.

S. 221C(2)
amended by
No. 36/2008
s. 15(b).

- (2) Any reference to plumbing work in this Part is to be read as if it included a reference to gasfitting and draining work, unless a contrary intention appears or the context otherwise requires.

- (3) In all Divisions other than Divisions 2 and 3, a reference to plumbing work includes a reference to specialised plumbing work, unless a contrary intention appears or the context otherwise requires.

Division 2—Restrictions concerning the carrying out of plumbing work

221D Plumbing work only to be carried out by licensed or registered plumbers

S. 221D
inserted by
No. 39/1996
s. 5.

- (1) A person must not carry out any plumbing work of a particular class or type unless he or she is licensed or registered by the Authority to carry out work of that class or type.

S. 221D(1)
amended by
Nos 75/1998
s. 5(b),
33/2010 s. 32,
34/2013
s. 34(Sch. 1
item 33).

Penalty: 500 penalty units.

- (2) Despite subsection (1), a person who is not licensed or registered by the Authority may—

S. 221D(2)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 33).

(a) repair a tap in any dwelling that the person owns and occupies; and

(b) carry out any other plumbing work that the regulations state is plumbing work that may be carried out by a person who is not licensed or registered.

- (3) Subsection (2)(a) does not permit a person to repair any thermostatic mixing valve, tempering valve or backflow prevention device.

- (4) Despite subsection (1), a person who is being trained to carry out work that may be carried out by the holder of a restricted licence may carry out that work without being licensed or registered by the Authority if the work is carried out under the supervision of a person who is licensed to carry out that type of work.

S. 221D(4)
amended by
Nos 75/1998
ss 5(b), 7(2),
34/2013
s. 34(Sch. 1
item 33).

S. 221D(5)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 33).

(5) Despite subsection (1)—

- (a) a sheetmetal worker, first class may carry out sheetmetal work in connection with the manufacture, installation, maintenance or repair of ventilation or air conditioning plant or equipment;
- (b) a metal worker may carry out pipework in connection with the fabrication, installation, maintenance or repair of industrial pipework;

S. 221D(5)(c)
repealed by
No. 75/1998
s. 8(a).

* * * * *

S. 221D(5)(d)
substituted by
No. 75/1998
s. 8(b).

- (d) an apprentice may carry out any work referred to in paragraph (a) or (b) under the supervision of a person referred to in that paragraph;

S. 221D(5)(e)
amended by
No. 36/2008
s. 16.

- (e) a plumbing apprentice acting under the supervision of a licensed plumber may carry out plumbing work—

without being licensed or registered by the Authority.

S. 221E
(Heading)
inserted by
No. 31/2007
s. 4(1).

221E Restrictions concerning work for which compliance certificate required

S. 221E
inserted by
No. 39/1996
s. 5.

S. 221E(1)
amended by
No. 33/2010
s. 33.

- (1) Unless a person is licensed to carry out a particular class or type of plumbing work or specialised plumbing work, he or she must not carry out any work of that class or type for which a compliance certificate is required.

Penalty: 500 penalty units.

- | | |
|---|--|
| (2) Despite subsection (1), a person who is registered to carry out a particular class or type of plumbing work or specialised plumbing work may carry out any work of that class or type for which a compliance certificate is required under the supervision of a licensed plumber who is authorised to carry out that class or type of work. | S. 221E(2)
amended by
No. 75/1998
s. 7(2),
substituted by
No. 31/2007
s. 4(2),
amended by
No. 36/2008
s. 15(c). |
| (2A) Despite subsection (1), a plumbing apprentice may carry out a particular class or type of plumbing work for which a compliance certificate is required under the supervision of a licensed plumber who is authorised to carry out that class or type of work. | S. 221E(2A)
inserted by
No. 31/2007
s. 4(2). |
| (3) Despite subsection (1) a person who is authorised under an accepted safety case under the Gas Safety Act 1997 and registered under section 221R to carry out a particular class or type of gasfitting work for which a compliance certificate is required may carry out that work without being licensed by the Authority. | S. 221E(3)
inserted by
No. 99/1997
s. 121(2),
amended by
No. 21/2017
s. 97. |
| 221F Restriction concerning specialised plumbing work | |
| (1) A person must not carry out any class or type of specialised plumbing work unless he or she is licensed or registered by the Authority to carry out that class or type of work.

Penalty: 500 penalty units. | S. 221F
inserted by
No. 39/1996
s. 5,
amended by
Nos 75/1998
s. 5(b),
99/1997
s. 121(3) (ILA
s. 39B(1)). |
| (2) Despite subsection (1) a person who is authorised under an accepted safety case under the Gas Safety Act 1997 and registered under section 221R to carry out a particular class or type of gasfitting work which is specialised | S. 221F(1)
amended by
Nos 31/2007
s. 5, 33/2010
s. 34, 34/2013
s. 34(Sch. 1
item 34).

S. 221F(2)
inserted by
No. 99/1997
s. 121(3),
amended by
No. 21/2017
s. 97. |

plumbing work may carry out that work without being licensed by the Authority to carry out that class or type of work.

S. 221FA
inserted by
No. 31/2007
s. 6,
amended by
No. 33/2010
s. 35.

221FA Plumbing work must comply with this Part and regulations

A licensed plumber or a registered plumber must not carry out any plumbing work or specialised plumbing work that does not comply with this Part or the regulations made under this Part.

Penalty: 500 penalty units.

S. 221G
inserted by
No. 39/1996
s. 5.

221G Obligations on licensed plumbers concerning their agents

- (1) A licensed plumber must not permit a person to carry out on his or her behalf, or direct a person to carry out, any plumbing work or specialised plumbing work—
 - (a) that is of a class or type in respect of which the person is not licensed or registered under this Part; or
 - (b) that is defective in workmanship or that involves the use of materials that the licensed plumber knows, or reasonably ought to know, are defective or that does not comply with the plumbing laws.

Penalty: 50 penalty units.

S. 221G(2)
amended by
No. 75/1998
s. 7(2).

- (2) However, subsection (1)(a) does not apply to plumbing work of a particular class or type carried out by a plumbing apprentice under the supervision of a licensed plumber who is licensed or registered to carry out that class or type of work.

221H People involved in a plumbing business need not be licensed or registered

S. 221H
inserted by
No. 39/1996
s. 5.

- (1) A person does not carry out any plumbing work or specialised plumbing work for the purposes of this Part merely because he, she or it owns, operates, manages or otherwise participates in, is employed by, or shares in the profits of, any business that carries out plumbing work or specialised plumbing work.
- (2) A person may employ, or supply the services of, licensed and registered plumbers without being licensed or registered by the Authority.
- (3) A person who owns, operates, manages or otherwise participates in, is employed by, or shares in the profits of, any business that carries out plumbing work or specialised plumbing work must not cause or permit any plumbing work or specialised plumbing work to be carried out on behalf of the business by a person who is not permitted by this Part to carry out that work.

S. 221H(2)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 35).

S. 221H(3)
amended by
No. 21/2017
s. 87.

Penalty: 50 penalty units.

221HA No entitlement to consideration under contract

S. 221HA
inserted by
No. 21/2017
s. 42.

- (1) This section applies if a person—
 - (a) enters into a contract to carry out plumbing work or specialised plumbing work; and
 - (b) the person—
 - (i) carries out that class or type of work despite not being permitted under this Part to do so in contravention of section 221D; or

- (ii) causes or permits a person who is not permitted under this Part to carry out that class or type of work in contravention of section 221H(3).
- (2) The person is not entitled to consideration under the contract unless the amount claimed—
 - (a) is not more than the amount of the costs reasonably incurred by the person in supplying materials and labour for carrying out work under the contract; and
 - (b) does not include—
 - (i) an amount for the supply of the person's own labour; or
 - (ii) an amount of profit by the person for carrying out work under the contract; and
 - (c) is not more than the person would have been entitled to recover for carrying out work under the contract; and
 - (d) does not include any amount paid by the person that is for the person's own direct or indirect benefit.
- (3) A person may recover from another person in a court of competent jurisdiction, as a debt due to the person, any amount the person paid to the other person in respect of anything the other person—
 - (a) did in contravention of section 221D; or
 - (b) caused or permitted another person to do in contravention of section 221H(3).

**221I Person must not use the title "plumber" or
"plumbing practitioner" unless licensed or
registered**

S. 221I
(Heading)
inserted by
No. 36/2008
s. 17(1).
S. 221I
inserted by
No. 39/1996
s. 5.

- (1) A person must not use or take the title "plumber" or "plumbing practitioner" in any context relating to the plumbing industry unless the person is registered or licensed to carry out at least one class or type of plumbing work under this Part.

S. 221I(1)
amended by
Nos 36/2008
s. 17(2),
33/2010 s. 36.

Penalty: 120 penalty units.

- (2) A person must not—

S. 221I(2)
amended by
No. 33/2010
s. 36.

- (a) use or take the title "licensed plumber" or "licensed plumbing practitioner"; or

S. 221I(2)(a)
amended by
No. 36/2008
s. 17(3).

- (b) hold himself or herself out as being licensed under this Part—

unless he or she is licensed to carry out at least one class or type of plumbing work under this Part.

Penalty: 120 penalty units.

- (3) A person must not—

S. 221I(3)
amended by
No. 33/2010
s. 36.

- (a) use or take the title "registered plumber" or "registered plumbing practitioner"; or

S. 221I(3)(a)
amended by
No. 36/2008
s. 17(4).

(b) hold himself or herself out as being
registered under this Part—

unless he or she is registered to carry out at least
one class or type of plumbing work under this
Part.

Penalty: 120 penalty units.

S. 221J
inserted by
No. 39/1996
s. 5.

**221J Person must not use the title "drainer" unless
licensed or registered**

S. 221J(1)
amended by
No. 33/2010
s. 37.

- (1) A person must not use or take the title "drainer" in
any context relating to the plumbing industry
unless the person is authorised to carry out
draining work under this Part.

Penalty: 120 penalty units.

S. 221J(2)
amended by
No. 33/2010
s. 37.

- (2) A person must not use or take the title "licensed
drainer" unless he or she is licensed to carry out
draining work under this Part.

Penalty: 120 penalty units.

S. 221J(3)
amended by
No. 33/2010
s. 37.

- (3) A person must not use or take the title "registered
drainer" unless he or she is registered to carry out
draining work under this Part.

Penalty: 120 penalty units.

S. 221K
inserted by
No. 39/1996
s. 5.

**221K Person must not use the title "gasfitter" unless
licensed or registered**

S. 221K(1)
amended by
No. 33/2010
s. 38.

- (1) A person must not use or take the title "gasfitter"
in any context relating to the plumbing industry
unless the person is authorised to carry out
gasfitting work under this Part.

Penalty: 120 penalty units.

- (2) A person must not use or take the title "licensed gasfitter" unless he or she is licensed to carry out gasfitting work under this Part.

S. 221K(2)
amended by
No. 33/2010
s. 38.

Penalty: 120 penalty units.

- (3) A person must not use or take the title "registered gasfitter" unless he or she is registered to carry out gasfitting work under this Part.

S. 221K(3)
amended by
No. 33/2010
s. 38.

Penalty: 120 penalty units.

221L Exceptions to sections 221I–221K

S. 221L
inserted by
No. 39/1996
s. 5.

- (1) Sections 221I, 221J and 221K do not apply to—

- (a) an organisation or member of staff of an organisation for the time being exempted from this section by the Authority; or

S. 221L(1)(a)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 36).

- (b) the use of a title by a person who is authorised to use that title outside Victoria by a person or body regulating plumbing work if it is made clear in the use of the title that it does not relate to Victoria.

- (2) Sections 221I, 221J and 221K do not apply to the use of a title referred to in those sections by any business that carries out plumbing work or specialised plumbing work so long as—

- (a) at least one partner, director or employee of the business is entitled to use that title; or
- (b) any plumbing work that the business undertakes to have carried out, and that must be carried out by a person who is entitled to use that title, is carried out by such a person.

Division 3—The licensing and registration of plumbers

221M Licensing as a plumber

S. 221M
inserted by
No. 39/1996
s. 5.

- (1) To be able to be licensed to carry out a particular class of plumbing work, a person must—
 - (a) be eligible to be registered as a plumber with respect to that class of plumbing work; and
 - (b) either—
 - (i) have the relevant qualifications and experience required by the regulations; or
 - (ii) satisfy the Authority that he or she has knowledge and competence at least equal to that that a person who has the qualifications and experience required by the regulations would have; and
 - (c) be covered by the required insurance.

S. 221M(1)
(b)(ii)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 37).

- (2) The Authority must license a person to carry out a particular class of plumbing work if—
 - (a) the person applies to be licensed in accordance with section 221T; and
 - (b) it is satisfied that the person meets the requirements listed in subsection (1); and
 - (c) the person pays the licence fee set out in the regulations.

S. 221M(2)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 37).

- (3) The Authority may license an eligible person to carry out 2 or more particular classes of plumbing work.

S. 221M(3)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 37).

- (4) The Registrar must give each person who is licensed by the Authority a licence as evidence that the person is licensed to carry out a particular class, or particular classes, of plumbing work.
- S. 221M(4)
amended by
Nos 75/1998
s. 5(b),
36/2008
s. 18(1),
34/2013
s. 34(Sch. 1
item 37).

221N Endorsement to carry out specialised plumbing work

S. 221N
inserted by
No. 39/1996
s. 5.

- (1) To be able to be licensed to carry out a particular class of specialised plumbing work, a person must—
- (a) be a licensed plumber in respect of a class or classes of plumbing work or specialised plumbing work required by the regulations (or a declaration under section 221ZZZU); and
- (b) either—
- (i) have the relevant qualifications and experience required by the regulations (or a declaration under section 221ZZZU); or
- (ii) satisfy the Authority that he or she has knowledge and competence at least equal to that that a person who has the qualifications and experience required by subparagraph (i) would have; and
- (c) be covered by the required insurance.
- (2) The Authority must license a person to carry out a particular class of specialised plumbing work if—
- (a) the person applies to be licensed in accordance with section 221T; and
- S. 221N(1)(a)
amended by
No. 36/2008
s. 15(d),
substituted by
No. 33/2010
s. 39.
- S. 221N(1)
(b)(i)
amended by
No. 34/1997
s. 30(b).
- S. 221N(1)
(b)(ii)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 38).
- S. 221N(2)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 38).

- (b) it is satisfied that the person meets the requirements listed in subsection (1); and
- (c) the person pays the endorsement fee set out in the regulations.

S. 221N(3)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 38).

- (3) The Authority may license an eligible person to carry out 2 or more particular classes of specialised plumbing work.

S. 221N(4)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 38).

- (4) If the Authority licenses a person to carry out a particular class of specialised plumbing work, the Registrar must endorse the licence issued to the person in respect of his or her licensing under section 221M with a statement to the effect that the person is also licensed to carry out that class of specialised plumbing work.

S. 221O
inserted by
No. 39/1996
s. 5.

221O Registration as a plumber

- (1) To be able to be registered to carry out a particular class of plumbing work, a person must either—
 - (a) have the relevant qualifications and experience required by the regulations; or
 - (b) satisfy the Authority that he or she has knowledge and competence at least equal to that that a person who has the qualifications and experience required by the regulations would have.

S. 221O(1)(b)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 39).

S. 221O(2)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 39).

- (2) The Authority must register a person to carry out a particular class of plumbing work if—
 - (a) the person applies for registration in accordance with section 221T; and
 - (b) it is satisfied that the person meets one or other of the requirements listed in subsection (1); and

(c) the person pays the registration fee set out in the regulations.

(3) The Authority may register an eligible person with respect to 2 or more particular classes of plumbing work.

S. 221O(3)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 39).

(4) The Registrar must give each person who is registered by the Authority a registration document as evidence that the person is registered to carry out a particular class, or particular classes, of plumbing work.

S. 221O(4)
amended by
Nos 75/1998
s. 5(b),
36/2008
s. 18(2),
34/2013
s. 34(Sch. 1
item 39).

221OA Endorsement to carry out specialised plumbing work—registered plumbers

S. 221OA
inserted by
No. 31/2007
s. 7.

(1) To be able to be registered to carry out a particular class of specialised plumbing work, a person must—

(a) be a registered plumber in respect of a class or classes of plumbing work or specialised plumbing work required by the regulations (or a declaration under section 221ZZZU); and

S. 221OA(1)(a)
amended by
No. 36/2008
s. 15(d),
substituted by
No. 33/2010
s. 40.

(b) either—

(i) have the relevant qualifications and experience required by the regulations (or a declaration under section 221ZZZU); or

(ii) satisfy the Authority that he or she has knowledge and competence at least equal to that that a person who has the qualifications and experience required by subparagraph (i) would have.

S. 221OA
(1)(b)(ii)
amended by
No. 34/2013
s. 34(Sch. 1
item 40).

S. 221OA(2)
amended by
No. 34/2013
s. 34(Sch. 1
item 40).

- (2) The Authority must register a person to carry out a particular class of specialised plumbing work if—
- (a) the person applies to be registered in accordance with section 221T; and
 - (b) it is satisfied that the person meets the requirements listed in subsection (1); and
 - (c) the person pays the endorsement fee set out in the regulations.

S. 221OA(3)
amended by
No. 34/2013
s. 34(Sch. 1
item 40).

- (3) The Authority may register an eligible person with respect to 2 or more particular classes of specialised plumbing work.

S. 221OA(4)
amended by
Nos 36/2008
s. 18(3),
34/2013
s. 34(Sch. 1
item 40).

- (4) If the Authority registers a person to carry out a particular class of specialised plumbing work, the Registrar must endorse the registration document given to the person in respect of his or her registration under section 221O with a statement to the effect that the person is also registered to carry out that class of specialised plumbing work.

S. 221OA(5)
amended by
Nos 36/2008
s. 16, 34/2013
s. 34(Sch. 1
item 40).

- (5) A person who is registered to carry out a particular class of specialised plumbing work under this section must not, unless otherwise exempted by the Authority, do any specialised plumbing work of that class unless that work is carried out under the supervision of a person who is licensed to carry out work of that class.

Penalty: 20 penalty units.

221P Provisional registration

S. 221P
inserted by
No. 39/1996
s. 5.

- (1) The Authority may provisionally register a person to carry out a particular class of plumbing work or specialised plumbing work if—
- (a) the person applies for provisional registration in accordance with section 221T and he or she—
- (i) is training to be qualified to carry out that class of work; and
- (ii) is a licensed or registered plumber with respect to another class of plumbing work; or
- (b) the Authority is satisfied that the person—
- (i) has sufficient knowledge and experience to carry out that class of work competently and safely; or
- (ii) will be able to carry out that work competently and safely if the person complies with the conditions that the Authority imposes on the registration.
- (2) A person who is provisionally registered must not, unless otherwise exempted by the Authority, do any plumbing work or specialised plumbing work of the class to which the provisional registration applies unless that work is carried out under the supervision of a person who is licensed to carry out work of that class.

S. 221P(1)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 41).

S. 221P(1)(b)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 41).

S. 221P(1)
(b)(ii)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 41).

S. 221P(2)
amended by
Nos 75/1998
s. 5(b),
36/2008 s. 16,
34/2013
s. 34(Sch. 1
item 41).

Penalty: 20 penalty units.

S. 221P(3)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 41).

- (3) The Authority may provisionally register an eligible person with respect to 2 or more particular classes of plumbing work or specialised plumbing work.

S. 221P(4)
amended by
Nos 75/1998
s. 5(b),
36/2008
s. 18(4),
34/2013
s. 34(Sch. 1
item 41).

- (4) On receiving any provisional registration fee required by the regulations, the Registrar must give each person who is provisionally registered by the Authority a provisional registration document as evidence that the person is provisionally registered to carry out a particular class, or particular classes, of plumbing work or specialised plumbing work.

- (5) A provisional registration expires 1 year after it is granted, but may be renewed.

S. 221Q
inserted by
No. 39/1996
s. 5.

221Q Restricted licences

S. 221Q(1)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 42),
1/2023
s. 18(1).

- (1) The Authority may license a person to carry out particular types of work that fall within a class or classes of plumbing work or a class or classes of specialised plumbing work if—
- (a) the person applies for the licence in accordance with section 221T; and
 - (b) it is satisfied that the person—
 - (i) has sufficient knowledge and experience to carry out that work competently and safely; and
 - (ii) is covered by the required insurance in respect of that work.

- (2) On receiving any restricted licence fee required by the regulations, the Registrar must give each person who is licensed by the Authority under this section a licence as evidence that the person is licensed to carry out one or more particular types of work and must ensure that the word "restricted" is prominently displayed on the licence and that the licence states what work the holder of the licence may carry out.

S. 221Q(2)
amended by
Nos 75/1998
s. 5(b),
36/2008
s. 18(1),
34/2013
s. 34(Sch. 1
item 42),
1/2023
s. 18(2).

221R Restricted registration

S. 221R
inserted by
No. 39/1996
s. 5.

- (1) The Authority may register a person to carry out particular types of work that fall within a class of plumbing work or specialised plumbing work if—
- (a) the person applies for restricted registration in accordance with section 221T; and
 - (b) it is satisfied that the person—
 - (i) has sufficient knowledge and experience to carry out that work competently and safely; or
 - (ii) is authorised under an accepted safety case under the **Gas Safety Act 1997** to carry out that work.
- (2) On receiving any restricted registration fee required by the regulations, the Registrar must give each person who is registered by the Authority under this section a registration document as evidence that the person is registered to carry out a particular type of work and must ensure that the word "restricted" is prominently displayed on the registration document and that the registration document states what work the holder of the registration document may carry out.

S. 221R(1)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 43).

S. 221R(1)(b)
substituted by
No. 99/1997
s. 121(4).

S. 221R(2)
amended by
Nos 75/1998
s. 5(b),
36/2008
s. 18(5),
34/2013
s. 34(Sch. 1
item 43).

S. 221S
(Heading)
inserted by
No. 34/2013
s. 34(Sch. 1
item 44).

S. 221S
inserted by
No. 39/1996
s. 5.

S. 221S(1)
amended by
Nos 75/1998
s. 5(b),
31/2007 s. 8,
34/2013
s. 34(Sch. 1
item 45).

S. 221S(1)(e)
amended by
No. 17/1999
s. 22(5),
substituted by
No. 72/2010
s. 48(Sch.
item 2(3)).

221S Authority may refuse to license or register certain persons

- (1) Despite sections 221M(2), 221N(2), 221O(2) and 221OA(2), the Authority may refuse to license or register a person who—
- (a) has been convicted of any offence involving fraud, dishonesty, drug trafficking or violence that was punishable by imprisonment for 6 months or more; or
 - (b) has been convicted of an offence under any law regulating plumbing work or specialised plumbing work; or
 - (c) has had his or her authorisation to carry out plumbing work or specialised plumbing work suspended or cancelled for any reason other than his or her failure to renew that authorisation; or
 - (d) is an insolvent under administration; or
 - (e) has been convicted of an offence against—
 - (i) section 12, 16, 17, 18, 20 or 22 of the **Fair Trading Act 1985**; or
 - (ii) section 10, 11, 12, 17, 19 or 21 of the **Fair Trading Act 1999**; or
 - (iii) section 53, 55, 55A, 56, 58 or 60 of the Trade Practices Act 1974 of the Commonwealth; or

- | | |
|---|---|
| (iv) section 29, 33, 34, 35, 36, 50, 151, 157, 158 or 168 of the Australian Consumer Law (Victoria); | S. 221S(1)(e)(iv) amended by No. 21/2012 s. 239(Sch. 6 item 5.2). |
| (v) section 29, 33, 34, 35, 36, 50, 151, 157, 158 or 168 of Schedule 2 to the Competition and Consumer Act 2010 of the Commonwealth. | S. 221S(1)(e)(v) inserted by No. 21/2012 s. 239(Sch. 6 item 5.3). |
| (2) Despite sections 221M(2), 221N(2), 221O(2) and 221OA(2), the Authority must refuse to licence or register a person who is for the time being disqualified by an order of any regulatory body from acting as a licensed or registered plumber (or an equivalent occupation under the jurisdiction of the regulatory body). | S. 221S(2) amended by Nos 75/1998 s. 5(b), 31/2007 s. 8, 34/2013 s. 34(Sch. 1 item 45). |
| (3) This section applies regardless of where the conviction, suspension, cancellation, insolvency or disqualification occurred. | |
| 221T Application for licensing or registration as a plumber | S. 221T inserted by No. 39/1996 s. 5. |
| (1) A natural person may apply to the Authority to be licensed or registered under this Part. | S. 221T(1) amended by Nos 75/1998 s. 5(b), 34/2013 s. 34(Sch. 1 item 46). |
| (2) The application must— | |
| (a) be in the form required by the Authority; and | S. 221T(2)(a) amended by Nos 75/1998 s. 5(b), 34/2013 s. 34(Sch. 1 item 46). |

S. 221T(2)(b)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 46).

(b) contain the information required by the
Authority to enable it to decide whether to
grant the application; and

S. 221T(2)(ba)
inserted by
No. 34/2013
s. 12(1),
repealed by
No. 21/2017
s. 13.

* * * * *

(c) be accompanied by the relevant application
fee set out in the regulations.

(3) In the case of an application for a licence, the
person applying must also include proof that he or
she is (or will be if he or she is granted a licence)
covered by the required insurance.

S. 221T(4)
inserted by
No. 75/1998
s. 9(1),
amended by
No. 34/2013
s. 34(Sch. 1
item 46).

(4) If required by the Authority, an application must
also be accompanied by a photograph of the
applicant that is of the size and in the form
specified by the Authority.

S. 221T(5)
inserted by
No. 36/2008
s. 19(1),
amended by
No. 34/2013
s. 34(Sch. 1
item 46).

(5) The Authority may use the photograph provided
for the purposes of identification of the plumber
and for inclusion in the plumber's licence or
registration document.

S. 221T(6)
inserted by
No. 1/2023
s. 10.

(6) If a person intends to carry out an activity that
may be carried out under a licence under this Part
in reliance on automatic deemed registration and
that registration is the subject of a determination
under section 42J(4) of the Mutual Recognition
Act 1992 of the Commonwealth, the person must
ensure that the notification given to the Authority
under section 42J(1) of that Act is accompanied

by written proof that, until the first anniversary of the commencement of the person's automatic deemed registration, the person is covered by the required insurance for that licence.

- (7) If a person is required under this section to provide written proof to the Authority that the person is covered by required insurance, the person must ensure that the written proof is accompanied by the prescribed fee for examination of the written proof by the Authority.

S. 221T(7)
inserted by
No. 1/2023
s. 10.

221U Authority may conduct inquiries and require further information

- (1) In considering an application for a licence or registration, the Authority may—
- (a) conduct any inquiries in relation to the application that it thinks fit; and
 - (b) require an applicant to provide further information in relation to the application.
- (2) The Authority may refuse an application for a licence or registration if the applicant fails to comply with a requirement under subsection (1)(b) within a reasonable time after the requirement is made.

S. 221U
inserted by
No. 39/1996
s. 5,
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
items 47, 48),
substituted by
No. 21/2017
s. 14.

221UA Consent to disclosure of information

- (1) In considering an application for a licence or registration, the Authority may ask the applicant to provide any consent to disclosure of information that the Authority requires to perform, or to have performed, a check on the applicant or on any information included with the applicant's application.
- (2) The Authority may refuse to consider an application for a licence or registration if the applicant fails to comply with a request under

S. 221UA
inserted by
No. 21/2017
s. 14.

subsection (1) within 14 days after the request is made.

S. 221V
inserted by
No. 39/1996
s. 5,
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 49).

221V Offence to give false information

A person must not make any written or oral statement to the Authority in relation to an application for a licence or registration, or for the renewal of a licence or registration, that the person knows, or ought reasonably to know, is false.

Penalty: 50 penalty units.

S. 221VA
inserted by
No. 34/2013
s. 12(2).

221VA Police record check on applicant

In considering an application for licensing or registration, the Authority may arrange for the conduct of a police record check on the applicant.

S. 221W
inserted by
No. 39/1996
s. 5.

221W Temporary licence or registration

(1) The Registrar may temporarily license or register a person under this Part if—

- (a) the person applies to be licensed or registered; and
- (b) the Registrar is satisfied that the person is likely to be licensed or registered by the Authority; and

S. 221W(1)(b)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 50).

- (c) the person pays any temporary licence fee or registration fee required by the regulations.

S. 221W(1)(c)
amended by
No. 31/2007
s. 9.

(2) In exercising his or her powers under this section, the Registrar must comply with any directions of the Authority concerning the exercise of the powers.

S. 221W(2)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 50).

- (3) The Registrar or the Authority may cancel a person's temporary licence or registration at any time, regardless of whether the Authority has considered the person's application.

S. 221W(3)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 50).

- (4) A person's temporary licence or registration ends—

- (a) 3 months after it is issued; or
(b) on the Authority approving or rejecting the person's application for licensing or registration; or

S. 221W(4)(b)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 50).

- (c) on the Registrar or Authority cancelling the licence or registration under subsection (3)—

S. 221W(4)(c)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 50).

whichever happens first.

221X Authority may impose conditions on licensing or registering person

S. 221X
(Heading)
inserted by
No. 34/2013
s. 34(Sch. 1
item 51).

S. 221X
inserted by
No. 39/1996
s. 5.

- (1) The Authority may impose any conditions it thinks appropriate on licensing or registering a person, including a condition restricting the type of work a person may carry out within a class of work in respect of which the person is to be licensed or registered.

S. 221X(1)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 52).

- (2) A person must comply with any conditions imposed on his or her licence or registration.

Penalty: 50 penalty units.

S. 221X(3)
amended by
Nos 75/1998
s. 5(b),
36/2008
s. 18(2),
34/2013
s. 34(Sch. 1
item 52).

- (3) The Registrar must ensure that a licence or registration document states any conditions that the Authority has imposed with respect to the licence or registration document.

S. 221Y
inserted by
No. 39/1996
s. 5,
amended by
No. 36/2008
s. 18(2).

221Y Duplicate licences and registration documents

The Registrar may issue a duplicate licence or registration document if—

S. 221Y(a)
amended by
No. 36/2008
s. 18(2).

- (a) he or she is satisfied that the original licence or registration document has been lost, mutilated or destroyed; and
- (b) the person asking for the duplicate has paid the fee required by the regulations.

S. 221Z
inserted by
No. 39/1996
s. 5.

221Z How long licensing and registration last

S. 221Z(1)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 53).

- (1) A person who is licensed to carry out a particular class of plumbing work or specialised plumbing work remains licensed to carry out that work for one year (or any lesser period specified by the Authority).

S. 221Z(2)
amended by
Nos 31/2007
s. 10, 36/2008
s. 20, 34/2013
s. 34(Sch. 1
item 53).

- (2) A person who is registered to carry out a particular class of plumbing work or specialised plumbing work remains registered to carry out that work for 3 years (or any lesser period specified by the Authority).

- (3) However, if a licensed or registered plumber is licensed or registered to carry out a second or subsequent class of plumbing work or specialised plumbing work, he or she only remains licensed or registered to carry out that latter form of plumbing work until his or her original licence or registration expires.
- (4) The Registrar must ensure that the fee payable in respect of—
- (a) a licence that is to remain in force for less than one year; or
 - (b) registration that is to remain in force for less than 3 years—
- is reduced to take account of the shorter period for which that licensing or registration is to remain in force.
- (5) Subsections (1), (2) and (3) do not apply if the Authority suspends or cancels a person's licence or registration under this Part.

S. 221Z(5)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 53).

221ZA Plumbers must notify Authority of change of contact details

A licensed or registered plumber must notify the Authority in writing if he or she changes his or her residential or business address or has his or her business telephone number changed, and must do so within 14 days of the change.

Penalty: 5 penalty units.

S. 221ZA
(Heading)
inserted by
No. 34/2013
s. 34(Sch. 1
item 54).

S. 221ZA
inserted by
No. 39/1996
s. 5,
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 55).

S. 221ZB
inserted by
No. 39/1996
s. 5.

221ZB Application for renewal of licence or registration as a plumber

S. 221ZB(1)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 56).

- (1) A plumber wishing to renew his or her licence or registration must apply to the Authority for the renewal at least 2 months before the licence or registration expires.

S. 221ZB(2)(a)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 56).

- (2) The application for renewal must—
(a) be in the form required by the Authority; and

S. 221ZB(2)(b)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 56).

- (b) contain the information required by the Authority to enable it to decide whether to grant the renewal.

S. 221ZB(3)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 56).

- (3) In the case of an application for the renewal of a licence, the person applying must also include written proof to the Authority that he or she will be covered by the required insurance until the next anniversary of his or her licensing or, subject to such conditions as the Authority may impose, any lesser period approved by the Authority.

S. 221ZB(4)
inserted by
No. 75/1998
s. 9(2),
amended by
No. 34/2013
s. 34(Sch. 1
item 56).

- (4) If required by the Authority, an application for renewal must also be accompanied by a photograph of the plumber that is of the size and in the form specified by the Authority.

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|--|--|
| (5) The Authority may use the photograph provided for the purposes of identification of the plumber and for inclusion in the plumber's renewed licence or registration document. | S. 221ZB(5)
inserted by
No. 36/2008
s. 19(2),
amended by
No. 34/2013
s. 34(Sch. 1
item 56). |
| (6) A person who has automatic deemed registration to carry out an activity that may be carried out under a licence under this Part must, on or before each anniversary after the commencement of the person's automatic deemed registration, give to the Authority written proof that until the next anniversary of the commencement of that registration the person is covered by the required insurance for that licence. | S. 221ZB(6)
inserted by
No. 1/2023
s. 11. |
| (7) If a person is required under this section to provide written proof to the Authority that the person is covered by required insurance, the person must ensure that the written proof is accompanied by the prescribed fee for examination of the written proof by the Authority. | S. 221ZB(7)
inserted by
No. 1/2023
s. 11. |

221ZC Authority may require further information

S. 221ZC
(Heading)
inserted by
No. 34/2013
s. 34(Sch. 1
item 57).

S. 221ZC
inserted by
No. 39/1996
s. 5.

- | | |
|---|--|
| (1) The Authority may ask a person applying to have his or her licence or registration renewed for more information concerning the application if it is reasonably necessary to help it to decide whether to grant the application. | S. 221ZC(1)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 58). |
|---|--|

S. 221ZC(2)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 58).

- (2) The Authority may refuse to renew a person's licence or registration if he or she does not give it the extra information asked for before the licence or registration expires.

S. 221ZD
inserted by
No. 39/1996
s. 5.

221ZD Renewal of licence or registration

S. 221ZD(1)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 59).

- (1) The Authority must renew the licence or registration of a person to carry out a particular class of plumbing work or specialised plumbing work or to carry out a particular type of plumbing work if the person applies for the renewal in accordance with section 221ZB.

S. 221ZD(2)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 59).

- (2) However, the Authority may refuse to renew the licence or registration of a person who has, since he or she was last licensed or registered by the Authority—
- (a) been convicted of any offence involving fraud, dishonesty, drug trafficking or violence that was punishable by imprisonment for 6 months or more; or
 - (b) been convicted of an offence under any law regulating plumbing work or specialised plumbing work; or
 - (c) had his or her authorisation to carry out plumbing work or specialised plumbing work suspended or cancelled for any reason other than his or her failure to renew that authorisation; or
 - (d) become an insolvent under administration; or

- (e) has been convicted of an offence against—
- (i) section 12, 16, 17, 18, 20 or 22 of the **Fair Trading Act 1985**; or
 - (ii) section 10, 11, 12, 17, 19 or 21 of the **Fair Trading Act 1999**; or
 - (iii) section 53, 55, 55A, 56, 58 or 60 of the Trade Practices Act 1974 of the Commonwealth; or
 - (iv) section 29, 33, 34, 35, 36, 50, 151, 157, 158 or 168 of the Australian Consumer Law (Victoria);
 - (v) section 29, 33, 34, 35, 36, 50, 151, 157, 158 or 168 of Schedule 2 to the Competition and Consumer Act 2010 of the Commonwealth.
- (2A) Despite subsection (1), the Authority may refuse to renew the licence or the registration of a person if the Authority is satisfied that the person has not complied with any prescribed continuing professional development requirements.
- (3) Despite subsection (1), the Authority must refuse to renew the licence or registration of a person who is for the time being disqualified by an order of any regulatory body from acting as a licensed or registered plumber (or an equivalent occupation under the jurisdiction of the regulatory body).
- (4) Subsections (2) and (3) apply regardless of where the conviction, suspension, cancellation, insolvency or disqualification occurred.
- (5) Despite subsection (1), before renewing the licence or registration of a person, the Authority may require the person to pass to its satisfaction any examination specified by the Authority that relates to his or her competency to carry out the
- S. 221ZD(2)(e) amended by No. 17/1999 s. 22(6), substituted by No. 72/2010 s. 48(Sch. item 2(4)).
- S. 221ZD(2)(e)(iv) amended by No. 21/2012 s. 239(Sch. 6 item 5.4).
- S. 221ZD(2)(e)(v) inserted by No. 21/2012 s. 239(Sch. 6 item 5.5).
- S. 221ZD(2A) inserted by No. 46/2018 s. 59.
- S. 221ZD(3) amended by Nos 75/1998 s. 5(b), 34/2013 s. 34(Sch. 1 item 59).
- S. 221ZD(5) amended by Nos 75/1998 s. 5(b), 34/2013 s. 34(Sch. 1 item 59).

class of plumbing work or specialised plumbing work in respect of which he or she is licensed or registered.

S. 221ZD(6)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 59).

- (6) However, the Authority may only require a person to pass such an examination if it imposes the same requirement on every member of a specified class of people applying for the renewal of their licences or registrations, and the person is a member of that class.

S. 221ZD(7)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 59).

- (7) On receiving the relevant renewal fee set out in the regulations, the Registrar must give each person whose licence or registration has been renewed by the Authority proof in writing of that fact.

S. 221ZE
(Heading)
inserted by
No. 34/2013
s. 34(Sch. 1
item 60).

221ZE Authority may permit late renewals

S. 221ZE
inserted by
No. 39/1996
s. 5.

S. 221ZE(1)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 61).

- (1) The Authority may renew the licence or registration of a person even though the person did not apply for the renewal within the time required by section 221ZB(1).

S. 221ZE(2)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 61).

- (2) However, the Authority may only do this if—
- (a) the person pays the late renewal fee required by the regulations; and
 - (b) in a case where the licence or registration has expired, it is satisfied that the person did not carry out any plumbing work or specialised

plumbing work after the expiry of the person's licence or registration.

221ZF Information to be given to unsuccessful applicants

S. 221ZF
inserted by
No. 39/1996
s. 5.

- (1) If the Authority refuses to license or register a person or to renew a person's licence or registration, the Authority must notify the person in writing of the refusal as soon as possible after the refusal.
- (2) The notice of refusal must set out the Authority's reasons for refusing the application and must contain a copy of section 221ZZP.

S. 221ZF(1)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 62).

S. 221ZF(2)
amended by
Nos 28/2000
s. 20(a),
34/2013
s. 34(Sch. 1
item 63).

221ZFA Licence and registration document to be returned to Registrar

S. 221ZFA
(Heading)
amended by
No. 36/2008
s. 18(6)(a).
S. 221ZFA
inserted by
No. 31/2007
s. 11.

- (1) The Registrar may ask a person who holds a licence or registration document for the return of that licence or registration document—
 - (a) for the purpose of altering the details on the licence or registration document; or
 - (b) for any purpose permitted by this Act.
 - (2) A person who holds a licence or registration document must return it to the Registrar as soon as is practicable after being asked to do so by the Registrar under subsection (1).
- Penalty: 10 penalty units.

S. 221ZFA(1)
amended by
No. 36/2008
s. 18(6)(b).

S. 221ZFA
(1)(a)
amended by
No. 36/2008
s. 18(6)(c).

S. 221ZFA(2)
amended by
No. 36/2008
s. 18(6)(b).

S. 221ZFB
inserted by
No. 31/2007
s. 11,
amended by
No. 1/2023
s. 12 (ILA
s. 39B(1)).

221ZFB Licensed plumber to produce licence for inspection

- (1) A licensed plumber must produce his or her licence for inspection if asked to do so by—
- (a) any person—
 - (i) with whom the licensed plumber has entered into a contract to carry out plumbing work or specialised plumbing work; or
 - (ii) to whom the licensed plumber has made a statement indicating that the licensed plumber is willing or prepared to carry out plumbing work or specialised plumbing work or to enter into a contract to carry out that work; or
 - (b) the owner or occupier of any land, building, vehicle, caravan or vessel—
 - (i) on or in which the licensed plumber is carrying out plumbing work or specialised plumbing work; or
 - (ii) in respect of which the licensed plumber has entered into a contract to carry out plumbing work or specialised plumbing work; or
 - (iii) in respect of which the licensed plumber has made a statement indicating that he or she is willing or prepared to carry out plumbing work or specialised plumbing work or to enter into a contract to carry out that work; or
 - (c) any person authorised in writing for the purpose of this section by—
 - (i) the Authority; or

S. 221ZFB
(1)(c)(i)
amended by
No. 34/2013
s. 34(Sch. 1
item 64).

- (ii) any other body that is responsible for the control of the class or type of plumbing work or specialised plumbing work that the licensed plumber is carrying out.

Penalty: 10 penalty units.

- (2) In this section—

licence includes, in the case of a person who has automatic deemed registration as a licensed plumber, evidence of the person's home State registration.

S. 221ZFB(2)
inserted by
No. 1/2023
s. 12.

221ZFC Registered plumber to produce registration document for inspection

A registered plumber must produce his or her registration document for inspection if asked to do so by—

S. 221ZFC
(Heading)
amended by
No. 36/2008
s. 18(2).
S. 221ZFC
inserted by
No. 31/2007
s. 11,
amended by
No. 36/2008
s. 18(2).

- (a) the owner or occupier of any land, building, vehicle, caravan or vessel on or in which the registered plumber is carrying out plumbing work or specialised plumbing work; or
- (b) any person authorised in writing for the purpose of this section by—

- (i) the Authority; or

S. 221ZFC
(b)(i)
amended by
No. 34/2013
s. 34(Sch. 1
item 65).

- (ii) any other body that is responsible for the control of the class or type of plumbing work or specialised plumbing work that the registered plumber is carrying out.

Penalty: 10 penalty units.

Division 4—Compliance certificates

S. 221ZG
inserted by
No. 39/1996
s. 5,
amended by
Nos 99/1997
s. 121(5),
91/1998 s. 35.

221ZG This Division does not apply to complex gasfitting work

Nothing in this Division applies to gasfitting work on a complex gas installation (as defined in the **Gas Safety Act 1997**). References to "plumbing work" in this Division are to be read as references to all plumbing work other than that work.

S. 221ZH
inserted by
No. 39/1996
s. 5.

221ZH Compliance certificate must be given for most plumbing work

(1) This section only applies to the following plumbing work—

S. 221ZH(1)(b)
substituted by
No. 75/1998
s. 10(1).

- (a) any plumbing work that has a total value of \$500 or more (or any higher amount fixed by the regulations); and
- (b) the installation, relocation or replacement of any gas-using appliance; and

S. 221ZH(1)
(ba)
inserted by
No. 75/1998
s. 10(1).

- (ba) the conversion of a gas-using appliance for use with a different gaseous fuel; and

S. 221ZH(1)
(bb)
inserted by
No. 75/1998
s. 10(1).

- (bb) the installation, modification or relocation of consumer gas piping (other than work that is carried out on consumer gas piping by, or on behalf of, a gas company and that is incidental to the modification of the gas company's assets under the provisions of an accepted safety case under the **Gas Safety Act 1997**); and

S. 221ZH(1)(c)
amended by
No. 85/2000
s. 9.

- (c) the construction, installation or alteration of any below ground sanitary drain or associated gullies; and

- (d) the construction, installation, alteration, relocation or replacement of a cooling tower or of any other part of a cooling tower system (including the installation or replacement of any associated device or equipment).
- (2) Within 5 days of the completion of any plumbing work to which this section applies that he or she has carried out or supervised, a licensed plumber must—
- (a) give the person for whom the work was carried out a signed compliance certificate in respect of the work; and
- (b) notify the Authority, in the manner specified by the Authority, that the compliance certificate has been given.
- Penalty: 60 penalty units.
- (2A) A person for whom plumbing work to which this section applies has been carried out may, by notice served on the licensed plumber, request the licensed plumber to give the person a signed compliance certificate for the work carried out or supervised by the plumber—
- (a) if the plumber has not completed the work that the plumber was engaged to carry out; and
- (b) the person believes on reasonable grounds that the plumber will not complete the plumbing work.

S. 221ZH(1)(d)
inserted by
No. 85/2000
s. 9.

S. 221ZH(2)
amended by
No. 33/2010
s. 41.

S. 221ZH(2)(b)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 66).

S. 221ZH(2A)
inserted by
No. 36/2008
s. 21(1).

S. 221ZH(2B)
inserted by
No. 36/2008
s. 21(1),
amended by
No. 33/2010
s. 41.

- (2B) Within 5 days of service of a notice under subsection (2A), a licensed plumber must—
- (a) give the person for whom the work was carried out a signed compliance certificate in respect of the work; and
 - (b) notify the Authority, in the manner specified by the Authority, that the compliance certificate has been given.

Penalty: 60 penalty units.

S. 221ZH
(2B)(b)
amended by
No. 34/2013
s. 34(Sch. 1
item 66).

S. 221ZH(3)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 66).

- (3) A document is not a compliance certificate unless the certificate form used is a form that has been supplied by the Authority or a person authorised by the Authority.

S. 221ZH(4)
inserted by
No. 75/1998
s. 10(2),
substituted by
No. 36/2008
s. 21(2).

- (4) For the purposes of this section plumbing work is completed by a licensed plumber when whichever of the following first occurs—
- (a) the plumber completes the whole of the plumbing work that he or she was engaged to carry out in accordance with the relevant plumbing laws;
 - (b) the whole of the plumbing work that the plumber was engaged to carry out is capable of being used in accordance with the relevant plumbing laws.

S. 221ZH(5)
inserted by
No. 75/1998
s. 10(2),
amended by
No. 36/2008
s. 21(3).

- (5) If a plumber carries out or supervises any plumbing work to which subsection (1)(b), (ba) or (bb) applies, for the purposes of subsection (2) or (2B) he or she must give a separate compliance certificate in respect of the work for each separately metered premises on or at which the work is carried out, even if all of the work was carried out or supervised by the plumber for the same person under a contract.

(6) If a licensed plumber gives a person a signed compliance certificate, but fails to do so within 5 days after the completion of the relevant work, or fails to comply with subsection (2)(b), the failure to comply with subsection (2) does not affect the validity of the certificate.

S. 221ZH(6)
inserted by
No. 96/2004
s. 15.

(6A) If a licensed plumber gives a person a signed compliance certificate, but fails to do so within 5 days after the service of a notice under subsection (2A), or fails to comply with subsection (2B)(b), the failure to comply with subsection (2B) does not affect the validity of the certificate.

S. 221ZH(6A)
inserted by
No. 36/2008
s. 21(4).

(7) Subsection (6) applies regardless of whether the compliance certificate was given before, on or after the day subsection (6) took effect.

S. 221ZH(7)
inserted by
No. 96/2004
s. 15.

221ZI Details that must appear on a compliance certificate

S. 221ZI
inserted by
No. 39/1996
s. 5,
amended by
No. 75/1998
s. 11(2) (ILA
s. 39B(1)).

(1) A licensed plumber must not sign a compliance certificate in relation to any plumbing work unless the certificate—

S. 221ZI(1)
amended by
No. 33/2010
s. 42.

(a) describes the work; and

(b) states—

S. 221ZI(1)(b)
substituted by
No. 75/1998
s. 11(1).

(i) that he or she carried out the work, or that the work was carried out under his or her supervision; or

(ii) if he or she completed work that had been started by another licensed plumber and in respect of which a compliance certificate has not been given to the person for whom that work was carried out, that he or she—

S. 221ZI
(1)(b)(ii)
amended by
No. 36/2008
s. 22.

- (A) has inspected or tested the work that was carried out before he or she carried out any work; and
- (B) carried out any work that was required to complete the plumbing work or that that completion work was carried out under his or her supervision; and
- (c) states that the work complies with any particular requirements specified in the certificate; and
- (d) states that the work complies with the plumbing laws; and
- (e) contains any other details in relation to the work required by the certificate form.

Penalty: 120 penalty units.

S. 221Z(2)
inserted by
No. 75/1998
s. 11(2),
amended by
No. 33/2010
s. 42.

- (2) A licensed plumber must not state under subsection (1)(b) that work was carried out under his or her supervision unless the person who carried out the work was authorised to carry out the work under this Part.

Penalty: 120 penalty units.

S. 221ZJ
inserted by
No. 39/1996
s. 5.

221ZJ Details on certificates must be accurate

A licensed plumber must not sign a compliance certificate in relation to any plumbing work if the plumber knows, or ought reasonably to know, that the certificate contains any misstatement of fact.

Penalty: 60 penalty units.

221ZK Only licensed plumbers may sign certificates

A person must not—

S. 221ZK
inserted by
No. 39/1996
s. 5.

- (a) sign a compliance certificate form issued by,
or on behalf of, the Authority unless he or
she is a licensed plumber; or

S. 221ZK(a)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 67).

- (b) sign a document that has not been issued by,
or on behalf of, the Authority and that
purports to be a compliance certificate.

S. 221ZK(b)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 67).

Penalty: 60 penalty units.

221ZKA Issue of certificates by the Authority

S. 221ZKA
(Heading)
amended by
No. 34/2013
s. 34(Sch. 1
item 68).

S. 221ZKA
inserted by
No. 96/2004
s. 16.

- (1) The Authority may authorise a person to issue and
sign a compliance certificate on its behalf if
plumbing work in respect of which a compliance
certificate must be issued under section 221ZH is
completed and the licensed plumber who carried
out the work—

S. 221ZKA(1)
amended by
No. 34/2013
s. 34(Sch. 1
item 69).

- (a) did not issue a certificate in respect of the
work, and is dead or cannot be located after
reasonable enquiries have been made; or
- (b) is under a physical or legal disability that
prevents him or her from issuing a certificate
in respect of the work.

S. 221ZKA
(2)(b)
amended by
No. 34/2013
s. 34(Sch. 1
item 69).

- (2) A person who requests a compliance certificate under this section is liable to pay—
 - (a) any fee or fees specified by the regulations for the purposes of this section; and
 - (b) any costs incurred by or on behalf of the Authority to enable the certificate to be issued and signed.

S. 221ZKA
(4)(a)
amended by
No. 34/2013
s. 34(Sch. 1
item 69).

- (3) Subsection (2) applies even if a certificate is not ultimately issued and signed under this section.
- (4) For the purposes of this section, section 221ZI(1) applies as if—

S. 221ZKA
(4)(b)
amended by
No. 34/2013
s. 34(Sch. 1
item 69).

- (a) a reference to a licensed plumber was a reference to the person authorised by the Authority to sign the certificate; and
 - (b) there were substituted for paragraph (b) the following paragraph—
 - "(b) states that he or she has inspected or tested the work as far as is practicable and that he or she is authorised by the Authority to issue compliance certificates under section 221ZKA; and".
- (5) Section 221ZK(a) does not apply to the signing of a compliance certificate by a person who has been authorised to sign the certificate under this section.
- (6) A certificate that is issued under this section is to be treated as if it had been issued in accordance with section 221ZH.

221ZL Meaning of the total value of plumbing work

For the purposes of this Division, the total value of plumbing work is the sum of—

- (a) the cost of any materials used in the work (even if the materials were not supplied by the person carrying out the work); and
- (b) if the work involves the installation of any thing, the cost of the thing (even if the thing was not supplied by the person carrying out the work); and
- (c) the cost of the labour involved in the work.

S. 221ZL
inserted by
No. 39/1996
s. 5.

221ZLA Building practitioner must transfer compliance certificate to owner

S. 221ZLA
inserted by
No. 75/1998
s. 12.

- (1) This section applies if—
 - (a) a licensed plumber carries out any plumbing work to which section 221ZH applies for a building practitioner in or on any premises that the building practitioner does not own; and
 - (b) the plumber gives the building practitioner (or an agent of the building practitioner) the compliance certificate in respect of the work.
- (2) The building practitioner must give the compliance certificate to the owner of the premises (or to the owner's agent) within 5 days after the day the building practitioner (or the building practitioner's agent) is given the compliance certificate.

S. 221ZLA(2)
amended by
No. 96/2004
s. 18,
substituted by
No. 31/2007
s. 12.

Penalty: 3 penalty units.

S. 221ZLB
inserted by
No. 96/2004
s. 17.

221ZLB Other people must also transfer compliance certificate to owner

- (1) This section applies if—
- (a) a licensed plumber carries out any plumbing work to which section 221ZH applies for a person other than a building practitioner in or on any premises that the person does not own; and
 - (b) the plumber gives the person (or an agent of the person) the compliance certificate in respect of the work.
- (2) The person must give the compliance certificate to the owner of the premises (or to the owner's agent) within 5 days after the day the person (or the person's agent) is given the compliance certificate.

Penalty: 3 penalty units.

S. 221ZM
inserted by
No. 39/1996
s. 5.

221ZM Copies of certificates must be kept for 10 years

A person must keep for at least 10 years a copy of every compliance certificate signed by him or her.

Penalty: 10 penalty units.

S. 221ZN
inserted by
No. 39/1996
s. 5.

221ZN Provisions concerning the supply of certificate forms

S. 221ZN(1)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 70).

- (1) The Authority may sell compliance certificate forms to licensed plumbers.

S. 221ZN(2)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 70).

- (2) The Authority may authorise a person to sell compliance certificate forms to licensed plumbers.

- (3) In authorising a person, the Authority may impose any conditions on its authorisation that it thinks appropriate, and may change any such condition at any time. S. 221ZN(3) amended by Nos 75/1998 s. 5(b), 34/2013 s. 34(Sch. 1 item 70).
- (4) A person authorised by the Authority to sell compliance certificate forms—
- (a) must not sell or give a compliance certificate form to a person who is not a licensed plumber; and
- (b) must not sell a compliance certificate form to a licensed plumber at a price greater than \$20 (or any other amount specified by the regulations); and
- (c) must comply with any condition imposed by the Authority in granting its authorisation. S. 221ZN(4)(c) amended by Nos 75/1998 s. 5(b), 34/2013 s. 34(Sch. 1 item 70).
- Penalty: 20 penalty units.
- (5) The Authority must not sell a compliance certificate form to a licensed plumber at a price greater than \$20 (or any other amount specified by the regulations). S. 221ZN(5) amended by Nos 75/1998 s. 5(b), 34/2013 s. 34(Sch. 1 item 70).
- (6) A licensed plumber may authorise a person in writing to buy compliance certificate forms on the plumber's behalf.
- (7) A licensed plumber must ensure that only one person has such an authority at any one time.
- Penalty: 5 penalty units.

- (8) A reference to a licensed plumber in subsections (1) to (5) includes a reference to any person duly authorised by a licensed plumber under subsection (6).

S. 221ZO
inserted by
No. 39/1996
s. 5,
amended by
No. 96/2004
s. 19(1)(b).

221ZO Further obligation for compliance certificates for sanitary drains

- (1) This section applies if a licensed plumber constructs, installs or alters any sanitary drain.
- (2) If required by a water authority to give the authority a plan of the sanitary drain as it appears after the work is completed, the licensed plumber must—

S. 221ZO(2)
amended by
No. 33/2010
s. 43.

S. 221ZO(2)(a)
amended by
No. 96/2004
s. 19(1)(a).

- (a) give the plan to the authority before the compliance certificate is signed; and

- (b) indicate on the compliance certificate that the plan has been given to the authority.

Penalty: 120 penalty units.

Division 5—Provisions applying to particular plumbing work

S. 221ZP
inserted by
No. 39/1996
s. 5.

221ZP Sanitary drainage and other work must be made available for inspection before being covered

- (1) This section applies if a licensed plumber—
- (a) constructs, installs or alters any below ground sanitary drain or associated gullies, or supervises any such work; or
- (b) carries out any other plumbing work that the regulations state is work to which this section applies.

- (2) The plumber must not cover any pipes or pipework involved in the work unless—
- (a) he or she has advised the Authority in the manner specified by the Authority of the time at which the work will be ready for inspection; and
 - S. 221ZP(2)(a) amended by Nos 75/1998 s. 5(b), 34/2013 s. 34(Sch. 1 item 71).
 - (b) either—
 - (i) a person authorised by the Authority has inspected the work and authorised the plumber to cover the work; or
 - S. 221ZP(2)(b)(i) amended by Nos 75/1998 s. 5(b), 34/2013 s. 34(Sch. 1 item 71).
 - (ii) no person authorised by the Authority arrives to inspect the work and at least half an hour has elapsed since the time referred to in paragraph (a).
 - S. 221ZP(2)(b)(ii) amended by Nos 75/1998 s. 5(b), 34/2013 s. 34(Sch. 1 item 71).
- Penalty: 10 penalty units.
- (3) Unless he or she has a reasonable excuse for not doing so, the plumber—
- (a) must ensure that the work is ready to be inspected at the time given to the Authority under subsection (2)(a); and
 - S. 221ZP(3)(a) amended by No. 75/1998 s. 5(b), substituted by No. 75/1998 s. 13.
 - S. 221ZP(3)(a) amended by No. 34/2013 s. 34(Sch. 1 item 71).
 - (b) must be present at that time at the place where the work was carried out.
- Penalty: 10 penalty units.

S. 221ZPA
inserted by
No. 75/1998
s. 14.

221ZPA Information to be provided before work starts

- (1) Before a licensed or registered plumber starts any plumbing work at a premises, he or she must give the person who commissioned the work a document that sets out the plumber's name, licence or registration number, and business address.

Penalty: 10 penalty units.

- (2) If the plumbing work is work for which section 221ZH requires the issue of a compliance certificate, the plumber must at the same time also give the person a document that contains a brief description of the required insurance that applies to the work.

Penalty: 10 penalty units.

S. 221ZPA(3)
amended by
No. 34/2013
s. 34(Sch. 1
item 72).

- (3) The description required by subsection (2) must be in a form approved by the Authority.

Division 6—Insurance orders

S. 221ZQ
inserted by
No. 39/1996
s. 5.

221ZQ Order requiring insurance

- (1) The Minister may, by order published in the Government Gazette—
 - (a) require licensed plumbers to be covered by insurance; and
 - (b) specify the kinds and amount of insurance by which licensed plumbers are required to be covered.
- (2) An order—
 - (a) must state the date on which it is to take effect, which must be a date that is not earlier than 21 days after the date it is published in the Government Gazette;

- (b) may impose different requirements for different classes of licensed plumbers.
- (3) The Minister may, in a particular case, vary any excess specified in an order if the Minister is satisfied that it is appropriate to do so.
- (4) The Minister may, by order published in the Government Gazette, amend or revoke an order made under subsection (1). S. 221ZQ(4)
substituted by
No. 66/2004
s. 14.
- (5) For the purposes of this Part, a person is covered by the required insurance if—
- (a) the person holds the required insurance; or
 - (b) the work carried out by or on behalf of the person is covered by the required insurance;
or
 - (c) the person is not a party to the required insurance but is specified or referred to in the insurance, whether by name or otherwise, as a person to whom the insurance cover extends.
- (5A) The order of the Minister under this section published in the Government Gazette on 28 February 1997 is revoked and is deemed never to have been made. S. 221ZQ(5A)
inserted by
No. 34/1997
s. 21.
- (5B) The order of the Minister under this section published in the Government Gazette on 6 May 1997 is deemed to have been made under this section on 28 February 1997 and to have taken effect on 24 March 1997, despite anything to the contrary in this section or in the order. S. 221ZQ(5B)
inserted by
No. 34/1997
s. 21.
- (5C) Any reference in any document (other than this Act) to the order of the Minister under this section published in the Government Gazette on 28 February 1997 is deemed to be a reference to the order referred to in subsection (5B), unless a contrary intention expressly appears. S. 221ZQ(5C)
inserted by
No. 34/1997
s. 21.

- (6) In this section **insurance** includes—
- (a) professional indemnity insurance;
 - (b) a performance bond;
 - (c) a guarantee;
 - (d) an indemnity;
 - (e) public liability insurance;
 - (f) insurance relating to a particular project;
 - (g) insurance taken out by any body or person that relates to the work of a licensed plumber;
 - (h) any agreement or instrument in the nature of an item set out in paragraphs (a) to (g).

S. 221ZR
inserted by
No. 39/1996
s. 5,
amended by
No. 33/2010
s. 44.

221ZR Offence to work as plumber without required insurance

A licensed plumber must not carry out any plumbing work unless he or she is covered by the required insurance.

Penalty: 500 penalty units.

S. 221ZS
inserted by
No. 39/1996
s. 5,
amended by
No. 33/2010
s. 45.

221ZS Offence to claim to be insured when uninsured

A person who carries out, or offers to carry out, any plumbing work and who is not covered by the required insurance must not hold himself or herself out as being covered by that insurance.

Penalty: 500 penalty units.

S. 221ZT
inserted by
No. 39/1996
s. 5,
amended by
No. 17/1999
s. 22(8) (ILA
s. 39B(1)).

221ZT Further provisions concerning required insurance

- (1) Without limiting section 221ZQ, if an order under that section requires a licensed plumber to be covered by insurance relating to the carrying out of plumbing work, the insurance required by the order may, subject to any exemptions or exclusions set out in the order, relate to losses resulting from—

- (a) non-completion of the work;
 - (b) defective work;
 - (c) conduct by the plumber in connection with the contract for that work that contravenes section 18, 29, 34 or 151, or Subdivision B of Division 1 of Part 3-2, of the Australian Consumer Law (Victoria).
- (2) A reference—
- (a) in any order made under section 221ZQ; or
 - (b) in any instrument or agreement which is required insurance (within the meaning of section 221B(1))—
- to "section 9, 11 or 12 of the **Fair Trading Act 1999**" is, to the extent that it relates to any period on or after the commencement of section 8 of the **Fair Trading Amendment (Australian Consumer Law) Act 2010**, taken to include a reference to "section 18, 29, 34 or 151 of the Australian Consumer Law (Victoria)".

S. 221ZT(1)(c)
amended by
Nos 17/1999
s. 22(7),
72/2010
s. 48(Sch.
item 2(5)).

S. 221ZT(2)
inserted by
No. 17/1999
s. 22(8),
substituted by
No. 72/2010
s. 48(Sch.
item 2(6)).

221ZU Suspension of licence if insurance ceases

S. 221ZU
inserted by
No. 39/1996
s. 5.

- (1) The Authority must suspend the licence of a licensed plumber if it becomes aware that he or she has ceased to be covered by the required insurance.
- (2) If the Authority suspends a person's licence under subsection (1), it must give him or her written notice of the suspension.

S. 221ZU(1)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 73).

S. 221ZU(2)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 73).

S. 221ZU(3)
amended by
Nos 75/1998
s. 5(b),
36/2008 s. 23,
34/2013
s. 34(Sch. 1
item 73).

- (3) A suspension imposed under this section lasts until the person suspended gives the Authority written proof that he or she is covered by the required insurance for the remaining period of the licence. When that proof is given, the Authority must revoke the suspension.

S. 221ZU(4)
inserted by
No. 1/2023
s. 19.

- (4) The suspended person must ensure that the written proof is accompanied by the prescribed fee for the examination of the written proof by the Authority.

S. 221ZV
inserted by
No. 39/1996
s. 5.

221ZV Suspension of licence where failure to comply with insurer's direction

S. 221ZV(1)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 74).

- (1) An insurer may apply to the Authority for the suspension of the licence of a licensed plumber on the ground of a failure by the plumber to comply with a reasonable direction of the insurer in respect of the completion or rectification of defective plumbing work or any payment to be made to the insurer in respect of the completion or rectification of defective plumbing work in accordance with the required insurance.

- (2) An application must—

- (a) be in writing; and
- (b) set out the terms of the direction to be complied with.

S. 221ZV(3)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 74).

- (3) The Authority must notify a plumber in respect of whom an application is made without delay of the application and advise the plumber—
- (a) that his or her licence may be suspended at the end of 28 days after the date of the notice unless the plumber complies with the direction; and

- | | |
|--|---|
| (b) that he or she has a right to be heard by the Authority in respect of the application. | S. 221ZV(3)(b) amended by Nos 75/1998 s. 5(b), 34/2013 s. 34(Sch. 1 item 74). |
| (4) If a plumber has not complied with the direction within 28 days after the date of the notice, the Authority, after giving the plumber an opportunity to be heard, may suspend the plumber's licence. | S. 221ZV(4) amended by Nos 75/1998 s. 5(b), 34/2013 s. 34(Sch. 1 item 74). |
| (5) Clauses 12, 15, 16, 17 and 18(1) of Schedule 3 apply to a proceeding under subsection (4) as if a reference in those clauses to the Building Appeals Board was a reference to the Authority. | S. 221ZV(5) amended by Nos 75/1998 s. 5(b), 28/2000 s. 20(b), 34/2013 s. 34(Sch. 1 item 74), 21/2017 s. 98. |
| (6) If the Authority suspends a plumber's licence under this section, the suspension lasts until the Authority is satisfied that the plumber has complied with the direction. On being so satisfied, the Authority must revoke the suspension. | S. 221ZV(6) amended by Nos 75/1998 s. 5(b), 34/2013 s. 34(Sch. 1 item 74). |

Division 7—Rectification of defective plumbing work

221ZW Inspector or auditor may require plumber to rectify faulty work

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|---|--|
| (1) This section applies if a plumbing inspector or compliance auditor is of the opinion that particular plumbing work is in breach of any plumbing laws that apply to the work. | S. 221ZW inserted by No. 39/1996 s. 5. |
| (2) The inspector or auditor may give the person who carried out the work, or who supervised the carrying out of the work, a written rectification notice requiring the person to rectify the work to | |

make it comply with the plumbing law that the work does not comply with within the time specified by the inspector or auditor.

- (3) If a certificate of compliance was given with respect to the work, the inspector or auditor may also require the licensed plumber who signed the certificate to produce a new certificate of compliance in respect of the rectified work and to give the inspector or auditor a copy of that new certificate within the time specified by the inspector or auditor.
- (4) In requiring a copy of a new compliance certificate under subsection (3), the inspector or auditor must allow the licensed plumber a period of at least 10 days after the date of the notice to comply with the requirement.
- (5) A person—
 - (a) must comply with any requirement made by an inspector or auditor in a rectification notice; and
 - (b) must not ask for, or receive, from the person for whom the work was originally carried out (or any agent of that person) any money in respect of any cost arising from anything the person does in complying with a rectification notice.

Penalty: 50 penalty units.

- (6) The inspector or auditor must make it clear in a rectification notice in what way the work that needs rectification is defective.
- (7) If a person applies to VCAT under section 221ZX to have a rectification notice cancelled, he or she need not comply with the notice until he or she abandons the application or receives written notice that VCAT has affirmed the rectification notice or dismissed the application.

S. 221ZW(7)
amended by
Nos 28/2000
s. 20(c),
21/2017
s. 96(3)(4).

- (8) For the purposes of subsection (7), if the time specified to comply with a rectification notice is expressed as a date, the time within which the notice must be complied with is the number of days between that date and the date the notice was given to the person.
- (9) If an inspector or auditor gives a rectification notice to a person before the person produces any compliance certificate that the person is required to produce in respect of particular plumbing work, the person must still produce the compliance certificate once the rectification work has been completed.
- (10) The inspector or auditor must give a copy of the rectification notice to the person on whose behalf the plumbing work was carried out.
- (11) If the rectification notice relates to gasfitting work, the inspector or auditor must give a copy of the rectification notice to the relevant gas distribution company.

S. 221ZW(11)
inserted by
No. 99/1997
s. 121(7).

221ZX Right to apply to VCAT to have a rectification notice cancelled

S. 221ZX
inserted by
No. 39/1996
s. 5.

- (1) A person who has been given a rectification notice may apply to VCAT to have the decision to issue the notice reviewed.
- (2) Such an application must be made within 5 business days of the date the person receives the notice.

S. 221ZX(1)
amended by
Nos 28/2000
s. 20(c),
21/2017
s. 96(4).

221ZY Plumbing notice to owner/occupier to rectify defective plumbing work

S. 221ZY
inserted by
No. 39/1996
s. 5.

- (1) This section applies if a plumbing inspector is of the opinion that any plumbing work that has been carried out on any land or in any building—

- (a) contravenes any plumbing laws; or
 - (b) would contravene any plumbing laws if it were to be used; or
 - (c) may be a danger to the life, safety or health of any person or may pose a risk of damage to any property.
- (2) The plumbing inspector may give the owner or occupier of the land or building a written notice that requires the owner or occupier to show cause within a specified period why he or she should not ensure that the plumbing work is rectified.
- (3) The notice must be in the form specified by the Authority.

S. 221ZY(3)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 75).

S. 221ZZ
inserted by
No. 39/1996
s. 5.

221ZZ Owner/occupier may dispute a plumbing notice

An owner or occupier who has been given a plumbing notice may make representations about any matter set out in the notice to the inspector who signed it in the manner set out in the notice.

S. 221ZZA
inserted by
No. 39/1996
s. 5.

221ZZA Inspector may cancel plumbing notice

The plumbing inspector who gave a plumbing notice may cancel it at any time.

S. 221ZZB
inserted by
No. 39/1996
s. 5.

221ZZB Plumbing order to rectify defective plumbing work

- (1) A plumbing inspector may issue a written order requiring that the owner or occupier of any land or building—
- (a) rectify any plumbing work that has been carried out on the land or in the building so that it complies with the plumbing laws; or
 - (b) modify any plumbing work that has been carried out on the land or in the building.

- (2) A plumbing inspector may only issue such an order after—
- (a) he or she has given the owner or occupier a plumbing notice in respect of the plumbing work; and
 - (b) he or she has considered any representations made by the owner or occupier in response to the plumbing notice within the period permitted by the plumbing notice; and
 - (c) the time permitted by the plumbing notice for the making of representations has passed.
- (3) The order—
- (a) must specify the time or times within which it must be complied with (which must be a period of at least 15 business days after it is given to the owner or occupier); and
 - (b) must contain a copy of sections 221ZZC, 221ZZE and 221ZZJ; and
 - (c) must contain any other details required by the Authority.
- (4) If the order relates to gasfitting work, the plumbing inspector must give a copy of the order to the relevant gas distribution company.

**S. 221ZZB
(3)(c)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 76).**

**S. 221ZZB(4)
inserted by
No. 99/1997
s. 121(8).**

S. 221ZZC
inserted by
No. 39/1996
s. 5.

221ZZC Owner/occupier must comply with plumbing order

S. 221ZZC(1)
amended by
No. 21/2017
s. 95(10).

- (1) An owner or occupier of any land or building must comply with any requirement set out in a plumbing order that has been given to him or her within the time set out in the order.

Penalty: 60 penalty units, in the case of a natural person;

120 penalty units, in the case of a body corporate.

- (2) Subsection (1) does not apply if the owner or occupier has a reasonable excuse for failing to comply with the order.

S. 221ZZD
inserted by
No. 39/1996
s. 5.

221ZZD Inspector may cancel plumbing order

The plumbing inspector who gave a plumbing order may cancel it at any time.

S. 221ZZE
inserted by
No. 39/1996
s. 5.

221ZZE Right to apply to the VCAT to have a plumbing order cancelled

S. 221ZZE(1)
amended by
Nos 28/2000
s. 20(c),
21/2017
s. 96(4).

- (1) A person who has been given a plumbing order may apply to VCAT to have the decision to issue the order reviewed.

- (2) Such an application must be made within 15 business days of the date the person receives the order.

S. 221ZZE(3)
amended by
No. 21/2017
s. 96(5).

- (3) If an owner or occupier applies to VCAT within the time allowed, he or she need not comply with section 221ZZC until the expiry of—

- (a) 15 business days after he or she receives written notice that the Authority has affirmed the plumbing order; or

S. 221ZZE
(3)(a)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 77).

- (b) 5 business days after he or she abandons the application or he or she receives written notice that the Authority has dismissed the application—

S. 221ZZE
(3)(b)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 77).

(whichever happens first).

- (4) In considering an application, VCAT may consider matters not raised before the plumbing order was made.

S. 221ZZE(4)
amended by
No. 21/2017
s. 96(5).

221ZZF Emergency plumbing order to rectify dangerous plumbing work

S. 221ZZF
inserted by
No. 39/1996
s. 5.

- (1) This section applies if a plumbing inspector is of the opinion that any plumbing work that has been carried out on any land or in any building—

- (a) contravenes any plumbing laws or would contravene any plumbing laws if it were to be used; and

- (b) is an immediate danger to the life, safety or health of any person or poses an immediate risk of significant damage to any property.

- (2) The plumbing inspector may issue a written order requiring that the owner or occupier of the land or building, within a specified time or times—

- (a) rectify the plumbing work so that the danger or risk is removed; or

- (b) modify the plumbing work so that the danger or risk is removed; or

- (c) ensure that everyone on the land or in the building is evacuated from the land or building; or
- (d) ensure that specified people or classes of people on the land or in the building are evacuated from the land or building.
- (3) The plumbing inspector may also, in an emergency plumbing order, prohibit the occupation or use of the land or building for a specified period of up to 48 hours.
- (4) The order must contain a copy of sections 221ZZG and 221ZZJ.
- (5) The Authority has no power to cancel an order made under this section.
- (6) If the order relates to gasfitting work, the plumbing inspector must give a copy of the order to the relevant gas distribution company.

S. 221ZZF(5)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 78).

S. 221ZZF(6)
inserted by
No. 99/1997
s. 121(9).

S. 221ZZG
inserted by
No. 39/1996
s. 5.

221ZZG Offence to not comply with emergency plumbing order

S. 221ZZG(1)
amended by
No. 33/2010
s. 46.

- (1) An owner or occupier of any land or building must comply with any emergency plumbing order that has been given to him or her.

Penalty: 240 penalty units, in the case of a natural person.

1500 penalty units, in the case of a body corporate.

- (2) A person must not occupy or use any land or building in contravention of an emergency plumbing order.

S. 221ZZG(2)
amended by
No. 33/2010
s. 46.

Penalty: 240 penalty units, in the case of a natural person.

1500 penalty units, in the case of a body corporate.

- (3) This section does not apply if the owner, occupier or person has a reasonable excuse for failing to comply with the order.

221ZZH Inspector may cancel emergency plumbing order

S. 221ZZH
inserted by
No. 39/1996
s. 5.

The plumbing inspector who gave an emergency plumbing order to an owner or occupier may cancel it by written notice given to the owner or occupier if the order was made in error or if the circumstances giving rise to the making of the order have changed.

221ZZI Plumbing notices and orders to be last resort

S. 221ZZI
inserted by
No. 39/1996
s. 5.

- (1) A plumbing inspector must not give an owner or occupier of any land or building a plumbing notice or a plumbing order in relation to any plumbing work unless either—
- (a) the inspector served a rectification notice in relation to the work on the plumber responsible for the work, and it is clear that that notice will not be complied with; or
 - (b) the inspector is satisfied that it is either not possible or not appropriate to serve a rectification notice in relation to the work on the plumber responsible for the work.
- (2) A plumbing inspector must not give an owner or occupier of any land or building an emergency plumbing order in relation to any plumbing work that makes a requirement under section 221ZZF(2)(a) unless the inspector is

satisfied that the emergency plumbing order is likely to be complied with more quickly than a rectification notice in relation to the work would be complied with.

S. 221ZZJ
inserted by
No. 39/1996
s. 5.

221ZZJ Owner/occupier must report the completion of required work

- (1) An owner or occupier who is required by a plumbing order or emergency plumbing order to ensure that plumbing work is carried out must advise the plumbing inspector who issued the order that the work has been carried out as soon as is practicable after the work is finished.

Penalty: 10 penalty units.

- (2) On receiving the advice, the plumbing inspector must inspect the work.

S. 221ZZK
(Heading)
inserted by
No. 34/2013
s. 34(Sch. 1
item 79).

221ZZK Work may be carried out by Authority or plumbing inspector

S. 221ZZK
inserted by
No. 39/1996
s. 5.

S. 221ZZK(1)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 80).

- (1) If an owner or occupier fails to comply with a plumbing order or emergency plumbing order, the Authority or the plumbing inspector who issued the order may cause the work required by the order to be carried out.

S. 221ZZK(2)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 80).

- (2) The Authority may recover any costs incurred in carrying out the work from the owner or occupier (as the case may be) in a court of competent jurisdiction as a debt due to the Authority.

221ZZL Police assistance

S. 221ZZL
inserted by
No. 39/1996
s. 5.

- (1) A plumbing inspector may ask for the help of a police officer, and a police officer may help—
- (a) in evacuating land or a building in accordance with an emergency plumbing order; or
 - (b) in removing people from land or a building on or in which the work is being carried out in accordance with a plumbing order or an emergency plumbing order by the inspector or a person asked to carry out the work by the inspector or the Authority.
- (2) A police officer may use reasonable force in carrying out a function under subsection (1).

S. 221ZZL(1)
amended by
No. 37/2014
s. 10(Sch.
item 9.2).

S. 221ZZL
(1)(b)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 81).

S. 221ZZL(2)
amended by
No. 37/2014
s. 10(Sch.
item 9.2).

Division 8—Interpretation and modification of plumbing regulations

221ZZM Meaning of *plumbing regulations*

In this Division, *plumbing regulations* means—

- (a) any regulations made under section 221ZZZV(1)(a) or (g)(i); or
- (b) any regulation (other than any regulation made under the **Gas Safety Act 1997**), local law or by-law that applies, or that applied at a material time, to plumbing work.

S. 221ZZM
inserted by
No. 39/1996
s. 5.

S. 221ZZM(b)
amended by
No. 99/1997
s. 121(6).

S. 221ZZN
(Heading)
inserted by
No. 34/2013
s. 34(Sch. 1
item 82).

S. 221ZZN
inserted by
No. 39/1996
s. 5.

S. 221ZZN(1)
amended by
No. 11/2023
s. 15(1).

221ZZN Authority may resolve disputes concerning interpretation of plumbing regulations

- (1) This section applies if there is a dispute about the application or effect of any provision of the plumbing regulations, or whether any provision of the plumbing regulations including any binding determination that applies to that provision is, or has been, complied with, and the dispute is between all or any of the following—
 - (a) the owner or occupier of a premises on which plumbing work is being, has been or is about to be, carried out;
 - (b) the licensed or registered plumber who is carrying out, carried out, or is about to carry out, that work;
 - (c) any person who acts on behalf of the owner or occupier of the premises;
 - (d) a plumbing inspector or compliance auditor.
- (2) One or more of the parties to the dispute may apply to the Authority for a declaration as to the application or effect of the provision of the plumbing regulations or whether the provision of the plumbing regulations including any binding determination that applies to that provision is, or has been, complied with.
- (3) The application may be made in any manner approved by the Authority.

S. 221ZZN(2)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 83),
11/2023
s. 15(2).

S. 221ZZN(3)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 83).

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|---|--|
| (3A) An application for a declaration must be accompanied by the fee set out in the regulations. | S. 221ZZN(3A) inserted by No. 11/2023 s. 15(3). |
| (4) After conducting a hearing on the application, the Authority must declare its opinion on the matter in dispute. | S. 221ZZN(4) amended by Nos 75/1998 s. 5(b), 34/2013 s. 34(Sch. 1 item 83). |
| (5) Each party to the dispute is bound by the declaration of the Authority and must give effect to the declaration once the declaration takes effect. | S. 221ZZN(5) amended by Nos 75/1998 s. 5(b), 34/2013 s. 34(Sch. 1 item 83). |
| (6) Each person who was given an opportunity to be heard by the Authority is a party to the dispute for the purposes of subsection (5). | S. 221ZZN(6) amended by Nos 75/1998 s. 5(b), 34/2013 s. 34(Sch. 1 item 83). |
| (7) An application to VCAT for the review of a declaration of the Authority must be made by the end of the 5th business day after each party to the dispute has received a copy of the declaration. | S. 221ZZN(7) amended by Nos 52/1998 s. 311(Sch. 1 item 10.11), 75/1998 s. 5(b), 34/2013 s. 34(Sch. 1 item 83), 21/2017 s. 96(6). |
| (8) A declaration takes effect—
<div style="margin-left: 20px;">(a) at the start of the 6th business day after each party to the dispute has received a copy of it;
or</div> | S. 221ZZN(8) amended by No. 28/2000 s. 20(c). |

S.
221ZZN(8)(b)
amended by
No. 21/2017
s. 96(6).

(b) if an application to review it has been lodged, on the application being abandoned or on VCAT dismissing the application or affirming the declaration.

S. 221ZZN(9)
amended by
Nos 75/1998
s. 5(b),
28/2000
s. 20(c),
34/2013
s. 34(Sch. 1
item 83),
21/2017
s. 96(6).

(9) If a person applies to VCAT for the review of a declaration, the Authority must give the person its written reasons for the declaration as soon as possible after the application is lodged.

S. 221ZZO
inserted by
No. 39/1996
s. 5.

221ZZO Modification of plumbing regulations

S. 221ZZO(1)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 84).

(1) The Authority may declare that a provision of the plumbing regulations does not apply, or applies with specified variations, to specified plumbing work.

S. 221ZZO(1A)
inserted by
No. 11/2023
s. 16.

(1A) A declaration of the Authority under this section that a provision of the plumbing regulations applies with specified variations to specified plumbing work must not be inconsistent with any binding determination that applies to that provision.

(2) A declaration under this section overrides the plumbing regulations and must be given effect to with respect to the specified plumbing work as if those regulations had been amended to accord with the declaration.

(3) An application for a declaration may be made by—

(a) the owner or occupier of a building or land;

- (b) a licensed or registered plumber;
- (c) a plumbing inspector or compliance auditor;
- (d) a Department Head within the meaning of the **Public Administration Act 2004**;

S. 221ZZO
(3)(d)
amended by
Nos 46/1998
s. 7(Sch. 1),
108/2004
s. 117(1)
(Sch. 3
item 21.3).

- (e) a public authority.
- (4) The person applying for the declaration must—
- (a) identify the plumbing work for which the application is being made; and
 - (b) specify in what way the person would like the plumbing regulations modified with respect to that work.
- (5) An application for a declaration must be accompanied by the fee set out in the regulations.
- (6) For the purposes of this Part, any plumbing work that is the subject of a declaration complies with the plumbing regulations if it complies with those regulations as modified by the declaration.

221ZZP Matters Authority must consider before making a modification declaration

S. 221ZZP
(Heading)
inserted by
No. 34/2013
s. 34(Sch. 1
item 85).

S. 221ZZP
inserted by
No. 39/1996
s. 5.

- (1) The Authority may only declare that a provision of the plumbing regulations does not apply to specified plumbing work if it is satisfied that the provision is inappropriate in the particular circumstances.

S. 221ZZP(1)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 86).

S. 221ZZP(2)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 86).

- (2) The Authority may only declare that a provision of the plumbing regulations applies with the variations specified by the Authority to specified plumbing work if it is satisfied that it is reasonable to do so and is not detrimental to the public interest.

S. 221ZZP(3)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 86).

- (3) In making a declaration under section 221ZZO, the Authority may impose any conditions that it thinks appropriate in relation to how the declaration is to be given effect to.

S. 221ZZQ
inserted by
No. 39/1996
s. 5.

221ZZQ Procedure applying to hearings under this Part

- (1) Subject to anything to the contrary in this Part, clauses 12, 15, 16, 17, 18(1) and 19 of Schedule 3 apply to the hearing of a dispute under section 221ZZN or of an application under section 221ZZO as if a reference in those clauses to—

S. 221ZZQ
(1)(a)
amended by
Nos 75/1998
s. 5(c),
34/2013
s. 34(Sch. 1
item 87).

- (a) the Building Appeals Board was a reference to the Victorian Building Authority; and

- (b) a determination was a reference to a declaration.

- (2) For the purposes of this Division, section 221ZZZO applies as if a reference in that section to a disciplinary hearing was a reference to the hearing of a dispute under section 221ZZN or of an application under section 221ZZO.

Building Act 1993
No. 126 of 1993
Part 12A—Plumbing work

*	*	*	*	*	Pt 12A Div. 9 (Heading and ss 221ZZR– 221ZZX) inserted by No. 39/1996 s. 5, substituted by No. 75/1998 s. 3, amended by Nos 32/2001 s. 25(1), 96/2004 ss 20, 21, 54/2007 ss 8–10, repealed by No. 34/2013 s. 28.
*	*	*	*	*	Pt 12A Div. 9A (Heading and ss 221ZZXA– 221ZZXD) inserted by No. 75/1998 s. 3, amended by Nos 32/2001 s. 25(2), 68/2001 s. 3(4), 24/2006 s. 6.1.2(Sch. 7 item 2.2), repealed by No. 34/2013 s. 28.

Division 10—Enforcement

221ZZY Enforcement staff

S. 221ZZY
inserted by
No. 39/1996
s. 5.

- (1) The Authority may appoint for the purposes of this Part, from staff appointed or engaged under section 204—
- (a) plumbing inspectors; and
 - (b) compliance auditors.

S. 221ZZY(1)
amended by
No. 75/1998
s. 5(b),
substituted by
No. 34/2013
s. 26(3)(a).

S. 221ZZY(2)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 26(3)(b),
substituted by
No. 21/2017
s. 43.

- (2) The Authority must not appoint a person as a plumbing inspector or a compliance auditor under subsection (1) unless the Authority is satisfied that the person to be authorised is appropriately qualified or has successfully completed appropriate training.

S. 221ZZY(3)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 26(3)(c),
substituted by
No. 21/2017
s. 43.

- (3) The Authority must issue identification to each person appointed as a plumbing inspector which must—

- (a) contain a photograph of the person; and
- (b) state the name of that person; and

S.
221ZZY(3)(c)
amended by
No. 46/2018
s. 60(1).

- (c) state the fact that the person is a plumbing inspector appointed by the Authority; and

S.
221ZZY(3)(d)
inserted by
No. 46/2018
s. 60(2).

- (d) state that the plumbing inspector is an authorised person within the meaning of section 228.

S. 221ZZY(4)
inserted by
No. 21/2017
s. 43.

- (4) The Authority must issue identification to each person appointed as a compliance auditor which must—

- (a) contain a photograph of the person; and
- (b) state the name of that person; and

S.
221ZZY(4)(c)
amended by
No. 46/2018
s. 60(1).

- (c) state the fact that the person is a compliance auditor appointed by the Authority; and

S.
221ZZY(4)(d)
inserted by
No. 46/2018
s. 60(3).

- (d) state that the compliance auditor is an authorised person within the meaning of section 228.

Building Act 1993
No. 126 of 1993
Part 12A—Plumbing work

(5) A plumbing inspector or a compliance auditor must produce the identification issued under this section for inspection—

S. 221ZZY(5)
inserted by
No. 21/2017
s. 43.

(a) before exercising a power under this Act or the regulations; and

(b) at any time during the exercise of a power under this Act or the regulations if asked to do so.

Penalty: 1 penalty unit.

(6) Subsection (5) does not apply to—

S. 221ZZY(6)
inserted by
No. 21/2017
s. 43.

(a) a requirement made by post; or

(b) the exercise of a power of entry under section 228I(1).

* * * * *

S. 221ZZZ
inserted by
No. 39/1996
s. 5, amended
by Nos
75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 88),
repealed by
No. 21/2017
s. 44(1).

* * * * *

S. 221ZZZA
inserted by
No. 39/1996
s. 5,
amended by
Nos 34/1997
s. 22, 75/1998
ss 5(b), 15(1),
31/2007 s. 13,
34/2013
s. 34(Sch. 1
item 89),
repealed by
No. 21/2017
s. 44(1).

Building Act 1993
No. 126 of 1993
Part 12A—Plumbing work

S. 221ZZZB
inserted by
No. 39/1996
s. 5,
amended by
No. 75/1998
s. 15(2)–(4),
repealed by
No. 21/2017
s. 44(1).

* * * *

S. 221ZZZBA
inserted by
No. 75/1998
s. 16,
repealed by
No. 21/2017
s. 44(1).

* * * *

S. 221ZZZC
inserted by
No. 39/1996
s. 5.

221ZZZC Additional powers of plumbing inspectors

- (1) Part 13 applies to caravans and vessels as if a caravan or vessel was a building and the occupant of the caravan or vessel was its occupier.
- (2) After entering any land or building under Part 13, a plumbing inspector or compliance auditor may—
 - (a) inspect and test any plumbing work on or in that land or building;
 - (b) if it is reasonable or necessary for the purpose of such an inspection or test—
 - (i) isolate that land or building from any water or gas supply;
 - (ii) connect or reconnect that land or building to a water or gas supply;
 - (iii) dismantle and re-assemble the work.
- (3) In this section—

caravan includes any form of movable dwelling other than a boat or houseboat;

vessel means any boat or houseboat that has a gas appliance or toilet as a fixture.

221ZZZD Compulsory inspections

S. 221ZZZD
inserted by
No. 39/1996
s. 5.

- (1) This section applies if a gas company or a water authority has evidence to suggest—
- (a) that particular plumbing work does not comply with the plumbing laws; or
 - (b) that a real threat to health and safety exists as a result of the improper installation or maintenance of a sanitary drain or an appliance or fixture that uses water or gas; or
 - (c) that there is infiltration of groundwater or stormwater into private sanitary drains—
 - (i) from surface areas; or
 - (ii) from downpipes; or
 - (iii) due to gullies being fitted at an inappropriate level; or
 - (iv) due to defective plumbing work.

S. 221ZZZD(1)
amended by
No. 21/2017
s. 95(11)(a).

- (2) The gas company or the water authority may ask the Authority in writing to inspect the work or drain, appliance or fixture.

S. 221ZZZD(2)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 90),
21/2017
s. 95(11)(b).

- (3) On receiving such a request and a copy of the evidence, the Authority must cause an inspection to be made of the work or drain, appliance or fixture.

S. 221ZZZD(3)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 90).

S. 221ZZZD(4)
inserted by
No. 21/2017
s. 95(11)(c).

- (4) In this section **gas company** has the same meaning as it has in section 3(1) of the **Gas Safety Act 1997**.

Pt 12A
Div. 10A
(Heading and
ss 221ZZZDA
–221ZZZEB)
inserted by
No. 31/2007
s. 14.

Division 10A—Plumbing infringements

S. 221ZZZDA
inserted by
No. 31/2007
s. 14.

221ZZZDA Definitions

In this Division—

S. 221ZZZDA
def. of
*authorised
officer*
amended by
No. 21/2017
s. 95(12).

authorised officer means—

- (a) the chief executive officer of the Authority;
- (b) a plumbing inspector;
- (c) a compliance auditor;
- (d) any other person authorised by the regulations made under this Part to issue plumbing infringement notices under this Division;

infringement penalty in relation to an offence, means—

- (a) the penalty specified in column 2 of Schedule 5 in respect of the corresponding offence listed in column 1 of that Schedule; or
- (b) a penalty prescribed for the purposes of this Division in respect of a prescribed offence;

prescribed offence means—

- (a) an offence against a section listed in column 1 of Schedule 5; or
- (b) an offence—
 - (i) against this Part or the regulations made under this Part; and
 - (ii) which is prescribed for the purposes of this Division.

221ZZZE Plumbing infringement notices

- (1) An authorised officer may serve a plumbing infringement notice on any person that the authorised officer has reason to believe has committed a prescribed offence.
- (2) An offence referred to in subsection (1) for which a plumbing infringement notice may be served is an infringement offence within the meaning of the **Infringements Act 2006**.
- (3) For the purposes of subsection (1), a plumbing infringement notice must—
 - (a) be in the form required by the **Infringements Act 2006** and state the infringement penalty in respect of the offence; and
 - (b) include details of the additional steps (if any) required to expiate the offence.
- (4) An infringement penalty prescribed for the purposes of this Division must not exceed 10 penalty units.

S. 221ZZZE inserted by No. 39/1996 s. 5, substituted by No. 75/1998 s. 17 (as amended by No. 74/2000 s. 3(Sch. 1 item 14)), amended by No. 32/2006 s. 94(Sch. item 4(1)-(3)), substituted by No. 31/2007 s. 14.

221ZZZEA Additional steps required by infringement notice

- (1) Additional steps required to expiate a prescribed offence may include, but are not limited to, the following—

S. 221ZZZEA inserted by No. 31/2007 s. 14.

- (a) the carrying out of any plumbing work if failure to carry out that work constitutes the offence;
 - (b) stopping any plumbing work that constitutes the offence;
 - (c) doing or omitting to do anything in order to remedy a contravention of this Part or the regulations made under this Part.
- (2) If a plumbing infringement notice requires additional steps to be taken to expiate a prescribed offence, and, before the end of the remedy period set out in the notice, or if the authorised officer allows, at any time before the service of a summons in respect of the offence, the person served with the notice informs the authorised officer that those steps have been taken—
- (a) the authorised officer must, without delay, find out whether or not those steps have been taken; and
 - (b) serve on the person a notice stating whether or not those steps have been taken.
- (3) A statement in a notice under subsection (2) that additional steps have been taken is for all purposes conclusive proof of that fact.

S. 221ZZZEB
inserted by
No. 31/2007
s. 14.

221ZZZEB Proceedings where plumbing infringement notice requiring additional steps is served

Nothing in this section prejudices the institution or the prosecution of proceedings for an offence for which a plumbing infringement notice has been served if the notice states that a penalty must be paid and additional steps must be taken to expiate the offence, and—

- (a) the amount of the penalty is not paid before the end of the period for payment shown in the notice or of any further period allowed by the authorised officer; or
- (b) the person served with the notice does not, before the end of the remedy period shown in the notice or of any further period allowed by the authorised officer, take those additional steps.

Division 11—Inquiries and disciplinary action

221ZZZF Inquiry by Authority

S. 221ZZZF
(Heading)
inserted by
No. 34/2013
s. 34(Sch. 1
item 91).

S. 221ZZZF
inserted by
No. 39/1996
s. 5.

- (1) The Authority may conduct an inquiry as to whether there is proper cause for taking disciplinary action against a person who is, or has been, licensed or registered under this Part.

S. 221ZZZF(1)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 92).

- (2) The Authority may conduct such an inquiry on its own motion or after receiving a complaint concerning the conduct or competence of any person who is licensed or registered under this Part.

S. 221ZZZF(2)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 92).

221ZZZFA Immediate suspension of registration or licence of plumber

S. 221ZZZFA
inserted by
No. 3/2020
s. 31.

- (1) The Authority must, by written notice given to a licensed or registered plumber, immediately suspend the licence or registration of the plumber (as the case requires) if the Authority considers it

is in the interests of the public to do so pending an inquiry under this Division.

- (2) For the purpose of subsection (1), matters that the Authority may have regard to in deciding whether it is in the interests of the public to immediately suspend the licence of a licensed plumber or the registration of a registered plumber include the following—
 - (a) whether the plumber is performing, has performed or has allowed others under the plumber's control to perform plumbing work that poses a serious risk to neighbouring properties;
 - (b) whether the plumber is performing, has performed or has allowed others under the plumber's control to perform plumbing work that poses a risk to the health and safety of persons;
 - (c) whether the plumber has been the subject of multiple adverse disciplinary actions by the Authority.
- (3) The Authority may suspend a registration under subsection (1) either wholly or as a partial suspension in relation to a specified matter.
- (4) The notice must state the following—
 - (a) the decision;
 - (b) the ground for the decision;
 - (c) the period of the suspension;
 - (d) that the plumber may apply to VCAT under Division 12 for review of the decision.
- (5) The Authority must provide written reasons to the plumber for the immediate suspension within 5 business days after giving the notice.

- (6) A suspension under subsection (1)—
- (a) takes effect when the notice is given to the plumber; and
 - (b) continues for the period specified in the notice unless either of the following occurs—
 - (i) the suspension is revoked by the Authority;
 - (ii) the suspension is set aside by VCAT on an application for review under Division 12.

221ZZZG Grounds on which disciplinary action may be taken

S. 221ZZZG
inserted by
No. 39/1996
s. 5.

- (1) There is proper cause for taking disciplinary action against a person who is, or has been, licensed or registered under this Part if—
- (a) he or she obtained the licence or registration by fraud or misrepresentation or the concealment of facts;
 - (b) he or she has been convicted of an offence against the plumbing laws;
 - (ba) the person has contravened the **Professional Engineers Registration Act 2019** or the regulations under that Act;
 - (c) he or she has been convicted of any offence involving fraud, dishonesty, drug trafficking or violence that was punishable by imprisonment for 6 months or more;
 - (d) he or she has breached any requirement of a provision of this Act or the regulations made under this Part including any binding determination that applies to that provision;

S. 221ZZZG
(1)(ba)
inserted by
No. 26/2019
s. 129.

S. 221ZZZG(1)(d)
amended by
No. 31/2007
s. 15,
substituted by
No. 11/2023
s. 17.

S.221ZZG
(1)(da)
inserted by
No. 46/2018
s. 61.

- (da) he or she has not complied with any prescribed continuing professional development requirements;
- (e) he or she has had his or her licence or registration or other authorisation to engage in plumbing work outside Victoria cancelled or suspended for any reason other than his or her failure to renew that licence, registration or other authorisation;
- (f) he or she has been guilty of, or was a party to, any negligence or incompetence in connection with the carrying out of any plumbing work;
- (g) he or she has carried out, or was a party to, the carrying out of plumbing work otherwise than in a good and workmanlike manner;
- (h) he or she directed or permitted the carrying out of plumbing work otherwise than in a good and workmanlike manner;
- (i) he or she has been guilty of any fraudulent conduct in regard to the carrying out of any plumbing work;
- (j) he or she, in the course of carrying out any plumbing work—
 - (i) used materials that he or she knew, or reasonably ought to have known, were defective; or
 - (ii) was a party to the carrying out of any plumbing work using materials that he or she knew, or reasonably ought to have known, were defective;
- (k) he or she has failed to comply with a reasonable direction of an insurer in respect of the completion or rectification of

defective plumbing work or any payment to be made to the insurer in respect of the completion or rectification of defective plumbing work in accordance with required insurance.

221ZZZH Procedure concerning inquiries

S. 221ZZZH
inserted by
No. 39/1996
s. 5.

- (1) To start an inquiry, the Authority must give the following details in writing to the person who is to be the subject of the inquiry—

S. 221ZZZH(1)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 93).

- (a) the grounds on which the inquiry is to be conducted; and
- (b) if the inquiry is based on a complaint, the substance of that complaint; and
- (c) the time and place at which the inquiry will be held; and
- (d) the fact that the person may make oral and written submissions to the Authority in relation to the inquiry; and

S. 221ZZZH
(1)(d)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 93).

- (e) a copy of section 221ZZZJ.

- (2) The Authority may conduct an inquiry in the absence of the person whose conduct or competence is being inquired into if it is satisfied that the person received the details listed in subsection (1).

S. 221ZZZH(2)
amended by
Nos 75/1998
s. 5(b),
70/2013
s. 3(Sch. 1
item 3).

S. 221ZZZI
inserted by
No. 39/1996
s. 5,
amended by
Nos 75/1998
s. 5(c),
34/2013
s. 34(Sch. 1
item 94).

221ZZZI How inquiry to be conducted

Clauses 12, 15, 16, 17, 18(1) and 19 of Schedule 3 apply to an inquiry under this Division as if a reference in those clauses to the Building Appeals Board was a reference to the Victorian Building Authority.

S. 221ZZZJ
(Heading)
inserted by
No. 34/2013
s. 34(Sch. 1
item 95).

221ZZZJ Disciplinary powers of Authority

S. 221ZZZJ
inserted by
No. 39/1996
s. 5.

S. 221ZZZJ(1)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 96).

- (1) At the end of an inquiry, if the Authority is satisfied that proper cause for taking disciplinary action against a person exists, the Authority may do one or more of the following—
 - (a) reprimand the person;
 - (b) if the person is licensed or registered under this Part—
 - (i) impose new conditions on, or vary the existing conditions of, the licence or registration;
 - (ii) suspend the licence or registration for a period of up to 12 months;
 - (iii) cancel the licence or registration immediately or with effect from a specified later date;
 - (c) if the person is licensed or registered under this Part, require the person to pass a specified examination or complete a

- specified period of training or attend a specified course of instruction;
- (d) disqualify the person from being licensed or registered for a specified period of up to 3 years;
- (e) order the person to pay the costs of the inquiry (including incidental costs);
- (f) order the person to pay the Authority a penalty of not more than 100 penalty units unless—
- (i) a charge has been filed in the Magistrates' Court in respect of the matter; or
 - (ii) the matter has been dealt with by a court exercising its criminal jurisdiction; or
 - (iii) the matter has been dealt with by the issue of an infringement notice;
- (1A) If the Authority determines under subsection (1) to suspend or cancel a licence or registration of a person because the person has breached a requirement of this Part, the Authority may suspend the operation of that suspension or cancellation on condition that the person complies with specified conditions.
- (1B) In making a decision under subsection (1A), the Authority may take into account—
- (a) whether the person has any previous conviction for breaching the requirements of this Part; and
 - (b) whether the conduct of the person in breaching the requirements leading to the determination to suspend or cancel the licence or registration was out of character and unlikely to reoccur; and

S. 221ZZZJ
(1)(f)
amended by
No. 75/1998
s. 5(b),
substituted by
No. 36/2008
s. 24(1),
amended by
No. 34/2013
s. 34(Sch. 1
item 96).

S. 221ZZZJ
(1A)
inserted by
No. 36/2008
s. 24(2),
amended by
No. 34/2013
s. 34(Sch. 1
item 96).

S. 221ZZZJ
(1B)
inserted by
No. 36/2008
s. 24(2),
amended by
No. 34/2013
s. 34(Sch. 1
item 96).

(c) whether there are mitigating circumstances that warrant the decision.

S. 221ZZZJ
(1C)
inserted by
No. 36/2008
s. 24(2),
amended by
No. 34/2013
s. 34(Sch. 1
item 96).

- (1C) The Authority may revoke the suspension of the suspension or cancellation of a licence or registration and reinstate the original suspension or cancellation if the Authority is satisfied that the person has during the suspension period—
- (a) breached a requirement of this Part; or
 - (b) breached a condition of the suspension.

S. 221ZZZJ
(1D)
inserted by
No. 36/2008
s. 24(2).

- (1D) If the original suspension or cancellation of a licence or registration is reinstated, the period of suspension begins, or the cancellation takes effect, on the day following the day that the decision to reinstate the suspension or cancellation is made.

S. 221ZZZJ(2)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 96).

- (2) If the Authority makes an order under this section, the Registrar may give a copy of the order to any person or body who the Registrar thinks should be told of the order.

S. 221ZZZK
inserted by
No. 39/1996
s. 5.

221ZZZK Presumption of suspension for repeated offences concerning compliance notices

S. 221ZZZK(1)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 97).

- (1) This section applies if the Authority is satisfied, at the end of an inquiry—
- (a) that a person has contravened section 221ZH; and
 - (b) that the person has contravened that section on at least 2 separate occasions within the past 3 years.

S. 221ZZZK(2)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 97).

- (2) The Authority must suspend the person's licence for a period of up to 3 months unless it is satisfied that there is a good reason for not doing so.

221ZZZKA Person to give notice of cancellation or suspension of licence or registration

S. 221ZZZKA
inserted by
No. 3/2020
s. 32.

A person who has had a licence or registration as a plumber cancelled or suspended under Division 6 or this Division or as a result of a review by VCAT must, without delay after the decision to cancel or suspend the licence or registration takes effect, give notice in the prescribed form (if any) of the cancellation or suspension to any person who has a contract with the person relating to, or arising out of, the carrying out of the person's work as a licensed or registered plumber.

Penalty: 50 penalty units.

221ZZZKB Consequences of suspension of licence or registration

S. 221ZZZKB
inserted by
No. 3/2020
s. 32.

- (1) A person whose licence or registration as a plumber is suspended under Division 6 or this Division or as a result of a review by VCAT is taken not to be licensed or registered (as the case requires) under Division 3 either wholly or, if it is a partial suspension, in relation to the matter specified in the suspension.
- (2) A person whose licence or registration as a plumber is suspended under Division 6 or this Division or as a result of a review by VCAT may apply for a renewal of that licence or registration during the period of suspension but the renewed licence or registration remains suspended either wholly or as a partial suspension (as the case requires) in accordance with the terms of the suspension until the licence or registration is cancelled or the suspension ends or is revoked.

S. 221ZZZL
(Heading)
inserted by
No. 34/2013
s. 34(Sch. 1
item 98),
substituted by
No. 3/2020
s. 33(1).

S. 221ZZZL
inserted by
No. 39/1996
s. 5,
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 99),
3/2020 s. 33(2)
(ILA s. 39B(1)).

S. 221ZZZL(2)
inserted by
No. 3/2020
s. 33(2).

S. 221ZZZL(3)
inserted by
No. 3/2020
s. 33(2).

**221ZZZL Revocation of cancellation or suspension of
licence or registration**

- (1) The Authority may at any time revoke any order it has made under section 221ZZZJ cancelling or suspending a person's licence or registration.
- (2) The Authority must revoke an immediate suspension under section 221ZZZF if the Authority determines that the ground for the immediate suspension has ceased to exist.
- (3) The Authority must, without delay, give written notice to a licensed or registered plumber of—
 - (a) the revocation of an order made under section 221ZZZJ cancelling or suspending the plumber's licence or registration; or
 - (b) the revocation of an immediate suspension of the plumber's licence or registration under section 221ZZZF.

221ZZM Authority may compensate persons suffering loss from unsatisfactory plumbing work

If the Authority makes an order under section 221ZZJ(1)(f), the Authority may pay an amount up to the amount referred to in the order to any person who, in the opinion of the Authority, has suffered loss as a result of any unsatisfactory work that was a reason for the making of the order.

S. 221ZZM (Heading) inserted by No. 34/2013 s. 34(Sch. 1 item 100).

S. 221ZZM inserted by No. 39/1996 s. 5, amended by Nos 75/1998 s. 5(b), 34/2013 s. 34(Sch. 1 item 101).

221ZZN Procedures of Authority sub-committee conducting inquiry or taking disciplinary action

S. 221ZZN (Heading) inserted by No. 34/2013 s. 34(Sch. 1 item 102).

S. 221ZZN inserted by No. 39/1996 s. 5.

(1) Clauses 8(3), (5) and (8) of Schedule 3 apply to any sub-committee of the Authority that is conducting an inquiry under this Division as if—

S. 221ZZN(1) amended by Nos 28/2000 s. 20(d), 34/2013 s. 34(Sch. 1 item 103).

(a) a reference to a panel was a reference to the sub-committee; and

(b) a reference to the Building Appeals Board was a reference to the Victorian Building Authority.

S. 221ZZN (1)(b) amended by Nos 75/1998 s. 5(c), 34/2013 s. 34(Sch. 1 item 104).

* * * * *

S. 221ZZO inserted by No. 39/1996 s. 5, repealed by No. 75/1998 s. 5(d).

Division 12—Review of decisions

221ZZP Review by VCAT

S. 221ZZP
inserted by
No. 39/1996
s. 5,
amended by
No. 52/1998
s. 311(Sch. 1
items 10.12(a),
10.13) (LA
s. 39B(1)).

S. 221ZZP(1)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 105),
21/2017
s. 96(6).

- (1) A person may apply to VCAT for the review of a decision by the Authority in relation to—

S. 221ZZP
(1)(a)
amended by
No. 34/1997
s. 30(c).

- (a) a refusal to license or register him or her or to renew his or her licence or registration;

S. 221ZZP
(1)(b)
amended by
No. 34/1997
s. 30(c).

- (b) any conditions imposed on his or her licence or registration;

S. 221ZZP
(1)(c)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 105),
substituted by
No. 3/2020
s. 34.

- (c) any disciplinary action taken against the person by the Authority including—
- (i) the suspension of a plumber's licence under section 221ZV(4); or
 - (ii) the immediate suspension of a plumber's licence or registration under section 221ZZFA;

Building Act 1993
No. 126 of 1993
Part 12A—Plumbing work

*	*	*	*	*	S. 221ZZZP (1)(d) repealed by No. 52/1998 s. 311(Sch. 1 item 10.12(b)).
(2)	A party to a dispute under section 221ZZN may apply to VCAT for review of a declaration of the Authority under that section.				S. 221ZZZP(2) inserted by No. 52/1998 s. 311(Sch. 1 item 10.13), amended by Nos 75/1998 s. 5(b), 34/2013 s. 34(Sch. 1 item 105), 21/2017 s. 96(6).
(3)	A person may apply to VCAT for review of a declaration of the Authority under section 221ZZO.				S. 221ZZZP(3) inserted by No. 52/1998 s. 311(Sch. 1 item 10.13), amended by Nos 75/1998 s. 5(b), 34/2013 s. 34(Sch. 1 item 105), 21/2017 s. 96(6).
*	*	*	*	*	S. 221ZZZQ inserted by No. 39/1996 s. 5, repealed by No. 52/1998 s. 311(Sch. 1 item 10.14).

Division 13—Administrative matters

S. 221ZZZR
inserted by
No. 39/1996
s. 5,
amended by
No. 75/1998
s. 5(b)(e),
repealed by
No. 34/2013
s. 29, new
s. 221ZZZR
inserted by
No. 1/2023
s. 20.

221ZZZR Licensed and registered plumbers must give information to the Authority for the Register of Plumbers

- (1) The Authority may request in writing that a licensed or registered plumber give to the Authority information in relation to the plumber that is required to be recorded in the Register of Plumbers.
- (2) A licensed or registered plumber must comply with a request under subsection (1) from the Authority within 5 business days after receiving the request.

Penalty: 10 penalty units.

S. 221ZZZS
inserted by
No. 39/1996
s. 5,
repealed by
No. 75/1998
s. 5(d), new
s. 221ZZZS
inserted by
No. 85/2000
s. 10,
amended by
Nos 68/2001
s. 3(3),
46/2008
s. 248(7),
29/2010
s. 48(2),
repealed by
No. 34/2013
s. 30, new
s. 221ZZZS
inserted by
No. 1/2023
s. 20.

221ZZZS Licensed and registered plumbers must notify Authority of changes to information on the Register of Plumbers

A licensed or registered plumber must give the Authority written notice of any change to the information in relation to the plumber required to be recorded in the Register of Plumbers within 14 days after the change occurs.

Penalty: 10 penalty units.

221ZZZT Register of Plumbers

S. 221ZZZT
inserted by
No. 39/1996
s. 5.

- (1) The Registrar must keep a register that contains the details required by subsection (2) in respect of all persons who are—

S. 221ZZZT(1)
amended by
No. 1/2023
s. 13(1).

(a) licensed by the Authority;

S. 221ZZZT
(1)(a)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 106).

(b) registered by the Authority;

S. 221ZZZT
(1)(b)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 106).

(c) licensed or registered by the Registrar under section 221W.

- (2) The Registrar must record in the register the following details in respect of a person—

(a) his or her name, residential and business address and business telephone number;

(b) if the person has applied for and has been granted a registration or licence under this Part, the type of licence or registration the person holds and the classes or types of plumbing work in respect of which the person is so licensed or registered;

S. 221ZZZT
(2)(b)
substituted by
No. 1/2023
s. 13(2)(a).

(ba) if a person has automatic deemed registration to carry out any activities that may be carried out under a licence or registration under this Part, those activities;

S. 221ZZZT
(2)(ba)
inserted by
No. 1/2023
s. 13(2)(a).

(c) his or her licence or registration number;

S. 221ZZZT
(2)(h)
amended by
Nos 75/1998
s. 5(b),
34/2013
s. 34(Sch. 1
item 106),
1/2023
s. 13(2)(b).

- (d) the day on which he or she was first, and last, licensed or registered;
- (e) the day on which his or her licence or registration expires;
- (f) the conditions (if any) to which the licence or registration is subject;
- (g) if he or she is insured, details of the insurance he or she holds for the purposes of this Part;
- (h) details of any disciplinary action taken by the Authority in respect of the person or, in the case of a person referred to in paragraph (ba), by the local registration authority in that person's home State;

S. 221ZZZT
(2)(ha)
inserted by
No. 1/2023
s. 13(2)(c).

- (ha) details of any criminal sanctions imposed on the person;
 - (i) any other details required by the regulations.
- (3) The Registrar may keep the register in any form he or she considers to be appropriate (including in an electronic or mechanical form).
 - (4) The Registrar must remove from the register the details of any person who has not held a current licence or registration within the last 2 years.
 - (5) A certificate certifying as to any matter relating to the contents of the register and purporting to be signed by the Registrar is evidence of the facts stated in the certificate.

221ZZZTA Publication of information on Register of Plumbers

S. 221ZZZTA
inserted by
No. 1/2023
s. 21.

- (1) The Authority must publish on its website the information on the Register of Plumbers that is required by the regulations to be published.
- (2) The Authority may publish on its website the information on the Register of Plumbers that is permitted by the regulations to be published.

221ZZZU Minister may specify work to be specialised plumbing work

S. 221ZZZU
inserted by
No. 39/1996
s. 5.

- (1) The Minister may declare any form of work that requires specialised plumbing skill or knowledge to be carried out safely and competently to be specialised plumbing work for the purposes of this Part.
- (2) A declaration takes effect on the date it is published in the Government Gazette, or on any later date specified in the declaration.
- (3) In making a declaration the Minister must specify—

S. 221ZZZU(3)
amended by
Nos 75/1998
s. 5(b),
31/2007 s. 16,
substituted by
No. 33/2010
s. 47.

- (a) a class or classes of plumbing work or specialised plumbing work in respect of which a person must be licensed or registered to be able to be licensed or registered by the Authority to carry out the specialised plumbing work declared by the declaration; and

S. 221ZZZU
(3)(a)
amended by
No. 34/2013
s. 34(Sch. 1
item 107).

- (b) what qualifications, knowledge or experience a person must have to be able to be licensed or registered by the Authority to carry out

S. 221ZZZU
(3)(b)
amended by
No. 34/2013
s. 34(Sch. 1
item 107).

the specialised plumbing work declared by the declaration.

- (4) A declaration ceases to have any effect 1 year after it first takes effect.
- (5) If all or part of any work that is declared to be specialised plumbing work falls within the description of an existing class of plumbing work, a reference to that class of plumbing work is to be read as if that class did not include the specialised plumbing work, unless the contrary intention appears.

S. 221ZZZV
inserted by
No. 39/1996
s. 5.

221ZZZV Regulations

- (1) The Governor in Council may make regulations for or with respect to—
 - (a) prescribing standards (expressed in terms of performance, energy efficiency, water efficiency, environmental efficiency, types of material, methods of construction, products or otherwise) in relation to plumbing work other than—
 - (i) gasfitting work; and
 - (ii) work on the water supply or sewerage distribution system of a water authority;
 - (ab) the accreditation, certification or authorisation of materials or products in relation to plumbing work, including the labelling, marking or testing of those materials or products;
 - (b) fees for the purposes of this Part (including fees for examinations or assessments conducted by, or on behalf of, the Authority);

S. 221ZZZV
(1)(a)
amended by
Nos 66/2004
s. 15, 31/2007
s. 17(1).

S. 221ZZZV
(1)(ab)
inserted by
No. 31/2007
s. 17(2).

S. 221ZZZV
(1)(b)
amended by
Nos 75/1998
s. 5(b),
36/2008
s. 25(a),
34/2013
s. 34(Sch. 1
item 108).

- (c) prescribing what constitutes specialised plumbing work;
- (d) classes of plumbing work, including, where those classes differ from any classes previously specified, transitional provisions setting out how—
 - (i) the new classes relate to the old classes; and
 - (ii) licences and registrations to carry out the old classes translate into licences and registrations to carry out the new classes;
- (e) the qualifications or experience needed to be eligible to be licensed or registered with respect to a particular class of plumbing work;
- (ea) prescribing a class or classes of plumbing work or specialised plumbing work required to be eligible to be registered or licensed with respect to a particular class of specialised plumbing work;
- (f) examinations or assessments for the purposes of this Part;
- (g) generally regulating and controlling—
 - (i) the carrying out of plumbing work by licensed and registered plumbers;
 - (ii) advertising by licensed and registered plumbers in relation to plumbing work;
- (ga) regulating the construction, installation, alteration, relocation or replacement of a cooling tower or of any part of a cooling tower system;

S. 221ZZZV
(1)(d)
substituted by
No. 36/2008
s. 25(b).

S. 221ZZZV
(1)(ea)
inserted by
No. 33/2010
s. 48.

S. 221ZZZV
(1)(f)
amended by
No. 36/2008
s. 25(a).

S. 221ZZZV
(1)(ga)
inserted by
No. 85/2000
s. 11.

Building Act 1993
No. 126 of 1993
Part 12A—Plumbing work

S. 221ZZZV
(1)(gb)
inserted by
No. 85/2000
s. 11.

(gb) requiring the installation and use of specified devices or equipment in cooling towers or cooling tower systems, including in existing cooling towers and cooling tower systems;

S. 221ZZZV
(1)(gc)
inserted by
No. 31/2007
s. 17(3).

(gc) prescribing offences against this Part and the regulations made under this Part for the purposes of Division 10A;

S. 221ZZZV
(1)(gd)
inserted by
No. 31/2007
s. 17(3).

(gd) prescribing, for the purposes of Division 10A, penalties not exceeding 10 penalty units for the offences prescribed under paragraph (gc);

(h) generally providing for any other matter or thing required or permitted by this Act to be prescribed or necessary to be prescribed to give effect to this Act.

S. 221ZZZV(2)
repealed by
No. 31/2007
s. 17(4).

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S. 221ZZZV(3)
repealed by
No. 21/2017
s. 88.

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S. 221ZZZW
inserted by
No. 39/1996
s. 5,
repealed by
No. 39/1996
s. 29, new
s. 221ZZZW
inserted by
No. 31/2007
s. 18.

221ZZZW Incorporation by reference of Plumbing Code of Australia or other document by regulations

Any regulation made under this Part may apply, adopt or incorporate, either wholly or in part and with or without any modification, any matter contained in the Plumbing Code of Australia or any other document—

- (a) as in force or as issued, published or made at a particular time; or
- (b) as in force or as issued, published or remade from time to time.

Part 13—General enforcement provisions

Division 1—Powers of Minister in relation to councils

222 Order of Minister

If, after due inquiry, the Minister considers that a council or municipal building surveyor has not satisfactorily carried out any function given to the council or building surveyor under this Act or the regulations, the Minister may, by order, direct the council—

- (a) to carry out the function within a specified time; or
- (b) to cause the building surveyor to carry out the function within a specified time, as the case requires.

223 Hearing of council

- (1) Before making an order under section 222, the Minister must give the council concerned an opportunity to be heard.
- (2) The Minister may, by instrument, designate any person or persons—
 - (a) to hear a council or any person representing the council; and
 - (b) to report on that hearing to the Minister; and
 - (c) to make any recommendation to the Minister.
- (3) A hearing under subsection (2) is taken to be the hearing of the council by the Minister for the purposes of subsection (1).

**S. 223(3)
amended by
No. 21/2017
s. 99.**

224 Effect of failure to comply with order

- (1) If a function is not carried out to the satisfaction of the Minister within the time specified in an order under section 222, the Minister may—
 - (a) make any further order that the Minister considers necessary to secure the satisfactory carrying out of the function; or
 - (b) authorise any person to carry out the function.
- (2) If the Minister, or any person on the Minister's behalf, carries out any function under subsection (1), the Minister may by further order direct the council to pay all costs, charges and expenses incurred in carrying out that function and specified in that order (including remuneration of any persons appointed, engaged or employed to carry out that function).
- (3) The Minister may recover the costs, charges and expenses specified in an order under subsection (2) in a court of competent jurisdiction as a debt due to the Crown.

225 Powers of Minister and authorised persons

For the purposes of section 224—

- (a) the Minister and any persons authorised by the Minister have and may exercise all or any of the powers of the council, the municipal building surveyor and the staff of the council in carrying out a function; and
- (b) the Minister may institute and carry on any legal or other proceeding as fully and completely as if the Minister were the council or municipal building surveyor concerned; and

- (c) the Minister may institute proceedings against the council or municipal building surveyor or a member of staff of the council without giving that council, building surveyor or member any notice of action required to be given by any Act relating to councils or local government; and
- (d) the council, the councillors, the municipal building surveyor and members of the staff of the council must assist the Minister and obey all directions given by the Minister in the exercise of any of the powers of the Minister under that section.

226 Minister may seek administrative order

If a council has failed to carry out or cause the carrying out of a function in accordance with an order under section 222 or 223, the Minister has sufficient standing to maintain proceedings for an order in the nature of mandamus or for an order for review under the **Administrative Law Act 1978** to enforce the carrying out of that function by the council or the municipal building surveyor (as the case requires).

227 Other powers not affected

This Division—

- (a) is in aid of and not in derogation from any other powers of the Minister or the Governor in Council; and
- (b) shall not prejudice any other proceeding or remedy against or liability of a council or municipal building surveyor.

Pt 13 Div. 1A
(Heading and
ss 227A–
227D)
inserted by
No. 34/1997
s. 23,
amended by
Nos 34/2013
ss 25, 34(Sch.
1 items 109,
110), 15/2016
ss 34–36,
repealed by
No. 21/2017
s. 45.

Pt 13 Div. 1B
(Heading and
s. 227E)
inserted by
No. 66/2004
s. 16.

S. 227E
inserted by
No. 66/2004
s. 16.

* * * *

Division 1B—Inspections of safety and emergency equipment

227E Powers of inspection of chief officer and municipal building surveyor

- (1) The chief officer and the municipal building surveyor may either jointly or separately inspect—
 - (a) any safety or emergency installations, equipment or services in a building or place of public entertainment to determine whether they are performing and being maintained in accordance with the building regulations or any relevant occupancy permit; or
 - (b) any records or reports relating to the operation and maintenance of any safety or emergency installations, equipment or services in a building or place of public entertainment to determine whether they are being kept or displayed in accordance with the building regulations or any relevant occupancy permit.

- (2) The chief officer must provide the municipal building surveyor with a report of an inspection by the chief officer under subsection (1) within 5 business days of that inspection.
- (3) The municipal building surveyor must ensure that the owner of a building or place of public entertainment that has been inspected in accordance with subsection (1) is provided, within 10 business days of that inspection, with an inspection report signed by the municipal building surveyor.

Division 2—Information gathering and entry powers

Subdivision 1—General

227EA Definition of *municipal building surveyor* for the purposes of this Division

In this Division—

municipal building surveyor means a municipal building surveyor of a council when performing functions that relate to the administration and enforcement by that council of Parts 3, 4, 5, 7 and 8 and the building regulations in the council's municipal district.

Pt 13 Div. 2
(Heading and
ss 228–234)
amended by
Nos 39/1996
s. 8(1)(2),
34/1997
ss 24–27,
18/1998 s. 9,
75/1998 s. 5(f),
66/2004 ss 17,
18, 31/2007
ss 19, 20,
34/2013 s. 31,
15/2016
s. 18(11),
substituted as
Pt 13 Div. 2
(Headings
and
ss 227EA–
234A) by
No. 21/2017
s. 46.

S. 227EA
inserted by
No. 21/2017
s. 46.

S. 227EB
inserted by
No. 21/2017
s. 46.

227EB Warning about giving information that may incriminate a person

If an authorised person requires a natural person to give any information under this Division, the authorised person must inform the person, before or at the time at which the person gives that information, that the person may refuse or fail to give that information if the giving of the information would tend to incriminate the person.

Subdivision 2—Powers to require production of information or documents

S. 227F
inserted by
No. 21/2017
s. 46.

227F Meaning of *authorised person* in this Subdivision

In this Subdivision—

authorised person means any of the following persons—

- (a) the Authority;
- (b) a municipal building surveyor;
- (c) Energy Safe Victoria when performing functions under Part 12A or any regulations made under that Part.

S. 227G
inserted by
No. 21/2017
s. 46.

227G Power to obtain information or documents

- (1) An authorised person may give a person a notice in writing requiring the person to provide information or documents in the custody or control of the person to the authorised person—

(a) if the authorised person has reasonable grounds to suspect that an offence has been committed under this Act or the regulations in relation to the carrying out of building work or plumbing work; or

(ab) if the authorised person is the Authority, and the Authority has reasonable grounds to suspect that an offence has been committed

S. 227G(1)(ab)
inserted by
No. 4/2024
s. 11(1).

under section 43B(1) or (2) of the **Domestic Building Contracts Act 1995**; or

- (b) to determine whether this Act or the regulations have been complied with; or
 - (ba) if the authorised person is the Authority, to determine whether section 43B(1) or (2) of the **Domestic Building Contracts Act 1995** has been complied with; or
 - (c) to assist in the enforcement of safety of buildings and of building and plumbing standards under this Act and the regulations.
- (2) If any documents are produced to an authorised person under this section, the authorised person may make copies of or take extracts from the documents and retain possession of those copies and extracts.

S. 227G(1)(ba)
inserted by
No. 4/2024
s. 11(2).

227H Documents or information may be provided by post

A person who provides a document or information in response to a requirement of an authorised person under this Subdivision may send that document or information to the authorised person by post.

S. 227H
inserted by
No. 21/2017
s. 46.

Subdivision 3—Power to require production of information or documents under court order

227I Meaning of *authorised person* in this Subdivision and interpretation

- (1) In this Subdivision—

authorised person means any of the following persons—

- (a) a VBA inspector;
- (b) a municipal building surveyor;

S. 227I
(Heading)
amended by
No. 4/2024
s. 12(1).

S. 227I
inserted by
No. 21/2017
s. 46,
amended by
No. 4/2024
s. 12(2) (ILA
s. 39B(1)).

- (c) a natural person authorised in accordance with section 228A by a municipal building surveyor to exercise a power under this Subdivision on behalf of the municipal building surveyor;
- (d) a natural person authorised in accordance with section 228A by Energy Safe Victoria to exercise a power under this Subdivision in relation to Part 12A or the regulations made under that Part on behalf of Energy Safe Victoria;
- (e) a compliance auditor appointed under Part 12A;
- (f) a plumbing inspector appointed under Part 12A.

S. 227I(2)
inserted by
No. 4/2024
s. 12(2).

- (2) In this Subdivision a reference to "this Act or the regulations" is taken to be a reference to "this Act or the regulations or section 43B(1) or (2) of the **Domestic Building Contracts Act 1995**" if the relevant authorised person is a VBA inspector.

S. 227J
inserted by
No. 21/2017
s. 46.

227J Authorised person may seek court order

- (1) If an authorised person believes on reasonable grounds that a person may have contravened this Act or the regulations, the authorised person may apply to the Magistrates' Court for an order requiring any person at a time and place specified by the authorised person—
 - (a) to answer orally or in writing any questions put by the authorised person in relation to the alleged contravention; or
 - (b) to supply orally or in writing information required by the authorised person in relation to the alleged contravention; or

- (c) to produce to the authorised person specified documents or documents of a specified class of document relating to the alleged contravention.
- (2) The Magistrates' Court may make the order if the Court is satisfied that there are reasonable grounds to believe that a person may have contravened this Act or the regulations.
- (3) An order must state a day on which the order ceases to have effect.
- (4) If an order does not state a day on which the order ceases to have effect, the order ceases to have effect 28 days after the making of the order.

227K Inspection of documents under court order

S. 227K
inserted by
No. 21/2017
s. 46.

- (1) If any documents are produced to an authorised person under an order made under this Subdivision, the authorised person may do all or any of the following—
 - (a) inspect the documents or authorise a person to inspect the documents;
 - (b) make copies of or take extracts of the documents;
 - (c) seize the documents;
 - (d) secure any seized documents against interference;
 - (e) retain possession of the documents in accordance with this Division.
- (2) An authorised person may only seize documents under subsection (1)(c) if the authorised person considers the documents necessary for the purpose of obtaining evidence for the purpose of any proceedings against any person under this Act or the regulations.

S. 227L
inserted by
No. 21/2017
s. 46.

227L Notification of execution of court order

- (1) An authorised person who executes an order under this Subdivision must, as soon as practicable after the execution of the order, notify the Magistrates' Court in writing of—
 - (a) the time and place of execution; and
 - (b) the documents or classes of document seized; and
 - (c) if documents were seized under section 227K(1)(c) in relation to an alleged contravention other than a contravention for which the order was made, the alleged contravention in relation to which the documents were seized.
- (2) The Magistrates' Court may direct the authorised person to bring before the Court a document to which subsection (1)(c) applies so that the matter may be dealt with according to law.
- (3) The Magistrates' Court may direct that a document brought before it under subsection (2) be returned to its owner, if in the opinion of the Court the return of the document is consistent with the interests of justice.
- (4) A direction under subsection (3) may be subject to any condition the Magistrates' Court considers appropriate.

Subdivision 4—Authorised persons

S. 228
substituted by
No. 21/2017
s. 46.

228 Authorised persons under this Subdivision

- (1) For the purposes of the exercise of the power of entry under section 228D, including any powers relating to that power, an ***authorised person*** means any of the following persons—

- (a) a relevant building surveyor or a natural person authorised in accordance with section 228A by a relevant building surveyor to exercise all or any of the powers referred to in this subsection on behalf of the relevant building surveyor;
 - (b) the chief officer or a natural person authorised by the chief officer to exercise all or any of the powers referred to in this subsection on behalf of the chief officer.
- (2) For the purposes of the exercise of the powers of entry under sections 228E, 228I, 228K and 228M, including any powers relating to those powers, an **authorised person** means any of the following persons—
- (a) a VBA inspector;
 - (b) a municipal building surveyor or a natural person authorised in accordance with section 228A by a municipal building surveyor to exercise all or any of the powers referred to in this subsection on behalf of the municipal building surveyor;
 - (c) a natural person authorised in accordance with section 228A by Energy Safe Victoria to exercise on behalf of Energy Safe Victoria all or any of the powers referred to in this subsection in relation to Part 12A or the regulations made under that Part;
 - (d) a compliance auditor appointed under Part 12A;
 - (e) a plumbing inspector appointed under Part 12A.
- (3) For the purposes of the exercise of the power of entry under section 228J, including any powers relating to that power, an **authorised person** means any of the following persons—

- (a) a VBA inspector;
 - (b) a municipal building surveyor or a natural person authorised in accordance with section 228A by a municipal building surveyor to exercise all or any of the powers referred to in this subsection on behalf of the municipal building surveyor;
 - (c) the chief officer or a natural person authorised by the chief officer to exercise all or any of the powers referred to in this subsection on behalf of the chief officer;
 - (d) a natural person authorised in accordance with section 228A by Energy Safe Victoria to exercise on behalf of Energy Safe Victoria all or any of the powers referred to in this subsection in relation to Part 12A or the regulations made under that Part;
 - (e) a relevant building surveyor or a natural person authorised in accordance with section 228A by a relevant building surveyor to exercise all or any of the powers referred to in this subsection on behalf of the relevant building surveyor;
 - (f) a compliance auditor appointed under Part 12A;
 - (g) a plumbing inspector appointed under Part 12A.
- (4) The powers that may be exercised by the chief officer or Energy Safe Victoria under this Division do not limit or affect any powers of entry or related powers of the chief officer or Energy Safe Victoria under any other Act.

(5) In this section—

relevant building surveyor means—

- (a) a relevant building surveyor that is a natural person; or
- (b) if the relevant building surveyor is a body corporate, the designated building surveyor.

228A Authorisation of persons as authorised persons

S. 228A
inserted by
No. 21/2017
s. 46.

- (1) A municipal building surveyor must not authorise a person to exercise all or any of the powers under this Division on behalf of the municipal building surveyor unless the municipal building surveyor is satisfied that the person to be authorised is appropriately qualified or has successfully completed appropriate training.
- (2) Energy Safe Victoria must not authorise a person to exercise all or any of the powers under this Division on its behalf unless it is satisfied that the person to be authorised is appropriately qualified or has successfully completed appropriate training.
- (3) A relevant building surveyor must not authorise a person to exercise all or any of the powers under this Subdivision on behalf of the relevant building surveyor unless the relevant building surveyor is satisfied that the person to be authorised is appropriately qualified or has successfully completed appropriate training.

228B Authorised person's identification

S. 228B
inserted by
No. 21/2017
s. 46.

- (1) A person referred to in section 228A who authorises another person to exercise all or any of the powers under this Division on behalf of the

S. 228B(1)
amended by
No. 46/2018
s. 62(1).

person must issue documentation that complies with subsection (4) to that authorised person.

S. 228B(2)
amended by
No. 46/2018
s. 62(1).

- (2) The chief officer within the meaning of the **Country Fire Authority Act 1958** who authorises another person to exercise all or any of the powers under this Subdivision on behalf of the chief officer must issue documentation that complies with subsection (4) to that authorised person.

S. 228B(3)
amended by
Nos 46/2018
s. 62(1),
40/2021
s. 53(6).

- (3) The Fire Rescue Commissioner within the meaning of the **Fire Rescue Victoria Act 1958** who authorises another person to exercise all or any of the powers under this Subdivision on behalf of the Fire Rescue Commissioner must issue documentation that complies with subsection (4) to that authorised person.

S. 228B(4)
amended by
No. 46/2018
s. 62(2).

- (4) For the purposes of subsections (1), (2), (3) and (7) the documentation must—

S. 228B(4)(a)
amended by
No. 46/2018
s. 62(3).

- (a) display a photograph of the person unless the person has been issued with a registration card; and
- (b) state the person's name; and
- (c) state the fact that the person is an authorised person within the meaning of section 228.

S. 228B(5)
inserted by
No. 46/2018
s. 62(4).

- (5) The identification of an authorised person who is acting on behalf of a municipal building surveyor, Energy Safe Victoria, a relevant building surveyor or the chief officer is—
- (a) documentation that complies with subsection (4); and
 - (b) if the authorised person has been issued with a registration card, that card.

(6) The identification of a municipal building surveyor or a relevant building surveyor when exercising a power as an authorised person under this Division is—

S. 228B(6)
inserted by
No. 46/2018
s. 62(4),
substituted by
No. 1/2023
s. 14.

(a) a registration card; or

(b) in the case of a person who has automatic deemed registration as a building surveyor, evidence of the person's home State registration.

(7) The identification of the chief officer when exercising a power as an authorised person under this Division must be in the form of documentation that complies with subsection (4).

S. 228B(7)
inserted by
No. 46/2018
s. 62(4).

228C Production of identification

S. 228C
inserted by
No. 21/2017
s. 46.

(1) An authorised person must produce the authorised person's identification for inspection—

(a) before exercising a power under this Act or the regulations; and

(b) at any time during the exercise of a power under this Act or the regulations if asked to do so.

Penalty: 1 penalty unit.

(2) Subsection (1) does not apply to—

(a) a requirement made by post; or

(b) the exercise of a power of entry under section 228I(1).

* * * * *

S. 228C(3)
repealed by
No. 46/2018
s. 63.

Subdivision 5—Entry powers

S. 228D
inserted by
No. 21/2017
s. 46.

228D Power of entry—inspections required or authorised by this Act or regulations

- (1) Subject to subsections (2) and (3), an authorised person may enter any building or land for the purpose of carrying out any inspection authorised or required by this Act or the regulations of—
 - (a) the building or land; or
 - (b) a place of public entertainment; or
 - (c) any equipment, installation, service, records or reports relating to the building or to the place of public entertainment; or
 - (d) building work or plumbing work.
- (2) An entry of a building or land under subsection (1) may be carried out at any reasonable time unless the entry relates to a building used for residential purposes.
- (3) Subject to subsection (4), an authorised person must not enter any part of a building used for residential purposes under subsection (1) unless the authorised person obtains the written consent of the occupier of the building to enter and inspect the building at a time agreed to by the occupier.
- (4) If the purpose of an inspection by a relevant building surveyor under subsection (1) is to inspect building work that is being carried out in or on a building or land used for residential purposes under a building permit, in order to determine if the work complies with this Act, the building regulations or the permit—
 - (a) the relevant building surveyor does not need to obtain consent under subsection (3) to enter and inspect the building; and

- (b) the entry and inspection of the building or land must be carried out at a reasonable time.
- (5) An authorised person must inform the occupier of the building or land (if any) of the purpose of the inspection to be carried out at the building or land—
 - (a) in the case of a building used for residential purposes, before obtaining written consent under subsection (3); and
 - (b) in any other case, before or at the time of entering the building or land.
- (6) An authorised person who exercises a power of entry of a building or land under this section may—
 - (a) inspect the building or land and any thing on the building or land; and
 - (ab) for the purposes of an inspection under paragraph (a), cause any building work (including any building product or material) to be demolished, opened or cut into or tested if reasonably required to facilitate the inspection; and
 - (b) take photographs (including video recordings) or make sketches of the building or land or the building work or plumbing work concerned; and
 - (c) to the extent that it is reasonably necessary to determine compliance with this Act or the regulations, require a person to produce documents to the authorised person relating to building work or plumbing work or the work of a building practitioner or a plumber.
- (7) If a person produces a document to an authorised person in accordance with subsection (6)(c), the authorised person may examine the document and

S. 228D(6)(ab)
inserted by
No. 46/2018
s. 64(1).

make copies of, or take extracts from, the document.

S. 228D(7A)
inserted by
No. 46/2018
s. 64(2).

(7A) For the purposes of subsection (6)(ab)—

- (a) testing of building work may include the destructive testing of any building product or material used in the building work if the authorised person believes on reasonable grounds that the use of the building product or material is connected with a contravention of this Act or the regulations; and
- (b) the authorised person—
 - (i) may conduct testing, in accordance with the regulations (if any), of a building product or material used in the building work at the location of the building work being inspected; or
 - (ii) may take a sample of the building product or material and arrange for destructive testing of that sample to be conducted by a prescribed testing authority.

(8) If an authorised person exercises a power of entry under this section without the occupier being present the authorised person must, on leaving the building or land, leave a notice setting out—

- (a) the time of entry; and
- (b) the purpose of entry; and
- (c) a description of things done while in or on the building or land; and
- (d) the time of departure; and
- (e) the procedure for contacting the authorised person for further details of the entry.

(9) A notice under subsection (8) may be in a form approved by the Authority.

228E Entry for monitoring and other purposes

S. 228E
inserted by
No. 21/2017
s. 46.

- (1) For the purposes of determining whether this Act or the regulations are being complied with or for assisting in the enforcement of the safety of buildings and of building and plumbing standards under this Act, an authorised person may enter and search any building or land at which the authorised person believes on reasonable grounds—
- (a) a person is conducting a business relating to the building industry or plumbing industry; or
 - (b) a person is keeping a record or document that—
 - (i) is required to be kept by this Act or the regulations; or
 - (ii) may show whether or not this Act or the regulations are being complied with; or
 - (c) building work or plumbing work is being, or has been, carried out.
- (2) A power under subsection (1) must not be exercised in or on any part of a building that is used for residential purposes unless the authorised person obtains the consent of the occupier of the building.
- (3) An authorised person may enter and search a building or land under subsection (1) with the assistance of any person necessary to provide technical assistance to the authorised person.
- (4) An authorised person who enters and searches any building or land under this section may do all or any of the following—
- (a) examine any thing found in or on the building or land;

S. 228E(4)(da)
inserted by
No. 46/2018
s. 65.

S. 228E(4)(db)
inserted by
No. 46/2018
s. 65.

- (b) examine any building work or plumbing work that has or is being carried out in or on the building or land;
- (c) seize any thing found in or on the building or land or secure any thing found in or on the building or land against interference, if the authorised person believes on reasonable grounds that the thing is connected with a contravention of this Act or the regulations;
- (d) take and keep samples of any thing found in or on the building or land, if the authorised person believes on reasonable grounds that the thing is connected with a contravention of this Act or the regulations;
- (da) conduct, in accordance with the regulations (if any), destructive testing on a building product or material examined in or on the building or land, if the authorised person believes on reasonable grounds that the use of the building product or material is connected with a contravention of this Act or the regulations;
- (db) arrange, in accordance with the regulations (if any), for destructive testing to be conducted by a prescribed testing authority on any building product or material seized or sampled from the building or land;
- (e) require a person to produce any document in or on the building or land for examination and, if the authorised person believes on reasonable grounds that the document is connected with an alleged contravention of this Act or the regulations—

- (i) examine, make copies or take extracts from the document, or arrange for the making of copies or the taking of extracts; and
 - (ii) remove the document for so long as is reasonably necessary to make copies or take extracts from the document;
 - (f) make any still or moving image, audio recording or audiovisual recording;
 - (g) bring any equipment onto or into the building or land that the authorised person believes on reasonable grounds is necessary for the examination or processing of things found at the building or land in order to determine whether they are things that may be seized under this section;
 - (h) require by written notice any of the following persons to attend any inspection of plumbing work or building work under this section that was carried out or supervised by that person—
 - (i) a person who is or was a licensed or registered plumber;
 - (ii) a person who is or was a registered building practitioner;
 - (iii) a person to whom a certificate of consent was issued under Division 3A of Part 3.
- (5) An authorised person exercising the power under subsection (4)(h) may require a person to attend an inspection at a mutually agreed time or if a time is not mutually agreed to at a reasonable time.

- (6) A power under subsection (1) relating to a building or land (other than a building used for residential purposes) must be exercised—
 - (a) between the hours of 8 a.m. to 6 p.m.; or
 - (b) when a business conducted at the building or land is open for business; or
 - (c) when building work or plumbing work is being carried out at the building or land; or
 - (d) at any other time with the written consent of the occupier of the building or land.
- (7) If an authorised person exercises a power of entry under this section without the owner or occupier being present the authorised person must, on leaving the building or land, leave a notice setting out—
 - (a) the time of entry; and
 - (b) the purpose of entry; and
 - (c) a description of things done while in or on the building or land; and
 - (d) the time of departure; and
 - (e) the procedure for contacting the authorised person for further details of the entry.
- (8) A notice under subsection (7) may be in a form approved by the Authority.

S. 228F
inserted by
No. 21/2017
s. 46.

228F Notice before entry and search under section 228E with consent

An authorised person must not enter and search any building under section 228E where consent is required to enter unless, before the occupier consents to the entry and search, the authorised person has informed the occupier—

- (a) of the purpose of the search; and

- (b) that the occupier may refuse to give consent to the entry and search or to the seizure of any thing found during the search; and
- (c) that the occupier may refuse to give consent to the taking of any sample of a thing or any copy or extract from a document found in or on the building during the search; and
- (d) that the occupier may refuse to produce any document required to be produced for examination; and
- (e) that any thing seized or taken during the search with the consent of the occupier may be used in evidence in proceedings.

228G Acknowledgement of consent to entry and search under section 228E

S. 228G
inserted by
No. 21/2017
s. 46.

- (1) If an occupier of a building consents to the entry and search of the building by an authorised person under section 228E, the authorised person must, before entering the building, ask the occupier to sign an acknowledgment.
- (2) For the purpose of subsection (1), the acknowledgment must state—
 - (a) that the occupier has been informed—
 - (i) of the purpose of the search; and
 - (ii) that the occupier may refuse to give consent to the entry and search or to the seizure of any thing found during the search; and
 - (iii) that the occupier may refuse to give consent to the taking of any sample of a thing or any copy or extract from a document found in or on the building during the search; and

- (iv) that the occupier may refuse to produce any document required to be produced for examination; and
 - (v) that any thing seized or taken during the search with the consent of the occupier may be used in evidence in proceedings; and
 - (b) that the occupier has consented to the entry and search; and
 - (c) the date and time that the occupier consented.
- (3) If an occupier of a building consents to the seizure or taking of any thing during a search of the building by an authorised person, the authorised person must, before seizing or taking the thing, ask the occupier to sign an acknowledgement.
- (4) For the purposes of subsection (3), the acknowledgment must state—
- (a) that the occupier has consented to the seizure or taking of the thing; and
 - (b) the date and time that the occupier consented.
- (5) An authorised person must give a copy of a signed acknowledgement to the occupier before leaving the building.
- (6) If, in any proceeding, a signed acknowledgment is not produced to the court or a tribunal, it must be presumed, until the contrary is proved, that the occupier did not consent to the entry and search or to the seizure or the taking of the thing.

228H Use or seizure of electronic equipment during search under section 228E

S. 228H
inserted by
No. 21/2017
s. 46.

- (1) If an authorised person, during a search under section 228E—
- (a) finds a thing in or on the building or land that is or includes a disc, tape or other device for the storage of information; and
 - (b) believes that there is in or on the building or land equipment that may be used with the disc, tape or other storage device; and
 - (c) believes on reasonable grounds that information stored in the disc, tape or other storage device—
 - (i) may be relevant to determine whether this Act or the regulations have been complied with; or
 - (ii) may assist in enforcement of safety of buildings and of building and plumbing standards under this Act—
- the authorised person may operate, or may require the occupier of the building or land or an employee of the occupier to operate, the equipment to access the information.
- (2) If the authorised person believes on reasonable grounds that a disc, tape or other storage device in or on the building or land contains, stores or is otherwise used in the transmission of information that—
- (a) may be relevant to determine whether this Act or the regulations have been complied with; or
 - (b) may assist in enforcement of safety of buildings and of building and plumbing standards under this Act—

the authorised person may—

- (c) put the information in a documentary form and seize the documents so produced; or
 - (d) copy the information to another disc, tape or other storage device and remove that disc, tape or storage device from the building or land; or
 - (e) if it is not practicable to put the information in a documentary form or to copy the information, seize the disc, tape or other storage device and the equipment that enables the information to be accessed.
- (3) An authorised person must not operate or seize equipment for a purpose set out in this section unless the authorised person believes on reasonable grounds that the operation can be carried out without damage to the equipment.

S. 228I
inserted by
No. 21/2017
s. 46.

228I Entry of building or land open to the public

- (1) An authorised person may enter and inspect any part of a building or land that is, at the time of the entry and inspection, open to the public.
- (2) An authorised person who exercises a power of entry of a building or land under subsection (1) may, to the extent that it is reasonably necessary to determine compliance with this Act or the regulations, require a person at the building or land to produce documents to the authorised person.
- (3) If a person produces a document to an authorised person in accordance with a requirement under this section, the authorised person may make copies of, or take extracts from, the document.

228J Entry in emergency

S. 228J
inserted by
No. 21/2017
s. 46.

- (1) Despite any other power of entry under this Subdivision, an authorised person may enter a building or land without a search warrant at any time if—
 - (a) the safety of the public or the occupants of the building or land is at risk; or
 - (b) an emergency order under Part 8 applies to the building or land; or
 - (c) an emergency plumbing order under section 221ZZF applies to the building or land.
- (2) An authorised person may enter and search a building or land under subsection (1) with the assistance of any other person necessary to provide technical assistance to the authorised person.

Note

Under section 229H an authorised person may also request the assistance of a member of the police force.

- (3) If an authorised person, after entering a building or land under subsection (1), considers that a thing in or on the building or land presents a risk to the life, safety or health of any person or poses a risk of significant damage to any property the authorised person may do all or any of the following—
 - (a) seize the thing;
 - (b) secure the seized thing against interference;
 - (c) require the occupier to remove the thing;
 - (d) examine, take and keep samples of the thing;

S. 228J(3)(d)
amended by
No. 46/2018
s. 66(1).

S. 228J(3)(e)
inserted by
No. 46/2018
s. 66(2).

(e) conduct, in accordance with the regulations (if any), destructive testing on a building product or material examined in or on the building or land, if the authorised person believes on reasonable grounds that the use of the building product or material is connected with a contravention of this Act or the regulations;

S. 228J(3)(f)
inserted by
No. 46/2018
s. 66(2).

(f) arrange, in accordance with the regulations (if any), for destructive testing to be conducted by a prescribed testing authority on a building product or material seized or sampled from the building or land.

(4) In addition to the powers under subsection (3), if the authorised person believes on reasonable grounds that it is necessary to do so, the authorised person may do all or any of the following—

(a) in the case of any document in or on the building or land—

(i) require a person to produce the document for examination;

(ii) examine, make copies or take extracts from the document, or arrange for the making of copies or the taking of extracts;

(iii) remove the document for so long as is reasonably necessary to make copies or take extracts from the document;

(b) make any still or moving image, audio image or audiovisual recording.

(5) If an authorised person exercises a power of entry under this section in the absence of the owner or occupier the authorised person must, if reasonably practicable, on leaving the building or land, leave a notice setting out—

- (a) the time of entry; and
- (b) the purpose of entry; and
- (c) a description of things done while at the building or land; and
- (d) the time of departure; and
- (e) the procedure for contacting the authorised person for further details of the entry.

228K Entry with warrant for monitoring buildings or land used for residential purposes

S. 228K
inserted by
No. 21/2017
s. 46.

- (1) An authorised person may apply to a magistrate for the issue of a warrant authorising the authorised person to enter a building or land used for residential purposes if the authorised person believes on reasonable grounds that entry to the building or land is necessary—
 - (a) to determine whether a building, building work or plumbing work complies with this Act or the regulations; or
 - (b) to assist in the enforcement of safety of buildings and of building and plumbing standards under this Act.
- (2) The magistrate may issue a warrant under subsection (1) if the magistrate is satisfied—
 - (a) by the evidence, on oath or by affidavit, of the matters set out in subsection (1); and
 - (b) that entry is warranted in all the circumstances.

228L Form and content of warrant

S. 228L
inserted by
No. 21/2017
s. 46.

- (1) A warrant issued under section 228K(2) may authorise an authorised person named in the warrant—
 - (a) to enter and inspect the building or land; or

- (b) to examine any thing found at the building or land; or
- (c) to take photographs (including video recordings) or make sketches of any thing at the building or land; or
- (d) to the extent that it is reasonably necessary to determine whether this Act or the regulations have been complied with or to assist in the enforcement of safety of buildings and of building and plumbing standards under this Act, to do any one or more of the following—
 - (i) take and keep samples of any thing, if the authorised person believes on reasonable grounds that the thing is connected with a contravention of this Act or the regulations;
 - (ii) require the occupier of the building or land to produce any document to the authorised person and if the authorised person believes on reasonable grounds that the document is connected with a contravention of this Act or the regulations—
 - (A) examine, copy or take extracts from the document, or arrange for the making of copies or the taking of extracts; and
 - (B) remove the document for so long as is reasonably necessary to make copies or take extracts from the document; or
- (e) to conduct, in accordance with the regulations (if any), destructive testing on a building product or material examined in or on the building or land, if the authorised

S. 228L
(1)(d)(ii)(B)
amended by
No. 46/2018
s. 67(1).

S. 228L(1)(e)
inserted by
No. 46/2018
s. 67(2).

person believes on reasonable grounds that the use of the building product or material is connected with a contravention of this Act or the regulations; or

- (f) to arrange, in accordance with the regulations (if any), for destructive testing to be conducted by a prescribed testing authority on a building product or material sampled from the building or land, if the authorised person believes on reasonable grounds that the use of the building product or material is connected with a contravention of this Act or the regulations.

S. 228L(1)(f)
inserted by
No. 46/2018
s. 67(2).

- (2) A warrant issued under section 228K(2) must state—

- (a) the purpose for which the warrant is required; and
(b) the building or land to be inspected; and
(c) any conditions to which the warrant is subject; and
(d) that the entry is authorised to be made at any time of the day or night or during specified hours of the day or night; and
(e) a day, not later than 28 days after the issue of the warrant, on which the warrant ceases to have effect.

228M Entry with search warrant to find evidence of contravention

S. 228M
inserted by
No. 21/2017
s. 46.

- (1) An authorised person may apply to a magistrate for the issue of a search warrant in relation to a particular building or land if the authorised person suspects on reasonable grounds that—

- (a) there is, or may be within the next 72 hours, in the building or on the land evidence that a person may have contravened this Act or the regulations; or
 - (b) there is evidence in digital or electronic format that a person may have contravened this Act or the regulations that is accessible from the building or land.
- (2) If a magistrate is satisfied by the evidence, on oath or by affidavit, that there are reasonable grounds to suspect that—
- (a) there is, or may be within the next 72 hours, in the building or on the land a thing, or thing of a particular kind, connected with a contravention of this Act or the regulations; or
 - (b) there is information in digital or electronic format connected with a contravention of this Act or the regulations that is accessible from the building or land—

the magistrate may issue the search warrant in accordance with the **Magistrates' Court Act 1989**.

S. 228N
inserted by
No. 21/2017
s. 46.

228N Form and content of search warrants

- (1) A search warrant issued under section 228M(2) may authorise an authorised person named in the warrant to enter a building or land specified in the warrant, if necessary by force, and to do any of the following—
- (a) if the authorised person believes on reasonable grounds that a thing, or thing of a particular kind, named or described in the warrant is connected with the alleged contravention—
 - (i) search for the thing; or

- (ii) seize the thing; or
- (iii) secure the thing against interference; or
- (iv) examine, inspect and take and keep samples of the thing; or
 - S. 228N (1)(a)(iv) amended by No. 46/2018 s. 68(1).
- (v) conduct, in accordance with the regulations (if any), destructive testing on a building product or material examined in or on the building or land; or
 - S. 228N (1)(a)(v) inserted by No. 46/2018 s. 68(2).
- (vi) arrange, in accordance with the regulations (if any), for destructive testing to be conducted by a prescribed testing authority on a building product or material seized or sampled from the building or land;
 - S. 228N (1)(a)(vi) inserted by No. 46/2018 s. 68(2).
- (b) in the case of any document, or a document of a particular kind, named or described in the warrant, if the authorised person believes on reasonable grounds that the document is connected with the alleged contravention—
 - (i) require a person to produce the document for inspection; or
 - (ii) examine, make copies or take extracts from the document, or arrange for the making of copies or the taking of extracts; or
 - (iii) remove the document for so long as is reasonably necessary to make copies or take extracts from the document;
- (c) make an image of the hard drive of a computer, or a computer of a particular kind, named or described in the warrant, if the authorised person believes on reasonable grounds that information contained on the

- hard drive is connected with the alleged contravention;
- (d) in the case of information in electronic or digital format described in the warrant that is accessible from the premises, if the authorised person believes on reasonable grounds that the information is connected with the alleged contravention—
- (i) access the information via any computer or other electronic device located on the premises; or
 - (ii) download or make an electronic copy of that information; or
 - (iii) make or produce a physical copy of that information;
- (e) make any still or moving image, audio recording or audiovisual recording of any thing of a particular kind named or described in the warrant, if the authorised person believes on reasonable grounds that it is connected with the alleged contravention.
- (2) A search warrant issued under section 228M(2) may authorise, in addition to an authorised person, any other person named or otherwise identified in the warrant to execute the warrant.
- (3) A search warrant issued under section 228M(2) must state—
- (a) the purpose for which the search is required and the nature of the alleged contravention; and
 - (b) the building or land to be searched; and
 - (c) a description of the thing or document for which the search is to be made; and

- (d) any conditions to which the warrant is subject; and
 - (e) whether entry is authorised to be made at any time of the day or night or during specified hours of the day or night; and
 - (f) a day, not later than 28 days after the issue of the warrant, on which the warrant ceases to have effect.
- (4) Except as provided by this Act, the rules to be observed with respect to search warrants under the **Magistrates' Court Act 1989** extend and apply to warrants issued under section 228M(2).

228O Seizure of things not mentioned in the warrant

- (1) A search warrant issued under section 228M(2) authorises an authorised person named in the warrant, in addition to the seizure of any thing of the kind described in the warrant, to seize or take a sample of any thing which is not of the kind described in the warrant if—
- (a) the authorised person believes on reasonable grounds that the thing—
 - (i) is of a kind which could have been included in a search warrant issued under section 228M(2); and
 - (ii) will afford evidence about a contravention of this Act or the regulations; and
 - (b) in the case of the seizure of a thing, the authorised person believes on reasonable grounds that it is necessary to seize that thing in order to prevent its concealment, loss or destruction or its use in the contravention of this Act.

S. 228O
inserted by
No. 21/2017
s. 46,
amended by
No. 46/2018
s. 69 (ILA
s. 39B(1)).

S. 228O(2)
inserted by
No. 46/2018
s. 69.

- (2) If a thing seized or sampled by an authorised person under subsection (1) is a building product or material, the authorised person may—
 - (a) conduct, in accordance with the regulations (if any), destructive testing on the building product or material; or
 - (b) arrange, in accordance with the regulations (if any), for destructive testing to be conducted on the building product or material by a prescribed testing authority.

S. 228P
inserted by
No. 21/2017
s. 46.

228P Warrant may authorise the giving of a direction requiring assistance from person with knowledge of a computer or other electronic device

- (1) This section applies if a magistrate is satisfied by evidence, on oath or by affidavit, that there are reasonable grounds to believe that there is information in digital or electronic format connected with a contravention of this Act or the regulations that is accessible from a particular building or land.
- (2) Subject to subsection (3), a warrant issued by the magistrate under section 228M(2) may authorise the authorised person named in the warrant to require a person to provide any information or assistance that is reasonable and necessary to allow the authorised person or another person to do one or more of the following things—
 - (a) access information held in, or accessible from, any computer or other electronic device located on the premises;
 - (b) download or make an electronic copy of that information;
 - (c) make or produce a physical copy of that information.

- (3) The authorised person may require a person to provide the information or assistance referred to in subsection (2) if the person—
- (a) is one of the following—
 - (i) the person alleged to have contravened this Act or the regulations;
 - (ii) the owner or lessee of the computer or other electronic device;
 - (iii) an employee of the owner or lessee of the computer or other electronic device;
 - (iv) a person engaged under a contract for services by the owner or lessee of the computer or other electronic device; and
 - (b) has relevant knowledge of—
 - (i) the computer or other electronic device or a computer network of which the computer or device forms or formed part; or
 - (ii) measures applied to protect information held in, or accessible from, the computer or other electronic device.

228Q Announcement before entry

- (1) Before executing a warrant issued under section 228K(2) or 228M(2), the authorised person named in the warrant or a person assisting the authorised person—
- (a) must announce that the person is authorised by the warrant to enter the building or land; and
 - (b) give any person at the building or land an opportunity to allow entry to the building or land.

S. 228Q
inserted by
No. 21/2017
s. 46.

(2) The authorised person or a person assisting the authorised person is not required to comply with subsection (1) if the person believes on reasonable grounds that immediate entry to the building or land is required to ensure—

- (a) the safety of any person; or
- (b) that the effective execution of the warrant is not frustrated.

S. 228R
inserted by
No. 21/2017
s. 46.

228R Copy of warrant to be given to occupier

If the occupier or another person who apparently represents the occupier is present at a building or land when a warrant issued under section 228K(2) or 228M(2) is being executed, the authorised person must—

- (a) produce the authorised person's identity card for inspection by that person; and
- (b) give to that person a copy of the execution copy of the warrant.

Subdivision 6—Provisions relating to powers under this Division

S. 229
substituted by
No. 21/2017
s. 46.

229 Powers of authorised person to require information when exercising power of entry

An authorised person who exercises a power of entry of a building or land under Subdivision 5 may, to the extent that it is reasonably necessary to determine compliance with this Act or the regulations, require a person at the building or land—

- (a) to give information to the authorised person, orally or in writing; and
- (b) to give reasonable assistance to the authorised person.

229A Receipt must be given for any thing seized

S. 229A
inserted by
No. 21/2017
s. 46.

- (1) An authorised person must not seize a thing under this Division apparently in the possession or custody of a person unless the authorised person makes out and tenders to the person a receipt for the thing seized that—
 - (a) identifies the thing; and
 - (b) states the name of the authorised person and the reason why the thing is being seized.
- (2) If an authorised person is unable to discover the identity of—
 - (a) the lawful owner of a thing seized; or
 - (b) the person from whose custody a thing is seized—

the authorised person must leave the receipt with, or post it to, the owner of the building or land from which the thing was seized.

229B Certified copies of seized documents

S. 229B
inserted by
No. 21/2017
s. 46.

- (1) If an authorised person retains possession of a document seized from a person under this Division, the authorised person must give the person, as soon as practicable after the seizure, a copy of the document certified as correct by the authorised person.
- (2) A copy of a document certified under subsection (1) is to be received in all courts and tribunals to be evidence of equal validity to the original.

229C Retention and return of seized documents or things

S. 229C
inserted by
No. 21/2017
s. 46.

- (1) If an authorised person seizes a document or other thing under this Division, the authorised person must take reasonable steps to return the document or thing to the person from whom it was seized if the reason for its seizure no longer exists.

- (2) If the document or thing seized has not been returned within 3 months after it was seized, the authorised person must take reasonable steps to return it unless—
- (a) proceedings for the purpose for which the document or thing was retained have commenced within that 3 month period and those proceedings (including any appeal) have not been completed; or
 - (b) the Magistrates' Court makes an order under section 229D extending the period during which the document or thing may be retained.
- (3) This section does not apply to—
- (a) a sample taken by an authorised person in the exercise of a power under this Division; or
 - (b) a thing seized by an authorised person, and subjected to destructive testing, in the exercise of a power under this Division.

S. 229C(3)
substituted by
No. 46/2018
s. 70.

S. 229D
inserted by
No. 21/2017
s. 46.

229D Magistrates' Court may extend 3 month period for retention of document or thing

- (1) If an authorised person seizes a document or other thing under this Division, the authorised person may apply to the Magistrates' Court for an order for an extension, not exceeding 3 months, of the period for which the authorised person may retain the document or thing.
- (2) An application under subsection (1) must be made—
- (a) within 3 months after seizing a document or other thing under this Division; or
 - (b) if an extension has been granted under this section, before the end of the period of the extension.

- (3) The Magistrates' Court may make the order if it is satisfied that—
- (a) it is in the interests of justice; and
 - (b) the total period of retention does not exceed 12 months; and
 - (c) retention of the document or other thing is necessary—
 - (i) for the purposes of an investigation into whether a contravention of this Act or the regulations has occurred; or
 - (ii) to enable evidence of a contravention of this Act or the regulations to be obtained for the purposes of a proceeding under this Act.
- (4) At least 7 days prior to the hearing of an application under this section, notice of the application must be sent to the owner of the document or thing described in the application.

229E Taking samples

S. 229E
inserted by
No. 21/2017
s. 46.

- (1) If an authorised person proposes to take a sample in the exercise of a power under this Division, the authorised person must advise the person in possession of the sample of the reason why the sample is being taken.
- (2) The authorised person, at the request of the person from whom the sample was taken, must give part of the sample taken to that person.
- (3) If an authorised person takes a sample in the exercise of a power under this Division, the authorised person must return the sample to the person from whom it was taken within 28 days after the sample was taken, if the sample is not required for the purposes of proceedings under this Act or the regulations.

S. 229E(4)
inserted by
No. 46/2018
s. 71.

- (4) Subsection (3) does not apply to a sample taken by an authorised person, and subjected to destructive testing, in the exercise of a power under this Division.

S. 229F
inserted by
No. 21/2017
s. 46.

229F Refusal or failure to comply with requirement

A person must not, without reasonable excuse, refuse or fail to comply with a requirement of an authorised person exercising a power under this Division.

Penalty: 60 penalty units, in the case of a natural person;
300 penalty units, in the case of a body corporate.

S. 229G
inserted by
No. 21/2017
s. 46.

229G Protection against self-incrimination

- (1) It is a reasonable excuse for a natural person to refuse or fail to give information, including information required to be given under section 246(2), or do any other thing that the person is required to do by or under this Division, if the giving of the information or the doing of that other thing would tend to incriminate the person.
- (2) Despite subsection (1), it is not a reasonable excuse for a natural person to refuse or fail to produce a document that the person is required to produce by or under this Division, if the production of the document would tend to incriminate the person.
- (3) Despite subsection (1), it is not a reasonable excuse for a natural person to refuse or fail to provide information or assistance that a person is required under section 228P to provide, if the provision of the information or assistance would tend to incriminate the person.

229H Police to assist authorised persons

An authorised person exercising a power under this Division may request the assistance of a member of the police force who may assist the authorised person to take any action authorised by this Division.

S. 229H
inserted by
No. 21/2017
s. 46.

229I Impersonation of authorised person

A person must not impersonate an authorised person carrying out a function under this Part.

Penalty: 60 penalty units.

S. 229I
inserted by
No. 21/2017
s. 46.

229J Confidentiality

- (1) An authorised person must not give to any other person, whether directly or indirectly, any information gained in the exercise of powers as an authorised person under this Part.

Penalty: 60 penalty units.

S. 229J
inserted by
No. 21/2017
s. 46.

- (2) Despite subsection (1), information may be given—

- (a) to the extent necessary—
- (i) to carry out functions under this Act or the regulations; or
 - (ii) in connection with the administration or enforcement of this Act or the regulations; or
 - (iii) to give any information the authorised person is authorised, permitted or required to give under this Act or any other Act or the regulations under this Act; or
- (b) for the purpose of any legal proceedings arising out of this Act or the regulations, or of any report of those proceedings; or
- (c) with the consent of the Minister.

Subdivision 7—Complaints and register of entry powers

S. 230
substituted by
No. 21/2017
s. 46.

230 Register of exercise of powers of entry

- (1) The Authority must keep a register containing the prescribed information relating to the exercise of a power of entry under Subdivision 5 by any of the following authorised persons referred to in section 228—
 - (a) a VBA inspector;
 - (b) a compliance auditor appointed under Part 12A;
 - (c) a plumbing inspector appointed under Part 12A.
- (2) A council must keep a register containing the prescribed information relating to the exercise of a power of entry under Subdivision 5 by any of the following authorised persons referred to in section 228—
 - (a) a municipal building surveyor of that council or a person authorised by a municipal building surveyor of that council to act on behalf of the municipal building surveyor;
 - (b) a relevant building surveyor, who is a municipal building surveyor, or a person authorised by the relevant building surveyor to act on behalf of the relevant building surveyor.
- (3) Energy Safe Victoria must keep a register containing the prescribed information relating to the exercise of a power of entry under Subdivision 5 by a person acting on behalf of Energy Safe Victoria.

- (4) A relevant building surveyor, who is a private building surveyor, must keep a register containing the prescribed information relating to the exercise of a power of entry under Subdivision 5 by the relevant building surveyor or a person authorised by the relevant building surveyor to act on behalf of the relevant building surveyor.
- (5) The Authority may inspect a register required to be kept by a person under this section.
- (6) The occupier of a building or land, in respect of which a power of entry under Subdivision 5 has been exercised, may request that the person required to keep a register under this section containing information about the exercise of that power provides an extract to the occupier of that information.
- (7) A person required to keep a register under this section must—
 - (a) keep the prescribed information relating to each exercise of a power of entry under Subdivision 5 for 10 years after the date of that entry; and
 - (b) make the register available for inspection by the Authority on the request of the Authority at a time agreed to between the person and the Authority; and
 - (c) provide an extract under subsection (6) if so requested.

231 Complaints to the Authority

Any person may complain to the Authority about the exercise of a power—

- (a) under Subdivision 2, by the Authority; or

S. 231
substituted by
No. 21/2017
s. 46.

(b) under this Division, by any of the following authorised persons—

- (i) a VBA inspector;
- (ii) a compliance auditor or a plumbing inspector appointed under Part 12A;
- (iii) a relevant building surveyor, who is a private building surveyor;
- (iv) a relevant building surveyor, who is a municipal building surveyor;
- (v) a person authorised by a relevant building surveyor to act on behalf of the relevant building surveyor.

S. 232
substituted by
No. 21/2017
s. 46.

232 Complaints to a council

Any person may complain to a council about the exercise of a power under this Division by a municipal building surveyor of that council or a person authorised by the municipal building surveyor to act on behalf of the municipal building surveyor.

S. 233
substituted by
No. 21/2017
s. 46.

233 Complaints to Energy Safe Victoria

Any person may complain to Energy Safe Victoria about the exercise of a power—

- (a) under Subdivision 2 by Energy Safe Victoria; or
- (b) under this Division by a person authorised to act on behalf of Energy Safe Victoria.

S. 234
substituted by
No. 21/2017
s. 46.

234 Complaints relating to the chief officer

- (1) Any person may complain to the Country Fire Authority within the meaning of the **Country Fire Authority Act 1958** about the exercise of a power under this Division—
 - (a) by the chief officer within the meaning of that Act; or

(b) by a person authorised by the chief officer to act on behalf of the chief officer under section 228(1) or (3).

(2) Any person may complain to Fire Rescue Victoria established under the **Fire Rescue Victoria Act 1958** about the exercise of a power under this Division—

S. 234(2) amended by No. 40/2021 s. 53(7)(a).

(a) by the Fire Rescue Commissioner within the meaning of that Act; or

S. 234(2)(a) amended by No. 40/2021 s. 53(7)(b).

(b) by a person authorised by the Fire Rescue Commissioner to act on behalf of the chief officer under section 228(1) or (3).

S. 234(2)(b) amended by No. 40/2021 s. 53(7)(b).

234A Investigation and report

S. 234A substituted by No. 21/2017 s. 46.

If a person receives a complaint under this Division, the person must—

- (a) consider the complaint; and
- (b) give a written report to the complainant of the person's consideration of the complaint.

Division 2A—Remedies

Pt 13 Div. 2A (Heading and ss 234B–234D) inserted by No. 15/2016 s. 54.

Subdivision 1—Undertakings

Pt 13 Div. 2A Subdiv. 1 (Heading) inserted by No. 21/2017 s. 47.

234B Undertakings

S. 234B inserted by No. 15/2016 s. 54.

S. 234B(1)
amended by
No. 21/2017
s. 89(1).

- (1) The Authority may accept a written undertaking given by a person in connection with a matter in relation to which the Authority has a function under this Act.
- (2) The person may withdraw or vary an undertaking at any time, if the person has first obtained the consent of the Authority.
- (3) If the Authority considers that the person who gave the undertaking has failed to comply with any of its terms, the Authority may apply to a court for an order under subsection (4).
- (4) If a court is satisfied that the person has failed to comply with a term of the undertaking, the court may make all or any of the following orders—

S. 234B(4)(b)
amended by
No. 21/2017
s. 89(2).

- (a) an order directing the person to comply with that term of the undertaking;
 - (b) an order directing the person to carry out building work, protection work or plumbing work;
 - (c) an order directing the person to pay to the State an amount up to the amount of any financial benefit that the person has obtained directly or indirectly and that is reasonably attributable to the failure to comply;
 - (d) any order that the court considers appropriate directing the person to compensate any other person who has suffered loss, injury or damage as a result of the failure to comply;
 - (e) any other order that the court considers appropriate.
- (5) If a body corporate is found to have failed to comply with an undertaking, each officer of the body corporate is taken to have so failed to comply with the undertaking if the officer knowingly authorised or permitted

the failure and the court may, against the officer, make all or any of the orders set out in subsection (4) that the court thinks appropriate.

234C Copy of undertaking

S. 234C
inserted by
No. 15/2016
s. 54.

The Authority must give a copy of an undertaking under section 234B to the person who made the undertaking.

234D Register of undertakings

S. 234D
inserted by
No. 15/2016
s. 54.

- (1) The Authority must—
 - (a) maintain a register of undertakings; and
 - (b) register each undertaking given under section 234B in the register of undertakings.
- (2) The register of undertakings must include the following—
 - (a) the name and address of the person who gave the undertaking;
 - (b) the date of the undertaking;
 - (c) a copy of the undertaking.
- (3) The register of undertakings may be inspected by any person at any reasonable time, without charge.

Subdivision 2—Injunctions

Pt 13 Div. 2A
Subdiv. 2
(Heading and
ss 234E–
234J)
inserted by
No. 21/2017
s. 48.

234DA Interpretation

S. 234DA
inserted by
No. 4/2024
s. 13.

In this Subdivision—

- (a) a reference to "a contravention of a provision of this Act or of the regulations" is taken to be a reference to "a contravention of a provision of this Act or of the regulations or

of section 43B(1) or (2) of the **Domestic Building Contracts Act 1995**" if the Authority has applied to the court for an injunction; and

- (b) a reference to "an offence under this Act or the regulations" is taken to be a reference to "an offence under this Act or the regulations or section 43B(1) or (2) of the **Domestic Building Contracts Act 1995**" if the Authority has applied to the court for an injunction.

S. 234E
inserted by
No. 21/2017
s. 48.

234E Injunctions

- (1) A court may grant an injunction, in such terms as the court considers appropriate, if the court is satisfied that a person has engaged, or is proposing to engage, in conduct that constitutes or would constitute—
- (a) a contravention of a provision of this Act or of the regulations or of a notice, permit, direction, order or determination issued or made under this Act or the regulations (including a notice or order or determination of the Building Appeals Board); or
 - (b) attempting to contravene such a provision; or
 - (c) aiding, abetting, counselling or procuring a person to contravene such a provision; or
 - (d) inducing, or attempting to induce, whether by threats, promises or otherwise, a person to contravene such a provision; or
 - (e) being in any way, directly or indirectly, knowingly concerned in, or party to, the contravention by a person of such a provision; or
 - (f) conspiring with others to contravene such a provision.

- (2) The court may grant the injunction on application by—
 - (a) the Authority; or
 - (b) a municipal building surveyor; or
 - (c) Energy Safe Victoria; or
 - (d) any other prescribed person.
- (3) An application for an injunction under subsection (1) may be made *ex parte*.
- (4) The power of the court to grant an injunction under subsection (1) restraining a person from engaging in conduct may be exercised—
 - (a) whether or not it appears to the court that the person intends to engage again, or to continue to engage, in conduct of a kind referred to in that subsection; and
 - (b) whether or not the person has previously engaged in conduct of that kind; and
 - (c) whether or not there is an imminent danger of substantial damage to any other person if the person engages in conduct of that kind.
- (5) Without limiting subsection (1), the Supreme Court may grant an injunction under subsection (1) restraining a person from carrying on a business as a building practitioner or a plumber or supplying goods or services used in building work or plumbing work (whether or not as part of, or incidental to, the carrying on of another business)—
 - (a) for a specified period; or
 - (b) except on specified terms and conditions.
- (6) Without limiting subsection (1), the court may grant an injunction under that subsection requiring a person to do any of the following—

S. 234E(6)(ba)
inserted by
No. 46/2018
s. 72.

- (a) institute a training program for the person's employees in relation to compliance with this Act and the building regulations;
 - (b) carry out building work, protection work, plumbing work or other work;
 - (ba) in accordance with the regulations (if any)—
 - (i) carry out testing, including the destructive testing, of a building product or material used in the construction of a building and to provide the results of such testing to the applicant; or
 - (ii) arrange for the testing (including the destructive testing) of that building product or material by a prescribed testing authority and for that authority to provide the results of such testing to the applicant;
 - (c) transfer property;
 - (d) pay money, including the payment of money into court in relation to building work carried out, or to be carried out, under this Act by a municipal building surveyor;
 - (e) destroy or dispose of goods that have been or may be used in carrying out building work or plumbing work.
- (7) The power of the court to grant an injunction under subsection (1) requiring a person to do an act or thing may be exercised—
- (a) whether or not it appears to the court that the person intends to refuse or fail again, or to continue to refuse or fail, to do that act or thing; and
 - (b) whether or not the person has previously refused or failed to do that act or thing; and

- (c) whether or not there is an imminent danger of substantial damage to any other person if the person refuses or fails to do that act or thing.

234F Consent injunctions

If an application is made under section 234E, the court may, if it considers that it is appropriate to do so, grant an injunction under this section by consent of all the parties to the proceeding, whether or not the court is satisfied as required by section 234E(1).

S. 234F
inserted by
No. 21/2017
s. 48.

234G Interim injunctions

If an application is made under section 234E, the court, if it considers that it is desirable to do so, may grant an interim injunction under this section pending the determination of the application.

S. 234G
inserted by
No. 21/2017
s. 48.

234H Variation and discharge of injunctions

A court may vary or discharge—

- (a) an injunction that it has granted under section 234E or 234F; or
- (b) an interim injunction that it has granted under section 234G.

S. 234H
inserted by
No. 21/2017
s. 48.

234I Injunction may be granted during offence proceedings

An injunction may be granted under this Subdivision during proceedings for an offence under this Act or the regulations and may be granted instead of or in addition to any penalty imposed in those or any other proceedings.

S. 234I
inserted by
No. 21/2017
s. 48.

234J Undertakings as to damages and costs

In an application for an injunction under section 234E, if the application has been made by the Authority or a municipal building surveyor or Energy Safe Victoria and if the

S. 234J
inserted by
No. 21/2017
s. 48.

court has determined to grant an interim injunction, the court must not, as a condition of granting the interim injunction, require the Authority, the municipal building surveyor, Energy Safe Victoria or any other person to give any undertaking as to damages or costs.

Division 3—Evidence and notices

235 Evidence of ownership or occupation

- (1) The following is evidence that a person is the owner or occupier of land in any legal proceedings under this Act or the regulations—
 - (a) evidence that the person is liable to be rated in respect of the land; or
 - (b) evidence by a certificate as to any recording in the Register or by a certified reproduction of a registered instrument given under section 114(2) of the **Transfer of Land Act 1958** that any person is the registered proprietor of an estate in fee-simple or of a leasehold estate held of the Crown in any land; or
 - (c) evidence by the certificate of the Registrar-General or a Deputy Registrar-General authenticated by the seal of the Registrar-General that any person appears from the memorial of any deed, conveyance or instrument to be the last registered owner of any land.
- (2) The Registrar-General must provide a certificate under subsection (1)(c) on the written application of a person authorised under Division 4 to bring proceedings who must certify that it is required for legal proceedings under this Act or the regulations.

236 Service of documents—generally

- (1) Any document to be served on or given to a person under this Act or the regulations may be served on or given to the person by—
 - (a) delivering the document to the person; or
 - (b) leaving the document at the person's usual or last known place of residence or business with a person apparently not less than 16 years of age and apparently residing or employed at that place; or
 - (c) sending the document by post addressed to the person at the person's usual or last known place of residence or business or in any other prescribed manner.
- (2) A building order made under section 112 may be served on any person apparently in charge of the site on which building work is carried out.
- (3) If a document is to be served on or given to the owner or occupier of any land and the name of that person is not known the document may be addressed to "the owner" or "the occupier".
- (4) If a document is to be served on or given to the owner or occupier of any land, the document may be put up in a conspicuous position on the land if the name and address of the owner are not known and there is no occupier of the land.
- (4A) An emergency order referred to in section 103, a building notice referred to in section 108(1) or a building order referred to in section 111(3) or (4) may be served on a person by putting the order or notice up in a conspicuous position on the building, land or place of public entertainment to which it applies.

**S. 236(4A)
inserted by
No. 21/2017
s. 49(1).**

S. 236(4B)
inserted by
No. 21/2017
s. 49(1).

- (4B) An order or notice served in accordance with subsection (4A) must include the prescribed additional information.

S. 236(4C)
inserted by
No. 21/2017
s. 49(1).

- (4C) If a notice or order under Part 8 or Part 12A is to be served on an owner of a lot affected by an owners corporation, the notice or order may be served on the owners corporation and if so served is taken to be served on the owner.

S. 236(4D)
inserted by
No. 21/2017
s. 49(1).

- (4D) An owners corporation on whom a notice or order is served in accordance with subsection (4C) must not fail to provide a copy of the notice or order to each lot owner affected by the notice or order within a reasonable time of receiving the notice or order.

Penalty: 60 penalty units.

S. 236(5)
amended by
No. 21/2017
s. 99.

- (5) If the owner has authorised a person to act on behalf of the owner under this Act or the regulations, any document served on or given to that person under this Act or the regulations is taken to have been served on or given to the owner.
- (6) If a document to be served on or given to an owner or occupier of any land is properly served on or given to the owner or occupier of the land the document is binding on every subsequent owner or occupier of the land.

S. 236(7)
inserted by
No. 21/2017
s. 49(2).

- (7) A person must not, without the consent of the relevant building surveyor, the relevant council or the Authority, remove or deface an order or notice put up under subsection (4) or (4A).

Penalty: 500 penalty units, in the case of a natural person;

2500 penalty units, in the case of a body corporate.

- (8) Without limiting any other provision for the service of documents under this Act, service on a person named in a building permit under section 24A(1)(d) in relation to a body corporate of a direction, notice or order under this Act or the regulations directed to the body corporate is taken to be service on the body corporate.

S. 236(8)
inserted by
No. 21/2017
s. 49(3).

237 Service on Boards

* * * * *

S. 237(1)
repealed by
No. 15/2016
s. 18(7).

- (2) A document to be served on the Building Appeals Board must be taken to have been served if it is served on the Registrar of the Building Appeals Board.

- (3) A document to be served on the Authority must be taken to be served if it is served on the Registrar of the Victorian Building Authority appointed or engaged under section 204(1)(a).

S. 237(3)
inserted by
No. 39/1996
s. 8(3),
amended by
Nos 75/1998
s. 5(g),
34/2013
s. 27(2).

238 Building surveyor may rely on certificate by other registered building practitioner or endorsed building engineer

S. 238
(Heading)
inserted by
No. 26/2019
s. 130(1).

- (1) A municipal building surveyor or a private building surveyor, in carrying out a function under this Act or the regulations, may rely on a certificate by a registered building practitioner in a prescribed category or class of practitioners or an endorsed building engineer—

S. 238(1)
substituted by
No. 18/1998
s. 10,
amended by
No. 26/2019
s. 130(2).

- (a) that proposed building work of a prescribed class complies with any provision of this Act or the regulations; or

(b) that building work of a prescribed class complies with any provision of this Act or the regulations.

S. 238(2)
amended by
No. 26/2019
s. 130(3).

(2) A registered building practitioner or an endorsed building engineer must not give a certificate under subsection (1) in respect of building work unless the certificate states that the registered building practitioner or endorsed building engineer (as the case may be) has inspected that building work.

S. 238(3)
inserted by
No. 46/2018
s. 20.

(3) In this section a **registered building practitioner** does not include a provisionally registered building practitioner.

S. 239
amended by
Nos 15/2016
s. 18(12),
46/2018 ss 23
(ILA s. 39B(1)),
75(2).

239 Certificate of Registrar

(1) A certificate of the Registrar of the Victorian Building Authority specifying that a person is or is not registered in the Register of Building Practitioners or the category or class of registration of a person or that a certificate of registration has been issued in respect of a person is evidence and, in the absence of evidence to the contrary, proof of the matters stated in the certificate.

S. 239(2)
inserted by
No. 46/2018
s. 23.

(2) A certificate of the Registrar of the Victorian Building Authority specifying that a person is or is not recorded in the Register of Building Employees or the class of licence of a person or that a licence certificate has been issued in respect of a person is evidence and, in the absence of evidence to the contrary, proof of the matters stated in the certificate.

S. 239A
inserted by
No. 21/2017
s. 90.

239A No proof required

(1) In any proceedings by or against or before the Authority or by or against a Registrar, no proof is required (until evidence is given to the contrary) of—

(a) the due constitution of the Authority; or

- (b) any determination of the Authority; or
- (c) the appointment of a Commissioner or a Registrar; or
- (d) the presence of a quorum at a meeting of the VBA Board.

(2) In this section—

Registrar means the Registrar of the Victorian Building Authority or the Registrar of the Building Appeals Board.

240 Appointment of agents

An owner of a building or land may in writing authorise another person to make any application, appeal, referral or representation under this Act on behalf of the owner.

Division 4—Offences and penalties

241 Proceedings for offences

- (1) Proceedings for a summary offence against Part 3, 4, 5, 7 or 8 or the building regulations within a municipal district may be brought by—

S. 241(1)
amended by
No. 47/2017
s. 13.

- (a) a person authorised by the council; or
- (b) a prescribed person or a person in a prescribed class of persons.

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S. 241(1A)
inserted by
No. 85/2000
s. 12,
repealed by
No. 46/2008
s. 248(8).

* * * * *

S. 241(2)
repealed by
No. 15/2016
s. 18(7).

Building Act 1993
No. 126 of 1993
Part 13—General enforcement provisions

S. 241(2A)
inserted by
No. 39/1996
s. 8(4),
amended by
No. 75/1998
s. 5(g),
substituted by
No. 91/2000
s. 38,
amended by
No. 39/2005
s. 54,
substituted by
No. 34/2013
s. 32(1).

- (2A) Proceedings for an offence against Part 12A or any regulations made for the purposes of that Part may be brought by Energy Safe Victoria.

S. 241(2B)
inserted by
No. 91/2000
s. 38,
amended by
Nos 34/2013
s. 32(2),
15/2016
s. 18(13).

- (2B) Proceedings to recover money payable under Part 11 or 12A may be brought by the Authority or any person authorised by the Authority.

- (3) Proceedings for any offence against this Act or the regulations may be brought by—

S. 241(3)(a)
amended by
No. 34/2013
s. 32(3).

- (a) the Authority; or

S. 241(3)(b)
amended by
No. 34/2013
s. 32(3).

- (b) any person authorised by the Minister or the Authority; or

S. 241(3)(c)
amended by
No. 37/2014
s. 10(Sch.
item 9.2).

- (c) a police officer.

S. 241(3A)
inserted by
No. 4/2024
s. 14.

- (3A) A proceeding for an offence against section 43B(1) or (2) of the **Domestic Building Contracts Act 1995** may be commenced by—

- (a) the Authority; or

- (b) a natural person authorised by the Minister or the Authority.
- (4) An authority given by any person or body under this section must be in writing and may be given generally or in relation to a particular matter.
- (5) Until evidence is given to the contrary proof is not required of any authority to bring proceedings under this section.
- (6) No person other than a person authorised by or under this section may bring proceedings for an offence against this Act or the regulations.
- (7) Despite anything in any Act, proceedings for an offence against this Act (except proceedings for an offence against section 16B(1) or (3)) or the regulations may be commenced within the longer of the following periods in relation to an alleged offence—
- (a) within the period of 3 years after the commission of the alleged offence;
 - (b) in relation to proceedings under subsection (1), within 2 years after the commission of the alleged offence first came to the attention of the relevant council or the Authority;
 - (c) in relation to proceedings under subsection (2A), within 2 years after the commission of the alleged offence first came to the attention of Energy Safe Victoria or the Authority;
 - (d) in relation to any other proceedings under this Act or the regulations, within 2 years after the commission of the alleged offence first came to the attention of the Authority.
- (8) Despite subsection (7), proceedings must not be commenced more than 10 years after the commission of an alleged offence.

S. 241(7)
amended by
No. 21/2017
s. 50(1),
substituted by
No. 21/2017
s. 50(2).

S. 241(8)
inserted by
No. 21/2017
s. 50(2).

241A Ineligibility for registration

S. 241A
inserted by
No. 91/1995
s. 154,
amended by
No. 15/2016
s. 18(1),
substituted by
No. 21/2017
s. 15.

S. 241A(1)
amended by
No. 4/2024
s. 15.

- (1) If a court finds an unregistered builder guilty of carrying out domestic building work in contravention of this Act or entering into a major domestic building contract in contravention of section 29 of the **Domestic Building Contracts Act 1995** or guilty of an offence against section 11(1), 40(2) or (3) or 43B(1) or (2) of the **Domestic Building Contracts Act 1995**, the court may, in addition to any penalty for that offence, direct that the builder is ineligible to apply for registration under Part 11 for not more than 3 years.

S. 241A(2)
amended by
No. 4/2024
s. 15.

- (2) If a court finds a body corporate that is an unregistered builder guilty of carrying out domestic building work in contravention of this Act or entering into a major domestic building contract in contravention of section 29 of the **Domestic Building Contracts Act 1995** or guilty of an offence against section 11(1), 40(2) or (3) or 43B(1) or (2) of the **Domestic Building Contracts Act 1995**, the court may, in addition to any penalty for that offence, direct that any officer of the body corporate is ineligible to apply for registration under Part 11 for not more than 3 years.

S. 241A(3)
amended by
No. 4/2024
s. 15.

- (3) If a court finds one or more members of a partnership guilty of carrying out domestic building work in contravention of this Act or entering into a major domestic building contract in contravention of section 29 of

the **Domestic Building Contracts Act 1995** or guilty of an offence against section 11(1), 40(2) or (3) or 43B(1) or (2) of the **Domestic Building Contracts Act 1995**, the court may, in addition to any penalty for that offence, direct that each member of the partnership is ineligible to apply for registration under Part 11 for not more than 3 years.

- (4) The Authority must comply with a direction under this section.

*	*	*	*	*	S. 241B inserted by No. 36/2002 s. 15, amended by No. 34/2013 s. 34(Sch. 1 item 111), repealed by No. 15/2016 s. 68.
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242 Application of penalties

- (1) If an offence has been prosecuted by a person authorised by a council, all penalties recovered in relation to the offence must be paid into the municipal fund of that council.
- (2) If an offence has been prosecuted by the Authority or a person authorised by the Minister or the Authority, all penalties recovered in relation to the offence must be paid into the Victorian Building Authority Fund.

*	*	*	*	*	S. 242(2) substituted by No. 34/2013 s. 32(4), amended by No. 15/2016 s. 18(14).
*	*	*	*	*	S. 242(3) inserted by No. 39/1996 s. 8(5), amended by No. 75/1998 s. 5(g), repealed by No. 34/2013 s. 32(4).

S. 242A
inserted by
No. 21/2017
s. 91,
amended by
No. 4/2024
s. 16.

242A Offences by partners

If this Act or a regulation made under this Act provides that a builder is guilty of an offence, or if a builder is found guilty of an offence against section 43B(1) or (2) of the **Domestic Building Contracts Act 1995**, and the builder is a partnership, the reference to the builder is taken to be instead a reference to each member of the partnership.

S. 243
amended by
No. 4/2024
s. 17.

243 Offences by bodies corporate

If a body corporate is guilty of an offence against this Act or the regulations or section 43B(1) or (2) of the **Domestic Building Contracts Act 1995**, any person who is concerned in or takes part in the management of the body corporate who was in any way, by act or omission, directly or indirectly knowingly concerned in or party to the commission of the offence is also guilty of that offence.

S. 243A
inserted by
No. 21/2017
s. 16.

243A Conduct by officers, employees or agents of bodies corporate

- (1) If, in a proceeding under this Act in relation to conduct that is engaged in by a body corporate and to which this Act applies, it is necessary to establish the state of mind of the body corporate, it is sufficient to show—
 - (a) that an officer, employee or agent of the body corporate engaged in that conduct within the scope of the actual or apparent authority of the officer, employee or agent; and
 - (b) that the officer, employee or agent had that state of mind.

- (2) The following conduct engaged in on behalf of a body corporate is also taken, for the purposes of this Act, to have been engaged in by the body corporate—
- (a) conduct by an officer, employee or agent of the body corporate within the scope of the actual or apparent authority of the officer, employee or agent; or
 - (b) conduct by any other person—
 - (i) at the direction of an officer, employee or agent of the body corporate; or
 - (ii) with the consent or agreement (whether express or implied) of such an officer, employee or agent—if the giving of the direction, consent or agreement is within the scope of the actual or apparent authority of the officer, employee or agent.
- (3) If, in a proceeding under this Act in relation to conduct that is engaged in by a person (the **principal**) other than a body corporate and to which this Act applies, it is necessary to establish the state of mind of the principal, it is sufficient to show—
- (a) that an employee or agent of the principal engaged in that conduct within the scope of the actual or apparent authority of the employee or agent; and
 - (b) that the employee or agent had that state of mind.
- (4) The following conduct engaged in on behalf of a person (the **principal**) other than a body corporate is also taken, for the purposes of this Act, to have been engaged in by the principal—

- (a) conduct by an employee or agent of the principal within the scope of the actual or apparent authority of the employee or agent;
- (b) conduct by any other person—
 - (i) at the direction of an employee or agent of the principal; or
 - (ii) with the consent or agreement (whether express or implied) of such an employee or agent—if the giving of the direction, consent or agreement is within the scope of the actual or apparent authority of the employee or agent.

- (5) A reference in this section to the state of mind of a person includes a reference to the knowledge, intention, opinion, belief or purpose of the person and the person's reasons for the intention, opinion, belief or purpose.

S. 244
(Heading)
inserted by
No. 21/2017
s. 51(1).

244 Offence to hinder or obstruct

A person must not without reasonable excuse hinder or obstruct any person or body in carrying out any function or taking any action that the person or body is authorised or required to carry out or take under this Act or the regulations.

Penalty: 60 penalty units.

S. 244
amended by
No. 21/2017
s. 51(2)(3).

245 Offences by or relating to registered building practitioners

S. 245(1)
amended by
Nos 33/2010
s. 49(1),
21/2017
s. 17(2).

- (1) A registered building practitioner must not ask for or receive or obtain, or offer or agree to ask for or receive or obtain, any property or benefit of any kind (other than the consideration or remuneration payable under his or her contract of engagement or appointment) for himself or herself or any other person, on an understanding that the carrying out by him or her of his or her functions under this

Act or the regulations will, in any manner, be influenced or affected or that he or she will not carry out those functions.

Penalty: 500 penalty units, in the case of a natural person;

2500 penalty units, in the case of a body corporate.

- (2) A person must not, in order to influence or affect a registered building practitioner in carrying out his or her functions under this Act or the regulations or to influence a registered building practitioner not to carry out those functions—

S. 245(2)
amended by
No. 33/2010
s. 49(2).

- (a) give or confer or promise or offer to give or confer any property or benefit of any kind (other than the consideration or remuneration payable under the registered building practitioner's contract of engagement or appointment) to or on a registered building practitioner or any other person; or
- (b) remove or threaten to remove any property or benefit of any kind from a registered building practitioner or any other person.

Penalty: 500 penalty units, in the case of a natural person.

2500 penalty units, in the case of a body corporate.

S. 246
amended by
No. 33/2010
s. 50,
substituted by
No. 21/2017
s. 52.

246 Offence to give false or misleading statements or documents

- (1) A person must not knowingly make any false or misleading statement or provide any false or misleading information to a person or body carrying out any function under this Act or the regulations.

Penalty: 60 penalty units, in the case of a natural person;

300 penalty units, in the case of a body corporate.

- (2) A person must not produce a document, to a person or body carrying out any function under this Act or the regulations, which the person knows to be false or misleading in a material particular without indicating the respect in which it is false or misleading and, if practicable, providing correct information.

Penalty: 60 penalty units, in the case of a natural person;

300 penalty units, in the case of a body corporate.

247 Offence relating to disclosure of pecuniary interest

A person must not contravene clause 6 of Schedule 3.

Penalty: 10 penalty units.

248 Offence for agent to act without authority

S. 248(1)
amended by
No. 33/2010
s. 51.

- (1) A person must not act on behalf of an owner of a building or land for the purpose of making any application, appeal or referral under this Act or the regulations unless the person is authorised in writing by the owner to do so.

Penalty: 120 penalty units.

- (2) A person or body carrying out a function under this Act or the regulations may accept production of a document purporting to be an authorisation, by an owner, of a person to act on behalf of the owner as evidence that the person is so authorised.
- (3) Nothing in this Act requires a person or body carrying out a function under this Act or the regulations to inquire whether an agent is acting under this Act or the regulations with the written authority of the owner.

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S. 249
repealed by
No. 91/1995
s. 155.

250 Right of owner to carry out required work on occupied building or land

- (1) If the owner of a building or land is required to carry out any work or do any other thing under this Act or the regulations the owner may give a written notice to the occupier of the building or land—
 - (a) stating particulars of the work to be carried out or thing to be done; and
 - (b) requiring the occupier to permit the owner and any other person to enter the building or land and carry out the work or do the thing.
- (2) If the occupier of the building or land does not comply with a notice within 7 days after the notice is given, the owner of the building or land may apply to the Magistrates' Court for an order.
- (3) The Magistrates' Court may make an order requiring the occupier of the building or land to permit the owner and any other person to enter the building or land and carry out the work or do the thing.

S. 250(4)
amended by
No. 33/2010
s. 52.

- (4) The occupier of the building or land must comply with the order.

Penalty: 120 penalty units.

- (5) While the occupier of the building or land fails to comply with the order the owner of the building or land is not liable for an offence for failing to carry out the work or do the thing.

251 Occupier or registered mortgagee may carry out work

S. 251(2)
amended by
No. 26/2020
s. 3(1).

- (1) If the owner of a building or land is required under this Act or the regulations to carry out any work or do any other thing and the owner does not carry out the work or do the thing, the occupier of that building or land or any registered mortgagee of the land or the land on which the building is situated, may carry out the work or do the thing.

- (2) Subject to subsection (2A), an occupier may—
- (a) recover any expenses necessarily incurred under subsection (1) from the owner as a debt due to the occupier; or
 - (b) deduct those expenses from or set them off against any rent due or to become due to the owner.

S. 251(2A)
inserted by
No. 26/2020
s. 3(2),
substituted by
No. 40/2021
s. 50(1).

- (2A) An occupier cannot recover from the owner, or deduct from or set off against any rent due or to become due to the owner, any expenses incurred by the carrying out, in respect of an essential safety measure, of repairs or maintenance work or an installation referred to in section 41(2)(b)(ii) of the **Retail Leases Act 2003**, if the occupier has agreed to bear the expenses under—
- (a) a retail premises lease to which that Act applies; or

- (b) any other lease of a premises or an area in a retail shopping centre other than a premises or an area in a retail shopping centre that is used, or is intended for use, as a residence.
- (3) A registered mortgagee may—
 - (a) recover any expenses necessarily incurred under subsection (1) from the owner as a debt due to the mortgagee; or
 - (b) give notice in writing of those expenses to the mortgagor.
- (4) On the giving of notice under subsection (3)(b), the expenses are taken to be added to the principal sum owing under the mortgage. S. 251(4)
amended by
No. 21/2017
s. 99.
- (5) If the mortgagor is not the owner the mortgagor may recover the amount taken under subsection (4) to be added to the principal sum from the owner as a debt due to the mortgagor. S. 251(5)
amended by
No. 21/2017
s. 99.
- (6) This section applies despite any covenant or agreement to the contrary, other than an agreement about the cost of the carrying out, in respect of an essential safety measure, of repairs or maintenance work or an installation referred to in section 41(2)(b)(ii) of the **Retail Leases Act 2003** under—S. 251(6)
amended by
No. 26/2020
s. 3(3),
substituted by
No. 40/2021
s. 50(2).
 - (a) a retail premises lease to which that Act applies; or
 - (b) any other lease of a premises or an area in a retail shopping centre other than a premises or an area in a retail shopping centre that is used, or is intended for use, as a residence.

S. 251(7)
inserted by
No. 26/2020
s. 3(4).

(7) In this section—

essential safety measure has the same meaning as in the Building Regulations 2018 or any subsequent corresponding regulations;

Note

See section 30 of the **Interpretation of Legislation Act 1984**.

lease has the same meaning as in the **Retail Leases Act 2003**;

S. 251(7)
def. of *retail premises*
amended by
No. 40/2021
s. 50(3).

retail premises has the same meaning as in the **Retail Leases Act 2003**;

S. 251(7)
def. of *retail shopping centre*
inserted by
No. 40/2021
s. 50(4).

retail shopping centre has the same meaning as in the **Retail Leases Act 2003**.

S. 251A
inserted by
No. 21/2017
s. 53.

251A Owners corporation may carry out work

- (1) This section applies if an order or notice under this Act requires or proposes that the owner of a lot affected by an owners corporation carry out building work, protection work, plumbing work or other work in relation to that lot.
- (2) If the order or notice is served on the owners corporation under section 236(4C), the owners corporation may make representations under Part 8 or Part 12A (as the case may be) in relation to the notice as if it were the owner of the lot.

- (3) If the order or notice is served on the owners corporation under section 236(4C), the owners corporation must comply with the order as if it were the owner of the lot.

Penalty: 2500 penalty units.

- (4) An owners corporation may authorise a person to enter a lot or a building on a lot on its behalf to carry out works in accordance with this section.
- (5) Section 51 of the **Owners Corporations Act 2006** applies in relation to an entry under subsection (4) as if it were an entry under section 50 of that Act.
- (6) An owners corporation may recover from the owner of the lot as a debt due to the owners corporation the cost of any work carried out under subsection (3) that is not covered by the insurance held by the owners corporation.

252 Vacation of building or land

- (1) The Authority or a council may apply to the Magistrates' Court for a warrant under this section if a person refuses to vacate a building or land when required to do so by order under this Act.
- (2) An application must be accompanied by a copy of the order.
- (3) The Magistrates' Court must issue a warrant under this section if it is satisfied that the building or land referred to in the application is the same as the building or land referred to in the order.
- (4) A warrant under this section may be directed to—
- (a) a specified police officer; or

S. 252(1)
amended by
No. 34/2013
s. 34(Sch. 1
item 112).

S. 252(4)(a)
substituted by
No. 37/2014
s. 10(Sch.
item 9.3).

S. 252(4)(b)
substituted by
No. 37/2014
s. 10(Sch.
item 9.3).

(b) generally all police officers.

- (5) A warrant under this section directs and authorises a person to whom it is directed—
- (a) to enter the building or land (by force if necessary); and
 - (b) with such assistance as is necessary, to compel all persons for the time being occupying the building or land to vacate that building or land.
- (6) The Magistrates' Court may exercise jurisdiction under this section despite any claim of title, question of property or suggestion of right which may be made in any proceedings under this section.

S. 253
amended by
No. 34/2013
s. 34(Sch. 1
item 113),
substituted by
No. 21/2017
s. 54.

253 Powers of court if requirement of authorised person not complied with

- (1) Subject to subsection (2), if an authorised person is satisfied that a person has failed, without reasonable excuse, to comply with a requirement under section 227G(1), 228D(6)(c), 228E(4)(e), 228I(2), 228J(4)(a)(i) or 229, the authorised person may apply to a court for an order directing the person to comply with the requirement.
- (2) The authorised person must not make an application under subsection (1) if the person to whom the failure relates has been charged with an offence against section 229F.

- (3) On an application under subsection (1), the court may—
- (a) order the person to comply with the requirement within a period specified in the order; and
 - (b) make any other orders it considers appropriate.
- (4) If a proceeding is brought under this section in relation to a failure to comply with a requirement, a person to whom the failure relates cannot be charged with an offence under section 229F in relation to that failure.

Division 5—Building infringements

254 Definitions

In this Division—

authorised officer means the holder of a prescribed office or the holder of an office in a prescribed class of officers;

prescribed offence means an offence against this Act or the building regulations which is prescribed for the purpose of this Division.

255 Building infringements

- (1) An authorised officer may serve a building infringement notice on the owner or the occupier of any building or land or any person carrying out building work, if the authorised officer has reason to believe that that person has committed a prescribed offence in respect of the building or land.
- (2) An offence referred to in subsection (1) for which a building infringement notice may be served is an infringement offence within the meaning of the **Infringements Act 2006**.

S. 255(2)
substituted by
No. 32/2006
s. 94(Sch.
item 4(4)).

S. 255(2A)
inserted by
No. 32/2006
s. 94(Sch.
item 4(4)).

- (2A) In addition to the details required under section 13 of the **Infringements Act 2006**, the details of the additional steps (if any) required to expiate the offence must be included in an infringement notice served under subsection (1).
- (3) The prescribed penalty for a prescribed offence is the amount, not exceeding 10 penalty units, prescribed for that offence for the purposes of this Division.

256 Additional steps

- (1) Additional steps required to expiate a prescribed offence may include, but are not limited to, the following—
- (a) carrying out any work if failure to carry out the work constitutes the offence;
 - (b) stopping any work that constitutes the offence;
 - (c) doing or omitting to do anything in order to remedy a contravention of the building regulations.
- (2) If a building infringement notice requires additional steps to be taken to expiate an offence, and, before the end of the remedy period set out in the notice, or if the authorised officer allows, at any time before the service of a summons in respect of the offence, the person served with the notice informs the authorised officer that those steps have been taken—
- (a) the authorised officer must, without delay, find out whether or not those steps have been taken; and
 - (b) serve on the person a notice stating whether or not those steps have been taken.

- (3) A statement in a notice under subsection (2) that additional steps have been taken is for all purposes conclusive proof of that fact.

*	*	*	*	*	Ss 257, 258 repealed by No. 32/2006 s. 94(Sch. item 4(5)).
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259 Proceedings where building infringement notice requiring additional steps is served

S. 259
(Heading)
inserted by
No. 32/2006
s. 94(Sch.
item 4(6)).

- (1) Nothing in this section prejudices the institution or the prosecution of proceedings for an offence for which a building infringement notice has been served—

*	*	*	*	*	S. 259(1)(a) repealed by No. 32/2006 s. 94(Sch. item 4(7)(a)).
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- (b) if the notice states that a penalty must be paid and additional steps must be taken to expiate the offence, and—

- (i) the amount of the penalty is not paid before the end of the period for payment shown in the notice or of any further period allowed by the authorised officer; or

- (ii) the person served with the notice does not, before the end of the remedy period shown in the notice or of any further period allowed by the authorised officer, take those additional steps.

S. 259(1)(b)(ii)
amended by
No. 32/2006
s. 94(Sch.
item 4(7)(b)).

*	*	*	*	*	S. 259(1)(c) repealed by No. 32/2006 s. 94(Sch. item 4(7)(c)).
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Building Act 1993
No. 126 of 1993
Part 13—General enforcement provisions

S. 259(2)
repealed by
No. 32/2006
s. 94(Sch.
item 4(8)).

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Part 14—General

259A Improper use of information

- (1) A member or former member of the Authority, the Building Appeals Board, the Building Practitioners Board, the Building Advisory Council, the Building Regulations Advisory Committee, the Plumbing Industry Commission or the Plumbing Advisory Council or a person employed or formerly employed for the purposes of this Act to assist any of these bodies must not make improper use of information acquired by virtue of the person's position to gain directly or indirectly a pecuniary advantage for the person or for any other person.

S. 259A
inserted by
No. 71/1995
s. 22,
amended by
Nos 39/1996
s. 8(6),
75/1998
s. 5(h)(i)(ii),
34/2013 s. 33
(ILA s. 39B(1)).

Penalty: 20 penalty units.

- (2) In this section—

S. 259A(2)
inserted by
No. 34/2013
s. 33(2).

Building Practitioners Board means the Building Practitioners Board established under Part 11 as in force immediately before the commencement of Division 2 of Part 3 of the **Building Legislation Amendment (Consumer Protection) Act 2016**;

S. 259A(2) def.
of *Building Practitioners Board*
inserted by
No. 15/2016
s. 18(15).

Plumbing Industry Commission means the Plumbing Industry Commission established under section 221ZZR as in force immediately before the commencement of the **Building and Planning Legislation Amendment (Governance and Other Matters) Act 2013**.

S. 259AB
inserted by
No. 21/2017
s. 55,
amended by
31/2020 s. 58,
substituted by
No. 11/2023
s. 47.

259AB Information sharing arrangements

- (1) The Authority may enter into, or approve of, an arrangement (an ***information sharing arrangement***) with one or more relevant agencies for the purpose of—
 - (a) the sharing or exchanging of information, between the Authority and a relevant agency that is a party to the arrangement, which—
 - (i) has been acquired by the Authority in performing its functions or acquired by the relevant agency in performing its functions; or
 - (ii) has been disclosed to the Authority or the relevant agency under that arrangement or another information sharing arrangement to assist in the performance of the Authority's functions or the relevant agency's functions; or
 - (b) the sharing or exchanging of information, between any 2 or more relevant agencies that are parties to the arrangement, which—
 - (i) has been acquired by any one of those relevant agencies in performing its functions; or
 - (ii) has been disclosed to any one of those relevant agencies under that arrangement or another information sharing arrangement to assist in the performance of its functions.
- (2) Subject to subsection (3), under an information sharing arrangement, the Authority and a relevant agency are authorised by virtue of this section—

- (a) to request and receive information (including personal information) held by another party to the arrangement; and
 - (b) to disclose information (including personal information) to another party to the arrangement.
- (3) The information that may be exchanged or shared under subsection (2)—
 - (a) between the Authority and a relevant agency must be reasonably necessary to assist in the performance of the Authority's functions under this Act or the functions of the relevant agency; and
 - (b) between a relevant agency and another relevant agency must be information that—
 - (i) the receiving relevant agency could have requested from the Authority under paragraph (a); or
 - (ii) is reasonably necessary to assist in the performance of the relevant agency's functions under this Act.
- (4) Without limiting subsections (2) and (3), the Authority may also (whether as part of an information sharing arrangement or otherwise)—
 - (a) refer any matter (including any complaint) with respect to work carried out by a building practitioner or building employee, plumbing work or the provision of architectural services or engineering services to a building regulator or law enforcement agency; or
 - (b) receive any matter of a type described in paragraph (a) from a building regulator or law enforcement agency; or

- (c) conduct a joint investigation into any matter of a type described in paragraph (a) with a building regulator or law enforcement agency.
- (5) Any building regulator or law enforcement agency referred to in subsection (4) is, despite any other Act or law of the State, authorised to refer a matter referred to in subsection (4) to the Authority or to conduct an investigation into the matter jointly with the Authority.
- (6) This section does not limit—
 - (a) the powers of the Authority under this Act; or
 - (b) the operation of any other Act under which a relevant agency is authorised or required to disclose information to another person or body; or
 - (c) the giving of information—
 - (i) to a court or tribunal in the course of legal proceedings; or
 - (ii) pursuant to an order of a court or tribunal; or
 - (iii) to the extent reasonably required to enable the investigation or the enforcement of a law of the State or of any other State or a Territory or of the Commonwealth; or
 - (iv) with the written authority of the Minister; or
 - (v) with the written authority of the person to whom the information relates.

(7) In this section—

building regulator means a municipal council or an agency of the Commonwealth, Victoria or another State or a Territory or of another jurisdiction that carries out functions under an enactment in relation to building, plumbing, architectural services or engineering services that relate to any work that relates to building work;

information includes a document or a copy of a document and data;

law enforcement agency means—

- (a) Victoria Police within the meaning of the **Victoria Police Act 2013** or the police force of another State or a Territory or of an overseas jurisdiction; or
- (b) the Australian Federal Police within the meaning of the Australian Federal Police Act 1979 of the Commonwealth; or
- (c) the Australian Crime Commission established under section 7 of the Australian Crime Commission Act 2002 of the Commonwealth; or
- (d) any other authority or person responsible for the investigation or prosecution of offences against the laws of the State or of the Commonwealth or of another State or a Territory or an overseas jurisdiction;

plumbing work has the same meaning as in section 221C;

S. 259AB(7)
def. of
*relevant
agency*
amended by
No. 11/2023
s. 26.

relevant agency means any of the following—

- (a) a building regulator;
- (b) a law enforcement agency;
- (c) the Director of Consumer Affairs Victoria;
- (ca) the Building Monitor;
- (d) the chief dispute resolution officer;
- (e) the Architects Registration Board of Victoria;
- (f) the Victorian Managed Insurance Authority;
- (g) VCAT;
- (h) Cladding Safety Victoria;
- (i) the Victorian WorkCover Authority within the meaning of the **Workplace Injury Rehabilitation and Compensation Act 2013**;
- (j) the Business Licensing Authority;
- (k) the Commissioner of State Revenue referred to in section 62 of the **Taxation Administration Act 1997**;
- (l) a council;
- (m) a Department Head within the meaning of the **Public Administration Act 2004**;
- (n) any other agency of the State or of the Commonwealth or another State or a Territory or of an overseas jurisdiction;
- (o) any other person or body that exercises functions in the public interest that involve protecting the interests of users of services of building practitioners,

building employees, plumbers,
architects or endorsed building
engineers;

(p) any other prescribed person or body.

**259B Authority may provide information to the Director
of Consumer Affairs Victoria**

S. 259B
inserted by
No. 34/2013
s. 7.

The Authority may provide the Director of
Consumer Affairs Victoria with any information
held by the Authority in relation to a domestic
building dispute (within the meaning of the
Domestic Building Contracts Act 1995) if the
Authority considers that the information will
assist in the resolution of the dispute.

**259BA Certificate evidence—decisions of Authority and
predecessor bodies**

S. 259BA
inserted by
No. 21/2017
s. 92(1).

- (1) A certificate purporting to be signed by the
Registrar of the Authority and purporting to
record a decision, resolution or determination of
the Authority or a predecessor body is evidence
of the making of the decision, resolution or
determination recorded in the certificate.
- (2) In this section, *predecessor body* means any of the
following—
 - (a) the Building Practitioners Board established
under Part 11 as in force immediately before
the commencement of Division 2 of Part 3 of
the **Building Legislation (Consumer
Protection) Act 2016**;
 - (b) the Building Commission established under
Part 12 as in force before 1 July 2013;
 - (c) the Director of Building Control within the
meaning of the **Building Control Act 1981**;
 - (d) the Plumbing Industry Commission
established under section 221ZZR as in
force immediately before 1 July 2013;

- (e) the Plumbing Industry Board established under Part 12A as in force immediately before 1 January 1999.

S. 259BB
inserted by
No. 21/2017
s. 92(2).

259BB Certificate of Authority

A certificate of the Authority specifying—

- (a) that a person is or is not registered on the Register of Building Practitioners; or
- (b) the category or class of registration of a person—

is evidence and, in the absence of evidence to the contrary, proof of the matters stated in the certificate.

S. 259C
inserted by
No. 34/2013
s. 7.

259C Authority may disclose cooling tower information

The Authority may disclose any information it obtains under Part 12A in relation to a cooling tower system to the Secretary to the Department of Health.

S. 260
amended by
No. 39/1996
s. 9(a).

260 Supreme Court—limitation of jurisdiction

- (1) It is the intention of this section to alter or vary section 85 of the **Constitution Act 1975** to the extent necessary—
 - (a) to prevent the Supreme Court from entertaining actions of a kind referred to in section 128 and clause 10 of Schedule 4; and
 - (b) to ensure that proceedings are determined in accordance with sections 129 to 134.
- (2) It is the intention of section 134A to alter or vary section 85 of the **Constitution Act 1975**.

S. 260(2)
inserted by
No. 39/1996
s. 9(b).

261 General regulation-making powers

(1) The Governor in Council may make regulations for or with respect to—

S. 261
amended by
No. 85/2000
s. 13(2) (ILA
s. 39B(1)).

(a) building permits, occupancy permits and temporary approvals, including the duration of permits and approvals and the matters to be complied with by the relevant building surveyor before a permit or approval can be issued;

S. 261(1)(a)
amended by
No. 34/1997
s. 28.

(aa) the matters which a reporting authority is required or permitted to take into account in reporting on, or considering whether to consent to, an application for a building permit;

S. 261(1)(aa)
inserted by
No. 30/2001
s. 5.

(ab) applying section 188A to specified classes of applications for building permits;

S. 261(1)(ab)
inserted by
No. 30/2001
s. 5.

(b) conditions on permits and approvals including a condition requiring persons skilled in safety matters to be present when a place of public entertainment is occupied;

S. 261(1)(b)
amended by
No. 71/1995
s. 23(1)(a).

(ba) certificates of consent including a requirement that any matter in an application for a certificate be verified by statutory declaration;

S. 261(1)(ba)
inserted by
No. 66/2004
s. 19(1)(a).

(bb) the accreditation of building products, construction methods, designs, components or systems connected with building work including, but not limited to—

S. 261(1)(bb)
inserted by
No. 40/2021
s. 51.

(i) applications for those accreditations, the issuing of certificates of those accreditations and the renewal, variation and revocation of those accreditations; and

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| | (ii) the keeping and maintaining of a register of those accreditations; |
| S. 261(1)(bc) inserted by No. 11/2023 s. 48(1). | (bc) building manuals including, but not limited to, the following— <ul style="list-style-type: none">(i) the information that must be contained in, or accompany, a draft building manual;(ii) the format of a draft building manual;(iii) the requirements for keeping, updating and providing access to an approved building manual; |
| S. 261(1)(c) amended by Nos 66/2004 s. 19(1)(b), 3/2020 s. 35. | (c) the making, keeping and production of records of permits, certificates of consent, certificates of accreditation and related documents, approvals, notices and orders and the keeping and production of other plans and documents provided under this Act or the regulations; |
| S. 261(1)(d) amended by No. 66/2004 s. 19(1)(b). | (d) the keeping of registers of permits, certificates of consent, approvals, notices and orders; |
| | (e) the issue of building certificates relating to notices and orders under this Act and regulations; |
| S. 261(1)(ea) inserted by No. 18/1998 s. 11. | (ea) the provision of certificates as to compliance with conditions on permits and approvals; |
| S. 261(1)(eb) inserted by No. 21/2017 s. 56(1), amended by No. 40/2021 s. 42(1). | (eb) prescribing classes of registered building practitioner; |

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| (ec) prescribing classes of licensed building employee; | S. 261(1)(ec) inserted by No. 46/2018 s. 24(1), amended by No. 40/2021 s. 42(2). |
| (f) the qualifications for registration in a category or class of building practitioner or for a licence in a class of building employee—
<div style="margin-left: 20px;">(i) including but not limited to degrees, diplomas, certificates, accreditations, authorities, examinations, assessments and periods of training or experience; and

(ii) whether the qualification, training or experience was obtained or completed inside or outside Victoria;</div> | S. 261(1)(f) amended by No. 71/1995 s. 23(1)(b), substituted by Nos 46/2018 s. 24(2), 40/2021 s. 42(3). |
| (g) examinations or assessments for registration in the different categories or classes of building practitioner and for granting licences in the different classes of building employee, including the determination of the subjects to be examined or assessed, the conduct of examinations and assessments and eligibility for an examination or assessment; | S. 261(1)(g) amended by No. 46/2018 s. 24(3), substituted by No. 40/2021 s. 42(4). |
| (h) the conditions prerequisite to registration in a category or class of building practitioner or to granting a licence in a class of building employee, including but not limited to conditions as to age, training, experience and authority to practise and carry out building work; | S. 261(1)(h) substituted by No. 40/2021 s. 42(5). |

S. 261(1)(ha) inserted by No. 15/2016 s. 26, substituted by Nos 40/2021 s. 42(6), 11/2023 s. 48(2).	(ha) specifying the kind of work that a category or class of registered building practitioner (other than a builder) is authorised to carry out by that registration;
S. 261(1)(hb) inserted by No. 15/2016 s. 26, amended by No. 46/2018 s. 24(4), substituted by No. 40/2021 s. 42(7).	(hb) specifying the building work that a category or class of a registered builder (including a provisionally registered builder) is authorised to carry out by that registration;
S. 261(1)(hc) inserted by No. 46/2018 s. 24(5), substituted by No. 40/2021 s. 42(8).	(hc) specifying the building work that a class of licensed building employee (including a provisionally licensed building employee) is authorised to carry out by the licence;
S. 261(1)(i) substituted by No. 46/2018 s. 24(6).	(i) the form and divisions of the Register of Building Practitioners and the Register of Building Employees and the information to be included in those Registers;
	(j) the professional standards to be observed by registered building practitioners in the different categories or classes;
S. 261(1)(ja) inserted by No. 66/2004 s. 19(1)(c).	(ja) the information to be included in, or to accompany, any notice or application required under this Act or the regulations;
	(k) forms;
S. 261(1)(ka) inserted by No. 85/2000 s. 13(1), repealed by No. 46/2008 s. 248(9).	* * * * *

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| (l) fees payable for applications, inspections, referrals, requests, appeals and lodgement of documents under this Act and for other services provided and work done by persons and bodies under this Act and the regulations; | S. 261(1)(l) amended by No. 71/1995 s. 23(1)(c). |
| (la) maximum fees payable for consideration by reporting authorities of applications for permits referred to them under this Act or the regulations for consent and report; | S. 261(1)(la) inserted by No. 28/2000 s. 16, substituted by No. 68/2001 s. 13(1)(a), amended by No. 66/2004 s. 19(1)(d). |
| (m) the procedure for making applications, referrals, requests, appeals and reviews under this Act or the regulations; | S. 261(1)(m) amended by No. 21/2017 s. 95(13). |
| (n) the giving of copies of documents or information to specified persons and bodies and the public and the manner and form in which copies of documents or information may be given under this Act or the regulations; | S. 261(1)(n) amended by No. 21/2017 s. 56(2). |
| (o) the procedures of the Authority, the Plumbing Advisory Council and the Building Regulations Advisory Committee; | S. 261(1)(o) amended by No. 68/2001 s. 3(3), substituted by No. 34/2013 s. 34(Sch. 1 item 114), amended by Nos 15/2016 s. 18(16), 3/2020 s. 26(6). |
| (oa) the proceedings of the Building Appeals Board; | S. 261(1)(oa) inserted by No. 34/2013 s. 34(Sch. 1 item 114). |

S. 261(1)(p)
amended by
No. 34/2013
s. 23(2).

- (p) the circumstances in which refunds are payable out of the Victorian Building Authority Fund;
- (q) bonds and guarantees and the circumstances in which refunds are payable in respect of them;
- (r) requiring or authorising inspections of buildings, building work, places of public entertainment and services, installations and equipment located in or in relation to buildings, building work or places of public entertainment;

S. 261(1)(ra)
inserted by
No. 68/2001
s. 13(1)(b).

- (ra) requiring or authorising the testing of essential services in buildings, building work and places of public entertainment;

S. 261(1)(s)
substituted by
No. 46/2018
s. 75(3),
amended by
No. 46/2018
s. 24(7).

- (s) certificates of registration and licence certificates;

- (t) prescribing any office or position or class of offices or positions in—

S. 261(1)(t)(i)
substituted by
No. 37/2014
s. 10(Sch.
item 9.4).

- (i) Victoria Police; or

S. 261(1)(t)(ii)
amended by
No. 20/2019
s. 148.

- (ii) Fire Rescue Victoria or any brigade under its control; or

- (iii) the Country Fire Authority or any brigade under its control; or

- (iv) a government department; or

-
- (v) a public authority—
as a prescribed office or prescribed class of
offices for the purpose of Division 5 of
Part 13;
 - (u) prescribing offences against the building
regulations for the purposes of Division 5 of
Part 13;
 - (v) prescribing penalties not exceeding
10 penalty units for the offences prescribed
under paragraph (u);
- * * * *
- S. 261(1)(w)(x)
repealed by
No. 32/2006
s. 94(Sch.
item 4(8)).
- (y) generally providing for any other matter or
thing required or permitted by this Act to be
prescribed or necessary to be prescribed to
give effect to this Act.
- * * * *
- S. 261(2)
inserted by
No. 85/2000
s. 13(2),
amended by
No. 54/2007
s. 11(3),
repealed by
No. 46/2008
s. 248(9).

262 Additional regulation-making powers

- Any regulations made under this Act—
- (a) may be of general or limited application; and
 - (b) may differ according to differences in time,
place and circumstance; and
 - (c) may confer a discretionary authority or
impose a duty on or leave any matter to be
determined or approved by a specified
person or body or class of persons or bodies;
and

S. 262
(Heading)
amended by
No. 46/2018
s. 29(1).

S. 262(d)
amended by
Nos 71/1995
s. 23(2),
39/1996
s. 10(a),
31/2007
s. 21(a),
43/2019 s. 26.

(d) may provide for the exemption of persons or classes of persons, or buildings or classes of buildings, land or classes of land or building work or plumbing work or classes of building work or plumbing work, or materials or products or classes of materials or products in relation to building work or plumbing work, from any or all of the provisions of this Act or the regulations including any levies or fees imposed or prescribed by or under this Act or the regulations; and

S. 262(e)
amended by
Nos 31/2007
s. 21(b),
46/2018
s. 29(2).

(e) may confer power on a council or municipal building surveyor or private building surveyor to exempt any persons or classes of person or any building or classes of buildings or building work or classes of building work or any materials or products or classes of materials or products in relation to building work from all or any of the requirements of the building regulations;

S. 262(ea)
inserted by
No. 39/1996
s. 10(b),
amended by
No. 31/2007
s. 21(c).

(ea) may confer power on a compliance auditor or plumbing inspector to exempt any plumbing work or any materials or products or classes of materials or products in relation to plumbing work from all or any of the requirements of regulations made under Part 12A;

S. 262(f)
amended by
No. 66/2004
s. 19(2).

(f) may impose penalties not exceeding 20 penalty units for a contravention of the regulations.

263 Transitional provisions

Schedule 4 has effect.

264 Transitional provisions relating to the Building (Plumbing) Act 1998

Schedule 6 has effect.

S. 264
repealed by
No. 34/1997
s. 30(d),
new s. 264
inserted by
No. 75/1998
s. 18.

265 Transitional—Effect of change to Commission's name

S. 265
inserted by
No. 68/2001
s. 14.

- (1) The Building Commission is the same body as the Building Control Commission, despite the change to its name by section 3(3) of the **Building (Amendment) Act 2001** and no act, matter or thing is to be affected because of that change of name.
- (2) On and from the commencement of this section, in any Act or in any instrument made under any Act or in any other document of any kind, a reference to the Building Control Commission is deemed to be a reference to the Building Commission, unless the contrary intention appears.

* * * * *

S. 266
inserted by
No. 68/2001
s. 15,
repealed by
No. 21/2017
s. 100(4).

267 Transitional—proportionate liability

Despite the repeal of sections 131, 132 and 133 by the **Wrongs and Limitation of Actions Acts (Insurance Reform) Act 2003**, those sections continue to apply to and in relation to an award of damages in a building action commenced before that repeal.

S. 267
inserted by
No. 60/2003
s. 18.

S. 268
inserted by
No. 35/2004
s. 37,
repealed by
No. 21/2017
s. 100(4).

* * * *

S. 269
inserted by
No. 36/2008
s. 26.

269 Transitional—owner-builders

- (1) Subject to subsection (2), section 137B(7) as amended by the **Building Amendment Act 2008** applies in relation to a building whether the building was constructed before or after the commencement of section 3 of that Act.
- (2) Section 137B(7) as in force immediately before the commencement of section 3 of the **Building Amendment Act 2008** continues to apply in relation to a building if the required insurance under section 137B(2) was obtained in respect of that building before that commencement.

S. 270
inserted by
No. 36/2008
s. 27.

270 Transitional—building surveyors

On the commencement of section 5(2) of the **Building Amendment Act 2008**, any person who was registered under this Act as a building surveyor immediately before that commencement is taken to be registered as a building surveyor (unlimited).

S. 271
inserted by
No. 9/2012
s. 5.

271 Transitionals—Building Amendment Act 2012

- (1) Despite the amendments made to section 179A by section 4 of the **Building Amendment Act 2012**, section 179A as in force immediately before the commencement day continues to apply in respect of an inquiry into the conduct of a person, if the registration of the person as a building practitioner was suspended and the suspension was still in effect immediately before the commencement day, whether the inquiry commenced before, on or after the commencement day.

- (2) Section 179A as amended by section 4 of the **Building Amendment Act 2012** applies in respect of an inquiry that was commenced and continuing immediately before the commencement day in relation to the conduct of a person, if the person's registration as a building practitioner is suspended and the suspension takes effect on or after the commencement day.
- (3) For the purposes of this section, an inquiry commences when the Building Practitioners Board causes a notice to be served under section 178(2) on the registered building practitioner or the person whose registration as a registered building practitioner has been suspended (as the case may be).
- (4) In this section *commencement day* means the day on which section 4 of the **Building Amendment Act 2012** comes into operation.

272 Transitional and savings provisions—Building and Planning Legislation Amendment (Governance and Other Matters) Act 2013

S. 272
inserted by
No. 34/2013
s. 15.

Schedule 7 has effect.

272A Schedule 9—House Contracts Guarantee Repeal Act 2016

New s. 272A
inserted by
No. 21/2017
s. 95(15).

Schedule 9 has effect.

* * * * *

S. 272A
inserted by
No. 37/2016
s. 7,
repealed by
No. 21/2017
s. 95(14).

S. 273
inserted by
No. 15/2016
s. 57.

**273 Transitional and savings provisions—Building
Legislation Amendment (Consumer Protection)
Act 2016**

Schedule 8 has effect.

S. 274
inserted by
No. 21/2017
s. 93.

**274 Transitional and savings provisions relating
to the Building Amendment (Enforcement and
Other Measures) Act 2017**

Schedule 10 has effect.

S. 275
inserted by
No. 46/2018
s. 73.

**275 General transitional and savings provisions—
Building Amendment (Registration of Building
Trades and Other Matters) Act 2018**

* * * *

S. 275(1)–(4)
repealed by
No. 40/2021
s. 43(1).

- (5) Section 25AA(1) as inserted by section 32 of the amending Act applies in relation to land that is the subject of a building permit issued between 1 July 2018 and immediately before the day on which section 32 comes into operation as well as to a building permit issued on or after that day.
- (6) A registration card issued by the Authority to a registered building practitioner who is a natural person immediately before the day on which section 43 of the amending Act comes into operation and which contains the following information, is taken on and after that day to be a registration card issued under section 171GA—
- (a) the name of the building practitioner;
 - (b) the registration number of the building practitioner;
 - (c) a recent photo of the building practitioner.

- (7) Section 179(1)(db) as inserted by section 46(2) of the amending Act only applies in relation to a breach of dispute resolution order notice issued on or after the day on which section 46(2) comes into operation.
- (8) Section 179B as inserted by section 47 of the amending Act only applies in relation to a finding in respect of which a show cause notice is issued to the building practitioner on or after the day on which section 47 comes into operation.
- (9) In this section—

amending Act means the **Building Amendment (Registration of Building Trades and Other Matters) Act 2018**.

S. 275(9)
def. of
amending Act
amended by
No. 40/2021
s. 43(2)(a).

* * * * *

S. 275(9)
def. of
relevant building work
repealed by
No. 40/2021
s. 43(2)(b).

* * * * *

S. 275(9)
def. of
unregistered person
repealed by
No. 40/2021
s. 43(2)(b).

276 Transitional regulations

- (1) The Governor in Council may make regulations containing provisions of a transitional nature, including matters of an application or savings nature, arising as a result of the enactment of the amending Act, including any repeals and amendments made as a result of the enactment of that Act.

S. 276
inserted by
No. 46/2018
s. 73.

- (2) Regulations under this section may—
 - (a) have a retrospective effect to a day that is not before the day on which the amending Act receives the Royal Assent; and
 - (b) be of limited or general application; and
 - (c) differ according to time, place or circumstance; and
 - (d) leave any matter or thing to be decided by a specified person or class of person.
- (3) To the extent to which any provision of the regulations takes effect from a date that is earlier than the date of its making, the provision does not operate so as—
 - (a) to affect, in a manner prejudicial to any person (other than the State or an authority of the State), the rights of that person existing before the date of its making; or
 - (b) to impose liabilities on any person (other than the State or an authority of the State) in respect of anything done or omitted to be done before the date of its making.
- (4) Regulations under this section have effect despite anything to the contrary in any Act (other than this Act or the **Charter of Human Rights and Responsibilities Act 2006**) or in any subordinate instrument.
- (5) Sections 6 and 7 of the **Subordinate Legislation Act 1994** do not apply to any regulations made under this section.
- (6) This section expires on 1 September 2027.

S. 276(6)
amended by
No. 40/2021
s. 44.

(7) In this section—

amending Act means the **Building Amendment (Registration of Building Trades and Other Matters) Act 2018**.

277 Transitional and savings provisions—Building Amendment (Cladding Rectification) Act 2019

S. 277
inserted by
No. 43/2019
s. 27.

(1) Any amount held in the Building account immediately before the commencement day for the purpose of cladding rectification work must be paid out of that account on the commencement day into the Cladding Safety Victoria account.

(2) In this section—

commencement day means the day on which section 11 of the **Building Amendment (Cladding Rectification) Act 2019** comes into operation.

277A Transitional provision relating to the building permit levy

S. 277A
inserted by
No. 31/2020
s. 58A.

- (1) The amendments made to this Act by sections 57A, 57B, 57C, 57D, 57E and 57F of the **Cladding Safety Victoria Act 2020** apply to the calculation of the building permit levy as if those sections had been in operation on and after 1 January 2020 and for that purpose those sections are taken to have been in operation on and after 1 January 2020.
- (2) The Authority may request an applicant for a building permit or a relevant building surveyor to provide any information that it considers necessary to assist in the reassessment and refund of any building permit levy.

S. 278
inserted by
No. 43/2019
s. 27, expired
by force of
No. 126/1993
s. 278(6).

* * * *

S. 279
inserted by
No. 3/2020
s. 36.

279 Transitional and saving provisions relating to the Building and Environment Protection Legislation Amendment Act 2020

Schedule 11 has effect.

S. 280
inserted by
No. 3/2020
s. 37.

280 Transitional and savings provisions relating to the Building and Environment Protection Legislation Amendment Act 2020

- (1) This section applies to an inquiry into the conduct of a building practitioner commenced but not determined by the Building Practitioners Board before the Board was abolished on 1 September 2016, which was continued by the Board under clause 4 of Schedule 8 but not determined by the Board before the commencement of this section.
- (2) On the commencement of this section the Building Practitioners Board ceases to have the conduct of the inquiry and the Authority is to conduct and determine the inquiry.
- (3) For the purposes of subsection (2)—
 - (a) the Authority is taken to have commenced the inquiry; and
 - (b) anything done in relation to the inquiry by the Building Practitioners Board before the commencement of this section is taken to have been done by the Authority; and
 - (c) the Authority may have regard to any record of the inquiry held by the Building Practitioners Board before the commencement of this section, including a record of evidence taken in the inquiry; and

- (d) in the heading to clause 4 in Schedule 8 to the **Building Act 1993**, the reference to "**Building Practitioners Board**" is taken to be a reference to "**Authority**"; and
- (e) in clause 4(1) of Schedule 8 to the **Building Act 1993**, the reference to "Board" where secondly occurring is taken to be a reference to "Authority"; and
- (f) in clause 4(1) of Schedule 8 to the **Building Act 1993**, the reference to "old provisions" is taken to be a reference to "Division 2 of Part 11 as in force immediately before 1 September 2016" and the old provisions referred to in that clause are modified as follows—
 - (i) all references to "Building Practitioners Board" or to "Board" in the old provisions are taken to be references to "Authority";
 - (ii) section 182(1)(b) is taken not to form part of the old provisions; and
- (g) in clause 4(2) of Schedule 8 to the **Building Act 1993**, the reference to "Building Practitioners Board" is taken to be a reference to "Authority"; and
- (h) in clause 4(5) in Schedule 8 to the **Building Act 1993**, the reference to "members of the Building Practitioners Board" is taken to be a reference to "commissioners of the VBA Board".

S. 281
inserted by
No. 40/2021
s. 52.

281 Transitional and savings provisions relating to the Building Amendment (Registration and Other Matters) Act 2021

- (1) On the substitution of section 251(2A) by section 50 of the amending Act—
- (a) a lease of the type described in section 251(2A)(b) is taken to include a lease of that type that was in force immediately before and on the commencement day; and
 - (b) the rights of an occupier under section 251(2) that relate to expenses incurred by the occupier under section 251(1) in carrying out work or doing a thing relating to the installation, repairs or maintenance work in respect of an essential safety measure, immediately before the commencement day, are not affected by the occupier having agreed to bear such expenses under a lease referred to in paragraph (a).

- (2) In this section—

amending Act means the **Building Amendment (Registration and Other Matters) Act 2021**;

commencement day means the day on which section 50 of the amending Act comes into operation.

S. 282
inserted by
No. 40/2021
s. 45.

282 Transitional and savings provisions relating to the Building Amendment (Registration and Other Matters) Act 2021

- (1) Section 169EA, as amended by section 14 of the amending Act, does not apply to a person who carries out relevant building work or any aspect of that building work under a contract to carry out that building work, including a subcontract, if the person entered into that contract before that

building work was prescribed for the purposes of section 169EA.

- (2) Section 169EA, as amended by section 14 of the amending Act, does not apply to a person who carries out, as a subcontractor or as an employee, relevant building work during the following periods—
- (a) the allowed period after the relevant building work is prescribed for the purposes of section 169EA;
 - (b) if the person applies for registration as a builder (under section 171(1)(ab) as substituted by section 21(2) of the amending Act or under section 171(1)(ac) as inserted by section 21(3) of the amending Act) or for a licence as a building employee (under section 187F as amended by section 34 of the amending Act or under section 187G as substituted by section 35 of the amending Act) to carry out the relevant building work during the allowed period, but the Authority does not grant the registration or licence during that period, the allowed period as extended to whichever of the following days occurs latest—
 - (i) the day on which the Authority determines the person's application for the registration or licence;
 - (ii) if applicable, the day on which the Authority makes a reviewable decision in relation to that determination;
 - (iii) if applicable, the day on which VCAT makes a decision in relation to that determination.

- (3) Section 169FA does not apply to a person who engages an unregistered person as a subcontractor to carry out relevant building work during the following periods—
- (a) the allowed period after the relevant building work is prescribed for the purposes of section 169EA;
 - (b) if the person to be engaged as a subcontractor applies for registration as a builder (under section 171(1)(ab) as substituted by section 21(2) of the amending Act or under section 171(1)(ac) as inserted by section 21(3) of the amending Act) to carry out the relevant building work during the allowed period, but the Authority does not grant the registration during that period, the allowed period as extended to whichever of the following days occurs latest—
 - (i) the day on which the Authority determines the person's application for the registration;
 - (ii) if applicable, the day on which the Authority makes a reviewable decision in relation to that determination;
 - (iii) if applicable, the day on which VCAT makes a decision in relation to that determination.
- (4) Section 169FB, as amended by section 18(1) of the amending Act, does not apply to a person who directs or requires a person to carry out relevant building work during the following periods—
- (a) the allowed period after the relevant building work is prescribed for the purposes of section 169EA;

- (b) if the person directed or required to carry out the relevant building work applies for registration as a builder (under section 171(1)(ab) as substituted by section 21(2) of the amending Act or under section 171(1)(ac) as inserted by section 21(3) of the amending Act) or for a licence as a building employee (under section 187F as amended by section 34 of the amending Act or under section 187G as substituted by section 35 of the amending Act) to carry out the relevant building work during the allowed period, but the Authority does not grant the registration or licence during that period, the allowed period as extended to whichever of the following days occurs latest—
 - (i) the day on which the Authority determines the person's application for the registration or licence;
 - (ii) if applicable, the day on which the Authority makes a reviewable decision in relation to that determination;
 - (iii) if applicable, the day on which VCAT makes a decision in relation to that determination.
- (5) The amendments made to section 169F by section 16 of the amending Act apply only to offences alleged to have been committed on or after the commencement of that section.
- (6) For the purposes of subsection (5), if an offence is alleged to have been committed between 2 dates and section 16 of the amending Act commences on a date between those 2 dates, the offence is alleged to have been committed before the commencement of that section.

(7) In this section—

allowed period means the period allowed within which an application may be made—

- (a) in the case of a provisional registration, under section 170(2)(b) as inserted by section 19(2) of the amending Act; or
- (b) in the case of a provisional licence, under section 187A(2) as inserted by section 32(2) of the amending Act;

amending Act means the **Building Amendment (Registration and Other Matters) Act 2021**;

old amending Act means the **Building Amendment (Registration of Building Trades and Other Matters) Act 2018**;

relevant building work means a type of building work prescribed for the purposes of section 169EA;

unregistered person means a person who does not hold a registration under Part 11 that authorises the carrying out of the relevant building work.

(8) In this section—

- (a) a reference to section 169EA means a reference to section 169EA as inserted by section 10 of the old amending Act; and
- (b) a reference to section 169FA means a reference to section 169FA as inserted by section 12 of the old amending Act; and
- (c) a reference to section 169FB means a reference to section 169FB as inserted by section 12 of the old amending Act; and

- (d) a reference to section 171(1)(ab) means a reference to section 171(1)(ab) as inserted by section 14(2) of the old amending Act; and
- (e) a reference to section 187F means a reference to section 187F as inserted by section 21 of the old amending Act; and
- (f) a reference to section 187G means a reference to section 187G as inserted by section 21 of the old amending Act.

283 Transitional regulations

S. 283
inserted by
No. 40/2021
s. 45.

- (1) The Governor in Council may make regulations containing provisions of a transitional nature, including matters of an application or savings nature, arising as a result of the enactment of the **Building Amendment (Registration and Other Matters) Act 2021**, including any repeals and amendments made as a result of the enactment of that Act.
- (2) Regulations under this section may—
 - (a) have a retrospective effect to a day that is not before the day on which the **Building Amendment (Registration and Other Matters) Act 2021** receives the Royal Assent; and
 - (b) be of limited or general application; and
 - (c) differ according to time, place or circumstance; and
 - (d) leave any matter or thing to be decided by a specified person or class of person.
- (3) To the extent to which any provision of the regulations under this section takes effect from a date that is earlier than the date of its making, the provision does not operate so as—

- (a) to affect, in a manner prejudicial to any person (other than the State or an authority of the State), the rights of that person existing before the date of its making; or
 - (b) to impose liabilities on any person (other than the State or an authority of the State) in respect of anything done or omitted to be done before the date of its making.
- (4) Regulations under this section have effect despite anything to the contrary in any Act (other than the **Building Amendment (Registration and Other Matters) Act 2021** or the **Charter of Human Rights and Responsibilities Act 2006**) or in any subordinate instrument.
- (5) The following are not required for any proposed statutory rule that is to be made under this section—
- (a) consultation under section 6 of the **Subordinate Legislation Act 1994**;
 - (b) the preparation of a regulatory impact statement under section 7 of the **Subordinate Legislation Act 1994**.
- (6) This section is **repealed** on 1 September 2027.

S. 284
inserted by
No. 40/2021
s. 52A.

284 Transitional and saving provision relating to the Building Amendment (Registration and Other Matters) Act 2021

- (1) Any right to take a cladding building action that expired under section 134(2) as in force immediately before the commencement of section 49A of the amending Act is taken for all purposes never to have expired and continues until it expires under section 134(2) as amended by section 49A of the amending Act.

(2) In this section—

amending Act means the **Building Amendment (Registration and Other Matters) Act 2021**.

285 Transitional and saving provisions relating to the Building Legislation Amendment Act 2023

S. 285
inserted by
No. 11/2023
s. 49.

- (1) Despite the substitution of section 210(2)(n) by section 27 of the amending Act—
- (a) the Building Regulations Advisory Committee remains the same body and continues in operation; and
 - (b) the member of the Building Regulations Advisory Committee appointed under section 210(2)(n) immediately before the commencement of section 27 of the amending Act remains in office for the remainder of that member's term of office.
- (2) Despite the substitution of section 211B(2)(k) by section 28 of the amending Act—
- (a) the Plumbing Advisory Council remains the same body and continues in operation; and
 - (b) the member of the Plumbing Advisory Council appointed under section 211B(2)(k) immediately before the commencement of section 28 of the amending Act remains in office for the remainder of that member's term of office.
- (3) A person registered in the category of draftsperson in a prescribed class of draftsperson before the commencement of section 31(3) of the amending Act (the ***former registration***) is taken to be registered in the category of building designer in the prescribed class of building designer equivalent to that prescribed class of draftsperson on and from the commencement of section 31(3)

(the **new registration**) and any condition imposed on the former registration is taken to be imposed on the new registration.

- (4) An application made under section 170(1) for the registration of a person in the category of a draftsman in a prescribed class of draftsman received but not determined by the Authority before the commencement of section 31(3) of the amending Act is taken to be an application for registration of that person in the category of building designer in the prescribed class of building designer equivalent to that prescribed class of draftsman.
- (5) A person registered in the category of a person responsible for a building project or any stage of a building project in a prescribed class of person responsible for a building project or any stage of a building project before the commencement of section 31(5) of the amending Act (the **former registration**) is taken to be registered in the category of project manager in the prescribed class of project manager equivalent to that prescribed class of person responsible for a building project or any stage of a building project on and from the commencement of section 31(5) (the **new registration**) and any condition imposed on the former registration is taken to be imposed on the new registration.
- (6) An application made under section 170(1) for the registration of a person in the category of a person responsible for a building project or any stage of a building project in a prescribed class of person responsible for a building project or any stage of a building project received but not determined by the Authority before the commencement of section 31(5) of the amending Act is taken to be an application for registration of that person in the category of project manager in the prescribed

class of project manager equivalent to that prescribed class of a person responsible for a building project or any stage of a building project.

- (7) Section 17A(2), as inserted by section 32 of the amending Act, does not apply in respect of a building permit issued for building work in respect of a class of building, if the application for the permit was received by the relevant building surveyor but the permit was not issued before that class of building was prescribed for the purposes of section 17A(2) as inserted by section 32 of the amending Act.
- (8) Section 41A(1), as inserted by section 36 of the amending Act, does not apply in respect of an application for an occupancy permit in relation to the construction of a new building of a prescribed class of building, if that class of building was prescribed before the application for the occupancy permit was received by the relevant building surveyor.
- (9) In this section—

amending Act means the **Building Legislation Amendment Act 2023**.

286 Transitional regulations

S. 286
inserted by
No. 11/2023
s. 49.

- (1) The Governor in Council may make regulations containing provisions of a transitional nature, including matters of an application or savings nature, arising as a result of the enactment of the **Building Legislation Amendment Act 2023**, including any repeals and amendments made as a result of the enactment of that Act.
- (2) Regulations under this section may—
- (a) have a retrospective effect to a day that is not before the day on which the **Building Legislation Amendment Act 2023** receives the Royal Assent; and

- (b) be of limited or general application; and
 - (c) differ according to time, place or circumstance; and
 - (d) leave any matter or thing to be decided by a specified person or class of person.
- (3) To the extent to which any provision of the regulations under this section takes effect from a date that is earlier than the date of its making, the provision does not operate so as—
 - (a) to affect, in a manner prejudicial to any person (other than the State or an authority of the State), the rights of that person existing before the date of its making; or
 - (b) to impose liabilities on any person (other than the State or an authority of the State) in respect of anything done or omitted to be done before the date of its making.
- (4) Regulations under this section have effect despite anything to the contrary in any Act (other than the **Building Legislation Amendment Act 2023** or the **Charter of Human Rights and Responsibilities Act 2006**) or in any subordinate instrument.
- (5) The following are not required for any proposed statutory rule that is to be made under this section—
 - (a) consultation under section 6 of the **Subordinate Legislation Act 1994**;
 - (b) the preparation of a regulatory impact statement under section 7 of the **Subordinate Legislation Act 1994**.
- (6) This section is **repealed** on 1 December 2027.

Schedules

Schedule 1—Building regulations

Part 1—Regulation-making powers

Part 2

1. Design and siting of buildings including—
 - (a) matters relating to the availability of light to, and the overshadowing of, nearby buildings and allotments;
 - (b) matters relating to privacy and overlooking, in relation to nearby buildings and allotments;
 - (c) matters relating to the height of a building, and the distances from buildings to the boundaries of an allotment or to nearby buildings;
 - (d) matters relating to how much of an allotment may be used for buildings, how much of an allotment may be covered by impermeable surfaces and the provision of open spaces on an allotment;
 - (e) matters relating to the preservation of trees, and of architectural or heritage features;
 - (f) matters relating to the provision of car parking in relation to an allotment;
 - (g) matters relating to the use of impermeable surface materials on an allotment and their effect on drainage and runoff;
 - (h) matters relating to the amenity of nearby buildings and allotments;
 - (i) matters relating to the energy efficiency of buildings;
 - (j) matters relating to associated fences and boundary walls.

Sch. 1 item 1
amended by
No. 30/2001
s. 6.

Building Act 1993
No. 126 of 1993
Schedule 1—Building regulations

Sch. 1 item 5
repealed by
No. 3/2020
s 38.

2. Form and contents of plans and specifications for building work.
3. Preparation of land for building work.
4. The construction of buildings.

* * * *

Sch. 1 item 6
substituted by
No. 46/2018
s. 74.

6. The use and testing (including the destructive testing) of specified building products and materials.
7. Structural strength, integrity, stability, durability and insulating properties of building work and materials.
8. Fire prevention, fire fighting equipment and precautions and other emergency installations, services and equipment.
9. The designation of areas liable to bushfires.
10. Prevention of flooding of buildings and designation of areas liable to flooding.
11. The designation of alpine areas.
12. The environmental and energy efficiency of buildings.
13. Moisture resistance of buildings.
14. Heating, cooling, ventilation, air conditioning and lighting of buildings.
15. Noise resistant construction of buildings.
16. The resistance of buildings to infestation and the designation of areas liable to infestation.
17. The construction and maintenance of floor, wall and roof coverings and of finishes to buildings.
18. The construction and maintenance of lifts and lift-shafts in buildings.

Building Act 1993
No. 126 of 1993
Schedule 1—Building regulations

* * * *

Sch. 1 item 19
repealed by
No. 68/2001
s. 16.

20. Utility, safety and hygiene services, installations and equipment located in, or related to, buildings and places of public entertainment.
21. The structural adequacy of advertising signs and hoardings.
22. Fixtures projecting from buildings and dangers arising out of projections from construction work.
23. The protection of adjoining property.
24. Use of public space for construction work.
25. Access to and egress from buildings and places of public entertainment.
26. Suitability of buildings and places of public entertainment for occupation.
27. The number of people who can be accommodated in buildings and places of public entertainment.
28. Use and maintenance of buildings and places of public entertainment including use and maintenance and replacement of services, installations and equipment referred to in this Schedule.
29. Changes of use of buildings and places of public entertainment.
30. The manner of alteration and demolition of and additions to buildings, including the connecting or dividing of buildings.
31. The classification of buildings and places of public entertainment and the application of building regulations to different classes of buildings and places of public entertainment.

Building Act 1993
No. 126 of 1993
Schedule 1—Building regulations

32. The provision of certificates as to compliance with any or all of the building regulations or with respect to any other matters under the building regulations.
33. The records to be kept of—
- (a) the carrying out of building work; and
 - (b) the maintenance of buildings and places of public entertainment; and
 - (c) the maintenance and replacement of services, installations and equipment referred to in this Schedule.
34. The safety of buildings and places of public entertainment.

Sch. 1 Pt 2
amended by
No. 34/1997
s. 29,
repealed by
No. 68/2001
s. 4(2).

* * * * *

Schedule 2—Procedures for building permits and occupancy permits

Ss 18, 42, 54

1 Form of application

An application must—

- | | |
|---|---|
| (a) contain the prescribed information; and | Sch. 2 cl. 1(a) substituted by No. 66/2004 s. 9(4). |
| (b) contain any matters, and be accompanied by any documents, prescribed for the purposes of this clause or under this Act; and | Sch. 2 cl. 1(b) amended by No. 11/2023 s. 50. |
| (c) be accompanied by the fees— | Sch. 2 cl. 1(c) amended by No. 71/1995 s. 24. |
| (i) determined by the council in accordance with the Local Government Act 2020 ; or | Sch. 2 cl. 1(c)(i) amended by No. 9/2020 s. 390(Sch. 1 item 8.4). |
| (ii) in the case of an application to a private building surveyor, determined by the private building surveyor; and | |
| (d) be accompanied by the appropriate prescribed lodgement fee (if any); and | Sch. 2 cl. 1(d) inserted by No. 71/1995 s. 24, amended by No. 28/2000 s. 17(1). |
| (e) if the relevant building surveyor is required to give a copy of the application to an authority which is a reporting authority, be accompanied by the relevant fees (if any) fixed by the reporting authority under | Sch. 2 cl. 1(e) inserted by No. 28/2000 s. 17(1), amended by Nos 68/2001 s. 13(2)(a), 66/2004 s. 20(1). |

clause 4 for payment to the reporting authority.

2 Building surveyor may request more information

- (1) The relevant building surveyor may require an applicant to provide additional information or documents or to amend the application before the relevant building surveyor deals with or deals further with the application.
- (2) The prescribed time within which the relevant building surveyor must decide an application for a permit—
 - (a) ceases to run at the time when the relevant building surveyor requires the applicant to provide additional information or documents or amend the application; and
 - (b) recommences to run only when the information, documents or amended application are supplied to the relevant building surveyor.

3 Application may be refused if information not provided

- (1) If additional information or a document or an amended application required to be supplied by an applicant is not supplied within the time specified by the relevant building surveyor, the relevant building surveyor may refuse the application.
- (2) Before refusing an application under subclause (1), the relevant building surveyor must give the applicant 30 days notice in writing of his or her intention to refuse the application.

4 Reporting authorities must be consulted

- (1) Subject to this Schedule, the relevant building surveyor must not decide an application for a permit that is required by this Act or the regulations or by any other Act or regulations to

Sch. 2 cl. 4(1)
amended by
No. 28/2000
s. 17(2).

be reported on, or consented to, by a reporting authority unless the report or consent has been obtained.

(2) Unless exempted by this Schedule, the relevant building surveyor must give a copy of an application to each reporting authority within the prescribed time after the application is received by the relevant building surveyor.

(3) The relevant building surveyor must forward to a reporting authority with the copy of an application, any fees paid to the building surveyor under clause 1(e) in respect of that application and that reporting authority.

Sch. 2 cl. 4(3)
inserted by
No. 28/2000
s. 17(3).

(4) A reporting authority may fix fees (not exceeding the maximum fees prescribed for the purposes of this clause) for applications or classes of applications referred to it under this Act or the regulations.

Sch. 2 cl. 4(4)
inserted by
No. 66/2004
s. 20(2).

(5) If the reporting authority is a council, the fees must be determined in accordance with the **Local Government Act 2020**.

Sch. 2 cl. 4(5)
inserted by
No. 66/2004
s. 20(2),
amended by
No. 9/2020
s. 390(Sch. 1
item 8.4).

(6) A reporting authority other than a council must publish a notice in the Government Gazette of any fees fixed by it under this clause.

Sch. 2 cl. 4(6)
inserted by
No. 66/2004
s. 20(2).

4A Reporting authority must have regard to section 188A guidelines in some cases

Sch. 2 cl. 4A
inserted by
No. 30/2001
s. 7.

(1) This clause applies if—

(a) a reporting authority is required by this or any other Act or by the regulations to report on, or to consent to, an application for a building permit for a single dwelling, within the meaning of section 188A(4); and

- (b) the regulations provide that section 188A applies to applications of that kind.
- (2) In reporting on, or considering whether to consent to, the application, the reporting authority—
 - (a) must have regard to the guidelines for the time being in force under section 188A; and
 - (b) in having regard to those guidelines, if in the opinion of the reporting authority the application may result in a nearby allotment suffering detriment, must give the owner of the allotment an opportunity to make a submission in respect of the possible detriment; and
 - (c) must consider any submission made under paragraph (b); and
 - (d) must refuse to give its consent to the application if the application does not comply with any matter set out in those guidelines.

5 Applicant may obtain report or consent

- (1) An applicant for a permit may obtain a required report or consent from a reporting authority.
- (1A) If the applicant applies for a consent or report to a reporting authority, the application must be accompanied by the relevant fees (if any) fixed by the reporting authority under clause 4.
- (2) An applicant for a permit must notify the relevant building surveyor when the application is made as to whether the applicant has applied or intends to apply for any required report or consent by a reporting authority;

Sch. 2
cl. 5(1A)
inserted by
No. 28/2000
s. 17(4),
amended by
Nos 68/2001
s. 13(2)(b)(i)
(ii), 66/2004
s. 20(3).

- (3) The relevant building surveyor need not obtain a report or consent from a reporting authority if the applicant—
 - (a) notifies the building surveyor that the applicant has applied for or intends to apply for that report or consent; or
 - (b) supplies the relevant building surveyor with a copy of the report made in the last 12 months or of the consent.
- (4) An applicant who applies for and obtains a required report or consent must supply a copy of the report or consent to the relevant building surveyor—
 - (a) when the application for the permit is made; or
 - (b) within any further time that is prescribed or allowed by the building surveyor.

6 What if a reporting authority (other than a council or council officer) fails to supply a report or consent?

- (1) Despite anything to the contrary in the regulations or any other Act or regulations, the relevant building surveyor may proceed to decide an application without a report being obtained if a copy of the report is not supplied by the reporting authority (other than a council or an officer of a council) within the prescribed time.
- (2) A reporting authority (other than a council or an officer of a council) is taken to have consented to a permit if the authority has not within the prescribed time informed the relevant building surveyor or the applicant of—
 - (a) its consent to the application; or
 - (b) refusal of consent and the reasons for that refusal.

Sch. 2 cl. 6(2)
amended by
No. 21/2017
s. 99.

Sch. 2 cl. 6(3)
inserted by
No. 71/1995
s. 25.

- (3) An applicant for a permit may appeal to the Building Appeals Board against a failure of a reporting authority which is a council or an officer of a council to inform the relevant building surveyor or the applicant within the prescribed time of—
- (a) its consent to the application; or
 - (b) its refusal of consent and the reasons for that refusal.

Sch. 2 cl. 6(4)
inserted by
No. 71/1995
s. 25.

- (4) The Building Appeals Board must consider an appeal under subclause (3) and may make any order that it considers appropriate in the circumstances.

Sch. 2 cl. 6(5)
inserted by
No. 28/2000
s. 17(5).

- (5) This clause does not apply to a responsible authority under the **Planning and Environment Act 1987** in its capacity as a reporting authority for the purposes of section 29A of this Act.

Sch. 2 cl. 6(6)
inserted by
No. 30/2001
s. 8.

- (6) A reference in this clause to a council, with respect to an application, is to be read as including a reference to any reporting authority that has to comply with clause 4A(2) in reporting on, or considering whether to consent to, the application.

Sch. 2 cl. 6A
inserted by
No. 28/2000
s. 18.

6A What if the reporting authority is the responsible authority under the Planning and Environment Act 1987?

- (1) This clause applies only to a responsible authority under the **Planning and Environment Act 1987** in its capacity as a reporting authority for the purposes of section 29A of this Act.
- (2) Despite anything to the contrary in the regulations or any other Act or regulations, the relevant building surveyor may proceed to decide an application without a report being obtained if a copy of the report is not supplied by the reporting authority within the prescribed time.

- (3) Subject to subclause (4), a reporting authority is taken to have consented to a permit if the authority has not within the prescribed time informed the relevant building surveyor of—
- (a) its consent to the application; or
 - (b) its refusal of consent and the reasons for that refusal.
- (4) A reporting authority is taken to have refused to consent to a permit if—
- (a) the authority is required under section 29A to refuse its consent; and
 - (b) the authority has not within the prescribed time informed the relevant building surveyor of that refusal.

Sch. 2
cl. 6A(3)
amended by
No. 21/2017
s. 99.

Sch. 2
cl. 6A(4)
amended by
No. 21/2017
s. 99.

7 Relevant building surveyor must consider report

- (1) The relevant building surveyor must consider any report of a reporting authority supplied under this Schedule before deciding the relevant application for a permit.
- (2) In deciding an application, the relevant building surveyor must implement the recommendations of a prescribed reporting authority in relation to a prescribed matter.
- (3) Except as provided in subclause (2), the relevant building surveyor is not required to implement any of the recommendations in a report by a reporting authority.
- (4) For the purposes of subclause (2) and without limiting that subclause—
- (a) a responsible authority under the **Planning and Environment Act 1987** is a prescribed reporting authority; and
 - (b) a demolition to which section 29A applies is a prescribed matter.

Sch. 2 cl. 7(4)
inserted by
No. 28/2000
s. 19.

Schedule 3—Membership and procedure of boards

Part 1—Membership

Parts 10, 11 and 12

1 Term of Appointment

- (1) Subject to this clause, a member of a Board holds office for a period, not exceeding 3 years, specified in the instrument of his or her appointment.
- (2) A member of a Board is eligible for re-appointment.
- (3) The instrument of appointment of a member of a Board may specify terms and conditions of appointment not inconsistent with this Act or the regulations.
- (4) A member of a Board appointed by the Minister can be removed from office by the Minister.

Sch. 3 cl. 2
amended by
No. 3/2020
s. 39.

2 Remuneration and allowances

A member of a Board (including a chairperson or deputy chairperson) is entitled to receive—

- (a) remuneration; and
- (b) travelling or other allowances—

from time to time fixed by the Minister in respect of that member.

3 Vacancies

- (1) A member of a Board may resign from membership by letter signed by the member and delivered to the Minister.
- (2) The office of a member of a Board becomes vacant if the member—
 - (a) becomes bankrupt¹⁰; or

- (b) is convicted in Victoria of an offence punishable on first conviction with imprisonment for a term of 12 months or more or is elsewhere convicted of an offence which, if committed in Victoria, would be so punishable; or
- (c) ceases to hold a position or qualification which made the member eligible for appointment as a member.

4 Application of Public Administration Act 2004

The **Public Administration Act 2004** (other than Part 3 of that Act) applies to a member of a Board in respect of the office of member.

Sch. 3 cl. 4
amended by
No. 46/1998
s. 7(Sch. 1),
substituted by
Nos 108/2004
s. 117(1)
(Sch. 3
item 21.4),
80/2006
s. 26(Sch.
item 6).

5 Acting members

- (1) If a member of a Board is unable to perform the duties of his or her office, the Minister may appoint a person to act in the place of the member during that period of inability.
- (2) An acting appointment is to be for any term and on any conditions determined by the Minister.
- (3) The Minister may at any time terminate an acting appointment.
- (4) An acting member of a Board has all the functions of the member for whom he or she is acting.
- (5) An acting member of a Board is entitled to receive any remuneration or travelling or other allowances fixed from time to time by the Minister in respect of that acting member.

- (6) The provisions of this Schedule (except clause 2) applying to members of a Board also apply to acting members.

6 Pecuniary interests

- (1) If a member of a Board has a direct or an indirect pecuniary interest in a matter which is about to be or is being considered by the Board, the member must as soon as possible after the relevant facts come to his or her knowledge disclose the nature of the interests—
- (a) to the Minister, in the case of the chairperson; or
 - (b) to the chairperson, in the case of any other member.
- (2) A member who has disclosed a pecuniary interest in a matter under subclause (1) must not be present while the Board is considering or deciding the matter and must not take part or further part in that consideration or decision.
- (3) An act or decision of a Board is not invalid merely because a member contravenes subclause (1) or (2).
- (4) Subclause (3) does not prevent a member of a Board being removed from office because he or she has contravened subclause (1) or (2).
- (5) For the purposes of this clause, a member of a Board must not be taken to have a pecuniary interest in a matter merely because the member is engaged in the building industry or in any matter connected with that industry.
- (6) Without limiting what is a pecuniary interest in a matter for the purposes of this clause, a person must be taken to have a pecuniary interest in a matter relating to a building or building work if the person—

- (a) is or was involved in designing the building;
or
- (b) has assisted in preparing or making an application for a building permit or occupancy permit for the building or work;
or
- (c) is the relevant building surveyor in respect of an application for a permit for that building or building work.

7 Membership of Board not office or place of profit

A member of a Board must not, in respect of the office of member, be taken to hold an office or place of profit under the Crown which would—

- (a) prevent the member sitting or voting as a member of the Legislative Council or Legislative Assembly; or
- (b) make void the member's election to the Legislative Council or Legislative Assembly;
or
- (c) prevent the member continuing to be a member of the Legislative Council or Legislative Assembly; or
- (d) subject the member to liability to a penalty under the **Constitution Act 1975**.

Part 2—General procedure

8 Building Appeals Board may sit in panels

- (1) For the purposes of performing any of its functions, the Building Appeals Board may be constituted by one or more panels of its members.
- (2) The chairperson of the Building Appeals Board may determine which and how many of its members are to constitute a panel and what

proceedings or classes of proceedings are to be allocated to each panel.

- (3) If a panel of two or more members includes the chairperson of the Building Appeals Board, he or she is the chairperson of the panel.
- (4) If a panel of two or more members includes the deputy chairperson but not the chairperson of the Building Appeals Board, the deputy chairperson is the chairperson of the panel.
- (5) If a panel of two or more members does not include the chairperson or deputy chairperson of the Building Appeals Board, the members of the panel may elect the chairperson of the panel.
- (6) If, after a proceeding has commenced before a panel of two or more members, a member of the panel becomes unavailable—
 - (a) if the parties to the proceeding agree, the proceeding may be continued and completed before the remaining members of the panel; and
 - (b) if the member who is unavailable is the chairperson of the panel another chairperson of the panel must be chosen in accordance with this clause.
- (7) If the parties do not agree to continue a proceeding under subclause (6) the chairperson of the Building Appeals Board must arrange for the matter to be reconsidered by another panel, and that other panel may have regard to the earlier proceedings.
- (8) The chairperson of the Building Appeals Board must arrange for records to be kept of the proceedings and decisions of each panel of the Board.

- (9) Except where this Schedule otherwise expressly provides, a provision of this Part or Part 3 applying to a Board applies to a panel.

9 Decisions not affected by certain matters

An act or decision of a Board is not invalid only because—

- (a) of a defect or irregularity in the appointment of a member or acting member; or
- (b) of a vacancy in its membership; or
- (c) the occasion for the appointment of an acting member has ceased to exist.

10 Meetings

- (1) Subclauses (2), (3) and (5) do not apply to the Building Appeals Board when constituted by a panel.
- (2) At a meeting of a Board a quorum is half the number of the members currently holding office and, if this would not be a whole number, the next highest whole number.
- (3) The functions of a Board may be performed at a meeting at which there is a quorum.
- (4) At a meeting a decision of a Board is the decision of the majority of the members present and voting at the meeting and if voting is equal, the person presiding at the meeting has a casting vote as well as a deliberative vote.
- (5) The person who is to preside at a meeting of a Board is—
 - (a) the chairperson, if present; or
 - (b) the deputy chairperson (if any), if the chairperson is not present; or

Sch. 3 cl. 10(7)
inserted by
No. 96/2004
s. 22.

- (c) a person elected by the members present, if the chairperson is not present and either there is no deputy chairperson or the deputy chairperson is not present.
- (6) Subject to this Act and the regulations, the procedure of a Board is in its discretion.
- (7) If a member of a Board holds 2 or more positions on the Board ex officio—
 - (a) he or she is only entitled to exercise a single deliberative vote at meetings of the Board, regardless of how many of those positions he or she holds on the Board; and
 - (b) for the purposes of determining the total number of members of the Board currently holding office for the purposes of determining whether a quorum of the members is present, all the ex officio positions held by the member are to be counted as one member.

11 Authentication of documents

- (1) A document required or authorised to be prepared by a Board must be taken to be authenticated by the Board if—
 - (a) in the case of a document of a panel of the Building Appeals Board, it is signed by the Registrar of the Building Appeals Board and either the chairperson of the panel or the chairperson of the Building Appeals Board; or
 - (b) in any other case, it is signed by the chairperson or deputy chairperson of the Board and the Registrar of the Board or another person employed for the purposes of

this Act and designated by the Board for that purpose.

- (2) The production of a document purporting to be a copy of a record of an act or decision of a Board and purporting to be signed by the Registrar is evidence and, in the absence of evidence to the contrary, is proof that a decision in those terms was duly made by the Board or that the stated act was duly done by the Board.

Part 3—Proceedings before the Building Appeals Board

12 Additional powers of Board

This Part is in addition to and does not take away from any other provision of this Act.

13 How to commence a proceeding

- (1) A person may commence a proceeding before the Building Appeals Board by serving on the Board an application, a notice of appeal or a notice of referral of a matter to the Board, as appropriate.
- (2) A document commencing a proceeding—
- (a) must specify—
 - (i) the nature of the proceeding; and
 - (ii) the grounds for commencing the proceeding; and
 - (iii) the relief sought; and
 - (b) must be in accordance with the regulations (if any).
- (3) The person who serves a document commencing a proceeding must without delay serve a copy of that document on—
- (a) the decision-maker, if the proceeding is an appeal; and

Sch. 3
cl. 13(3)(c)
substituted by
Nos 21/2017
s. 95(16),
7/2017
s. 296(4).

- (b) in the case of a matter referred to the Building Appeals Board, any other person with a right to refer that matter to the Board; and
- (c) in the case of an application for a modification of a provision of the building regulations that relates to a building or land on the Heritage Register under the **Heritage Act 2017**, the Heritage Council; and
- (d) any other party concerned.

14 Parties to a proceeding

A person who, under clause 13, is entitled to be served with a copy of a document commencing a proceeding before the Building Appeals Board is a party to that proceeding.

15 Conducting a proceeding

Sch. 3 cl. 15(2)
amended by
Nos 69/2009
s. 54(Sch. Pt 2
item 7.1),
21/2017
s. 95(17).

- (1) The Building Appeals Board must give the parties to the proceeding reasonable opportunity to make—
 - (a) oral submissions at a hearing; or
 - (b) written submissions in the case of a proceeding that is not a hearing.
- (2) Sections 14, 15, 16 and 21A of the **Evidence (Miscellaneous Provisions) Act 1958**, as in force immediately before their repeal, apply to the Building Appeals Board in relation to a proceeding as if the Board were a Board appointed by the Governor in Council.
- (3) The Building Appeals Board—
 - (a) may proceed by accepting written submissions or by conducting a hearing; and

- (b) may inform itself in any manner it thinks fit;
and
 - (c) is bound by the rules of natural justice; and
 - (d) is not bound by any rule or practice as to
evidence; and
 - (e) may conduct a proceeding in private if it
considers it in the public interest or the
interest of justice to do so, but must
otherwise hold its hearing in public; and
 - (f) must proceed with as little formality and
technicality and with as much expedition as
the requirements of this Act and the
regulations and the proper consideration of
the matter before it permit; and
 - (g) may proceed with the hearing in the absence
of a party to the proceeding if it is satisfied
that the party has been given reasonable
notice of the date, time and place of the
hearing; and
 - (h) may at any time adjourn the proceeding; and
 - (i) may deal with proceedings or classes of
proceedings together if it is satisfied that
they relate to the same parties, the same
building, land or building work or the same
or related subject-matter; and
 - (j) may seek the independent advice of a person
to assist it in dealing with the proceeding.
- (4) A party to a proceeding may appear at a hearing
before the Building Appeals Board or do anything
else in relation to a proceeding before that Board
either personally or through an agent.

Sch. 3
cl. 15(3)(b)
amended by
No. 21/2017
s. 95(18).

- (5) The Board must disclose to each party to a proceeding any advice it receives under subclause (3)(j) and give each party a reasonable opportunity to make submissions about that advice before determining the proceeding.

16 Determinations and reasons

- (1) A determination of the Building Appeals Board must be in writing.
- (2) The determination may include any order as to costs that the Building Appeals Board, on the application of a party to the proceeding, considers is just.
- (3) The determination may include any other incidental order or direction that the Building Appeals Board considers is necessary.
- (4) The Building Appeals Board must without delay cause a copy of its determination in any proceeding to be served on each party to the proceeding.
- (5) Within one month after being served with a copy of the Building Appeals Board's determination, or within any further time allowed by the Board, a party to a proceeding may request the Board to give to the party written reasons for its determination.
- (6) The Building Appeals Board must comply with a request received under subclause (5) without delay after receiving it.
- (7) The Building Appeals Board may make public any of its determinations in any manner it thinks fit.
- (8) The Building Appeals Board is not bound by its earlier determinations.

17 Costs

Unless the Building Appeals Board otherwise determines, a party to a proceeding before the Board must bear his, her or its own costs.

18 Correction of errors

- (1) On its own initiative or at the request of a party to a proceeding, the Building Appeals Board or a panel of the Board may make a determination correcting an earlier determination in which there is—
 - (a) a clerical error or accidental slip or omission;
or
 - (b) an evident material miscalculation of figures;
or
 - (c) an evident material mistake in the description of a person, property or thing.
- (2) The powers of the Board under subclause (1) may also be exercised on behalf of the Board by—
 - (a) the chairperson of a panel of two or more members; or
 - (b) the chairperson of the Building Appeals Board, if the relevant panel or the chairperson of the panel is unavailable.

19 Enforcement of determination

A determination of the Building Appeals Board may be enforced as if it were a judgment or order of a court of competent jurisdiction.

Schedule 4—Transitional provisions

Section 263

1 Definitions

In this Schedule—

former body means any of the following bodies established under the old Act—

- (a) the Building Control Technical Advisory Council;
- (b) an advisory committee (including a special advisory committee);
- (c) a Development Approvals Co-ordinating Committee;
- (d) the Building Control Accreditation Authority;
- (e) the Building Control Qualification Board;
- (f) a Building Referees Board;
- (g) the Building Referees Panel;

former officer means any of the following people appointed or employed for the purposes of the old Act—

- (a) a Development Approvals Co-ordinator;
- (b) the Registrar of the Building Control Accreditation Authority;
- (c) the Registrar of Building Referees Boards;
- (d) the Registrar of the Building Control Qualification Board;
- (e) the Director of Building Control;
- (f) the State Building Surveyor;

- (g) the Secretary of the Building Control Technical Advisory Council;
- (h) any other officer or employee of the public service;

old Act means the **Building Control Act 1981**;

proceeding includes an inquiry, investigation, appeal, reservation of a question of law, dispute, reference or application but does not include an application for accreditation or for a certificate of qualification as a building surveyor or building inspector.

2 General transitional provisions

- (1) This Schedule does not affect or take away from the **Interpretation of Legislation Act 1984**.
- (2) Without limiting subclause (1), in declaring that certain provisions of this Act are to be treated as re-enacting with modifications certain provisions of the old Act, this Schedule must not be taken to—
 - (a) limit the operation of any provision of the **Interpretation of Legislation Act 1984** relating to re-enactment; or
 - (b) be an exhaustive list of the provisions of the old Act re-enacted by this Act.
- (3) If this Schedule provides that a provision of the old Act continues to apply to any matter or thing, then any regulation or other instrument having effect under that Act for the purposes of that provision also continues to apply to that matter or thing.
- (4) If—
 - (a) a provision of the old Act; or
 - (b) a provision of the Victoria Building Regulations 1983; or

- (c) a provision of a regulation or instrument referred to in subclause (3)—

continues to apply to a matter or thing, it continues to apply as in force immediately before that provision was repealed or revoked.

- (5) This Schedule applies despite anything to the contrary in any other provision of this Act.

3 Superseded references

On the commencement of this clause, in any Act (other than this Act or a provision of the old Act continued by this Act), or in any instrument made under any Act or in any other document of any kind—

- (a) a reference to the old Act is deemed to be a reference to the **Building Act 1993**; and
- (b) a reference to the Co-ordinator or Development Approvals Co-ordinator or the Development Approvals Co-ordinating Committee under the old Act is deemed to be a reference to the municipal building surveyor; and
- (c) a reference to building approval in relation to the old Act is deemed to be a reference to a building permit; and
- (d) a reference to a relevant authority in relation to the old Act is deemed to be a reference to a reporting authority; and
- (e) a reference to a certificate of occupancy in relation to the old Act or the building regulations is deemed to be a reference to an occupancy permit; and
- (f) a reference to the Building Control Qualification Board is deemed to be a reference to the Building Practitioners Board; and

- (g) a reference to a certificate of qualification as a building surveyor in relation to the old Act or any corresponding previous enactment is deemed to be a reference to registration as a building surveyor under this Act; and
- (h) a reference to a certificate of qualification as a building inspector in relation to the old Act or any corresponding previous enactment is deemed to be a reference to registration as a building inspector under this Act; and
- (i) a reference to the Building Control Accreditation Authority is deemed to be a reference to the Building Regulations Advisory Committee; and
- (j) a reference to the Building Control Technical Advisory Council or the Secretary, Building Control Technical Advisory Council is deemed to be a reference to the Building Regulations Advisory Committee; and
- (k) a reference to a Building Referees Board or the building referees is deemed to be a reference to the Building Appeals Board; and
- (l) a reference to the building regulations is deemed to be a reference to the building regulations made under this Act; and
- (m) a reference to the Director of Building Control is deemed to be a reference to the Commission; and
- (n) a reference to the State Building Surveyor is deemed to be a reference to the Commission; and
- (o) a reference to the approval of a temporary public building under the **Health Act 1958** is deemed to be a reference to an occupancy permit issued under Division 2 of Part 5 of this Act in respect of a temporary structure.

Sch. 4 cl. 4
repealed by
No. 21/2017
s. 100(5).

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5 Former officers

A former officer who, immediately before the commencement of this clause, was a member of staff within the meaning of the **Public Sector Management Act 1992** continues, subject to that Act, as a member of staff within the meaning of that Act, with a position or employment in the Department of Planning and Development corresponding as nearly as practicable to that held immediately before that commencement, on the same terms and conditions and with the same classification and accrued or accruing entitlements as applied to the person immediately before that commencement.

Sch. 4 cl. 6
repealed by
No. 21/2017
s. 100(5).

* * * *

7 Directions about enforcement of old Act

- (1) A direction in force under section 16(1) of the old Act immediately before the commencement of this clause has effect, on and from that commencement, as if it were a declaration made and published under section 191 in relation to this Act.
- (2) A direction in force under section 16(2) of the old Act immediately before the commencement of this clause in relation to an area declared under the **Alpine Resorts Act 1983** to be an alpine resort has effect, on and from the commencement of this clause, as if it were a declaration made and published under section 192 in relation to this Act.

- (3) On the date of commencement of this clause any reference in the direction to which subclause (1) or (2) applies to—
- (a) Part III of the old Act is deemed to be a reference to Part 3 of this Act; and
 - (b) Part VIII of the old Act is deemed to be a reference to Part 8 of this Act; and
 - (c) Part IX of the old Act is deemed to be a reference to Part 7 of this Act.

8 Building approvals

- (1) A building approval or building permit granted under the old Act or a corresponding previous enactment and existing immediately before the commencement of this clause is, on that commencement, deemed to be a building permit issued under this Act.
- (2) An application for building approval made under the old Act and not determined immediately before the commencement of this clause is deemed, on that commencement, to be an application made to a municipal building surveyor for a building permit under this Act.
- (3) Anything done before the commencement of this clause in relation to an application to which subclause (2) applies is, on and from that commencement, deemed to have been done for the purposes of this Act.
- (4) Without limiting subclause (3), a consent, refusal of consent, or condition required in relation to a matter by a relevant authority within the meaning of the old Act in relation to an application to which subclause (2) applies is deemed to be a consent, refusal of consent, or condition required by a prescribed reporting authority under this Act in relation to a prescribed matter.

- (5) If under section 20A of the old Act the Minister has appointed a person to act in place of a relevant authority in relation to an application to which subclause (2) applies, a consent, refusal of consent, or condition required in relation to a matter by that person has effect for the purposes of this Act as if the person were a prescribed reporting authority and the matter were a prescribed matter.
- (6) A levy is not payable under Division 2 of Part 12 in respect of an application to which subclause (2) applies.

Sch. 4 cl. 9
repealed by
No. 21/2017
s. 100(5).

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10 Continued immunities

- (1) Section 22 of the old Act continues to apply where—
- (a) a building approval was granted under the old Act before the commencement of this clause in respect of land liable to flooding; or
 - (b) an exemption has, before that commencement, been granted from any requirement of the building regulations within the meaning of the old Act.
- (2) Section 80 of the old Act continues to apply to the former members and the former Registrar of the Building Control Accreditation Authority in respect of anything done by that Authority, a member of that Authority, an Advisory Committee to that Authority or the Registrar before the commencement of this clause.

Sch. 4 cl. 11
repealed by
No. 34/1997
s. 30(e).

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12 Certificates of occupancy

- (1) A certificate of occupancy issued under the Victoria Building Regulations 1983 or under any corresponding previous regulations and in force immediately before the commencement of this clause is deemed, on and from that commencement, to be an occupancy permit issued under Division 1 of Part 5 of this Act, and may be amended or cancelled accordingly.
- (2) Despite anything to the contrary in the old Act or the regulations under it or in the **Interpretation of Legislation Act 1984**, a person who commenced building work more than 3 years before the commencement of this clause cannot, on or after the commencement of this clause, be charged with an offence because he or she was required to obtain a certificate of occupancy in respect of that building work and did not do so.
- (3) If the municipal building surveyor has received a notice under regulation 6.3 of the Victoria Building Regulations 1983 but has not issued a certificate of occupancy before the date of commencement of this clause, the municipal building surveyor may issue a certificate of occupancy in respect of that building on or after that commencement under those regulations.
- (4) If a municipal building surveyor has received advice under regulation 6.5 of the Victoria Building Regulations 1983, and has not revoked the existing certificate of occupancy under those regulations, that certificate of occupancy may be revoked and a new certificate of occupancy may be issued under those regulations on or after the commencement of this clause.

- (5) If a person has commenced building work 3 years or less than 3 years before the commencement of this clause but, at that commencement, has not obtained a certificate of occupancy in respect of that building work—
 - (a) a certificate of occupancy may be obtained on or after that commencement under the old Act and the Victoria Building Regulations 1983 in respect of the building work; and
 - (b) the old Act and the Victoria Building Regulations 1983 apply to any failure by that person to obtain a certificate of occupancy in respect of the building work whether before or after that commencement.
- (6) A certificate of occupancy issued after the commencement of this clause under subclause (3), (4) or (5) is deemed to be an occupancy permit under Division 1 of Part 5 of this Act.
- (7) Subject to this clause, on and from the commencement of this clause—
 - (a) no further certificate of occupancy can be issued under the Victoria Building Regulations 1983; and
 - (b) a certificate of occupancy cannot be revoked under those regulations.

13 Instruments and other matters under the building regulations

- (1) Clause 11 and the amendment of the old Act do not affect the continuity of any instrument issued or served, or thing done, under the building regulations under the old Act before the commencement of this clause.

(2) If—

- (a) a matter can be dealt with by issuing a building notice, building order or emergency order under Part 8 of this Act; and
- (b) the Victoria Building Regulations 1983 provide a mechanism for dealing with that matter (whether by notice, direction, requirement or otherwise)—

that mechanism cannot be used to deal with that matter on or after the commencement of this clause.

- (3) A notice served under regulation 57.1 or 57.2 of the Victoria Building Regulations 1983 is deemed, on the commencement of this clause, to be an emergency order under Part 8 of this Act.
- (4) A notice served under regulation 3.2(1) or 57.3 of the Victoria Building Regulations 1983 is deemed, on the commencement of this clause, to be a building notice under Part 8 of this Act.
- (5) A notice issued under regulation 3.2(3) of the Victoria Building Regulations 1983 is deemed, on the commencement of this clause, to be a building order under section 111 of this Act.

14 Building actions

Division 2 of Part 9 does not apply to building work commenced before the commencement of this clause or to building work for which an application for building approval was made before that commencement.

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Sch. 4 cl. 15
repealed by
No. 46/2008
s. 271.

Sch. 4 cl. 16
repealed by
No. 21/2017
s. 100(5).

* * * *

17 Agreements required by determinations

If, before or after the commencement of this clause, an agreement has been entered into in accordance with—

- (a) a determination of a Building Referees Board under the old Act; or
- (b) a determination of a Building Referees Board or the Building Appeals Board in a proceeding referred to in clause 16—

this Act applies to the variation or release of the agreement as if it had been made in accordance with a determination under Part 10.

18 Accreditation

- (1) Anything which, immediately before the commencement of this clause, was for the time being accredited by the Building Control Accreditation Authority is deemed to be accredited by the Building Regulations Advisory Committee for the purposes of this Act.

Sch. 4 cl. 18(2)
repealed by
No. 21/2017
s. 100(5).

* * * *

19 Building surveyors and inspectors

- (1) A person who, immediately before the commencement of this clause, holds a current certificate of qualification as a building surveyor issued or deemed to have been issued under the old Act is deemed to be registered under Part 11 of this Act as a building surveyor.

- (2) A person who, immediately before the commencement of this clause, holds a current certificate of qualification as a building inspector issued or deemed to have been issued under the old Act is deemed to be registered under Part 11 of this Act as a building inspector.
- (3) If a certificate of qualification referred to in subclause (1) or (2) was suspended immediately before the commencement of this clause, the deemed registration of the person concerned is suspended for the remainder of that period of suspension.
- (4) The Building Qualifications Register existing under the old Act immediately before the commencement of this clause is deemed to form part of the Register of Building Practitioners.
- (5) A person deemed to be registered by this clause may apply to the Registrar of the Building Practitioners Board for a building practitioner's certificate. The application must include written proof that the applicant is covered by any insurance required under Part 9.
- (6) Without delay after receiving an application in accordance with subclause (5), the Registrar of the Building Practitioners Board must issue the applicant an appropriate building practitioner's certificate in accordance with Part 11.
- (7) No fee is payable for the issue of a building practitioner's certificate under subclause (6).
- (8) A building practitioner's certificate issued under subclause (6) remains in force for 12 months after the date of its issue.
- (9) A reference in Part 11 to the anniversary of the registration of a person under that Part is deemed to be a reference to the anniversary of the date of issue of a building practitioner's certificate under

subclause (6) in relation to a person deemed to be registered under this clause.

- (10) An application made to the Building Control Qualification Board before the commencement of this clause but not determined at that commencement is deemed to be an application made to the Building Practitioners Board for registration under Part 11 of this Act.

Sch. 4 cl. 20
repealed by
No. 21/2017
s. 100(5).

* * * *

21 Offences by unregistered people—exemptions

An approval in force under section 127A(2)(d) of the old Act immediately before the commencement of this clause is deemed to be an exemption under section 176(5)(b) of this Act.

22 Fire protection

- (1) Subject to this clause, Part VIII of the old Act continues to apply to a building if, before the commencement of this clause, a joint report or fire protection notice has been issued or an order has been made under that Part.
- (2) Part VIII of the old Act ceases to apply to a building if a building notice, building order or emergency order under Part 8 of this Act is issued for that building.
- (3) Part VIII of the old Act ceases to apply to a building at the end of twelve months after the day on which action was last taken by the council or the municipal building surveyor under that Part in respect of the building.

Sch. 4
cls 23, 24
repealed by
No. 21/2017
s. 100(5).

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25 Delegations

A document evidencing a resolution in force under section 163 of the old Act issued before the commencement of this clause is deemed to be an instrument of delegation under section 11 of the **Local Government Act 2020**.

Sch. 4 cl. 25
amended by
No. 9/2020
s. 390(Sch. 1
item 8.7).

26 Re-enacted provisions

A provision of the old Act specified in Column 1 of the Table is deemed to be re-enacted (with modifications) by the provision of this Act appearing opposite in Column 2 of the Table.

TABLE

<i>Old Provision</i>	<i>New Provision</i>
Section 17	Part 12 Division 6
Section 23	Section 27
Sections 178A to 178C	Part 13 Division 5
Part IX	Part 7
Section 161	Part 13 Division 1
Section 169(1)	Section 236(6)
Section 171	Section 250
Section 173	Section 251
Section 174	Section 252

27 Saving Provision

A building permit issued in April 1996 in respect of prescribed building work within the meaning of section 27 of this Act as in force before the commencement of section 138 of the **Domestic Building Contracts and Tribunal Act 1995** is deemed to have been validly issued even if the certificate referred to in section 27(4) had not been given to the relevant building surveyor before the building permit was issued.

Sch. 4 cl. 27
inserted by
No. 2/1996
s. 13.

Sch. 4 cl. 28
inserted by
No. 26/2001
s. 15.

28 Saving provision—repeal of additional levy

- (1) The repeal of section 201(1A) by section 14 of the **House Contracts Guarantee (HIH) Act 2001** does not affect—
 - (a) any liability to pay any levy imposed under that provision before that repeal; or
 - (b) any right, obligation or power of any person relating to the payment, collection, recovery or receipt of any levy so imposed.
- (2) The provisions of subsection (1) are in addition to and not in derogation of the provisions of the **Interpretation of Legislation Act 1984**.

Building Act 1993
No. 126 of 1993
Schedule 5—Infringement offences

Schedule 5—Infringement offences

Offences	Infringement Penalty
section 221ZH(2)	5 penalty units
section 221ZI(1)	3 penalty units
section 221ZLA	1 penalty unit
section 221ZO(2)	2 penalty units
section 221ZP(3)	3 penalty units
section 221ZPA(1) or (2)	1 penalty unit

Sch. 5
repealed by
No. 34/1997
s. 30(f),
new Sch. 5
inserted by
No. 75/1998
s. 20,
amended by
Nos 96/2004
s. 19(2),
33/2010 s. 53,
21/2017
s. 44(2).

Sch. 6
inserted by
No. 75/1998
s. 20.

Schedule 6—Transitional provisions relating to the Building (Plumbing) Act 1998

1 Plumbing Industry Commission is the successor of the Plumbing Industry Board

* * * *

Sch. 6
cl. 1(1)(2)
repealed by
No. 21/2017
s. 100(6).

- (3) Any reference to the Plumbing Industry Board in any Act, subordinate instrument, agreement or other document as far as it relates to any period after the commencement of this section is to be treated as a reference to the Plumbing Industry Commission, unless the contrary intention appears.

* * * *

Sch. 6 cls 2–4
repealed by
No. 21/2017
s. 100(6).

Schedule 7—Transitional and savings provisions relating to the Building and Planning Legislation Amendment (Governance and Other Matters) Act 2013

Sch. 7
inserted by
No. 34/2013
s. 16.

Section 272

Part 1—Preliminary

1 Definitions

In this Schedule—

Building Administration Fund means the Building Administration Fund established and administered by the Building Commission under section 200 as in force immediately before the commencement day;

Building Commission means the Building Commission established by section 193 as in force immediately before the commencement day;

Building Commissioner means the Commissioner of the Building Commission;

commencement day means the day on which the 2013 Act came into operation;

Note

The **Building and Planning Legislation Amendment (Governance and Other Matters) Act 2013** came into operation on 1 July 2013.

plumbing fund means the fund established and administered by the Plumbing Industry Commission under section 221ZZZR as in force immediately before the commencement day;

Plumbing Industry Advisory Council means the body established under Division 9A of Part 12A as in force immediately before the commencement day;

Plumbing Industry Commission means the Plumbing Industry Commission established by section 221ZZR as in force immediately before the commencement day;

Plumbing Industry Commissioner means the Commissioner of the Plumbing Industry Commission;

Registrar has the same meaning as it has in section 221B;

Registrar of the Plumbing Industry Commission means the Registrar of the Plumbing Industry Commission appointed or employed under section 221ZZX as in force immediately before the commencement day;

2013 Act means the **Building and Planning Legislation Amendment (Governance and Other Matters) Act 2013**.

Part 2—Building Commission

2 Building Commission

On the commencement day—

- (a) the Building Commission is abolished and the Building Commissioner goes out of office; and
- (b) the Victorian Building Authority becomes the successor in law of the Building Commission; and

- (c) all rights, assets, liabilities and obligations of the Building Commission immediately before the commencement day become rights, assets, liabilities and obligations of the Victorian Building Authority; and
- (d) the Victorian Building Authority is substituted as a party in any proceedings, contract, agreement or arrangement commenced or made by or against or in relation to the Building Commission; and
- (e) the Victorian Building Authority may continue and complete any other continuing matter or thing commenced by or against or in relation to the Building Commission; and
- (f) any matter or thing done under an enactment or subordinate instrument by the Building Commission before the commencement day is taken to have been done by the Victorian Building Authority, so far as it relates to any period after the commencement day.

3 Superseded references

On and from the commencement day, any reference to the Building Commission in any Act, subordinate instrument, agreement or other document is taken to be a reference to the Victorian Building Authority, so far as it relates to any period after the commencement day.

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Sch. 7 cls 4, 5
repealed by
No. 21/2017
s. 100(7).

6 Transfer of staff

- (1) On and from the commencement day, all persons who were appointed or employed by the Building Commission under section 205 as in force immediately before the commencement day, and whose appointments or employment were in force

immediately before the commencement day, are taken to be appointed or engaged by the Victorian Building Authority under section 204.

- (2) A person taken to be appointed or engaged by the Authority under subclause (1) is taken to be appointed or engaged on the same terms and with the same accrued and accruing entitlements as applied to the person immediately before the commencement day.
- (3) If a person is taken to be appointed or engaged by the Authority under subclause (1)—
 - (a) the service of the person with the Authority is to be regarded for all purposes as having been continuous with the person's service with the Building Commission; and
 - (b) the person is not entitled to receive any payment or other benefit by reason only of having ceased to be appointed or employed by the Building Commission.
- (4) Nothing in this clause prevents a person appointed or employed by the Building Commission from resigning or being dismissed at any time after the commencement day in accordance with the terms of his or her appointment or employment.

7 Immunity of former Commissioners and staff

On and from the commencement day, an entitlement of the Building Commissioner or a person appointed, employed or engaged by the Building Commission to immunity under section 127, as in force immediately before the commencement day, in relation to anything done before the commencement day continues to apply to the Commissioner or person.

8 Building Administration Fund

- (1) On the commencement day, all amounts standing to the credit of the Building Administration Fund immediately before the commencement day are credited to the Building account of the Victorian Building Authority Fund.
- (2) Without limiting the generality of subclause (1)—
 - (a) all amounts standing to the credit of the general account of the Building Administration Fund immediately before the commencement day are credited to the building general account; and
 - (b) all amounts standing to the credit of the building permit levy account of the Building Administration Fund immediately before the commencement day are credited to the building permit levy account; and
 - (c) all amounts standing to the credit of the domestic building account of the Building Administration Fund immediately before the commencement day are credited to the domestic building account; and
 - (d) all amounts standing to the credit of the domestic building dispute account of the Building Administration Fund immediately before the commencement day are credited to the domestic building dispute account.
- (3) Words and expressions used in this clause have the same meaning as they have in section 205.

9 Inquiries by Building Practitioners Board—new decisions

Section 179(2) as amended by section 10 of the 2013 Act does not apply to a decision of the Building Practitioners Board on an inquiry commenced before the commencement day.

10 Building practitioner appeals

- (1) This clause applies to an appeal to the Building Appeals Board under section 143 as in force immediately before the commencement day that had commenced but had not been determined before the commencement day.
- (2) Despite the repeal of section 143 by the 2013 Act, the Building Appeals Board may continue to hear and determine the appeal—
 - (a) if the Building Appeals Board has accepted a written submission from a party or commenced to conduct a hearing; or
 - (b) in any other case, unless the Building Appeals Board refers the matter to the Victorian Civil and Administrative Tribunal under subclause (3).
- (3) For the purposes of subclause (2)(b), the Building Appeals Board, on the application of the appellant, may refer an appeal to the Victorian Civil and Administrative Tribunal for hearing and determination.
- (4) The Victorian Civil and Administrative Tribunal may hear and determine an appeal referred to it under subclause (3) as if the appeal were an application for review under section 25J or section 182A (as the case requires).

Part 3—Plumbing Industry Commission

11 Plumbing Industry Commission

On the commencement day—

- (a) the Plumbing Industry Commission is abolished and the Plumbing Industry Commissioner goes out of office; and

- (b) the Victorian Building Authority becomes the successor in law of the Plumbing Industry Commission; and
- (c) all rights, assets, liabilities and obligations of the Plumbing Industry Commission immediately before the commencement day become rights, assets, liabilities and obligations of the Victorian Building Authority; and
- (d) the Victorian Building Authority is substituted as a party in any proceedings, contract, agreement or arrangement commenced or made by or against or in relation to the Plumbing Industry Commission; and
- (e) the Victorian Building Authority may continue and complete any other continuing matter or thing commenced by or against or in relation to the Plumbing Industry Commission; and
- (f) any matter or thing done under an enactment or subordinate instrument by the Plumbing Industry Commission before the commencement day is taken to have been done by the Victorian Building Authority, so far as it relates to any period after the commencement day.

12 Superseded references

On and from the commencement day, any reference to the Plumbing Industry Commission in any Act, subordinate instrument, agreement or other document, as far as it relates to any period after the commencement day, is taken to be a reference to the Victorian Building Authority.

13 Plumbing Advisory Council

Sch. 7 cl. 13(1)
repealed by
No. 21/2017
s. 100(7).

* * * *

- (2) On and from the commencement day, any reference to the Plumbing Industry Advisory Council in any Act, subordinate instrument, agreement or other document, as far as it relates to any period after the commencement day, is taken to be a reference to the Plumbing Advisory Council.

14 Registrar of Plumbing Industry Commission

On the commencement day—

- (a) the position of Registrar of the Plumbing Industry Commission is abolished and the person occupying that position goes out of office but is taken to be a person appointed or engaged by the Authority in accordance with clause 16; and
- (b) the Registrar may continue and complete any continuing matter or thing commenced by or against or in relation to the Registrar of the Plumbing Industry Commission; and
- (c) any matter or thing done under an enactment or subordinate instrument by the Registrar of the Plumbing Industry Commission before the commencement day is taken to have been done by the Registrar, so far as it relates to any period after the commencement day.

15 Superseded references

On and from the commencement day, any reference to the Registrar of the Plumbing Industry Commission in any Act, subordinate instrument, agreement or other document, as far as

it relates to any period after the commencement day, is taken to be a reference to the Registrar.

16 Transfer of staff

- (1) On and from the commencement day, all persons who were appointed or employed by the Plumbing Industry Commission under section 221ZZX as in force immediately before the commencement day, and whose appointments or employment were in force immediately before the commencement day, are taken to be appointed or engaged by the Victorian Building Authority under section 204.
- (2) A person taken to be appointed or engaged by the Authority under subclause (1) is taken to be appointed or engaged on the same terms and with the same accrued and accruing entitlements as applied to the person immediately before the commencement day.
- (3) If a person is taken to be appointed or engaged by the Authority under subclause (1)—
 - (a) the service of the person with the Authority is to be regarded for all purposes as having been continuous with the person's service with the Plumbing Industry Commission; and
 - (b) the person is not entitled to receive any payment or other benefit by reason only of having ceased to be appointed or employed by the Plumbing Industry Commission.
- (4) Nothing in this clause prevents a person appointed or employed by the Plumbing Industry Commission from resigning or being dismissed at any time after the commencement day in accordance with the terms of his or her appointment or employment.

17 Immunity of former Commissioners and staff

On and from the commencement day, an entitlement of the Plumbing Industry Commissioner or a person appointed or employed by the Plumbing Industry Commission to immunity under section 127, as in force immediately before the commencement day, in relation to anything done before the commencement day continues to apply to the Commissioner or person.

18 Plumbing fund

On the commencement day, all amounts standing to the credit of the plumbing fund immediately before the commencement day are credited to the Plumbing account of the Victorian Building Authority Fund.

Part 4—Miscellaneous

Sch. 7 cl. 19
repealed by
No. 21/2017
s. 100(7).

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20 Registrar of Titles to amend Register

The Registrar of Titles, on being requested to do so and on submission of any relevant certificate of title or other document, must make any amendments to the Register under the provisions of the **Transfer of Land Act 1958** that are necessary because of the operation of any provision of the 2013 Act.

Schedule 8—Transitional and savings provisions relating to the Building Legislation Amendment (Consumer Protection) Act 2016

Sch. 8
inserted by
No. 15/2016
s. 58.

Section 273

Part 1—Preliminary

1 Definitions

In this Schedule—

amending Act means the **Building Legislation Amendment (Consumer Protection) Act 2016**;

new provision means a provision of this Act as in force on or after the relevant commencement day;

old provision means a provision of this Act as in force before the relevant commencement day;

relevant commencement day means—

- (a) in relation to Part 2, the day on which Division 2 of Part 3 of the **Building Legislation Amendment (Consumer Protection) Act 2016** comes into operation; and
- (b) in relation to Part 3, the day on which section 22 of the **Building Legislation Amendment (Consumer Protection) Act 2016** comes into operation.

2 General transitional provisions

- (1) This Schedule does not affect or take away from the **Interpretation of Legislation Act 1984**.
- (2) If this Part provides that an old provision continues to apply to any matter or thing, then any regulation or other instrument having effect for the purposes of that provision also continues to apply to that matter or thing.
- (3) This Schedule applies despite anything to the contrary in this Act.

Part 2—Building Practitioners Board

3 Abolition of Building Practitioners Board

- (1) On the relevant commencement day—
 - (a) the Building Practitioners Board is abolished and its members go out of office; and
 - (b) any subcommittee of the Building Practitioners Board is abolished and its members go out of office.
- (2) Subclause (1) does not affect any other provisions of this Part—
 - (a) dealing with proceedings before the Building Practitioners Board; or
 - (b) providing for the Building Practitioners Board to continue for certain purposes.
- (3) If, under this Part, the Building Practitioners Board continues for certain purposes, the old provisions relating to the membership and procedure of the Board continue to apply for those purposes.

4 Proceedings—Building Practitioners Board

- (1) If, before the relevant commencement day, the Building Practitioners Board had commenced an inquiry into the conduct of a building practitioner but the Board had not determined the inquiry, the Board may continue and determine the inquiry in accordance with the old provisions.
- (2) A determination of the Building Practitioners Board referred to in subclause (1) is taken—
 - (a) in the case of a decision under section 179 of the old provisions, to be a decision of the Authority under section 182E of the new provisions; or
 - (b) in the case of a decision under section 180 of the old provisions, to be a decision of the Authority under section 181 of the new provisions.
- (3) An application for a review that has been made under section 182A of the old provisions but not determined before the relevant commencement day may be continued and completed in accordance with the old provisions.
- (4) If the time within which an application for review could be made under section 182A of the old provisions had not expired before the relevant commencement day, the application may be made and dealt with in accordance with the old provisions.
- (5) Any costs incurred by the Authority in administering this Part, including the remuneration and allowances of members of the Building Practitioners Board continuing and completing an inquiry or proceedings under this Part, must be paid out of the Building account.

Note to
Sch. 8 cl. 4
inserted by
No. 3/2020
s. 40.

Note

Clause 4 has been amended referentially by further transitional provisions in section 280 which relate to the transfer of the conduct of any outstanding inquiries from the Building Practitioners Board to the Authority with effect from the commencement day of section 280.

5 Proceedings against the members of the Building Practitioners Board

On the relevant commencement day, the Authority is substituted for the members of the Building Practitioners Board as a party in any proceedings against the Board or its members in their capacity as such.

6 Decisions and actions of Building Practitioners Board

On the relevant commencement day, all decisions and actions taken by the Building Practitioners Board under this Act before the relevant commencement day are taken to be decisions and actions taken by the Authority in relation to any period on or after the relevant commencement day.

7 Certificates of consent

Without limiting clause 6, a certificate of consent issued by the Building Practitioners Board under Division 3A of Part 3 and existing immediately before the relevant commencement day is taken on and after that day to be a certificate of consent issued by the Authority under that Division.

8 Register of certificates of consent

The register of certificates of consent kept under section 25H immediately before the relevant commencement day is taken on and after that day to form part of the register of certificates of consent required to be kept by the Authority under that section.

9 References to Building Practitioners Board

On and from the relevant commencement day, in any Act (other than this Act or an old provision continued by this Part) or in any instrument made under any Act or in any other document of any kind, a reference to the Building Practitioners Board is taken to be a reference to the Authority in relation to any period on or after that day unless a contrary intention appears.

Part 3—Building practitioners

10 Expiry of existing registration

- (1) This clause applies to a person who was registered under Part 11 as a building practitioner immediately before the relevant commencement day.
- (2) The registration of the registered building practitioner (unless cancelled sooner) expires on the anniversary of that registration that occurs in the financial year set out in column 2 of the Table opposite the class of practitioner in column 1 of the Table to which the practitioner belongs.
- (3) The registered building practitioner may apply under Part 11 for the renewal of the registration and for that purpose the practitioner is taken to hold the prescribed qualifications for the registration.
- (4) If the registered building practitioner was taken by clause 19 of Schedule 4 to be registered, a reference in this clause to the anniversary of the registration of the practitioner is taken to be a reference to the anniversary of the date of issue of the building practitioner's certificate under clause 19(6) of Schedule 4 unless the registration currently held by the building practitioner was granted after the date of issue of that certificate.

Building Act 1993
No. 126 of 1993
Schedule 8—Transitional and savings provisions relating to the Building
Legislation Amendment (Consumer Protection) Act 2016

<i>Class of building practitioner</i>	<i>Financial year</i>
Practitioners first registered in a year ending in zero or 5	Financial year commencing 1 July 2017
Practitioners first registered in a year ending in 1 or 6	Financial year commencing 1 July 2018
<i>Class of building practitioner</i>	<i>Financial year</i>
Practitioners first registered in a year ending in 2 or 7	Financial year commencing 1 July 2019
Practitioners first registered in a year ending in 3 or 8	Financial year commencing 1 July 2020
Practitioners first registered in a year ending in 4 or 9	Financial year commencing 1 July 2021

Part 4—Building surveyors

11 Circumstances in which private building surveyor may not act

- (1) The amendments made to section 79(1) by section 39(1) of the amending Act apply only in relation to a matter referred to in section 79(1)(a) to (d) that occurs on or after the commencement of that section 39.
- (2) The amendment made to section 79 by section 39(2) of the amending Act apply only in relation to a conflict of interest that arises on or after the commencement of that section 39.

12 Recovery of money from private building surveyor

Section 83V as inserted by section 41 of the amending Act applies in relation to money paid to a private building surveyor appointed under Part 6 before, on or after the commencement of that section 41.

13 Further limitations on issue of building permit

- (1) The amendments made to section 24A by section 45 of the amending Act apply only in relation to an application for a building permit accepted by the relevant building surveyor on or after the commencement of that section 45.
- (2) The amendments made to section 24A by section 46 of the amending Act apply only in relation to an application for a building permit accepted by the relevant building surveyor on or after the commencement of that section 46.

14 Certifying of documents given to relevant council

Section 30B as inserted by section 47 of the amending Act applies only in relation to a building permit issued by the relevant building surveyor on or after the commencement of that section 47.

15 Directions under section 37

Section 37 as in force immediately before the commencement of section 49 of the amending Act continues to apply in relation to any direction given before the commencement of that section 49.

Part 5—Dispute resolution

16 Reports of inspectors

Despite the repeal of section 241B by section 68 of the amending Act, section 241B continues to apply to any report of an inspector given to the Authority before the commencement of that section 68.

Part 6—General

Sch. 8 cl. 17
repealed by
No. 126/1993
Sch. 8
cl. 17(5).

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Schedule 9—House Contracts Guarantee Act 1987

Sch. 9
inserted by
No. 37/2016
s. 8.

1 Payments from Consolidated Fund

Despite the repeal of the **House Contracts Guarantee Act 1987** by the **House Contracts Guarantee Repeal Act 2016**—

- (a) any amount payable after that repeal to a claimant under a claim made under the **House Contracts Guarantee Act 1987** before that repeal is payable from the Consolidated Fund, which is to the necessary extent appropriated accordingly; and
- (b) any amount that, but for that repeal, would be payable under section 46(2)(c) of the **House Contracts Guarantee Act 1987** into the Domestic Building (HIH) Indemnity Fund is payable into the Consolidated Fund.

Sch. 10
inserted by
No. 21/2017
s. 94.

Schedule 10—Transitional and savings provisions relating to the Building Amendment (Enforcement and Other Measures) Act 2017

Section 274

Part 1—Preliminary

1 Definitions

In this Schedule—

amending Act means the **Building Amendment (Enforcement and Other Measures) Act 2017**;

appointed day means—

- (a) in relation to clause 5, the day determined by the Authority for the purposes of clause 5 published in the Government Gazette and that is at least 28 days earlier than the relevant commencement day; and
- (b) in relation to clause 6, the day determined by the Authority for the purposes of clause 6 published in the Government Gazette and that is at least 28 days earlier than the relevant commencement day;

new provision means a provision of this Act as in force on or after the relevant commencement day;

old provision means a provision of this Act as in force before the relevant commencement day;

relevant commencement day means the day on which section 7 of the amending Act comes into operation.

2 General transitional provisions

- (1) This Schedule does not affect or take away from the **Interpretation of Legislation Act 1984**.
- (2) If this Part provides that an old provision continues to apply to any matter or thing, then any regulation or other instrument having effect for the purposes of that provision also continues to apply to that matter or thing.
- (3) This Schedule applies despite anything to the contrary in this Act.

Part 2—Building practitioners

3 Registration of body corporate builders—domestic building work

- (1) This clause applies to a body corporate if—
 - (a) immediately before the relevant commencement day, the body corporate had at least one director holding a current registration of a category or class authorising the carrying out of domestic building work; and
 - (b) immediately before the relevant commencement day, the Authority held evidence from the designated insurer of the body corporate that the body corporate held a certificate of eligibility to hold the required insurance for the domestic building work referred to in paragraph (a); and
 - (c) the body corporate had in the period of 12 months immediately preceding the relevant commencement day carried out domestic building work under a major

- domestic building contract that was covered by the required insurance; and
- (d) the Authority had not before the relevant commencement day received a report from the designated insurer of the body corporate providing that the body corporate is in a high risk insurance category; and
 - (e) the Authority had not before the relevant commencement day decided under clause 4 that the body corporate was not suitable to be registered under this clause; and
 - (f) the body corporate had not opted out of being registered under this clause in accordance with clause 5.
- (2) On the relevant commencement day, the body corporate is taken to be a registered builder in the category or class authorising the carrying out of the domestic building work referred to in subclause (1)(a).
- (3) The registration (unless sooner cancelled under this Act) expires on—
- (a) the date of expiry of the registration under clause 10 of Schedule 8 of the director referred to in subclause (1)(a); or
 - (b) if more than one director is registered as referred to in subclause (1)(a), the date of expiry under clause 10 of Schedule 8 of the first of the registrations of those directors to expire (otherwise than by resignation or cancellation).
- (4) If a body corporate is taken to be registered as a result of this clause, a director referred to in subclause (1)(a) is taken to be a nominee director of the body corporate.

- (5) The registered body corporate may apply under Part 11 for the renewal of its registration.

4 Authority may decide that body corporate not be registered under clause 3

- (1) Before the relevant commencement day, the Authority may decide that on the relevant commencement day a body corporate must not be taken to be a registered builder under clause 3 if the Authority considers that the body corporate or a director of the body corporate is not a fit and proper person.
- (2) A decision made by the Authority under subclause (1) is not reviewable by VCAT.

5 Body corporate builders that opt out of being transitioned under clause 3

- (1) This clause applies to a body corporate if—
- (a) before the relevant commencement day, the body corporate had at least one director holding a current registration of a category or class authorising the carrying out of domestic building work; and
- (b) before the relevant commencement day, the body corporate was carrying out domestic building work under a major domestic building contract and the body corporate had at least one director holding a current registration authorising the carrying out of the domestic building work under that contract; and
- (c) the body corporate has notified the Authority by the appointed day that the body corporate opts out of being registered in accordance with clause 3.

- (2) On the relevant commencement day, the body corporate may continue to carry out domestic building work under any major domestic building contract entered into before the relevant commencement date provided the body corporate continues to have a director holding a current registration authorising the carrying out of the work.

6 Registration of other bodies corporate

- (1) This clause does not apply to the registration of a body corporate to authorise the carrying out of domestic building work.
- (2) This clause applies to a body corporate if—
- (a) immediately before the relevant commencement day, the body corporate had at least one director who was registered as a building practitioner; and
 - (b) the Authority had not before the relevant commencement day decided under subclause (7) that the body corporate was not suitable to be registered under this clause; and
 - (c) the body corporate notified the Authority by the appointed day that the body corporate has elected to be registered in accordance with this clause.
- (3) On the relevant commencement day, the body corporate is taken to be registered as a building practitioner in the category or class in which the director of the body corporate was registered.
- (4) The registration (unless sooner cancelled under this Act) expires on—
- (a) the date of expiry of the registration under clause 10 of Schedule 8 of the director referred to in subclause (2); or

- (b) if more than one director is registered as referred to in subclause (2), the date of expiry under clause 10 of Schedule 8 of the first of the registrations of those directors to expire (otherwise than by resignation or cancellation).
- (5) If a body corporate is taken to be registered as a result of this clause, a director referred to in subclause (2) is taken to be a nominee director of the body corporate.
- (6) The registered body corporate may apply under Part 11 for the renewal of its registration.
- (7) Before the relevant commencement day, the Authority may decide that on the relevant commencement day the body corporate must not be taken to be registered under subclause (3) if the Authority considers that the body corporate or a director of the body corporate is not a fit and proper person.
- (8) A decision made by the Authority under subclause (7) is not reviewable by VCAT.

Part 3—Other transitional provisions

7 Further limitations on the issue of building permits

- (1) Section 24A as substituted by section 22 of the amending Act does not apply in relation to an application for a building permit that is accepted by the relevant building surveyor before the commencement of section 22 of the amending Act.
- (2) Section 24A as in force immediately before the commencement of section 22 of the amending Act continues to apply in relation to an application for a building permit that was accepted by the relevant building surveyor before that commencement.

8 Notice of ending of engagement of builder

- (1) Section 25A as substituted by section 23 of the amending Act does not apply in relation to building work for which a permit was issued before the commencement of section 23 of the amending Act.
- (2) Section 25A as in force immediately before the commencement of section 23 of the amending Act continues to apply in relation to building work for which a building permit was issued before that commencement.

9 Notice to relevant building surveyor of subsequent engagement of builder

Section 25AB as inserted by section 23 of the amending Act does not apply in relation to building work for which a permit was issued before the commencement of section 23 of the amending Act.

10 Relevant building surveyor to notify Authority and relevant council of certain information

Section 25AD as inserted by section 23 of the amending Act does not apply in relation to a building permit issued before the commencement of section 23 of the amending Act.

10A Suspension of building permit

Section 25AE as inserted by section 23 of the amending Act does not apply in relation to a building permit issued before the commencement of section 23 of the amending Act.

11 Building orders to stop building work

Section 112 as amended by section 35 of the amending Act applies to a building order made before, on or after the commencement of section 35 of the amending Act.

12 Relevant building surveyor must apply for building permit number for building permit

Section 18AA as inserted by section 58 of the amending Act does not apply in relation to an application for a building permit accepted by the relevant building surveyor before the commencement of section 58 of the amending Act.

13 Authority must be notified of increased building costs

Section 205KA as inserted by section 69 of the amending Act does not apply in relation to building work for which a building permit was issued before the commencement of section 69 of the amending Act.

14 Authority may reassess levy after building permit issued

Subdivision 4A of Division 2 of Part 12 as inserted by section 70 of the amending Act does not apply in relation to a building permit issued before the commencement of section 70 of the amending Act.

15 Assessments of levy by the Authority for unauthorised building work

Subdivision 4B of Division 2 of Part 12 as inserted by section 70 of the amending Act applies in relation to building work carried out before, on or after the commencement of section 70 of the amending Act unless the carrying out of the building work relates to an offence against section 16(1) or 16B(1) for which a person was found guilty before the commencement of section 70 of the amending Act.

Building Act 1993
No. 126 of 1993
Schedule 10—Transitional and savings provisions relating to the Building
Amendment (Enforcement and Other Measures) Act 2017

Sch. 10 Pt 4
(Heading)
repealed by
No. 11/2023
s. 51.

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Sch. 10 cl. 16
repealed by
No. 126/1993
Sch. 10
cl. 16(5).

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Schedule 11—Transitional and savings provisions relating to the Building and Environment Protection Legislation Amendment Act 2020

Sch. 11
inserted by
No. 3/2020
s. 41.

Section 279

Part 1—Preliminary

1 Definitions

In this Schedule—

accreditation holder means the person issued with a certificate of accreditation for a building product accredited by the Building Regulations Advisory Committee or any other person or body prescribed for the purposes of section 14(1);

amending Act means the **Building and Environment Protection Legislation Amendment Act 2020**;

building product means a building product, construction method, design, component or system connected with building work.

2 General transitional provisions

(1) This Schedule does not affect or take away from the **Interpretation of Legislation Act 1984**.

(2) This Schedule applies despite anything to the contrary in this Act.

Part 2—Accreditation of building products

3 Building products accredited on or after 1 January 2019

If a building product is accredited by the Building Regulations Advisory Committee or any other person or body prescribed for the purposes of

section 14(1) on or after 1 January 2019 and before the commencement of section 20 of the amending Act—

- (a) the accreditation is taken to expire 3 years after the date of accreditation; and
- (b) the Committee, person or body (as the case requires) must, within 60 days after the commencement of section 20 of the amending Act, give a written notice to the accreditation holder advising the holder of the expiry date of the accreditation and that the holder may apply for a renewal of the accreditation in accordance with this Act and the regulations.

4 Building products accredited before 1 January 2019

- (1) This clause applies in relation to a building product that has been accredited by the Building Regulations Advisory Committee or any other person or body prescribed for the purposes of section 14(1) before 1 January 2019.
- (2) The Committee, person or body (as the case requires) must, within 60 days after the commencement of section 20 of the amending Act, give a written notice to the accreditation holder—
 - (a) requesting confirmation from the holder within 60 days after the notice is given that the accreditation is still required by the holder; and
 - (b) advising the holder that the accreditation will be revoked at the end of 6 months after the notice is given unless the holder has confirmed within the 60 day period that the accreditation is still required.

- (3) The Committee, person or body (as the case requires) must publish a notice on the Authority's website and in a newspaper circulating generally in Victoria stating—
 - (a) that confirmation is required from each accreditation holder within 60 days after the notice is published that the accreditation is still required; and
 - (b) advising that every accreditation will be revoked at the end of 6 months after the notice is published unless the accreditation holder has within the 60 day period confirmed that the accreditation is still required by the holder.
- (4) If an accreditation holder has confirmed that the accreditation is still required within the 60 day period, the Committee, person or body (as the case requires) must—
 - (a) issue a new certificate of accreditation in accordance with the regulations specifying that the accreditation will expire 3 years after the date of the issue of the certificate; and
 - (b) give a written notice to the accreditation holder that the accreditation will expire at the end of the 3 year period accompanied by the certificate of accreditation.
- (5) If an accreditation holder does not, within the 60 day period, confirm that the accreditation is still required, the accreditation is revoked by virtue of this provision.
- (6) The Committee, person or body (as the case requires) must—
 - (a) give a written notice to any person who had been the holder of an accreditation revoked under subclause (5) informing the person

- that the accreditation has been revoked and
the date of the revocation; and
- (b) publish a list of all the accreditations revoked
under subclause (5) on the Authority's
website and in a newspaper circulating
generally in Victoria.

Part 3—Abolition of Building Advisory Council

5 Abolition of Building Advisory Council

On the commencement of section 25 of the
amending Act—

- (a) all members of the Building Advisory
Council other than the member nominated
under section 207(2)(ba) go out of office;
and
- (b) the member of the Building Advisory
Council nominated under section 207(2)(ba)
is taken to be a member appointed to the
Building Regulations Advisory Committee
under section 210 for the remainder of the
member's term of office with the Building
Advisory Council before its abolition.

Part 4—Membership of the Building Regulations Advisory Committee

6 Membership of Building Regulations Advisory Committee

Despite the changes made to its membership by
section 28 of the amending Act, the Building
Regulations Advisory Committee is taken to be
the same body and continues in operation subject
to this Act.

Endnotes

1 General information

See www.legislation.vic.gov.au for Victorian Bills, Acts and current authorised versions of legislation and up-to-date legislative information.

Minister's second reading speech—

Legislative Assembly: 11 November 1993

Legislative Council: 30 November 1993

The long title for the Bill for this Act was "A Bill to provide for the regulation of building and building standards, to amend various Acts and for other purposes."

Constitution Act 1975:

Section 85(5) statement:

Legislative Assembly: 11 November 1993

Legislative Council: 30 November 1993

Absolute majorities:

Legislative Assembly: 26 November 1993

Legislative Council: 1 December 1993

The **Building Act 1993** was assented to on 14 December 1993 and came into operation as follows:

Sections 1, 2 on 14 December 1993; Schedule 4 clause 11(2)(3) on 14 April 1994: Government Gazette 14 April 1994 page 882; sections 3–23, 24(1)(2)(4), 25–56, 57(1)(a)(2), 58–135, 137–175, 176(1)(a)(i)–(iii)(b)(c) (2)–(7), 177–264, Schedules 1–3, 4 (clauses 1–10, 11(1)(4)–(7), 12–26), 5 on 1 July 1994: Special Gazette (No. 42) 1 July 1994 page 1; section 24(3) on 16 January 1995: Government Gazette 15 December 1994 page 3308; rest of Act on 1 March 1995: section 2(3).

INTERPRETATION OF LEGISLATION ACT 1984 (ILA)

Style changes

Section 54A of the ILA authorises the making of the style changes set out in Schedule 1 to that Act.

References to ILA s. 39B

Sidenotes which cite ILA s. 39B refer to section 39B of the ILA which provides that where an undivided section or clause of a Schedule is amended by the insertion of one or more subsections or subclauses, the original section or clause becomes subsection or subclause (1) and is amended by the

insertion of the expression "(1)" at the beginning of the original section or clause.

Interpretation

As from 1 January 2001, amendments to section 36 of the ILA have the following effects:

- **Headings**

All headings included in an Act which is passed on or after 1 January 2001 form part of that Act. Any heading inserted in an Act which was passed before 1 January 2001, by an Act passed on or after 1 January 2001, forms part of that Act. This includes headings to Parts, Divisions or Subdivisions in a Schedule; sections; clauses; items; tables; columns; examples; diagrams; notes or forms. See section 36(1A)(2A).

- **Examples, diagrams or notes**

All examples, diagrams or notes included in an Act which is passed on or after 1 January 2001 form part of that Act. Any examples, diagrams or notes inserted in an Act which was passed before 1 January 2001, by an Act passed on or after 1 January 2001, form part of that Act. See section 36(3A).

- **Punctuation**

All punctuation included in an Act which is passed on or after 1 January 2001 forms part of that Act. Any punctuation inserted in an Act which was passed before 1 January 2001, by an Act passed on or after 1 January 2001, forms part of that Act. See section 36(3B).

- **Provision numbers**

All provision numbers included in an Act form part of that Act, whether inserted in the Act before, on or after 1 January 2001. Provision numbers include section numbers, subsection numbers, paragraphs and subparagraphs. See section 36(3C).

- **Location of "legislative items"**

A "legislative item" is a penalty, an example or a note. As from 13 October 2004, a legislative item relating to a provision of an Act is taken to be at the foot of that provision even if it is preceded or followed by another legislative item that relates to that provision. For example, if a penalty at the foot of a provision is followed by a note, both of these legislative items will be regarded as being at the foot of that provision. See section 36B.

- **Other material**

Any explanatory memorandum, table of provisions, endnotes, index and other material printed after the Endnotes does not form part of an Act. See section 36(3)(3D)(3E).

2 Table of Amendments

This publication incorporates amendments made to the **Building Act 1993** by Acts and subordinate instruments.

Building Act 1993, No. 126/1993

<i>Assent Date:</i>	14.12.93
<i>Commencement Date:</i>	S. 278(6) inserted on 17.12.19 by No. 43/2019 s. 27; Special Gazette (No. 537) 17.12.19 p. 1; Sch. 8 cl. 17(5) inserted on 4.7.16 by No. 15/2016 s. 58: Special Gazette (No. 194) 21.6.16 p. 1; Sch. 10 cl. 16(5) inserted on 24.5.17 by No. 21/2017 s. 94: s. 2(1)
<i>Note:</i>	Sch. 8 cl. 17(5) repealed Sch. 8 cl. 17 on 1.7.19; Sch. 10 cl. 16(5) repealed Sch. 10 cl. 16 on 1.7.21; s. 278(6) provided that s. 278 expired on 1.12.23
<i>Current State:</i>	This information relates only to the provision/s amending the Building Act 1993

Financial Management (Consequential Amendments) Act 1994, No. 31/1994

<i>Assent Date:</i>	31.5.94
<i>Commencement Date:</i>	S. 4(Sch. 2 item 9) on 1.1.95: Government Gazette 28.7.94 p. 2055
<i>Current State:</i>	This information relates only to the provision/s amending the Building Act 1993

Project Development and Construction Management Act 1994, No. 101/1994

<i>Assent Date:</i>	13.12.94
<i>Commencement Date:</i>	S. 64 on 22.5.95: Government Gazette 18.5.95 p. 1180
<i>Current State:</i>	This information relates only to the provision/s amending the Building Act 1993

Equal Opportunity Act 1995, No. 42/1995

<i>Assent Date:</i>	14.6.95
<i>Commencement Date:</i>	S. 224 on 5.10.95: Government Gazette 28.9.95 p. 2731; Sch. 2 item 6 on 1.1.96: Government Gazette 21.12.95 p. 3571
<i>Current State:</i>	This information relates only to the provision/s amending the Building Act 1993

Planning and Environment (Development Contributions) Act 1995, No. 50/1995

<i>Assent Date:</i>	14.6.95
<i>Commencement Date:</i>	S. 5 on 30.11.95: Government Gazette 30.11.95 p. 3303
<i>Current State:</i>	This information relates only to the provision/s amending the Building Act 1993

Building Act 1993
No. 126 of 1993
Endnotes

Building (Amendment) Act 1995, No. 71/1995 (as amended by Nos 91/1995, 34/1997)

Assent Date: 31.10.95
Commencement Date: Ss 1, 2 on 31.10.95: s. 2(1); ss 3–6, 8, 10–19, 22–25 on 1.12.95: Government Gazette 16.11.95 p. 3171; s. 7 on 1.2.96: Government Gazette 21.12.95 p. 3570; ss 9, 21 never proclaimed, repealed by No. 91/1995 s. 156; s. 20 on 1.5.96: Government Gazette 18.4.96 p. 913
Current State: All of Act in operation

Domestic Building Contracts and Tribunal Act 1995, No. 91/1995

Assent Date: 5.12.95
Commencement Date: Pt 7 (ss 136–156) on 1.5.96: Government Gazette 29.2.96 p. 445
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Heritage Act 1995, No. 93/1995

Assent Date: 5.12.95
Commencement Date: S. 218(1)(Sch. 2 items 1.1, 1.2) on 23.5.96: Government Gazette 23.5.96 p. 1248
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Domestic Building Contracts and Tribunal (Amendment) Act 1996, No. 2/1996 (as amended by No. 34/1997)

Assent Date: 18.6.96
Commencement Date: 18.6.96
Current State: All of Act in operation

Building (Amendment) Act 1996, No. 39/1996

Assent Date: 12.11.96
Commencement Date: Ss 3–10 on 24.3.97: s. 2(2); s. 29 on 29.11.98: s. 2(3)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building (Further Amendment) Act 1997, No. 34/1997

Assent Date: 3.6.97
Commencement Date: S. 32 on 31.10.95: s. 2(2); s. 33(1) on 18.6.96: s. 33(2); ss 1, 2 on 3.6.97: s. 2(1); rest of Act on 1.8.97: Special Gazette (No. 84) 29.7.97 p. 1
Current State: All of Act in operation

Local Government (Miscellaneous Amendment) Act 1997, No. 76/1997

Assent Date: 25.11.97
Commencement Date: S. 23 on 25.11.97: s. 2(1)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building Act 1993
No. 126 of 1993
Endnotes

Vocational Education and Training (Training Framework) Act 1997, No. 80/1997

Assent Date: 25.11.97
Commencement Date: S. 55(Sch. 1 item 1) on 1.1.98: Government Gazette 18.12.97 p. 3614
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Alpine Resorts (Management) Act 1997, No. 89/1997

Assent Date: 9.12.97
Commencement Date: S. 70 on 30.4.98: Government Gazette 30.4.98 p. 926
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Gas Safety Act 1997, No. 99/1997

Assent Date: 16.12.97
Commencement Date: S. 121 on 1.2.99: Government Gazette 21.1.99 p. 80
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Residential Tenancies Act 1997, No. 109/1997

Assent Date: 23.12.97
Commencement Date: S. 533(Sch. 2 item 1.1) on 1.7.98: Government Gazette 18.6.98 p. 1512
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building (Amendment) Act 1998, No. 18/1998

Assent Date: 5.5.98
Commencement Date: Ss 3–9 on 1.7.98: Special Gazette (No. 65) 30.6.98 p. 2; ss 10, 11 on 1.7.99: s. 2(3)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Public Sector Reform (Miscellaneous Amendments) Act 1998, No. 46/1998

Assent Date: 26.5.98
Commencement Date: S. 7(Sch. 1) on 1.7.98: s. 2(2)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Tribunals and Licensing Authorities (Miscellaneous Amendments) Act 1998, No. 52/1998

Assent Date: 2.6.98
Commencement Date: S. 311(Sch. 1 item 10) on 1.7.98: Government Gazette 18.6.98 p. 1512
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Mutual Recognition (Victoria) Act 1998, No. 62/1998

Assent Date: 27.10.98
Commencement Date: S. 8(1) on 27.10.98: s. 2(1)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building Act 1993
No. 126 of 1993
Endnotes

Building (Plumbing) Act 1998, No. 75/1998 (as amended by No. 74/2000)

Assent Date: 10.11.98
Commencement Date: Ss 3–5, 7–20 on 1.1.99: Government Gazette 17.12.98 p. 3053; s. 6 on 1.7.99: Government Gazette 3.6.99 p. 1256
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Transfer of Land (Single Register) Act 1998, No. 85/1998

Assent Date: 17.11.98
Commencement Date: S. 24(Sch. item 6) on 1.1.99: s. 2(3)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Gas Industry Acts (Amendment) Act 1998, No. 91/1998

Assent Date: 24.11.98
Commencement Date: S. 35 on 1.9.99: Government Gazette 5.8.99 p. 1825
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Fair Trading (Inspectors Powers and Other Amendments) Act 1999, No. 17/1999

Assent Date: 18.5.99
Commencement Date: S. 22 on 1.9.99: Government Gazette 19.8.99 p. 1901
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Planning and Environment (Amendment) Act 2000, No. 28/2000

Assent Date: 30.5.00
Commencement Date: Ss 12–20 on 1.11.00: Special Gazette (No. 157) 1.11.00 p. 2
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Business Registration Acts (Amendment) Act 2000, No. 35/2000

Assent Date: 6.6.00
Commencement Date: S. 42 on 19.6.00: Government Gazette 15.6.00 p. 1248
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building (Legionella) Act 2000, No. 85/2000

Assent Date: 5.12.00
Commencement Date: Ss 3, 10, 11 on 6.12.00: s. 2(1); ss 4–9, 12, 13 on 1.3.01: Government Gazette 1.3.01 p. 304
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Gas Industry Acts (Amendment) Act 2000, No. 91/2000

Assent Date: 5.12.00
Commencement Date: S. 38 on 12.4.01: Government Gazette 12.4.01 p. 643
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building Act 1993
No. 126 of 1993
Endnotes

Statute Law Amendment (Authorised Deposit-taking Institutions) Act 2001, No. 11/2001

Assent Date: 8.5.01
Commencement Date: S. 3(Sch. item 8) on 1.6.01: s. 2(2)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

House Contracts Guarantee (HIH) Act 2001, No. 26/2001 (as amended by No. 33/2010)

Assent Date: 7.6.01
Commencement Date: Ss 9–13 on 8.6.01: s. 2(1); ss 14, 15 on 30.6.10: s. 2(3)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building (Single Dwellings) Act 2001, No. 30/2001

Assent Date: 19.6.01
Commencement Date: 20.6.01: s. 2
Current State: All of Act in operation

Gas Industry Legislation (Miscellaneous Amendments) Act 2001, No. 32/2001

Assent Date: 19.6.01
Commencement Date: S. 25 on 1.9.01: s. 2(2)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building (Amendment) Act 2001, No. 68/2001

Assent Date: 7.11.01
Commencement Date: Ss 4, 5, 9, 10, 13 on 8.11.01: s. 2(1); ss 6, 16 on 21.12.01: Special Gazette (No. 239) 21.12.01 p. 1; ss 3, 14 on 1.1.02: s. 2(2); ss 7, 8, 11, 12, 15 on 1.7.02: s. 2(5)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Statute Law (Further Revision) Act 2002, No. 11/2002

Assent Date: 23.4.02
Commencement Date: S. 3(Sch. 1 item 6) on 24.4.02: s. 2(1)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building and Construction Industry Security of Payment Act 2002, No. 15/2002

Assent Date: 14.5.02
Commencement Date: S. 53 on 31.1.03: s. 2(2)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Domestic Building Contracts (Conciliation and Dispute Resolution) Act 2002, No. 36/2002

Assent Date: 18.6.02
Commencement Date: Ss 9, 10(1)–(3), 11–15 on 1.7.02: s. 2(2); s. 10(4) on 31.5.03: s. 2(3)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building Act 1993
No. 126 of 1993
Endnotes

Fair Trading (Amendment) Act 2003, No. 30/2003

Assent Date: 27.5.03
Commencement Date: S. 82 on 28.5.03: s. 2(1)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Wrongs and Limitation of Actions Acts (Insurance Reform) Act 2003, No. 60/2003

Assent Date: 16.6.03
Commencement Date: Ss 17, 18 on 1.1.04: Government Gazette 18.12.03 p. 3208
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Wrongs and Other Acts (Law of Negligence) Act 2003, No. 102/2003

Assent Date: 2.12.03
Commencement Date: Ss 41, 42 on 1.1.04: Government Gazette 18.12.03 p. 3208
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Architects (Amendment) Act 2004, No. 35/2004 (as amended by No. 66/2004)

Assent Date: 8.6.04
Commencement Date: Ss 34–37 on 14.6.05: Government Gazette 5.5.05 p. 851
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building (Amendment) Act 2004, No. 66/2004

Assent Date: 19.10.04
Commencement Date: Ss 3–20 on 14.6.05: Government Gazette 5.5.05 p. 851
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building (Cooling Towers and Plumbing) (Amendment) Act 2004, No. 96/2004

Assent Date: 14.12.04
Commencement Date: Ss 3, 4, 15, 17, 18, 20–22 on 15.12.04: s. 2(1); ss 5–14 on 1.3.05: s. 2(2); ss 16, 19 on 1.2.06: s. 2(4)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Planning and Environment (Development Contributions) Act 2004, No. 101/2004

Assent Date: 14.12.04
Commencement Date: S. 11 on 15.12.04: s. 2
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Public Administration Act 2004, No. 108/2004

Assent Date: 21.12.04
Commencement Date: S. 117(1)(Sch. 3 item 21) on 5.4.05: Government Gazette 31.3.05 p. 602
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building Act 1993
No. 126 of 1993
Endnotes

Legal Profession (Consequential Amendments) Act 2005, No. 18/2005

Assent Date: 24.5.05
Commencement Date: S. 18(Sch. 1 item 10) on 12.12.05: Government Gazette 1.12.05 p. 2781
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Energy Safe Victoria Act 2005, No. 39/2005

Assent Date: 27.7.05
Commencement Date: S. 54 on 10.8.05: Special Gazette (No. 147) 9.8.05 p. 1
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Health Legislation (Miscellaneous Amendments) Act 2005, No. 42/2005

Assent Date: 2.8.05
Commencement Date: S. 51 on 3.8.05: s. 2
Current State: This information relates only to the provision/s amending the **Building Act 1993**

House Contracts Guarantee (Amendment) Act 2005, No. 52/2005

Assent Date: 13.9.05
Commencement Date: S. 29 on 1.2.06: Government Gazette 25.1.06 p. 108
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Education and Training Reform Act 2006, No. 24/2006

Assent Date: 16.5.06
Commencement Date: S. 6.1.2(Sch. 7 item 2) on 1.7.07: Government Gazette 28.6.07 p. 1304
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Infringements (Consequential and Other Amendments) Act 2006, No. 32/2006

Assent Date: 13.6.06
Commencement Date: S. 94(Sch. item 4) on 1.7.06: Government Gazette 29.6.06 p. 1315
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Victorian Urban Development Authority (Amendment) Act 2006, No. 35/2006

Assent Date: 13.6.06
Commencement Date: Ss 9–11 on 1.9.06: s. 2(2)
Current State: This information relates only to provision/s amending the **Building Act 1993**

Public Sector Acts (Further Workplace Protection and Other Matters) Act 2006, No. 80/2006

Assent Date: 10.10.06
Commencement Date: S. 26(Sch. item 6) on 11.10.06: s. 2(1)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building Act 1993
No. 126 of 1993
Endnotes

Statute Law Revision Act 2007, No. 28/2007

Assent Date: 26.6.07
Commencement Date: S. 3(Sch. item 3) on 27.6.07: s. 2(1)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building Amendment (Plumbing) Act 2007, No. 31/2007

Assent Date: 24.7.07
Commencement Date: Ss 3–21 on 1.1.08: s. 2(2)
Current State: All of Act in operation

Building Amendment Act 2007, No. 54/2007

Assent Date: 7.11.07
Commencement Date: Ss 3–11 on 8.11.07: s. 2
Current State: All of Act in operation

Motor Car Traders Amendment Act 2008, No. 4/2008

Assent Date: 4.3.08
Commencement Date: S. 32(Sch. item 2) on 1.12.08: s. 2(2)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building Amendment Act 2008, No. 36/2008

Assent Date: 26.8.08
Commencement Date: Ss 16–25 on 1.1.09: Government Gazette 18.12.08 p. 2998; ss 3–15, 26, 27 on 1.9.09: s. 2(2)
Current State: All of Act in operation

Public Health and Wellbeing Act 2008, No. 46/2008

Assent Date: 2.9.08
Commencement Date: Ss 248, 271 on 1.1.10: s. 2(2)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Criminal Procedure Amendment (Consequential and Transitional Provisions) Act 2009, No. 68/2009

Assent Date: 24.11.09
Commencement Date: S. 97(Sch. item 13) on 1.1.10: Government Gazette 10.12.09 p. 3215
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Statute Law Amendment (Evidence Consequential Provisions) Act 2009, No. 69/2009

Assent Date: 24.11.09
Commencement Date: S. 54(Sch. Pt 2 item 7) on 1.1.10: s. 2(2)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building Act 1993
No. 126 of 1993
Endnotes

Planning and Environment Amendment (Growth Areas Infrastructure Contribution) Act 2010, No. 23/2010

Assent Date: 1.6.10
Commencement Date: Ss 14, 15 on 1.7.10: Special Gazette (No. 242) 25.6.10 p. 1
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Health and Human Services Legislation Amendment Act 2010, No. 29/2010

Assent Date: 8.6.10
Commencement Date: S. 48 on 1.7.10: Special Gazette (No. 235) 23.6.10 p. 1
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building Amendment Act 2010, No. 33/2010

Assent Date: 15.6.10
Commencement Date: Ss 3–38, 41–46, 49–53 on 16.7.10: Government Gazette 15.7.10 p. 1579; ss 39, 40, 47, 48 on 1.3.11: s. 2(3)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Fair Trading Amendment (Australian Consumer Law) Act 2010, No. 72/2010

Assent Date: 19.10.10
Commencement Date: S. 48(Sch. item 2) on 1.1.11: Special Gazette (No. 502) 20.12.10 p. 1
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building Amendment Act 2011, No. 5/2011

Assent Date: 12.4.11
Commencement Date: 1.5.11: s. 2
Current State: All of Act in operation

Victorian Urban Development Authority Amendment (Urban Renewal Authority Victoria) Act 2011, No. 35/2011

Assent Date: 5.7.11
Commencement Date: S. 17 on 25.10.11: Special Gazette (No. 342) 25.10.11 p. 1
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building Amendment Act 2012, No. 9/2012

Assent Date: 20.3.12
Commencement Date: 21.3.12: s. 2
Current State: All of Act in operation

Water Amendment (Governance and Other Reforms) Act 2012, No. 17/2012

Assent Date: 3.4.12
Commencement Date: S. 83 on 1.7.12: Special Gazette (No. 172) 29.5.12 p. 1
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building Act 1993
No. 126 of 1993
Endnotes

Australian Consumer Law and Fair Trading Act 2012, No. 21/2012

Assent Date: 8.5.12
Commencement Date: S. 239(Sch. 6 item 5) on 1.7.12: Special Gazette (No. 214) 28.6.12 p. 1
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building and Planning Legislation Amendment (Governance and Other Matters) Act 2013, No. 34/2013

Assent Date: 18.6.13
Commencement Date: Ss 3–12, 15–33, 34(Sch. 1 items 1–114) on 1.7.13: s. 2
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Statute Law Revision Act 2013, No. 70/2013

Assent Date: 19.11.13
Commencement Date: S. 3(Sch. 1 item 3) on 1.12.13: s. 2(1)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Legal Profession Uniform Law Application Act 2014, No. 17/2014

Assent Date: 25.3.14
Commencement Date: S. 160(Sch. 2 item 11) on 1.7.15: Special Gazette (No. 151) 16.6.15 p. 1
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Victoria Police Amendment (Consequential and Other Matters) Act 2014, No. 37/2014

Assent Date: 3.6.14
Commencement Date: S. 10(Sch. item 9) on 1.7.14: Special Gazette (No. 200) 24.6.14 p. 2
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Inquiries Act 2014, No. 67/2014¹¹

Assent Date: 23.9.14
Commencement Date: S. 147(Sch. 2 item 5) on 15.10.14: Special Gazette (No. 364) 14.10.14 p. 2
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building Legislation Amendment (Consumer Protection) Act 2016, No. 15/2016
(as amended by No. 21/2017)

Assent Date: 19.4.16
Commencement Date: Ss 19, 34–36, 39, 42, 44, 45, 47–51, 53, 54, 56–58 on 4.7.16: Special Gazette (No. 194) 21.6.16 p. 1; ss 16–18, 20–23, 25–27, 29–33, 38, 43, 55 on 1.9.16: Special Gazette (No. 261) 23.8.16 p. 1; ss 59–68 on 26.4.17: Special Gazette (No. 94) 27.3.17 p. 1; ss 24, 28, 37, 40–41, 46(2), 52 on 1.7.17: s. 2(2)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building Act 1993
No. 126 of 1993
Endnotes

House Contracts Guarantee Repeal Act 2016, No. 37/2016

Assent Date: 28.6.16
Commencement Date: Ss 7, 8 on 29.6.16: s. 2
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Heritage Act 2017, No. 7/2017

Assent Date: 15.3.17
Commencement Date: S. 296 on 1.11.17: s. 2(2)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Urban Renewal Authority Victoria Amendment (Development Victoria) Act 2017, No. 10/2017

Assent Date: 27.3.17
Commencement Date: S. 31 on 1.4.17: Special Gazette (No. 94) 27.3.17 p. 1
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building Amendment (Enforcement and Other Measures) Act 2017, No. 21/2017
(as amended by No. 47/2017)

Assent Date: 23.5.17
Commencement Date: Ss 21(2), 50(1), 56, 72–76, 79–82, 86–100 on 24.5.17: s. 2(1); ss 3(2), 17(1), 18(1), 19, 26, 27, 31–38, 49, 50(2), 51, 53, 55, 66(1), 83 on 16.8.17: Special Gazette (No. 257) 1.8.17 p. 1; ss 4, 5, 13, 14, 16, 18(2)(3), 25, 28–30, 39–41, 43–48, 52, 54, 59(2), 85 on 31.1.18: Special Gazette (No. 443) 19.12.17 p. 1; ss 3(1)(3), 6–12, 15, 17(2), 20, 21(1), 22–24, 42, 77, 78, 84 on 1.7.18: s. 2(3); ss 57–59(1), 60–65, 66(2)–71 on 1.7.19: s. 2(4)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Planning and Building Legislation Amendment (Housing Affordability and Other Matters) Act 2017, No. 47/2017

Assent Date: 26.9.17
Commencement Date: Ss 10–13 on 27.9.17: s. 2(1)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Planning and Environment Amendment (Public Land Contributions) Act 2018, No. 7/2018

Assent Date: 27.2.18
Commencement Date: Ss 21, 22 on 2.7.18: Special Gazette (No. 305) 26.6.18 p. 1
Current State: This information relates only to the provision/s amending the **Building Act 1993**

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Building Amendment (Registration of Building Trades and Other Matters) Act 2018, No. 46/2018

Assent Date: 25.9.18
Commencement Date: Ss 30, 38–41, 45–56, 58, 64–73, 75 on 26.9.18: s. 2(1); ss 31–37, 42–44, 57, 59–63, 74 on 1.7.19: s. 2(4); ss 25–29 on 1.12.19: s. 2(6); ss 4–24 on 1.9.20: s. 2(8)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Guardianship and Administration Act 2019, No. 13/2019

Assent Date: 4.6.19
Commencement Date: S. 221(Sch. 1 item 5) on 1.3.20: s. 2(2)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Firefighters' Presumptive Rights Compensation and Fire Services Legislation Amendment (Reform) Act 2019, No. 20/2019

Assent Date: 2.7.19
Commencement Date: Ss 145–148 on 1.7.20: Special Gazette (No. 328) 30.6.20 p. 1
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Professional Engineers Registration Act 2019, No. 26/2019

Assent Date: 3.9.19
Commencement Date: Ss 112–130 on 1.7.21: s. 2(2)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building Amendment (Cladding Rectification) Act 2019, No. 43/2019

Assent Date: 19.11.19
Commencement Date: Ss 4(1), 9, 10, 27 on 17.12.19: Special Gazette (No. 537) 17.12.19 p. 1; ss 4(2), 5–8, 11–26 on 1.1.20: Special Gazette (No. 537) 17.12.19 p. 1
Current State: All of Act in operation

Melbourne Strategic Assessment (Environment Mitigation Levy) Act 2020, No. 1/2020

Assent Date: 11.2.20
Commencement Date: Ss 133, 134 on 1.7.20: s. 2(2)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building and Environment Protection Legislation Amendment Act 2020, No. 3/2020

Assent Date: 25.2.20
Commencement Date: Ss 19, 22, 24–30, 36, 39, 41 on 28.7.20: Special Gazette (No. 375) 28.7.20 p. 1; ss 20, 21, 23, 31–35, 37, 38, 40 on 1.12.20: s. 2(3)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

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Local Government Act 2020, No. 9/2020

Assent Date: 24.3.20
Commencement Date: S. 390(Sch. 1 item 8.1) on 6.4.20; s. 390(Sch. 1 item 8.7) on 1.5.20: Special Gazette (No. 150) 24.3.20 p. 1; s. 390(Sch. 1 items 8.2–8.6) on 1.7.21: s. 2(4)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Retail Leases Amendment Act 2020, No. 26/2020

Assent Date: 22.9.20
Commencement Date: S. 3 on 23.9.20: s. 2(1)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Cladding Safety Victoria Act 2020, No. 31/2020

Assent Date: 4.11.20
Commencement Date: Ss 53–57, 58 on 1.12.20: Special Gazette (No. 624) 1.12.20 p. 1; ss 57A–57F, 58A on 1.2.21: Special Gazette (No. 624) 1.12.20 p. 1
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Planning and Environment Amendment Act 2021, No. 12/2021

Assent Date: 23.3.21
Commencement Date: S. 7 on 7.7.21: Special Gazette (No. 372) 6.7.21 p. 1
Current State: This information relates only to the provision/s amending the **Building Act 1993**

State Taxation and Mental Health Acts Amendment Act 2021, No. 22/2021

Assent Date: 16.6.21
Commencement Date: S. 18 on 1.7.21: s. 2(1)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building Amendment (Registration and Other Matters) Act 2021, No. 40/2021

Assent Date: 19.10.21
Commencement Date: Ss 3–45, 49A–53 on 20.10.21: s. 2(1); ss 47–49 on 3.8.22: s. 2(3)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Residential Tenancies, Housing and Social Services Regulation Amendment (Administration and Other Matters) Act 2022, No. 40/2022

Assent Date: 6.9.22
Commencement Date: S. 50 on 7.9.22: s. 2(2)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

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Building and Planning Legislation Amendment Act 2023, No. 1/2023

Assent Date: 28.2.23
Commencement Date: Ss 3–21 on 1.3.23; s. 2
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building Legislation Amendment Act 2023, No. 11/2023¹²

Assent Date: 6.6.23
Commencement Date: Ss 3–28, 31–51 on 1.2.24; s. 2(2)
Current State: This information relates only to the provision/s amending the **Building Act 1993**

Building Legislation Amendment (Domestic Building Insurance New Offences) Act 2024, No. 4/2024

Assent Date: 27.2.24
Commencement Date: Ss 6–18 on 28.2.24: Special Gazette (No. 88) 27.2.24 p. 1
Current State: This information relates only to the provision/s amending the **Building Act 1993**

3 Explanatory details

¹ S. 3(1) def. of **building practitioner** para (j): See section 137B for responsibilities of owner builders.

² S. 3(1) def. of **owner** in relation to a building: The definition of **land** in section 38 of the **Interpretation of Legislation Act 1984**, No. 10096/1984 reads as follows:

38 Definitions

land includes buildings and other structures permanently affixed to land, land covered with water, and any estate, interest, easement, servitude, privilege or right in or over land;

³ S. 12: Section 62(4) of the **Planning and Environment Act 1987**, No. 45/1987 (as amended by this Act) provides that the responsible authority must not include in a planning permit a condition which is inconsistent with this Act or the building regulations under this Act or a relevant determination of the Building Appeals Board under this Act in respect of the land to which the permit applies.

⁴ S. 49: See section 3(1) definition of **conduct**.

⁵ S. 53(2): See sections 205N–205R of this Act for powers of the Authority.

⁶ S. 129 def. of **building work**: See section 3(1) definition of **building work** in this Act.

⁷ S. 188A: Clause 4A of Schedule 2 requires the reporting authority, if required by the regulations, to give effect to the guidelines made under this section in considering an application for a building permit for a single dwelling that it is required to report on, or to consent to.

⁸ S. 190(1): See note 5.

⁹ Pt 12 Div. 2 (Heading and ss 193–205) amended by Nos 31/1994 s. 4(Sch. 2 item 9), 42/1995 s. 224(Sch. 2 item 6), 71/1995 s. 17, 91/1995 s. 153, 34/1997 ss 16, 17, 18/1998 s. 6, 46/1998 s. 7(Sch. 1), 52/1998 s. 311(Sch. 1 items 10.9, 10.10), 85/2000 ss 6, 7, 26/2001 ss 12–14 (as amended by No. 33/2010 s. 54), 68/2001 s. 3(2)(3), 11/2002 s. 3(Sch. 1 item 6.3), 36/2002 ss 12–14, 30/2003 s. 82(2)(3), 108/2004 s. 117(1)(Sch. 3 items 21.1, 21.2), 54/2007 ss 6, 7, 11(1), 46/2008 s. 248(4), (5), substituted as Pt 12 Div. 2 (Heading and ss 193–205R) by No. 34/2013 s. 4.

¹⁰ Sch. 3 cl. 3(2)(a): Section 56 of the **Interpretation of Legislation Act 1984**, No. 10096/1984, as it applies to the bankruptcy of a member of a Board to which Schedule 3 of this Act applies, has the effect that the office of a member of a Board becomes vacant if the member's property becomes subject to control under the law relating to bankruptcy.

¹¹ Table of Amendments: The amendment to Schedule 3A proposed by section 147(Schedule 2 item 5) (*repealed*) of the **Inquiries Act 2014**, No. 67/2014 is not included in this publication as Schedule 3A was not part of this Act when section 147(Schedule 2 item 5) came into operation.

Schedule 2 item 5 read as follows:

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5.1 In clause 13(2) of Schedule 3A, after "**1958**" **insert** ", as in force immediately before their repeal,".

¹² Table of Amendments (**Building Legislation Amendment Act 2023**): The amendment proposed by section 3(1) of the **Building Legislation Amendment Act 2023**, No. 11/2023 is not included in this publication because the heading to section 3 is not considered part of this Act: see section 36(2A) of the **Interpretation of Legislation Act 1984**, No. 10096/1984.

Section 3(1) reads as follows:

3 Definitions and interpretation

(1) In the heading to section 3 of the **Building Act 1993**, after "**Definitions**" **insert** "**and interpretation**".